1972

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Schwartz v Gill & Co Ltd

[1972] 1 EA 1 (HCK)

Division: High Court of Kenya at Nairobi

Date of judgment: 27 April 1971

Case Number: 1012/1969 (130/71)

Before: Wicks J

Sourced by: LawAfrica

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[1] Contract – Implied term – Servant's leave and passages – No implied term that they may be taken in cash.

[2] Master and Servant – Leave and passages – No implied term that they may be taken in cash.

Editor's Summary

The plaintiff had been employed by the defendant on terms which the court found included the right to two months' leave every four years together with passages to England. The plaintiff contended that it was an implied term of the contract that if leave and passages were not taken he was entitled to accumulate the entitlement or be paid the money equivalent, and he claimed the value of leave and passages not taken in 1963 and 1967.

Held –

(i) a term will only be implied into a contract when it is necessary to do so and not merely where the court thinks that it would have been reasonable to have inserted it;

(ii) no such term as was contended for could be implied into the plaintiff's contract of service (*Greenly v. Rootes* (*Kenya*) *Ltd*. (2) followed).

Judgment for the defendant.

Cases referred to in judgment:

(1) *Reigate v. Union Manufacturing Co*., [1918] 1 K.B. 592.

(2) *Greenly v. Rootes* (*Kenya*) *Ltd*., E.A.C.A. 31 of 1965 (unreported).

(3) *Berrie v. Horticultural Co-operative Union*, H.C.C.C. 781 of 1968 (unreported).

Judgment

Wicks J: The plaintiff was employed by the defendant in about August, 1955 and he claims that it was agreed, verbally, that at the end of every four years of service he would be entitled to two months' leave on full pay together with return passages to the United Kingdom at tourist rate for himself, his wife and child. Mr. Schwartz did not go on leave in 1963 and he claims two months leave pay and the equivalent of passage cost, he went on leave himself in 1967 and claims the equivalent of passage cost in respect of his wife and child. Mr. Schwartz further claims that it was an implied term of the contract that if leave and passages were not taken or granted at the stipulated times he was entitled to accumulate the entitlement or be paid the money

equivalent. The defendants deny that Mr. Schwartz was engaged on the terms alleged or that there was an implied term and say that he was engaged on local terms on a monthly basis, that he was entitled to two weeks' local leave each year and that the leave and passages granted to Mr. Schwartz were ex gratia. The issues agreed between the parties were:

1. Did the plaintiff's terms of employment provide for overseas leave and passages as claimed?
2. If the answer to 1 is "yes" is the plaintiff entitled to claim money in lieu of leave and passages?

[The judge then considered the evidence and continued.]

Looking at the evidence I find that Mr. Schwartz has discharged the onus resting on him and, on the balance of probabilities, it is established that the employment of Mr. Schwartz by the defendant was on overseas terms, they being two months' leave after four years' service together with leave pay and passages to the United Kingdom for Mr. Schwartz, his wife and child. I have said on the balance of probabilities, and if it is any consolation to Mr. Norman, I can say that if he receives letters making what he considers to be false claims, and he not only fails to refute those claims by evidence of equal value, but in addition takes action which supports those claims, and allows that to happen twice over a period separated by 10 years, he has himself to blame if the truth is not established in a court of law. The answer to the first issue is yes.

Considering the evidence relating to the letters dated 3 May 1965 and 15 September 1965 which Mr. Schwartz said he sent to the defendant, there is the circumstance that Mr. Norman did say that he seemed to remember that at the time he did tell Mr. Schwartz that if he put such a proposition to the directors they would throw him out of the window. It was never suggested that such violent action followed the request for passages and leave to be actually taken and that was taken in 1959 and 1968. There must have been something more and I am satisfied that it was the subject raised in the letter of 3 May 1965, that is a request for payment in lieu of passages and leave, and I find that the defendants received the letters. The letters are in a different category to those dated 15 October 1958 and 28 February 1968 for the reason that they were not acted on; in fact it is agreed that the request was met by rejection indicating violence to the person of Mr. Norman if he put it forward. The relevant point is that there was rejection. The issue remains, was there an implied term in the contract of employment?

Whether or not to imply a term in a contract is a matter of law for the court, and the court will imply a term where it feels satisfied that failure to mention the matter was due only to the fact that it was felt wholly unnecessary to say what was obvious at the time to all parties concerned. On the other hand a term will not be implied merely because the court thinks it would have been reasonable to have inserted it in the contract nor if the contract is effective without the proposed term, and it is not obvious that it was the intention of the parties at the time. See Chitty on Contracts, General Principles, 23rd Edition, paragraphs 691–697. There a dictum of Scrutton, L.J. in *Reigate v. Union Manufacturing Co.*, [1918] 1 K.B. 592 at p. 605 is set out which it is relevant for me to repeat here:

> "A term can only be implied if it is necessary in the business sense to give efficacy to the contract; that is, if it is such a term that it can confidently be said that if at the time the contract was being negotiated someone had said to the parties, 'What will happen in such a case?' they would both have replied: 'Of course, so and so will happen; we did not trouble to say that; it is too clear.'"

It was pointed out in Chitty (above) that it is important to realise that the

implication of a term may raise problems of more general importance in that it may have a profound effect upon the relationship which one class of persons bears to another, e.g. employers and employees, and the real question then becomes not what terms can be implied in a contract between two individuals in their particular transaction, but the determination of a matter akin to a question of status. The result is that it might be said that lip-service is frequently paid to the intention of the parties for the reason that in many classes of contracts it can be established from precedent those terms which will be implied and those that will not.

The class of contract, between employer and employee, and the claim on an implied term for the value of air passages to the United Kingdom and back, was considered by the Court of Appeal in the case *Greenly v. Rootes* (*Kenya*) *Ltd.,* C.A. 31 of 1965 (unreported). In that case the contract of employment provided that the appellant was entitled to long leave after three years' service and to return passages for himself, his wife and children. The appellant failed to take his leave when it was due and he brought the action for the value of the passages. In his judgment Law, J.A. said:

> "For the appellant to succeed in his appeal we would have to imply a term into the contract that the appellant at his option could choose to be paid the value of the passages instead of being provided with tickets after three years' service whether he went on leave or not. I agree with the trial judge that it would be unreasonable to imply such a term into the contract between the parties."

The appellant having become entitled to leave on the completion of three years' service, as was the case with the appellant though the period was four years, did the plaintiff have an accrued right? Spry, J.A. held that he did not. Newbold, P. said that at the termination of the three-year period there may be said to exist a right to the passages, but it is inchoate and

> "should the position arise in which the inchoate right never accrues to fruition before the termination of employment, then in no circumstances would the right ever be anything other than inchoate."

With respect I agree and I applied these principles in the case of *Berrie v. Horticultural Co-operative Union*, H.C.C.C. 781 of 1968 (unreported).

From the refusal to imply a term in the contract that the plaintiff is entitled to the money equivalent of leave and passages not taken, I do not consider that the law is harsh. As I have said the real question is akin to status, in this case employers and employees, and a host of considerations emerge. On passages, the employer may have allocated a total sum for passages and that sum not being expended on one employee was spent on others, the return passages were to be written off in half of the new tour, otherwise why bring the employee back. On leave pay, the work accumulated, or was spread amongst employees not on leave, so the work was done and the wage bill remained static. On both passages and leave pay taken, employees return refreshed and their improved efforts generate increased profits which writes off the cost. None of these matters are based on evidence before this court but we have seen that a guiding principle is that a term can only be implied if it is necessary to give efficacy to the contract and, testing a term which it is claimed is implied in a contract of service, such matters gleaned from decided cases are relevant to demonstrate that a decision is based on business sense and not on unreasoned choice.

In the result I find that the answer to the second issue is no.

Case dismissed.

For the plaintiff:
AE Hunter (instructed by *Daly & Figgis*, Nairobi)

For the defendant:
KB Keith (instructed by *Kaplan & Stratton*, Nairobi)

Ndirango v Republic
[1972] 1 EA 4 (CAN)

Division:	Court of Appeal at Nairobi
Date of judgment:	14 September 1971
Case Number:	76/1971 (138/71)
Before:	Spry V-P, Law and Lutta JJA
Sourced by:	LawAfrica
Appeal from:	High Court of Kenya – Madan, J

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[1] Appeal – Jurisdiction – Criminal – Third appeal – No jurisdiction to appeal from second decision on appeal – Criminal Procedure Code s. 361 (*K.*).

[2] Appeal – Criminal – From third class magistrate – Can but should not be heard by resident magistrate who imposed sentence.

Editor's Summary

The appellant and another were jointly charged with stealing and were convicted by a third class magistrate who remitted to a resident magistrate for sentence. The latter sentenced them to three years' imprisonment. The appellant incorrectly addressed his petition of appeal against conviction to the High Court. The registrar correctly forwarded it to the resident magistrate who had sentenced the appellant for consideration of the appeal. In the petition the appellant stated that he had no wish to be present at the hearing of his appeal. The resident magistrate dismissed the appeal against conviction but stated there was a right of appeal against sentence to the High Court. The proceedings were passed to the High Court with the original petition. The appellant should have been informed that his appeal had been sent to the resident magistrate and he should have been informed that his appeal against conviction had been dismissed. But he could have applied for leave to appeal to the High Court against sentence. If leave had been granted a fresh petition would have been prepared being an appeal from the judgment of the resident magistrate and not from the third class magistrate.

The High Court dismissed the appeal and the appellant was informed. He then lodged notice of appeal to the Court of Appeal.

Held –

(i) there was no jurisdiction to entertain the appeal, as there is no right of appeal against conviction from the decision on a second appeal, and similarly there is no second appeal against sentence;

(ii) the resident magistrate had jurisdiction to decide on appeal the correctness of the conviction by the third class magistrate, but where he has imposed the sentence, it is preferable that another resident magistrate should consider the correctness of the conviction.

Appeal struck out.

No cases referred to in judgment

Judgment

The considered ruling of the court was read by **Spry V-P:** On 3 September 1971, we struck out this appeal as incompetent. As the circumstances are peculiar, we think it desirable to give our reasons.

The appellant and another man were jointly charged with and convicted of stealing. This was in the court of a third class magistrate, who, considering that the case called for sentences greater than he had jurisdiction to impose, committed them to the court of the resident magistrate for sentence. The resident magistrate sentenced each to three years' imprisonment.

The appellant mistakenly addressed a petition of appeal to the High Court. The deputy registrar of the High Court, appreciating that the right of appeal against conviction lay to the court of the resident magistrate, sent him the petition of appeal.

The petition of appeal contained a statement that the appellant did not wish to attend the hearing of his appeal, generally an euphemistic way of saying that he lacked the means to do so.

The resident magistrate heard the appeal and dismissed it. He concluded by saying that there was a right of appeal to the High Court against sentence. It appears that the proceedings were then passed by the resident magistrate to the High Court with the original petition of appeal.

The deputy registrar was quite right in sending the appeal to the resident magistrate, but the appellant should have been informed that this appeal was to be heard by the resident magistrate. What is more important, the appellant should subsequently have been informed that his appeal against conviction had been dismissed but that he could apply for leave to appeal to the High Court. If he had done so, and if leave had been granted, a fresh petition of appeal should have been prepared as this would have been an appeal from the judgment of the resident magistrate, not from that of the third class magistrate.

As it was, the appellant was left in ignorance of what was happening and his case was considered in the High Court, without leave being granted, as if it had been a first and not a second appeal. The appeal was dismissed and the appellant was duly notified, when he lodged notice of appeal to this court. The matter was placed before the judge under r. 49A of the Rules of this court and he, by implication, certified that the appeal raised a question of law and that he was satisfied that the appellant was a poor person.

When the appeal came before us, we felt bound to question whether we had any jurisdiction to entertain it. The only relevant provision appears to be s. 361 of the Criminal Procedure Code. Subs. (1) appears to give a general right of appeal on questions of law against decisions of the High Court in its appellate jurisdiction, but when the section is read as a whole, with its repeated references to the subordinate court and the first appellate court, we think it is clear that it confers no right of appeal against conviction from the decision on a second appeal. So far as sentence is concerned, there is undoubtedly no second appeal.

The appeal was therefore incompetent and had to be struck out.

We are satisfied that there has been no failure of justice in this case, but the way the matter was dealt with without reference to the appellant meant that justice was not seen to be done.

There is one other matter on which we would comment. As we have said, the appellant was committed for sentence to the court of the resident magistrate. His appeal against conviction lay to the same court and it was in fact the magistrate who had passed the sentence who subsequently heard the appeal. Although we do not doubt that he had jurisdiction, we think that, whenever possible such an appeal should be heard by another magistrate, who will come to it with a completely open mind.

Appeal struck out.

The appellant appeared in person.

For the respondent:
AR Rebelo (State Counsel)

Bahra v Highland Industrial Garage

[1972] 1 EA 6 (CAN)

Division:	Court of Appeal at Nairobi
Date of judgment:	29 September 1971
Case Number:	23/1971 (152/72)
Before:	Law Ag V-P, Lutta and Mustafa JJA
Sourced by:	LawAfrica
Appeal from:	High Court of Kenya – Wicks & Chanan Singh, JJ

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[1] Rent restriction – Possession – Rescission of order – Procedure not laid down – Form of complaint not relevant.

[2] Rent restriction – Possession – Rescission of order – Duty of Tribunal to act when grounds of complaint proved.

[3] Rent restriction – Possession – Rescission of order – Tribunal not limited to powers of appeal court.

Editor's Summary

The Rent Tribunal ordered the respondents to give up possession of premises to the appellant their landlord on the grounds that the appellant required it to carry on his own business on the premises.

Thereafter the respondents applied to the Tribunal by a document described as a notice of motion for rescission of the order and alternatively for compensation on the grounds that the order had been induced by misrepresentation or concealment of material facts. The affidavit filed at the same time contained hearsay evidence, but it was made clear that the witnesses would be called.

On the appellant objecting to the affidavit, the Tribunal dismissed the application summarily and without hearing any evidence.

The respondents applied to the High Court for an order for certiorari and mandamus quashing the dismissal and ordering the hearing of the application and the High Court granted the application holding that the application had been properly made, had not been heard and should be heard. The appellant appealed and contended that there had been a hearing before the Tribunal but that, as the evidence presented was hearsay, there was nothing to cause the Tribunal to revise its previous decision. It was further contended that an order of the Tribunal could only be rescinded on the grounds on which an appeal court would admit fresh evidence on appeal, and that the Tribunal's power to vary or rescind was purely discretionary.

Held –

(i) there had been no hearing;

(ii) once *prima facie* valid grounds of complaint are put forward it is the duty of the Tribunal to hear and determine the application on its merits;

(iii) as no procedure is prescribed for invoking the Tribunal's power to vary or rescind, it does not matter what form the complaint takes;

(iv) on an application to vary or rescind a Tribunal acts as a court of review and not as an appellate court;

(v) a Tribunal's power to rescind is a power coupled with a duty to act when valid grounds justifying the exercise of the power are proved.

Appeal dismissed.

Cases referred to in judgment:

(1) *R. v. Kesteven Justices* (1844) 3 Q.B. 810; 114 E.R. 718.

(2) *Ladd v. Marshall*, [1954] 3 All E.R. 745.

Judgment

The following considered judgments were read. **Law Ag V-P:** The appellant is the owner of certain business premises in Nairobi, and the respondent is his tenant. The appellant, being desirous of obtaining possession of those premises for the purpose of himself carrying on business therein, served the respondent with two months' notice to terminate the tenancy, in accordance with the provisions of s. 4 of the Landlord and Tenant (Shops, Hotels and Catering Establishments) Act, (Cap. 301) (hereinafter referred to as "the Act"), on 22 April 1970. On 19 May 1970, the respondent replied by serving notice of his refusal to agree to the proposed termination of his tenancy, and of his intention to refer the matter to the Tribunal established under the Act. The matter was duly referred to the Tribunal which, on 19 October 1970, heard the parties and their witnesses and was addressed by their advocates. The Tribunal gave its decision on 29 October 1970. It expressed itself as being satisfied that the appellant had a genuine intention to carry on business in the premises, and that he had the necessary machinery, know how, and financial resources to do so. The Tribunal accordingly ordered the respondent to give vacant possession of the premises to the appellant.

By s. 12 (1) (i) of the Act, a Tribunal has power to vary or rescind any of its orders, but the Act and the Regulations made thereunder are silent as to the procedure to be followed by a party who wishes to move a Tribunal to exercise these powers.

On 5 December 1970, the respondent lodged with the Tribunal a notice of motion asking the Tribunal to rescind the order for possession made on 29 October, alternatively to award compensation under s. 13 of the Act, which empowers a Tribunal to award compensation to a party against whom the Tribunal has been induced to make an order by reason of misrepresentation or concealment of material facts by the other party. The notice of motion was supported by an affidavit in which the respondent swore, *inter alia*, that he had been informed by two of the appellant's brothers that the evidence given by the appellant before the Tribunal as to his ownership of machinery was untrue, and that these persons were "able and prepared" to testify to that effect. When the proceedings re-opened before the Board on 7 January 1971, Mr. R. N. Khanna who then appeared for the appellant objected to the affidavit filed in support of the notice of motion, on the ground that it offended against O. 18 r. 3 of the Civil Procedure Rules, as not being confined to facts which the deponent was able of his own knowledge to prove, and submitted that it should be rejected as containing hearsay evidence. Mr. Rayani who then appeared for the respondent pointed out that the Tribunal had its own procedure and that the object of the affidavit was to disclose the discovery of evidence of misrepresentation since the making of the order for possession, and he made it clear that he was proposing to call the brothers as witnesses. The Tribunal, presumably accepting Mr. R. N. Khanna's preliminary objection on points of law, summarily dismissed the application for rescission or compensation, without giving any reasons and without hearing the witnesses whom Mr. Rayani was proposing to call. The respondent thereupon applied to the High Court for an order of certiorari to remove into the High Court and quash the order of dismissal, and for an order of mandamus directing the Tribunal to hear and determine the application on its merits.

This application was heard by Wicks, J. (as he then was) and Chanan Singh, J. who made the orders asked for. In his judgment, Wicks, J. expressed the

view that as no procedure was laid down for moving a tribunal, the use of the words "Notice of Motion" did not bring the proceedings within the Civil Procedure Rules, and that the affidavit in support was not necessary. Not being necessary, it was irrelevant whether or not it was sufficient as an affidavit. The judge said that the notice of motion and the so-called affidavit should be looked at as forming the grounds of the application, and looking at these documents in that light he was satisfied that they constituted an application properly brought under s. 12 (1) (i) of the Act. The judge went on to hold that the application, having been properly brought, was never heard, the Tribunal having put it out of its power to hear it by its action in acceding to the preliminary points of law raised by Mr. Khanna. He held that the failure on the part of the Tribunal to hear the application on its merits constituted a denial of justice and directed that the orders applied for be made. Chanan Singh, J. said he agreed with the judgment of Wicks, J. He also referred to reg. 28 of the Landlord and Tenant (Shops, Hotels and Catering Establishments) (Tribunal) (Forms and Procedure) Regulations, made under the Act, which reads–

> "The Tribunal shall not be obliged to apply strictly all the legal rules of evidence under the Evidence Act, provided its practice and procedure are conformable with justice, equity and good conscience"

and added that he had no doubt that "justice, equity and good conscience" required the complaint of the tenant to be looked into, and not dismissed in obedience to a technical rule of evidence.

From the decision of the High Court the appellant has appealed to this court. The principal argument for the appellant is that what transpired before the Tribunal on 7 January 1971, constituted a hearing. The respondent had chosen to present his evidence in affidavit form, and as this evidence was hearsay, there was nothing before the Tribunal to cause it to revise its decision, arrived at after a proper hearing on the merits, and delivered on 29 October 1970. Mr. Khanna attacked all the findings arrived at or concurred in by the judges in the court below as representing grave misdirections. He submitted in particular that there must be solid material put up to require a Tribunal to vary or rescind an earlier decision, and that the Tribunal in this case had considered the matter and decided that no *prima facie* case had been made out to warrant the Tribunal exercising its powers. He asked this court to hold that the same rules should apply to applications for rescission as are applied by a Court of Appeal before allowing applications for admitting fresh evidence or asking for a new trial, that is to say the Tribunal must be satisfied that the evidence sought to be led–

(*a*) could not have been obtained and adduced at the original hearing with reasonable diligence;

(*b*) is such as to have an important influence on the result; and

(*c*) is apparently credible;

and he relied on *Ladd v. Marshall* [1954] 3 All E.R. 745. Mr. Khanna submitted, as did Mr. Nowrojee, that the affidavit was rightly excluded, and that once it was excluded, there was no material before the Tribunal to justify the invocation of its powers of rescission, and that there was in fact a sufficient hearing in the absence of substantial allegations. Mr. Nazareth for the respondent supported the judgments appealed from and submitted that far from containing misdirections they were unassailably correct in every respect. He submitted that there had been no hearing on 7 January 1971, and that the respondent's application was dismissed on the preliminary point of law that it must be dismissed in limine as the affidavit sworn by the respondent was defective because it contained hearsay evidence. Mr. Nazareth submitted that a court should readily reconsider a Tribunal's decision based on a preliminary objection turning on a point

of law, and he relied for this proposition on *R. v. Kesteven Justices* (1844) 3 Q.B. 810. The point of law accepted of law accepted by the Tribunal was that put forward specifically as a preliminary objection by Mr. Khanna and was, in Mr. Nazareth's submission, a thoroughly bad one, and not part of the hearing. It was based on a misconception as to the nature of the respondent's affidavit, which was not intended to put in evidence what the appellant's brothers had to say, but to give notice to the Tribunal of the substance of the evidence which they would give orally when called as witnesses before the Tribunal.

I find myself in full agreement with Mr. Nazareth's submissions. I am quite unable to accept Mr. Khanna's submissions as to what is required before a Tribunal can be asked to exercise its powers of rescission; to do so would be to equate the Tribunal with a Court of Appeal. A Tribunal, when varying or rescinding its earlier decision, acts as a court of review and not as an appellate court. I agree with the High Court judges that the deficiency or otherwise of the affidavit, in the circumstances of this case, was immaterial. As no procedure is prescribed for invoking a Tribunal's power to vary or rescind its own decision, it does not matter in what form the complaint is brought to the attention of the Tribunal. It could be, for instance, by letter or by petition. The essential is that valid grounds of complaint, *prima facie* justifying a review, be brought to the Tribunal's attention in some effective manner. Here the respondent elected to proceed by a purported notice of motion supported by an affidavit. These documents could have been otherwise described. Looking at them together, it clearly emerges that the respondent was complaining that the appellant had obtained his order for possession as a result of misrepresentations which he, the respondent, was prepared to prove, by the evidence of two persons to be called as witnesses before the Tribunal, were false and fraudulent. It was then the duty of the Tribunal to hear and determine the application on its merits. I do not accept Mr. Khanna's submission that a Tribunal's power to vary or rescind is a purely discretionary power. It is, as Mr. Nazareth submitted, a power coupled with a duty; a duty which must be performed when valid grounds justifying the exercise of the power are put forward. I am satisfied that *prima facie* valid grounds of complaint were put forward in this case, and that it was the duty of the Tribunal to hold a hearing into these grounds of complaint. I agree with the judges of the High Court that no hearing was held, and that the respondent's application was dismissed on a point of law arising out of a preliminary objection which preceded what would have been the hearing. I agree with Mr. Nazareth that this court is not concerned with the merits of the application for rescission – they may be good, bad, or indifferent – but that once a *prima facie* valid ground of complaint is brought to the notice of the Tribunal, as happened here, which might justify a variation or rescission of the original order, then the Tribunal is bound to grant the complainant a hearing and inquire into the complaint. I find myself in full agreement with the judgments of the judges of the High Court. I would dismiss this appeal with costs and certify for two advocates. As Lutta, J.A. and Mustafa, J.A. agree, it is so ordered.

Lutta JA: I have had the advantage of reading in draft the judgment of the Acting Vice-President and I agree that this appeal should be dismissed.

It is a well established principle that a tribunal performing quasi-judicial functions must do so in accordance with the rules of natural justice. If the court is satisfied that a tribunal has not acted in accordance with those rules there is a remedy by mandamus and certiorari.

The procedure of the Tribunal is provided for in the Landlord and Tenant (Shops, Hotels and Catering Establishments) (Tribunal) (Forms and Procedure) Regulations, and under reg. 28:

> "The Tribunal shall not be obliged to apply strictly all the legal rules of

> evidence under the Evidence Act, provided its practice and procedure are conformable with justice, equity and good conscience."

Although when considering a matter before it the Tribunal is not obliged to follow the rules of procedure of a court of law, justice, equity and good conscience require it to consider the matter by fairly listening to both sides, that is, it must observe principles of "fair play". In this case the Tribunal did not act in accordance with the rules of natural justice and in the circumstances the judges of the High Court were justified in making the orders which were asked for by the respondents.

Mustafa JA: I have read the judgment prepared by Law, Ag. V.-P., with which I am in entire agreement. I have nothing to add.

Appeal dismissed.

For the appellant:
DN Khanna and *PE Nowrojee* (instructed by *Khanna & Co*, Nairobi)

For the respondent:
JM Nazareth, QC and *MB Rach* (instructed by *MB Rach & Co*, Nairobi)

Morjaria v Republic
[1972] 1 EA 10 (CAN)

Division:	Court of Appeal at Nairobi
Date of judgment:	15 October 1971
Case Number:	64/1971 (155/71)
Before:	Sir William Duffus P, Lutta and Mustafa JJA
Sourced by:	LawAfrica
Appeal from:	High Court of Kenya – Mwendwa, C.J. and Simpson, J

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[1] Criminal Law – Handling stolen property – Thief cannot be convicted of – Otherwise than in course of stealing not a new element of offence.

[2] Criminal Law – Theft – Bailee – Offence already committed when bailee offers goods for sale.

[3] Criminal Law – Theft – Identification of goods – Sufficiently identified as part of a lorry load.

[4] Criminal Practice and Procedure – Charge – Handling stolen property – Goods unloaded at different places – One transaction properly charged in one count.

[5] Evidence – Accomplice – No corroboration – Wrong to say that magistrate would have convicted.

[6] Evidence – Accomplice – Corroboration – Involvement of accomplice slight – Less corroboration required.

Editor's Summary

The driver of a lorry offered to sell the goods on it which did not belong to him to the appellant.

The appellant accepted, paid the driver and took delivery of the goods by having them off loaded at different places. The full facts are set out in the judgment of the court.

The appellant was convicted of handling stolen goods. On second appeal it was contended for him that it had to be proved that he had received the goods otherwise than in the course of stealing and that this phrase covered more than the act of theft, that the driver's offer to sell was only an overt act of conspiracy to steal and not fraudulent conversion amounting to theft, that the goods offered for sale were not identifiable, that there were separate acts of receiving

by reason of the various off loadings, and that the High Court should not have stated that the accomplice evidence would have been accepted even in the absence of corroboration.

Held –

(i) The phrase "otherwise than in the course of stealing" does not import a new element into the offence of handling by receiving; it merely makes it clear that a thief cannot be convicted as a receiver of the same goods;

(ii) when the driver offered the goods for sale he had already converted the goods to his own use and the theft was complete (*Rogers v. Arnott* (3) and *R. v. Sunderji* (1) followed; *Kahigwa v. Uganda* (4) overruled);

(iii) the goods were sufficiently identified as part of the load on the lorry;

(iv) all the acts were part of one transaction and properly charged in one count;

(v) the High Court was wrong in saying that the magistrate would have convicted on the uncorroborated accomplice evidence as he had not said so;

(vi) the accomplice's complicity was mild and passive and it did not therefore require the same corroboration as that of an active participant (*R. v. Wanjerwa* (2) followed);

(vii) There was in fact corroboration.

Appeal dismissed.

Cases referred to in judgment:

(1) *R. v. Sunderji* (1935) 2 E.A.C.A. 130.

(2) *R. v. Wanjerwa* (1944) 11 E.A.C.A. 93.

(3) *Rogers v. Arnott*, [1960] 2 Q.B. 244.

(4) *Kahigwa v. Uganda*, [1964] E.A. 451.

Judgment

The considered judgment of the court was read by **Mustafa JA:** The appellant was convicted of handling stolen goods contrary to s. 322 (2) of the Penal Code in a Resident Magistrate's Court and unsuccessfully appealed to the High Court of Kenya. He is now appealing to this court.

He was charged as follows:

> "On or about 3 August 1970, at Njoro within the Nakuru District of the Rift Valley Province, handled stolen goods in that he, otherwise than in the course of stealing, dishonestly received 43 bales of blankets and 24 boxes of suiting material, the property of Nakuru Industries Ltd., knowing or having reason to believe them to be stolen goods."

Briefly the facts as found by the trial judges were as follows.

Nakuru Industries Ltd. hired a lorry belonging to Bahati Transporters to transport 76 bales of blankets and 27 boxes of suiting material to its customers in Kisumu and Kisii.

The lorry was duly loaded and the driver one Mugo drove it out of the factory gates to a laundry called "Fellows". There he met a turnboy named Kiare. The driver Mugo told Kiare that he wanted to sell the goods in the lorry and together they went to a man called Shah and offered him the goods for sale. Shah went off and brought the appellant and Shah and the appellant agreed to buy half the

quantities of the blankets and suiting material for Shs. 24,000/-.

The appellant directed the lorry driven by Mugo to the appellant's store in

Nakuru, but there was insufficient space to admit the lorry into the compound. The appellant then told Mugo to drive the lorry along the tarmac road to Njoro. The appellant followed the lorry in his pick up, and near the Njoro turn off the lorry stopped and six bales were off loaded from the lorry into the appellant's pick up and taken by the appellant to his store in Nakuru. Shah and Shah's son Dilip were with the appellant in the pick up.

The appellant then took on two African labourers, and still accompanied by Shah and Dilip, followed the lorry and at Njoro 37 bales of blankets and seven boxes of suiting material were off loaded from the lorry and deposited in a building under construction belonging to one Mwangi on the instructions of the appellant.

Then the lorry proceeded along the road followed by the pick up and at a place near Rongai another 17 boxes of suiting material were taken off the lorry. The contents of these boxes were taken to and stored in Shah's house at Nakuru. Before the lorry driver Mugo drove off with the balance of the load, that is, 33 bales of blankets and three boxes of suiting material, the appellant gave Mugo Shs. 8,400/- in cash. Throughout these journeys the appellant was accompanied by Shah and Dilip in his pick up.

Before paying Mugo the sum of Shs. 8,400/- the appellant had cashed a cheque for Shs. 2,900/- with Ramniklal Shamji Shah in Nakuru at about 1.30 a.m.

At about 9 a.m. the same morning the appellant gave Shah a cheque for Shs. 14,000/- which Shah cashed at the Standard Bank and from that sum Shah paid the turnboy Kiarie Shs. 10,000/-, and kept back Shs. 4,000/- which Shah alleged he had given to the appellant to make up the sum of Shs. 8,400/- given to Mugo by the appellant.

These findings of fact were based mainly on the evidence given by Shah, the turnboy Kiare and Mwangi, all of whom had been convicted and sentenced for their part in the affair, as well as on the evidence of Dilip, the schoolboy son of Shah, aged about 18 years. The trial magistrate treated Shah, Kiare and Mwangi as accomplices, but held that Dilip was an innocent passenger and was not an accomplice.

The High Court on first appeal came to the conclusion that Dilip "was involved in the night's activities to such an extent that he could not have been ignorant of the true nature of the transaction. He should we think have been treated as an accomplice".

Mr. Kapila for the appellant has ably argued the appeal on two broad fronts. He relied on legal submissions and on the alleged inadequacy of the prosecution evidence to sustain a conviction.

We will first deal with the legal submissions. Mr. Kapila referred to the phrase "otherwise than in the course of stealing" and submitted that the prosecution has to prove that the appellant did not receive the goods in the course of stealing. He argued that the phrase "otherwise than in the course of stealing" is an element in the offence of handling and as such the prosecution has to prove it beyond reasonable doubt. On this point Mr. Kapila would appear to allege that if the appellant was guilty of any offence he would be guilty of stealing, not of receiving, and therefore could not have been convicted of handling.

In this connection he referred to a passage in the High Court judgment which reads, "It was obviously highly desirable, having regard to the facts of this case, to add at least an alternative charge of stealing. . . ." He submitted that it appears even the High Court was uncertain whether the facts as found were not more consistent with stealing than with handling. He also referred to s. 20 (1) of the Penal Code which provides that any person who aids or abets another person in committing an offence is deemed to have taken part in that offence and

may be charged with actually committing it. He submitted that the phrase "in the course of stealing" covered a wider area and range than the act of theft and that if the appellant received the goods during acts which were in the course of stealing the appellant could not be convicted of handling, but only of theft. If, however, there was a doubt whether on the facts the offence committed was in the course of stealing, or even if on the facts such a construction could have been possible, then such doubt should have been resolved in favour of the appellant. In this connection Mr. Kapila submitted that the trial magistrate was not certain when the theft of the goods was complete. The trial magistrate has said "the act of stealing the goods began when the lorry driver drove it to Nakuru and parked it behind 'Fellows laundry'." Later however the trial magistrate said:

> "This intention or act (of stealing) became complete when the lorry was parked behind 'Fellows' (laundry) and PW5 Kiare offered to sell some of the stolen goods to the accused through PW7 Shah."

And yet again he said in the course of his judgment,

> "The act of stealing the goods in the lorry had been completed as soon as the lorry driver brought the lorry to Nakuru and Kiare and he decided to sell some of the goods in it to the accused through PW7 Shah."

As Mr. Kapila has rightly pointed out the trial magistrate gave several findings as to when the theft of the goods was complete. On this point the finding of the High Court was as follows:

> "The theft was not completed until the last item had been unloaded. On the other hand the course of stealing in so far as each item of stolen goods was concerned we think ended when that item was delivered to and taken possession of by the appellant and Shah under the agreement of sale."

We do not accept the view that the phrase "otherwise than in the course of stealing" imports a new element or ingredient in the offence of handling by way of receiving. It has long been the law that a thief of stolen goods cannot be convicted as receiver of the same stolen goods. We are of the view that the phrase has been inserted merely to keep this point clear.

In respect of the offence of handling stolen goods contrary to s. 322 of the Penal Code the person who receives such stolen goods must do so after the goods have been stolen (in terms of s. 322 (3) (*a*)) by another party and the person himself must not be connected with the stealing of the goods. If a person is himself involved in stealing or assists in stealing such goods he cannot be guilty of handling; he can only be guilty of theft. The role a person plays in the way he obtains the goods is of paramount importance. Has he obtained the goods in the course of stealing them, or has he obtained them from somebody or some place, after the goods have already been stolen? For a person to be convicted of handling by way of receiving the prosecution must establish that the person has not obtained possession of or received the goods as a result of his role and conduct as a thief, but as a dishonest receiver or possessor of such stolen goods. That, in our view, is what the phrase "otherwise than in the course of stealing" essentially means. Applying that test to the facts as found by the trial magistrate in this case, can it be said that the appellant could have received the goods "in the course of stealing", that is, did the appellant at any stage steal or assist in stealing such goods? We do not think so. The driver Mugo was entrusted with the goods to be transported to Kisumu and was clearly a bailee of the goods. When Mugo offered to sell the goods to the appellant, Mugo had determined in his own mind to sell the goods for his own benefit contrary to the terms of the bailment. Mugo was then standing in the owner's shoes in relation to the

goods and exercising an owner's right. Mugo had then already converted the goods to his own use and since he had acted dishonestly he had committed the offence of stealing: see s. 268 (1) of the Penal Code. In this case Mugo sold the goods, but it would not have mattered even if no sale had taken place. The offence of stealing was complete. We do not accept Mr. Kapila's argument that the offer to sell made by Mugo only constituted an overt act of the conspiracy to steal and did not constitute fraudulent conversion amounting to theft. In this connection we refer to the decision in *Rogers v. Arnott*, [1960] 2 Q.B. 244, where it was held–

> "Where a person was lent property and then determined in his own mind to sell it for his own benefit contrary to the terms of the bailment, he had determined that in relation to the property he would no longer be a borrower but an owner, and an owner wishing to sell; when he proceeded to carry that intention into effect by offering the property for sale, he had already converted the property to his own use whether the attempted sale took place or not. . . ."

We respectfully adopt the reasoning and conclusion in that case. The same proposition was enunciated in *R. v. Sunderji*, (1935) 2 E.A.C.A. 130. We have been referred to the case *Kahigwa v. Uganda*, [1964] E.A. 451 in which the Chief Justice of Uganda held that to constitute conversion amounting to theft three things have to happen contemporaneously:

(1) an overt act by the person to whom the property has been entrusted showing a departure from his instructions in regard to the property;

(2) such an overt act results in a wrongful gain to the person so entrusted with the property;

(3) such an overt act results in wrongful loss to the owner.

The Chief Justice purported to derive these three propositions from the *Sunderji* case. With great respect we think the Chief Justice was in error. Indeed in the *Sunderji* case the court said–

> "It is in accordance with law and common sense that there may be, as in the present case, an overt act prior to the sale establishing a larceny."

There need not be any resulting gain or loss before conversion amounting to theft can be committed.

It is true, as Mr. Kapila has pointed out, that both the trial magistrate and the judges on first appeal had given different and varying findings as to when the stealing was complete. However, on the basis of the facts as found by the trial magistrate, this court is in as good a position as the courts below in coming to its own conclusion as to when the theft was complete. It is clear that in neither of the courts below was it appreciated that the driver Mugo was a bailee and the point of conversion amounting to theft was not canvassed or considered. Indeed in cases where the act of stealing and the act of receiving happen more or less at about the same time it might happen that the court has to choose from several alternatives as to at what point the stealing would be complete. As Mr. Potter for the Republic has pointed out there may be no simple and general test that can be applied to decide at what point of time or stage the theft was complete. Each case has to be decided on its own facts. In this case we are satisfied that the theft was at any rate complete when the driver Mugo offered to sell some of the goods in the lorry to Shah and the appellant.

Mr. Kapila has submitted that the goods that were offered for sale were not identifiable in the sense that no specific boxes or bales were referred to. In our view the goods offered were part of the goods in the lorry and as such they were sufficiently identified. It was unnecessary to identify each and every box or

bale; it was sufficient if it was established that the boxes and bales offered or sold were part of the goods which were clearly identified as those entrusted to Mugo by the Nakuru Industries Ltd.

Since we have found that the stealing was complete when Mugo made the offer, all subsequent activities in relation to the goods by the appellant could only relate to the offence of handling by receiving and not to any activities related to stealing or "in the course of stealing". That finding disposes of the submission that the appellant could perhaps have been guilty of theft and therefore could not have been convicted of handling by way of receiving. Similarly the provisions of s. 20 (1) of the Penal Code in respect of aiding or abetting do not have any relevance in this case.

Mr. Kapila has submitted that there were at least three separate and distinct offences of receiving and a single count of receiving was bad in law. We see no merit in this submission. After the offer was made by Mugo and accepted by the appellant the evidence adduced showed that the appellant directed Mugo's lorry to his own store to off load the goods. It appeared that there was insufficient space for the lorry to get into the compound. As a result the goods were off loaded at three different places in three different lots. The High Court on first appeal had held "all these acts of receiving formed part of the same transaction and were properly charged in one count". We agree with that conclusion. The off loading of the goods at three different points in three different lots was merely the mechanics employed in taking the goods off the lorry for convenience of storing and to avoid detection and was part of the same transaction, and formed one offence. There was no duplicity in the charge and no prejudice or embarrassment could have been caused to the appellant.

Mr. Kapila complained that the trial magistrate misdirected himself on the onus of proof. Reading the judgment as a whole we think that the trial magistrate had directed himself correctly on the onus of proof. It is true that the trial magistrate had used the words "Where a *prima facie* case has been made out, an accused person remains silent at his peril". However, there is not the slightest indication that the trial magistrate inferred from such silence the appellant's guilt. We are not unmindful of the following portions in the trial magistrate's judgment, e.g. "Having selected a place or places for taking stolen goods the accused cannot be permitted to take advantage of his scheme to defeat justice and avoid consequences of his criminal acts". And again "He knew what he did on the material night and the case he had to meet".

Read in isolation these two passages would indicate that the trial magistrate had concluded that the appellant was guilty of the offence charged. However these passages occur in that part of the judgment in which the trial magistrate was dealing with Mr. Kapila's submission that the charge against the appellant was duplex. The trial magistrate was of the opinion that the offence of receiving committed by the appellant was single and indivisible, despite the fact that the goods were off loaded at different places and at different times. The trial magistrate having concluded that the offence was one and indivisible went on to say that in such circumstances the appellant could not have been misled. The language used in these two paragraphs was unfortunate, but in the general context of the judgment we are satisfied that the trial magistrate did not misdirect himself on the onus of proof.

We will now deal with the submission of Mr. Kapila that the evidence adduced was not credible enough to sustain a conviction. He submitted that the trial magistrate had misdirected himself on accomplice evidence and on the issue of corroboration. The trial magistrate relied heavily on the evidence of Dilip who was not, according to him, an accomplice. However the High Court was of the view that Dilip was an accomplice and for the purpose of this appeal we will treat him as one. The trial magistrate in his judgment has said:

> "He (i.e. Dilip) impressed me as a truthful and honest witness."

And again

> "I accept Dilip's evidence as a substantially true account of what he did and happened on the material night. I have no doubt as to his role. If, however, by any stretch of imagination or construction of law, he were regarded as an accomplice, then there is ample corroboration of his evidence."

The trial magistrate then listed a number of factors as corroborative evidence, but all of them, except two, were based on the evidence of other accomplices. The independent piece of evidence was by Ramniklal Shamji Shah who testified that at 1.30 a.m. on the material morning, the appellant had cashed a cheque for Shs. 2,900/- with him. There is also the piece of evidence relating to the receipt of a letter by Dilip signed by the appellant and addressed to Shah purporting to show that the appellant had lent Shah a sum of Shs. 17,000/-. Mr. Kapila has submitted that the trial magistrate had substantially misdirected himself on the nature of accomplice evidence and corroboration, and had he not done so, it was at least doubtful if he would have concluded that "the evidence against the accused is overwhelming", or that he would inevitably have convicted the appellant. The High Court in dealing with this aspect said–

> "The learned magistrate was obviously impressed by Dilip as a truthful and honest witness and had he properly directed himself on the question of corroboration we have no doubt that having regard to the part Dilip played and the degree of his complicity in the offences committed that night the magistrate after duly warning himself of the danger of so doing would have accepted the evidence without corroboration. Indeed we think that properly warning and directing himself he would also have accepted the evidence of the other accomplices without corroboration."

With great respect we think that the High Court erred in coming to the conclusion that the magistrate would have accepted the evidence of Dilip to convict without corroboration. The fact remains that the trial magistrate did not say that he would have been prepared to convict on the evidence of Dilip without corroboration, much less on the uncorroborated evidence of the other accomplices. It is true that the trial magistrate said that he believed that the accomplices and Dilip had given truthful evidence. It is also true, as the High Court would seem to imply, the Dilip's extent of complicity was slight. Indeed that must have been so. Dilip was a school boy and the son of Shah and had accompanied Shah and the appellant on the journeys at the material times. Dilip must have been a passive agent, and there is no evidence to suggest that he took any part at all in the transaction. The High Court had held that Dilip could not have been ignorant of the true nature of the transaction, but that was a far cry from saying that Dilip had engaged in the illegal enterprise in any way. Dilip must have been under the control and influence of his father Shah. We will treat Dilip as an accomplice, although an accomplice in a minor and secondary sense.

We think it is perhaps convenient at this stage if we very briefly touch on the nature of accomplice evidence and corroboration. An accomplice has to a larger or lesser degree participated in the crime, and his evidence is suspect. If his evidence is disbelieved, that is the end of the matter. Indeed if the evidence of an independent witness is disbelieved, that would be the end of the matter too. However if the evidence of an accomplice is believed then further stages set in. A court would then normally look for corroboration of the accomplice evidence. Such corroboration would have to be found in other independent evidence on a material particular linking the accused with the offence. The court would then

decide whether the accomplice evidence supported by corroboration is sufficient to sustain a conviction. That of course will depend on the background and circumstance in each case. Or there may be no corroborative evidence available. In such an event the court will have to decide whether to reject the accomplice evidence or whether it is one of those exceptional cases where the accomplice evidence is so cogent and reliable that the court would after warning itself, be prepared to base a conviction on it. However a court has to direct its mind specifically in each of the above cases. Here the trial magistrate clearly was looking for corroboration of Dilip's evidence in the event Dilip was found to be an accomplice. He purported to find such corroboration. As the High Court has rightly pointed out, the trial magistrate misdirected himself with regard to corroborative evidence except, as we have indicated, as to two particulars. However, to overcome what appeared to have been the absence of substantive corroboration, the High Court went on to find that the trial magistrate would in any event have accepted the evidence of Dilip and the other accomplices without corroboration. With respect we do not think such a conclusion was justified. The trial magistrate did not say he would not require corroboration; on the contrary he looked for it. It does not necessarily mean that if a magistrate fully believed the evidence of a witness who was later considered to be an accomplice, a conclusion can be drawn that the magistrate would have been prepared to convict on the evidence of such accomplice alone if what was relied on as corroborative evidence turned out not to be so.

In the circumstances we are of opinion that in this case there must be corroborative evidence before the conviction of the appellant can be upheld. We will therefore briefly examine this aspect. The trial magistrate clearly accepted the evidence of Dilip and believed fully what he said. Dilip's complicity in the matter was mild and passive, and his testimony would not require the same amount of corroboration as that of a person who was actually concerned in the offence itself; see *R. v. Wanjerwa* (1944) 11 E.A.C.A. 93 at p. 95. Is there any corroboration of Dilip's evidence? We are satisfied there is. There is the evidence of Ramniklal Shah from whom the appellant obtained Shs. 2,900/- at 1.30 in the morning, a most unusual hour for such a transaction. Dilip had said that the appellant had brought back Shs. 2,900/- from Ramniklal Shah and that this sum formed part of the sum of Shs. 8,400/- that the appellant gave to the driver Mugo. There is again the letter which the appellant addressed to Dilip's father Shah and which Dilip received. That letter referred to an alleged loan of Shs. 17,000/- given by the appellant to Shah. The trial magistrate found that the signature on the said letter was the appellant's. These pieces of evidence do not offer strong corroboration, but are, in our view, sufficient to corroborate Dilip's testimony because Dilip's complicity was so slight.

There is also some slight corroboration of Shah's evidence. Shah had said that the appellant had given him a cheque for Shs. 14,000/- to pay the turnboy Kiarie. Shah said that he encashed the cheque at the Standard Bank and the accountant at the Standard Bank, Rawal, testified confirming this part of Shah's evidence.

Considering the cumulative effect of these pieces of evidence, in the circumstances of this case we are satisfied that there was sufficient independent evidence adduced to corroborate the mass of accomplice evidence to sustain the conviction.

Mr. Kapila has submitted that but for the series of misdirections in the courts below it was possible that the appellant would have been acquitted at either the magistrate's court or the High Court. The appellant was therefore prejudiced as he had lost the opportunity of an acquittal. However in this case the important point is whether the basic facts as found by the trial magistrate can be accepted as correct and credible. Mr. Kapila has challenged these findings of

primary facts on the ground that they were based substantially on uncorroborated accomplice evidence. We have found that there was sufficient corroboration and we accept the findings of fact as correct, as indeed had the High Court. Once the facts are accepted as correct, it is a matter of interpretation and construction in dealing with the question whether the appellant was guilty as charged. Although in our view the courts below had erred in their reasons, both of them came to the right conclusion.

There was thus no question of any prejudice or failure of justice, despite the misdirections.

We accordingly dismiss the appeal.

Appeal dismissed.

For the appellant:
AR Kapila and *R Shah* (instructed by *AR Kapila & Co*, Nairobi)

For the respondent:
KD Potter, *QC* (Special Legal and Constitutional Counsel) and *S Rao* (Assistant Deputy Public Prosecutor)

Republic v Barnes
[1972] 1 EA 18 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	2 September 1971
Case Number:	45/1971 (162/71)
Before:	Wicks CJ and Waiyaki J
Sourced by:	LawAfrica

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[1] Traffic – Disqualification – Special reasons – Special to offence not to offender – Factors relating to commission of offence not special reasons.

Editor's Summary

At 11.30 p.m. on a Saturday night when there was still considerable traffic on the road the respondent ran into the rear of an unlighted stationary vehicle, in the centre lane.

He had managed to brake and do little damage to the vehicles and had then parked properly on the side of the road. He was a moderate drinker and had taken a relatively small amount of drink. He was a first offender and had driven for twenty years without accident. He used his car for business purposes.

The respondent was convicted on his own plea of drunken driving and the magistrate did not disqualify him from holding a licence. The applicant contended that there were no special reasons why the respondent should not be disqualified.

Held –

(i) the accepted facts were all special to the offender and not to the offence and did not therefore constitute special reasons (*Whittall v. Kirby* (2) followed);

(ii) factors relevant to the commission of the offence such as the amount of alcohol taken, the degree of personal tolerance to it and the nature of the accused's driving before arrest cannot be special reasons (*R. v. Jackson* (7) considered).

Respondent disqualified.

Cases referred to in judgment:

(1) *R. v. Crossan*, [1939] N.I. 106.

(2) *Whittall v. Kirby*, [1947] 1 K.B. 194.

(3) *Jowett-Shooter v. Franklin*, [1949] 2 All E.R. 730.

(4) *Lines v. Hersom*, [1951] 2 K.B. 682.

(5) *Jones v. English*, [1951] 2 All E.R. 853.

(6) *Muindi Kilonzo v. R.*, [1962] E.A. 667.

(7) *R. v. Jackson*, [1970] 1 Q.B. 647; [1969] 2 All E.R. 453.

The following additional cases were cited in argument:

(8) *Rennison v. Knowler*, [1947] 1 All E.R. 302.

(9) *Labrum v. Williamson*, [1947] 1 All E.R. 824.

(10) *Blows v. Chapman*, [1947] 2 All E.R. 576.

(11) *Quelch v. Collett*, [1948] 1 All E.R. 252.

(12) *Lyons v. May*, [1948] 2 All E.R. 1062.

(13) *Gardner v. James*, [1948] 2 All E.R. 1069.

(14) *Duck v. Peacock*, [1949] 1 All E.R. 318.

(15) *Reay v. Young*, [1949] 1 All E.R. 1102.

(16) *Chapman v. O'Hagan*, [1949] 2 All E.R. 690.

(17) *Pilbury v. Brazier*, [1950] 2 All E.R. 835.

(18) *Aichroth v. Cottee*, [1954] 2 All E.R. 856.

(19) *Surtees v. Benewith*, [1954] 3 All E.R. 261.

(20) *Dennis v. Tame*, [1954] 1 W.L.R. 1338.

(21) *R. v. Wickins* (1958) 42 Cr. App. R. 236.

(22) *R. v. Lundt-Smith* (1964) 3 All E.R. 225.

(23) *Marlo v. Republic*, [1966] E.A. 209.

(24) *Brown v. Dyerson*, [1968] 3 All E.R. 39.

(25) *R. v. Scott*, [1970] 1 Q.B. 661; [1969] 2 All E.R. 450.

(26) *Kingombe v. Republic*, [1969] E.A. 542.

(27) *Nilsson v. Republic*, [1970] E.A. 599.

[*Editorial note*: From the headnote of *R. v. Jackson* (7) it is quite clear that what the Court of Appeal was considering were special reasons. The court stated that special reasons which could be taken into account might differ according to the offence committed and that regard must be had to the nature of the offence and the object of the legislature. They went on to say that impairment of driving, etc., was not a constituent of the offence of driving with an excessive proportion of alcohol in the blood and that therefore it could not be a special reason. (In effect, since impairment of the ability to drive is not part of this offence, its absence cannot relate to the offence.)

It was in this context that the passage from the judgment of Sachs, L.J. quoted, was given, and it appears clear that he is not saying that such matters cannot be relevant to special reasons in respect of the offence of driving when one's ability to do so is impaired by alcohol. In fact he is drawing distinction between the offences before him, where they *cannot* be special reasons, and other offences where they *may* be.]

Judgment

The considered judgment of the court was read by **Wicks CJ:** Anthony John Barnes pleaded guilty before the district magistrate, Nairobi, to a charge of driving a motor vehicle whilst under the influence of drink contrary to s. 44 (1) of the Traffic Act. In passing sentence the magistrate said that in view of the circumstances under which the offence was committed he did not propose to disqualify the accused and no disqualification, as provided for by s. 44 (2) of the Act, was imposed. The case comes before us in revision, the accused being called upon to show cause why the sentence should not be enhanced to include a disqualification, for a period of six months from the date of conviction, from holding or obtaining a licence.

The statement of facts by the prosecuting officer was:

> "Accused driving along Valley Road when he ran into another car. Nobody was hurt in the accident. Both vehicles slightly damaged. Police 999 car called to scene – on arrival police officers noted that accused smelt of alcohol. Immediately accused person was taken to a Police surgeon at Nairobi area Police HQ where accused examined by Dr. Lobo. He was certified drunk and incapable of controlling motor vehicle."

In mitigation Sir William Lindsay, who appeared for the accused, said:

> "Accused a first offender. Been driving for 20 years. No accident during this period. Saturday evening had a drink or two and food with his wife and friends off Limuru Road. At 11 p.m. he and his wife were returning to their home on the other side of Nairobi. Plenty of traffic going up hill – 4 lanes – shortly before accident, a stream of traffic on accused left overtaking accused, he suddenly saw a stationary vehicle ahead. The alternative – (1) To go to stationary vehicle's rear, or (2) swing to the left where accused would kill himself. Stationary vehicle had no lights. Accused braked causing little damage to that other vehicle and to his vehicle. Degree of control – he pulled the vehicle and parked it at side of road – Amount of drink was two gins and tonic and a third-bottle of white wine. That amount on Saturday is not much. Moderate drinker. Bad luck – had it not been for the stationary vehicle – this would not have happened. An accident of this nature could happen to anyone. Inevitable accident – He was not abusive in any way. Accused is managing director of Burrows Welcome – suppliers of health drugs. Uses his car for important work for Kenya's benefit – he goes around the entire E.A. Countries to explain how the drugs are used. I ask court not to disqualify."

The issue is were "special reasons", in accordance with the provisions of the sub-section, established enabling the magistrate not to order a disqualification.

The leading case on the interpretation of the words "special reasons" is *Whittall v. Kirby*, [1947] 1 K.B. 194 where at p. 201 Lord Goddard, C.J. adopted a dictum in the judgment in the case of *R. v. Crossan*, [1939] N.I. 106:

> "a 'special reason' within the exception is one which is special to the facts of the particular case, that is, special to the facts which constitute the offence. It is, in other words a mitigating or extenuating circumstance, not amounting in law to a defence to the charge, yet directly connected with the commission of the offence, and one which the court ought properly to take into consideration when imposing punishment. A circumstances peculiar to the offender as distinguished from the offence is not a 'special reason' within the section."

Lord Goddard, C.J. observed that it was difficult to visualise what could amount to special reasons but suggested one might be found if the court were satisfied that a drug had been administered to a driver without his knowledge. At p. 202 Lord Goddard said that it must be taken to be the law

> "that no considerations of financial hardship or of the offender being before the court for the first time, or that he has driven for a great number of years without complaint, can be regarded as a special reason within these sections."

In the case of *Jones v. English*, [1951] 2 All E.R. 853 the facts were:

> "(i) The lorry was broken down and had been towed to the position in which it was found. (ii) It was parked in a side road. (iii) The respondent had three beers after the lorry had been left by the towing vehicle and went

> to sleep in the lorry in a side road as he did not feel justified in allowing it to remain unattended even in a side turning."

Lord Goddard, C.J. held that the magistrates were justified in finding there were "special reasons", and referred to the case of *Jowett-Shooter v. Franklin*, [1949] 2 All E.R. 730 where the same court had held that in circumstances where a man came out of an hotel, got into his car in the car park and, having taken out the ignition key, sat in his car asleep, and the justices were satisfied that he had done so because he realised he was not in a fit state to drive and, had no intention of driving, the justices were justified in finding "special reasons". Clearly in both of these circumstances the reasons were special to the offence. It seems that it was to emphasise this that Lord Goddard at p. 854 referred to two statements made that "The respondent had not been convicted of any driving offence for ten years" said that over and over again that is not a matter which is a "special reason", and then "The respondent uses the lorry every day for business purposes" as again cannot be a "special reason". That these two reasons may be hardship reasons, but cannot be "special reasons". The decision in *Jones v. English* was followed in the case of *Muindi Kilonzo v. R.*, [1962] E.A. 667 where it was held that the circumstances that the car was out of order at the time did not relieve the appellant of liability for the offence though it justified a finding of "special reasons".

Sir William Lindsay submits that the distinction between reasons special to the offence and special to the offender has been modified in recent years, and some reasons special to the offender can be accepted as "special reasons". In support of this we are referred to a passage in the judgment of Lord Goddard, C.J. in the case of *Lines v. Hersom*, [1951] 2 K.B. 682 at p. 688:

> "I will not say that the conditions relating to the offender are to be ignored altogether, because that is almost impossible, but it is the circumstances which are special to the case which are to be the primary consideration."

In support of the proposition Sir William Lindsay referred us to the case of *R. v. Jackson*, [1970] 1 Q.B. 647 and to p. 657 where Sachs, L.J. said:

> "Thus, as regards s. 6 of the Act of 1960, the constituent components of the offence can normally involve an examination of factors such as what the accused has had to drink, what was his personal tolerance of alcohol, what was the nature of his driving before arrest, and what is the medical opinion on the above factors in relation to that particular man's capacity to drive."

With respect to Sir William Lindsay that passage relates to the offence, and are factors relevant to the issue of commission of the offence. "Special reasons" are not relevant to that issue and arise when, and only when, an accused person has been convicted. If the judgment in *R. v. Jackson* is examined it is seen that there is a careful analysis of provisions in a number of laws where the term "special reasons" is found and it is pointed out that in some "reasons special to the offender" are specifically made "special reasons" in others this is not so. In both *R. v. Jackson* and *Lines v. Hersom* the principle laid down in *Whittall v. Kirby* were specifically approved and we are of opinion that they remain unimpaired to the present time.

Looking at the statement in mitigation made by Sir William Lindsay in the case before us and accepting them as being the facts in the case, we are satisfied that all the matters referred to are special to the offender. We can find nothing that is special to the offence and as a result we find that the magistrate should have ordered a disqualification.

The case is reviewed. The sentence is altered in that there is added thereto

an order that the accused be disqualified for a period of six months from 19th April 1971 for holding or obtaining a licence.

Order accordingly.

For the applicant:
WKN Mungai (State Counsel)

For the respondent:
Sir William Lindsay and *KA Fraser* (instructed by *Hamilton Harrison & Mathews*)

Devani v Bhadresa and another
[1972] 1 EA 22 (CAN)

Division:	Court of Appeal at Nairobi
Date of judgment:	10 November 1971
Case Number:	21/1971 (165/71)
Before:	Law Ag V-P, Lutta and Mustafa JJA
Sourced by:	LawAfrica
Appeal from:	High Court of Kenya – Simpson, J

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[1] Injunction – Interlocutory – Must issue only when plain breach of clear covenant – Otherwise judge has discretion.

[2] Injunction – Interlocutory – Judge's discretion – Must consider balance of convenience and extent to which damages adequate remedy.

Editor's Summary

The appellant a dentist filed action against the respondents his landlords alleging an oral covenant by them not to permit a competitor in the same building, and a breach of that covenant. He claimed an injunction and applied *ex parte* for an interim injunction to restrain the respondents from allowing their brother to practise dentistry in the same building. This was granted. The respondents denied that there was any oral covenant and applied to set aside the interim injunction. The judge granted this application holding that the matter had not been fully placed before him, and that the appellant must have been aware of the brother's return, and finally that there was a substantial question to be tried and that therefore the balance of convenience had to be considered and that this was against the appellant.

On appeal the appellant contended that the judge should not have taken into account the position of a stranger to the action, that where a negative covenant was concerned the status quo should always be maintained and that if the judge had a discretion it was wrongly exercised.

Held –

(i) the judge only considered the brother's position in relation to the possibility that the

respondents might have to compensate him;

(ii) only where there is a plain breach of a clear covenant must an interlocutory injunction issue without regard to the balance of convenience (*Hampstead and Suburban Properties v. Diomedous* (4) followed);

(iii) where there is a substantial question to be investigated the judge has a discretion and must consider the balance of convenience and the extent to which damages would be more appropriate than an injunction;

(iv) the judge's discretion had been properly exercised.

Appeal dismissed.

Cases referred to in judgment:

(1) *Noormohamed Janmohamed v. Kassamali Virji Madhani* (1953), 20 E.A.C.A. 8.

(2) *Donmar Productions v. Bart*, [1967] 1 W.L.R. 740.

(3) *Harman Pictures v. Osborne*, [1967] 2 All E.R. 324.

(4) *Hamstead and Suburban Properties v. Diomedous*, [1969] 1 Ch. 248.

Judgment

The following considered judgments were read. **Law Ag V-P:** This appeal arises out of a suit instituted by the appellant, a practising dentist, against his landlords, the respondents, claiming an injunction to restrain the respondents from permitting or suffering or threatening to permit or suffer anyone other than the appellant from carrying on a dental practice in competition with the appellant in any part of the premises in which the appellant practises dentistry, in breach of an alleged oral covenant, and damages.

The plaint on the record of appeal is undated and only one of the respondents is named as defendant. I am assured by Mr. Khanna, who appeared for the appellant, that a draft plaint was typed and included in the record by mistake, and that the actual plaint filed was in fact framed against both respondents and dated and filed on 26 October 1970. It is surprising, to say the least, to find such an error perpetrated in a record certified by an advocate as being "correct and prepared to accord with copies as supplied by the High Court".

The correct plaint, which I assume is to the same effect as the draft on record, was filed on 26 October 1970. On the same day the appellant applied by chamber summons for an injunction restraining the respondents from permitting their brother (to whom I shall refer to henceforth as Mr. Bhadresa) from exercising the practice of dentistry upon the suit premises, and the appellant further prayed that notice of the application upon the respondents be dispensed with on the grounds that the granting of the injunction would be defeated by the delay in serving the notice upon them. The summons was supported by an affidavit made by the appellant, dated 23 October 1970, in which he swore *inter alia* that he became the respondents' tenant, under an oral tenancy, on 1 October 1968, having acquired Mr. Bhadresa's dental practice which was carried on in three rooms on the first floor of the suit premises, Mr. Bhadresa having decided to emigrate to Australia. The appellant further stated that it was a term of the said oral tenancy that the respondents would not permit or suffer any other person to exercise the practice of a dental surgeon upon any part of the suit premises in competition with the appellant. He went on to aver that the respondents had made available to Mr. Bhadresa a shop on the ground floor of the suit premises, that the shop was in the process of being converted into a dentist's surgery, and that Mr. Bhadresa had openly threatened and made known to the appellant his intention to carry on therein his dental practice in competition with the appellant, and that the respondents would unless restrained by injunction permit Mr. Bhadresa to carry on practice in the suit premises in breach of their covenant not to permit such a state of affairs. The summons was heard *ex parte* on 30 October 1970, by Simpson, J. in chambers, and the judge granted an interim injunction restraining the respondents from permitting or suffering Mr. Bhadresa or any other person from exercising the practice of dental surgery in any part of the suit premises.

On 8 December 1970, the respondents filed their defence, denying the making of the alleged oral covenant, alternatively alleging that if it was made by the first respondent it was done without the authority of the second respondent, and further alleging that if any such covenant was entered into, it was unenforceable being void for uncertainty, ambiguity, perpetuity and indefiniteness. The respondents went on to plead that Mr. Bhadresa became a tenant of the ground floor shop on 1 August 1970. On 9 December the respondents filed a notice of motion asking that the interim *ex parte* injunction be set aside. This notice of

motion was supported by affidavits sworn by the two respondents and by Mr. Bhadresa, to the effect that the shop had been leased to Mr. Bhadresa on 1 August 1970, and that thereafter Mr. Bhadresa had employed an architect to prepare plans which were approved by the City Council of Nairobi on 5 October, whereupon Mr. Bhadresa employed a builder to do the necessary work to convert the shop into a dental surgery, which work was largely completed when the interim injunction was granted. Furthermore the first respondent swore that he and the second respondent, to the knowledge of the appellant, lived on the second floor of the suit premises so that there was no justification for the application *ex parte* for an interim injunction on the ground put forward by the appellant that there would be delay involved in serving the chamber summons of 26 October 1970 on the respondents. The fact of the respondents living in the suit premises was not denied in the appellant's counter-affidavit.

The notice of motion for setting aside the interim injunction was heard on 2 April 1971, both parties being represented by leading counsel. The judge delivered his ruling on 7 April. He allowed the application and set aside the interim injunction, with costs including a certificate for two counsel, on the ground that the appellant, on the application for an *ex parte* interim injunction, had not stated his case fully and fairly, and had he done so the judge said he would not have granted the injunction. In particular, the judge found that the appellant had not disclosed that the respondents lived in the suit premises, so that immediate service of the chamber summons would have presented no difficulty, and he held that the appellant must have been aware of Mr. Bhadresa's return from Australia and of his occupation of the ground floor shop since 1 August 1970. The judge commented that there was a substantial question to be investigated, and continued–

> "In determining whether the matter should be maintained in statu quo it is well established that regard must be had to the balance of convenience and the extent to which any damage to the plaintiff can be cured by payment of damages, rather than the granting of an injunction. In *Noormohamed Janmohamed v. Kassamali Virji Madhani* (1953) 20 E.A.C.A. 8 Sir Newnham Worley . . . said–
>
> > 'except in very exceptional cases, an injunction will not be granted if there is no likelihood of irreparable injury and by "irreparable injury" is meant injury which is substantial and could never be adequately remedied or atoned for by damages.' "

The judge also said–

> "The person who will suffer most inconvenience is Mr. Bhadresa and in considering the balance of convenience although he is not a party I think I must take account of his position",

and he concluded as follows–

> "Whatever he (Mr. Bhadresa) decides even if he should successfully sue the defendants his loss and inconvenience is bound to be substantial – greatly in excess of any loss or inconvenience the plaintiff would suffer by the setting aside of the injunction."

These matters all form the substance of the grounds of appeal argued by Mr. D. N. Khanna, leading counsel for the appellant. His first submission was that the judge attached undue and unwarranted importance to the position of Mr. Bhadresa, who was a stranger to the suit, and whose possible loss and inconvenience were immaterial and irrelevant to the dispute between the parties. But I think that the judge was considering Mr. Bhadresa's position in relation to the respondents' possible liability to compensate him in the event of the appellant

succeeding in his suit. The ruling appealed from contains two references to this possibility, and I am satisfied that in considering Mr. Bhadresa's loss and inconvenience should the status quo be preserved, the judge was relating this question to the loss and inconvenience which would be suffered by the respondents if they should have to compensate Mr. Bhadresa in the event of the suit succeeding. Mr. Khanna went further, and submitted that in the case of a negative covenant the status quo should be preserved as a matter of right upon the appellant establishing, as he did, a *prima facie* case of a breach of such a covenant. This is, with respect, pitching the case in too high a key. A judge must where there is a plain and uncontested breach of a clear covenant, compel the defendant by interlocutory injunction to perform his obligation without regard to the balance of convenience, see *Hampstead and Suburban Properties v. Diomedous* [1969] 1 Ch. 248. The instant case is very different. The existence of the covenant is strongly contested and is, in the judge's words, the "substantial question to be investigated". This being so, the judge retained a discretion in deciding whether or not the status quo should be maintained, and in exercising that discretion, he was entitled to have regard to the balance of convenience and to the extent to which any damage to the appellant could be cured by payment of damages rather than by the granting of an injunction, see *Donmar Productions v. Bart*, [1967] 1 W.L.R. 740, *Harman Pictures v. Osborne*, [1967] 2 All E.R. 324, although the maintenance of the status quo, where a strong *prima facie* is shown to exist, should be a governing consideration. As is stated in Halsbury, 3rd Ed., Vol. 21, paragraph 766 at p. 366–

> "Where any doubt exists as to the plaintiff's right, or if his right is not disputed but its violation is denied, the court, in determining whether an interlocutory injunction should be granted, takes into consideration the balance of convenience to the parties. . . . The burden of proof that the inconvenience which the plaintiff will suffer by the refusal of the injunction is greater than that which the defendant will suffer, if it is granted, lies on the plaintiff."

It is with these principles in mind that the judge, quite rightly in my opinion, approached the matter.

On the basis that the judge has a discretion, Mr. Khanna submitted that he misdirected himself in several respects so as to vitiate his exercise of discretion. Firstly, Mr. Khanna objected to the judge's finding that the appellant must have been aware of Mr. Bhadresa's occupation of the ground floor shop since 1 August 1970, a finding which Mr. Khanna described as guesswork. Far from being guesswork, the finding is in my view supported by paragraph 4 of the appellant's affidavit of 23 October 1970–

> "The defendants' said brother has however returned from Australia, and is preparing to re-start his practice as a dental surgeon in Kenya. The defendants with full knowledge of this, consented to make available a shop premises on the ground floor of the said suit plot for the purpose, and the said V. L. Bhadresa has openly threatened and made known to me his intention to commence to carry on therein a dental practice in competition with me. . . ."

The affidavit is silent as to when the appellant became aware of these matters, and this silence fully supports the judge's finding that the appellant must have been aware of Mr. Bhadresa's occupation of the shop since 1 August 1970. Had the appellant only become aware of these matters shortly before the institution of the suit on 26 October 1970 he would surely have said so.

Two other misdirections complained of by Mr. Khanna relate to passages in the ruling which indicate that the judge had regard to the balance of convenience, and that damages would be an adequate remedy. I have already expressed my

view that in the absence of a plain and uncontested breach of a clear covenant, whether positive or negative, it is open to a judge to have regard to the balance of convenience, and I see no reason to differ from the judge's opinion that in a case of this nature the appellant's loss before a decision in the suit is unlikely to be substantial and could be atoned for by the payment of damages.

The final misdirection, in Mr. Khanna's submission, is that the interim injunction was set aside on the sole ground of the inconvenience of a third-party. This Mr. Khanna characterized as a fundamental mistake which cannot be supported if principles of justice are to be applied, and a travesty of justice. I have already stated my opinion that the judge was entitled to consider Mr. Bhadresa's loss and convenience in relation to the respondents' possible legal liability to him in the event of the suit succeeding. In any event this was not the sole ground on which the judge set aside the interim injunction. He had already made it clear that he would never have granted that injunction had the appellant made a full and fair disclosure of the material facts at the time.

For these reasons I consider that this appeal fails, and I would dismiss it with costs, and certify for two counsel. As Lutta and Mustafa, JJ.A. agree, it is so ordered.

Lutta JA: I have had the advantage of reading in draft the judgment of Law, AG. V.-P., with which I am in complete agreement, and there is little that I need add.

It seems to me that the judge set aside the interim injunction on the following bases: first, that the defendants denied the existence of any covenant such as alleged by the plaintiff and intended to adduce evidence to support their denial and it was therefore impossible to assess the plaintiff's chances of success in the substantive action. Secondly, that there was a substantial question to be investigated and in determining whether the matter should be maintained in statu quo, regard must be had to the balance of convenience in relation to the defendants' liability to Mr. Bhadresa if he sued them successfully and the extent to which damages to the plaintiff could be cured by payment of damages rather than by granting an injunction. Thirdly, that in considering the balance of convenience Mr. Bhadresa's position must be taken into account and that his probable loss and inconvenience greatly exceeded any loss or inconvenience the plaintiff would suffer by setting aside the injunction.

As I understand it the object of an interim injunction is to keep matters or things in statu quo, in order that, if at the hearing of the substantive action the plaintiff obtains a judgment in his favour, the defendant or the respondent, will have been prevented, in the meantime, from dealing with the property or the subject matter in such a manner as to make that judgment ineffectual – see *Halsbury's Laws of England*, 3rd Ed., Vol. 21, p. 343, paragraph 716. A plaintiff is entitled to an interim injunction if he satisfies the court in, *inter alia*, the following respects: first, that there is a substantial or a serious question to be investigated and secondly, that on the facts before the court it is probable that the plaintiff will succeed in the substantive action. Both the plaintiff and the defendants accept that there was an oral agreement under which the defendants let three rooms on the premises in question to the plaintiff at a monthly rent of Shs. 650/- inclusive of water charges. However, the defendants deny that a covenant as alleged by the plaintiff was a term of the oral agreement. There is thus an issue to be investigated by the court. It seems to me that the plaintiff's right to the relief claimed is far from settled or clear. The principles on which the relief may be granted by the court have been stated in *Halsbury's Laws of England*, 3rd Ed., Vol. 21, page 346, para. 763, as follows–

> "In cases of interlocutory injunction in aid of the plaintiff's right all the court usually has to consider is whether the case is so clear and free from

> objection on equitable grounds that it ought to interfere to preserve property without waiting for the right to be finally established. . . . but in no case does the court grant an interlocutory injunction as of course."

Then on the next page at para. 765 it is stated:

> "Where the plaintiff is asserting a right, he should show a strong *prima facie* case, at least, in support of the right which he asserts. . . ."

In the next paragraph on p. 366, it is stated:

> "Where any doubt exists as to the plaintiff's right, or if his right is not disputed, but its violation is denied, the court, in determining whether an interlocutory injunction should be granted, takes into consideration the balance of convenience to the parties and the nature of the injury which the defendant, on the one hand, would suffer if the injunction was granted and he should ultimately turn out to be right, and that which the plaintiff, on the other hand, might sustain if the injunction was refused and he should ultimately turn out to be right. The burden of proof that the inconvenience which the plaintiff will suffer by the refusal of the injunction is greater than that which the defendant will suffer, if it is granted, lies on the plaintiff."

The judge said,

> "In determining whether the matter should be maintained in statu quo it is well established that regard must be had to the balance of convenience and the extent to which any damage to the plaintiff can be cured by payment of damages, rather than by granting an injunction."

He went on to say that the person who will suffer most inconvenience is Mr. Bhadresa and that his loss would greatly exceed "any loss or inconvenience the plaintiff would suffer by setting aside the injunction." In my view the judge rightly took into consideration the balance of convenience in this matter in relation to the defendants' liability in damages to Mr. Bhadresa if the latter brought a successful suit against them (the defendants). The judge was entitled to set aside the injunction if satisfied that the status quo could be preserved without it (the injunction). No argument during the hearing of this appeal has persuaded me that the judge erred on any principle of law in setting aside the injunction granted *ex parte*. He found that Mr. Bhadresa had already been in occupation for three months and that a full and fair disclosure was not made to the court. He expressed the view that had such a disclosure been made he would not have granted the injunction. Considering all the circumstances of this case I would not interfere with the exercise of discretion by the judge in setting aside the injunction. In the result I would dismiss this appeal with costs and certify for two advocates.

Mustafa JA: I agree with the judgment of Law, Ag. V.-P., which I have had the opportunity of reading in draft.

Appeal dismissed.

For the appellant:
DN Khanna and *JB Patel* (instructed by *Makhecha and Co*, Nairobi)

For the respondents:
C Salter, QC, SC Gautama and *BJ Sarvaiya*

Patel v Yafesi and others
[1972] 1 EA 28 (CAK)

Division: Court of Appeal at Kampala

Date of judgment: 19 October 1971

Case Number:	30/1971 (166/71)
Before:	Sir William Duffus P, Law Ag V-P and Lutta JA
Sourced by:	LawAfrica

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[1] Negligence – Collision – Vehicle left unlighted on road – Evidence of negligence.

[2] Negligence – Contributory negligence – Collision – Greater blame on vehicle colliding with unlighted vehicle on straight road.

[3] Master and Servant – Vicarious liability – Acts of servant in course of employment – Test of liability where act unauthorised.

Editor's Summary

The appellant's lorry had broken down and was protruding slightly into the road. The trial judge found that it was unlighted. A station wagon collided with the lorry, the driver having failed to see it until he was a few yards away from it. The trial judge found the driver of the station wagon 60 per cent to blame and the lorry driver 40 per cent to blame. The judge also found that three passengers in the station wagon were trespassers as the driver had instructions not to carry more than a certain number of employees and he had exceeded the limit. On appeal:

Held –

(i) the lorry's lights had not been switched on;

(ii) failure at night to illuminate a vehicle partly obstructing a highway is negligence;

(iii) the greater blame attaches to a driver who runs into such an unlighted vehicle on a straight road;

(iv) in carrying more passengers than he was entitled to the driver was acting within the scope of his employment and of his ostensible authority and the employees were not trespassers.

Appeal allowed in part.

Cases referred to in judgment:

(1) *Canadian Pacific Railways v. Lockhart*, [1942] 2 All E.R. 464.

(2) *Young v. Edward Box & Co. Ltd*., [1951] 1 T.L.R. 789.

(3) *Conway v. George Wimpey & Co*., [1951] 1 All E.R. 363.

(4) *L.C.C. v. Cattermoles Ltd*., [1953] 2 All E.R. 582.

(5) *Muwonge v. Attorney-General of Uganda*, [1967] E.A. 17.

(6) *Khambi v. Mahithi*, [1969] E.A. 70.

Judgment

The following considered judgments were read: **Law Ag V-P:** This appeal arises out of a traffic accident which occurred on the Bombo to Kampala Road, on 27 May 1967, at about 8 p.m. Three vehicles were involved, an Austin lorry belonging to the appellant ("the lorry"), a Peugeot station wagon belonging to the second respondent ("the Peugeot") and a Fiat motor car belonging to the third respondent ("the Fiat"). The third respondent was completely exonerated from blame at the trial, and

this finding is not challenged on this appeal. The first and fourth respondents are persons suing in respect of the deaths of two persons who died in the accident. They were not represented at the hearing of the appeal when we heard arguments

from Mr. Deobhakta for the appellant and Mr. Hunt for the second respondent who also cross-appealed.

The facts can be briefly stated. The lorry had broken down and was parked on the left verge facing Kampala, but at a slight angle so that the right rear end of the lorry protruded onto the tarmac surface of the road, which was 24 feet wide at this point, to the extent of two feet. The road towards Kampala was uphill, but straight for about half a mile behind the lorry and for several hundred yards in front of it. The Peugeot was being driven towards Kampala by a driver employed by the second respondent. It contained seven other people in addition to the driver, six being fellow-employees of the driver's and the seventh a woman said to be the wife of one of the employees. The Peugeot was being driven at a speed described by the judge as "tremendous", and estimated by an eye-witness, Mr. Kabwama, as being between 70 and 80 miles an hour. The Fiat was being driven in the opposite direction, towards Bombo, on its proper side of the road at a reasonable speed. When the Fiat was approximately opposite the parked lorry there was ample space for the Peugeot to pass safely as it overtook the lorry. The lorry was fitted with chevrons and reflectors, but whether its parking lights had been switched on or not is one of the matters in issue in this appeal. The driver of the lorry had gone to Kampala for help, at about 6.30 p.m., leaving the turnboy in charge with instructions to switch on the parking lights at 7 p.m. when it got dark. Instead of passing through the available space, the Peugeot collided with the lorry and rebounded onto the Fiat. The impact was extremely violent. The Peugeot was virtually demolished. Three passengers in it were killed outright and two died later. The driver, who survived, admitted in evidence that he did not see the lorry until he was 5 or 6 yards from it. He also admitted that he was not comfortable driving, as there were two people in the single seat next to him.

On the issue of negligence, the appellant's case is that he should have been exempted from liability, alternatively that the proportions found by the learned judge of 60 per cent liability against the second respondent and 40 per cent against the appellant were manifestly wrong and should be altered in favour of the appellant. The second respondent's case is that he should not have been found liable, alternatively that his liability should have been fixed at a lesser degree than that of the appellant.

Mr. Deobhakta, for the appellant, submitted that the lorry could not have been parked more carefully, having regard to the fact that it had broken down and the pressure-assisted brakes were consequently not functioning, so that any attempt to allow the lorry to roll further down the hill under its own momentum would have been fraught with danger. He also challenged the judge's finding that the parking lights on the lorry were not on at the time of the accident. Mr. Hunt, for the second respondent, did not seriously contend that the failure of the driver of the Peugeot to see the lorry until he was only a few yards away was not evidence of negligence, but he submitted that the leaving of the lorry unlit, and partly on the roadway, constituted gross negligence which justified a substantial alteration of the ratios of negligence in favour of the second respondent.

In deciding this point, much turns on whether the judge's finding as to the parking lights not being switched on can be supported. The evidence on this point was largely negative; the driver of the Peugeot did not notice any rear lights and the driver of the Fiat did not notice any lights in front of the parked lorry. The turn-boy, who claimed to have switched the parking lights on at 7 p.m. admitted in evidence that when the driver left at 6.30 p.m. he had gone to sleep on the bags which formed the lorry's load, although he subsequently retracted this statement and said he was merely lying on the bags. In these circumstances I do not see, on a balance of probabilities, how the judge's finding

that the parking lights on the lorry had not been switched on can be impugned. This finding supports the judge's holding of negligence against the lorry driver. Failure to illuminate, at night, a lorry which is partly obstructing the highway undoubtedly constitutes negligence. At the same time I have no doubt that the judge's finding that the driver of the Peugeot was more to blame than the lorry driver was correct. The former was grossly negligent in failing to see the lorry on a straight road in time to avoid it, even if its parking lights were not on; he was travelling much too fast, especially having regard to the fact that his freedom of action as a driver was to some extent impeded by the presence of too many passengers in the vehicle. Personally I think, with respect, that the judge's apportionment of liability at 60 per cent-40 per cent was unduly favourable to the second respondent, but it is settled law in East Africa that a trial judge's apportionment will not be interfered with on appeal save in exceptional cases, as where there is some error of principle or the apportionment is manifestly erroneous, see *Khambi v. Mahithi*, [1969] E.A. 70. There has been no error of principle in this case, nor can it in my view be said that the apportionment was so manifestly erroneous as to require interference by this court. I consider that both the appeal and cross-appeal fail on this issue.

The other issue for determination in this appeal is whether the judge was right in holding that three passengers in the Peugeot were trespassers. It was part of the driver's duties to carry employees of the second respondent, but he was not supposed to carry more than five. One of these passengers was a woman, said to be the wife of an employee. The driver's authority did not extend to carrying persons other than employees, and Mr. Deobhakta was unable to challenge the judge's finding that, in relation to the second respondent, the woman was a trespasser. The position of the other two passengers is however quite different. They had been provided with money by their employer, the second respondent, for their bus fares to Kampala. They had missed the bus, and would have had to wait an hour for the next bus. Instead they stopped the Peugeot and were allowed to get in, shortly before the accident. The judge's finding in relation to these two men was as follows–

> "Having regard to all the evidence I am of the opinion that Harbans Singh (that is to say, the second respondent) had discharged his duty to these two men when he dropped them at Bombo, and had given them the wherewithal to return to Kampala, which arrangement they seem to have accepted. I think therefore that they also were unauthorised passengers in that Peugeot for that particular part of the journey. They were not invitees."

With respect, the test applied by the judge was not the proper test. The test is not whether the second respondent had discharged his duties by providing the two men with their bus fares, it is whether in allowing them into the Peugeot as passengers the driver was acting within or outside the scope of his employment. Mr. Hunt has submitted that in carrying more passengers than he was allowed to carry, the driver was acting outside the scope of his employment and his employer should not be held responsible. Mr. Deobhakta submitted that the driver was performing his duty, but in an unauthorised manner. This was an improper mode of carrying out his duties, but it did not exempt the employer from liability. Mr. Deobhakta relied on *L.C.C. v. Cattermoles Ltd.*, [1953] 2 All E.R. 582, in which case an employee, who had no driving licence, was given explicit instructions to push vehicles from place to place and not to drive them. In breach of these instructions, he drove a vehicle and was involved in a collision with another. It was held that while this was a wrongful and unauthorised way of performing an act which he was employed to perform, his employers were liable. In the course of his judgment, Sir Raymond Evershed, M.-R., cited

with approval the following passage from *Canadian Pacific Railway v. Lockhart* [1942] 2 All E.R. 464 at p. 467:

> ". . . . a master, as opposed to the employer of an independent contractor, is liable even for acts which he has not authorised provided they are so connected with acts which he has authorised that they may rightly be regarded as modes – although improper modes – of doing them. In other words, a master is responsible not only for what he authorises a servant to do, but also for the way in which he does it. . . ."

In *Young v. Edward Box & Co. Ltd*., [1951] 1 T.L.R. 789, a lorry-driver, who was not authorised to carry fellow-employees, gave a fellow-employee a lift. It was held that the driver was acting in the course of his employment, and within his ostensible authority, in giving the lift, and that was sufficient to make the employers liable.

In *Conway v. George Wimpey & Co*., [1951] 1 All E.R. 363, where a driver carried passengers who were not fellow-employees, in defiance of strict orders not to do so, it was held that the employers were not liable. In the course of his judgment, Asquith, L.J. said – "I should hold that taking men other than the defendants' employees on the vehicle was not merely a wrongful mode of performing an act of the class which the driver . . . was employed to perform, but was the performance of an act of a class which he was not employed to perform at all". In other words, had the men carried been fellow-employees, the act would have been within the scope of the driver's employment, but one performed in a wrongful way, and the employer would have been liable.

In my opinion, on a consideration of these and other authorities, I think with respect that the judge erred in holding that the two fellow-employees in this case were trespassers. In giving them a lift, the driver of the Peugeot was acting in the course of his employment and within his ostensible authority. He did wrong in exceeding the maximum number of passengers he was allowed to carry, but this was only a wrongful mode of performing the work he was employed to do, and cannot absolve the second respondent from liability. I would allow the appeal to this limited extent and amend the decree appealed from by deleting the reference to David Mpoza and Abdu Sewava Lwasa as being unauthorised passengers in the second respondent's vehicle. I would dismiss the cross-appeal, with costs. As the appeal has in my opinion succeeded to a very limited extent, I would award the appellant one-fifth of his costs against the second respondent.

Sir William Duffus P: I have had the advantage of reading the judgment of the Acting Vice-President.

I agree that this is not a case in which we would interfere with the discretion of the trial judge in his assessment of the apportionment of liability.

I also agree that the correct test on the issue as to whether the three extra passengers in the Peugeot car were trespassers is whether or not the driver of the Peugeot car was acting within the course of his employment. In this respect the law in Uganda was clearly stated by Newbold, P. in his judgment in *Muwonge v. Attorney-General of Uganda*, [1967] E.A. 17 at p. 18 when he said:

> "It is not in dispute that the principles of law governing the liability of the Attorney General in respect of the acts of a member of the police force are precisely the same as those relating to the position of a master's liability for the act of his servant. This being so the legal position is quite clear and has been quite clear for a considerable time. A master is liable for the acts of his servant committed within the course of his employment or, to be more precise in relation to a policeman, within the exercise of his duty. The

> master remains so liable whether the acts of the servant are negligent or deliberate or wanton or criminal. The test is: were the acts done in the course of his employment or, in this case within the exercise of the policeman's duty. The acts may be so done even though they are done contrary to the orders of the master."

In this case the second respondent Harbans Singh, the owner of the Peugeot car, agreed that the driver was authorized to carry his employees, and said that he would have had no objection to his picking up the two workmen David Mpoza and Abdu Sewava Lwasa if this had not been in excess of the amount of passengers the car was licensed to carry, but the fact that the picking up of these two passengers amounted to a criminal offence, would not absolve the master of liability if the act was done within the course of the servant's employment.

I agree that this doctrine would not apply to the third passenger the woman Mary Namakula who was not an employee and would in the circumstances be a trespasser.

I agree therefore with the Acting Vice-President's judgment and with the order he proposes and as Lutta, J.A. also agrees there will be judgment in the terms of his order.

Lutta JA: I also agree.

Appeal allowed in part.

For the appellant:
AG Deobhakta (instructed by *Patel & Shah*, Kampala)

For the second respondent:
Hunt (instructed by *Hunt & Airey*, Kampala)

For the fourth respondent:
Asaria (instructed by *Ponda Asaria & Co*, Kampala)

Okeno v Republic
[1972] 1 EA 32 (CAN)

Division:	Court of Appeal at Nairobi
Date of judgment:	26 November 1971
Case Number:	75/1971 (170/71)
Before:	Sir William Duffus P, Law and Lutta JJA
Sourced by:	LawAfrica
Appeal from:	High Court of Kenya – Mwendwa, C.J. and Trevelyan, J

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[1] Criminal Law – Theft – Goods in transit – Not delivered to buyer or his agent by carrier – Goods still in transit – Penal Code s. 279 (*K.*) *Sale of Goods Act* (*Cap.* 31) *s.* 45 (1) (*K.*).

[2] Criminal Law – Theft – Or false pretences – No transfer of ownership therefore offence theft.

[3] Criminal Law – Theft – Principal – Facts constituting appellant a principal – Penal Code s. 20 (1) (*K.*)

[4] Criminal Practice and Procedure – Judgment – Sarcastic and denigratory remarks about defence – Should not be made.

[5] Evidence – Circumstantial – No specific direction in judgment – Clear that principles considered – Judgment upheld.

[6] Appeal – Fact, findings of – Duty of first appellate court to consider and evaluate evidence and draw its own conclusions.

Editor's Summary

The appellant was convicted of stealing goods in transit. The goods were

removed from a shed in the harbour area, on the same day part of them were sold by the appellant, and the balance was found in a store rented by the appellant. The full facts are set out in the judgment.

On the dismissal of his appeal by the High Court, the appellant appealed to the Court of Appeal.

For him it was argued that there was no evidence that the goods were in transit, that the offence was obtaining by false pretences and not theft, that theft had not been proved due to the possibility that the goods had been stolen by the appellant's servants without his knowledge, that the magistrate had been biased, and had failed to direct himself on the circumstantial nature of the evidence, and that the High Court had failed in its duty as a first appellate court to reconsider the evidence, evaluate it itself and draw its own conclusions.

Held –

(i) the goods had not been delivered to a buyer or his agent by the carrier and were therefore in transit;

(ii) there had been no transfer of ownership by the bailee and the offence was therefore theft;

(iii) even if the appellant had not actually taken the goods, he must have been a principal in the commission of the offence;

(iv) although no specific direction on the circumstantial nature of the evidence was given the magistrate clearly had the correct principles in mind;

(v) sarcastic and denigratory remarks about the defence case are out of place in a judgment. A dispassionate approach does not lay a magistrate open to a charge of bias;

(vi) it is the duty of a first appellate court to reconsider the evidence, evaluate it itself and draw its own conclusions in deciding whether the judgment of the trial court should be upheld;

(vii) notwithstanding the form of the High Court's judgment, it did make an evaluation of the facts;

(viii) the irregularities in the High Court judgment did not occasion a failure of justice.

Appeal dismissed.

Cases referred to in judgment:

(1) *Pandya v. R.*, [1957] E.A. 336.

(2) *Shantilal M. Ruwala v. R.*, [1957] E.A. 570.

(3) *Peters v. Sunday Post*, [1958] E.A. 424.

(4) *Selle v. Associated Motor Boat Co.*, [1968] E.A. 123.

Judgment

The considered judgment of the court prepared by **Law Ag V-P:** was read by **Sir William Duffus P:** The appellant was convicted in the court of the resident magistrate at Mombasa on two counts of stealing goods in transit, contrary to s. 279 (*c*) of the Penal Code. His appeal against conviction was dismissed by the High Court.

The facts leading to the appellant's conviction can be briefly stated. He was the manager of the Inward Freight Department of Dalgety Ltd. in Mombasa. He was also the sole proprietor of a shop in Mombasa known as Kapa Brothers, which he supervised in his spare time. The actual management of the shop was entrusted to an employee who also kept the books of account, and two salesmen were

also employed who solicited orders from and delivered goods to customers. Cash and cheques received in the course of trade were paid into the

account of Kapa Brothers by the appellant who was the only person authorized to operate that account. The appellant and his employees always used the Luo language amongst themselves.

On 11 August 1970, 30 cartons of Gillette razor blades, originating in England and consigned to a firm in Nairobi, were awaiting removal from a shed in Kilindini harbour area. They were in fact removed at about 9 or 10 a.m. in a lorry hired by a person speaking Luo, who was not the appellant, on the strength of a forged removal order, one of a set subsequently discovered to have been stolen in blank from the offices of East African Cargo Handling Services by an unknown person. Two or three hours later the appellant delivered five cartons of these blades to a Mr. Alarakhia of City Grocers in Mombasa. The appellant brought with him a cash-sale receipt made out in his own handwriting in respect of these blades. Mr. Alarakhia subsequently made out a cheque for Shs. 6,750/ –, the agreed price for the blades. This cheque was collected by the appellant on the same evening, and paid into the bank account of Kapa Brothers by him on the following day.

On 18 August 1970, 10 crates containing 120 rolls of dress material originating in Japan and consigned to a Mombasa merchant were removed by unauthorised persons from another shed at Kilindini, this time on the strength of a genuine removal order stolen from a file in the offices of the Kenya Clearing Company. The lorry used for the purpose had been hired by two persons speaking Luo, neither of whom was the appellant. By this time the police were investigating the loss of the razor blades. As a result of information received, police constable Cornelius went on 26 August to a store in Nkrumah Road, Mombasa. The stored was padlocked, but by peeping through a hole the constable was able to see rolls of cloth and cartons. The store was placed under police guard, and inquiries from estate agents revealed that the tenant of this store was the appellant. On 27 August the appellant was interviewed by police officers. He admitted being the tenant of the store but said he had sub-let it to a man called Lenus. The appellant helped the police to look for Lenus but he could not be found at his usual haunts. He has never since been traced. On 28 August the store was forcibly entered, the appellant being present. In the store were found the 10 crates of dress material removed from the docks on 18 August and 18 1/2 cartons of Gillette razor blades, part of the 30 cartons removed from the docks on 11 August. The appellant’s stand was, and has consistently been, that he has no knowledge of how these goods came to be in his store, which he claimed to have sub-let to Lenus. He admitted having delivered five cartons of razor blades to City Grocers, but claimed to have done so in ignorance of the nature of the contents of these cartons, at the request of the manager of his shop, the salesman not being available at the time to undertake delivery. Later on 28 August the appellant was arrested and charged with theft of the goods in transit. At about the same time his three employees disappeared, and have not since been traced notwithstanding extensive inquiries.

Before dealing with the main grounds of appeal argued by Mr. Kapila, we will consider the others. One of these was that there was no evidence that the goods were in transit. It is true that no witness expressly deposed that the goods were still in transit before being removed from the sheds. We have no doubt that they were. In *Halsbury’s Laws of England*, 3rd Ed., Vol. 34, para. 208 at p. 128, the following definition of in course of transit is quoted from the Sale of Goods Act–

> “Goods are deemed to be in course of transit from the time when they are delivered to a carrier by land or water or other bailee for the purpose of transmission to the buyer, until the buyer, or his agent in that behalf, takes delivery of them from such carrier or other bailee.”

Almost identical provisions are to be found in s. 45 (1) of the Sale of Goods Act (Cap. 31) to which we were for some reason not referred by either counsel engaged in this appeal. There can be no question but that the goods, the subject of both charges, were in course of transit when removed from the dock area by unauthorized persons, as they had not been delivered to the buyers or their agents.

Another ground of appeal was that the magistrate erred, even accepting the prosecution case entirely, in holding that the offence of theft had been committed in relation to the goods. Mr. Kapila submitted that the offence proved was one of obtaining goods by false pretences. We do not agree. The essence of obtaining by false pretences is that the person from whom the goods are obtained is induced to transfer not merely the article itself but also the full ownership of the article. Cargo Handling Services were in possession of the goods as bailees and had no title to ownership of the goods which they could pass. Where there has been no transfer of ownership, the crime committed is theft. We consider that the charges, the subject of this appeal, were properly laid.

It was also submitted that the magistrate erred in failing to direct himself properly or at all with regard to possession of the goods on the part of the appellant. We agree with the judges of the High Court that the magistrate did not misdirect himself in this regard. After a careful review of the relevant evidence, he found that the appellant had been in physical possession of 10 cartons of blades, and in constructive possession of the rest of the stolen property found in his store, and that this possession was recent. He disbelieved, as he was entitled to do, the appellant's explanation that he did not know the nature of the goods he had delivered and that he had sub-let the store.

Mr. Kapila also complained that the magistrate failed to direct himself with regard to the law relating to circumstantial evidence. It is true that he gave himself no specific direction on this point, but we agree with the judges below that the tenor of his judgment indicates that the magistrate had the correct principles in mind in approaching this aspect of the case. In particular he said "to the accused alone and to no one else do the circumstances of this case point so persistently, so unmistakeably, . . . so irresistibly". In our view the magistrate clearly appreciated that a conviction based on circumstantial evidence can only be had where the inculpatory facts are incompatible with the innocence of the accused, and incapable of explanation upon any other reasonable hypothesis than that of his guilt. This brings us to the main grounds of appeal, which are directed against the judgments delivered in the lower courts, which Mr. Kapila described as studded with misdirections. In the case of the magistrate's judgment, Mr. Kapila complained that in convicting the appellant the magistrate ignored the reasonable possibility of the goods having been stolen by the appellant's employees, without his knowledge. We do not think so. What would have been the advantage to the employees in the goods being sold through the appellant's business, and the proceeds paid into the appellant's bank account, which he only could operate? Although the appellant may not have been the actual thief, this aspect of the case indicates that he must have been a principal in the commission of the offences, within the meaning of s. 20 (1) of the Penal Code, and is one of the matters which supports the magistrate's view that the circumstances pointed irresistibly to the appellant's guilt. Another is that within three hours of the razor blades being stolen, the appellant was personally delivering some of them to a Mombasa trader. Another complaint was that the magistrate in his judgment poured sceptical scorn on the appellant's case. We agree that the judgment is open to criticism in this respect. Sarcastic and denigratory remarks in relation to the defence case have no place in a judgment. A dispassionate approach, and clear findings of fact, are more indicative of a judicial approach, and do not lay

the magistrate open to a charge of possible bias. Nevertheless we are satisfied that the judgment was adequate so far as the basic essentials of the case are concerned – there are clear findings as to the appellant's recent possession of the goods, and as to the irresistible inferences of guilt to be drawn therefrom, and the evidence in our view supported those findings and inferences. As to the lack of specific directions on the law, a busy magistrate cannot be expected to write a legal treatise; he is presumed to know basic principles and to apply them, unless the contrary can be shown. The main attack was however directed by Mr. Kapila against the judgment of the High Court, which was in his submission not a judgment at all for the purposes of a first appeal. An appellant on a first appeal is entitled to expect the evidence as a whole to be submitted to a fresh and exhaustive examination (*Pandya v. R.*, [1957] E.A. 336) and to the appellate court's own decision on the evidence. The first appellate court must itself weigh conflicting evidence and draw its own conclusions. (*Shantilal M. Ruwala v. R.*, [1957] E.A. 570). It is not the function of a first appellate court merely to scrutinize the evidence to see if there was some evidence to support the lower court's findings and conclusions; it must make its own findings and draw its own conclusions. Only then can it decide whether the magistrate's findings should be supported. In doing so, it should make allowance for the fact that the trial court has had the advantage of hearing and seeing the witnesses, see *Peters v. Sunday Post*, [1958] E.A. 424. As examples of the wrong approach adopted by the High Court, Mr. Kapila referred to a large number of extracts from its judgment. It will be sufficient to cite only a few–

> "We cannot say that he (the magistrate) was wrong."
>
> "We are unable to say that there was no material on the record on which the magistrate could properly hold . . ."
>
> "We cannot say that there is no substance in this comment."
>
> "It cannot be said that there was no material upon the record enabling him so to find."
>
> "It cannot be said that the magistrate was not right in what he did."

Mr. Kapila submitted that it is difficult to find any positive indication that the High Court at any time made its own evaluation of the evidence, or came to its own conclusions. Whenever the magistrate's findings are supported, it is in the form of a negative, or double negative. Mr. Kapila submitted that the judgment of the High Court was so defective in this respect as to amount to no judgment at all, and so as to warrant the appeal being allowed for that reason only.

We consider that there is substance in much of Mr. Kapila's argument in this respect. The High Court on the face of it appears to have approached the matter on the basis of whether the magistrate's findings could be supported by the evidence, instead of whether they should be supported. It is appropriate on a second appeal only to decide whether a judgment can be supported on the facts as found by the trial and first appellate courts, as this is purely a question of law. The first appellate court must reconsider the evidence, evaluate it itself and draw its own conclusions, in deciding whether the judgment of the trial court should be upheld, as well of course as deal with any questions of law raised on the appeal, see *Selle v. Associated Motor Boat Co.*, [1968] E.A. 123.

Notwithstanding the form taken by the High Court's judgment, we are nevertheless satisfied that the judges did make their own evaluation of the facts, although this is not made to appear clearly. On the basic aspects of the case, the judgment positively supports the findings of recent possession, and the inferences of guilt drawn therefrom, made by the magistrate. We are satisfied that the High Court came to an affirmative and definite conclusion that there was evidence upon which the magistrate properly and reasonably found as he did. We are satisfied that the irregularities undoubtedly contained in the first

appellate judgment did not in fact occasion a failure of justice, and that had the judges discharged their duties in accordance with the law as laid down in a long line of authority they must have inevitably come to the same conclusion, and dismissed the appeal against conviction as they did do.

For these reasons we consider that this appeal fails, and order that it be dismissed.

Appeal dismissed.

For the appellant:
AR Kapila and *PE Nowrojee* (instructed by *AR Kapila & Co*, Nairobi)

For the respondent:
RS Sehmi and *Miss PH Rattansi* (State Counsel)

Achieng v Republic
[1972] 1 EA 37 (CAN)

Division:	Court of Appeal at Nairobi
Date of judgment:	26 November 1971
Case Number:	102/1971 (171/71)
Before:	Sir William Duffus P, Law and Lutta JJA
Sourced by:	LawAfrica
Appeal from:	High Court of Kenya – Harris and Simpson, JJ

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[1] Criminal Law – Theft – By conversion or by taking – Election – No necessity for prosecution to make election – Need only present the facts – Penal Code s. 280 (*K.*).

[2] Evidence – System – Theft by conversion – Various advances showing intention to steal – Admissible – Evidence Act (*Cap.* 80), *s.* 15 (*K.*).

Editor's Summary

The appellant was convicted on six counts of stealing and on a further count of stealing a cheque. On first appeal the High Court quashed the conviction for stealing the cheque.

The appellant was the permanent secretary of the Ministry of Tourism and Wild Life, and over a period of eleven months drew a total of Shs. 76,500/- from the imprest account of a Loan Scheme. Only Shs. 5,685/- was properly used for the purpose of the scheme. Two and a half years later, after the appellant's transfer to another Ministry, he paid back Shs. 70,805/-.

The trial court made the following findings of fact which were upheld by the High Court:

(i) After the first drawing of Shs. 16,000/- the appellant continued to draw large amounts of imprest monies although he had no need of them and did not use them for the Loan Scheme;

(ii) the appellant kept the monies in his possession for a long period and no refund to the imprest was made at the end of each financial year as it should have been;

(iii) the various bank accounts of the appellant were nearly always overdrawn and overall the monthly accounts always showed an overdrawn position;

(iv) repayment was delayed until after the accused had been transferred and after the auditors began raising queries. Repayment was made by Shs. 38,500/- in cash, and the balance by four cheques drawn on one of the accused's accounts (which was itself overdrawn). Two of the cheques were not honoured although they were subsequently paid a few days later;

(v) a large proportion of the imprest advances must have been used by the

accused for his own purposes and nearly half of the advances were repaid by monies borrowed by the appellant from his bank.

The conclusions reached by the trial court and the High Court was that the appellant took or converted the sums specified in the first six counts with an intent to use them at the appellant's will.

On further appeal it was argued for the appellant that the prosecution should have elected whether the facts proved constituted stealing by taking or stealing by conversion, that on the basis of a stealing by conversion the court should not have considered evidence of system, that the charge relating to the cheques should not have been tried jointly with the other charges.

Held –

(i) the prosecution's only duty was to present the full facts and it need not make any election between stealing by taking or by conversion. It had been correctly found that the stealing was by conversion;

(ii) evidence of the various advances as part of the appellant's system was admissible and went to show the intention to steal;

(iii) the cheque was by way of an advance and part of it was properly used. Nevertheless it had similar features to the other advances and formed part of the appellant's system for obtaining money. It was therefore properly joined to the other counts.

Appeal dismissed.

No cases referred to in judgment

Judgment

The considered judgment of the court was read by **Sir William Duffus P:** This is a second appeal from the decision of the High Court upholding the decision of the senior resident magistrate, Nairobi, convicting the appellant on six counts of stealing, contrary to s. 280 of the Penal Code. The appellant was also convicted in the magistrate's court of stealing a cheque but the High Court allowed the appeal against conviction on this count. We will, however, in due course have to consider this count as one of the grounds of appeal is that the joinder of this charge with the other six charges was a misjoinder and occasioned a failure of justice.

The facts in the six counts now on appeal are relatively simple. The appellant was at the relevant time the permanent secretary in the Ministry of Tourism and Wild Life and also as such ex officio chairman of the Central Committee of the Fishermen's Loan Scheme. All six charges concern imprests which the appellant drew in cash in connection with this Scheme. The evidence established that he drew–

On 23 September 1967,	Shs.	16,000/-
11 December 1967,	"	5,000/-
1 March 1968,	"	10,000/-
9 May 1968,	"	8,000/-

31 May 1968,	”	15,000/
7 November 1968,	”	22,500/
making a total sum of –	”	76,500/

He drew all these sums in cash. The prosecution’s case is that he only used Shs. 5,685/- for the purposes of the Fund and that he stole the remaining portion of Shs. 70,805/-. He drew these six amounts in 1967 and 1968 and it was only

in April 1970, when he had been transferred to a new Ministry, that he paid back the outstanding balance of Shs. 70,805/-. The trial took some considerable time. The prosecution called 27 witnesses. The appellant elected to make an unsworn statement from the dock and called no witnesses. He also made several statements to the police which were put in evidence. The appellant admitted that he had received these various amounts and his defence was that he received these amounts lawfully and did not steal any of the monies. He alleged that he had lawfully distributed some of the monies and that he kept the remaining balance in his custody until such time as he paid these amounts back in April 1970.

The prosecution's case is that he stole these various amounts and in doing so relied on the definition of stealing in s. 268 of the Penal Code and in particular on subs. 2 (*e*) of this section which provides that the fraudulent intent to steal exists in the case of money where there is an intent to use it at the will of the person who takes or converts it although he may intend afterwards to repay the amount to the owner. There was no direct evidence of theft and in so far as the advances themselves were concerned the evidence shows that these were lawfully made to the appellant in his official capacity and that he signed all the necessary receipts and vouchers and, on the face of it, received these amounts lawfully. The prosecution's case is that the receipt of these various amounts, at any rate after the first advance on 23 September 1967, was all part of the appellant's scheme to defraud the Government of these monies.

The senior resident magistrate who tried the case fully and carefully considered all the evidence and gave a considered judgment and he came to the conclusion that the facts conclusively proved the appellant guilty of thefts on counts 1, 2, 3, 4, 5, 6 and count 8. The judges of the High Court on hearing the appeal also considered all the facts and upheld the trial magistrate's decision on counts 1, 2, 3, 4, 5, and 6 but they allowed the appeal on technical grounds on count 8.

In arriving at their decisions both the senior resident magistrate and the High Court relied on the following facts.

Firstly, the fact that the appellant continued to draw and amass these large amounts of imprest monies; thus, on the 23 September 1967, he drew Shs. 16,000/-. He never used all these monies and he therefore needed no further imprest but instead he continued to draw cash advances. From the large amounts drawn he only satisfactorily accounted for the expenditure of Shs. 5,685/- and he eventually refunded the total amount of Shs. 70,815/- in April 1970, some two and a half years after he drew the first advance. On this question the senior resident magistrate did not accept that the appellant had advanced Shs. 38,500/- to Michael Ojoo. The High Court also went fully into this question and upheld the senior resident magistrate's decision. We do not propose to go into the evidence about this advance except to say that we are satisfied that there was sufficient evidence to justify these findings.

Secondly, the fact that the appellant had not used any of the monies for the purpose for which he had obtained them and that he kept these monies in his possession for these prolonged periods. In this instance, the senior resident magistrate correctly took into account the fact that these imprests should at any rate have been refunded at the end of each financial year.

That during this period the appellant's bank balances as shown by his bank accounts in Nairobi were always in a very precarious position and although he had various bank accounts in Nairobi these were nearly all overdrawn at the relevant times and the overall position always showed that he was overdrawn on his bank accounts. There was evidence of another bank account at Kisii but there was no evidence to show the details of this account. We are of the view that the senior resident magistrate and the High Court were correct in their consideration of these accounts.

Finally, the time and method of repayment. This was only done in April 1970, after the appellant had been transferred and after the auditors had been investigating the account and making inquiries, and then when this repayment was made Shs. 38,500/- was paid in cash but the balance of Shs. 32,315/- was paid by four cheques drawn on one of his accounts. These cheques were drawn on an account already overdrawn and the appellant had to ask the officer to whom he paid the money to keep back the cheques and not lodge them until he informed him. As a result the cheques were not immediately presented for payment and even when they were presented for payment two of the cheques were not honoured although they were paid a few days later. This evidence was most incriminating; in fact, it showed that the appellant had used at least a large proportion of the imprest advances and that he had to pay back nearly half of these advances by monies borrowed from the bank.

On this evidence the senior resident magistrate found–

> ". . . . that there was an irresistible inference that 'The original monies have been applied to some other purpose than that for which they were intended and that they were used at the wish of the accused by whom they were drawn'."

The High Court, after full consideration of the facts, found–

> "The circumstances relied on and fully and properly considered by the learned magistrate are inter-related and we think lead inevitably to the conclusion reached by him that the appellant took or converted the sums specified in the first six counts with an intent to use them at his will."

There is no appeal to this court on the facts and we will now consider the various points of law raised and fully and ably argued by Mr. Kapila, but on the facts as we have briefly summarised them there can be no doubt that the senior resident magistrate and the High Court sitting on first appeal were fully justified in finding the appellant guilty of stealing on counts 1, 2, 3, 4, 5 and 6, and indeed, on the evidence we are of the view that no other decision would have been possible.

We will consider the various questions of law. Mr. Kapila's main submission was that the senior resident magistrate had failed to appreciate properly the nature of the offence. He submitted that stealing as defined by s. 268 of the Penal Code is either by a taking or by a conversion. This is, of course, quite correct as stealing here includes the offences in English law, both of a larceny and of fraudulent conversion. Mr. Kapila quite rightly did not submit that the particulars of the offence in the charge had to disclose under which of these two divisions a particular charge falls as the form of the information for theft is set out in the second schedule to the Criminal Procedure Code and this does not require such particulars to be shown. Mr. Kapila did, however, submit that the prosecution should elect and be bound subsequently by their election whether a case is one of taking or one of conversion. With respect we do not agree. The prosecution must place all the facts before the court and has not got itself to elect and depend on one or other of these divisions. The facts in this case illustrate this point. The evidence here could support a charge of stealing either by taking or by conversion. "Taking" in that the appellant obtained the advances by fraud intending to steal these monies when he got them or, alternatively, he could have obtained the monies lawfully but subsequently stole them by converting the same to his own use. We cannot agree that the prosecution must elect whether it was a taking or a conversion in such a case. It is the prosecution's duty to put the facts before the court and the court must then decide on these facts whether stealing has been established either by a taking or by a conversion. This question was never raised either before the trial court

or the High Court on appeal. If it had been no doubt this point would have been more fully considered in these courts. Usually, the facts would point definitely to one or other of these types of stealing. We agree that it cannot be both. Thus, if there is a taking the stealing is complete and there can be no subsequent conversion, and conversion would lie if the original receipt was lawful and was not in itself a stealing. The senior resident magistrate in this case was most thorough and painstaking in his conduct of the trial and in his judgment and so, with respect, was the High Court. We agree that both courts really found that this was stealing by conversion. Mr. Kapila then submitted that if the stealing was by conversion then the trial court should not properly have considered the evidence as to whether the various thefts were a system and relevant in accordance with s. 15 of the Evidence Act. We cannot, with respect, agree with this submission. The evidence which the trial court accepted showed that the appellant deliberately drew the six various advances and that he did so as part of his fraud in obtaining and using these advances for his own purposes. Each individual act was relevant in proof of the other and shewed that the various acts were intentional. The actual taking was, as we have stated, on the face of it lawfully carried out and the appellant was authorised to receive these advances, but the evidence taken altogether went to prove that each taking was done with the intention of stealing and not really to carry out his duties in the Ministry. The courts could, we think, have found that each taking, at any rate after the drawing of the first advance, was in fact a theft but it was also open to the trial court and to the first appellate court to find that the advances were lawfully drawn but that the monies were then converted to the appellant's own use. We are of the view that this issue was properly and correctly dealt with in both courts.

Mr. Kapila also submitted that the senior resident magistrate had misdirected himself on the onus of proof and in his consideration of the circumstantial evidence. This question was argued before the High Court and we agree with that court when they found–

> "While he did not specifically direct himself in the actual words used by the courts in the authorities referred to and with which we have no doubt the learned magistrate is familiar the whole tenor of the judgment indicates his awareness of the fact that his findings are based on circumstantial evidence. Again and again one finds the phrase 'irresistible inference'. We are satisfied that he would not and indeed did not draw any such inference without first eliminating every other reasonable hypothesis and ensuring that there were 'no other co-existing circumstances which would weaken or destroy the inference'."

Mr. Kapila's other main legal submission was that the addition of count 8 was a misjoinder which had so seriously prejudiced the appellant's trial as to cause a failure of justice. Mr. Kapila agrees that there was no objection taken to this count when added at the trial but he does point out various ways that prejudice could have been caused and have affected the trial, emphasising the fact that this may have been the reason why the appellant elected not to give evidence on oath. Here again this point was never raised either in the trial court or at the appeal in the High Court. The first question is whether this was, in fact, a misjoinder and to decide this we have to consider the charges and the facts proved to support the particular charge in count 8. The evidence in count 8 was for theft of a cheque on 12 May 1967, which was a date prior to the other counts. The facts show that this cheque was received by the appellant by way of an advance of Shs. 21,000/-, Shs. 5,000/- of the amount was admittedly properly received and used by the appellant, but the prosecution alleged that the other Shs. 16,000/- was improperly received and paid into the appellant's bank account and converted to his own use. The other offences starting with count 1,

continued from 23 September 1967, and went on at intervals until 7 November 1968. The advance of money in counts 1, 2, 3, 4, 5 and 6 was for different purposes but the offences, including that in count 8, all had very similar features; they were all advances of Government monies made to the appellant in his capacity as Permanent Secretary in the Ministry of Tourism and Wild Life and all formed part of the system by which the appellant received these advances and used them for his own purpose. We are of the view that the offence in count 8 and in counts 1, 2, 3, 4, 5 and 6 were all part of a series of offences of the same or similar character and therefore that count 8 was properly joined and tried together with the other counts. We therefore find that there was no misjoinder.

After full consideration of all the various grounds of appeal made on the appellant's behalf we are satisfied that the appellant was properly convicted and sentenced.

Appeal dismissed.

For the appellant:
AR Kapila and *PE Nowrojee* (instructed by *AR Kapila & Co*, Nairobi)

For the respondent:
SS Rao (Assistant Deputy Public Prosecutor) and *DN Kibuchi* (State Counsel)

Victory Shipchandlers v Leslie & Anderson Ltd
[1972] 1 EA 42 (HCK)

Division:	High Court of Kenya at Mombasa
Date of judgment:	16 June 1970
Case Number:	145/1969 (173/71)
Before:	Kneller J
Sourced by:	LawAfrica

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[1] Agency – Contract – No words indicating agency in contract – Effect.

[2] Agency – Liability of agent – Fact that agent acting for undisclosed foreign principal relevant.

Editor's Summary

The defendant company asked the plaintiff, a firm of shipchandlers, to supply the needs of a ship to dock in Mombasa. The goods were supplied to the ship and signed for. The invoices were made out with the name of the ship over that of the defendant. The issue was whether the defendant was liable to pay for the goods supplied to the ship.

Held –

(i) the order contained no wording excluding personal liability on the part of the defendants;

(ii) the fact that the order was on behalf of an undisclosed foreign principal is another factor to be taken into account (*Teheran – Europe Col. v. Belton* (*Tractors*) (5) followed);

(iii) the plaintiff had contracted with the defendant.

Judgment for the plaintiff.

Cases referred to in judgment:

(1) *Dramburg v. Pollitzer* (1873) 28 L.T. 470.

(2) *Rusholme v. Read and Co.*, [1955] 1 All E.R. 180.

(3) *Maritime Stores v. Marshall & Co.*, [1963] 1 LI.L. Rep. 602.

(4) *Southern Engineering Ltd. v. Leslie and Anderson,* Msa H.C.C.C. 315 of 1965 (unreported).

(5) *Teheran – Europe Col. v. Belton* (*Tractors*), [1968] 2 All E.R. 886.

Judgment

Kneller J: The plaintiff firm carries on the business of a shipchandler in Mombasa. The defendant is a limited liability company incorporated in Kenya. The plaintiff sues the defendant for breach of contract.

The plaintiff claims from the defendant Shs. 22,218/25 with interest and costs saying that is the price of goods sold by it to the company because those goods were ordered by it and delivered by the plaintiff to the M.V. "Mellina" on 10 August 1968. The defendant company denies the debt, the order and the delivery. The pleadings, it will be seen, were on the lean side.

The evidence for the plaintiff was this. They received a letter dated 1 August 1968, from the defendant which asked them to attend to the stores requirements of the "Mellina" which was due into this port on 4 August. When the ship docked they sent Abdul Rehman Alla on board with the letter as his warrant and he came back with the list of stores ordered by the vessel's captain, chief steward or purser. A delivery order dated 8 August, was prepared by the firm's manager, Abdul Rahib Ahamad Munshi addressed to the captain/chief steward "SS Mellina" and sent with Abdul Rehman Alla and all the goods back to the vessel. Someone on that ship appears to have signed each page of the order under the subscription "Received the above mentioned goods in good order and condition". Next came the invoices, dated 10 August, which priced the goods on each and totalled all together. At the foot of each page two different signatures appear, one under the heading "Captain" and the other under "Chief Steward" but it is the same signature for each.

The Captain added "Prices according to the owner's agreement". The invoices were made out to the Master and Owners of S.S. "Mellina" and, on the next line "M/S Leslie & Anderson (E.A.) Ltd.", the defendant company. There was no payment. A letter of demand from the plaintiff firm's advocates went to the defendant company for Shs. 22,815/25, "being the price of goods sold at your order and instance and delivered on M.V. Mellina". The reply said, in effect, the defendant company acted for the charterers of the vessel and not the owners and one, M.L. Eustace, was the man to look to for payment. The plaintiff firm had arranged with him to supply the "Mellina" and this M.L. Eustace agreed with the plaintiff firm to pay for the supplies on behalf of the owners of the ship. The plaintiff firm denied all that. The plaintiff firm says it never met or spoke to this M.L. Eustace, never agreed to him paying for these goods and came to no agreement with him.

The plaintiff is puzzled by the defendant company's attitude. It has always paid up before on the strength of a letter. It was usual to make out the invoices to the local company and add the Master and Owners of the vessel concerned at the top so that the local company could check their order against or together with the ship's name. The firm did not demand payment from the defendant company as agents of the owners of the vessel but on its "original responsibility".

At one stage, the plaintiff firm heard that one M.L. Eustace was the principal party and so looked to him for payment. This Eustace in a letter dated 19 October from Athens would not accept the prices charged in the invoices. He said they were very high and not according to local market prices as had been agreed. He was going to check the difference, make some adjustments and pay later. Someone from the Eustace Sisal Estate Ltd., at Tanga, on 1 November 1968, told a man called Papadopulos there to pay the sum claimed to the plaintiff firm from monies he held in deposit for the Eustaces. Papadopulos on 19 November, told the plaintiff firm he could not quite hear the Eustace's instructions on the telephone but he believed the demand would be met by payment from abroad. Munshi went to Tanga on 18 February 1969, to see the Eustaces but found the Tanzanian Government had nationalized their interests and Papadopulos had gone to Moshi or Arusha. An advocate in Tanga, called Dave, advised him that his claim was against the master and owners or charterers.

Munshi came back and suggested to the defendant company, that they should ask the charterers to let them pay this bill from sums held by the defendant company for the charterers. Then, if the charterers were not responsible for the food bill, the charterers could deduct from what they owed the owners, all the defendant company paid the plaintiff firm.

The defendant company's answer was that all along they acted for the charterers of this ship and appointed on their behalf the plaintiff firm the chandler for it. That was what was in their first letter. Otete-Oyugi admitted that was all that could be made out of that. There was nothing in it indicating or promising payment by the defendant company of any amount owing in respect of the supplies delivered. A meeting took place at the Mombasa offices of the defendant company prior to or at the same time as the goods were being supplied. It was attended by a Eustace, one Newton, Manager of the local branch of the defendant company, and Otete-Oyugi. It was agreed by all of them that Eustace would pay the plaintiff firm whatever was ordered from the plaintiff firm and supplied to the "Mellina" by the plaintiff firm. The correspondence thereafter confirmed all this. The plaintiff firm asked Eustace, Eustace Sisal Estates Ltd., someone called Papadopulos in Tanga, who was named by a Eustace as having money on deposit for the Eustaces, to pay the plaintiff firm's bill and it was only when these would not pay up that the plaintiff firm rounded on the defendant company and said, in effect, "It's all your fault. Now, you pay up." They now sued the defendant company not as agents but as principals.

The issues, on the pleadings, were–

(*a*) did the defendant company order the goods delivered to the M.V. "Mellina"?; and

(*b*) were the goods delivered to the M.V. "Mellina" by the plaintiff firm?

When the defendant company's shipping manager, Newton, wrote on 1 August 1968, to the defendant company

"*m.v.* '*Mellina*' *due* 4.8.68

Please attend to the stores requirements of the above mentioned vessel.

Yours faithfully,

for: LESLIE & ANDERSON (EAST AFRICA) LIMITED

G.B. Newton
Shipping Manager."

he made an order to the plaintiff which was accepted and performed. It cannot, in my view, be only a letter of appointment of the plaintiff as chandler to the "Mellina". It does not say that. A careful reading of the evidence for the plaintiff will show that it was convenient to have this for the eyes of the vessel's master but it was more than a letter of appointment. It was part of the contract. Nor can it be said correctly that it was held out by Abdul Rehman Alla to the vessel's master as an offer to treat by the plaintiff which was accepted by the master and performed by him when he bought the groceries. *Maritime Stores v. Marshall & Co.*, [1963] 1 LI. L.R. 602, at p. 605. The chandlers had never heard of the "Mellina" or its owners or charterers. They knew only the defendant. They had dealt with them before. The defendant had written such letters before and when sent the invoices paid up without demur.

The defendant was an agent of the charterers of the ship called Bagazi de Marina Carrara Massa who are based in Italy. The owners are probably the Meldarf Shipping Company in Athens. It is not certain who should pay for the groceries for a ship's crew and passengers as between the owner, charterer or crew. The agents principals were, however, foreign.

A reasonable chandler in Mombasa would not supply such a vessel with goods until he knew the funds were here if he had to look to the foreign principal

and not the local agent. Shipping companies here accept agencies when they are satisfied the owners or charterers will pay the chandler's bills. The defendant has done this before. This letter of theirs to the defendant was no different from all the others before this dispute. The Greeks let the agents down and so the agents wish to avoid liability. If those funds were in Kenya I presume the defendant would have paid the plaintiff's account.

Now in that order the defendant has not signed as agent for anyone or for and on behalf or used any phrase which would exclude their personal liability. The plaintiff admits it knew the defendant was an agent for a principal but an undisclosed one when the contract was made and performed. This had happened before with no repudiation by the defendant.

An undisclosed foreign principal too is another element, but only an element, to be thrown into the scales of this construction of this contract and that is all: per Lord Denning, M.R., in *Teheran – Europe Col. v. Belton* (*Tractors*), [1968] 2 All E.R. 886, at p. 889.

The manager of the defendant company, Newton, has sworn that on or about 9 or 10 August 1968, he arranged a meeting between Otete-Oyugi and one of the Eustaces, which he attended, and he heard this Eustace say he would pay this bill to Otete-Oyugi direct. This is emphatically denied by Otete-Oyugi. Eustace was not called and Munshi, Otete-Oyugi's manager, said he had no knowledge of the meeting. Otete-Oyugi would have been unwise and incautious to have agreed to this because this Eustace would have been soon after in either Tanga in Tanzania, Italy or Greece. The defendants would be next door in Mombasa. Do the documents help? There is no clear reference in the pleadings, correspondence and cablegrams exhibited in this case to the meeting or agreement: not even one from Otete-Oyugi to Newton on 11 August 1968. One cablegram, sent at an unrecorded time on 10 August 1968, by Newton to his principal cancels a request for some more money for these provisions. One of the Eustaces in a letter to the plaintiff in October 1968, says the prices were agreed to be the local market ones. These are equivocal. The cablegram is between the defendant and its principal and the letter between the plaintiff and the principal but neither refers to this meeting or agreement. The agreement about the prices may be a reference to the remarks of the vessel's chief steward " – subject to owner's agreed prices" on the orders. On the other hand, the invoices are made out after this alleged meeting by the plaintiff to the Master and Vessel and the defendant but not to Eustace or the owners or charterers. Newton never sent them back to the plaintiff disclaiming responsibility or asking for any amendment. He sent them on to Eustace with a letter, dated 22 August 1968. He does not refer in that letter to this meeting, or agreement with Otete-Oyugi. He sends them in reference to a telephone conversation he had that day with Eustace and of course we do not know what they said to one another in it. Newton kept these bills eleven days. I cannot even fall back on the demeanour of the witnesses involved to say where the truth lay. Each spoke calmly and clearly on oath. "There was this meeting and agreement" and "no – there was neither" is all that the court has to decide this point on. Consequently, I shall have to find, as I do, that the defendant company which avers, it has failed to prove, on the balance of probabilities, that this meeting and or agreement occurred.

The defendant has one more ball of shot in its locker. It points to such letters as that of 16 September 1968, and 18 December 1968 and others and claims they indicate the plaintiff firm made a definite election to seek payment from the Tanga Eustaces or their Sisal Company there, or their agent Papadopulos or the Royal Greek Consulate or the Athens Eustace and all along they regard the defendant company as an agent to whom they turn for help in their quest for their dues. The alleged meeting of 10 August 1968 apart,

there is nothing in the pleadings or evidence or correspondence to show that the plaintiff had heard of Eustace before they read a copy of the defendant's 22 August 1968, letter, to him sending on those invoices. After that, it is true, the plaintiff firm rattles about in its correspondence and even sends Munshi to Tanga to try and get the Eustaces or their Sisal Company or Papadopulos to pay up. Throughout all the correspondence, however, the plaintiff firm says to the defendant company

> " – it is as a result of your order we supplied these goods. Help us recover payment from these people. We still look to you for payment."

This was no election. The plaintiff firm never sued anyone but the defendant company. Election was not pleaded by the defendant company. The parties were in various ways by their letters or cablegrams trying to mitigate the damages or loss as they should by trying to make the Greeks pay up for what they were supplied with on the "Mellina", cf. *Rusholme v. Read and Co.*, [1955] 1 All E.R. 180, at p. 181.

I accept that this, together with the desire to avoid litigation and the break up of a satisfactory relationship with the defendant, delayed the plaintiff's letter of demand by eleven months. The invoices and the letter of 11 August 1968, were in good time and enough notice for the defendant company.

These letters of the plaintiff firm to the Greeks subsequent to the contract do not, in any event, necessarily mean that it considered them solely liable in that the agreement with the defendant company had been superseded. *Dramburg v. Pollitzer*, (1873) 28 L.T. 470, at p. 472.

On the first issue, then, I held that the defendant company placed that order with the plaintiff firm.

Newton answered the second issue: he admitted the goods so ordered were delivered by the plaintiff firm to the vessel.

I am satisfied that the plaintiff firm would never have accepted that order had it not come from the defendant firm. They relied on that fact in this transaction. They knew the defendant company was an agent for someone and M.V. "Mellina" did not belong to one of the usual shipping companies that berth in Mombasa. This did not prevent the defendant company incurring personal liability. Whether it did or not is determined from the nature and terms of the contract. We have the documents of that contract but they are ambiguous. This means some weight may be given to the views of the parties as to what liabilities they were incurring in them. This was the reason why parol evidence about those documents was admitted.

The defendants were liable for the purchase of these goods. Had it been otherwise they would have said so. They have significantly altered their orders since this dispute. They add this now–

> ". . . . The payment of your stores bill by us will be subject to the availability of the respective funds from the vessels owners. . . ."

There was no word to show they were only agents. Cf. *Southern Engineering Company Ltd. v. Leslie and Anderson Ltd.*, Msa H.C.C.C. 315 of 1965. I find nothing that counteracts the presumption that the defendants incurred personal liability.

Accordingly, there will be judgment for the plaintiff firm against the defendant company as prayed.

Judgment for the plaintiff.

For the plaintiff:
IT Inamdar and *AYA Jiwaji*

For the defendant:

M Satchu

Merali v Republic
[1972] 1 EA 47 (HCK)

Division: High Court of Kenya at Mombasa

Date of judgment: 26 March 1971

Case Number: 2/1971 (1/72)

Before: Harris, J

Sourced by: LawAfrica

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[1] Appeal – Bail pending appeal – Appeal against recorded plea of guilty – Bail grantable.

Editor's Summary

The applicant, who had been convicted of an Exchange Control offence on his plea of guilty, filed an appeal claiming *inter alia* that the plea was equivocal. He then applied for bail pending appeal.

Held –

(i) there is no difference in principle between an appellant challenging facts or law and one challenging a recorded plea of guilty;

(ii) bail would be allowed where the requisite tests were met.

Application allowed.

Cases referred to in judgment:

(1) *R. v. Kanji* (1946) 22 K.L.R. 17.

(2) *Ex p. Speculand*, [1946] K.B. 48.

(3) *R. v. Heyes* (1951) 1 K.B. 29.

(4) *Lamba v. R.*, [1958] E.A. 337.

(5) *Masrani v. R.*, [1960] E.A. 320.

(6) *Hasham v. Republic*, Cr. A. 582 of 1967 (unreported).

(7) *Jetha v. R.*, Cr. A. 938 of 1968 (unreported).

(8) *Chimanbhai v. Republic* (*No.* 2), [1971] E.A. 343.

Judgment

Harris J: The applicant, who was convicted in the Resident Magistrate's Court on his own plea of an offence under the Exchange Control Act and was sentenced to three years' imprisonment, has filed a petition of appeal against both conviction and sentence and applies now for bail pending the hearing of the appeal. The application is opposed by counsel for the Republic and I have had the advantage of full and careful arguments on each side.

Shortly the position appears to be this. On 19 December 1970 the applicant, who is an employee of fourteen years standing in a large commercial bank in Mombasa, while working in the foreign exchange section was found to have concealed on his person a quantity of foreign currency. He was thereupon arrested and charged with having contravened the provisions of s. 4 (1) and paragraph 1 (1) of Part II of the fifth schedule of the Act.

The particulars of the offence as stated in the charge sheet are that the applicant on 19 December 1970, in Kenya, being a person resident in Kenya and entitled to sell, or to procure the sale of, certain specified foreign currency, namely, U.S. $260, and not being an authorised dealer, failed to offer or cause to be offered the said currency for sale to an authorised dealer without the Minister consenting to his retention and use of the said currency or permitting his disposal of the said currency to another person.

The trial took place on 11 March 1971 when the applicant was represented by counsel. I was told from the Bar that this counsel had been briefed at the eleventh hour and that instructions given were that a plea of “not guilty” would

be made, but that the applicant, without consulting his counsel, changed his mind while in the dock and pleaded "guilty" to the offence as charged.

The record of the proceedings show that prior to making his plea the substance of the charge and every element of it had been stated by the magistrate to the applicant who, on being asked whether he admitted or denied the truth of every element of the charge, replied with the words "I plead guilty". His counsel then supplemented this by saying that the applicant was pleading "guilty" and, after the facts had been outlined by the prosecution, counsel for the applicant conceded that the facts constituting the offence were admitted whereupon the magistrate convicted the accused as charged.

The petition of appeal sets out several grounds of appeal including submissions that the charge was bad for duplicity, that the plea of "guilty" was not unequivocal and should not have been accepted, that the facts as stated in the magistrate's court by the prosecution negatived the offence charged, and that the sentence was harsh and excessive.

The researches of counsel have failed to disclose a precedent for a successful application for bail pending the hearing of an appeal from a conviction based on a plea of guilty, and it is necessary to consider the matter by resort to first principles.

Although it would appear from the decision in *Ex-p. Speculand*, [1946] K.B. 48, and other cases that the court has no inherent jurisdiction to grant bail to a convicted person, ss. 356 and 357 of the Criminal Procedure Code expressly enable it to do so pending either the entering or the hearing of an appeal. Furthermore, the general approach by this court to applications for bail pending appeal would appear from recent decisions, notably those in *R. v. Kanji*, (1946) K.L.R. (Part I) 17, *Lamba v. R.*, [1958] E.A. 337, *Masrani v. R.*, [1960] E.A. 320, *Hasham v. Republic*, Cr. A. 582 of 1967 (unreported), *Jetha v. Republic*, Cr. A. 938 of 1968 (unreported), and *Chimanbhai v. Republic* (*No*. 2), [1971] E.A. 343, to be somewhat less stringent than that adopted in the courts of Tanzania and Uganda.

If this were a case where the applicant, having pleaded not guilty to the charge brought against him, had been convicted at his trial and were now appealing against that conviction, I would have little difficulty, provided that the tests suggested in *Patel's* case (*supra*) were complied with, in entertaining an application for bail. The first question then is as to whether a difference in principle in relation to bail can be shewn to exist between the case of an appeal from a conviction following a plea of not guilty and a trial, and an appeal from a conviction following a plea of guilty which is sought to be challenged as not having been unequivocal.

Although by s. 348 (1) of the Criminal Procedure Code no appeal shall be allowed in the case of any person who has pleaded guilty and has been convicted on such a plea by a subordinate court, except as to the extent or legality of the sentence, this limitation applies only where the plea itself is freely given and is unequivocal. I can see no fundamental or essential difference in principle between the case of an appellant who is seeking to have set aside, on the one hand, a conviction founded upon a finding of fact or of law, the correctness of which he seeks to challenge, and, on the other hand, a conviction founded on a recorded plea of guilty, the voluntary nature or unequivocal character of which he seeks to challenge.

Returning, then, to the facts and circumstances of this particular application, it is necessary to weigh its merits in the light of the criteria proper to be applied generally to all applications for bail pending appeal. Some of these were briefly indicated in both *Jetha's* case (*supra*), upon which Mr. Zool Nimji, for the applicant, strongly relies, and *Chimanbhai's* case (*supra*) and, so far as relevant to the present application, would seem to be:

1. the character of the applicant;
2. the possibility of a substantial delay in the hearing of the appeal;
3. whether the offence of which the applicant was convicted involved personal violence; and
4. that the appeal is not frivolous and has a reasonable possibility of success.

As to the first three of these, it is conceded by the respondent that the applicant has no prior conviction recorded against him and that the offence involved no element of physical violence, and I understand from the registry that the appeal may well not come on for hearing until towards the end of next month.

In regard to the fourth test, although counsel for the applicant has outlined a number of submissions intended to be advanced in support of the appeal there are, as Mr. Rana who appeared for the Republic points out, certain features of the case tending to militate against the success of the appeal. Among these is the circumstance that not only the applicant himself but also his counsel stated to the magistrate that the plea being entered was one of guilty and that the facts constituting the offence were admitted. I do not think, however, that very much turns upon the point that counsel participated in the offering of the plea for, as was said in *R. v. Heyes*, [1951] 1 K.B. 29, the client himself must plead and it is not enough for counsel to indicate a plea on his client's behalf.

A further circumstance to which Mr. Rana adverted is that the applicant would appear to have been sufficiently well educated and experienced in his work to comprehend fully the legal position relating to exchange control and the implications of the charge preferred against him so as to leave no room for misunderstanding. There undoubtedly is substance in this argument but I think that for present purposes it may perhaps be sufficiently answered by the possibility of there having been an element of duplicity in the case for the prosecution as presented inasmuch as the charge is based upon the premises that the applicant was not an authorised dealer in foreign currency while counsel for the prosecution at the hearing in the magistrate's court (who was not Mr. Rana) is recorded as having stated that the applicant was acting as such a dealer within the Act.

Taking the case as a whole I am satisfied that the submissions outlined on behalf of the applicant are at the least entitled to serious consideration.

Looking at the general merits of the application, regard may be had also to the unfortunate feature common to all applications for bail pending appeal, namely, that in the event of bail being refused, the appeal then succeeding and the conviction being set aside, the applicant will have served, at least in part, a term of imprisonment the award of which will at that stage be seen to have been erroneous. For this mistake no compensation is payable under the law as it stands, and this factor may possibly have been in the mind of the legislature when it enacted the present s. 356 (1) of the Criminal Procedure Code, to which, I have referred, expressly empowering courts either to grant bail or stay execution of any sentence, not only pending the determination of an appeal, but even pending the entering of the appeal in the registry.

For these reasons, and notwithstanding that no precedent has been found by counsel for the granting of bail pending an appeal from a conviction based on a plea of "guilty", I am satisfied that, subject to proper safeguards, the present application should be allowed.

In regard to the conditions to be imposed, taking into account the fact that the applicant was released on bail pending his trial in the court below and also the nature of the offence of which he stands convicted and the sentence against which he is appealing, I direct that before being released he must deposit in court his Kenya passport and any other current passport in his possession and

procure a bail bond in the usual form with two independent sureties acceptable to the Registrar in the sum of £1,000 each.

Order accordingly.

For the applicant:
Zool Nimji (instructed by *Bryson, Inamdar & Bowyer*, Mombasa)

For the respondent:
MR Rana (Senior State Counsel)

Letoyiani and another v Republic
[1972] 1 EA 50 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	14 July 1971
Case Number:	154/1971 (2/72)
Before:	Harris, J
Sourced by:	LawAfrica

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[1] Criminal Practice and Procedure – Sentence – Youthful offender – Court must consider possibility of borstal training – Borstal Institutions Act (*Cap.* 92), *s.* 5 (*K.*).

Editor's Summary

The appellants, first offenders under the age of 18 were sentenced to four years' imprisonment and 15 strokes on conviction of stock theft. On appeal:

Held –

(i) before a court convicts a youthful offender it must consider whether he should be committed for training to a borstal institution;

(ii) as frequently happened the magistrate had overlooked the provision which is of great importance.

Appellants sent to borstal institution for three years.

No cases referred to in judgment

Judgment

Harris J: The appellants, whose appeals have been consolidated, were convicted on their own pleas of the offence of stock theft contrary to s. 278 of the Penal Code, and, notwithstanding that each is a first offender and under the age of 18 years, they were both sentenced to four years' imprisonment and 15 strokes. From this sentence they now appeal.

By s. 5 of the Borstal Institutions Act (Cap. 92) every court which has convicted a “youthful offender” (that is, a person found to have attained the age of fifteen years but to be under the age of eighteen years) of an offence punishable with imprisonment is required, before sentencing him, to consider the evidence available as to his character and previous conduct and the circumstances of the offence and also as to whether it is expedient for his reformation that he should undergo training in a borstal institution.

It is regrettable that this provision, which is mandatory, is sometimes overlooked by magistrates, as it appears possibly to have been in this case for there is no reference whatever to it on the record. The provision, however, is one of great importance and forms part of the effort of the State to divert young persons from the ways of crime before it is too late.

I see no reason why the two appellants should not be sent to a borstal institution and, as I am informed by counsel that accommodation is available, I quash the sentence of imprisonment and corporal punishment in each case and substitute therefore a direction under s. 6 (1) that each of the appellants be sent to a borstal institution for three years. The appeals are to this extent allowed.

Order accordingly.

The appellants were absent and unrepresented.

For the respondent:
Miss P Rattansi (State Counsel)

Gilbert v Republic
[1972] 1 EA 51 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	20 August 1971
Case Number:	295/1971 (3/72)
Before:	Harris, J
Sourced by:	LawAfrica

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[1] Criminal Law – Robbery – Violence to retain stolen property or to effect escape – Robbery committed.

Editor’s Summary

The magistrate who convicted the appellant of theft on a charge of robbery found that the appellant had used violence in making his escape.

Held – actual violence used to retain the thing stolen or immediately after the robbery constitute the offence of robbery.

No cases referred to in judgment

Judgment

Harris J: The appellant was convicted in the Resident Magistrate's Court at Meru of theft and was sentenced to three years' imprisonment. He appealed to this court against both conviction and sentence, and his appeal was dismissed, the reasons being reserved. I now proceed to state the reasons.

Having read and considered the record of the proceedings in the court below, together with the petition of appeal, I am satisfied that there was adequate evidence to support the conviction and that the sentence is in no way excessive. Neither the conviction nor the sentence can be disturbed.

One matter calls for comment. The charge brought against the appellant was one of robbery contrary to s. 296 (2) of the Penal Code, and the evidence expressly accepted by the magistrate shewed that the appellant had used violence in making his escape after the theft although not in the act of stealing. The magistrate in his judgment said:

> "I am also convinced, although accused denied it, that the simi belongs to him. He did go and eat in the complainant's hotel as alleged and he refused to pay and went out and when he was followed he became violent and took the money as alleged. . . . But does the offence amount to robbery with violence? I think not. Accused did not set out to rob any person. . . . Although violence was used to effect flight I do not think that it was employed in such a way as to make the offence robbery with violence."

With respect, this would appear to be a clear misdirection. S. 296 (1) provides that if the offender "at or immediately before or immediately after the time of stealing" uses or threatens to use actual violence to any person or property in order to obtain *or retain* the thing stolen he is guilty of the offence of robbery. Similarly by sub-s. (2) it is declared if the offender "at or immediately before or immediately after the time of the robbery" uses any personal violence to any person he is liable to the punishment specified in that subsection. From the finding of fact of the magistrate it is difficult to see any good ground for his decision not to convict the appellant of the offence charged.

Appeal dismissed.

The appellant was absent and unrepresented.

For the respondent:
JB Shilenje (State Counsel)

Muusya and another v Republic
[1972] 1 EA 52 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	24 September 1971
Case Number:	427/1971 (4/72)
Before:	Harris, J
Sourced by:	LawAfrica

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[1] Game – Trophy – Meat not durable and not a trophy – Wild Animals Protection Act (*Cap.* 376), *s.* 33 (*K.*).

[2] Game – Unlawful possession – Game meat – Defence of possession by gift from licensed hunter must be put to accused.

Editor's Summary

The appellants pleaded guilty to a charge of being in possession of a game trophy without a permit, the particulars showing that the trophy was alleged to be elephant meat. The magistrate's record did not show that it had been explained to the appellants that a gift of the meat by a person lawfully in possession of it was a defence to the charge.

On appeal it was contended that in explaining the particulars of the charge the magistrate should have explained the defence.

For the respondent it was contended that the defence was analogous to an alibi which must be raised by the defendant.

Held –

(i) the magistrate should have explained the defence of gift to the appellants;

(ii) meat is not a durable part of an animal and so not a trophy.

Appeals allowed.

Cases referred to in judgment:

(1) *R. v. Onyinjo wa Duk*, (1910) 3 E.A.L.R. 110.

(2) *Griffiths v. R.*, (1932) 23 Cr. App. R. 153.

Judgment

Harris J: The appellants in these appeals, which have been consolidated, were charged in the Resident Magistrate's Court at Kitui with being in possession of a game trophy without a permit contrary to s. 33 (1) of the Wild Animals Protection Act (Cap. 376), the trophy being stated to be elephant meat. They pleaded guilty, were convicted, and each was sentenced to one year's imprisonment. They now appeal against both conviction and sentence.

Although it is declared by s. 348 of the Criminal Procedure Code (Cap. 75) that no appeal lies from a conviction recorded on a plea of guilty, this restriction does not preclude this court in a proper case from considering the bona fides of the plea with a view to determining whether it was unequivocal, and whether the court in considering the matter should be said to be proceeding by way of and exercise of its jurisdiction in appeal or in revision is not, for present purposes, of great importance.

In *Griffiths v. R.*, (1932) 23 Cr. App. R. 153, the Court of Criminal Appeal in England quashed on appeal a conviction for bigamy founded on a plea of guilty where it appeared on the depositions that the accused, although he was unaware of it, almost certainly had a complete defence available to him, namely, that his first wife having been continually absent from him for the period of seven years then last past he thought she was dead, and that there was no evidence on which he could have been convicted.

In the present cases each of the appellants in his petition states as his principal ground of appeal that although he pleaded guilty at the trial he did not kill the elephant from which the meat was taken and that the animal was shot by a licensed hunter who left it dead whereupon the appellant with his wives and children, all being hungry, "rushed to the shot elephant for meat". To this each added that he did not know that to be in possession of meat without having killed the animal concerned was unlawful.

By s. 33 (2) (*c*) of the Act it is provided that meat of a game animal shall be deemed to have been obtained in accordance with the Act if no offence under the Act had been committed in relation to the meat and if it was acquired by the person in whose possession it was found as a gift from any other person who had himself obtained it in accordance with the Act. From this it follows that where a person, acting fully within the terms of a licence issued under the Act, kills a game animal and presents the meat of that animal as a gift to another person the possession of the meat by the latter does not constitute an offence, the onus of proving the lawfulness of his possession, however, being placed by subs. (6) of the section upon that person.

In these circumstances the question arises as to whether in explaining the particulars of the charge, as required by s. 207 of the Criminal Procedure Code, the magistrate should have told each of the appellants that if in fact the meat was given to him by the licensed hunter no offence was committed. Counsel for the Attorney-General contends that the magistrate should not be expected to go so far as this and he instanced by way of analogy the defence of an alibi, saying that in explaining to an accused person the particulars of the charge alleged against him for the purpose of enabling him to plead there would never be any obligation to remind the accused that an alibi might afford a complete defence.

In my opinion this is not a true analogy, for an accused person may be assumed to know the efficacy of an alibi, whereas the provisions of section 33 (2) (*c*) of the Act are unlikely to be within his knowledge.

In *R. v. Onyinjo wa Duk*, (1910) 3 E.A.L.R. 110, Hamilton, J., sitting in the former High Court of East Africa, when considering in revision the effect of a plea of guilty to a criminal charge, said:

> "A plea of guilty is an admission of the truth of all the elements of the charge, and of the absence of a defence. It is in order that this may be clearly brought out that Magistrates are directed to record the plea of an accused person in his own words. In the present instance this direction has only been partially followed with the result that the Magistrate has recorded an impossibility, viz.: a plea of guilty together with a defence. A statement by an accused person in answer to a charge: 'I did it, but I had good reason to do so', is not a plea of guilty but of 'not guilty', which entitles an accused person to be tried."

Similarly in the cases now before me it was the duty of the magistrate, in explaining to each of the accused the constituents of the offence and the particulars of the allegations against him, to advert to the provisions of s. 33 (2) (*c*) and inform him before he pleaded that, if the circumstances of the case brought the matter within the ambit of that paragraph, he was not guilty of the offence charged. This was particularly the case where, as here, the charge is so framed as to suggest, quite inaccurately, that the mere possession of a trophy or meat without a permit is in itself necessarily an offence.

There is nothing on the record to indicate that this course was followed and, while equally there is nothing to establish that the licensed hunter, presumably after removing the ivory from the animal, knowingly permitted the accused to have the carcase and could be said thereby to have given it to them, there is at

least a sufficiently strong possibility of this having occurred to render it unsafe to permit the pleas of guilty to be regarded as unequivocal and the convictions to stand.

Apart from what I have said there is a defect in each of the charge sheets inasmuch as, in alleging that the accused was wrongfully in possession of a game trophy, the particulars shewn are merely that he was found in possession of elephant meat. Meat, not being a "durable part" of an animal within the definition in s. 2 of the Wild Animals Protection Act, is not a "trophy" within the meaning of the Act and for this reason also the pleas of guilty entered by the appellants should not have been accepted.

In this state of affairs I feel bound to quash the convictions.

Counsel for the Attorney-General, in view of the fact that the appellants have already served about half their sentences, very properly did not in either case seek an order for a new trial, and accordingly the appeals are allowed, the convictions quashed and the sentences set aside. Unless they are being detained for any other reason the appellants must be set at liberty forthwith.

Appeals allowed.

The appellants were absent and unrepresented.

For the respondent:
JB Shilenje (State Counsel)

Kinyua v Republic
[1972] 1 EA 54 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	5 May 1971
Case Number:	99/1971 (5/72)
Before:	Madan, J
Sourced by:	LawAfrica

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[1] Criminal Practice and Procedure – Commencement of proceedings – Consent – Given after commencement – Not retrospective – Proceedings improper – Prevention of Corruption Act (*Cap.* 65), *s.* 12 (*K.*).

Editor's Summary

Consent of the Attorney-General to a prosecution for corruption was not given until six weeks after the initiation of the prosecution.

Held – subsequent consent could not operate retrospectively to make the prosecution an authorised one.

Appeal allowed.

No cases referred to in judgment

Judgment

Madan J: This prosecution was instituted on 5 November 1970.

There were two counts against the appellant. First, corruption contrary to s. 3 (1) of the Prevention of Corruption Act (Cap. 65). Second, stealing from person contrary to s. 279 (*a*) of the Penal Code.

The magistrate convicted the appellant of both offences, saying:

> "In all the circumstances I find the accused guilty of both offences for which he has been charged and convict him accordingly."

S. 12 of the Prevention of Corruption Act provides:

> "A prosecution for an offence under this Act shall not be instituted except by or with the written consent of the Attorney-General or Solicitor-General."

The consent of the Attorney-General for the launching of the prosecution for the offence of corruption as required by statute was not given until 19 December, i.e. some six weeks after it was initiated. Originally it was an unauthorised prosecution. The consent of the Attorney-General given subsequently could not and did not cure the initial defect to turn it into an authorised prosecution. Therefore the conviction and sentence in respect of it are quashed and set aside.

The magistrate could not seriously have considered whether there was any or enough evidence to convict the appellant on the second count. There was really no evidence relating to that offence, and it seems the magistrate included the second count making it a composite conviction. It is also quashed and the sentence set aside.

Appeal allowed.

The appellant was absent and unrepresented.

For the respondent:
JB Shilenje

Bhogal v International Computers (EA) Ltd
[1972] 1 EA 55 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	20 September 1971
Case Number:	443/1970 (8/72)
Before:	Wicks CJ
Sourced by:	LawAfrica

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[1] Master and Servant – Trade Dispute – Industrial Court award – Binding only between parties to award – Trade Disputes Act (*Cap.* 234), *s.* 10 (*K.*).

[2] Contract – Trade usage – Necessity for usage to be well-known and certain.

Editor's Summary

The plaintiff was employed by the defendant on a work permit, and towards the expiry of the permit the defendant asked the plaintiff to leave on its expiry. The plaintiff claimed to be entitled to be paid compensation at the rate of one month's pay for every year of service with the plaintiff, firstly on the basis of an award of the Industrial Court made between employers and employees in the motor trade, and alternatively on the basis that there was a custom to pay such benefits.

Held –

(i) the provisions of an award of the Industrial Court affect only the parties to the award;

(ii) the number of payments proved were small and they all varied;

(iii) accordingly no custom had been proved (*Harilal v. Standard Bank* (1) considered).

Judgment for the defendant.

Cases referred to in judgment:

(1) *Harilal v. Standard Bank*, [1967] E.A. 512.

(2) *Re Motor Trade & Allied Industries Employers Association*, [1970] E.A. 435.

Judgment

Wicks CJ: The plaintiff was employed by the defendants as a computer operator. The plaintiff claims that his work permit expired on 6 May 1970 and on 10 September 1969 the defendants wrote to the plaintiff advising him to make arrangements to leave Kenya on the expiry of his work permit. The plaintiff left the defendant's employment on 11 February 1970.

The plaintiff claims also that his employment was terminated as a result of the Government of Kenya's policy of Africanisation and that he is entitled to severance pay or compensation for loss of career at a rate of one month's salary for each year of service. The plaintiff claims that, as his employment came to an end as a result of circumstances beyond his control, he is, in accordance with the award of the Industrial Court confirmed by this court in *Re Motor Trade & Allied Industries Employers Association*, [1970] E.A. 435, entitled to retirement benefits calculated at the rate of one month's salary for each year of service.

Alternatively the plaintiff claims that it is now a matter of custom for retirement benefits, calculated at the above rate, to be paid by employers to those employees whose services are terminated as a result of the policy of Africanisation.

In its defence the defendant refers to the letter of 10 September 1969 and says that the plaintiff was informed that the defendant did not expect to be able to employ the plaintiff after the expiry of the work permit and the plaintiff requested that he be allowed to terminate his employment on 9 March 1970 and the defendant agreed to this although the work permit was not due to expire until 29 April 1970. The defendant says that the contract of employment between it and the plaintiff was frustrated and he is not entitled to severance pay, and that on leaving its employment it made an ex gratia payment to the plaintiff of two months' salary which was accepted unconditionally. The defendant denies that the plaintiff has any claim as a result of the award of the Industrial Court referred to or that there is now a custom for the payment of retirement benefits.

In the defence it appears to be alleged that the plaintiff, voluntarily left the defendants employ and was entitled to nothing. This proposition was not seriously pursued at the hearing. It is sufficient for me to refer to the evidence of Mr. Dawson, the Secretary of the defendant company, that he told the plaintiff that his post was to be Africanised. Mr. Dawson said that he intended to apply for a renewal of the plaintiff's permit but it was not expected to succeed as other members of staff in the plaintiff's category had been refused renewal of permit. I do not believe Mr. Dawson that he intended to apply for a permit. There was no evidence that the plaintiff was informed of such an intention, he being left with the task of disposing of his residence, arranging his personal affairs and leaving Kenya with his family by 29 April 1970. It seems to be unreasonable that an employer should demand that an employee, who has been Africanised, or for that matter who is leaving their employ for any other reason, should work right up to the last day of his work permit and have left Kenya with his family by midnight on the same day. It appears to be reasonable that the plaintiff, being faced with leaving Kenya with his family by 29 April 1970 the defendant appreciated his position and terminated the plaintiff's employment, on the grounds that his post was Africanised, on 11 February 1970, and this I find was the position.

The plaintiff relies on the award of the Industrial Court as giving him a right to retirement benefits calculated at the rate of one month's salary for each year of service. In that case the parties were the Kenya Motor Engineering and Allied Workers Union and the Motor Trade and Allied Industries Employers Association and the ruling relied on was:

> "(10) Retirement Benefits.

> The court awards that the present clause should be amended so that those employees who lose their job other than for disciplinary reasons or who dies (their estates) should not forfeit this benefit."

it is submitted that there being only two exceptions given, employees who lose their job as a result of Africanisation are entitled to retirement benefits.

I am also referred to another award of the Industrial Court Cause No. 12 of 1964 (G.N. 4337 of 1944) a cause between The Oil Industry of Kenya and the Kenya Petroleum Oil Worker's Union. In that award the event of an employee's services being terminated prematurely in pursuance of localisation or Africanisation was dealt with, employees being awarded payments on the basis of age and length of service varying from one month down to 1/3 of a month's salary for each year of service.

The Industrial Court was established by The Trades Disputes Act (Cap. 234). The court itself was established by s. 9 of the Act and its jurisdiction is to be found in s. 10 of the Act, sub-s. (3) of which provides:

> "An award shall state to which parties, and to which employers and employees comprised in the parties, each of the provisions of the award relates"

sub-s. (6) then provides *inter alia* for the award to be

> "an implied term of every contract of employment between the employers and employees to whom the award relates".

It is clear, and I so find, that the provisions of an award of the Industrial Court relates to the parties to the award only.

Turning now to the claim that there is now a custom for retirement benefits to be paid to employees whose services are terminated as a result of the policy of Africanisation, a number of witnesses were called and I must refer to their evidence briefly.

The three British Banks worked out a scheme which they follow:

"(*a*) *Staff with* 5 *or less completed years of service with Barclays Bank D.C.O.*

(i) Half a month's basic salary for each completed year of service with the Bank, and

(ii) Four months' basic salary.

(*b*) *Staff with* over 5 but *less than 11 completed years of service with Barclays Bank D.C.O.*

(i) One month's basic salary for each completed year of service with the Bank, and

(ii) Six months' basic salary.

(*c*) *Staff with* 11 *or more but less than* 20 *completed years of service with Barclays Bank D.C.O.*

(i) One month's basic salary for each completed year of service with the Bank, and

(ii) Nine months' basic salary.

(*d*) *Staff with* 20 *or more completed years of service with Barclays Bank D.C.O.*

(i) An ex-gratia annual retiring allowance based on 1/60th of average basic salary over the last three years of service for each completed year of service with the Bank, and

(ii) Twelve months' basic salary."

The East African Power and Lighting Co. Ltd. scheme was:

"(*a*) *Employees aged Under* 51 *Years of Age*.

Half a month's salary for each completed year of service before the 25th birthday, and one month's salary for each completed year of service after the 25th birthday, but before the 51st birthday (the year of service in which the employee attains the age of 25 shall be reckoned on the basis of one month's salary).

(*b*)

Employees between 51 *and* 54 *Years of Age*	*Months' Pay per completed Year of Service*
51st Birthday – 52nd Birthday Excl.	2/3
52nd Birthday – 53rd Birthday Excl.	1/2
53rd Birthday – 54th Birthday Excl.	1/3

(*c*) *Employees Between the Ages of* 54 *and* 55.

Such employees will have the employers' interest in the Provident Fund augmented to bring it up to the amount to which they would have been entitled at the age of 55 had they continued in employment until the normal retirement age."

The Total Oil Products (East Africa) Ltd. scheme is incorporated in a Collective Bargaining Scheme which is to be found in the award of the Industrial Court Cause No. 12 of 1964 (above) and the relevant part of the award is:

"In the event of an employee's service being terminated prematurely by the companies in pursuance of a policy of localisation or Africanization the following benefits will be applied, subject to a maximum entitlement of 24 months' salary. This to be in addition to other benefits to which such employees may be entitled.

(*a*) Employees aged under 51. – Half a month's salary for each completed year of service before the 25th birthday, and one month's salary for each completed year of service after the 25th birthday but before 51st birthday (the year of service in which the employee attains the age of 25 shall be reckoned on the basis of one month's salary).

(*b*) Employees between 51 and 54 years of age–

	Months' Pay per completed Year of Service
51st – 52nd birthday excluded	2/3
52nd – 53rd birthday excluded	1/2
53rd – 54th birthday excluded	1/3

(*c*) Employees between the ages of 54 and 55. – Such employees will have the employer's interest in any Provident Fund augmented to bring it up to the amount to which they would have been entitled at the age of 55 had they continued in employment until the normal retirement age."

and under that scheme Mr. S. S. Bhogal, a brother of the plaintiff received 12 months' basic salary in respect of 12 years' service plus 38 days pro rata leave and leave allowance. Presumably all of his service was between the years of 25 and 51.

Mackenzie Dalgety Ltd. have an ex gratia scheme which is that employees who were not members of the provident fund or endowment scheme were paid two weeks' salary for each year of service, those that were members of the funds or schemes were paid 5 per cent of their annual salary for each year of service, less the company's contribution to the fund or scheme, but if the company's contribution exceeds the payment the employee gets the company's contribution

but nothing for being Kenyanised but receive the company's contribution to the fund. There was one exception and this was in the case of a subsidiary company, African Mercantile Overseas, whose employees served under contracts which specifically provided for specific terminal benefits.

Union Carbide (Kenya) Ltd. has an agreement with a Union which did not provide for employees who lost their employment as a result of Kenyanisation. The company did make a payment which was claimed to be ex gratia of two weeks salary for each year of service.

That was the evidence relating to specific companies. Mr. Peter Dodd, the Chief Assistant Executive Officer of the Kenya Federation of Employers gave evidence of a general nature. His Federation has over 2,000 members, which includes almost every employer of labour in Kenya. The Federation issued a circular to members regarding severance pay on Kenyanisation and the Federation's attitude was that where a company had not made a special agreement with their employees there should not be any special benefits relating to Kenyanisation, and any consideration that was shown would be ex gratia and at the discretion of the employer. Mr. Dodd said that it had never been suggested that there is a custom regarding the payment of compensation on Kenyanisation, and that whole industries had not made payments on Kenyanisation, and instanced the sisal, sugar and coffee industries.

The requirements of a custom or trade usage are set out very clearly in the case of *Harilal v. Standard Bank*, [1967] E.A. 512 where at p. 516 Sir Charles Newbold, P. is reported as saying:

> "A trade usage may be described as a particular course of dealing between parties who are in a business relationship, which course of dealing is so generally known to all persons who normally enter into that relationship that they must be presumed to have intended to adopt that course of dealing and to have incorporated it into their contractual relationship unless by agreement it is expressly or impliedly excluded. Before a course of dealing can acquire the character of a trade usage it must, first, be so well-known to the persons who would be affected by it that any such person when entering into a contract of a nature affected by the usage must be taken to have intended to be bound by it; secondly, be certain in the sense that the position of each of the parties affected by it is capable of ascertainment and does not depend on the whim of the other party; thirdly, be reasonable, that is, that the course of dealing is such that reasonable men would adopt it in the circumstances of the case; and, finally, be such as is not contrary to legislation or to some fundamental principle of law."

with this proposition I respectfully agree. Considering the evidence in the case before me the first two requirements are not satisfied, only a small number of instances of payments on Kenyanisation have been mentioned and each are different from the others. Sir Charles Newbold, P. continued:

> "A trade usage may be provided by calling witnesses, whose evidence must be clear, convincing and consistent, that the usage exists as a fact and is well-known and has been acted on generally by persons affected by it."

In the case before me none of these requirements are satisfied. I can find no evidence of the custom or trade usage pleaded and this being so the action must fail.

Judgment for the defendant.

For the plaintiff:
RN Khanna (instructed by *Khanna & Co*, Nairobi)

For the defendant:
KA Fraser (instructed by *Hamilton Harrison & Mathews*, Nairobi)

Egbema v West Nile District Administration

[1972] 1 EA 60 (CAK)

Division:	Court of Appeal at Kampala
Date of judgment:	19 October 1971
Case Number:	38/1971 (10/72)
Before:	Sir William Duffus P, Law Ag V-P and Lutta JA
Sourced by:	LawAfrica
Appeal from:	High Court of Uganda – Oteng, J

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[1] False imprisonment – May be found when action for malicious prosecution dismissed.

[2] Malicious prosecution – Determination of prosecution in favour of accused – Withdrawal and no re-charge – Constitutes determination in favour of accused.

[3] Master and Servant – Vicarious liability – Police – Administration not employing Uganda police.

[4] Damages – False imprisonment – Sum awarded excessive.

Editor's Summary

The appellant was employed by the respondent as a constable guarding an office containing a cash box. On the discovery of the loss of the cash box the respondent arrested the appellant and within 20 minutes handed him over to the Uganda police who detained him in custody and brought him before a magistrate.

The appellant was finally discharged under the Criminal Procedure Code, s. 83, which discharge does not operate as an acquittal. Nevertheless the appellant had not been recharged.

The appellant claimed damages against the respondent for false imprisonment, malicious prosecution and assault. The judge found that the arrest was wrongful and that the prosecution was instigated by the respondent, but he made no finding on whether the prosecution was instituted maliciously and without reasonable and probable cause. He then dismissed the case as premature on the ground that the appellant had not yet been acquitted of the charge. In case he was wrong, he fixed the damages he would have awarded at Shs. 50,000/-.

On appeal the appellant argued that damages should have been awarded for false imprisonment and for assault, and that there had been a determination of the prosecution in favour of the appellant. For the respondent it was contended that the decision to prosecute was made by the police after investigation and that the damages assessed were unrealistic.

Held –

(i) damages for false imprisonment must be awarded as the cause of action is distinct from the malicious prosecution;

(ii) although there was no specific finding, it was implied in the judgment that assault had not been proved;

(iii) the withdrawal of a charge without fresh proceedings being brought is sufficient to establish a determination of a prosecution in favour of the accused;

(iv) the decision to prosecute was made by the Uganda police who are not servants of the respondent (*West Nile District Administration v. Dritto* (1) distinguished);

(v) there was no evidence of malice or absence of reasonable and probable cause against the respondent, and the appellant was a natural suspect;

(vi) the assessment of damages was unrealistic and the appellant would be awarded Shs. 10,000/-.

Appeal allowed.

Case referred to in judgment:

(1) *West Nile District Administration v. Dritto*, [1969] E.A. 324.

Judgment

The following considered judgments were read. **Law Ag V-P:** The appellant brought a suit against the respondent, the West Nile District Administration, claiming damages for false imprisonment, malicious prosecution and assault. The appellant was at all material times a constable in the respondent's police force and was stationed at Adumbi Gombolola Head-quarters. Amongst his duties was to guard the respondent's offices at Adumbi where money was kept in a cash box. On 2 July 1966, a clerk coming to work at 8 a.m. discovered that the cash box was missing. The appellant was immediately suspected and was arrested by another District Administration police officer on the orders of a chief employed by the respondent. He was kept in custody at the Administration Headquarters for some 20 minutes and then taken to Arua where he was handed over to the Uganda Police. Next day his house was searched but nothing incriminating found. He was then detained in the custody of the Uganda Police, making occasional appearances before a magistrate who ordered further remands in custody. Finally on 6 September 1966 the appellant was discharged under s. 83 of the Criminal Procedure Act, the prosecutor withdrawing from the prosecution before the accused entered on his defence. Such a discharge does not operate as a bar to subsequent proceedings on account of the same facts. The judge found that the appellant's original arrest was wrongful, and there has been no cross-appeal against that finding. He also found that the prosecution was instigated by the respondent, but he made no finding as to whether that prosecution was instituted maliciously and without reasonable and probable cause. The judge however dismissed the suit as premature, on the ground that the appellant had not been acquitted and thus had failed to prove his innocence. In the event of his being held wrong on appeal, the judge fixed the damages he would have awarded at Shs. 50,000/- with costs and interest. Somewhat surprisingly, there has been no cross-appeal against this provisional award which to my mind is manifestly excessive.

Mr. Nabudere for the appellant has argued several grounds of appeal. Firstly he submitted that even if the judge was right in holding that the appellant had failed to prove that the prosecution had terminated in his favour, he should have awarded damages in respect of the false imprisonment. Mr. Matovu for the respondent could not dispute this proposition. I agree that this ground of appeal must succeed. False imprisonment and malicious prosecution are separate causes of action; a plaintiff may succeed on one and fail on the other. If he established one cause of action (and the judge has found in the appellant's favour on the issue of false imprisonment), then he is entitled to an award of damages on that issue. Another ground of appeal is that the judge gave no consideration to the appellant's claim for damages for assault, which was supported by his evidence, that he was assaulted and beaten by the respondent's servants or agents. It is true that there is no finding in the judgment on this issue. Two defence witnesses deposed that the appellant was not ill-treated in any way. He does not appear to have asked for medical treatment or to have complained to the magistrate. With some hesitation, I find that this ground of appeal fails. I think that, by necessary implication from a reading of the judgment as a whole, the judge was not satisfied that the allegation of ill-treatment was made out. In this connection I would remark that it is unfortunate that the provisions of r. 1 (5) of O. 13 of the Civil Procedure Rules, which require the framing and recording of issues, were not complied with at the hearing of the

suit the subject of this appeal. This requirement is more honoured in the breach than the observance in Uganda.

The third substantial ground of appeal was that the judge erred in holding that the suit was premature because the appellant had not proved that the criminal proceedings against him had conclusively determined in his favour. What the appellant did prove in this case was that the prosecutor withdrew from the prosecution on 6 September 1966, and that he was then discharged under s. 83 of the Criminal Procedure Code, and that no fresh proceedings arising out of the same facts have since that date been brought against him. In my view this was quite enough to establish a determination favourable to the appellant. As is stated in *Clerk and Lindsell on Torts*, 12th Ed., para. 1707, it is enough that the criminal proceedings have been terminated without being brought to a formal end. The fact that no fresh prosecution has been brought, although five years have elapsed since the appellant was discharged, must in my opinion be considered equivalent to an acquittal, so as to entitle the appellant to bring a suit for malicious prosecution. I have no doubt that this ground of appeal must succeed.

The position has now been reached that the appeal has succeeded in my view, on two grounds; firstly, that the appellant was entitled to judgment on the cause of action relating to false imprisonment, and secondly that the judge should not have dismissed the suit on the ground that the appellant had failed to prove that the criminal proceedings had terminated in his favour. What then is the position? Mr. Nabudere has submitted that judgment should be entered for the appellant for the sum of Shs. 50,000/- provisionally assessed by the judge. There has however been no finding that the prosecution instituted by the Uganda Police was malicious, or brought without reasonable or probable cause. The Uganda Police are not servants or agents of the respondent, unlike Administration Police, which is sufficient to distinguish this case from *West Nile District Administration v. Dritto*, [1969] E.A. 324. That case is authority for the proposition that a Local Administration is vicariously responsible for the torts of the Administration Police committed in the course of their employment. The wrongful arrest in this case was performed by a constable of the Administration Police, in the course of his employment by the respondent, acting on the orders of a Chief also employed by the respondent. The subsequent detention of the appellant by the Uganda Police was a direct consequence of that wrongful arrest, and the respondent is liable to compensate the appellant for that period of imprisonment. Is the respondent also liable to damages in respect of the abortive prosecution? I do not think so. The decision whether or not to prosecute was made by the Uganda Police, who are not servants or agents of the respondents, after investigation. I can see no evidence of malice on the part of the respondent. The appellant was an obvious suspect, as he was responsible for the security of the office from which the cash box disappeared. It cannot be said that there was no reasonable and probable cause for the respondent instigating a prosecution against the appellant. The actual decision to do so was taken by the Uganda Police. As the judge has made no finding as to whether the instigation of the prosecution was due to malice on the part of the respondent, this court must make its own finding. In my view the circumstances of this case reasonably pointed to the appellant as a suspect, and there was no sufficient evidence that in handing the appellant over to the Uganda Police for his case to be investigated and, if necessary, prosecuted, the respondent was actuated by malice. However, as the judge has found that the appellant was falsely imprisoned as a result of a wrongful arrest carried out by the servants or agents of the respondent, the appellant must be compensated. The appellant’s salary was Shs. 1,320/- a year, and he has been dismissed. In my view he would be amply compensated by an award of Shs. 10,000/- in respect of his false imprisonment. Even on the basis of both false imprisonment and malicious prosecution, I

consider the judge's assessment of Shs. 50,000/- in respect of the two causes of action to be quite unrealistic.

I would set aside the judgment and decree dismissing the suit and substitute a judgment and decree in favour of the appellant for Shs. 10,000/-, with costs, and with interest at court rates from 15 June 1971, the date of the judgment. I would give the appellant the costs of this appeal, in which he has been substantially successful.

Sir William Duffus P: I have read and agree with the judgment of Law, Ag. V.-P., and as Lutta, J.A. also agrees the appeal will be allowed in accordance with the order set out in his judgment.

Lutta JA: I also agree.

Appeal allowed.

For the appellant:
DW Nabudere

For the respondent:
MB Matovu (State Attorney)

Fernandes v People Newspapers Ltd
[1972] 1 EA 63 (CAK)

Division:	Court of Appeal at Kampala
Date of judgment:	1 December 1971
Case Number:	50/1971 (11/72)
Before:	Law Ag V-P, Lutta and Mustafa JJA
Sourced by:	LawAfrica
Appeal from:	High Court of Uganda – Musoke, J

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[1] Civil Practice and Procedure – Pleading – No allegation of contributory negligence – Court may not find.

[2] Estoppel – Judgment, by – Interlocutory judgment – Issue of negligence decided – Contrary finding not possible.

[3] Damages – Personal injuries – Quantum – Shortening of leg – Shs. 12,000/- *– Not so low as to allow enhancement on appeal.*

Editor's Summary

The respondent filed no defence to the appellant's claim for damages for negligence and the appellant obtained interlocutory judgment. On the assessment of damages the judge reduced the damages by half in respect of the appellant's contributory negligence.

The appellant appealed and also contended that the damages of Shs. 12,000/- were inadequate for a

fracture of the leg leaving it three-quarters of an inch shorter together with some limitation of the flexion of the knee.

Held –

(i) no allegation of negligence having been made against the appellant by pleading, the court could not find negligence against him;

(ii) the question of negligence was res judicata on the interlocutory judgment;

(iii) the award of damages was low, but not so low as to entitle the court to interfere.

Appeal allowed.

No cases referred to in judgment

Judgment

The following extempore judgments were delivered. **Law Ag V-P:** The appellant was knocked down by a car owned by the respondent company and suffered injuries. He filed a suit for damages on 4 May 1971. The respondent was duly served, but did not enter an appearance or file a defence. Judgment in default of appearance in favour of the appellant was obtained on the issue of the liability, under the provisions of O. 9, r. 6 of the Civil Procedure Rules, and the issue of assessment of damages was referred to a judge of the High Court. The judge, after hearing the evidence of the appellant and a doctor, gave judgment awarding the appellant general damages of Shs. 12,000/-, which he reduced to Shs. 6,000/- because, in his view, the appellant's own negligence had contributed to the accident to the extent of 50 per cent. The first five grounds of appeal are directed against this finding of contributory negligence.

I have no doubt that they must succeed. A civil suit is decided on issues arising out of the pleadings. No allegations of negligence against the appellant have ever been made, and it was not open to the court to find negligence on his part. The question was in any event res judicata by reason of the judgment obtained earlier, which has not been appealed or sought to be set aside, giving the appellant judgment on the issue of negligence.

The sixth ground of appeal is that the damages of Shs. 12,000/- are so low as to amount to an erroneous estimate necessitating interference by this court. The appellant suffered a comminuted fracture of the upper end of the left tibia and fibula. He has been left with a slight deformity near the upper end of the tibia, shortening of the left leg to the extent of three-quarters of an inch, and some limitation of flexion of the left knee. He is about 68 years old. The doctor assessed his degree of permanent disability as moderate. The award does not err on the generous side, but I am quite unable to say that it is so low as to require enhancement by this court. With some hesitation, I would dismiss the ground of appeal against the quantum of damages awarded.

The seventh ground of appeal is that the judge was wrong in failing to specify on what scale the costs awarded to him were to be paid. The judge said it was a matter for the taxing master. The appellant's advocate had applied for costs on the High Court scale. In my view he was entitled to a ruling on that application. As the appellant, as a result of this judgment, is to recover Shs. 12,000/- instead of the Shs. 6,000/- awarded by the judge, I think he is entitled to the costs of the suit on the High Court scale and I would so order.

The eighth ground of appeal relates to interest on the damages. The judgment and decree are silent on the point. Mr. Mugenyi for the appellant asks for interest from the date of filing suit. The position as I understand it is that although interest can be awarded on special damages, as expenses which have been actually incurred or losses actually suffered at the time of filing suit, from that date, interest on general damages only runs from the date on which the damages are assessed, that is to say the date of judgment. In my view, the appellant is entitled to an order for interest at 6 per cent on his general damages from the date of judgment until payment.

I would allow this appeal except as to quantum of damages, with costs. I would set aside the decree appealed from, and substitute a decree giving the appellant general damages of Shs. 12,000/- with interest at 6 per cent from the date of judgment, and with costs of the suit on the High Court scale.

Lutta JA: I entirely agree with the judgment of Law, Ag. V.-P., and I have nothing to add.

Mustafa JA: I also agree.

Appeal allowed.

For the appellant:
Y Mugenyi

The respondent did not appear and was not represented.

Iga v Makerere University
[1972] 1 EA 65 (CAK)

Division:	Court of Appeal at Kampala
Date of judgment:	3 December 1971
Case Number:	51/1971 (12/72)
Before:	Law Ag V-P, Lutta and Mustafa JJA
Sourced by:	LawAfrica
Appeal from:	High Court of Uganda – Mead, J

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[1] Limitation of Actions – Pleading – Plaint on face filed out of time must be rejected – Limitation Act (*Cap.* 70), *s.* 4 (*U.*) *– Civil Procedure Rules O.* 7, *rr.* 6 *and* 11 (*U.*).

[2] Civil Practice and Procedure – Plaint – Rejection – Barred by limitation – Must be rejected – Civil Procedure Rules, O. 7, *rr.* 6 *and* 11 (*U.*).

Editor's Summary

The appellant sued the respondent in tort for damages for personal injuries, the action having been filed outside the limitation period for such an action. Interlocutory judgment was entered for the appellant but when the action came before the judge for assessment of damages he set aside the interlocutory judgment and dismissed the appellant's claim holding that the court had no jurisdiction to entertain it.

On appeal it was contended that limitation is only a procedural matter not going to jurisdiction and that limitation must be pleaded.

Held –

(i) a plaint barred by limitation is barred by law and must be rejected;

(ii) such a plaint should be rejected even though an interlocutory judgment has been entered;

(iii) the judge should not have dismissed the claim but rejected the plaint: this had not occasioned any failure of justice as the correct position was arrived at.

Appeal dismissed.

No cases referred to in judgment

Judgment

The following considered judgments were read. **Mustafa JA:** On 2 September 1966 the appellant

was travelling in a motor vehicle belonging to the respondent. The vehicle was being driven by the respondent's employee. The vehicle overturned, and the appellant suffered injuries as a result. On 26 May 1971, over 4½ years later, the appellant filed an action in the High Court against the respondent claiming damages arising out of the said accident. No appearance was entered by the respondent and the appellant obtained an interlocutory judgment on 28 July 1971 on the issue of liability under O. 9, r. 6 of the Civil Procedure Rules from the Registrar of the High Court. The assessment of damages was referred to a judge for determination. On 27 September 1971 the matter came up before Mead, J. for assessment of damages. In the course of the hearing the judge realised that the claim was statute-barred and drew the attention of counsel for the appellant to that point. Counsel for the appellant submitted that he would address the court later on the point of limitation. The judge heard all the witnesses and adjourned the case for about seven days for the appellant's counsel to prepare the submission, which was duly made on 4 October 1971. The submission made was that the defence had to plead limitation, and that the court could not, on its own motion, raise such an issue. On 7 October 1971 Mead, J. gave judgment holding:

> "The wording of the Limitation Act, s. 4 is mandatory, action shall not be brought save within the prescribed period of time. If action is brought out of that period then before entering judgment on the claim so made the court must be satisfied the case comes within one of the exceptions provided by the Act extending the period of limitation. The court, in the present case having raised the issue that for the apparent reason the claim was barred by the Act and therefore could not be entertained by the court, it was open to the plaintiff to apply for leave to amend the statement of claim to show that the right to sue was preserved by coming within one of the exceptions. The plaintiff not having shown the right to sue was so preserved I hold the Court had no jurisdiction to entertain the suit.
>
> The Registrar of this court had no power to enter judgment, the plaintiff's right to claim being on the face of it barred by the provisions of the Act."

He then set aside the interlocutory judgment and dismissed the appellant's claim.

The appellant appeals on the following main grounds:

1. The issue of limitation must be raised by the defendant and must be specifically pleaded, otherwise it can be considered as being waived.
2. The limitation does not go to jurisdiction but is only a procedural matter.
3. The learned judge erred in setting aside the interlocutory judgment.

I think it will be convenient to refer to the relevant enactments. I will first refer to the Limitation Act (Cap. 70).

S. 3 reads:

> "The provisions of this Part of this Act shall have effect subject to the provisions of Part III of this Act which provide for the extension of the periods of limitation in the case of disability, acknowledgement, part payment, fraud and mistake.

S. 4 (1):

The following actions shall not be brought after the expiration of six years from the date on which the cause of action arise, that is to say–

> (*c*) actions founded on contract or tort"

and then follows a proviso which provides that in an action for damages for personal injury the period would be three and not six years.

Another relevant enactment is the Civil Procedure Code:

O. 7, r. 6 of the Rules reads:

> "Where the suit is instituted after the expiration of the period prescribed by the law of limitation the plaint shall show the grounds upon which exemption from such law is claimed."

R. 11 of the same Order reads:

> "The plaint shall be rejected in the following cases:
>
> . . . (*d*) where the suit appears from the statement in the plaint to be barred by law."

A plaint which is barred by limitation is a plaint "barred by law". Reading these provisions together it seems clear to me that unless the appellant in this case had put himself within the limitation period by showing the grounds upon which he could claim exemption the court "shall reject" his claim. The appellant was clearly out of time, and despite an opportunity afforded him by the judge, he did not show what grounds of exemption he relied on, presumably because none existed. The Limitation Act does not extinguish a suit or action itself, but operates to bar the claim or remedy sought for, and when a suit is time-barred, the court cannot grant the remedy or relief.

In my view the judge in the circumstances should have rejected the plaint under O. 7, r. 11 of the Civil Procedure Code, instead of dismissing it. However, in this case, before the matter came to the judge, an interlocutory judgment in the appellant's favour had already been entered. That had complicated matters. Nevertheless a plaint can be rejected "at any stage" of the suit, provided it is rejected as a whole – see Chitaley & Rao, *Commentary on Indian Code of Civil Procedure*, 4th Ed., p. 1699 – referring to O. 7, r. 11 (identical to the Uganda Provisions). It is true that the judge here "dismissed" the appellant's claim. If he had only "rejected" the plaint, the appellant would not, under O. 7, r. 13, be precluded from presenting a fresh plaint in respect of the same cause of action. However this right of presenting a fresh claim is illusory. It is obvious the appellant could not show any ground on which he could claim exemption from the limitation provisions, and the appellant could not have successfully presented a fresh claim in any event. The judge's dismissal of the claim therefore had not caused any prejudice. It is perhaps unfortunate that the judge had used the words "the court had no jurisdiction to entertain the suit". It is clear that the court had jurisdiction; what the judge meant was that he had no power to grant any relief as the remedy was barred by limitation. The judge was bound to raise the issue of limitation as the plaint on the face of it, appeared "to be barred by any law" in the words of O. 7, r. 11 (*d*). As the judge was barred from granting any relief or remedy, the interlocutory judgment of the registrar, which was a step towards granting such relief, was rightly set aside.

Although the judge did not act under the provisions of O. 7, r. 11, what he did produced the same practical results. It would be futile to remit the matter to the High Court to deal with, and no useful purpose would be served, as the practical results would be inevitably the same. Taking these matters into consideration, I think the most suitable course to adopt would be to dismiss the appeal. I would therefore dismiss the appeal with costs.

Law Ag V-P: The main question in this appeal is whether the trial judge was right, in the circumstances of this case, in holding that the High Court had no jurisdiction to entertain an action for damages for personal injuries which was brought after the expiration of the period of limitation prescribed therefore.

An action founded in tort to recover damages in respect of personal injuries, such as the action the subject of this appeal, shall not be brought after the expiration of three years from the date on which the cause of action arose, see s. 4 (1) of the Limitation Act (Cap. 70). The plaint in the action the subject of this appeal was filed on 26 May 1971. The accident, the cause of action, occurred on 2 September 1966. The action was accordingly brought more than 4 years and 8 months after the cause of action, and was barred by limitation. This was not appreciated when interlocutory judgment was entered in default of appearance, under O. 9, r. 6 of the Civil Procedure Rules; but when the action came before Mead, J. for assessment of damages, the judge decided that the High Court had no jurisdiction to entertain the suit, that the interlocutory judgment was a nullity, and he dismissed the appellant's claim.

Mr. Mugenyi for the appellant put forward several grounds of appeal of considerable merit. He submitted that the Limitation Act was procedural in nature, and did not oust the jurisdiction of the High Court to entertain an action brought out of time. He submitted that the words "shall not be brought" in s. 4 of the Limitation Act should not be construed as mandatory, as an action could be brought outside the period of limitation if it could be brought within a recognised period of exemption, such as disability, so that even if prima-facie time barred, the court still had jurisdiction to entertain it. Mr. Kateera for the respondent pointed out that by O. 7, r. 6:

> "Where a suit is instituted after the expiration of the period prescribed by the law of limitation the plaint shall show the grounds upon which exemption from such law is claimed."

The plaint in this case shows no such grounds, and it is common ground that there are none. By O. 7, r. 11:

> "The plaint shall be rejected in the following cases–
>
> . . . (*d*) where the suit appears from the statement in the plaint to be barred by any law."

This is the position here, clearly the plaint should have been rejected. I have no doubt that s. 4 of the Limitation Act and O. 7 of the Civil Procedure Rules must be read together. The effect then is that if a suit is brought after the expiration of the period of limitation, and this is apparent from the plaint, and no grounds of exemption are shown in the plaint, the plaint must be rejected. That is what I think the judge meant when he held that the High Court had no jurisdiction to entertain the suit. His terminology may not have been exact, but he arrived at the right result. For these reasons I agree with Mustafa, J.A. that this appeal fails, and should be dismissed with costs, and it is ordered accordingly.

Lutta JA: I have had the advantage of reading the judgment of Mustafa, J.A. with which I agree and have nothing to add.

Appeal dismissed.

For the appellant:
Y Mugenyi (instructed by *Mugenyi & Co*, Kampala)

For the respondent:
J Kateera (instructed by *Hunter & Greig*, Kampala)

Republic v Abdalla and others
[1972] 1 EA 68 (CAD)

Division:	Court of Appeal at Dar Es Salaam
Date of judgment:	13 December 1971
Case Number:	112/1971 (13/72)
Before:	Sir William Duffus P, Lutta and Mustafa JJA
Sourced by:	LawAfrica
Appeal from:	High Court of Tanzania – Kwikima, Ag. J

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[1] Criminal Practice and Procedure – Forfeiture – Authority for – Contained in the section – No further authority required – National Agricultural Products Board (*Transport Control*) *Order* 1969, *para.* 8 (*T.*).

[2] Criminal Practice and Procedure – Forfeiture – Reasons for – Should be given.

Editor's Summary

On the conviction of the respondents on their plea of guilty, the magistrate asked whether they had

anything to say why the produce, the subject matter of the charges of illegal transportation of agricultural produce, should not be forfeited. They offered no reason and the magistrate ordered its forfeiture, as he had a discretion to do. On first appeal the judge held that the combination of fines and forfeiture were excessive for a statutory offence involving no moral turpitude, and that the order should have shown the authority under which it was made.

On further appeal:

Held –

(i) the right to order forfeiture was contained in the paragraph under

which the charge was laid and no further authority for forfeiture was required (*Ngulila Mwakanyemba v. Republic* (2) distinguished);

(ii) it is preferable for the court to state why it makes an order of forfeiture, but failure to do so is not fatal to the order;

(iii) the respondents showed a flagrant disregard of the law and forfeiture had been properly ordered.

Appeal allowed: forfeiture order restored.

Cases referred to in judgment:

(1) *Yakobo Mbugeramula v. R.* (1951) 18 E.A.C.A. 207.

(2) *Ngulila Mwakanyemba v. Republic* (Case 314, 1968 H.C.D.).

Judgment

The considered judgment of the court was read by **Sir William Duffus P:** This is a second appeal on a question of law by the Director of Public Prosecutions against a decision of a judge of the High Court sitting in his appellate jurisdiction on the judgment of the district magistrate at Same. The judge set aside the forfeiture orders made by the district magistrate in five criminal prosecutions under the National Agricultural Products Board Act (Cap. 567), for a breach of the National Agricultural Products Board (Transport Control) Order 1969.

Para. 3 of the Order prohibits the transportation of any agricultural product, to which the Agricultural Products Board Act applies, exceeding 30 kilos in weight without a permit from the Board and then in accordance with the terms and conditions specified in the permit. In this case the product was rice. Para. 8 of the Order makes it an offence to contravene any provision of the Order and states–

> "Any person who contravenes any provision of this Order shall be guilty of an offence and shall be liable on conviction to a fine not exceeding two thousand shillings or to imprisonment for a term not exceeding six months, or to both such fine and such imprisonment: and in the case of a second or subsequent offence, to a fine not exceeding four thousand shillings or to imprisonment for a term not exceeding one year, or to both such fine and such imprisonment. And the court convicting him may, in addition to such fine or term of imprisonment, order that the agricultural product in respect of which the offence is committed shall be forfeited to the United Republic."

The order for forfeiture is not mandatory but lies in the discretion of the trial court. There were five separate charges in this matter. In each case the defendants, now the respondents in this appeal, pleaded guilty and the procedure followed in all five cases was similar in each case. The respondents pleaded guilty and the facts were stated by the prosecution and accepted by the defence and then the magistrate, either before or after fining the defendants, called upon each defendant to show cause why an order for forfeiture of the produce, the subject of the charges, should not be made. And again, each of the defendants offered no reason why forfeiture should not be ordered. It is agreed that the procedure before the magistrate was in order and properly carried out and the question both in the appeal before the High Court and before us is whether the district magistrate properly exercised his discretion in ordering the forfeiture of the produce.

In setting aside the order of forfeiture the appellate judge seemed to have been

influenced first by the fact that the cumulative effect of the fines and the forfeiture were, he said, "grossly excessive for a statutory offence involving no moral turpitude". We quote from his judgment–

> "The produce could have been forfeited by a court judicially addressing itself to the weight of the penalty appropriate in such cases. As already shown above, the resultant penalties are so heavy that they strike one as grossly disappropriate for any offence, let alone a statutory offence, The fines of Shs. 250/- were by themselves high enough to warrant interference by this court. With the forfeitures, their cumulative effect is so devastating as to leave one almost speechless. Accordingly this appeal succeeds and it is hereby allowed."

The judge, acting on the authority of the decision in the case of *Ngulila Mwakanyemba v. Republic* (Case 314, 1968 H.C.D.) said that the forfeiture order should also have shown the authority under which it was made and should also have contained sufficient reasons to show that the magistrate had applied his mind judicially as to whether or not to make the order.

Mr. Umezurumba, for the Director of Public Prosecutions, complains against all the reasons given by the judge for setting aside the forfeiture orders. He submitted that the district magistrate had followed the correct procedure in law and had ordered the forfeiture in the exercise of his judicial discretion and he asked this court to restore the district magistrate's order. Mr. Chakera, who appeared for the respondents, supported the judgment of the High Court and he submitted that the district magistrate had not exercised his discretion judicially as he appeared to have cast the onus on the defendants to show cause why he should not order the forfeiture.

The order of forfeiture was clearly a judicial discretion given to the trial court. The principles governing the exercise of judicial discretion have been widely dealt with in numerous cases. In the case of *Yakobo Mbugeramula v. R.* (1951) 18 E.A.C.A. 207 at p. 210 this court, in considering the order of forfeiture under the Arms and Ammunition Ordinance of Uganda, said–

> "In short the exercise of discretion remains a matter dependent upon the facts of each particular case which must be exercised judicially in the light of such facts."

It would be wrong to lay down any definite rules as to the exercise of discretion but the following quotation from *Stroud's Judicial Dictionary* (3rd Ed., Vol. I, "Discretion") based on the cases therein set out, in our view aptly sets out some of the general rules that do apply.

> "Where something is left to be done according to the discretion of the authority on whom the power of doing it is conferred, the discretion must be exercised honestly and in the spirit of the statute, otherwise the act done would not fall within the statute. 'According to his discretion', means, it is said, according to the rules of reason and justice, not private opinion."

We would here consider the case of *Ngulila Mwakanyemba v. Republic* quoted by the judge. We have read this judgment, which is a short judgment of Duff, J. in his revisional jurisdiction in Crim. Rev. 48 of 1968. In that case there was no provision for forfeiture in the offence charged and the judge said–

> "Every forfeiture order should specify the authority under which it is made and should contain sufficient reasons to show that the magistrate applied his mind judicially to the question whether or not the order should be made."

The facts in this case are quite different in that here the right to order forfeiture

in each of the five cases is contained in the paragraph under which the defendants were charged and here clearly there was no necessity for the magistrate to again repeat that he made the order for forfeiture under that paragraph when, in fact, he was clearly sentencing the defendants under the same paragraph. We agree that the proceedings should show that the magistrate has applied his mind judicially in dealing with the question of forfeiture but in this case, as we have pointed out, the magistrate in fact showed in his record that he called upon each of the defendants to show cause against the forfeiture before he proceeded to make the order of forfeiture. We think it would be preferable for the court not only to show that it is considering whether to make the order for forfeiture but also to state why it made the order but this is not a fatal defect. Each case must be considered in its own particular circumstances and in this case, with respect to the views of the judge, the facts show an apparent flagrant disregard of the law by each of the defendants. The National Agricultural Products Board Act, together with the National Products Board (Control and Marketing) Act 1962, are both acts to control and regulate the production and marketing of agricultural products and the particular order in this case – the National Agricultural Products Board (Transport Control) Order 1969, exists to carry out the provisions of these laws. All these laws and the order were fully considered and brought into force by the Government for the national prosperity and the general good of all the people. In these five cases the facts show that these appellants have, in fact, completely disregarded the law and have made no attempt to explain their acts and really put forward no plea in mitigation. The greater the amount of the produce involved the greater was the attempt to evade the law. In each of these cases a considerable amount of produce was involved and in four of the cases the offence took place at night, when the transport of produce is forbidden. In these circumstances we are of the view that the district magistrate did not inflict an excessive fine. The fine was only Shs. 250/- on each defendant and the maximum was a fine of Shs. 2,000/- or a sentence of six months' imprisonment or both the fine and imprisonment. We are also satisfied that the district magistrate's order of forfeiture was made only after he had considered all the facts before him and was done in the exercise of his judicial discretion and should not therefore have been set aside by the High Court.

We therefore allow this appeal and quash the order of the High Court setting aside the district magistrate's order of forfeiture in each of the five cases and we order that the district magistrate's Order of forfeiture be restored in each case.

Order accordingly

For the appellant:
SO Umezurumba (State Attorney)

For the respondents:
MM Chakera (instructed by *Baloo Patel, Chakera & Co*, Dar es Salaam)

Nathoo v Republic
[1972] 1 EA 72 (CAD)

Division:	Court of Appeal at Dar Es Salaam
Date of judgment:	14 December 1971
Case Number:	129/1971 (16/72)
Before:	Sir William Duffus P, Lutta and Mustafa JJA
Sourced by:	LawAfrica

Appeal from: High Court of Tanzania – Saidi, C.J

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[1] Criminal Practice and Procedure – Sentence – Enhancement – Heard by judge who issued notice – No failure of justice.

[2] Criminal Practice and Procedure – Sentence – Minimum sentence – Minimum Sentences Act (*Cap.* 526), (*T.*) *applies to offences under the Prevention of Corruption Act* 1971 (*T.*).

[3] Statute – Construction – Substitution of reference in earlier statute – Interpretation and General Clauses Ordinance (*Cap.* 1), *s.* 10 (*T.*).

Editor's Summary

The appellant was convicted of a corrupt transaction contrary to s. 3 of the Prevention of Corruption Act 1971, and his sentence was enhanced by the High Court to the minimum provided by the Minimum Sentences Act (Cap. 526).

On appeal it was contended for the appellant that the enhancement application should not have been heard by the judge who issued the enhancement notice, that the Prevention of Corruption Act 1971 reintroduced the option of a fine, that the Minimum Sentences Act and the Prevention of Corruption Act 1971 were repugnant and that therefore the later Act should prevail. For the respondent it was contended that s. 10 (1) of the Interpretation and General Clauses Ordinance (Cap. 1) applied so as to substitute references to the 1971 Act for references to the previous Act in the Minimum Sentences Act.

Held – (**Lutta JA** dissenting)

(i) although the notice of enhancement of sentence might have been differently worded there was no failure of justice;

(ii) the provisions of s. 10 of the Interpretation and General Clauses Ordinance were specifically saved by s. 20 (3) of the Prevention of Corruption Act 1971;

(iii) accordingly references to the earlier Act in the Minimum Sentences Act were to be read as references to the 1971 Act;

(iv) the Prevention of Corruption Act 1971 increased the maximum penalties but fixed no minimum punishments: accordingly there is no conflict between it and the Minimum Sentences Act.

Appeal dismissed.

Cases referred to in judgment:

(1) *The King v. John Davis* (1783) 168 E.R. 238.

(2) *Crawford v. Spooner* (1846) 13 E.R. 582.

(3) *State of Tasmania v. Commonwealth of Australia and State of Victoria* (1904) 1 C.L.R. 329.

(4) *Bennett v. Minister for Public Works* (1908) 7 C.L.R. 372.

(5) *Richardson v. Austin* (1911) 12 C.L.R. 463.

(6) *Jairamdas v. Regional Transport*, [1957] A.I.R. Rajasthan 312.

(7) *Kampila v. Republic* (1967) 4 ALR Mal 405.

Judgment

The considered judgment of the majority of the court was read by **Sir William Duffus P:** The appellant was charged in the resident magistrate's court in Dar es Salaam with the offence of a corrupt transaction contrary to s. 3 (2) of the Prevention of Corruption Act 1971 (to which we shall hereinafter refer to as "the Act"). The appellant pleaded guilty to the charge and was convicted but before sentence was passed there was argument as to whether the Minimum Sentences Act (Cap. 526) applied to the Act. The magistrate held that the former did not apply to the Act and passed a sentence of a fine of Shs. 3,000/- or six months in default and ordered the forfeiture of Shs. 4,000/- which the appellant had offered as a bribe. The Deputy Public Prosecutor complained against the sentence on the ground that the offence charged under s. 3 (2) of the Act was a scheduled offence under The Minimum Sentences Act and therefore the magistrate should have imposed a minimum sentence of two years' imprisonment with 24 strokes. The Chief Justice, exercising powers conferred on the High Court by s. 327 of the Criminal Procedure Code (Cap. 20) examined the record of the proceedings in the resident magistrate's court and directed that a notice of enhancement should be issued to the appellant. The Chief Justice's direction was in the following terms–

> "There will be revision to pass a minimum sentence as the offence falls under the Minimum Sentences Act. Notice of enhancement should therefore issue to the accused."

In exercising the powers of the High Court under s. 329 of the Criminal Procedure Code, the Chief Justice set aside the fine of Shs. 3,000/- and imposed a sentence of two years' imprisonment with 24 strokes after having held that the offence of corrupt transaction contrary to s. 3 (2) of the Act falls under the Minimum Sentences Act.

Before us, Mr. Kapila, for the appellant began by complaining that justice in the High Court was not done in that the issue to be resolved was already decided as the notice of enhancement of sentence was issued on the basis that the offence with which the appellant was charged fell under the Minimum Sentences Act and that as the Chief Justice issued the directive to be served on the appellant, he should not have heard the case. Mr. Kapila argued that the order to take the appellant into custody was in violation of s. 329 (2) of the Criminal Procedure Code as the appellant had not been given an opportunity of being heard. Mr. Kapila drew attention to the differences in the wording of s. 3 of the Act and s. 3 of the Prevention of Corruption Act (Cap. 400) and submitted that the effect implies an amendment of the Prevention of Corruption Act by the Act and that the latter re-introduced the option regarding the fine and did not provide for the minimum term of imprisonment. He further submitted that the Act and the Minimum Sentences Act were repugnant and thus the later provision, that is, the Act, must prevail. He argued that the Minimum Sentences Act is a special Act and so is the Act in that it relates specifically to corruption and so if the two provisions cannot stand together the earlier is abrogated by the later. He relied on the cases of *Bennett v. Minister for Public Works* (1908) 7 C.L.R. 372; *State of Tasmania v. Commonwealth of Australia and State of Victoria* (1904) 1 C.L.R. 329; *Jairamdas v. Regional Transport*, [1957] A.I.R., Rajasthan 312, and *Crawford v. Spooner* (1846) 13 E.R. 582. He also submitted that where a later enactment prescribes a more lenient punishment than the old enactment providing for a more harsh punishment then the new later enactment ought to prevail. He relied on the cases of *The King v. John Davis* (1783) 168 E.R. 238, *Richardson v. Austin* (1911) 12 C.L.R. 463, and *Kampila v. Republic* (1967) 4 ALR Mal 405.

Mr. King, for the Republic, relying on s. 327 and 330 of the Criminal Procedure Code, submitted that the procedure in the case of revision is different

from that of an appeal. He argued that the Minimum Sentences Act is not an amending Act and that it only restricted the provisions in the Prevention of Corruption Act in regard to discretion in sentencing by providing for minimum sentences. He submitted that the Act is a consolidating Act – it consolidates the Prevention of Corruption Act and that there was really no material difference between the two Acts.

With regard to Mr. Kapila's complaint, by s. 327 of the Criminal Procedure Code, power is conferred on the High Court to call for and examine the record of any criminal proceedings before any subordinate court in order to satisfy itself as to the legality, correctness or propriety of any sentence imposed on a person convicted of any offence. If after examining the record the High Court considers that the case is a proper one for revision under s. 329 of the Criminal Procedure Code, it will cause a notice of enhancement of sentence to issue for that purpose. In exercising its powers on revision the High Court exercises powers conferred on it by ss. 319, 321 and 322 of the Criminal Procedure Code. The notice of enhancement of sentence was served on the appellant, who appeared and was represented by an advocate at the hearing. Although the notice of enhancement of sentence might have been differently worded we are satisfied that there was no breach of natural justice and that there was no failure of justice.

The main issue in the appeal is this. Do the provisions of the Minimum Sentences Act apply to the Act? Mr. King for the Republic has submitted that they do, on the ground that s. 10 (1) of the Interpretation and General Clauses Ordinance (Cap. 1) is applicable here. It is clear that the provisions of the Minimum Sentences Act govern and control punishment in respect of a corrupt transaction contrary to s. 3 (2) of the Prevention of Corruption Act. Mr. King submitted that the Minimum Sentences Act is a substantive Act standing by itself and is a special piece of legislation dealing with corruption and certain other offences scheduled thereunder in a special way. He submitted that the Minimum Sentences Act did not amend the Prevention of Corruption Act; it merely restricted the court's discretion in imposing sentences in certain instances. The Minimum Sentences Act was appended to the Prevention of Corruption Act and to other Acts and Ordinances mentioned therein in relation to minimum sentences to be imposed.

The Act repealed and re-enacted the Prevention of Corruption Act in 1971, and for an offence contrary to s. 3 (2) the punishment was increased to a maximum of 10 years' imprisonment or a fine of Shs. 50,000/-, or to both. Mr. Kapila's submission was that the Act restored or re-introduced the power of the court to impose a fine only. He stated that the Act was a later enactment, and its effect was to amend the provisions of the Prevention of Corruption Act as restricted and controlled by the Minimum Sentences Act for an offence contrary to s. 3 (2). He conceded that if the provisions of s. 10 (1) of the Interpretation and General Clauses Act apply then the Minimum Sentences Act would still control and govern the punishment provisions of the Act. He however submitted that s. 10 (1) had no application. He contended that the provisions regarding sentence in the Prevention of Corruption Act as modified, or as Mr. Kapila maintained, amended by the Minimum Sentences Act were inconsistent with or repugnant to those in the Act, and the provisions in the Act, being a later enactment, must prevail.

He also submitted that the Minimum Sentences Act only referred to the Prevention of Corruption Act in its punishment section, and would not be "references in the same or any other enactment to the provision so repealed" in terms of s. 10 (1) of the Interpretation Ordinance. He relied mainly on the case of *Bennett v. Minister of Public Works* (*supra*) for this proposition. He also submitted that in dealing with penal statutes, if two constructions are possible, then the one favourable to an accused should be adopted.

S. 10 (1) of the Interpretation and General Clauses Ordinance (Cap. 1) provides as follows–

> "Where an Ordinance repeals and re-enacts, with or without modification, any provision of a former enactment, references in the same or any other enactment to the provision so repealed, shall, unless the contrary intention appears, be construed as references to the provision so re-enacted."

Mr. King submitted that references to the Prevention of Corruption Act in the Schedule to the Minimum Sentences Act are also references to the Act by virtue of this section. Now the Act repeals but re-enacts the provisions of the Prevention of Corruption Act with modification. S. 3 of the Act re-enacts the main provisions of s. 3 of the former. The basic offence remains the same and the main difference is that the maximum punishment is increased.

The provisions of s. 10 (1) of the Interpretation Ordinance clearly apply to the Act. There would be no doubt about this but to make this very clear s. 20 (3) of the Act specifically states–

> "The provisions of sub-s. (2) shall be in addition to and not in substitution of the provisions of s. 10 of the Interpretation and General Clauses Ordinance."

The Act must therefore be read as if there was a specific provision that the reference in paragraph 7 of Part I of the Schedule to the Minimum Sentences Act to the offence of taking part in a corrupt transaction contrary to s. 3 of the Prevention of Corruption Act, shall, unless the contrary intention appears, be a reference to the offence of taking part in a corrupt transaction contrary to s. 3 of the Act.

To decide this we have to consider the provisions of the Minimum Sentences Act and its purpose and intention. This Act was obviously brought in to ensure that the courts passed adequate sentences in the offences specified. This statute was intended to remedy a social condition existing at the time in the community and was an endeavour to at any rate lessen the prevalence of the offences set out in it. It does not amend the scale of punishment but it does fix the minimum sentence. The new Act re-enacts with modifications the scale of punishment, it fixes a higher scale but does not fix a minimum.

We can find no conflict between the provisions of the Act and those of the Minimum Sentences Act. The Act sets out the punishment for the offences but it does not fix the minimum and is in no way repugnant to the provisions of the Minimum Sentences Act, which is a special act brought into force to remedy conditions existing at the time, and this Act is still in force to meet the conditions existing at the present time.

Each case must be considered in the circumstances of the Statutory requirements applicable to it. The Australian case of *Bennett v. Minister for Public Works* which was one of those quoted to us at length was with respect quite different from the facts and the law in this case.

The provisions of the Minimum Sentences Act remain the law of the land and have not been repealed or amended by the Act. By virtue of the provisions of s. 10 (1) of the Interpretation and General Provisions Ordinance the minimum sentences specifically applied to the offence in this case.

With respect we entirely agree with the interpretation of the Chief Justice.

Appeal dismissed.

For the appellant:
AR Kapila and *M Raithatha*

For the respondent:
N King (Senior State Attorney)

Broadways Construction Co v Kasule and others
[1972] 1 EA 76 (CAK)

Division:	Court of Appeal at Kampala
Date of judgment:	22 December 1971
Case Number:	39/1971 (18/72)
Before:	Law Ag V-P, Lutta and Mustafa JJA
Sourced by:	LawAfrica
Appeal from:	High Court of Uganda – Goudie, J

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[1] Land – Mailo land – Consent not obtained to transaction – Contract illegal – Land Transfer Act (*Cap*. 202), *s*. 2 (*U*.).

[2] Land – Mailo land – Consent to transaction obtained subsequently – No effect – Land Transfer Act (*Cap*. 202), *s*. 3 (*U*.).

[3] Restitution – Illegal contract – Money paid under – Not recoverable.

Editor's Summary

The respondents were the executors of a deceased who had agreed to lease mailo land to the appellant, a non-African. The appellant alleged that the deceased had agreed to obtain the necessary consent of the Minister to the transaction. The appellant took possession of the land but the Minister's consent was not obtained until more than a year later. Thereafter the deceased sold the land to a third party. The appellant sued the respondents for damages for breach of contract and alternatively for the recovery of sums paid as money had and received. The High Court held that the transaction was riddled with irregularities and dismissed the case.

On appeal it was contended for the appellant that the contract became effective when consent was granted, that the contract was subject to an oral agreement to obtain consent, and that even if the contract was vitiated a claim for money had and received would lie.

Held –

(i) the Land Transfer Act makes illegal all taking of possession and all contracts made without the consent of the Minister;

(ii) the contract was void *ab initio* and the subsequent consent had no effect (*Mistry Amar Singh v. Kulubya* (2) followed; *Devji v. Tarmohamed* (4) and *Denning v. Edwardes* (3) distinguished);

(iii) no money paid under an illegal contract may be recovered.

Appeal dismissed.

Cases referred to in judgment:

(1) *Melliss v. Shirley Local Board* (1885) 16 Q.B.D. 446.

(2) *Gordon v. Chief Commissioner of Metropolitan Police*, [1910] 2 K.B. 1080.

(3) *Denning v. Edwardes*, [1960] E.A. 755.

(4) *Devji v. Tarmohamed*, [1960] E.A. 1022.

(5) *Mistry Amar Singh v. Kulubya*, [1963] E.A. 408.

Judgment

The following considered judgments were read. **Lutta JA:** The appellant (to whom I shall refer hereinafter as “the plaintiff”) sued the respondents as executors of the will of Besweri Kisalita Mulyanti (to whom I shall refer hereinafter as “the deceased”) for Shs. 10,500/- as money had and received by the deceased for the use of the plaintiff and for damages for breach of contract and for an injunction to restrain the respondents from administering

the deceased's estate until the plaintiff's claims are satisfied. The plaintiff alleged in its plaint that on or about 28 July 1967 the deceased agreed to give a lease to it in respect of mailo land measuring approximately 2.09 acres comprised in F.C. No. 19650 Plot No. 222, Mailo Register Vol. 1126, Folio 7, at a premium of Shs. 8,000/-, which was subsequently increased to Shs. 10,000/-. The plaintiff further alleged in the plaint that the deceased orally agreed to grant a lease and to obtain the consent of the Minister of Mineral and Water Resources under the Land Transfer Act (Cap. 202) (hereinafter referred to as the Act) thereto and to effect registration of the same, and that although the consent was obtained the deceased in breach of the agreement sold the said mailo land on 29 October 1968 to one Godfray Lule and consequently the lease could not be registered. In their defence the respondents stated that the contract entered into between the plaintiff and the deceased was done in contravention of s. 2 of the Act and therefore it was an illegal contract which is not enforceable; they denied that the contract was subject to the condition of obtaining the Minister's consent under the Act. The trial judge held that the whole transaction was riddled with illegalities and dismissed the suit. The plaintiff now appeals to this court against that decision on three grounds, the main ground being that the learned judge erred in holding that the plaintiff's claim was based on an illegal contract.

Mr. Korde, for the plaintiff, argued that when the Minister's consent was granted on 8 October 1968 the contract between the deceased and the plaintiff became effective and therefore the subsequent sale of the said mailo land to Godfray Lule on 29 October 1968 was a breach of that contract. On the question of illegality of the contract, Mr. Korde argued that a contract expressed to be subject to the Minister's consent is not within the mischief of s. 2 of the Act, as it is a contingent contract – which is inchoate at the time it is made; it became choate and effective as soon as the consent was obtained. Relying on the cases of *Devji v. Tarmohamed*, [1960] E.A. 1022 and *Denning v. Edwardes*, [1960] E.A. 755 he submitted that the test was whether the contract was valid at the time it was made and that in the instant case the contract between the deceased and the plaintiff was a valid contract at the time it was made, as the contract to enter into possession is not in itself illegal; it is possession without consent which is illegal, and in any event an offence committed subsequent to a valid contract cannot vitiate the contract. He also submitted that even if illegal possession vitiated the contract, the claim for money had and received was not affected by the illegality of possession.

Mr. Binaisa, for the respondents, relying on the case of *Mistry Amar Singh v. Kulubya*, [1963] E.A. 408 submitted that the object of the Act is to protect Africans by regulating any transfer of mailo land and by controlling the sale of mailo land to non-Africans as a matter of public policy and thus the contract in the instant case was illegal as the Minister's consent had not been obtained as required by s. 2 and as the lease, which was void ab initio, could not be varied by an oral agreement purporting to incorporate the Minister's consent as a condition of the lease. Mr. Binaisa further submitted that a contract to take mailo land on lease without an application for the Minister's consent is illegal and that in any event the contract, if it is subject to the consent, must expressly state that it is contingent upon the consent being obtained.

The issue which arises in this appeal is whether the contract between the deceased and the plaintiff is illegal and void ab initio and consequently the plaintiff cannot recover moneys paid to the deceased under the illegal contract.

S. 2 of the Act (omitting the provisos which are not relevant to this case) provides as follows:

> "No non-African or any person acting as his agent shall without the consent in writing of the Minister occupy or enter into possession of any land of which an African is registered as proprietor (otherwise than by

> receiving rents and profits payable by non-Africans who have gone into occupation or possession with the consent of the Minister) or make any contract to purchase or take on lease or accept a gift inter vivos or a bequest of any such land or of any interest therein other than a security for money:"

The wording of this section is very wide indeed and clearly shows that the intention of the legislature was to prohibit both the occupation or entering into possession by a non-African of mailo land whose registered proprietor is an African, by or through any transaction, whatsoever, to which the Minister has not given his consent, and to make any contract to purchase or to take on lease or accept any interest in the same without the consent of the Minister. In other words, the wording of s. 2 is so wide as to render any transaction which does not have the Minister's consent illegal. A breach of s. 2 becomes punishable under s. 4 (1). Thus to try to enforce a transaction or a contract which did not comply with the requirements of s. 2 would be trying to enforce an illegal transaction or contract. It is not disputed that the Minister's consent was obtained after a period of over one year (in fact 14 months) from the date of the contract and after the plaintiff had already taken or entered into possession of the said mailo land. Thus under s. 4 (1) the plaintiff had incurred liability for a criminal act and could have been prosecuted for a breach of s. 2. However, Mr. Korde contended that the plaintiff and the deceased orally agreed that the said contract would be subject to the condition of the deceased obtaining the Minister's consent. In other words, the contract was contingent upon the consent of the Minister being granted. Against this contention Mr. Binaisa argued that an oral contract cannot vary the terms of a contract in writing in respect of the sale or lease of land and submitted that the contract which must be in writing must expressly state that it is contingent upon the consent being obtained. The respondents, in their defence, denied that the contract was subject to the condition of obtaining the Minister's consent. Although the judge dealt with this matter, he did not make a finding as to whether or not the contract was contingent upon the consent of the Minister being obtained. It seems to me that a decision on this point was not necessary as the judge found–

(*a*) the plaintiff agreed to take on lease the said mailo land in respect of which it had paid all moneys due from it under the lease;

(*b*) the plaintiff was given full access to the said mailo land and a letter to establish its ownership;

(*c*) plaintiff had entered into possession of the mailo land and paid rent for some places to keep its plant; and

(*d*) the formal consent from the Minister was sought more than one year after (*a*), (*b*) and (*c*) above.

In my opinion whether or not the contract was contingent the plaintiff should not have agreed to take on lease the mailo land, paid rent and other moneys in respect of places to keep its plant and entered into possession of the land without first obtaining the Minister's consent. The plaintiff was all along in breach of s. 2 and in my view the Minister's consent subsequently given on 8 October 1968 did not expunge the plaintiff's liability for its criminal acts. The contract and the entering into possession of the land before the consent was given were prohibited by law and the contract was therefore void ab initio, and nothing that was done subsequently (that is, the granting of the consent by the Minister) had the effect of rendering it an enforceable contract, particularly in view of s. 4 (1).

In my view the cases of *Devji v. Tarmohamed* and *Denning v. Edwardes* are distinguishable in their details. In the former case the lease was entered into, or, rather, drawn up after the Governor's consent was granted and there was no prior occupation or entering into possession of the mailo land in question.

In the latter case there are material differences between the relevant Kenya Acts and the corresponding Uganda Act, the effect of which is to make the decision therein inapplicable in the instant case. In such circumstances the case of *Minstry Amar Singh v. Kulubya* is clear authority for holding that a non-African has no right without the Minister's consent to occupy or enter into possession of the land or to make any contract to take the land on lease.

The next question which then arises in the instant case is whether the plaintiff can recover moneys paid in pursuance of a contract which is clearly illegal. The plaintiff is a party to the illegal contract or transaction and it bases its claim on the same illegal contract. It is well settled that no action can be maintained on a contract which is prohibited by statute – see *Gordon v. Chief Commissioner of Metropolitan Police*, [1910] 2 K.B. 1080, and as was said by Bowen, L.J. in *Melliss v. Shirley Local Board* (1885) 16 Q.B.D. 446 at p. 454–

> ". . . . no man can recover in an action founded on that which is a breach of the provisions of a statute."

In my view the judge correctly held that the whole transaction was so riddled with illegalities that the court should not be made an instrument of enforcing obligations arising out of it, particularly when the plaintiff is implicated in the illegalities. In the circumstances I would dismiss the appeal with costs.

Law Ag V-P: I have read the judgment prepared by Lutta, J.A. I agree with it and cannot usefully add anything. There will be an order in the terms proposed by Lutta, J.A.

Mustafa JA: I have read and agree with the judgment prepared by Lutta, J.A. and concur in the order proposed by him.

Appeal dismissed.

For the appellant:
AK Korde (instructed by *Korde & Esmail*, Kampala)

For the respondents:
GL Binaisa, QC and *Miss Pradhan* (instructed by *Binaisa & Co*, Kampala)

Shah v Uganda Argus
[1972] 1 EA 80 (CAK)

Division:	Court of Appeal at Kampala
Date of judgment:	22 December 1971
Case Number:	44/1971 (19/72)
Before:	Law Ag V-P, Lutta and Mustafa JJA
Sourced by:	LawAfrica
Appeal from:	High Court of Uganda – Youds, J

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[1] Defamation – Privilege – Qualified – Public duty – To communicate government - inspired announcements to public – Privileged.

[2] Defamation – Privilege – Qualified – Alteration of report – Whether alterations germane and

reasonably appropriate.

[3] Defamation – Damages – Reduction – May not be reduced by circulation of rumours.

Editor's Summary

The appellant, together with other Asians, was arrested and detained under the Emergency Powers Act for reasons not disclosed to them. Two days later the respondent's newspaper published a report which stated that the Asians had been arrested in connection with an alleged passport and immigration racket and in respect of suspected illegal practices in the Immigration Department. Assistance of the public for the police was requested. The substance of the report originated from a release by the Ministry of Information which newspaper was specially asked to collect and which it was under a strong moral obligation to publish. The words passport and racket had been added to the release as reported for journalistic impact.

In the appellant's action for libel the trial judge found that the report referred to the appellant and was defamatory of him. He found that the report was published on an occasion of qualified privilege and that as it did not go beyond what was germane and reasonably appropriate, that privilege was not lost. In case he was wrong he assessed damages at Shs. 4,000/- and in so doing he took into account in mitigation the fact that rumours and gossip damaging to the appellant's reputation had been circulating in Kampala prior to the publication by the respondent.

On appeal the findings concerning qualified privilege and the assessment of damages were challenged.

Held –

(i) there is a moral and public duty to publish government announcements, provided that the matter concerned is of public concern and published for the public benefit;

(ii) the heading was correct and the article was on the whole a reasonably accurate paraphrase of the announcement and accordingly privilege was not lost;

(iii) (per Mustafa, J.A.) (obiter) a plaintiff's damages may not be reduced by reason of rumours and gossip circulating prior to the publication of the libel on him (*Associated Newspapers v. Dingle* (7) followed).

Appeal dismissed.

Cases referred to in judgment:

(1) *Allbutt v. General Council of Medical Education* (1889) 23 Q.B.D. 400.

(2) *Pullman v. Hill Ltd.*, [1891] 1 Q.B. 524.

(3) *Royal Aquarium v. Parkinson*, [1892] 1 Q.B. 431.

(4) *Nevill v. Fine Arts and General Insurance Co.*, [1895] 2 Q.B. 156.

(5) *Mangena v. Wright*, [1909] 2 K.B. 958.

(6) *Adam v. Ward*, [1917] A.C. 309.

(7) *Associated Newspapers v. Dingle*, [1962] 2 All E.R. 737.

(8) *London Association for Protection of Trade v. Greenlands*, [1916] 2 A.C. 15.

Judgment of the High Court, [1971] E.A. 363 upheld.

Judgment

The following considered judgments were read: **Mustafa JA:** On the 25 January 1968 the newspaper known as Uganda Argus published an article on its front page as a news item. The article was supposed to be a summary and edited version of a hand-out released by the Ministry of Information of the Uganda Government the previous day, 24 January 1968. The appellant complained that he was libelled in the article and sued the Consolidated Printers Ltd., Uganda Argus Newspapers Ltd. and Charles Harrison who were the printers, publishers and editor respectively of the Uganda Argus, claiming damages for the libel. The trial judge found that the publication was defamatory and that the publication referred to the appellant. He also found that the article was published on an occasion of qualified privilege and that the respondents were not actuated by malice. He dismissed the action of the appellant. He went on to find that if he was wrong in dismissing the action he would have assessed general damages at Shs. 4,000/-. From that judgment the appellant appeals.

There is no cross-appeal as regards the findings of the judge in respect of (1) that the publication was defamatory and (2) that it referred to the appellant. The appellant's appeal is based on two main grounds. The first ground of appeal is that the trial judge was wrong in holding that the article was published on an occasion of qualified privilege and secondly that even if it was, the privilege was destroyed on account of factual inaccuracy and material alterations which amounted to distortion constituting malice.

I think it is convenient at this stage to set out the hand-out released by the Ministry of Information and the article complained of. The hand-out reads as follows:

"UGANDA NEWS

Published by The Ministry of
Information Broadcasting &
Tourism
24 January 1968

A spokesman of the Ministry of Internal Affairs said today that ten Ugandans of Asian Origin had been apprehended in order to assist the Police in their enquiries relating to suspected illegal practices in the Immigration Department.

The spokesman also confirmed that the apprehension of those persons was related to matters concerning five immigration officers who have been suspended from the exercise of their duties.

He concluded by appealing to the public to render all possible assistance to the Police when approached for information in matters connected with this enquiry."

The article complained of as published in the Uganda Argus reads:

"ASIANS HELD

Ten Ugandan Asians have been arrested in connection with an alleged

> passport and immigration racket, it was disclosed yesterday.
>
> The ten have been arrested 'in order to help the police in their inquiries relating to suspected illegal practices in the Immigration Department', a Ministry of Internal Affairs spokesman said yesterday.
>
> He confirmed that the arrests were connected with the suspension from duty of five immigration officers.
>
> The Ministry appeals to the public to help the police when approached for information in matters connected with the inquiry."

Mr. Gautama for the appellant has submitted that the hand-out released by the Ministry of Information contained libellous and inaccurate matter. Evidence was led by the appellant to show that he was not arrested because of any connection with alleged illegal practices in the Immigration Department, that he was in fact detained under the Emergency Regulations and that he was given no other reason for his detention. Mr. Gautama submitted that if the hand-out released by the Ministry of Information was inaccurate and libellous, the respondents would be liable in damages for publishing such libellous matter. He submitted that Government pronouncements which are libellous are subject to the ordinary law of defamation, and a newspaper publishes such pronouncements at its own risk. The respondents did not seek to justify what they had published, and Mr. Gautama submitted that the respondents had not given any evidence of facts or circumstances creating the occasion which gave rise to qualified privilege. As such there was no basis for the existence of qualified privilege and the respondents therefore could not invoke that as a defence.

In this connection the judge has held that the newspaper article was published in the discharge of a public duty which all responsible newspaper proprietors and editors have to perform of keeping the general public informed of matters of public concern and interest. There was evidence that this was a special release by the Ministry of Information and that the respondent newspaper was specially asked by the Ministry to collect the release for publication. It was an important public announcement and although the respondent newspaper was under no physical obligation to print any Government or Ministry announcement, it was under a strong moral obligation to do so as the newspaper was a medium of mass information for the public of Uganda and the Government of Uganda relied on this newspaper for the propagation of its policies and public announcements. The judge held that in publishing the article the newspaper discharged a moral and public duty in communicating Government inspired announcements to the general public and the general public had a corresponding interest or duty to receive and read such information. The judge quoted from the case *Adam v. Ward*, [1917] A.C. 309 at p. 334–

> "A privileged occasion is . . . an occasion where the person who makes a communication has an interest or duty, legal, social or moral, to make it to the person to whom it is made and the person to whom it is so made has a corresponding interest or duty to receive it."

The judge came to the conclusion that in the circumstances the respondents, although having published a defamatory and an untrue article concerning the appellant, did not incur legal liability unless the appellant could prove malice. He held in effect that the publication of the article was on an occasion of qualified privilege. In the circumstances of this case the judge was quite justified in so finding. In this connection I refer to a head note in *Mangena v. Wright*, [1909] 2 K.B. 958 which reads:

> "A communication by a public servant of a matter within his own province concerning the conduct of a person who is for the time taking a public part, the matter being one of public interest as to which the public are entitled

> to information, may be a privileged communication on the part of that public servant, and, if sent by him to a newspaper and published therein, it may also be the subject of privilege in the proprietor of the newspaper, as that is the ordinary channel by means of which the communication can be made public."

Lopes, L.J. in *Allbutt v. General Council of Medical Education* (1889) 23 Q.B.D. 400 at p. 412 stated as follows:

> "The publication of a matter of a public nature and of public interest and for public information was privileged, provided it was published with the honest desire to afford the public information and with no sinister motive."

I think this was an occasion when the respondent newspaper had a moral duty to publish a matter of a public nature and of public interest and for public information, and qualified privilege attached to the publication. The first ground of appeal fails.

I will now deal with Mr. Gautama's submission that the qualified privilege attaching to the publication was destroyed because the newspaper article did not correctly represent what was stated in the Ministry's hand-out. He submitted that the newspaper article contained factual inaccuracies, was distorted and mutilated, and that excessive language was used and as a result there was a shift in emphasis and the general sense was substantially altered. He submitted that the newspaper had done so in order to increase its circulation and that would be evidence of indirect motive constituting malice. It will be necessary to compare the wording and sense in the Ministry's hand-out and the newspaper article. In the hand-out the first paragraph reads:

> "A spokesman of the Ministry of Internal Affairs said today that ten Ugandans of Asian Origin had been apprehended in order to assist the Police in their enquiries relating to suspected illegal practices in the Immigration Department."

In the article the first paragraph reads:

> "Ten Ugandan Asians have been arrested in connection with an alleged passport and immigration racket, it was disclosed, yesterday."

Mr. Gautama submitted that in the hand-out the word used was "apprehended" while in the article the word used was "arrested". Again in the hand-out the words used were "illegal practices in the Immigration Department" whereas in the article the words used were "passport and immigration racket". He submitted that the substitution of the words "arrested" for "apprehended" and "passport and immigration racket" for "illegal practices in the Immigration Department" was calculated to distort by exaggeration. He submitted that "arrested" would imply that the person had committed a criminal offence whereas "apprehended" would connote mere detention under the Emergency Regulations. He also submitted that "racket" bears a more sinister connotation than that attached to "illegal practices". He said in effect that the first paragraph in the article contained factual inaccuracies as compared with what was stated in the hand-out.

He also submitted that the alterations made by the newspaper had shifted the emphasis and substantially altered the sense. Reading the hand-out as a whole, the impression one gained would be that ten Asians were apprehended in order to help the police in their enquiries concerning some illegal practices in the Immigration Department concerning five suspended immigration officers. The emphasis there was on the five suspended immigration officers. Reading the

article the impression one gained would be that the Asians had been arrested because they were connected with an alleged passport and the immigration racket themselves, and the heading "Asians Held" would give emphasis to this impression.

Mr. Gautama submitted that the change of words and the shifting of the emphasis in the article had resulted in a significant alteration of the sense and the meaning as compared with the hand-out. The article therefore contained exaggerations and irrelevant matter and had also gone outside the scope of the privilege attached to it and to that extent it would not be protected. He submitted that if the article had merely reproduced the wording as contained in the hand-out, the respondents might have been entitled to the protection of privilege. Here the respondents had "spiced and garnished" and sensationalised the hand-out so as to distort its meaning, presumably because the respondents had wanted to increase the circulation of the newspaper. He submitted that this was evidence of indirect or improper motive amounting to malice which would destroy the protection of qualified privilege. He submitted that the respondents had published a garbled, exaggerated and altered account of the Ministry's hand-out.

The judge had dealt fully with this question of malice. He referred to a passage in the judgment of Lord Esher in *Nevill v. Fine Arts and Insurance Co*., [1895] 2 Q.B. 156 at p. 170–

> "There may be an excess of the privilege in the sense that something has been published which is not within the privileged occasion at all, because it can have no reference to it. . . . But when there is only an excessive statement having reference to the privileged occasion, and which therefore comes within it, then the only way in which the excess is material is as being evidence of malice."

The judge then dealt with the words "passport and immigration racket", and "illegal practices in the immigration department", and "apprehended" and "arrested" and asked himself the following questions (*a*) "have the defendants published something going beyond what was germane and reasonably appropriate to the occasion? (*b*) have the respondents published an article which has no relevance or reference to the privileged occasion, or is this article only an excessive statement within the privilege, the excessive language only being material as being possible evidence of malice"? The judge came to the conclusion that the newspaper article did not go beyond what was germane and reasonably appropriate to the occasion. He also came to the conclusion that the article contained nothing which had no relevance or reference to the privileged occasion, and that the most that could possibly be said against the article was that it was "an excessive statement" and made use of excessive language. He then dealt with the meaning of words like "racket" etc. and came to the conclusion that the respondents did not forfeit the privilege by using "picturesque and journalistic language and words when seeking to create the maximum impact upon and understanding by members of the public reading their article." Like the judge I do not think that the use of the words "arrested" for "apprehended" and "racket" for "illegal practices" by themselves amounted to such unnecessarily strong and excessive language as to amount to some evidence of malice. There must be extremely strong and entirely disproportionate language to displace the presumption of innocence in a matter which concerns qualified privilege. However, the submission by Mr. Gautama before this court, that there was a shift of emphasis and alteration of the sense because of the change in the words and of presentation, was not argued before the trial judge. I do not therefore have the benefit of his opinion on this point. Comparing the article and the hand-out it does seem at first sight that there was a shift of emphasis in the article. It would seem that the arrest of the ten Ugandan Asians

in connection with an alleged immigration racket was the primary item in the article, whereas in the hand-out the main item would seem to be the suspected illegal practices in the immigration department resulting in five of the immigration officers being suspended. However, even in the hand-out the only people who were apprehended were the ten Asians and they were apprehended in order to assist the police in their enquiries about the alleged illegal practices in the Immigration Department. In the article the heading was "Asians Held". I think the heading was accurate and although there was some shift in emphasis I cannot say that the general sense had in any material particular been altered. This is one of those difficult and border-line cases. Did the article shift the emphasis to such an extent that the general sense conveyed in the Ministry's hand-out had been altered? I must say I find this question rather difficult but on further consideration I am of the view that the article just stopped short of doing so. It was on the whole a reasonably accurate paraphrase of the contents in the hand-out. The trial judge had found that the defendants in publishing the article were "actuated by the best possible motives and had the honest desire to afford the public information and were seeking to assist the Government, police and general public in ridding Uganda of suspected illegal practices in the Immigration Department". I agree. I find that there was no evidence of indirect or improper motive to constitute malice and that in publishing the article the respondents were protected by qualified privilege which was in no way destroyed.

It is therefore unnecessary for me to deal with the ground of appeal relating to damages. Mr. Gautama has submitted that the judge had erred in principle in his provisional award of damages. I will only say this. If the judge had awarded reduced damages because the appellant's reputation had already been tarnished by reason of previous gossip or radio broadcasts then I think he was wrong in doing so, see *Associated Newspapers v. Dingle*, [1962] 2 All E.R. 737 at p. 754.

I would dismiss the appeal with costs with a certificate for two counsel.

Law Ag V-P: The facts and background relative to this appeal have been fully set out in the judgment prepared by Mustafa, J.A. and need not be repeated.

The trial judge found that the article, the subject of the appellant's suit for libel against the respondents, was defamatory of the appellant, and there has been no cross-appeal against this finding. However, he dismissed the suit, holding that the article was published on an occasion of qualified privilege, and that there was no evidence of malice or improper or dishonest motive on the part of the respondents such as to deprive them of the protection of that privilege. In the event of his being held wrong on appeal, he rightly considered the question of damages, and fixed the amount which he would have awarded, had the appellant's suit succeeded, at Shs. 4,000/-.

Mr. Gautama, for the appellant, relied on three main grounds of appeal. Firstly, he submitted that there was no evidence of circumstances pointing to the existence of facts supporting qualified privilege. Secondly, he submitted that even if the occasion was one of qualified privilege, the respondents had forfeited the protection of that privilege by reason of the alterations they made to the official communique (which I shall refer to hereinafter as the hand-out) when they reproduced it in edited form in the "Uganda Argus" newspaper (hereinafter referred to as the Argus). Thirdly, he submitted that the damages tentatively awarded by the judge were so inadequate as to amount to a totally erroneous estimate, and that the award was based on a wrong principle.

I will deal first with the question of qualified privilege. The editor of the Argus deposed that he received a special telephone call from an official of the

Ministry of Information, a department of the Uganda Government, informing him that an important announcement concerning irregularities discovered in relation to immigration matters had been made, and asking him to collect it. There was evidence that the Government relies on the various news-propagating media, such as the radio and newspapers, to bring to the attention of the public announcements considered to be of importance; and the editor of the Argus, whilst conceding that he was under no legal duty to publish this particular announcement, deposed that he felt under a strong moral obligation to do so. In the hand-out, the subject of this appeal, the public were asked to render all possible assistance to the police in their inquiries into the suspected illegal practices. The trial judge, after referring to such persuasive authorities as *Pullman v. Walter and Co.*, [1891] 1 Q.B. 524 and *Adam v. Ward*, [1917] A.C. 320, found that in publishing the article based on the hand-out, the respondents did so in discharge of the moral and public duty which they had to communicate government-inspired announcements to the general public, and that the general public had a corresponding interest or duty to receive and read the information contained in the article. He accordingly held that the occasion of the publication of the article was privileged. Mr. Gautama submitted that no solemnity or sanctity attaches to Government announcements, and that if they contain defamatory matter, a newspaper which publishes such announcements does so at its peril. He submitted that there was no authority for the proposition that a newspaper, which publishes a Government hand-out containing defamatory matter, can absolve itself from liability by relying successfully on the plea that the publication was made on an occasion of qualified privilege. It is, no doubt, often very difficult to determine whether a particular occasion is privileged or not. As Lord Buckmaster, L.C. said in *London Association for Protection of Trade v. Greenlands*, [1916] 2 A.C. 15 at p. 22:

> ". . . the circumstances that constitute a privileged occasion can themselves never be catalogued and rendered exact."

The facts of each case must be scrutinized in the light of its peculiar circumstances. In this case, the Government through a responsible officer had asked for publicity to be given to its hand-out, so that the assistance of the public be sought in connection with suspected illegal activities in a Government department. The Government and the public had a common and reciprocal interest to communicate and receive the information contained in the hand-out, as being for the common convenience and protection of society, see the speech of Lord Atkinson in *Greenland's* case. In the circumstances of the present case I have come to the same conclusion as the judge, that the article complained of was published on an occasion of qualified privilege. I consider that the publication in a newspaper of a notice or report at the request of a Government office or department is privileged, provided the matter concerned is of public concern and published for the public benefit. For these reasons I think that this part of the appeal must fail.

However, the protection of such privilege is destroyed if the plaintiff can show that publication was made maliciously, and this brings me to the second, and in my view most important, ground of appeal. Malice, in this connection, does not necessarily connote ill-will or spite; it will include any indirect or wrong motive. "A defendant is only entitled to the protection of the privilege if he uses the occasion in accordance with the purpose for which the occasion arose. He is not entitled to the protection of the privilege if he uses the occasion for some indirect or wrong motive" – per Lopes, L.J. in *Royal Aquarium v. Parkinson*, [1892] 1 Q.B. 431.

Mr. Gautama's submission on this point is that by editing and altering the hand-out before publishing it in the Argus, the respondents have shifted the

emphasis from the alleged irregularities in the Immigration Department, with which the hand-out was primarily concerned, and unduly stressed the part played therein by "certain Uganda Asians" (including the appellant). The article speaks of the Asians being arrested, which denotes criminality, whereas they were in fact detained in order to assist the police in their inquiries. The article speaks of "alleged passport and immigration racket", whereas the handout referred to "suspected illegal practices". The hand-out bore no heading, but the article was headed "Asians held". Mr. Gautama submitted that these alterations to the hand-out made by the Argus' editorial staff amounted to sensationalism and use of excessive language designed to boost the newspaper's sales, and that they were evidence of malice in the legal sense such as to deprive the respondents of the protection afforded by the occasion being one of qualified privilege.

This again is a question of degree, and where the line is to be drawn has to be decided in the light of the facts of each case. As regards the heading, I can see nothing sinister or improper in the words "Asians held". The word "held" is appropriate to describe detention, and the heading was factually correct. As regards the use of the word "arrested", whereas the appellant was in fact detained, this seems to me to be somewhat a distinction without a difference. The appellant was taken from his home by a police officer, and detained in a prison under the Emergency Regulations for over three weeks. He himself described what happened in the following words in the course of his evidence–

> "I was arrested and detained at 10.30 p.m. on 23 January 1968."

As regards the use of the words "an alleged passport and immigration racket" in the article, whereas the hand-out only spoke of "suspected illegal practices in the Immigration Department", the judge expressed the view that the word "racket" means a scheme to do something illegal, so that the use of that word in the article did no more than express the phrase "illegal practices" used in the hand-out in a different way. As regards the word "passport", used in the article, the judge did not consider its use unreasonable. He appreciated that the use of the words "racket" and "passport" might constitute an excessive statement, but he was unable to infer, from the use of this "excessive and slang language", any malice or improper or dishonest motive on the part of the respondents. After careful consideration, I have come to the same conclusion. I see no reason to differ from the judge's view that the respondents–

> ". . . were actuated by the best possible motives and had the honest desire to afford the public information and were seeking to assist the Government, Police and general public in ridding Uganda of suspected illegal practices in its Immigration Department."

It follows from what I have said that I am of the opinion that this appeal fails and should be dismissed. It is therefore not strictly necessary to deal with the last ground of appeal relating to damages, but as the point raised does not appear to be covered by any local authority, it may be desirable for me to consider it briefly. In assessing the damages, the judge held that they should be mitigated because the hand-out had been broadcast several times on the day before the article appeared, and that "rumours and gossip" damaging to the appellant's reputation were rife in Kampala on that day. Mr. Gautama described this reasoning as representing a profound and fundamental misdirection. He referred to *Associated Newspapers v. Dingle*, [1962] 2 All E.R. 737, and in particular to the speech of Lord Denning at p. 754–

> "At one time in our law it was permissible for a defendant to prove, in mitigation of damages, that previous to its publication, there were reports and rumours in circulation to the same effect as the libel. That has long ceased to be allowed. . . ."

As this ground of appeal does not have to be decided, it will be sufficient if I express the view that it may well have merit.

As Lutta and Mustafa, JJ.A. agree that this appeal fails, and should be dismissed, it is so ordered. There will be an order in the terms proposed by Mustafa, J.A.

Lutta JA: I agree.

Appeal dismissed.

For the appellant:
SC Gautama and *VN Ponda* (instructed by *Mrs HP Varia*, Kampala)

For the respondent:
C Salter, QC and *PV Phadke* (instructed by *Parekhji & Co*, Kampala)

New Munyu Sisal Estates Ltd v Attorney-General
[1972] 1 EA 88 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	15 September 1971
Case Number:	320/1969 (26/72)
Before:	Chanan Singh J
Sourced by:	LawAfrica

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[1] Land – Compulsory acquisition – Measure of full compensation – Market value plus 15 *per cent – Constitution s.* 75 (*K.*) *– Indian Land Acquisition Act,* 1894, *ss.* 3, 23 *– Land Acquisition Act,* 1968 (*K.*).

[2] Constitutional Law – Land – Compulsory acquisition – Law applicable, Constitution s. 75 (*K.*) *– Law applicable is the Land Acquisition Act* 1968 (*K.*).

Editor's Summary

The Government took over the plaintiff's sisal estate apparently acting under powers contained in the Agriculture Act (Cap. 318). The defendant admitted liability for compensation both under the Constitution, s. 75 and at common law and paid into court a sum stated to be the value of the land and movables without any addition together with interest thereon at 8 per cent. The necessity for the acquisition was not challenged by the plaintiff, which challenged the valuation of the property, and contended that 15 per cent must be added to the value of the land under the provisions of the Indian Land Acquisition Act of 1894.

Held –

(i) the law which provides for the acquisition of land and the prompt payment of full compensation under the Constitution s. 75 is the Indian Land Acquisition Act of 1894 up to 23 August 1968, and thereafter the Land Acquisition Act 1968;

(ii) the plaintiff was entitled to an addition of 15 per cent to the value of the land;

(iii) if the land had not been lawfully taken over, damages at the market value of the land plus 15 per cent would be payable;

(iv) the value of the property would be increased.

Judgment for the plaintiff.

No cases referred to in judgment

Judgment

Chanan Singh J: The plaintiff company sues the Attorney-General for compensation and for several other reliefs in relation to

a sisal estate taken over by the Government of Kenya. The Attorney-General has, in paragraph 2 of his defence, admitted liability for compensation both under the Constitution and at common law and in paragraph 3 for compensation and/or damages.

The relevant provisions of the Constitution are in s. 75 which prohibits the compulsory "taking possession" and "compulsory acquisition" of property except under certain specified conditions. The present is clearly a case of compulsory acquisition.

The conditions that are to be satisfied before the powers of s. 75 (1) are used are these:

(*a*) The acquisition must be "necessary" in the interests of defence, public safety, public order, public morality, public health, town and country planning – there is no suggestion it was necessary for any of these purposes – or the development or utilization of the property in such manner as to promote the public benefit. No special attempt has been made to show that acquisition was for development or utilization for "public benefit" but it seems to be accepted that the acquisition of land for the purpose of settling squatters on it would be for public benefit.

(*b*) The "necessity" must be such as to justify any hardship to the owner. There is no evidence on this from either side but the necessity is not challenged.

(*c*) Provision must be "made by a law applicable to that . . . acquisition for the prompt payment of full compensation".

The question arises: where is the "law applicable to that . . . acquisition" and providing "for prompt payment of full compensation?" I should have thought the Constitution envisaged a special law applicable to a take-over or take-overs under s. 75 – something in addition to common law and the Land Acquisition Act. But it seems common ground that the Land Acquisition Act of 1968 covers the position. There are difficulties here. First, the Constitutional provisions apply to "property" in general whereas the Land Acquisition Act applies to "Land". Secondly, the Land Acquisition Act came into force on 23 August 1968, whereas the sisal estate in question was taken over "in or about the months of November and December 1967" as stated in paragraph 6 (*a*) of the plaint. The Indian Land Acquisition Act 1894, applied to Kenya at that time. This cannot be said to provide for the "prompt" payment of "full" compensation but it does provide for compensation.

Mr. Shields also relies on s. 187 of the Agriculture Act (Cap. 318) as Government's authority for compulsorily acquiring this farm. This section applies where the Minister is satisfied that a holding "has ceased to be managed or supervised" or is being managed or supervised inadequately. The Minister has, under this law, power to make a management order and to arrange for the land to be occupied and managed "to the exclusion of the owner". The owner is "entitled to be compensated by the Government for any loss he may suffer by reason of the making of the order", the compensation taking "the form of an annual sum". The Minister may let the holding to a tenant or sell it or any part thereof with certain consents.

At the time the land in question was taken over, s. 188 of the Agriculture Act (which appears in the same Part as s. 187) read as follows: "Where land is acquired compulsorily under this Part, it shall be acquired under the Land Acquisition Act 1894 of India, and the purposes of this Part shall be deemed to be a public purpose within the meaning of that Act."

This section refers to compulsory "acquisition". S. 187 on which Mr. Shields relies authorises a "management order" and, later, a "sale" but does not seem

to authorise “acquisition”. It may cover the cases involving only “the taking of possession”. I think a more relevant provision is s. 185 (1) (*b*) (iii) which enables the Minister “to acquire the land or any part of the land compulsorily” if the owner persistently contravenes any rules. Even this provision does not exactly fit the circumstances because there is no question of contravention of any rules here; but it covers the circumstances most nearly.

In short, there is no law to which my attention has been drawn and under which one can say with certainty the Government acted in “acquiring” this farm. The plaint itself mentions the Agriculture Act as the law under which the Minister of Agriculture purported to act in the first instance.

During argument in court, the advocates have referred me to the Land Acquisition Act 1968, and have drawn particular attention to the wording of ss. 6 (1), 8 and 29 (1) which is similar to the wording of the corresponding parts of s. 75 of the Constitution. Of course the 1968 Act was, as I have stated, not in force at the time this farm was acquired and does not, therefore, apply to the transaction.

The Agriculture Act which has been quoted contained at that time a reference to the Indian Land Acquisition Act.

Para. 4 of the plaint challenges the legality of the management order and one of the prayers asks for “a declaration that the said management order is illegal and void”. This prayer was not pressed during the hearing and the alleged illegality was not argued. In fact, the money paid into court with admission of liability (under the Constitution and common law) has been withdrawn by the plaintiff company which reserved its right to proceed to trial to determine the exact amount payable for the property taken over.

Thus, the fact of acquisition is accepted by both sides. So also is liability for payment. The question is: what is the amount due?

S. 75 (1) (*c*) of the Constitution envisages the payment of “full compensation”. This term is not defined in the Constitution but the Land Acquisition Act, 1968, says in s. 8: “Where land is acquired compulsorily under this Part, full compensation shall be paid promptly to all persons interested in the land”. The similarity between this language and the language of the Constitution affords some indication of Parliament’s intention as to the measure of payment. S. 188 of the Agriculture Act says that where land is acquired compulsorily it shall be acquired in accordance with the Land Acquisition Act – before 23 August 1968, the Indian Act of 1894, and, on or after 23 August 1968, our own Act of 1968. The measure of compensation under both Acquisition Acts is the same.

There is no evidence that the procedure laid down in the Acquisition Acts was complied with, but this case had been fought in court on the basis that the take-over was in accordance with law – some law – and not in contravention of the Constitution. I think I can, in these circumstances, apply the law which most nearly covers the facts. Such law is the Indian Land Acquisition Act either because it was law within the meaning of s. 75 (1) (*c*) of the Constitution at the relevant date or because the law was the Agriculture Act which, in turn, brought in the Indian Land Acquisition Act. The fact of non-compliance with the procedural provisions of an Act should not, in my view, be used to the detriment of the subject. Compensation calculated in accordance with the Indian Land Acquisition Act, 1894, is therefore due to the plaintiff.

If I am wrong in this conclusion, then damages for trespass and conversion at common law would be recoverable. These would be equal to the market value of the assets taken over as against market value plus 15 per cent for immovable assets under the Land Acquisition Act. Market value only is recoverable for movables in either case.

Mr. Hewett, for the plaintiff, in his opening address asked for market value

plus 15 per cent. No argument against the grant of this 15 per cent extra has been addressed to me. It should be observed, however, that the amount deposited in court by the defendant did not include 15 per cent. The market value of the property according to the defendant at the date of take-over was as follows:

	£
Immovable property	22,30
Movables	4,570
Total	26,87

A sum of £5,105 for interest at 8 per cent per annum from 17 October 1967 to 1 March 1970 was added to this sum and the total of £31,975 was paid into court with the defence.

[The judge dealt with the evidence concerning the value of movables and immovables and continued.]

Adding this to the value of immovable property as arrived at of £28,050 we get the total figure of market value as £32,765. An addition of 15 per cent is to be made to the "market-value of the land" as defined in s. 3 (*a*) of the Indian Land Acquisition Act under s. 23 (2) of that Act. This amounts to £4,207 (i.e. 15 per cent of £28,050). The total compensation now is £37,072.

My attention has been drawn by the defendant to sales of farms in this area. The plaintiff company contends that these sales are not comparable. Four of these sales took place after 1967 when legislation requiring consent to transfers came into force. This, it is contended, reduced the size of the market. I think there is some force in this contention although it has not been proved or disproved by actual evidence. By reducing the number of potential buyers (non-citizens), the demand for farms has – for reasons of policy – been restricted.

So far as the four earlier sales are concerned, one took place as early as 1962 and two in 1964. The sale nearest to 1967 was that of L.O. 7240/1 in December 1965. It is a 730-acre farm, and was sold to a co-operative society for £5,000. In February the same year this farm had been sold for £2,600. The size is nearly one-seventh of the New Munyu. Pro rata to £5,000. New Munyu should be worth nearly £35,000. The figure comparable to this in my computations for New Munyu is £28,050. It is recognised that smaller estates are easier to sell and probably fetch better prices acre for acre. On the other hand, it must be realised that comparisons of agricultural properties can be misleading because of the differences in qualities of soil, water resources, distances from railhead or market, farm buildings, machinery and implements.

The plaintiff claims interest on compensation at the rate of 9 per cent from the date of compulsory possession. In the sum deposited in court the defendant has included interest at 8 per cent. The Indian Land Acquisition Act envisages interest at the rate of 6 per cent – see ss. 28 and 34. If 9 per cent is claimed as damages, then in my opinion the damage is too remote. Interest is not an element in the market-value which is to be determined in proceedings like these. Since the defendant admits liability for interest at 8 per cent (paragraph 3 of the defence), I award interest at that rate.

In the result I give the plaintiff judgment for £37,072 compensation with interest at 8 per cent per annum. The plaintiff will have the costs of the action and will give the defendant credit for the sum he has already received.

Judgment accordingly.

For the plaintiff:
PJS Hewett (instructed by *Daly & Figgis*, Nairobi)

For the defendant:
JF Shields and *GF Harwood* (Senior State Counsel)

Bakran v Republic
[1972] 1 EA 92 (CAM)

Division:	Court of Appeal at Mombasa
Date of judgment:	29 October 1971
Case Number:	134/1971 (24/72)
Before:	Sir William Duffus P, Lutta and Mustafa JJA
Sourced by:	LawAfrica
Appeal from:	High Court of Kenya – Mosdell, J

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[1] Evidence – Extra-judicial statement – Trial within trial – Should be held in magistrate's court before admission of statement.

[2] Evidence – Extra-judicial statement – Accused unrepresented – Objections to statement should be ascertained by court.

Editor's Summary

The magistrate trying the appellant did not hold a trial within a trial to decide whether the statements made by the appellant to the police were admissible. In his judgment the magistrate held that the statements were voluntary but that he proposed to ignore them.

On second appeal:

Held –

(i) a trial within a trial to ascertain the admissibility of statements should always be held in magistrate's court as well as in the High Court (*Lakhani v. R.* (2) approved);

(ii) where the accused is unrepresented the judge or magistrate should ascertain whether a statement is objected to on grounds which would make it inadmissible (*Uganda v. Lwasa* (3) followed);

(iii) no prejudice had been caused here to the appellant who had been properly convicted.

Appeal dismissed.

Cases referred to in judgment:

(1) *M'Muraira Karegwa v. R.* (1954) 21 E.A.C.A. 262.

(2) *Lakhani v. R.*, [1962] E.A. 644.

(3) *Uganda v. Lwasa*, [1968] E.A. 363.

Judgment

The considered judgment of the court was read by **Sir William Duffus P:** The appellant was convicted by the resident magistrate at Mombasa on charges of robbery with violence and unlawful possession of a firearm. His appeal to the High Court was dismissed and he now appeals to this court.

The main question concerns the failure of the resident magistrate to hold a trial within a trial to decide whether the two statements made by the appellant to the police should have been admitted in evidence. The appellant was unrepresented at the trial and made no objection to the admission of the statements but it was clear from his cross-examination that he was alleging that the statements were not voluntary but that he was beaten and forced to make them. He also gave evidence to this effect. The magistrate admitted the statements at the time and in his judgment he found that the allegations of the appellant having been beaten were untrue. In fact, therefore, his finding in his judgment would amount to the fact that the statements were voluntary and admissible but then he went on to say that since there had been allegations of a beating he proposed

to ignore these statements and he then found that there was ample other evidence to convict the appellant of both offences. On the first appeal the judge of the High Court found that there had, in fact, been an irregularity as a trial within a trial should have been held but he was fully satisfied that the appellant was guilty on the evidence before the court and that the irregularity had not occasioned any prejudice to the appellant and he dismissed the appeal.

There is no rule of law requiring that a trial within a trial should be held when any objection is taken to the admission of a statement by an accused person, but it is a rule of practice and there are numerous decisions arising from trials in the High Court which set out the necessity of holding a trial within a trial and also fully dealing with all its various aspects. The advocates before us were unable to refer us to any decision of this court dealing with the holding of a trial within a trial in a magistrate's court but they both agreed that the system of a trial within a trial was always carried out in a magistrate's court and they referred us to a judgment of the High Court of Kenya sitting on appeal from a magistrate's court in which this procedure was approved. (See *Lakhani v. R.*, [1962] E.A. 644). We agree that the procedure of holding a trial within a trial should always be adopted in trials in a magistrate's court. In this connection we would also refer to our judgment in the case of *Uganda v. Lwasa*, [1968] E.A. 363, in which this court pointed out the desirability that a judge should ascertain, when an accused is unrepresented, whether a statement tendered by the prosecution is objected to on any ground which would make it inadmissible in law. In our opinion this practice should be followed in a magistrate's court.

The object of holding a trial within a trial is twofold. First, in cases tried with a jury or with assessors to avoid prejudice being caused to the accused person if the jury or the assessors should hear evidence which will subsequently be ruled inadmissible. It has always been held and considered that a judge or a magistrate, by virtue of his legal training, will be able to divorce his mind from any inadmissible evidence when considering his verdict.

The second great advantage of holding a trial within a trial is to avoid prejudice being caused to an accused person if the court subsequently holds, in coming to its decision, that the statement was improperly admitted. In this connection we would refer to the decision of this court in *M'Muraira Karegwa v. R.*, (1954) 21 E.A.C.A. 262, when this court said at p. 264–

> "Having fully reconsidered this aspect of the matter, we think any difficulties in reconciling these decisions can be resolved by applying the only true criterion, namely has the irregularity in fact prejudiced the accused? In this connection we think it necessary to draw attention to one aspect of the matter which has never been specifically referred to in any of the reported cases. It is this: when the court follows the procedure of 'a trial within a trial', the accused may elect to give evidence and may call witnesses limited to the one particular issue of admissibility, and in such case, neither he nor his witnesses can be cross-examined on the general issue. If, however, his opportunity to adduce evidence is postponed until he is called on to make his defence to the charge then, although he may restrict his own evidence-in-chief and that of his witnesses to the particular issue, yet nevertheless both he and they once in the witness-box are exposed to cross-examination on the general issue. There is obviously a very real danger of prejudice here: the defence may be caught on the horns of a dilemma – if no evidence is given the statement will be admitted and a conviction inevitably follow: if the accused goes into the witness-box, the probability is that he will make such damaging admissions under cross-examination that a conviction is almost as inevitable.
>
> This is an aspect of the matter which this court should always fully consider before deciding that the irregularity has not led to injustice. If

> there is reason to believe that the appellant has been forced to give evidence on the case generally by the failure of the trial judge to follow the correct procedure and that he has been prejudiced thereby, the effect may well be that the conviction cannot stand and not merely that the disputed statement cannot be looked at."

This quotation fully sets out the circumstances in which an accused person may be prejudiced. Thus in this case if the magistrate had held in his judgment that he had improperly admitted the statements in evidence, then this court would have to consider whether the appellant had in fact been prejudiced.

The appellant gave sworn evidence and was fully cross-examined on his statements and he also called witnesses, one of whom at least gave evidence which considerably influenced the trial magistrate in his finding of guilt. In this case, however, the trial magistrate has in effect held that the statements were voluntary and were properly admitted so that although he did not, in effect, use the statements in considering his decision, yet he did, in fact, still hold that the statements were properly admitted. We cannot therefore, in this particular case, find that the appellant has suffered any prejudice by the fact that these statements were admitted in evidence.

Apart from this consideration there can be no doubt that there was ample other evidence which was accepted by the trial magistrate which conclusively proved that the appellant was guilty on both charges.

The appeal is dismissed.

Appeal dismissed.

For the appellant:
S Ghalia

For the respondent:
M Rana (Senior State Counsel)

Balbir v Panesar
[1972] 1 EA 94 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	29 July 1971
Case Number:	415/1970 (27/72)
Before:	Trevelyan J
Sourced by:	LawAfrica

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[1] Landlord and tenant – Notice to quit – Construction – Effect must be given to notice where clear to recipient.

[2] Landlord and tenant – Notice – Expiry on anniversary of term – Only where term created "from" a date – Indian Transfer of Property Act 1882, *s.* 110.

[3] Landlord and Tenant – Merger – Not constituted by payment of rent at same time.

[4] Rent restriction – Business premises – Used mainly for manufacturing – Not a shop – Landlord

and Tenant (*Shops Hotels and Catering Establishments*) *Act* (*Cap*. 301), *s*. 2 (1) (*K*.).

Editor's Summary

The plaintiff let to the defendants on two different dates different portions of a building which building the defendant used for manufacturing furniture. Although some sales of furniture were made from the factory the defendants had a shop from which the bulk of it was sold. The first issue was whether the tenancies of the premises came within the definition of a shop in the Landlord and Tenant (Shops Hotels and Catering Establishments) Act (Cap. 301).

On the evidence the judge found that the tenancy of the rear portion of the building began on 1 April 1966 and that the front portion on 1 November 1967.

Notices were served purporting to terminate the tenancies respectively on 31 March 1970 and 31 October 1969 "or at the end of the month of the tenancy

which will expire next after the termination of six months from the date of this notice".

The defendants contended that the alternative nullified the notices as there could be no end of a month of a yearly tenancy, that the notices should have expired on the anniversaries of the commencement of the tenancies, and that the tenancies had merged.

Held –

(i) as the premises were used mainly for manufacture they were not used wholly or mainly for the purpose of a retail or wholesale trade and were not protected;

(ii) a liberal interpretation must be given to a notice so that, even if lame or inaccurate, effect is given to it if it is clear to the recipient;

(iii) the word month should be read as year and the notices could not have confused the tenants;

(iv) that rents had been paid together did not give rise to a merger of tenancies;

(v) a notice must expire on the anniversary of the creation of the term only where the tenancy is limited "from" a particular date.

Judgment for the plaintiff.

Cases referred to in judgment:

(1) *Sidebotham v. Holland,* [1895] 1 Q.B. 378.

(2) *Queens Club Gardens Estates Ltd. v. Bignell*, [1924] 1 K.B. 117.

(3) *Ali v. Champion* (1949) 16 E.A.C.A. 15.

(4) *Nairobi Printing Press v. Byramjee* (1952) 19 E.A.C.A. 136.

(5) *Kikabhai N. Mistry v. Abdulla Mohamed* (1956) 23 E.A.C.A. 192.

(6) *Deeble v. Robinson*, [1954] 1 Q.B. 77.

(7) *Hirani v. Ramji Mepa*, [1971] E.A. 332.

Judgment

Trevelyan J: The plaintiff (whom I shall call "the landlord") claims possession from the defendants (whom I shall call "the tenants") of two parts of a building situate on Hathi Road, Nairobi (which I shall call the "front" and "rear" parts or portions thereof). The plaint alleges a tenancy from year to year of the front portion as and from 1 November 1967 and it alleges a similar tenancy of the rear portion as and from 1 April 1966. Both tenancies were created orally for manufacturing purposes. I have no doubt about that.

The landlord claims that the tenancies were duly determined, the front portion on 31 October 1969 and the rear portion on 31 March 1969 but by their defence the tenants, whilst admitting that they are the landlord's tenants, deny his right to possession of the two portions. They say that the notices to quit are not valid notices "inasmuch as they purport to determine what the plaintiff admits are yearly tenancies by notices expiring 'at the end of the month of the tenancy' instead of on the anniversaries of their inception", and in any event, that possession cannot in these proceedings be awarded for the two tenancies are protected by the Landlord and Tenant (Shops, Hotels and Catering Establishments) Act (Cap. 301) (which I shall call "the Act"). I am asked to answer two issues (unless, that is, the first is answered in the affirmative). They are firstly, are the tenancies protected by the Act? and secondly, if they are not, are the notices to quit valid?

The landlord says that he let the rear portion on 1 April 1966 and, in support of that date has produced documentary evidence. [The judge considered the evidence and continued] I am in no doubt that the tenancy of the rear portion

began on 1 April 1966. There is no issue about the date of the commencement of the tenancy of the front portion. In any event the evidence shows that it began on 1 November 1967.

According to the landlord:

> "They make furniture in both parts of the premises. They have a shop at Ngara where they sell furniture. They do not sell anything in the Hathi Road premises . . . In the rear portion they manufacture this furniture. They have a lot of wood lying on two shelves and many pieces of wood are put on the tresses. There are no showcases – no counters. They have machinery to make the furniture there. No furniture is displayed there for sale. . .You cannot get into it from the front main road . . . There is no shop window".

A good deal of cross-examination was directed to the question as to whether sales were or were not conducted on the premises. Whether there is or is not a showcase or counter, sales could there be effected. But I am quite satisfied that whatever sales may there have been made, the purpose of the letting of both the portions, and their main use, was to manufacture furniture not to sell it. The tenants had other premises at Ngara, shop premises, where they carried on their retail sales business.

The landlord says that he would know what went on in the tenants' part of the premises and up to a point he would, for there is just the one building, he uses part of it, and for a time, he and his workmen had to cross the tenants' part to get water and to enjoy toilet facilities. But he cannot be taken to know all the details of the business. He would not ordinarily know why any particular person came there to see the tenants but he would know that when he wanted to buy furniture he was directed to the shop. Reference was made to an office on the suit premises but the landlord did not agree that it was used as such saying that no clerk was employed; which the tenants did not seek to deny. It matters not either way.

A Mr. Ndegwa, whom I thought to be a quite independent witness, supported the landlord by telling us that when he, in the course of his business went to the suit premises and asked about the purchase of furniture, he was directed to the shop. I see no reason to disbelieve him and I certainly do not think that he was told what to say here. He was cross-examined at the greatest length but to him the tenants' premises "appeared to me if I may say so to be a sort of factory". This is supported by the photographs which we have in evidence. Mr. Chankour Singh has produced to us a list of people to whom he sold furniture from the factory and, looking at it, it would seem that Government and commercial firms make up the majority of the purchasers therefrom. I am not disposed to doubt that such sales were made. If a large concern wanted furniture it might very well go to the factory rather than to the shop whilst a private buyer wanting a sofa set might well be directed to the shop.

On 19 March 1969 the landlord, through his advocates gave the tenants notices to quit the operative parts whereof I will now set out. That for the rear portion reads:

> "On behalf of your landlord, Balbir Singh, s/o Santokh Singh, we hereby give you notice to vacate, quit and deliver up possession of the back portion of the premises on L.R. No. 209/136/20 in Hathi Road. You are required to give up possession on or before 31 March 1970 or at the end of the month of the tenancy which will expire next after the termination of one year from the date of this notice".

That for the front portion reads:

> "On behalf of your landlord, Balbir Singh s/o Santokh Singh, we hereby give you notice to vacate quit and deliver up possession of the front portion of the premises on L.R. No. 209/136/20 in Hathi Road. You are required to give up possession on or before 31 October 1969, or at the end of the month of the tenancy which will expire next after the termination of six months from the date of this notice".

Counsel for the landlord conceded, indeed readily conceded, that what he called the "alternative" part was invalid but he contended that the notices were nonetheless effective. Counsel for the tenants, for his part, however, attacked the notices in a more general fashion. But as it will not matter if the notices are otherwise good or bad if the Act applies to the suit premises, I will now deal with the first issue which, it will be recalled, is whether or not the tenancies are protected by the Act.

The fact that the landlord at some stage thought that the Act applied to the suit premises is of no consequence. The court must decide this: *Ali v. Champion*, (1949) 16 E.A.C.A. 15. The issue of estoppel does not appear to concern us. The tenants rely on *Hirani v. Ramji Mepa*, [1971] E.A. 332 but the facts are quite different from those which are now before us. It cannot, as I believe, be held that the suit premises are occupied wholly or mainly for the purpose of a retail or wholesale trade or business. It will be recalled that the definition of "shop" reads:

> " 'shop' means premises occupied wholly or mainly for the purposes of a retail or wholesale trade or business or for the purpose of rendering services for money or money's worth".

There is no question, I believe, of a wholesale business for Mr. Chankour Singh told us:

> "In the suit premises we manufacture furniture only for our business".

Indeed he told us that:

> "The furniture we manufacture, the most of it goes to our showroom in Fort Hall Road and some are sold directly to customers or companies in Hathi Road".

But it would not matter if sales by wholesale were made. As I see it, the suit premises are mainly occupied for the manufacture of furniture for sale in the tenants' shop elsewhere though some sales are effected from the premises. Counsel admitted that "all goods go to this shop – not to other retailers". A shopkeeper who buys goods for resale needs storage space for what he buys but a retailer does not have to manufacture his own goods. I do not resile in the slightest degree from what I said in the *Hirani* case; in particular I accept, as I there accepted, what Denning, L.J. said in *Deeble v. Robinson*, [1954] 1 Q.B. 77, but a line must be drawn somewhere. Would the farm on which a cow grazed be a shop because its milk was sold elsewhere? In my view the suit premises do not attract the protection of the Act for the simple reason that they are not occupied for the purposes specified therein. They are not used wholly or mainly for the purpose of a retail or wholesale business. They are used mainly for the manufacture of furniture largely to be sold elsewhere, i.e. in a shop at Ngara. In a suitable case a manufacture may well be held to be a wholesaler or retailer, but that does not affect us here.

Counsel for the landlord drew attention to *Kikabhai N. Mistry v. Abdulla Mohamed* (1956) 23 E.A.C.A. 192 in which it was held that whilst the notice to quit which was given for the alternative of two dates might have been effective as to the latter one it could not be so for the earlier and so the proceedings were

premature. I do not for a moment doubt the accuracy of that decision though I confess to a difficulty in understanding it. Be that as it may the court held that the notice to quit was unambiguously worded so that no one could doubt that there were two alternative dates when the tenant was asked to vacate and, as one of those dates was ineffective, the suit was prematurely brought. However, the court did say:

> "The learned judge was not, in our opinion, entitled to find that the parties intended and understood that the earlier of the alternative dates was to apply. To do so went beyond construing the document in favour of validity, and was at variance with the plain and unambiguous terms of the document".

and so I turn to the locus classicus *Sidebotham v. Holland,* [1895] 1 Q.B. 378 in which A. L. Smith, L.J. pointed out that a notice may be saved by the addition of words such as "or at the expiration of the year of your tenancy, which shall expire next after the end of one half-year from the service of this notice". He said this because on the facts of the case before him the notice expired one day too late. Of course, if a notice is not so worded as to expire at the proper time it is bad and beyond cure. But as long as that date is clear and certain and the party to whom the notice is given cannot be in any doubt about the intention of the giver then, even if the language is ambiguous, even if it is lame, it does not matter: see para. 413 of *Hill and Redman's Law of Landlord and Tenant* (14th ed.) at p. 537. The paragraph concludes

> "and it is usual, after first mentioning the day which is believed to be the anniversary of the commencement of the tenancy, to add these general words in the alternative so that the error as to the specific day may not invalidate the notice".

The expression "alternative dates" seems less than apt to me. A notice to quit can only validly expire at a certain point of time. Where Smith, L.J.'s formula is used it is not a case of giving alternative dates at all, but as Lush, J. put it in *Queens Club Gardens Estates Ltd. v. Bignell*, [1924] 1 K.B. 117 at p. 126:

> "If the party who desires to give notice is doubtful as to the day on which the period expires, he can make sure that the notice will be valid by adding the words that are given in the common form of notice to quit to the effect that if the date mentioned is not the real date on which the period expires, then the notice to quit is to expire on the proper day of expiry next after the expiration of the current period".

There are local authorities following the English ones. *Nairobi Printing Press v. Byramjee* (1952) 19 E.A.C.A. 136, for instance, reiterates that the rule is to make lame and inaccurate notices to quit sensible where the recipient cannot have been misled as to the intention of the giver. It points out that a liberal construction is to be placed on a notice so that it should not be defeated by inaccuracies even if the same relates to the date of the expiry of the notice. Para. 414 of Hill and Redman (*supra*) which is headed "*Construction of incorrect notice*" gives illustrations where notices have been construed so as to make them effectual such as a notice expressed to be for end of the "present" or "current" year, made effectual for the following year.

Counsel for the tenants argues that we do not have one but two dates on either of which the tenants are asked to go out so let us consider the notices again. They each give a date more than six months ahead as the specific date for vacating the premises for they were let for manufacturing purposes. The word "month" in each should have read "year" and I think that is how they are to be read. There is no case of confusing the tenants unless, that is, the savings part can be read so as to give quite different dates from 31 March 1970 and

31 October 1969. I myself asked whether one could approach the problem in the notice of the rear portion by taking its date, i.e. 19 March 1969, adding a year to it – giving 19 March 1970 – and the tenancy having commenced on 1 April, arrive at the same date as that specified, i.e. 31 March 1970 whilst in relation to the rear portion and using the same formula whether one would get as the second date, 30 September 1969. If that were so then the notice for the front portion would be good and that for the rear portion would be bad (for there would not be one moment of time but two quite different dates). But I have come to the conclusion that it would not be right so to read the notices. There can be no end of a month of the tenancy in the case of a yearly one. Counsel for the tenants argued that:

> "The alternative is so inextricably part of the entire notice to quit that you cannot treat it as surplusage or addendum only. It purports to convert a yearly tenancy into a monthly tenancy".

But such a conversion is incompetent at law. On counsel's submission the alternative would have to be ignored, or so I think. I do not believe that the tenants could at all have been, or were, misled or in doubt about the notices. They knew, or must be taken to have known, that theirs was a yearly tenancy so that "a month of the tenancy" was entirely inapt.

It was also argued that the notices were so worded that in their alternative form they were to take effect on 19 March and 19 September respectively and that they must in any event be held to be bad as there is no mention of service therein. I cannot read the notices to arrive at the 19th of any month and, whilst it is true that the Smith, L.J. formula has not precisely been followed, if it is simply there for the calculation of dates it does not matter. The question of serving the notices was not in issue and it would not matter if it were. As a matter of fact there are endorsements of service on the notices but I need not rely on that.

It was finally argued that there was a merger of the tenancies and that the specific dates given are wrong in any event. The fact that on occasion rents may have been paid together does not give rise to a merger on the facts of the case. I would need a great deal more evidence to satisfy me about the point. Whether the question was in issue, I doubt. As to the dates, defence counsel says that by reason of s. 110 of the Indian Transfer of Property Act 1882 the notices should have expired on 1 November and 1 April respectively. But the section is brought into force when the word "from" is used as the editor of *Gour on the Law of Transfer* (1948) makes clear in para. 2887 on p. 1665 of his work and the word is not for use in this case. Even the editors of *Mulla on the Transfer of Property Act*, 1882 (the book on which defence counsel so heavily relied) say in their commentary on p. 726:

> "It follows from this that as a monthly tenancy does not limit the time within the meaning of the section, the section cannot apply to such tenancy and so it has been held".

There is also the following to be found in *Gour* under paragraph 2713 on p. 1570 in relation to s. 106 of the Indian Act:

> "Hence where the tenancy is a yearly or monthly one, a notice to determine it must expire before its anniversary and not on that or on the next following day. Thus upon a tenancy from 25 March, the notice must expire on 24 March, and not on 25 or 26 March".

The landlord will have judgment for possession of both parts but the tenants may have until 31 October next to vacate them. They must pay mesne profits for their use and occupation of them from the time when the tenancies ended

up to the time when possession is given at the same rate as the reserved rents. Interest and costs are granted to the landlord as prayed.

Judgment accordingly.

For the plaintiff:
JA Couldrey (instructed by *Kaplan & Stratton*, Nairobi)

For the defendants:
RN Khanna (instructed by *Khanna & Co*, Nairobi)

Re Hofmann Hofmann v Hofmann
[1972] 1 EA 100 (HCT)

Division:	High Court of Tanzania at Dar Es Salaam
Date of judgment:	25 September 1971
Case Number:	39/1971 (28/72)
Before:	Biron J
Sourced by:	LawAfrica

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[1] Infant – Custody – Kidnapping – Kidnapper should not obtain advantage.

[2] Infant – Custody – Judgment of court of domicile – Persuasive authority.

[3] Infant – Custody – Welfare of infant – Disobedience of court order not to influence court to detriment of infant.

[4] Infant – Custody – Father's superior financial position – Irrelevant on custody application.

[5] Infant – Custody – Wishes of infant – Boy of 6 *too young to be consulted.*

[6] Infant – Custody – Under 7 *years – Presumption in favour of mother – Whether rebutted – Law of Marriage Act* 1971, *s.* 125 (*T.*).

Editor's Summary

The parties were German nationals and their marriage had been dissolved in Germany. Custody of the child of the marriage a boy aged 6 was granted to the respondent father, but interim custody was granted to the mother pending the hearing of her appeal. Access to the child was given to the father who failed to return him on two occasions, on the second of which he brought him to Tanzania where he had taken a job. This was in breach of the order of the German court.

The mother came to Tanzania and filed proceedings for the return of the child, and during these proceedings her appeal was upheld by the German court which awarded her custody.

For the father it was argued that the court should ignore the fact that the child had been kidnapped and decide only on the basis of his welfare, that his disobedience of a court order should be ignored. That the father was in a better financial position and so better able to look after and educate the child,

that the wishes of the child might be consulted, that the court had no power to order the child to leave the jurisdiction. For the mother it was contended that the presumption that a young child should be with its mother had not been displaced.

Held –

(i) a kidnapper should not obtain an advantage from his kidnapping (*In re H.* (*Infants*) (1) and *In re C.* (*S.*) (*An Infant*) (3) considered);

(ii) nevertheless the court would attempt to evaluate the material before it;

(iii) the German courts were better able to make a decision and the appeal judgment was persuasive;

(iv) disobedience by a parent of a court order should not influence the court against that parent to the disadvantage of the child;

(v) the father's superior financial position was irrelevant since it merely meant that he could support the child properly while he was with the mother;

(vi) although a child of six could have wishes he could have no idea what was best for him and he should not be consulted;

(vii) the presumption that a child under the age of seven should be with his mother had not been displaced.

Child ordered returned to mother immediately.

Cases referred to in judgment:

(1) *In re H*. (*Infants*), [1966] 1 W.L.R. 381.

(2) *Bi Ruth Pemba v. Daudi Mfalingundi*, [1970] H.C.D. p. 98 no. 105.

(3) *In re C*. (*S*.) (*An Infant*), *Times* Newspaper, 25 June 1971.

Judgment

Biron J: The parties to this suit, the parents of the child the custody of whom each is claiming, and the child, are all nationals of the Federal Republic of Germany, and the background to the proceedings which have led to these instant ones can briefly be summarised as follows.

The parties were married in Bombay on 7 February 1965. The father, Dr. Hofmann, who is a Doctor of Science, was at the time on an assignment in India. Both parties had been married before and their marriages had been dissolved. The mother, who belongs to the Parsee community, had previously been married to an Indian by the name of Antia, and that marriage lasted, so it is recorded in one of the affidavits, from 1954 to 1963. There were two children of that marriage, Merwan Antia, born 23 July 1955, and Jeannie Antia, born on 25 December 1957. The father has had no children by his previous marriage. The child whose custody is now the subject matter of these proceedings, Patrick Ernst Hofmann, was born in India on 10 June 1965. The parties returned to Germany some time in December 1965, but the father again went out to India early in 1966 and his wife, the applicant, the mother of the child, did not apparently accompany him. But I feel we are not greatly concerned with the reasons. I think the parties give different accounts of that particular aspect, but I do not consider that of very great relevance to these proceedings. The marriage of the parties was dissolved by the High Court at Munich.

In the proceedings in the various courts in Germany, the Amtsgericht, which I think, corresponds to our District Court, and the Landgericht, the reason for the breakdown of the marriage between the parties is given as being due to the fault of both parties, which may perhaps be merely another way of saying that it was due to the incompatibility of the parties, as a marriage can break down because of incompatibility without there being of necessity any fault in either party: it is just one of those things. In any event I do not take into consideration the fact that the courts have said that the breakdown of the marriage was due to the fault of the parties, for, as I think sufficiently demonstrated, there need be no fault in either party.

After the dissolution of the marriage both parties filed proceedings in the Amtsgericht of Dusseldorf for the custody of the child in October 1968, and on 15 January 1970 that court granted the custody of the child Patrick to the respondent father. The mother appealed from this order to the Landgericht at Dusseldorf, and in an interim order dated 6 March 1970 the mother was granted interim custody pending the determination of her appeal from the order of the Amtsgericht. The father also apparently appealed from this order granting the mother interim custody, and according to one of the affidavits this particular appeal is still pending, but I cannot find anywhere in the affidavits whether this particular appeal has been determined or has been merged in one or other of the

proceedings before the German courts. Be that as it may, the father was allowed

access to the child, and some time in August 1970 he took the child to Switzerland and apparently failed to return him at the end of the prescribed period. The mother filed proceedings in the High Court and the father was ordered to surrender the child. According to the father he had not returned him in time because the child was sick and had to be admitted to a hospital in Switzerland. This order of the Landgericht at Dusseldorf ordering the father to return the child was made on 25 August 1970.

The father was again allowed to take the child on 11 June 1971, on the understanding that he would be returned to the mother on 25 June 1971. However, the child was not returned, and on 28 June the mother received a letter from the father dated 23 June which (translated) reads:

> "Dear Rhoda,
>
> Since Patrick is with me for a visit he has openly said that under no circumstances he wants to return to Dusseldorf. You know yourself, how before also he has cried very much when I had to bring him back, only this time it has become worse. I have written today to the High Court and you will know through your lawyers the particulars.
>
> In the next days I am moving to Tanga and I will let you know my address as soon as I know myself. It is understandable that I will make it convenient for you to see Patrick as often as you can.
>
> With friendly greetings,
>
> Ernie."

The mother, who, so she stated in her affidavit, at the time did not know whether or not the child had been taken out of Germany, immediately on receipt of this first letter filed proceedings in the Landgericht at Dusseldorf, and this court made an order dated 28 June 1971 to the effect that the father was to return the child to the mother immediately and in the event of his failure to do so he was ordered to pay a penalty of DM 1,000. The father has not complied with this order. The earlier letter referred to was followed by one dated 7 July 1971, which reads:

> "Dear Rhoda,
>
> As announced in my last letter to you, please find above my new address at Tanga. Patrick has settled here very well and is in very good health and happy.
>
> I shall continue to inform you about him and shall also be glad to hear from you.
>
> With kind regards and a kiss from Patrick.
>
> Ernie."

The father had taken the child to Tanga, which is the address given on this last letter, where he is employed as a works manager at the Tanzania Fertiliser Company, which, I am informed, is a joint venture between a German firm and a Tanzanian firm. The mother, on learning that the child had been taken out to Tanga, flew from Germany and on arrival in this country she sought the assistance of the Embassy of the Federal Republic of Germany in order to obtain the child, but obviously to no avail. And on 2 August she filed a chamber application in this court, which came before me on the very same day, and I issued a writ of habeas corpus, thereby initiating these proceedings.

During the pendency of these proceedings, on 27 August, the appeal by the mother from the order of the Amtsgericht of Dusseldorf awarding the custody of the child to the father was determined in the mother's favour by the Landgericht at Dusseldorf. The court reversed the order of the Amtsgericht and awarded the custody of the child to the mother.

The foregoing briefly summarises the factual position.

Holding that this court has jurisdiction does not even imply that I do not consider that the German courts have jurisdiction as well, even now, when all the parties are out of Germany. After all, the parties are German nationals, they are domiciled in Germany, they were divorced by a German court, and custody proceedings are actually ancillary to divorce proceedings and usually follow them. Furthermore, the German courts are at present seized of this custody case, so the jurisdiction I am exercising is concurrent with that of the German courts.

The next question that poses itself is the attitude to be adopted by this court. This case comes within the category of what are known as kidnapping cases, and, as very rightly submitted by Mr. Talati for the applicant mother, in such cases the English courts have evolved a practice of returning a child to its country of origin from where it has been kidnapped. A typical case is *In re H*. (*Infants*), [1966] 1 W.L.R. 381. The headnote reads:

> "Two American boys, whose divorced parents were both citizens of the United States of America, were brought to this country in March, 1965, by their mother, without the knowledge of their father or that of the Supreme Court of New York State, which on December 11, 1964, made a consent order stating that the two boys, whose custody had been given to the mother, should be maintained in her apartment in New York and not be removed from a 50 miles' radius of Peekskill without the prior written consent of the father. At the beginning of June, 1965, the mother bought a house for herself and the children in England. On June 15, 1965, the New York court ordered the children to be returned to New York.
>
> By an originating summons dated July 15, 1965, the mother started wardship proceedings in the English court. By motion in the proceedings dated October 5, the father asked that the two children should be delivered into his care, that he should be at liberty to convey them to New York and that the wardship of the children should be discharged. Cross, J. held that, on the facts and evidence and having in mind the welfare of the children who were American children with a home in the United States, the justice of the case required them to be returned without delay to the jurisdiction of the New York court, so that the question of where and with whom they should live might be decided as soon as possible by that court. The mother appealed on the grounds, *inter alia*, that the judge was wrong to abdicate his responsibility for the children by remitting the case to New York without first testing and considering the evidence on which the discretion vested in the court had to be exercised, and that, if the judge was right in holding that he had discretion whether to remit the case or not, his exercise of such discretion was wrong in principle since he failed to give weight to all the relevant considerations:
>
> **Held**, that in sending the infants back to New York to be dealt with by the New York court, the judge made the proper order in all the circumstances of the case, and that there was no authority requiring him to inquire into all the matters in dispute between the parents and come to a decision upon them before ordering whether the children should stay in this country or return to their own country."

It is not irrelevant to cite a couple of passages from the judgment. One at p. 388 reads:

> "Now, those being the facts as at present ascertained, and viewing the matter for the moment without reference to authority, the common-sense solution of the problem is surely that the children should return to the State

> of New York, either in the care of their father, or (if it can be arranged) in that of their mother, and that the appropriate court be asked to determine as soon as possible where the children are to live, in whose care they are to live, what access the other parent is to have, and so on."

The other passage is at p. 393 and reads:

> "In infancy cases the welfare of the infant is, of course, the chief consideration; but it is far from being the only consideration. When, in what I may call for short a kidnapping case, the judge has to decide whether to send the child back whence he came or to allow the case to be fought out to the end over here, he has to weigh various considerations which may to some extent conflict with one another. On one side there is the public policy aspect, the question of comity and the question of forum conveniens. Again, on the same side, there is the question of the injustice which may be done to the wronged parent if the court delays matters and allows the kidnapped child to take root in this country."

That principle, returning a child which has been kidnapped to the country from whence it came, has very recently been reaffirmed in *In Re C.* (*S.*) (*An Infant*), *The Times*, 25 June 1971, and it is sufficient to quote a short passage from the judgment:

> "The court had, rightly, set its face strongly against a kidnapper gaining any advantage from the kidnapping. Where, as here, a child was kidnapped from one civilized country to another, in the words of Mr. Justice Cross in *In Re H.* (*Infants*), ([1966] 1 W.L.R. 381, 389), 'The sudden and unauthorized removal of children from one country to another is far too frequent nowadays, and . . . it is the duty of all courts in all countries to do all they can to ensure that the wrongdoer does not gain an advantage by his wrongdoing.' "

However, although such a course has its attractions, at least in so far as this court is concerned, I feel, in view of the advanced stage of these proceedings, that it would not be right of this court to abdicate its responsibilities altogether and send the child back without at least attempting to decide the issue on the merits of what material is available before it, though it must be said at once that this material is rather limited.

As already noted, the Amtsgericht of Dusseldorf awarded the father the custody of the child. From what I can gather from the various proceedings in the courts, the Amtsgericht was greatly influenced by a report by a Welfare Officer of the Youth Welfare Office of the Municipal Welfare Office of Dusseldorf, a Frau Kotzmann. That report was rather adverse to the mother. It stated that the accommodation provided by the mother was not suitable for the child, the flat was too small, the child was not being well looked after, it was not even clean, nor apparently was the flat. However, this report was considered by the Landgericht at Dusseldorf and the court stated that the report had been nullified and rendered completely nugatory by a certificate from the Principal of the Kindergarten, Frau Dronardt, which reads:

> "I hereby certify that Frau Kotzmann (who is the lady who made that original report) has not been in the Kindergarten personally but only she had telephoned me in the Kindergarten once but this talk was very short and not at all what she has mentioned. In the beginning Patrick was for a little time difficult because he had never been to the Kindergarten before and was also in a difficult age. In later days I have had no more problems with Patrick in the Kindergarten."

In fact the Landgericht declared the report of the Youth Welfare Officer to have been proved false.

As remarked, the material before this court is scanty. There is no conflict of law that the guiding principle and the paramount consideration is the interest of the child. The German courts applied that principle. The Landgericht heard further evidence – there are copies of such evidence in translation – from neighbours of Mrs. Hofmann which are all in her favour, that the child was well looked after. There was also the evidence of a Gerda Dunker, a Social Worker of the Protestant Church, who had apparently previously made a report, and in this evidence before the Landgericht she stated that the child was being well looked after and he was doing well at school, but she very fairly, I must say, concluded her testimony with:

> "I personally cannot say to whom Patrick should be given or by whom he would be well looked after",

which is fair enough. She was merely asked to comment on what she herself had observed of the child, how it is being looked after, and on its mother.

Now obviously in custody proceedings the character of the parents is extremely relevant. I have already remarked on the fact that the courts held that the dissolution of the marriage was due to faults on both sides, and that I do not regard that as necessarily implying that either parent was at fault, at least towards the child. In fact, from my own observations, I would unhesitatingly say that I myself have been very much impressed by the affection and regard both parents have evinced towards the child each time they have appeared in front of me. So there is no question of the child suffering from lack of affection from either parent.

Now I myself, as I said, have had no opportunity of judging the character and personalities of the parties, but in this respect it is pertinent to quote the opinions of the Landgericht at Dusseldorf. Of the mother the court had this to say:

> "She comes from a good family and has had an exceptionally good upbringing, and apparently has proved herself to be a good mother."

On the other hand the court took rather an adverse view of the father, regarding him as somewhat unstable, even holding it against him that he had disobeyed the orders of the court and in particular had taken the child out of its jurisdiction. In this respect, as submitted by Mr. Mawalla for the father, this should not really be held against the father, as the paramount consideration is the interest of the child, and he has referred me to the *Conflict of Laws* by Robert A. Leflar, an American publication, wherein it is stated at p. 180:

> "The welfare of the child should be the prime consideration in any adjudication of its custody, with the interests of the parents definitely a matter of secondary importance. Even disobedience of court orders by the parent seeking custody should not influence the court against that parent to the disadvantage of the child."

So I will say at once I am not holding it against the father that he has disobeyed the court orders.

Further, I fully agree with Mr. Mawalla's submission that as we have no legislation for reciprocal enforcement of judgments between this country and the Federal Republic of Germany, this court is not bound to follow the decision of the Landgericht of Germany, but, as Mr. Mawalla would himself concede, it is certainly of persuasive authority and I lean heavily on its observations and decision. It is not irrelevant to note that the court, the Landgericht, sat as a Bench of three judges, one of them a woman. Whether this was just coincidental

or is the practice of German courts to have both sexes represented on the Bench in custody cases, I must, with respect, commend it.

In the proceedings before the German courts one of the arguments advanced by the father against custody being awarded to the mother was that the child would not be brought up as a proper German national. This submission was made some time ago, possibly before the father had accepted employment in this country. The present circumstance of his having accepted such employment, and, as he has just informed the court, it is anticipated that he will be here for at least five years, weakens, to put it at very lowest, the force of his submission made before the German courts that the child would not be brought up as a proper German national, if he is to be away from Germany for five years. In fact one could go further and say that the present circumstances make such submission ring rather hollow and very much militate against it.

Now Mr. Mawalla has further argued that it is in the child's interest that custody be given to the father, as the father is in so much better financial position to look after the child and educate him than is the mother. The father's salary at the moment has been given at Shs. 12,500/- per month, plus fringe benefits. As opposed to that the mother's salary is DM400, which I think corresponds to Shs. 800/-, per month. She also has DM300, which is Shs. 600/-, as alimony from her previous marriage. In support of his argument Mr. Mawalla has cited the judgment of Hamlyn, J. in *Bi Ruth Pemba v. Daudi Mfalingundi*, [1970] H.C.D., p. 98, No. 105, wherein it was held:

> "The ultimate consideration before the court is, of course, the real welfare of the child. The appellant is living in a semi-military camp in the Dodoma District, while the respondent is in permanent employ in Dar es Salaam. From what I can gather from the record, the latter is in a reasonable financial position, whereas the appellant has only Shs. 213/- a month to support herself and the child. It is clear, I think, that the appellant could do little for the child on such a salary, and moreover the respondent has been found to be the real father. In such circumstances, it will evidently be the greatest benefit to this child if it can live with the father and be brought up in a place where financial considerations will have the effect of giving it proper food and environment and a chance of an education later. It would seem that a military camp could hardly supply these essentials to a child of this age."

This aspect as to the financial position of the parents and the effect such should have in determining to which to grant custody was dealt with by the Landgericht at Dusseldorf, and, with respect, I would adopt what that court said:

> "It does not speak against her (it does not tell against her, the mother) to have the custody of the child even if the father is financially better off because he is obliged to pay for the maintenance of the child, regardless of the fact that the custody is given to the mother, he is not prevented in financial matters to do for the child what he would if he had the custody of the child."

So that consideration obviously has little force in determining the question as to whom the custody should be granted. In fact, if the father is so well off, as this court has now been informed, the German courts may well feel inclined to increase the maintenance to be paid by the father should the case come again before them. It is certainly a relevant matter, as custody cases are always open to review in the light of the changing circumstances of the parents.

It had exercised my mind whether to ask the child Patrick himself what his feelings were, because after all he is the one who is most concerned, and whose interests determine the issue of these proceedings. However, I decided against

such a course, because, although he has impressed me as being intelligent, certainly of sufficient intelligence to know what he wants, it does not necessarily follow that he would know at his tender age what is best for him. In fact, how many of us even at a much more mature age know what is really best for us in the long run? A further factor which decided me against asking Patrick his views is that at the moment, living here in Tanzania in somewhat unreal conditions, it would not be fair at all, because his answer would probably be more influenced, in fact determined, by a preference for Tanzania, with the amenities it offers both at Tanga, where he has been staying with his father, and at Dar es Salaam where he has been staying with his mother, as compared with Dusseldorf, apart from the fact that each parent whilst having custody of him in turn has obviously vied with the other in spoiling the child, if I may say so; and this I do not hold against either of them, because each obviously wishes to make the best impression on the child. Therefore, with all due respect to Dusseldorf, if the child were to express a preference now it may well be a preference for Tanzania, where, contrasted with Dusseldorf, although a large industrial city, its engineering and chemical plants may not appear to a child of such age so attractive as the beaches of Dar es Salaam or the beaches of Tanga. That is why I have deliberately refrained from asking the child for his views and as to his preference, because it would not be fair and would, if anything, obfuscate these proceedings, hinder rather than help.

I think I have said enough to make it clear that, although I have not abdicated the court's responsibilities, and have tried to decide the issue as much as possible on its merits, the material in front of me is very limited and cannot compare with that before or in possession of the German courts, which are in a much better position to decide this issue than I am. I must deal with the submission of Mr. Mawalla that this court could not make an order which would mean the child leaving the jurisdiction of this court. I think from all the authorities it is abundantly clear that this court has such jurisdiction.

What greatly influences me is the law to be applied. I have already referred to s. 125 of the Law of Marriage Act 1971. Subsection (3) states:

> "There shall be a rebuttable presumption that it is for the good of an infant below the age of seven years to be with his or her mother, but in deciding whether the presumption applies to the facts of any particular case the court shall have regard to the undesirability of disturbing the life of an infant by changes of custody."

Now that is the presumption. Patrick was born on 10 June 1965. He is therefore under seven years of age. Therefore there is a presumption, though rebuttable, that the custody should be given to the mother. Nothing that has been adduced or submitted before me in any way rebuts such presumption. On the contrary, all the proceedings in the German courts, which, as I have already said, I do not regard as binding on me, but which, as indicated, have great persuasive effect, are in favour of that presumption being upheld. And it is also pertinent to quote another passage from *In re C.* (*S.*) (*An Infant*):

> "Additionally it was in the interest of the child that his future and upbringing should be decided in accordance with the notions of the country which was his home."

In the result I allow the application and grant the mother custody of the child with immediate effect.

Order accordingly.

For the plaintiff:
PS Talati (instructed by *Sayani Balsara & Velji*, Dar-es-Salaam)

For the defendant:
JS Mawalla (instructed by *JS Mawalla & Co*, Moshi)

Namwandu v Attorney-General
[1972] 1 EA 108 (HCU)

Division:	High Court of Uganda at Kampala
Date of judgment:	15 January 1972
Case Number:	215/1970 (29/72)
Before:	Saldanha J
Sourced by:	LawAfrica

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[1] Master and Servant – Vicarious liability – Acts of servant in course of employment – No duties being carried out – No vicarious liability.

[2] Constitutional Law – Government immunity – State of public emergency – No emergency in fact – Government not protected – Constitution Act 123 (*U.*).

Editor's Summary

A lorry carrying soldiers of the Uganda Army was involved in an accident in which some soldiers were killed. The soldiers were in uniform and armed. The civilian driver of the lorry with which the army lorry had been in collision together with a schoolgirl bystander were murdered by the soldiers.

Relatives of the deceased sued the Attorney-General alleging that the Government was vicariously responsible for the acts of the soldiers its employees. For the respondent it was contended that the soldiers were not acting in the course of their employment, and that the Government was protected in respect of acts done for the purpose of maintaining public order or anything done during, incidental to or consequent upon a state of public emergency.

Held –

(i) the soldiers were acting for their own purposes and not in exercise of any duties;

(ii) the Government was not vicariously liable for their acts;

(iii) the soldiers were not doing anything to maintain public order;

(iv) there was in fact no state of public emergency in spite of the Government's proclamation (*Nakabale v. Attorney-General* (3) followed).

Case dismissed.

Cases referred to in judgment:

(1) *Staton v. National Coal Board*, [1957] 2 All E.R. 667.

(2) *Muwonge v. Attorney-General of Uganda*, [1967] E.A. 17.

(3) *Nakabale v. Attorney-General*, H.C.C.C. 497 of 1969 (unreported).

Judgment

Saldanha J: This is a claim for damages arising out of an incident on 16 March 1967, at Namataba,

22 miles from Kampala on the Kampala-Jinja Road. The deceased, Clement Wampamba, was a lorry driver employed by the Uganda Sugar Factory at Lugazi. On that date he was driving a lorry loaded with sugar cane. The lorry came from the direction of Jinja and stopped at Namataba facing in the direction of Kampala.

Three lorries carrying soldiers of the Uganda Army were following this lorry. They were travelling in convoy about 30 yards apart and being driven fast. The first lorry passed the stationary lorry safely. The second lorry collided with the back of the lorry and overturned killing a number of soldiers. The third Army lorry stopped. Clement Wampamba took fright and fled. He was chased by the soldiers, caught and brought back to the scene of the accident, where two of the soldiers stabbed him to death with their bayonets, while the other soldiers looked on approvingly. A fourteen-year old school girl called Florence Bulira, who was returning from school and had stopped to watch, was flung to the ground and trampled to death by a third soldier.

The first plaintiff, Margaret Nanfuka Namwandu, who is the widow of Clement Wampamba, and the second plaintiff, Gabulieri Kate, the father of Florence, have sued the Attorney-General for damages in his representative capacity under the Government Proceedings Act. The suit is brought under the Law Reform (Miscellaneous Provisions) Act for the benefit of the members of the families of deceased persons.

The plaintiffs maintain that the soldiers acted in the course of their employment and that the Government of Uganda as their employer is vicariously liable. It is not disputed that the soldiers were in uniform, were armed and were travelling in Army lorries. The defendant does not dispute that the soldiers killed the driver of the lorry and the school girl. The circumstances under which they were killed are not challenged. The defendant, however, denies that the soldiers were acting in the course of their employment, and, consequently, deny that the Government of Uganda is vicariously liable for their wrongful conduct.

The law applicable is the common law of vicarious liability. The principles of the law governing the liability of the Attorney-General for the acts of the members of the Uganda Army are the same as those governing the liability of a master for the acts of his servant done in the course of his employment. The leading case in Uganda is *Muwonge v. Attorney-General of Uganda*, [1967] E.A. 17. The facts of this case were as follows. A number of policemen of the Uganda Government armed with 303 rifles were sent to quell a riot. A man called Matovu was killed during this riot. The shot which killed him was fired by a policeman who had seen Matovu's son run towards a house, had assumed that he was a rioter, and, having followed him, fired wantonly into the house not caring whom he killed or injured. It was held that the firing of the shot was an act done within the exercise of the policeman's duty for which the Government of Uganda was liable as master. The following passage from Newbold, P., summarises a master's vicarious liability for the acts of his servant done in the course of his employment:

> "I think it dangerous to lay down any general test as to the circumstances in which it can be said that a person is acting in the course of his employment. Each case must depend upon its own facts. All I can say, as I understand the law, is that even if the servant is acting deliberately, wantonly, negligently or criminally, even if he is acting for his own benefit, nevertheless if what he did was merely a manner of carrying out what he was employed to carry out then his acts are acts for which his master is liable."

The first part of the passage quoted above is an echo of the words of Finnemore, J., in *Staton v. National Coal Board*, [1957] 2 All E.R. 667. "There is no one test which is exhaustive."

In determining whether a servant's tort was committed by him in the course of his employment *Salmond on Torts*, 15th ed., at p. 620 lays down the following test:

> "It is clear that the master is responsible for acts actually authorized by him: for liability would exist in this case even if the relation between the parties was merely one of agency, and not one of service at all. But a master, as opposed to an employer of an independent contractor, is liable even for acts which he has not authorized, provided they are so connected with acts which he has authorized that they may rightly be regarded as modes – although improper modes – of doing them. In other words, a master is responsible not only for what he authorizes his servant to do, but also for the way in which he does it. If a servant does negligently that which he was authorized to do carefully, or if he does fraudulently that which he was authorized to do honestly, or if he does mistakenly that which

> he was authorized to do correctly, his master will answer for that negligence, fraud or mistake. On the other hand if the unauthorized and wrongful act of the servant is not so connected with the authorized act as to be a mode of doing, but is an independent act, the master is not responsible: for in such a case the servant is not acting in the course of his employment, but has gone outside of it. He can no longer be said to be doing although in a wrong and unauthorized way what he was authorized to do. He is doing what he was not authorized to do at all."

Applying these tests to the facts of the case before me can it be said that the soldiers were acting in the exercise of their duty, that they were acting in the course of their employment merely because they were in uniform, were armed and travelling in Army lorries? There is no evidence of what kind of duty they were performing. All we know is that three Army lorries carrying soldiers were proceeding from the direction of Jinja towards Kampala. It is probable that at the time of the incident they were not on any particular duty but were travelling from one place to another. They may have been on transfer or on their way to assume some kind of duty at their destination.

From the evidence before me it is clear that the soldiers, angry at seeing their comrades dead, sought to wreak vengeance. They acted wilfully, wantonly and cruelly. There was no justification or excuse for their conduct. Their acts were wrongful even criminal. Their acts were barbarous, savage and outrageous. There is no doubt that the individual soldiers who killed the two deceased persons would be liable in damages for their wrongful acts. But before the Government of Uganda can be held to be liable it must be proved that the soldiers were acting in the exercise of their duties. I find that they were not acting in the exercise of their duties. They were acting in furtherance of their own private purpose. Their acts were independent of and unconnected with their duties, whatever these may have been at the time. They were not acting in the exercise of their duty but had gone outside it.

Mr. Binaisa, who appears for the plaintiffs, has referred me to a number of cases in *Wright's Cases on the Law of Torts*. They are Canadian and New Zealand cases. The law reports in which they are reported are not available in Uganda. The short summaries contained in Wright are too brief to enable one to appreciate the full effect of these decisions.

Mr. Binaisa has also referred me to the cases mentioned in *Friedman's Modern Tort Cases* at pp. 374 and 375. After tracing the development of the law of vicarious liability Friedman states at p. 372:

> "In place of the old distinction between a servant indulging in a 'frolic' of his own and a servant who is making a 'detour', i.e. performing what he is instructed to do but in a manner which deviates slightly from what would be correct and within the scope of his instructions, there would now seem to be a difference between acts which the employment gives a servant the opportunity to do, and those which are undoubtedly connected with the type of work upon and for which the servant was engaged. Thus in the Morris case (*Morris v. C. W. Martin & Sons Ltd.*, [1965] 2 All E.R. 725) the employee was employed to clean and repair furs: hence his theft of the fur arose, out of and was connected with his employment: therefore the employers were liable. In the Leesh River Tea case (*Leesh River Tea Co. Ltd. v. British India Steam Navigation Co. Ltd.*, [1966] 3 All E.R. 593), however, the theft of the part of the ship by a servant of stevedores engaged in loading and unloading cargo, was quite outside the tasks normally involved in such duties. Hence, though the employment of the thief as a stevedore provided him with the opportunity to steal the part of the ship in question, such theft was not sufficiently connected with the employment

> in question to justify the conclusion that the act of the thief was one for which the ship owners should be liable to cargo-owners when, as a result of the theft, the ship was rendered unseaworthy and cargo was damaged."

Nothing in Wright or Friedman persuades me that the Attorney-General can be held to be liable. The facts of the case before me are in line with the *Leesh River Tea* case. The soldiers, because they were armed, because they were clothed in the anonymity of their uniforms, because a number of them happened to be together in some force, had the opportunity to commit the double murder with impunity. But what they did on that occasion was in no way connected with their duties.

It is with great reluctance that I have come to this conclusion. Similar incidents may have happened in the past and are bound to happen in the future. Persons aggrieved will find that the individuals responsible are not worth suing, if they can be traced at all, and they have no redress against the Government. But I must apply the law as I find it. It operates harshly in an emerging country especially when conditions are unstable. But the only answer lies in providing a statutory remedy.

Mr. Matovu, who appears for the defendant, claims immunity for the Government under the provisions of Art. 123 (4) (*b*) and (*d*) of the Constitution. As I have found that the Government is not liable the question of immunity does not arise. But in the event of my being wrong on the question of Government's vicarious liability I make the following finding on the question of immunity.

Art. 123 (4) (*b*) and (*d*) reads as follows–

> "(4) Notwithstanding any provision of Chapter 11 of this Constitution and any other law, no court shall make any decision or order or grant any remedy or relief in any proceedings instituted against the Government of Uganda or any person acting under the authority of the Government of Uganda whether before or after the commencement of this constitution in respect of . . .
>
> (*b*) Anything done or omitted to be done for the purpose of maintaining public order or public security in any part of Uganda during the period between the 22nd day of February, 1966, and the commencement of this Constitution (8th September, 1967); . . .
>
> (*d*) Anything done or omitted to be done during, incidental to or consequent upon the state of public emergency declared on the 22nd day of May, 1966."

A state of public emergency was declared on 23 May 1966. It is common knowledge that the Government extended the period of emergency from time to time, not because there was any real emergency, but for purposes of expediency, so as to enable them to keep in force emergency regulations. It is not in dispute that while there was a state of emergency in this sense at the time when the incident occurred, there was no real emergency, but, on the contrary, stability throughout the country. What the soldiers did was not "for the purpose of maintaining public order or public security". Their acts were not "incidental to or consequent upon the state of public emergency declared on the 23 May 1966". What effect is to be given to the word "during" in article 4 (*d*)?

This incident occurred during a period when there was a fictitious state of emergency in law but no real emergency in fact. I do not think Art. 123 (4) was intended to confer immunity on the Government when no real emergency existed. This question has been fully discussed by Goudie, J., in H.C.C.C. 497 of 1969, *Nakabale v. Attorney General* and with the views expressed by the judge I respectfully agree.

Case dismissed.

For the plaintiffs:
GL Binaisa, QC (instructed by *Binaisa & Co*, Kampala)

For the defendant:

MB Matovu (Senior Principal State Attorney)

K Ltd v Income Tax
[1972] 1 EA 112 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	29 March 1969
Case Number:	140/1967 (70/71)
Before:	Farrell J
Sourced by:	LawAfrica

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[1] Income Tax – Deductions – Expenditure – Must be for direct purpose of producing income.

[2] Income Tax – Deductions – Expenditure – Interest on unpaid dividends – Not deductible – East African Income Tax (*Management*) *Act* 1958, *s.* 14 (1).

Editor's Summary

The appellant company bought land and built a building on it partly with the help of a bank loan. The agreement provided that no profits should be distributed until the loan had been repaid. In order to avoid extra taxation the appellant declared dividends but did not pay them. After a time certain shareholders threatened to liquidate the company. As a compromise it was agreed that the dividends credited to the shareholders would be converted into loans bearing interest. Interest was credited to the shareholders' accounts but was not paid over.

The appellant claimed to deduct the interest from its total income and the Commissioner refused to allow the deduction.

As the interest had not been paid over, the issue was whether it constituted expenditure wholly and exclusively incurred in the production of the appellant's income.

Held –

(i) expenditure must be incurred for the direct purpose of producing income. (*Commissioner of Income Tax v. Buhemba Mines* (2) followed.)

(ii) The agreement did not constitute a loan to the company and the interest was not wholly and exclusively incurred in the production of income.

Appeal dismissed.

Cases referred to in judgment:

(1) *Commissioner of Taxes v. Munro* (1926), 38 C L.R. 153.

(2) *Commissioner of Income Tax v. Buhemba Mines*, 2 E.A.T.C. 333, [1957] E.A. 589.

(3) *De Vigier v. I.R.C.*, [1964] 2 All E.R. 907.

Judgment

Farrell J: In these two appeals which have been consolidated the parties are on the one hand K. Ltd., to which I shall refer as “the company”, and on the other the Commissioner-General of Income Tax, to whom I shall refer as “the commissioner”. The company appeals against the assessment of its income tax for the year 1965 and the decision of the local committee at Nakuru whereby the assessment was confirmed. The commissioner cross-appeals against certain parts of the decision of the local committee.

The company was incorporated in 1948, and in 1954 purchased a plot of land at Kisii and erected a building thereon. The building comprised shops and flats which were let out to tenants, and the income of the company at all material times consisted solely of the rents received from the tenants.

The capital of the company was acquired partly by contributions from shareholders and partly by a bank loan, which was granted on the condition that no profits should be distributed by way of dividend until the loan was paid off. The

company was thus in the unfortunate position that if no dividends were distributed it would become liable for extra tax, yet owing to the condition imposed by the bank no dividends could be paid. It sought to get round the difficulty by declaring dividends, but not paying them. Instead, the sums payable as dividends were credited to the accounts of shareholders as they became due.

For a time the shareholders were content with this arrangement but in 1965 certain of them threatened to sue the company and if necessary force it into liquidation if the dividends declared in the five preceding years were not forthwith paid. A compromise was reached whereby the shareholders agreed to forbear from instituting proceedings against the company if the company agreed (and I quote from the company's statement of facts) "to the conversion of dividend credits into loans in consideration of the company allowing interest on the said loan amounts with effect from the 1st July 1960". A resolution was duly passed by the company in June 1965, to give effect to this arrangement.

In its return of income for the relevant year, the company claimed to deduct from its total income the amount of interest credited as agreed to the accounts of its shareholders in respect of the unpaid dividends for that year and the preceding five years, amounting in all to Shs. 156,217/-. The commissioner refused to allow the deduction and the company appealed to the local committee in Nakuru. The local committee confirmed the assessment and gave its decision in the following terms:

> "The committee as laymen could only give a decision on the facts as they saw them. Both parties had the right of appeal to a Judge if the decision was disputed. In view of the affidavit and what the members felt was the intention behind the shareholders' action the Committee held that the money must be accepted as a loan and interest was allowable under s. 14 (3) (*a*). In view of the wording of s. 14 (3) (*a*), however, the interest was only to be allowed as and when it was paid to the shareholders. Assessment No. 56/15446 was confirmed."

The company appeals to this court against the decision, and the commissioner appeals that part of the decision which holds that the credit balances of the shareholders of the company should be accepted as a loan and that interest on such a loan should be allowed as an allowable deduction under the provisions of the relevant Act.

The law under which the issues fall to be decided is the East African Income Tax (Management) Act, 1958 (to which I shall, where necessary, refer as "the 1958 Act"), which replaced the previous Act, to which I shall refer as "the 1952 Act". Part IV of the Act is headed "Ascertainment of Total Income" and contains s. 14 of which the marginal note reads: "Deductions allowed". Subs. (1) of this section, so far as material, reads as follows:

> "(1) For the purpose of ascertaining the total income of any person for any year of income there shall be deducted all expenditure incurred in such year of income which is expenditure wholly and exclusively incurred by him in the production of such income and which is not expenditure in respect of which no deduction shall be allowed under section 15 . . ."

There is nothing in subs. (2) which is material to this case, but, whether they apply or not, it will be necessary to consider the opening words and para. (*a*) of subs. (3) which read as follows:

> "(3) Without prejudice to the operation of subsection (1), in ascertaining the total income of any person for any year of income the following amounts must be deducted:
>
> (*a*) the amount of interest paid in respect of such year of income by such

> person in respect of any money borrowed by him and employed in the production of the income; . . .”

Finally, it is necessary to note paragraph (*a*) of s. 15 (1) which prohibits any deduction in respect of:

> “(*a*) any expenditure or loss which is not wholly and exclusively incurred . . . in the production of the income; . . .”

In support of this submission that interest on the unpaid dividends was an allowable deduction, Mr. Mackie-Robertson for the company expressly disclaims any intention to rely on s. 14 (3) (*a*) of the Act, for the obvious reason that, as the interest has not been paid, it cannot be brought within the ambit of that paragraph. Instead he relies on the general words of subs. (1). He claims to be entitled to do so, notwithstanding that the particular provision in subs. (3) (*a*) is too narrow to cover the deductions in question, by reason of the opening words of subs. (3) “without prejudice to the operation of subs. (1)”. The effect of these words in his submission is that if a given deduction can be brought within any of the paragraphs of subs. (3) that is sufficient; but if it cannot, then the general words of subs. (1) are nevertheless to be given their full effect. In other words, it is not necessary for the tax-payer to bring his claim for a deduction within any of the particular instances set out in subs. (3); it is sufficient if he can show that it falls properly within the general description contained in subs. (1).

Counsel for the commissioner does not dissent from this approach, and I shall assume that the company’s submission on this point is correct. Accordingly, the first issue is whether the liability incurred by the company for the payment of interest on unpaid dividends was an expenditure wholly and exclusively incurred by it in the production of its income within the meaning of s. 14 (1). In the event of this issue being decided in favour of the company, there would arise a further issue whether the whole amount of the interest agreed to be paid for the years 1960 onwards should be treated as an allowable deduction in the year of assessment for which it is claimed, or only such part of it as is attributable to the year 1965.

It is common ground that, although the wording of s. 14 (1) is not exactly the same as in the corresponding provision of the 1952 Act, there is no material difference in the meaning of the two provisions, and both sides to some extent rely on the decision of the Court of Appeal in the *Commissioner of Income Tax v. Buhemba Mines*, 2 E.A.T.C., 333. This was a case decided under s. 14 (1) of the 1952 Act and the issue was whether expenses incurred by the respondent company in successfully resisting a winding-up petition were “outgoings and expenses wholly and exclusively incurred during the year of income by (the respondent) in the production of the income”. It was held that the words “in the production of the income” bore a narrower meaning than the words “for the purpose of the trade” found in the English legislation; that expenses incurred in resisting a winding-up petition are not incurred for the direct purpose of producing income; and that for an expense to be deductible under s. 14 (1) it must have been incurred for the direct purpose of producing profits.

In the judgment of Forbes, J.A. at p. 353 there occurs the following passage:

> “I have rejected the argument that the inclusion of specific items of expenditure allowable as deductions in s. 14 must be taken to confer any special and extended meaning on the words ‘wholly and exclusively incurred in the production of the income’. As I have already stated, I am unable to find any substantial difference between these words and the words of the New Zealand Act which were considered in the *Ward* case. In the *Ward* case the Judicial Committee held that the words of the New Zealand Act meant that an expense to be deductible–

> ‘must have been incurred for the direct purpose of producing profits’,
>
> and I am of the opinion that the same meaning must be attached to the words used in the East African Act.”

Mr. Mackie-Robertson for the company does not dispute that the above decision is as much an authority for the construction of s. 14 (1) of the 1958 Act as it was for the corresponding section of the 1952 Act, and concedes that in order to bring the deduction within the later subsection he must show that the expenditure was incurred for the direct purpose of producing the income.

The substance of the case for the company is put in this way. The bank overdraft can be regarded as loan capital used in the creation of the income-earning asset. The company would never have obtained overdraft facilities unless it had agreed to pay interest. Payment of interest to the bank was accordingly directly incurred for the purpose of obtaining rental income. The overdraft was progressively reduced out of the company’s profits, and the reason why dividends were not paid to the shareholders was that the company was using the amounts which were payable as dividends to reduce the overdraft. In other words the bank loan was being replaced by a shareholder’s loan. When the shareholders threatened to sue for their unpaid dividends, the only way in which the company could retain the money as a loan from the shareholders was by agreeing to pay interest. The interest payable to the shareholders should be regarded in the same light as the interest payable to the bank, and the loan from the shareholders should be regarded as part of the building out of which the income arises and as a charge directly incurred in the creation of the company’s income.

This is an ingenious argument, but many objections to it spring to the mind. One is raised by counsel for the commissioner who refers to an Australian case, *Federal Commissioner of Taxes v. Munro* (1926), 38 C.L.R. 153, referred to in Gunn’s Commonwealth Income Tax (7th edn.), para. 1717. The facts of that case are so remote to those now under consideration that it is not worthwhile setting them out. The only relevance of the case is to be found in the following passage from the judgment of Isaacs, J.:

> “The simple position is that the property and its rentals existed before the loan and remained intact and unaltered after the loan. Had the money borrowed been expended on the property so as to increase the rentals or so as to prevent depreciation which would have reduced the rentals, then it could have been properly said that the interest had been a means of gaining or producing the assessable income.”

So here the commissioner seeks to draw a distinction between the loan from the bank, which was given prior to and for the purpose of the erection of the building, and the so-called loan from the shareholders which was given several years after the building was completed.

Mr. Mackie-Robertson in reply puts the hypothetical case that the loan capital had included a fixed loan of £10,000 on mortgage, and after 5 years the loan had been called in. In such case it would have been necessary for the company to go into the money market and raise a new loan. The new loan would, he submits, have been an income-producing asset just as much as the original loan, and it would be immaterial that the building had been completed before the new loan was raised.

There is obviously some force in this submission, but it seems to lose sight of the requirement that the expenditure must be incurred for the direct purpose of producing income. The interest payable on the original bank loan no doubt falls within this description; but it is difficult to see how interest required to be paid on a loan made subsequently to the completion of the income-producing asset can

be so described, and in relation to the facts of the present case the word “direct” seems to have little relevance. If expenditure incurred in resisting an application for winding-up is not incurred for the direct purpose of the production of income, as was held in the *Buhemba Mines* case, then by parity of reasoning it would appear that money agreed to be paid to the shareholders to induce them not to take proceedings against the company is equally not expenditure incurred directly for the purpose of producing income. Nor is the hypothetical case put forward by Mr. Mackie-Robertson apposite to the facts now before the court, since only by doing violence to the ordinary meaning of language can the agreement of the shareholders not to insist on immediate payment of their arrears of dividend be described as a loan.

I must give this point a little more consideration than it appears to merit, in view of the finding of the local committee that there was a loan, and the specific appeal of the commissioner against that finding. As the case has been presented in this Court, the point has little direct materiality. The position would be different if the company had relied on s. 14 (3) (*a*) – as I suspect it may have done before the local committee – but it has chosen not to do so now. However, in order to establish its claim that the interest was paid for the direct purpose of earning income, the company, basing its case on sub.s. (1), is driven to argue that money was borrowed from the shareholders and that such borrowed money was employed in the production of the income. As to this contention I will content myself by suggesting that there was no more a loan to the company from the shareholders than there is a loan by a decree-holder to a defaulting judgment-debtor who agrees to pay the decretal amount by instalments. The case of *De Vigier v. I.R.C.*, [1964] 2 All E.R. 907 to which I was referred is clearly distinguishable as in that case a payment of money was made, and in due course the money was repaid. That was held to be a loan. Here no money was repaid by the shareholders to the company, and in my view there was no loan, but only a debt.

There is only one other point I find it necessary to mention. Mr. Mackie-Robertson has referred the court to the following passage which occurs in Simon’s Income Tax, Vol. 2, 1964 – 65 Replacement, at p. 340:

> “The general rule is that an item of expense can be deducted in computing the profits of a trade if its deduction would be justified on business and accountancy principles, but that, if a particular kind of deduction is statutorily prohibited, the deduction cannot be made even though it would be proper to make it from the point of view of commercial accountancy.”

The passage was cited primarily in support of his contention that for the purpose of s. 14 (1), it is unnecessary to show that the money was actually paid (as would be the case under subs. (3) (*a*)), but that it is sufficient if the debt was incurred, even though payment was to be made at a later date, since the debt once incurred would be justifiably entered on the debit side in computing the profits of the business in the year in which it was incurred.

In conformity with this principle counsel in his argument refers several times to “business and accountancy principles” as justifying the deduction claimed in this case. The court has not been referred to any authority which decides that in order that an item of expenditure may fall within the description in subs. (1) the money must actually have been paid, and I do not find it necessary to make any finding on this point. But it is to be noted that the passage cited was also brought to the notice of the court in the *Buhemba Mines* case where it is mentioned at p. 350; but it did not avail the appellant in that case so as to prevent a finding that the deduction claimed was not allowable, and the reason was that, although the deduction might properly have been made from the point of view of commercial accountancy, it was in fact statutorily prohibited by s. 15 (*b*) of the 1952

Act, which is to the same effect as s. 15 (1) (*a*) of the 1958 Act, to which I have already referred. The passage in question is, of course, a statement of the English law. It is, however, equally applicable to the law in this country, provided that it is borne in mind that the statutory prohibitions here are different. In effect it is valueless to rely on the principles of commercial accountancy alone as justifying a deduction, without at the same time paying heed to the statutory prohibitions, and in the forefront of such statutory prohibitions is that "no deduction shall be allowable in respect of expenditure or loss which is not wholly and exclusively incurred . . . in the production of the income". What is meant by that has already been fully considered in the light of the decision in the *Buhemba Mines* case.

For the above reasons the company's appeal is dismissed and the commissioner's appeal is allowed, in either case with costs against the company.

Order accordingly.

For the appellant:
JA Mackie-Robertson QC and *J Rayani*

For the respondent:
JM Khainwa (Assistant Counsel to the Community)

Mbarak v Patel and another
[1972] 1 EA 117 (SCK)

Division: Supreme Court of Kenya at Mombasa

Date of judgment: 7 April 1961

Case Number: 106/1960 (144/71)

Before: Edmonds J

Sourced by: LawAfrica

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[1] Land – Certificate of ownership – Conclusive proof of ownership only at date of issue not subsequently – Land Titles Act (*Cap.* 282), *s.* 21 (*K.*).

[2] Land – Certificate of interest – Obtainable only immediately after coming into force of Act – Land Titles Act (*Cap.* 282), *s.* 20 (*K.*).

[3] Land – Creation of interests – Subsequent to Certificate of ownership – Governed by Part II of Land Titles Act (*Cap.* 282), (*K.*).

[4] Land – Lease – Not exceeding year – Registration not required for validity – Land Titles Act (*Cap.* 282), *ss.* 21, 57, 58 (*K.*) – *Indian Transfer of Property Act* 1882, *s.* 107.

Editor's Summary

The plaintiff erected a house on land not belonging to him and which was subsequently sold to the first defendant. The issue was whether the plaintiff had any title to the house on the first defendant's land. The title to the land was governed by the Land Titles Act (Cap. 282).

The defendants contended that in the absence of a note or memorandum of the letting or licence on the title of the plot the plaintiff had no title to the house, that any owner of a house must obtain a certificate of interest under the Land Titles Act, s. 20, and that such a certificate can be obtained at any time, that the amendment to s. 58 of the Land Titles Act was not retrospective, and that if reliance be placed on s. 107 of the Indian Transfer of Property Act 1882, that this is inconsistent with s. 58 of the Land Titles Act, which prevails as the later Act, hereby causing any short term lease to be registrable, and that s. 57 of the Land Titles Act requires the registration of all interests.

[References in the judgment are to the Land Titles Ordinance and the Registration of Titles Ordinance. These are now respectively the Land Titles Act (Cap. 282) and the Registration of Titles Act (Cap. 281)].

Held –

(i) a certificate of interest under s. 20, Land Titles Act could only be obtained within the prescribed period after the coming into force of the Act;

(ii) a certificate of ownership is only conclusive proof of ownership at the date of the certificate and not at any future time.

(iii) after the issue of the certificate, the creation of future interests in land is provided for by Part II of the Act:

(iv) the amendment to s. 58 of the Land Titles Act by the 1959 Act was not retrospective;

(v) a lease not exceeding a year does not require registration under s. 107, Indian Transfer of Property Act 1882, and only documents affecting a holding which are required to be reduced to writing must be registered under s. 57, Land Titles Act;

(vi) there is no conflict between the two provisions as s. 57 requires the registration only of documents affecting the holding and not of interests affecting the holding;

(vii) short term agreements do not require to be registered to be valid (dictum of Webb, J., in *Farrar v. Adamjee* (1) not followed; *Wakf Commissioner v. Alimohamed Ali Nahdi* (2) distinguished).

Order accordingly.

Cases referred to in judgment:

(1) *Farrar v. Adamjee* (1934), 16 K.L.R. 40.

(2) *Wakf Commissioner v. Alimohamed Ali Nahdi* (1951), 18 E.A.C.A. 86.

Judgment

Edmonds J: The plaintiff has filed this suit alleging that he was the tenant of a portion of a piece of land known as Plot 139, Section XI, Majengo Simba, in Mombasa which the first defendant acquired by purchase on 30 April 1957. The plaintiff had erected a wattle and daub house on the portion of land, and it is alleged by him that the agreed rent of the portion was Shs. 5/- a month, but that, on the first defendant's acquiring the land, the latter sought to demand a monthly rent of Shs. 45/-. This the plaintiff refused to pay, and it is alleged in his plaint that on 15 August 1959, the second defendant, as the agent of the first defendant, distrained upon and sold the house by public auction. It is as a consequence of this action that the plaintiff has filed this suit claiming damages for trespass, conversion and illegal distress.

A preliminary issue has been argued as to whether the plaintiff had, at the time of distress, any title to the house on the land of the first defendant under the Land Titles Ordinance, and for the purpose of this issue, the following facts are agreed:

1. A Certificate of Ownership in respect of this plot was issued under the Land Titles Ordinance to William Africanus Bowen, now deceased, on 13 June 1917;
2. On 25 June 1928, the Certificate of Ownership was replaced by a Certificate of Title under the Town Planning (Amendment) Ordinance, 1927;
3. Title to the plot is nevertheless governed by the Land Titles Ordinance;
4. In July 1954, the estate in fee in the plot was conveyed to the first defendant.
5. The house erected by the plaintiff on the plot was of wattle and daub, is a fixture and not severable from the land, and was erected after the issue of the Certificate of Ownership on 13

June 1917 but before May 1954.

6. The plaintiff’s tenancy was monthly.

It is the contention of the defendants that, at the time of distress, the plaintiff had no title to the portion of land on which the house was erected and that consequently his suit must fail. They rely for this contention very largely upon the interpretation which they contend was given to certain sections of the Land Titles Ordinance by Webb, J., as he then was, in *Farrar v. Adamjee* (1934), 16 K.L.R. 40, an interpretation which, it is further contended, was approved by the Court of Appeal for Eastern Africa in *Wakf Commissioner v. Alimohamed Ali Nahdi* (1951), 18 E.A.C.A. 86. In the *Farrar* case the respondent Adamjee, in execution of a judgment obtained by him against one Albert Farrar, effected attachment upon a house occupied by Albert Farrar but standing upon a plot of land in the name of the appellant Henry William Farrar. The appellant took out an originating summons claiming the release of the house from attachment on the grounds that the house was his property, there being no note or memorandum of any lease or licence in favour of Albert Farrar registered against the appellant's title. The issue before the trial magistrate and before the judge was whether or not the Certificate of Title under the Land Titles Ordinance was conclusive proof of the appellant's title in the land and house standing thereon, in the absence of any note or memorandum of Albert Farrar's interest against the title. The nature of the building in that case and of the circumstances of the occupation of the land by Albert Farrar are very similar to the building and circumstances of the plaintiff's occupation of the first defendant's land in the instant case, and I think it is useful at this stage to quote the following extracts from the judgment of the judge at p. 41:

> "I understand that buildings or huts of the type with which the present case deals are commonly erected upon the land of others in Mombasa and its neighbourhood either in consideration of a monthly rent for the site, or, as here, by the permission of the landowner. In such circumstances the owner of the building stands in the relation either of monthly tenant or of licensee to the landowner, and I understand that it has never been the practice for the owners of such buildings to have their interest (whatever it be) noted in the Land Registry, although the buildings are frequently made a security for loans by the deposit of some sort of memorandum of charge in the Registry of Documents, and, if they are sold, the purchaser either becomes tenant of the site or removes the materials."

The judge then continued with these words:

> "The object of introducing registration of title is, it may be presumed, to simplify titles and to provide a means by which an intending purchaser may easily and accurately ascertain the incumbrances and interests to which the lands are subject, and it is usual, I think, for registration laws to exempt from the necessity for registration tenancies or interests of such a temporary nature as not to constitute any real incumbrance on the vendor's title. But, perhaps by an oversight, the Land Titles Ordinance, under which the title of the appellant was registered, contains no such exception and its provisions seem to be wide enough to require registration or mention of even so slender an interest as this."

The judge then proceeded to consider the provisions of a number of relevant sections of the Land Titles Ordinance. At this stage I shall do no more than refer to s. 21 by which it is provided, *inter alia*, that:

> "a certificate of ownership shall be conclusive proof that the person to whom such certificate is granted is the owner of the coconut trees, houses and buildings on the land . . . at the date of the certificate unless there shall be noted thereon a memorandum to the contrary effect."

Having considered the provisions of all those sections, Webb, J. then went on to give the following tentative view at p. 42:

> "So far, then, as the Land Titles Ordinance goes, one might think that, if (as is the case here) there were no such memorandum, the appellant's Certificate of Title would be conclusive proof, under s. 21, that he is the owner of all the buildings of the land comprised therein."

However, he finally came to the view, as a consequence of the provisions of the Registration of Titles Ordinance (Cap. 160 of the Laws of Kenya) which applied to the Certificate of Title in that case by virtue of its issue after 21 January 1920, the effective date of that Ordinance, and particularly as a consequence of s. 41 under which registration of a lease or licence or interest for a period not exceeding twelve months is valid without registration, that, where:

> "buildings have been erected by a person other than the landowner on land comprised in a Certificate of Ownership issued after 21 January 1920, such certificate, even though it contains no 'memorandum to the contrary effect', is not conclusive proof that the person to whom it was granted is the owner of such buildings."

I have quoted from the judgment in the *Farrar* case at some length in order to make it clear that the ratio decidendi was based, not upon the provisions of the Land Titles Ordinance, but upon those of the Registration of Titles Ordinance, and that, when the judge said, as I have quoted:

> " . . . one might think that, if (as is the case here) there were no such memorandum, the appellant's certificate of title would be conclusive proof, under s. 21, that he is the owner of all the buildings on the land comprised therein"

his statement amounts, in my opinion, to no more than a suggested or possible view of the effect of the provisions of the Land Titles Ordinance and, moreover, a view, which even if stretched to the extent of being construed as a firm opinion, must be regarded as obiter dictum. Similarly, I think it may be said that although the Court of Appeal in the *Wakf Commissioner* case did not expressly disapprove of the suggested interpretation of Webb, J., the correctness of that interpretation was never in issue before the Court. Moreover, I think that the case before the Court of Appeal can be distinguished from the instant case as the circumstances leading up to the consideration of the application of the Land Titles Ordinance to the facts of that case are entirely different. In that case a testatrix, a Mohamedan woman, sought by her will to effect a disposition of a house separately from the land on which it stood and it was held that, even if Mohamedan law recognises such a disposition, it must be regarded as being ousted by the Land Titles Ordinance and:

> "that, if all these provisions of the Land Titles Ordinance are taken into consideration and applied to the facts of the case, the necessary result is that it was incompetent to the testatrix, if such was her intention, to make a testamentary disposition of the house apart from the land on which it stands . . . ."

It will therefore be clear that in that case the Court of Appeal was considering only the question of whether, in view of the provisions of the Land Titles Ordinance, a disposition of a house separately from the land on which it stood could be made. The Court was not concerned with the question which was before Webb, J., and which is now before me, namely, whether a Certificate of Ownership is conclusive proof of ownership in the absence of any note or memorandum of the interest of an existing licensee or short-term lessee. A pertinent passage appears in the judgment of Lockhart-Smith, J.A. who gave

the principal judgment of the Court of Appeal and it serves, I think, to emphasize the distinction between the cases. The passage appears at p. 93 of the report:

> "There has never been any suggestion that the land in dispute in the present case has been brought under the Registration of Titles Ordinance, nor that the house on such land was erected under licence from the landowner by a person other than such owner, or by a trespasser. The testatrix refers to the house as '*her* house which is hired by Kapra Sura'.
>
> In such circumstances, Webb, J., would have held, presumably, that the Certificate of Title under the Land Titles Ordinance was conclusive proof that the holder of such certificate was the owner of any buildings erected on the land comprised therein."

It is notable that the house was not erected by the occupier as it was in the instant case. But more notable still is Lockhart-Smith, J.A.'s reference to what Webb, J., "presumably" would have held. He does not comment on the views of Webb, J. because, of course, the ratio decidendi in the *Farrar* case was quite different from that in the case before the Court of Appeal. In my opinion, therefore, there is no decision on the interpretation of the Land Titles Ordinance as it relates to circumstances such as those that are before me in this case, and I am in no way bound by the tentative opinion of Webb, J. in the *Farrar* case.

I will now deal with the submissions of the defence in support of the proposition that in the absence of any memorandum or note of the licence or letting to the plaintiff against the title of the first defendant, the plaintiff has no title to the house and land on which it stands, and therefore no cause of action in the present suit. It should be noted at the very outset that the provisions of the Registration of Titles Ordinance and particularly those of s. 41 thereof, do not apply to the Certificate of Title issued in respect of the piece of land of which the first defendant is now the registered owner. That Ordinance was applied only to Certificates of Title issued after 21 January 1920. The original certificate respecting the land in this case was issued on 13 June 1917.

I now turn to a consideration of the effect of the provisions of the Land Titles Ordinance as it affects the respective claims of the plaintiff and the first defendant to title to the house and land on which it stands. By s. 15 it is provided that persons having any claim to immovable property shall, before the expiration of six months from the date of the application of the Ordinance, make a claim to such officer as is appointed. The period of six months may be extended in certain circumstances, but no claim may be entertained after the expiration of eighteen months from the date of the application of the Ordinance. By subs. (2) of that section every claim shall be in respect of an estate in fee in land or such other interests therein. Under s. 18 the Recorder of Titles is directed to consider and adjudicate upon the claims submitted and under s. 20:

> "At the expiration of the period of six months from the date of the application of the provisions of this Ordinance as aforesaid or as soon thereafter as shall be possible, the Recorder of Titles shall give to those persons whose right to any immovable property or any interest therein shall have been determined a certificate of title."

S. 20 (2) sets out the three kinds of certificates that should be issued. The first is a certificate of ownership which is to be granted to those persons "whose claim to an estate in fee in land shall have been upheld". The second is a certificate of mortgage which is to be granted to mortgagees of any land, and the third a certificate of interest which is to be granted to persons who claim any other interest or right to or in the land such as by way of lease, charge, lien, encumbrance

or other such interest. Then come the important provisions of ss. 21 and 27 (1) and (2) which I will quote in full.

> "21. Save as in this Ordinance otherwise expressly provided every certificate of title duly authenticated under the hand and seal of the Recorder of Titles shall be conclusive evidence against all persons (including the Crown) of the several matters therein contained and a certificate of ownership shall be conclusive proof that the person to whom such certificate is granted is the owner of the coconut trees, houses and buildings on the land in respect of which such certificate is granted, at the date of the certificate, unless there shall be noted thereon in the manner hereinafter provided a memorandum to the contrary effect."
>
> "27. (1) Every certificate of title shall set forth a description of the immovable property therein referred to, with figures and references necessary to identify it on the plan or map of the area in which it is situate and a correct statement of the right, title or interest of the person to whom it is issued.
>
> (2) The Recorder of Titles shall note thereon in such manner as to preserve their priority a memorandum of the particulars of all subsisting mortgages or other encumbrances or of any lease to which the property may be subject and of the right or interest in the said property existing at the date of the certificate of any person other than the person to whom the certificate is issued."

It was contended for the defendant that under the provisions of the sections to which I have referred, any owner of a house on land, in order to preserve and secure his interest, must obtain a certificate of interest under s. 20, irrespective of when that interest accrued. It is contended that despite the provisions of s. 15 which provides for a limited period from the date of the application of the Ordinance under which a claim must be made, a certificate of interest may be obtained at any time. For this proposition it is argued that the words "or as soon thereafter as shall be possible" appearing in s. 20 (1) envisage a claim for a certificate of interest subsequent to the issue of the original Certificate of Ownership. But this contention is clearly wrong. The words "or so soon thereafter as shall be possible" appearing in s. 20 (1) relate to the time within which the Recorder of Titles must issue his certificate of title after having considered and adjudicated upon any claim made within the time prescribed by s. 15, and not to the time within which a claim must be made. The provisions of Part I of the Ordinance, within which the sections to which I have referred fall, relate to the steps to be taken in regard to the application for the three types of certificate of title in respect of ownership or interests existing at the date of the application of the Ordinance, claims for which have to be made within a stated period from the date of the application of the Ordinance. S. 21 does no more than say that a certificate of ownership is conclusive proof of unfettered ownership "at the date of the certificate" unless there is a memorandum or note thereon to the contrary effect. The provisions of that section clearly relate, it must be noted, to the position as at the date of the certificate, and not thereafter. Part II of the Ordinance, on the other hand, deals with the registration of interests subsequent to the issue of certificates of ownership under Part I. The title to Part II is in the following words:

> "Registration of documents affecting holdings in respect of which a certificate of ownership shall have been granted."

and in s. 57 it is stated what shall be done "after" the issue of a certificate of ownership in regard to any document affecting the holding under that certificate. Similarly, by s. 88, which falls under Part III of the Ordinance, provision is made as to what should be done in respect of the creation of interests affecting property

"after" the expiry of the time for making claims but before a certificate has been issued.

It is therefore my undoubted view that the provisions of ss. 20 and 21 refer only to the existence of those claims to ownership or interests in land at the date of the issue of certificates upon claims preferred within, at the most, eighteen months of the date of the application of the Ordinance. The plaintiff's house was erected, and therefore his interest as a monthly tenant or licensee of the land accrued, after the issue of the certificate of ownership to the first defendant's predecessor in title on 13 June 1917. Thus the provisions of Part II of the Ordinance apply. As regards the necessity or otherwise of registration of that interest against that title, and as regards the plaintiff's interest which accrued subsequent to the issue of the certificate of title, it is necessary to consider the provisions of Part II of the Ordinance in order to decide what interest, if any, he has in the land in the absence of any note or memorandum registered against the title under the provisions of Part II. S. 57 is in these terms:

> "57. After the issue of a certificate of ownership of a holding under this Ordinance every document affecting such holding or any interest in such holding shall, subject to the provisions hereinafter contained, be registered in the register book.
>
> Provided that powers of attorney relating to or affecting any such holding or any interest in any such holding, and revocations of such powers, which have been duly registered under and in accordance with the provisions of the Registration of Titles Ordinance shall be deemed to have been registered under and for the purposes of this Ordinance."

The term "holding" is defined by s. 55 (2) as including "the land and the coconut trees, houses and buildings for the time being on the land".

By s. 58 it is provided that every document unless so registered "shall be deemed void" subject to certain exceptions which are set out under subs. (5) of that section. This subsection was amended under the Land Titles (Amendment) Ordinance, 1959 which came into operation with effect from 1 January 1961, by the addition of a further exception by which "a lease for one year only or for any term not exceeding one year" was made incapable of registration. It is contended for the defendants that the effect of that amendment was not and is not retrospective. I think that is right. But it is contended for the plaintiff that the effect is to clear up any doubt that may have arisen as a consequence of the *Farrar* case, that no alteration of the law was intended or was in fact effected by the amendment, and that, in fact, registration of such a lease was never necessary under the Ordinance before amendment. I think the submission for the plaintiff is correct.

The Indian Transfer of Property Act, 1882 is applied to Kenya. By s. 107 it is provided as follows:

> "A lease of immovable property from year to year, or for any term exceeding one year, or reserving a yearly rent, can be made only by a registered instrument.
>
> All other leases of immovable property may be made either by a registered instrument or by oral agreement accompanied by delivery of possession."

As a consequence of this provision, a lease for a year or less than a year does not require registration, and furthermore does not require any document embodying the terms of the lease. When, therefore, it is stated in s. 57 of the Land Titles Ordinance that "every document affecting such holding . . . shall be registered", what can the implications of those words be? The section does not say that every interest affecting such holding shall be reduced to writing and registered,

and, in my view, the only interpretation that can be placed upon the section is that any interest affecting such holding which under any law is required to be reduced to writing, must be registered. And it would then follow that any transaction, not requiring reduction to writing, would not under the section, require registration.

It is, however, contended for the defendants that s. 107 of the Transfer of Property Act is inconsistent with the provisions of the Land Titles Ordinance, and that as the Ordinance is the later of two enactments, its provisions will prevail over those of the Transfer of Property Act. If there is inconsistency, then no doubt this contention is sound. It is argued first that the inconsistency arises from the provisions of s. 21 where it is stated that:

> "Save as in this Ordinance otherwise expressly provided every certificate of title duly authenticated under the hand and seal of the Recorder of Titles shall be conclusive evidence against all persons (including the Crown) of the several matters therein contained . . ."

that there is no other express provision to the contrary in the Ordinance, and therefore a short term lease requires registration. But s. 21 must be read as a whole and in the general context and purpose of Part I of the Ordinance, and reliance cannot be placed only upon the words which I have quoted above. If the section is read as a whole, then I think it is manifest, as I have indicated already, that a certificate of title is conclusive evidence of the matters therein contained only as at the date of the certificate. The effect and purpose of the section in my view is to do no more than guarantee title as issued by the Recorder of Titles, and it has no relation whatever to dealings with the land or interest therein subsequent to the date of issue.

It is further contended that s. 58 of the Land Titles Ordinance is inconsistent with s. 107 of the Transfer of Property Act, and it is argued that, as s. 58 makes void any document not registered, then if parties choose to reduce to writing the terms of a short-term lease but do not register the same, they would be penalised and at a disadvantage as against those parties who rely on an oral agreement. But the effect of s. 107 of the Act is to make short leases of equal force and effect whether or not registered, while s. 57 of the Ordinance implies, as I have already said, the need for registration of all documents in respect of transactions which by any law are required to be reduced to writing.

It was further contended that where the legislature intends an exception there must be express provision. I agree. But s. 57 requires registration of all documents, not, again be it noted, all interests, and the exception to that requirement is expressly provided by legislation under s. 107 of the Transfer of Property Act. As Webb, J. said in the *Farrar* case:

> " . . . it is usual, I think, for registration laws to exempt from the necessity for registration tenancies or interests of such a temporary nature as not to constitute any real incumbrance on the vendor's title."

And although he added that:

> "perhaps by an oversight, the Land Titles Ordinance, under which the title of the appellant was registered, contains no such exception and its provisions seem to be wide enough to require registration or mention of even so slender an interest as this",

I find myself, with the greatest respect, unable for the reasons I have given, to agree that the Ordinance does not provide any exception. It is my view that had the legislature intended that all interests including tenancies and interests

of a temporary nature, should be registered, it would have used the appropriate words and not used what I will term the restrictive word “document”.

In the result, therefore, I answer the preliminary issue confined as it is to the limited facts upon which counsel have sought a ruling, in the affirmative.

Order accordingly.

For the plaintiff:
KM Pandya

For the first defendant:
RK Mitra

For the second defendant:
IT Inamdar

Commissioner of Lands v Oginga Odinga
[1972] 1 EA 125 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	15 September 1971
Case Number:	1411/1968 (7/72)
Before:	Chanan Singh J
Sourced by:	LawAfrica

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[1] Costs – Person entitled to act as advocate – Two thirds – Rule not ultra vires – Advocates Act (*Cap.* 16), *s.* 48 (*K.*) – *Advocates* (*Remuneration*) *Order, r.* 2 (*K.*) – *Government Proceedings Act* (*Cap.* 40), *s.* 17 (*K.*).

[2] Statute – Rules made under statutory powers – Ultra vires – Costs to be awarded in same manner – Costs can be of different amount – Government Proceedings Act (*Cap.* 40), *s.* 17 (*K.*) – *Advocates* (*Remuneration*) *Order, r.* 2 (*K.*).

Editor’s Summary

In an action the Attorney-General obtained an order for costs. On taxation the taxing master reduced the bill by one third relying on the proviso to r. 2 of the Advocates (Remuneration) Order.

The Attorney-General appealed contending that the proviso was ultra vires s. 48 of the Advocates Act, and contrary to the provision in s. 17 of the Government Proceedings Act which states that costs in proceedings to which the government is a party shall be awarded in the same manner and on the same principles as in cases between subjects.

Held –

(i) the proviso was not ultra vires the Advocates Act;

(ii) the Government Proceedings Act only required costs to be awarded in the same manner, not taxed in the same amount.

Appeal dismissed.

No cases referred to in judgment

[*Editorial note*: The proviso to r. 2 of the Advocates (Remuneration) Order was repealed by the Advocates (Remuneration) (Amendment) Order 1972].

Judgment

Chanan Singh J: This is an appeal by the Attorney-General against an order by the deputy registrar awarding to the plaintiff a certain sum as costs and then reducing that sum by a third under the proviso to r. 2 of the Advocates (Remuneration) Order. That rule (omitting words not relevant here) reads as follows:

> "2. . . . the taxation of costs as between party and party in contentious matters in the High Court . . . shall be in accordance with this Order:

> Provided that in cases where costs are payable to a person entitled to act as an advocate by virtue of section 9 of the Act such person shall be entitled to charge and be paid (in addition to disbursements) only two-thirds of the profit costs to which he would otherwise be entitled."

Mr. Shields, for the Attorney-General, contends that the proviso is ultra vires the rule-making authority. Before examining that contention, however, it may be useful to look at some of the basic facts of the situation. It should be observed that the proviso speaks not of an "advocate" but of "a person entitled to act as an advocate". There is, thus, made by this rule a distinction between "advocates" and "persons entitled to act as advocates". An advocate is entitled to full costs and the latter category to two-thirds. The meaning of the last seven words seems somewhat obscure. If the justification for the reduction in costs is the fact that the person who is being remunerated is not an advocate but only a person entitled to act as an advocate, then to say that "he would otherwise" – i.e. otherwise than under the proviso – be entitled to full remuneration does not seem to make sense.

S. 9 of the Advocates Act to which reference is made in the proviso gives a list of Government officials each of whom is entitled "to act as an advocate" in connexion with the duties of his office "if he holds one of the qualifications specified in paragraphs (*a*), (*b*), (*c*) and (*d*) of section 12 (1) of this Act". By the word "paragraphs" the draftsman obviously meant "clauses". In any case, a person, before being admitted as an advocate, must be "duly qualified".

(1) by possessing one of the educational qualifications described in clauses (*a*) to (*d*) aforesaid, and must,

(2) unless exempted, be a pupil of a practitioner for a prescribed period and pass a prescribed examination after serving articles.

Thus, a person who is entitled to act under the provisions of s. 9 need not be "duly qualified" to be admitted as an "advocate". This may be one justification for paying him reduced remuneration.

In fact, Part VIII of the Advocates Act prohibits unqualified persons from acting as advocates (ss. 36 and 38) and from recovering costs in respect of certain types of work (s. 44). The Act, however, recognises the special position occupied by the Government of the country and by the E.A. Community and allows them to employ and to use as advocates persons who may not have all the qualifications required of advocates by law. Their position in regard to costs is safeguarded by law. If law made provision for the costs of "advocates" only, the position of persons covered by s. 9 would become doubtful.

There is another point that arises at this stage. A successful party who is awarded costs is not entitled to make a profit out of the employment of an advocate. He can recover court fees paid, reasonable expenses paid or payable to his witnesses and reasonable charges and fees paid or payable to his advocate or advocates. Whatever he receives over and above his disbursements he must pass on to his advocate or advocates: he cannot keep any part of it. If he does, the advocate will be sharing fees with an unqualified person and will be committing an offence contrary to s. 41 or other similar provision.

In the case of a private litigant (who is not interested in breaking the law), no difficulty arises. The profit costs in respect of advocate's work are simply paid over to the advocate. In fact, the advocate receives all monies and he pays over to his client only what is due to him under the judgment of the court.

In the case of a judgment with costs passed in favour of a Government department represented in Court by the Attorney-General, the position is entirely different. The State Counsel who acts for the department concerned is paid his salary and all other dues by the Government of Kenya. The costs recovered can

go only into revenue, not into the pockets of the State Counsel. In effect, costs are taken by the client, not by the advocate. Taxed costs do, I think, amount to more than the cost of the State Counsel to Government. If proviso to r. 2 did not exist, the spirit of the rules governing costs would require that the taxing master should, on each occasion, work out the true cost to the Government of the services rendered by the State Counsel concerned in relation to the court case in question and would then allow costs equal to that figure and no more. This procedure would involve elaborate calculations to find out the cost of salary, housing accommodation, leave, pension, etc., every time a Government department won a case against a private litigant. A rough and ready method of taxing bills of costs submitted by the Attorney-General would, it seems, be preferable to this time-consuming process. I think the proviso constitutes such a rough and ready method of taxation.

Having looked at the proviso from the point of view of general principles of costs, we can now examine the arguments advanced by Mr. Shields. The Advocates (Remuneration) Order was made under s. 48 (1) of the Advocates Act which empowers the Chief Justice, on the recommendations of the Law Society to "prescribe and regulate in such manner as he thinks fit the remuneration of advocates in respect of all professional business". It is at least arguable, although it has not been argued, that in the exercise of this power the remuneration of "advocates" only can be regulated, not the remuneration of persons who are entitled to act as advocates by a special provision of law. Again, the phrase "professional business" should be noted. Whether a person working for salary for a single employer can be said to be engaged in "professional business" is another arguable point. But this point also has not been raised and I will not consider or decide it.

Mr. Shields quotes s. 17 of the Government Proceedings Act (Cap. 40) which says that in any civil proceedings to which the Government is a party, costs "shall be awarded in the same manner and on the same principles as in cases between subjects". He contends that this means that the amount for which a bill of costs filed by the Attorney-General is taxed will be the same as that allowed to a private advocate in similar circumstances and that, therefore, r. 2 being inconsistent with an Act of Parliament is invalid. I find myself unable to accept that contention. S. 17 says that costs shall be "awarded" in the same way not that they shall be taxed at the same amount.

This is the position with regard to lawyers covered by s. 9 of the Advocates Act. If Government employs a private advocate to conduct a case and obtains a judgment with costs, then, I should think, the bill filed by such an advocate will be taxed at the full amount, because it will not be subject to r. 2.

My attention has also been drawn to s. 12 of the Government Proceedings Act (Cap. 40) and s. 8 of the Government Lands Act (Cap. 280). The former says that, "subject to the provisions of any other written law," civil proceedings by or against the Government shall be filed by or against the Attorney-General. The latter seems one "other written law" because it says that proceedings in relation to Government lands may be filed "by and in the name of the Commissioner". I think both these are procedural provisions and do not affect costs. Where the Attorney-General is made a party, he becomes a party only nominally, the real party remaining the Government of Kenya. R. 2 would apply in both cases.

In the result, I dismiss the summons with costs.

Order accordingly.

For the appellant:
JF Shields (Senior State Counsel)

For the respondent:
YP Vohra (instructed by *Vohra & Vohra*, Nairobi)

Income Tax v Holdings Ltd
[1972] 1 EA 128 (CAN)

Division:	Court of Appeal at Nairobi
Date of judgment:	10 December 1971
Case Number:	34/1971 (9/72)
Before:	Sir William Duffus P, Law Ag V-P and Mustafa JA
Sourced by:	LawAfrica
Appeal from:	High Court of Kenya – Simpson, J

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[1] Income Tax – Chargeable income – Taxpayer's business or other ventures to be considered together as one.

[2] Income Tax – Deductions – Dividends – Dividends from resident companies – Entire dividend income deductible – E.A. Income Tax (Management) Act 1958, s. 58 (c) and ss. 3 and 14.

[3] Income Tax Interpretation – Principles – Whole Act to be considered in relation to particular section to be interpreted.

Editor's Summary

The respondent company deducted all its income received from dividends from resident companies from its chargeable income. The Commissioner of Income Tax contended that this was incorrect, and that only the net income from such dividends (i.e. after deduction of expenses) should have been deducted. The High Court having held against the Commissioner, he appealed. [The argument turned on the interpretation of s. 58 (*c*) of the East African Income Tax (Management) Act 1958. This subsection has since been amended by the East African Income Tax (Management) Act 1970].

Held –

(i) in interpreting the section the whole Act must be considered in relation to the particular section and especially with reference to the interpretation section and the methods set out in the Act to arrive at what is the chargeable income;

(ii) the general rule is that a taxpayer's business or other ventures are considered together as one;

(iii) chargeable income should be arrived at by aggregating all the taxpayer's income and then deducting all the expenditure incurred in the production of this income;

(iv) s. 58 (*c*) (before the 1970 amendment) meant that the entire dividend received from resident companies should be deducted from the chargeable income and not the net dividend income after deducting expenses.

Appeal dismissed.

No cases referred to in judgment

10 December 1971. The following considered judgments were read.

Judgment

Sir William Duffus P: This is an appeal by the Commissioner-General of Income Tax against the decision of the High Court sitting in its appellate jurisdiction.

The appeal concerns the interpretation to be given to s. 58 (*c*) of the East African Tax (Management) Act, 1958 before it was amended by the East African Income Tax (Management) (Amendment) Act, 1970. S. 58 (*c*) at the relevant time stated:

"58 (*c*) tax upon the chargeable income of a person, other than any individual or any trustee, executor or administrator, in his capacity as such, shall be charged at the corporation rate specified for such year of income in the appropriate Income Tax Legislation:

Provided that where the chargeable income for any year of income of any such person, other than chargeable income in respect of gains or profits from life insurance business of an insurance company, includes income in respect of any dividend from any resident company such income shall be deducted from such chargeable income which but for such deduction would be charged at the corporation rate:"

The particular facts of this case show that the respondent company calculated its income chargeable to income tax for the year 1958 as follows:

"Income in respect of dividends from companies resident in the Territories		£81,549
Other miscellaneous income		£10,713
		£92,262
Less expenditure wholly and exclusively incurred the production of the above income in (s. 14)		
Loan stock interest	£31,842	
Other expenses	£ 3,354	
		£35,196
Chargeable income		£57,066
Deduct – Income in respect of dividends from companies resident in the Territories (s. 58 (*c*))		£81,549
Deficit		£24,483"

The Commissioner-General contends that the income in respect of dividends from companies resident in the Territories is not the aggregate of the gross dividends received from such sources but is rather the aggregate of the net dividends i.e. after deduction of the expenditure allowed under s. 14 of the Act. The Commissioner-General's case is that the expenditure of £35,196 should be apportioned pro rata between the income in respect of dividends from companies resident in the Territories, that is £81,549 and the other miscellaneous income of £10,713, and he arrived at a taxable income of £6,626, as set out below:

"Dividends from companies resident in the Territories (not chargeable)		£81,549
Less expenses	£81,549 × £35,196 / £92,262	£31,109
Net (not chargeable)		£50,440
Other miscellaneous income (chargeable)		£10,713
Less expenses	£10,713 × £35,196 / £92,262	£4,087
Taxable income		£6,626

Alternatively:	
Chargeable income (as calculated by the appellant)	£57,066
Less net dividends (as calculated by the respondent)	£50,440
Taxable income	£6,626”

The answer of course depends on the meaning of s. 58 (*c*) and in interpreting this section the whole Act must be considered in relation to the particular section and especially with reference to the interpretation section and the methods set out in the Act to arrive at what is the "chargeable income". The general rule is that a tax-payer's business or other ventures are considered together as one and the taxable income is the net income after deducting all expenditure wholly and exclusively incurred in the production of the income. The problem here is however more complex and the real question is whether income derived from the dividends of resident companies means the aggregate of the dividends so paid and does not mean the net amount of these dividends after deducting any expenses incurred by the tax-payer wholly in the production of this dividend income. These expenses might be practically nil but they could be quite substantial if the taxpayer had had to borrow the money to buy the shares in the resident company. It certainly would appear to be only fair and reasonable that the dividend income to be deducted from the chargeable income should only be to the extent by which the chargeable income has been increased by the dividend income, otherwise this might mean that the tax-payer could by greatly increasing his expenditure in obtaining the dividend income in fact obtain relief from paying any taxes on his other income.

The meaning of s. 58 (*c*) appears to be clear and unambiguous. The proviso refers to the position that arises when the "chargeable income for any year of income" includes "income in respect of any dividend from any resident company" and then such income shall be deducted from the chargeable income to arrive at the income on which tax is payable.

"Chargeable income" is defined in s. 2 of the Act as:

> " 'chargeable income' means the total income of any person for any year of income less any personal allowances to which he is entitled in respect of such year of income:"

But as the trial judge pointed out the respondent company is a corporation so there are no personal allowances and therefore "chargeable income" in fact means total income. Total income is defined in s. 2 as follows:

> " 'total income' means the aggregate amount of the income, other than income exempt from tax under Part III, of any person chargeable to tax under Part II as ascertained under Part IV;"

The reference to income exempt from income tax in Part III does not apply here. Part IV of the Act sets out the provisions for the ascertainment of the total income and s. 14 (1) provides *inter alia*:

> "14. (1) For the purpose of ascertaining the total income of any person for any year of income there shall be deducted all expenditure incurred in such year of income which is expenditure wholly and exclusively incurred by him in the production of such income and which is not expenditure in respect of which no deduction shall be allowed under section 15;"

S. 14 (4) also has some relevance and this states:

> "14. (4) Where the ascertainment of the total income of any person results in a deficit for any year of income, the amount of such deficit shall be an allowable deduction in ascertaining the total income of such person for the next succeeding year of income; (except that, for the purpose of this subsection in ascertaining the total income of a person whose income is chargeable at the corporation rate under the provisions of paragraph (*c*) of section 58, for any year of income, any income in respect of any dividend from any resident company from which tax was not deductible under the provisions of section 64 shall be excluded from such total income)."

Part II of the Act sets out how the tax is charged and s. 3 states *inter alia*:

> "3. Tax shall, subject to this Act, be charged for each year of income upon the income of any person which accrued in or was derived from (the Territories) in respect of
>
> (*a*) gains or profits from–
>
> (i) any business, for whatever period of time carried on;
>
> (ii) any employment or services rendered;
>
> (iii) any right granted to any other person for the use or occupation of any property;
>
> (*c*) dividends, interest or discounts;"

Mr. Deverell for the respondent company referred here to the difference between "gains and profits" under s. 3 (*a*) which would mean a net profit, and "dividends, interest or discounts" under s. 3 (*c*) which would be a reference of the actual amount received and not a net profit.

S. 7 refers to incomes from dividends paid by respondent companies and subs. (2) of this section again has some relevance. This section before the 1970 Amendment Act stated *inter alia*:

> "(2) Notwithstanding the provisions of Section 3 of this Act, a dividend paid to a non-resident person by a resident company shall, . . . be deemed not to be income of such person chargeable to tax."

This subsection and also s. 58 (*c*) make it quite clear that a resident company had to first include in its return income from dividends from other resident companies although by virtue of the proviso of s. 58 (*c*) these dividends were then deductible from the chargeable income before the tax is calculated. A very cumbersome method of procedure but yet still clearly stated in the Act!

Mr. Deverell also submitted that the expression "any dividend from any resident company" was a term of art and could only have meant the actual dividends paid.

Mr. Khaminwa appearing for the Commissioner-General on the other hand, although he could not refer to any specific provision of the Act, submitted that the meaning to be placed on s. 58 (*c*) read with s. 3 and s. 14 and in the context of the whole Act must have meant that the reference to income in respect of any dividend from the resident company must have meant "net dividend". He argued that to decide otherwise might lead to an absurdity and an unfair situation as the dividends had already been included in the chargeable income from which the actual expenditure had been deducted so that the full amount of the actual dividends should not again be deducted from the balance in order to arrive at the taxable income. Mr. Khaminwa was unable to refer to any provision in the Act providing for the apportionment of the expenditure and again he rather relied on what would be fair and reasonable in the circumstances.

The trial judge could find no ambiguity in the law and he accepted the interpretation put forward for the respondent company. He found that "chargeable income" in s. 58 (*c*) meant the total income of a tax-payer which included in this case both the dividend income and the miscellaneous income, from which there had been deducted all the expenditure wholly and inclusively incurred by the tax-payer in the production of such income. He accepted the respondent company's calculation. He then held that "income in respect of any dividend from any resident company" meant exactly what these words said and referred to the actual dividends paid. He held that there is no provision to first deduct any expenditure incurred by the tax-payer in the production of such dividend income and further that there was no provision to apportion or allow any

expenditure between dividend income and other income in the manner done by the Commissioner-General.

With respect I entirely agree with the judge. The provisions of the Act are clear and specific and must be given effect to. They provide that the chargeable income should be arrived at by aggregating all the tax-payer's income and then deducting all the expenditure incurred in the production of this income. There was no attempt made in the Act to provide that only the net income instead of the entire dividend income be deducted. I agree that the provisions as they stood were liable to allow a "tax loop-hole", but the provisions of the Act were as I have said explicit.

This tax loop-hole has now, however, been stopped by legislation. I refer to the East African Income Tax (Management) Act 1970. This Act now enacts that the dividends from a resident company shall not be included by another resident company as income. The amended Act amends the main Act by deleting the proviso of s. 58 (*c*), by amending s. 7 (2) so that the relevant portion of this section now reads:

> "7(2) Notwithstanding the provisions of s. 3 of this Act, a dividend paid to a resident company. . . . or to a non-resident person by a resident company shall . . . be deemed not to be income of such person chargeable to tax.",

and further by deleting from s. 14 (4) the words in the brackets coming after the words "year of income" in the fourth line of that subsection.

I would therefore dismiss this appeal with costs and allow a certificate for two counsel.

As Law Ag V-P: and Mustafa, J.A. agree, it is so ordered.

Law Ag V-P: I have read in draft the judgment prepared by the President. I agree with it, and cannot usefully add anything.

Mustafa JA: I also agree.

Appeal dismissed.

For the appellant:
JM Khaminwa (Ag. Deputy Counsel to the Community)

For the respondent:
WS Deverell and *P Hime* (instructed by *Kaplan & Stratton*, Nairobi)

Haining and others v Republic (No. 2)
[1972] 1 EA 133 (CAD)

Division:	Court of Appeal at Dar Es Salaam
Date of judgment:	14 December 1971
Case Number:	82/1971 (20/72)
Before:	Sir William Duffus P, Lutta and Mustafa JJA
Sourced by:	LawAfrica
Appeal from:	High Court of Tanzania – Saidi, C.J

[1] Criminal Practice and Procedure – Compensation – Government servant causing loss to government – Order mandatory – Penal Code, s. 248*A* (*T.*).

[2] Criminal Practice and Procedure – Compensation – Discretionary – Principles for award – Accused to be heard – Criminal Procedure Code, s. 176 (*T.*).

Editor's Summary

The appellants appealed against orders, made after their conviction, for compensation under s. 284A of the Penal Code and under s. 176 of the Criminal Procedure Code.

Held –

(i) an order must be made against a government servant when loss has been caused to the government;

(ii) the making of an order under s. 176 is discretionary and the court must be satisfied:

(*a*) that the prosecutor or a witness has suffered material loss as a consequence of the offence; and

(*b*) that substantial compensation would be recoverable from the accused in a civil suit; and

(*c*) that the amount ordered is fair and reasonable;

(iii) the court must hold an investigation and hear the accused.

Orders under s. 176 set aside.

No cases referred to in judgment

Judgment

The considered judgment of the court was read by **Sir William Duffus P:** This is an appeal against sentence. The first appellant, William Frank Haining, and the second appellant, Zahir Ahmed, pleaded guilty to obtaining money by false pretences, contrary to s. 302 of the Penal Code, in that in the month of May 1969, with intent to defraud, they obtained from the Government of Tanzania Shs. 513,343/10 by false pretences. Both these appellants were sentenced to 2½ years' imprisonment and the sentence on the first appellant was ordered to be served concurrently with the sentence passed at an earlier trial for an offence arising out of a similar set of circumstances.

In addition to this sentence the court, acting under the provisions of s. 176 (1) of the Criminal Procedure Code made an order for compensation against the first and second appellants, jointly and severally, to pay to the Attorney-General of Tanzania the sum of Shs. 513,343/10 in respect of the loss suffered by the Government.

The third appellant pleaded guilty to occasioning a loss to his employer, the Government, contrary to s. 284A of the Penal Code, in that between 5 February

1969, and 15 May 1969, he caused the Government to suffer a loss of Shs. 513,343/10. The third appellant (who was the fourth accused on the Information) was sentenced to 18 months' imprisonment and, along with a third accused person who has not appealed, was ordered, by virtue of the provisions of s. 284A (7) of the Penal Code to repay to the Republic of Tanzania compensation in respect of the sum of Shs. 513,343/10 loss by the Government. The third accused was, on account of ill-health, given a suspended sentence under the provisions of s. 394A of the Criminal Procedure Code.

[The court first considered and upheld the sentences of imprisonment and then continued.]

We now consider the orders for compensation. The Chief Justice made the following order:

> "Finally, I make an order for compensation in favour of the United Republic of Tanzania under s. 284A (7) of the Penal Code against the third and fourth accused, and another order for compensation in favour of the Attorney-General of Tanzania under s. 176 (1) of the Criminal Procedure Code against the first and second accused, jointly and severally, in respect of the sum of Shs. 513,343/10 lost by the Government."

The order for compensation under s. 284A (7) of the Penal Code is a mandatory order. This subsection reads:

> "Where the court convicts a person of an offence under this section, the court shall order such person to pay the specified authority compensation of an amount not exceeding the amount of the actual loss incurred by the specified authority and in assessing such compensation the court shall have regard to any extenuating circumstance it may consider relevant."

The question of the court's acting under subs. (7) was fully considered and argued before the Chief Justice when he was considering sentence and the appellant's advocates had the opportunity and did, in fact, put forward various extenuating circumstances in the appellant's favour. The Chief Justice fully and correctly considered the provisions of s. 284A (7) in making the order for compensation against the third appellant and we can see no reason to interfere with this order and the third appellant's appeal against the order for compensation under s. 284A is therefore dismissed.

We now consider the question as to the order for compensation under s. 176 of the Criminal Procedure Code and this is a more difficult problem. Mr. Kapila, for the first and second appellants on this question, first complained that this matter was never argued or brought before the Chief Justice when he was going into the matter of sentence and that these appellants had no opportunity to be heard on this order for compensation. The relevant portion of s. 176 of the Criminal Procedure Code states–

> "When an accused person is convicted by any court of any offence not punishable with death and it appears from the evidence that some other person, whether or not he is the prosecutor or a witness in the case, has suffered material loss or personal injury in consequence of the offence committed and that substantial compensation is, in the opinion of the court, recoverable by that person by civil suit, such court may, in its discretion and in addition to any other lawful punishment order the convicted person to pay to that other person such compensation, in kind or in money, as the court deems fair and reasonable."

The necessary requisites for an order for compensation are therefore:

(1) that it appears to the court from the evidence that the prosecutor or a

witness in the case has suffered material loss or personal injury as a consequence of the offence:

(2) that substantial compensation would be recoverable by that person in a civil suit: and

(3) the court then, in its discretion, may order the convicted person to pay such compensation as the court deems fair and reasonable.

Before, therefore, the trial court orders compensation it must be satisfied and decide that these requirements exist. This means that the court must consider and judicially determine first the factors (1) and (2) set out above and then exercise its discretion and make such order as it deems fair and reasonable.

Compensation is not a punishment as such but is an order made in addition to any other punishment and is an endeavour to settle, in a summary manner, any civil loss that the prosecutor or witness in the case may have suffered as a result of the offence. A convicted person would not ordinarily expect that an order for compensation would necessarily follow his conviction; thus, for an offence of obtaining money by false pretences under s. 302 of the Penal Code the punishment set out in that section is imprisonment for three years. An order under this section would usually be made on the application of the prosecutor but if not a court may clearly act on its own accord but in doing so it is performing a judicial act which would materially affect both the party receiving the compensation and the convicted person who has to pay the compensation. It is essential here that these persons, and more especially the convicted person, be given an opportunity of being heard. The convicted person should be called upon to show cause why an order should not be made. To do otherwise would be a breach of natural justice and would amount to a person being condemned without having a hearing. The necessity for this to be done would appear from the facts in this case. Thus, in considering the first essential, that is as to whether material loss has been suffered by the prosecutor or the witness, the question arises here as to whether this loss was suffered in consequence of the act either of the first and/or of the second appellant. In this case the court did not hear all the evidence and a plea of guilty was entered and there was no evidence as to the details of the loss suffered. There might have been other factors affecting the actual amount of the loss. As to the second essential, as to whether the first and second appellants would be liable to pay compensation in a civil action, the question arises as to what would be the liability of the first appellant. His liability, if any, would appear to lie in tort but the question would be, what would be the cause of action and, as for the second appellant, Mr. Kapila pointed out that one question is whether the action would lie against his firm, to whom apparently the excessive amount was paid under the contract, or would the second appellant be personally liable? Then, on the question of the assessment of the compensation, this is a matter in the discretion of the judge but in exercising this discretion and in deciding what amount would be fair and reasonable the court could properly take into consideration the fact that the first appellant has lost, to the advantage of the Government, his pension and compensation rights, and the fact that apparently the second appellant has had his house, cars and other property confiscated. All these would be matters that would need investigation and consideration and it would be absolutely essential in the due discharge of justice that the convicted person be heard before an order is made. We would therefore allow the appeal of the first and second appellants against the order for compensation made under s. 176 of the Criminal Procedure Code.

We therefore order that:

(1) the appeal of the first appellant against the sentence of imprisonment be dismissed.

(2) the appeal of the second appellant against sentence is allowed in that the sentence of 2½ years' imprisonment be set aside and in lieu thereof he is sentenced to nineteen months' imprisonment.

(3) the appeal of the third appellant against sentence is dismissed.

(4) the appeal of the first and second appellants against the order for compensation is allowed and that order is set aside.

(5) The appeal of the third appellant against the order for compensation under s. 284 of the Penal Code is dismissed.

Order accordingly.

For the appellants:
AR Kapila and *M Lakha* (instructed by *Lakha & Co*, Dar es Salaam)

For the respondent:
N King (Senior State Attorney)

Uganda v Olungu
[1972] 1 EA 136 (HCU)

Division:	High Court of Uganda at Kampala
Date of judgment:	20 September 1971
Case Number:	21/1971 (31/72)
Before:	Russell Ag J
Sourced by:	LawAfrica

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[1] Criminal Law – Elopement – Wife who has already left husband – Offence cannot be committed – Penal Code, s. 121*A* (*U*).

Editor's Summary

The accused was convicted of elopement although the prosecution evidence showed that the complainant's wife had left him years before. On revision:

Held –

(i) it is impossible to elope with a woman who has already left her husband.

Observations on the bringing of prosecutions to enforce civil rights and for financial gain.

Conviction set aside.

Cases referred to in judgment:

(1) *Uganda v. Solomon Tanga*, Cr. App. 384 of 1970 (unreported).

Judgment

Russell Ag J: The accused, Olugu Okot Misaki, was charged with the offence of elopement contrary to s. 121 A of the Penal Code. The statement of offence reads:

> "Olugu s/o Okot on the day of November 1970 at Anamwany village in Lango District unlawfully eloped with Petofina Acola w/o Onisimo Opena not being his wife."

The case came on for hearing before a magistrate in May 1971, and the accused pleaded not guilty. The complainant Omisimo Opena testified he was lawfully married to Petofina in 1954, that they had 4 children and had been living together up to the time of the alleged elopement. He then called a witness, Benon Opyere, who testified that Petofina had left the complainant four years prior to the alleged elopement and had refused to return to him. This was corroborated by the father of Petofina, who testified she had been living with him for about five years and that he had consented to her marrying the accused.

Despite the evidence on record the magistrate convicted the accused and

sentenced him to 6 months' imprisonment and ordered him to pay the complainant Shs. 600/- by way of compensation.

As Goudie, J., pointed out in *Uganda v. Solomon Tanga*, Cr. App. 384 of 1970 (Digested in the High Court Monthly Bulletin as No. 140/70) the word "elopement" implies "running away with-usually from some kind of home". In this case the wife had run away from her husband at least four years prior to the alleged offence and it appears to me obvious that once she had permanently left the matrimonial abode the accused could not have committed the offence of elopement. It is possible the accused may have committed the offence of adultery contrary to s. 150A (1) of the Penal Code but he was not charged with that offence and in an event there was little or no evidence of mens rea.

It appears to me that a disturbingly large number of prosecutions under ss. 120A and 150A are being instituted to enforce civil rights and for financial gain rather than the punishment of wrongdoers.

As the D.P.P. does not wish to be heard the conviction is quashed and the sentence of imprisonment set aside and the order for payment of Shs. 600/- compensation cancelled. The accused, if still in custody, to be released forthwith and the Shs. 600/-, if paid, to be refunded to the accused.

Order accordingly.

No appearance for any party.

Musoke v Uganda
[1972] 1 EA 137 (HCU)

Division:	High Court of Uganda at Kampala
Date of judgment:	22 November 1971
Case Number:	390/1971 (33/72)
Before:	Kiwanuka Ag CJ
Sourced by:	LawAfrica

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[1] Criminal Practice and Procedure – Bail – Capital Charge – Excessive delay in bringing to trial – Bail granted.

[2] Constitutional Law – Speedy trial – Right to – Infringed – Bail granted in capital case – Constitution, art. 10 (*U.*).

Editor's Summary

The applicant was charged with robbery and was released on bail and thereafter the State amended the charge to robbery with aggravation and successfully applied for bail to be rescinded. Thereafter almost three months passed without the applicant being brought to trial. He again applied for bail.

Held –

(i) the bona fides of the amendment of the charge were highly suspect;

(ii) the constitutional right of the appellant to be brought to trial within a reasonable time or released had been infringed;

(iii) only complicated cases could not be brought to trial within 6 months.

Bail allowed.

No cases referred to in judgment

Kiwanuka Ag CJ: This is an application for bail pending trial. The accused is charged with robbery with aggravation under s. 272 and 273 (2) of the Penal Code. An offence under these sections carries a mandatory death penalty.

The offence is alleged to have been committed during the night of 11/12 June this year.

At first the applicant was charged with simple robbery. He appeared before the court on 16 June 1971 and he pleaded not guilty. He was remanded in custody. The trial was fixed for 27 August 1971. On 29 July 1971, the accused named the witnesses he wished to call and the hearing was brought forward to 10 August 1971. On 10 August 1971 the accused was not brought from prison and the trial could therefore not take place. On 11 August 1971 the accused was produced and the case was fixed for hearing on 24 August 1971.

On 16 August 1971 the accused again appeared in court and on this occasion he applied in person for bail. Mr. Onega, who appeared for the State, said he had no objection, and the accused was released on cash bail of Shs. 200/- and one surety to appear in Court on 27 August 1971. It is to be noted that he was not to appear on 24 August 1971 which was the date fixed for the hearing of the case, but on 27 August. No explanation is available on record. On 27 August 1971 the prosecutor tendered an amended charge sheet to the court and the applicant found himself charged with the present case under ss. 272 and 273 (2) of the Penal Code. Thereafter the prosecutor applied that accused's bail be cancelled and the accused be remanded in custody. The magistrate felt he had no option but to comply and he cancelled bail and remanded the applicant in custody. He was remanded till 10 September 1971. On that day he was further remanded to 24 September 1971. On 24 September 1971 he was remanded to 8 October 1971 and on that day to 22 October 1971. He then applied to this court for bail.

On 10 November 1971 he was brought before Russell, J., who adjourned the hearing of the Application to 17 November 1971, on the application of the State. On 17 November 1971 the application came before me and the applicant had Mr. Ghelani, to represent him. In his most persuasive arguments before me on behalf of his client Mr. Ghelani cited to me the provisions of Art. 10 (3) of our Constitution. These are couched in the following terms:

> "Article 10.
>
> (3) Any person who is arrested or detained,
>
> (*a*) for the purpose of bringing him before a court in execution of the order of a court; or
>
> (*b*) upon reasonable suspicion of his having committed or being about to commit, a criminal offence under the law of Uganda,
>
> and who is not released, shall be brought without undue delay before a court; and if any person arrested or detained as mentioned in paragraph (*b*) of this clause is not tried within a reasonable time, then without prejudice to any further proceedings that may be brought against him, he shall be released, either unconditionally or upon reasonable conditions, including in particular such conditions as are reasonably necessary to ensure that he appears at a later date for trial or for proceedings preliminary to a trial."

He again submitted that he had known of cases where, after prisoners had been released on bail, the police put in amended charges, putting cases beyond the powers of the magistrates' courts and then asked for the cancellation of bail, and counsel suspected that in some of those cases the motive behind the exercise is bad. He mentioned two cases both in the Chief Magistrate's Court, Kampala.

In one the charge which was a case of simple robbery was altered to robbery with aggravation after bail was granted. Bail was then cancelled. Accused applied to the High Court. During the hearing State Attorney informed the Court that the charge was going to be reduced to one of simple robbery. The case was sent back to the magistrates Court for this to be done. The case, as far as he knew, was still going on with the accused still in custody.

Having listened to Mr. Ghelani very attentatively I looked at the particulars in both charge sheets in this case to see the difference which formed the basis of amendment. This is what I found:

(*a*) *Particulars in first Charge*: (16/6/71)

> "Stephen Musoke and others not known in the night of 11/12 June 1971 at Kirinya Village in the West Mengo District robbed Isake Kaberuka of household properties and at the time of the robbery used personal violence on the said Isake Kaberuka."

(*b*) *Particulars in Amended Charge*: (24/8/71)

> "Stephen Musoke and others not yet arrested in the night of 11/12 June 1971 at Kirinya Village in the West Mengo District robbed Isake Kaberuka of household properties and at or immediately before or immediately after the time of the said robbery used a deadly weapon to wit a panga on the said Isake Kaberuka."

The difference is that in the amended charge there is inserted the phrase "a deadly weapon to wit a panga".

Following what Mr. Ghelani said I began to doubt the sincerity of the police in this case. Who now told them that the accused used a panga? If, indeed, he used one he must have used it on the complainant, Mr. Isake Kaberuka. But Mr. Isake Kaberuka must have made a statement to the police a long time ago, at least long before the case was fixed for hearing. And if any such violence was used on him he must have told the police so. Now the question is: Did he? If he did why was the applicant charged with a lesser offence in the first place? If he did not, then is it not an afterthought? Can we allow a citizen's liberty to be juggled with in this form?

I do not deny that the Director of Public Prosecutions has every right to alter charges as he sees fit. But as a judge of this court I am bound to come to the rescue of our citizens where I detect an attempt on the part of those who have power to prosecute others to abuse the powers in their hands. This, in my view, is one of those cases.

Another thing which I have detected after looking carefully at the charge sheet is the fact that the charge discloses no offence at all. The accused is said to have robbed Mr. I. Kaberuka of *household properties*. What are these? These things must be clearly stated. This is elementary, because in order to come under s. 244 of the Penal Code the thing concerned must be known, because unless it falls within the things mentioned in that section, such thing cannot be stolen. The accused must be given a chance to know what he is said to have stolen so that he can argue, if necessary, as part of his defence that the thing mentioned is not capable of being stolen, or, further, that he had a claim of right over such thing. "Household properties" is not defined in the Penal Code. I am of the view that it is absolutely wrong to frame a charge in that fashion and this one must be changed if the prosecution is to continue.

Now reverting to the Constitutional provision relied on by Mr. Ghelani. I think that he was quite right to rely on it. But every case must be considered on its own merits. The main weight of that provision is centred on the phrase "within a reasonable time". There are complicated cases which cannot be tried

within 6 months because of the nature of the investigations necessary; and the accused cannot be released because of the nature of the offence involved. In such cases accused persons will not be released as of right basing their claim to this right on the provisions of our Constitution. But the Constitution applies very well in cases such as this where the case has been fixed on two previous occasions for hearing and then, just because the charge is amended, and amended in the manner as described above, the file is shelved for several months.

The police in this country seem to think that the importance of a case depends on the length it takes them to investigate it.

In this particular case, why is it that the Summary of Evidence is not yet ready? The State Attorney who appeared before me had the answer, which is: "The file was received by us about 6 weeks ago and the Principal State Attorney who dealt with it sent it back for further inquiries. It had not been returned to us but it is expected back any moment now." This man's bail was cancelled on 27 August 1971 which is now 11 weeks ago, almost 3 months. I have noted that on the occasion when bail was cancelled the Prosecutor who asked for this to be done was a Senior State Attorney, Mr. Ayigihugu. So the file had already been to the Director of Public Prosecutions' Office. I think this kind of behaviour is the one against which the Constitutional provision referred to above was aimed and it can rightly be applied here.

For the above reasons an order will issue from this court directing the release of the applicant on bail on the same conditions as before.

Order accordingly.

For the applicant:
MC Ghelani

For the respondent:
BN Sodha (State Attorney)

Sengendo v Attorney-General
[1972] 1 EA 140 (HCU)

Division:	High Court of Uganda at Kampala
Date of judgment:	9 November 1971
Case Number:	731/1970 (36/72)
Before:	Phadke J
Sourced by:	LawAfrica

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[1] Master and Servant – Vicarious liability – Acts of servant in course of employment – Soldiers posted on roads – Shooting of plaintiff – Government liable.

[2] Civil Practice and Procedure – Pleading – Defence – Failure to file – Defendant may not take part in proceedings.

[3] Civil Practice and Procedure – Claim against Government – Judgment in default not allowed;

judgment after hearing permitted – Civil Procedure (*Government Proceedings*) *Rules, r.* 6 (*U.*).

Editor's Summary

The plaintiff had been attacked, shot and injured by soldiers on a highway a few hours after an assassination attempt on the then President. Counsel for the defendant had filed no defence but proposed to take part in the proceedings. When this was refused he relied on r. 6, Civil Procedure (Government Proceedings) Rules.

Held –

(i) a defendant who files no defence cannot be heard (*Kanji Devji v. Damodar Jinabhai & Co*. (1) followed; *Jamnadas V. Sodha v. Gordhandas Hemraj* (2) distinguished);

(ii) judgment in default of pleading by the government is prohibited, but not judgment after hearing;

(iii) the plaintiff had been illegally attacked;

(iv) the soldiers were acting in the course of their duty, having been posted in the streets;

(v) the defendant was responsible for the acts of the soldiers (*Muwonge v. Attorney-General of Uganda* (3) followed).

Judgment for the plaintiff.

Cases referred to in judgment:

(1) *Kanji Devji v. Damodar Jinabhai & Co*. (1934), 1 E.A.C.A. 87.

(2) *Jamnadas V. Sodha v. Gordhandas Hemraj*, 7 U.L.R. 7.

(3) *Muwonge v. Attorney-General of Uganda*, [1967] E.A. 17.

Judgment

Phadke J: The plaintiff claims general and special damages from the defendant who is sued in his capacity as the representative of the Uganda Government, pursuant to s. 11, Government Proceedings Act (Cap. 69). Upon service of the summons, the defendant entered appearance but has not filed a written statement of defence. On 17 August 1971, by consent of the parties, the suit was set down for hearing on 7 October 1971.

On the day of hearing, Mr. Matovu, the Principal State Attorney in the Attorney General's Chambers, appeared for the defendant, and I was informed that he intended to take part in the hearing by cross-examining the plaintiff and his witnesses. I drew his attention to the decision of the Court of Appeal in *Kanji Devji v. Damodar Jinabhai & Co*. (1934) 1 E.A.C.A. 87 where it was held that a defendant who fails to file a defence puts himself out of court and no longer has any locus standi and cannot be heard. I pointed out to Mr. Matovu that this decision of the Court of Appeal is binding upon me, and subject to any submission by him which might persuade me that it was not applicable, I would follow it and decline to permit him to take part in the hearing as he proposed to do.

At Mr. Matovu's request, I granted him a brief adjournment to consider his position. When the hearing resumed, he referred to the decision of Ainley, J. in *Jamnadas V. Sodha v. Gordhandas Hemraj*, 7 U.L.R. 7, and submitted that the court has a discretion in the matter. I did not agree with Mr. Matovu's submission. *Jamnadas V. Sodha v. Gordhandas Hemraj* (*supra*) was an appeal from a judgment of a Resident Magistrate who, when the suit came up for hearing before him after notice to the defendant for proof of the plaintiff's claim, in default of defence, pursuant to O. 9, r. 10, Civil Procedure Rules, declined to grant extension of time to the defendant to file a written statement of defence. The question which Ainley, J. considered was whether or not there had been the exercise of full judicial discretion by the Resident Magistrate in refusing extension of time for filing the written statement of defence. The question was not whether the defendant could take part in the hearing of the plaintiff's claim. In the course of his judgment, Ainley, J. did refer to *Devji Kanji v. Damodar Jinabhai & Co*., and whilst he did not accede to some observations in that judgment, he held that the decision was binding upon him and that a defaulting defendant who fails to persuade the court that he should be given additional time to file a defence may properly be placed in the position of not being entitled to take part in the hearing. I indicated to Mr. Matovu that the only way in which the defendant could save the situation would be to make an application, there and then, for extension of time for filing a written statement of defence, and I would hear the application and decide it on its merits. Mr. Matovu did not make any such application. I held, therefore, that the decision in *Jamnadas V. Sodha v. Gordhandas Hemraj*

was not relevant to the issue before me, and following the decision of the Court of Appeal, I declined to permit Mr. Matovu to take part in the hearing. I will mention that Mr. Wilkinson for the plaintiff, stated that he would not object to Mr. Matovu cross-examining the plaintiff and the plaintiff's witnesses, but I took the view that it would not be right to whittle down the binding effect of the decision of the Court of Appeal merely because the parties were agreeable to a procedure contrary to that given in that decision.

Mr. Matovu then submitted that the plaintiff's suit should not be heard for non-compliance with r. 6 of the Civil Procedure (Government Proceedings) Rules, r. 6 is as under:

> "Judgment shall not be entered, and no order shall be made against the Government in default of appearance or pleading under any provisions of the principal rules (that is the Civil Procedure Rules) without the leave of the court, and any application for such leave shall be made by summons served not less than seven days before the return day".

Mr. Wilkinson submitted that the rule had no application to the instant suit, and I agreed with his submission. The rule speaks of judgment in default. What is a judgment in default? If a party fails to deliver a pleading within the proper time or at all, he is in default, and a judgment given against him *in consequence* is a judgment by default. Under the Civil Procedure Rules, there are only three instances where judgment may be entered in default of pleading:

(i) Where a defendant has failed to enter appearance to a suit claiming a liquidated amount;

(ii) Where a defendant has failed to enter appearance to a suit claiming pecuniary damages, an interlocutory judgment may be entered and the suit set down for hearing for assessment of damages, after notice to the defendant;

(iii) Where a defendant has failed to apply for leave to defend a claim for a liquidated amount brought under the Summary Procedure: Order 33.

In all other cases, where appearance is entered but the defence is not filed in time, the plaintiff is obliged under O. 9, r. 10, to set down his suit for hearing with notice to the defendant. This is precisely what the plaintiff has done in this suit. He was not asking for judgment by default, not even an interlocutory judgment. He wanted that his suit be heard and had taken steps to arrange a date of hearing with the concurrence of the defendant's counsel. I held that the hearing before me was not for entering judgment in default and that r. 6 was not applicable.

Accordingly, I proceeded to hear the plaintiff's suit and did not permit Mr. Matovu to take part in the hearing as he had proposed to do. Mr Matovu then asked for leave to retire and I gave him leave to do so.

The plaintiff, Charles Lusajjalubi Sengendo, aged 32, testified that he was an assessor in the employment of the East African Income Tax Department, and was stationed at Jinja. On 19 December 1969 he was stationed in the Department's Regional Headquarters at Kampala. On that day he left his office at 4.15 p.m. and drove in his car to his home. Then he went to several places, one of which was the Republic Stadium which he often visited for taking part in running, and at about midnight was driving on the Katwe Road when he was stopped by some soldiers. There was some discussion and they let him drive on. At the Clock Tower he was stopped by a group of soldiers. They pulled him out of his car, assaulted him with fists and rifle-butts, searched his car, and then let him drive on. He drove along South Street and Bombo Road to the Wandegeya roundabout where he was again stopped by soldiers, policemen and members of the Special

Force. They searched his car and then let him drive on. He drove along Kira Road and after he had travelled about 200 yards his car was shot at. A bullet came through the car and hit him on his waist. Soldiers in uniform fired four shots at his car and one of the shots hit him. One shot penetrated into the petrol tank of his car and another passed through the mudguard and smashed a tyre. He stopped the car by applying the hand brake, and on opening the door on his right he fell out on the road. He was unable to get up or stand up. Whilst he was lying on the ground, the soldiers were on top of him and were deliberately shooting at him. He was hit by six or seven bullets and suffered terrible pain. The soldiers wanted him to go back into the car but that was impossible because he could not even stand up. After about an hour or more, a police landrover was driven to the scene. The policemen had a hot discussion with the soldiers, and he was taken to the Wandegeya Police Station. His name and address were noted, and he was taken to Mulago Hospital where he had to be carried in to the doctor. [The judge dealt with the plaintiff's injuries and continued.]

It is stated that the attack on the plaintiff was *illegal*. In the state of the evidence before me, there is nothing to show that there was any provocation by the plaintiff or any justification for the attack. The attack was a flagrant infringement of the plaintiff's legal right to personal safety. The description and the details given by the plaintiff of the attack, which I accept as truthful, show that the intention of the attack could have been none other than to cause grievous injuries to the plaintiff, and I consider it unnecessary for the purpose of this suit to discuss whether or not motives and intentions showing the state of mind of a person committing an attack should be enquired into. I hold that the evidence before me has established that the plaintiff was intentionally and illegally attacked by the soldiers.

I will now consider whether the soldiers were acting in the *course of duty* when they attacked the plaintiff. I take judicial notice of a notorious fact in local history that on 19 December 1969, a few hours before the attack on the plaintiff, an attempt had been made to assassinate the then President of Uganda, Dr. Milton Obote, at the Lugogo Stadium in Kampala, and that groups of soldiers and policemen were patrolling the city at various points. There is evidence that before the plaintiff reached the point where he was attacked, he had been stopped by soldiers at three points on the way where he had been questioned and searched. In the circumstances it is a fair and proper inference to draw that the soldiers posted at various points and armed with rifles were there to control an emergency which had arisen. I refer to *Muwonge v. Attorney General of Uganda* [1967] E.A. 17. The appellant had sued the respondent claiming damages for the unlawful killing of his father who was killed during a riot. The shot which killed him was fired by a policeman who had seen the appellant run towards a house, had concluded that the appellant was a rioter and, having followed him, fired wantonly into the house not caring whom he killed or injured. In the Court of Appeal, Sir Charles Newbold, P. said, at p. 21:

> "As I have said the nature of the duty was to quell a riot, the means given to these two sections to perform their duty were rifles. That does not mean to say that they had full authority to use their rifles in any circumstances. By no means. But it is an indication that the use of their rifles must have been something which was contemplated by their seniors. . . . In these circumstances, speaking for myself, I fail to see how it can be suggested that the act of a policeman in using his rifle would not be within the exercise of his duties unless there was clear evidence that the use by an individual policeman of his rifle was a use for his own purpose and unconnected in any way whatsoever with his duties."

The position in the case before me is similar to that in *Muwonge's* case, and I

propose to follow the opinion of Sir Charles Newbold, P. with which Sir Udo Udoma, C.J. and Duffus, J.A. (as he then was) agreed. I hold that the soldiers were acting in the course of duty when they attacked the plaintiff.

I will next consider the question of the liability of the defendant for the act of the soldiers. The act of the soldiers was clearly a wanton, unlawful and unjustified one, and can the defendant be held vicariously liable for their unauthorised act? This aspect of liability was also discussed in *Muwonge's* case, and it was held that an act may be done in the course of a servant's employment so as to make his master liable even though it is done contrary to the orders of the master; and even if the servant is acting deliberately, wantonly, negligently or criminally or for his own benefit, nevertheless if what he did is merely a manner of carrying out what he was employed to carry out then his master is liable.

In that case, Sir Charles Newbold, P. made the following observations:

> "I accept that in all these cases in which the question arises as to whether a particular act is or is not done in the course of employment, it is a question of fact, a question of degree. In almost every case there is room for a difference of opinion."

Upon the facts of the case before me, my opinion is that the act of the soldiers in shooting at the plaintiff, although it was a wanton, unlawful and unjustified act, was nevertheless a manner in which they proceeded to carry out the duties for which they were armed with rifles and posted at the place where the attack took place. Therefore, I hold that the defendant is vicariously liable for the act of the soldiers, and that the plaintiff is entitled to claim general and special damages from the defendant.

[*The judge then assessed damages and gave judgment for the plaintiff for Shs*. 201,265/-.]

For the plaintiff:
PJ Wilkinson QC and *Kirenga* (instructed by *Kirenga & Gaffa*, Kampala)

For the defendant:
MB Matovu (Senior Principal State Attorney)

Gawera v East Mengo District Administration
[1972] 1 EA 145 (HCU)

Division:	High Court of Uganda at Kampala
Date of judgment:	20 June 1969
Case Number:	238/1968 (37/72)
Before:	Phadke J
Sourced by:	LawAfrica

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[1] Criminal Law – Disturbing religious assembly – Only committed when assembly in progress – Penal Code, s. 113 (*U.*).

[2] Criminal Law – Rescue by force of arrested person – Must be physical force – Penal Code, s. 102 (1) (*b*).

[3] Criminal Law – Breach of the peace – Possible in future – Course binding over not arrest –

Criminal Procedure Code, s. 37 (*U.*).

[4] Criminal Law – Attempt to influence witness – Offence can be committed in respect of intended judicial proceeding – Penal Code, ss. 4, 101 (*U.*).

[5] Criminal Practice and Procedure – Arrest – Bringing before magistrate within 24 *hours – Need not be complied with on a public holiday – Local Administrations Act, s.* 40 (5) (*U.*).

[6] Damages – Wrongful arrest – Quantum.

Editor's Summary

The plaintiff was the headmaster of a school in whose buildings religious services were also held. After the arrest of three persons for the offence of disturbing a church assembly the plaintiff wrote a letter to the clergyman demanding the release of the arrested persons under threat that he would not permit church services in the school until their release. Judicial proceedings had not yet commenced against the disturbers.

The plaintiff was arrested by a chief on the Thursday before Good Friday and not released until the Saturday after.

On the plaintiff's claim for damages for wrongful imprisonment the arrest was justified on the grounds that the plaintiff's letter constituted the offence of disturbance of a church service, that the chief wished to prevent disturbance of future services, and that the plaintiff had committed the offences of interference with the administration of justice, and attempt to rescue arrested persons by force.

Held –

(i) the offence of disturbing a religious assembly can only be committed by disturbing an assembly actually in progress;

(ii) physical force must be used in the attempt to rescue arrested persons;

(iii) the possibility of a future breach of the peace can only be dealt with by binding over the person concerned;

(iv) the letter of the plaintiff was an attempt to influence a witness in future judicial proceedings;

(v) judicial proceedings includes intended judicial proceedings;

(vi) the plaintiff had been guilty of the offence of attempting to influence a witness in judicial proceedings and for that reason the arrest was lawful;

(vii) the plaintiff could not have been brought before a magistrate on the day after his arrest which was a public holiday;

(viii) damages of Shs. 1,000/- would have been awarded had the plaintiff been successful.

Case dismissed.

No cases referred to in judgment

[The following statutory provisions are set out as they are not contained in the judgment:

Penal Code:

s. 101 (1) Any person who–

(*f*) attempts wrongfully to interfere with or influence a witness in a judicial proceeding, either before or after he has given evidence, in connection with such evidence;

is guilty of a misdemeanour and is liable to imprisonment for three months.

s. 102 (1) Any person who by force rescues or attempts to rescue from lawful custody any other person–

(*b*) if such other person is imprisoned on a charge or under sentence for any offence other than those specified above, is guilty of a felony and is liable to imprisonment for seven years;

s. 113 Any person who voluntarily causes disturbance to any assembly lawfully engaged in the performance of religious worship or religious ceremony, is guilty of a misdemeanour. Local Administration Act, 1967.

s. 40 (5) Any person arrested under the powers conferred by this section, unless he be released on bond or otherwise, shall within twenty four hours be taken before a court of competent jurisdiction.]

[*Editorial note:* s. 40 (5) of the Local Administrations Act does not give the single course of action of bringing the arrested person before a magistrate, it gives the alternatives of release on bond or otherwise. The plaintiff should have been released on bond when no magistrate was available, and there is therefore no necessity for stretching the clear words of the section.]

Judgment

Phadke J: In this suit the plaintiff claims general damages from the defendant for wrongful assault and imprisonment. The plaintiff is the headmaster of the Mulonzi Primary School, and the defendant is a body corporate established under the Local Administrations Act (No. 18 of 1967).

It is alleged that on 11 April 1968, the defendant's servants and agents, acting in the course of their employment, wrongfully imprisoned the plaintiff at Nabiswera Gombolola Prison.

The defendant, in its defence, admitted that the plaintiff was arrested and imprisoned, but denied that such arrest and imprisonment was unlawful because the plaintiff had committed the offence of disturbing a religious assembly contrary to certain provisions of the Penal Code.

The plaintiff testified that he has been a teacher for 15 years and the headmaster of the Mulonzi Primary School for 6 years. On 11 April 1968, when the school term ended, at 11 a.m. a Gombolola askari met him at the school. The askari had brought a letter from the Gombolola Chief which was read over but not handed to him. The letter stated that he was under arrest but did not state the reason for the arrest. He questioned the askari but the latter did not know the reason.

He accompanied the askari to the Gombolola Headquarters, 13 miles away, and reached there at 3 p.m. There he met the Gombolola Chief who told him he was under arrest and ordered him to remove his shoes and wrist watch and hand them to an askari, together with his money. Then he was locked up in a cell. The floor

of the cell was not cemented and there was plenty of dust. There was no furniture, such as a bed or a chair. He was not given any food until noon on the following day when a meal of some badly cooked maize was given and he refused to eat it. No reason was given for his arrest, he was not charged with any offence and was not taken before the Magistrate. He was not allowed to go out of the cell like other prisoners.

On 13 April, at 7 p.m., he was brought out of the cell and taken to the house of the Gombolola Chief who informed him that he was released. His property which had previously been taken from him was then returned to him.

When he was arrested his employers and his wife and family thought that he was being arrested for being a thief.

In cross-examination he denied that he belonged to an organisation named Bururi Nebyayo. He did not know anything about such an organisation. He was acquainted with three persons named Katali, Babyorobya and Besiriima, the parents of certain pupils at his school. These three persons did not belong to the organisation Bururi Nebyayo.

As there is no church building in Mulonzi, with his permission his school building was used for holding church services every Sunday. On 24 March 1968, the school building was used for a service at which the three persons named by him were present. He arrived just when the service was coming to a close. There was no disturbance at the service but the three persons named by him were arrested on the following day because the clergyman had made a complaint against them. He agreed that the three persons were charged before the magistrate and were convicted but he did not know of what offence.

A fortnight after 24 March he wrote a letter to the clergyman in which he told the clergyman that the three persons had not caused any trouble and that unless they were released he would not permit church services to be held in the school building. On 13 April he wrote another letter apologising for his previous letter and the violent words used therein.

He did not think that by writing his first letter he was interfering with the administration of justice. He agreed that had he not apologised to the clergyman the latter would have taken further action against him.

The plaintiff did not call any witnesses.

The Gombolola Chief testified that when the plaintiff was brought to him on 11 April he put the plaintiff in a cell for three reasons:

(1) The plaintiff had written a threatening letter to the clergyman in order to secure the release of the three persons who had been arrested for fighting during the church service on 24 March 1968.

(2) The plaintiff was interfering in the administration of justice.

(3) He wished to prevent any disturbance by the plaintiff and his supporters at future church services in the school building, which services the plaintiff had threatened to stop.

The clergyman had written to him officially and had sent him the plaintiff's two letters.

He denied that the plaintiff's shoes and wrist watch were removed as alleged. The plaintiff's money was taken for safe custody but the plaintiff was free to use it if required. Bedding is not provided at the Gombolola Prison, and the meal given to the plaintiff was of the same kind as given to other prisoners.

In cross-examination, he stated that in the letter sent by him to the plaintiff with the askari he did not tell the plaintiff to bring along his bedding. The

plaintiff was put in the cell at 3 p.m. on 11 April which was a Thursday. As the day following was Good Friday he could not take the plaintiff before a magistrate. The plaintiff was released on Saturday, 13 April between 3 p.m. and 4 p.m.

In re-examination he stated that whenever a person is brought to him he gives a reason for the arrest of that person. He released the plaintiff because the plaintiff had apologised to the clergyman.

Mr. Matovu for the defendant, submitted that the plaintiff's letter threatening to stop the holding of church services in the school building was written on 9 April, at Easter time. The Gombolola Chief was justified in thinking that the plaintiff was involved in the disturbance which had occurred at the service on 24 March. Such disturbance, he submitted, is an offence under s. 113, Penal Code. Further, the plaintiff had contravened the provision in s. 102 (1) (*b*) by attempting to rescue by force the three arrested persons. The Gombolola Chief was not in a position to comply with s. 40 (5), Local Administrations Act and take the plaintiff before a Magistrate because 12 April was Good Friday and a Public Holiday.

Mr. Mitha for the plaintiff, submitted that s. 113, Penal Code, refers to a religious assembly engaged in the performance of worship and the assembly must be in progress when the disturbance is created. In this case there was no evidence that the plaintiff had disturbed any such assembly in progress. The letter did not contain any violent words and was not a threat to do any illegal act. S. 102 (1) (*b*) is applicable where force is used and was therefore not applicable to the facts of this case. S. 40 (5), Local Administrations Act was not complied with and even if the arrest and imprisonment were to be construed as being initially lawful (which, however, was not the case) it ceased to be lawful upon non-compliance with s. 40 (5), Local Administrations Act.

On the question of damages Mr. Mitha submitted that the plaintiff, a headmaster of a school, had been humiliated and that there was a permanent stigma on his name. He referred to certain decisions of the High Court as to the quantum and submitted that in this case an award of exemplary damages was justified.

For the purpose of my decision I propose to consider and examine the validity or otherwise of the three reasons given by the Gombolola Chief for arresting the plaintiff. In my opinion he had no justification for the arrest under s. 113, Penal Code. I agree with Mr. Mitha that that section is applicable only when a religious assembly is in progress and a disturbance is created during the worship. The plaintiff's letter was not any such disturbance within the ambit of s. 113. The Gombolola Chief acted in ignorance of the real meaning and scope of that section. It is also my opinion that the arrest of the plaintiff for preventing the possibility of a breach of the peace at future church services at the school building was not warranted. If this was the Gombolola Chief's intention, and it may well have been his honest intention, the correct procedure he should have adopted was to act under s. 37, Criminal Procedure Code.

The third reason given by the Gombolola Chief, namely that the plaintiff was interfering with the administration of justice, requires consideration in greater detail. Under s. 101 (1) (*f*), of the Penal Code, any person who attempts wrongfully to interfere with or influence a witness in a judicial proceeding, either before or after he has given evidence, in connection with such evidence, is guilty of an offence and is liable to imprisonment for three months.

In this connection the contents of the plaintiff's letter became very relevant. The letter after referring to the arrest of the three persons threatened to stop the use of the school building for church services until these persons "have been released from custody where they were detained". The contents certainly savour strongly of an attempt to influence the clergyman who would be a witness in proceedings against the three arrested persons, but the question which still

remains is were there any "judicial proceedings" within the definition of these words in s. 4, Penal Code. The definition is:

> " 'Judicial proceedings' includes any proceedings had or taken in or before any court of law . . . in which evidence may be taken on oath. . . ."

This is an inclusive definition and not an exhaustive one, and permits certain latitude of construction. In my opinion it includes not only such proceedings as have been actually commenced but also intended proceedings. It is not essential that there should be any proceeding pending in a court of law at the time. It is enough that there is a reasonable prospect of a proceeding having regard to the circumstances of the case.

There is evidence before me that proceedings were taken against the three arrested persons in a court of law. The plaintiff stated in cross-examination – "All three were charged before a magistrate. They were convicted; I do not know of what offence". I do not believe the plaintiff that he did not know. He had been taking an active interest in the whole matter and I cannot accept as truthful his statement that he was so indifferent towards the result. It is not known whether proceedings against the three persons had already been commenced when the plaintiff wrote his letter on 9 April, but as the three persons had been arrested on 25 March it is highly probable that proceedings had already been commenced. However, upon the view I take of the scope of the definition of "judicial proceedings", as stated above, I have reached the conclusion that the plaintiff's letter was an attempt, by means of a threat to stop church services in the school building, to influence the clergyman, and I hold that the plaintiff acted in contravention of s. 101 (1) (*f*), Penal Code. Therefore, the third reason given by the Gombolola Chief was a valid reason for arresting the plaintiff.

There remains to consider the applicability of s. 40 (5), Local Administrations Act, to the facts of this case. The plaintiff reached the Gombolola Headquarters at 3 p.m. on Thursday 11 April. According to the section, he should have been taken before a magistrate within 24 hours. He could not have been taken before a magistrate on the same day. I take judicial notice of the fact that the next day was Good Friday and a Public Holiday, and I accept as truthful the evidence of the Gombolola Chief that the plaintiff could not be taken before a magistrate on that day. The plaintiff was released at 3 p.m. on Saturday 13 April. In my opinion the provision in s. 40 (5) is to be construed with due sense of proportion and with due regard to the realities of any particular situation. Excluding Good Friday, 12 April, in my opinion there was no non-compliance with the provision in s. 40 (5).

From what I have stated above, it follows that the plaintiff's allegation that he was wrongfully arrested must fail, and so also his Counsel's submission that in any case the arrest became unlawful upon failure to comply with s. 40 (5). I hold that the plaintiff is not entitled to damages from the defendant.

In case I am held to be wrong in my conclusion, I will express my view upon the amount of damages I would have awarded had the plaintiff been successful in his claim. The plaintiff is a headmaster of a school and a man of some status in the community. His arrest would adversely affect his reputation but not to the extent of leaving a permanent stigma on his name, as suggested by Mr. Mitha. His employers have continued his employment and there was no evidence that he had been forsaken by his friends or treated with derision by his wife and family. As regards the discomfort and inconvenience of the short imprisonment of three days, I do not think that too much should be made of the lack of bedding and the quality of the food given to him. I am unable to think of any valid reason why and how the Gombolola Chief should have provided some treatment other than that given to all the other prisoners at the Gombolola Headquarters. In

any case I do not agree that this could be a case for exemplary damages. I would have awarded the plaintiff Shs. 1,000/- had he been successful.

Having held in the earlier part of this judgment that the plaintiff's claim fails, I dismiss his suit with costs to the defendant.

Case dismissed

For the plaintiff:
M Mitha (instructed by *Abu Mayanja & Co*, Kampala)

For the defendant:
MB Matovu (Senior Principal State Attorney)

Income Tax v Rasiklal
[1972] 1 EA 150 (HCT)

Division:	High Court of Tanzania at Dar Es Salaam
Date of judgment:	16 November 1971
Case Number:	16/1971 (40/72)
Before:	Biron J
Sourced by:	LawAfrica

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[1] Income Tax – Allowance – Child allowance – Taxpayer maintaining brother and sisters in India – Brother and sister in custody of taxpayer – East African Income Tax Management Act (*Cap.* 24), *s.* 44.

Editor's Summary

The respondent claimed to be entitled to child allowances in respect of his brother and sisters who were residing with their parents in India. He remitted money regularly for their support, and his parents were not in a position to maintain his brother and sisters. He claimed that they were in his custody by reason of the custom of his community.

Held –

(i) as the parents had abdicated their responsibility to the respondent and the custom of the community was for the eldest son to assume responsibility, the children were in the respondent's custody;

(ii) it was irrelevant that the children were not physically with the respondent.

Appeal dismissed.

Cases referred to in judgment:

(1) *Neale v. Colquhoun*, [1944] S.A.S.R. 119.

(2) *Wedd v. Wedd*, [1948] S.A.S.R. 104.

Judgment

Biron J: This is an appeal brought by the Commissioner-General of Income Tax from a decision of the Dar es Salaam Local Committee allowing an appeal by the respondent taxpayer from the assessment of his income tax by the Commissioner-General excluding from his personal allowances child allowance in respect of his brother and three sisters who are residing with their parents in India and are receiving there full-time education.

The facts of the case are not in dispute, and, as set out in the appellant Commissioner's statement of facts, are as follows:

1. "The appellant appeals against the assessment No. 21/11684.
2. The respondent is a resident and works for gain in Tanzania.
3. He has one brother and three sisters resident and being educated in India. His parents are resident in India.
4. In the year of claim three of the brothers and sisters were over the age of 19.
5. The respondent sent a remittance each month to his father during the year of claim.

6. He claimed child allowance under s. 44 of the East African Income Tax (Management) Act (Cap. 24) in respect of the said brother and three sisters resident and being educated in India."

It would be convenient at this stage to complete the Commissioner-General's statement of facts wherein he sets out the grounds of his objection to the decision of the Local Committee:

7. "The Appellant will submit at the hearing that the Respondent did not have custody of his brother and sisters as they were living with their parents and he is therefore not entitled to child allowance."

In addition to these facts as set out above there were produced at the hearing:

(1) A certificate from the National Bank of Commerce of Tanzania which reads:

"TO WHOMSOEVER IT MAY CONCERN

This is to certify that Mr. R. P. Joshi of P.O. Box 2444, Dar es Salaam, has remitted T. Shs. 500/- per month for twelve months during the year 1968."

(2) A certificate from the Honorary General Secretary of the Shree Hindu Mandal of Dar es Salaam which reads:

"This is to certify that the under-mentioned children of Mr. Prabhashanker Lavji Joshi are under the custody and maintenance of his eldest son Mr. Rasiklal Prabhashanker Joshi, presently residing at Plot 483, Upanga, Dar es Salaam.

Mst. Ramesh P. Joshi

Miss Indira P. Joshi

Miss Nilam p. Joshi

Miss Hansa P. Joshi."

and

(3) An affidavit from India deposed to by the parents of the children and bearing the stamp and signature of a local magistrate. This reads as follows:

"We, Prabhashanker Lavji Joshi and Labhjuvar Prabhashanker Joshi, the parents of the under mentioned children declare solemnly that due to our old age, poor physical health and financial inability have fully delegated, since year 1965, the full responsibility of care, maintenance, brought up and welfare of our undermentioned children to our eldest two sons as follows:

Master Ramesh P. Joshi Miss Indira P. Joshi Miss Nilam P. Joshi Miss Hansa P. Joshi	To be under the custody and care of our eldest son Rasiklal Prabhashanker Joshi.
AND	
Miss Taruna P. Joshi	To be under the custody and care of our second son Shasheekant Prahashanker Joshi.
	.....
	.....
Date: 29-11-69	Signature of parents.
	.....
Date: 29-11-69	Signature of witness.
	.....
Date: 29-11-69	Signature and stamp of Attorney/Magistrate."

And in addition the taxpayer informed the Court, and this is not disputed, that his father, who was aged sixty-seven years in 1968, was an invalid and blind, whilst his mother was in that same year fifty-eight years of age. The taxpayer further submitted that in view of the incapacity of his parents, as he was the eldest son, according to the custom of his community the custody of and responsibility for the maintenance of his brother and sisters devolved on him.

The relevant provision providing for child allowances in the assessment of income tax is s. 44 of the East African Income Tax (Management) Act, the relevant parts of which read:

> "44. (1) An individual who proves that in any year of income he maintained:
>
> (*a*) any child of his who was under the age of 19 years on the 31st December in such year of income and who was either in his custody or in any other custody by virtue of an order of a competent court; or
>
> (*b*) any other child who was under such age who was in his custody by virtue of any custom of the community to which he belongs; or
>
> (*c*) any child of a class mentioned in paragraphs (*a*) or (*b*) of this subsection and was not under the age of 19 years on such date and who was:
>
> (i) receiving full-time education; or
>
> (ii) serving full-time under articles or indentures with a view to qualifying in a trade or profession; or
>
> (iii) totally incapacitated either mentally or physically during the whole of such year of income from maintaining himself and was resident in the Territories or in a recognized institution abroad,
>
> shall, subject to section 49, in respect of each such child not exceeding four in number, where the individual is resident in Kenya or Tanzania, or six in number where the individual is resident in Uganda, be entitled to a personal allowance, in this Act referred to as the child allowance:"

The Commissioner-General's case as argued by Mr. Kaunda, is that as the taxpayer's brother and sisters are resident with their parents in India he cannot be said to have custody of them within the meaning of the section set out.

The whole crux of this case is the interpretation and construction of the word "custody" which appears in the section. This word "custody" was introduced in the Management Act of 1965, and, so I am informed by Mr. Kaunda (it should be noted that the taxpayer appeared in person), this is the first time that the section has come up for interpretation and construction. There is therefore no precedent, and, although the word "custody" is also used in the corresponding English Income Tax Act, I am not aware of any case wherein the word has been defined, and for reasons which are self-evident there is hardly likely to be an English case which would correspond to this instant one. The Court therefore has to decide the issue, which, as noted, is the application of first principles.

The first and foremost cardinal principle of construction of words whether in statutes or legal documents is that the words and expressions used should be given their plain and ordinary meaning. The word "custody" covers such a wide range of meanings that it would be idle to set out the definition of "custody" in any dictionary, particularly as this case is concerned with the meaning of the word in relation to children.

At first blush custody when used in relation to children would appear to be equated to guardianship. However, there is a distinction between the two, as remarked on in "Words and Phrases Legally Defined", 2nd Ed., at p. 392, the relevant passage reading:

> 'AUSTRALIA. – 'Custody' is not necessarily co-extensive with 'Guardianship'. Both words appear in the Guardianship of Infants Act and may have different significations. . . . It may be 'guardianship' and 'custody', when used in contrast, are several aspects of the same relationship. The former can very well be employed in a special context to denote duties concerning the child ab extra; that is, a warding off; the defence, protection and guarding of the child, or his property, from danger, harm or loss that may enure from without. Commonly, guardianship is used in a wider sense (*Neale v. Colquhoun*, [1944] S.A.S.R. 119, at pp. 129 – 130). Custody essentially concerns control and the preservation and care of the child's person, physically, mentally and morally; responsibility for a child in regard to his needs, food, clothing, instruction, and the like. *Wedd v. Wedd*, [1948] S.A.S.R. 104, *per* Mayo, J., at pp. 106, 107."

It is also not irrelevant to remark that, particularly as of late, a distinction has been made between "custody" and "care and control", because one parent may be granted custody of a child of the marriage whilst the other is granted the care and control.

It cannot be gainsaid that where a word has many meanings which vary according to the context in which it is used it would be elementary to say that the word must be construed in the particular context in which it is used. As already noted, we have limited the meaning or definition of the word "custody" to when used in connection with children. The section which we are interpreting has gone much further and qualified the word "custody" by stating at paragraph (*b*):

> "any other child who was under such age who was in his custody by virtue of any custom of the community to which he belongs."

Although in this case we are concerned with paragraph (*c*), as expressly stated in that paragraph it is interconnected with paragraph (*b*), and the same definition of paragraph (*b*) will apply to children over the age of nineteen years if they are "receiving full-time education".

It is common ground that during the year of assessment the taxpayer had been remitting Shs. 500/- monthly to his parents for the maintenance and education of his brother and three sisters. It is also not disputed that this brother and three sisters are receiving full-time education.

In their affidavit the parents of the taxpayer, on account of their infirmities and poverty, have delegated their responsibility for the care and maintenance of these children to the taxpayer, in other words they have abdicated their natural rights to the custody of these children to the taxpayer, who apart from that has submitted that, as the eldest son of his parents, in view of their disabilities and financial standing their responsibilities in respect of his brother and sisters, according to the custom of their community, devolve on him. And further still, which is possibly the most material single factor in this case, there is the certificate from the Shree Hindu Mandal to the effect that in accordance with the custom of their community the children with whom we are concerned are under the custody and maintenance of the taxpayer. And there is nothing on the record, nor has Mr. Kaunda sought, to dispute the authenticity of this certificate.

Although I fully agree with Mr. Kaunda that the taxpayer cannot be said to have physical custody of the children in respect of whom he is claiming allowances on his assessment, they are all, according to the custom of the community

to which they belong, in the custody of the taxpayer. He is therefore entitled to the child allowances in respect of them.

As I think sufficiently demonstrated, there is certainly no authority, nor is there any reason apparent, why this Court should disagree with the decision of the Local Committee from which this appeal has been brought.

In the result the appeal is dismissed, with costs if any, as the respondent taxpayer has appeared in person.

Appeal dismissed.

For the appellant:
GH Kaunda

The respondent appeared in person.

Ramji v Customs & Excise
[1972] 1 EA 154 (HCK)

Division:	High Court of Kenya at Mombasa
Date of judgment:	9 July 1971
Case Number:	35/1970 (41/72)
Before:	Mosdell J
Sourced by:	LawAfrica

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[1] Customs and Excise – Limitation of actions – Claim submitted within year – Evidence not submitted – Claim not barred – East African Customs and Transfer Tax Management Act (*Cap.* 27), *s.* 123*; East African Customs Regulations, r.* 139.

[2] Statute – Rules made under statutory powers – Application to be made within period – Rule may not demand evidence in same period – East African Customs and Transfer Management Act (*Cap.* 27), *s.* 123*; East African Customs Regulations, r.* 139.

Editor's Summary

The plaintiff paid duty on goods on 19 April 1968 and on 5 December 1968 submitted a completed form claiming a refund of the duty on the ground that the consignment had never been imported into Kenya.

The defendant's officer asked for evidence in support of the claim and finally on 28 June 1969 the claim was rejected.

For the defendant it was contended that the claim was time-barred since the application together with the evidence in support thereof had not been submitted within one year from the payment.

Held –

(i) only the claim has to be submitted within the year;

(ii) "together with" means "as well as" and does not signify contemporaneity in reg. 139;

(iii) if reg. 139 required contemporaneity it would be ultra vires s. 123 of the Act.

Preliminary objection dismissed.

No cases referred to in judgment

Judgment

Mosdell J: This is a suit in which the plaintiff seeks to recover from the Commissioner-General of Customs a sum of Shs. 18,000/- being import duty paid on 19 April 1968 on a consignment of 12 cases of printed cotton

piece goods (hereinafter called "the consignment") purportedly imported into Kenya at Mombasa in April 1968.

Mr. Muli has submitted that the claim of the plaintiff for a refund was time barred under s. 123 (2) of the East African Customs and Transfer Tax Management Act (Cap. 27). S. 123 so far as is relevant, reads as follows:

> "123. (1) Subject to this section, and of any regulations, the Commissioner-General may grant a refund–
>
> (*b*) of any import or export duty or transfer tax which has been paid in error.
>
> (2) No refund of any import or export duty or transfer tax, or part thereof, shall be granted under sub.s. (1) unless the person claiming such refund presents such claim within a period of twelve months from the date of the payment of the duty."

The plaintiff is claiming under s. 123 (1) (*b*).

It is not in dispute that the plaintiff paid import duty of Shs. 18,000/- in respect of the consignment on 19 April 1968. The plaintiff claims that in fact, the consignment was never imported into Kenya; that the import duty was paid in error and that under s. 123 (1) (*b*) he is entitled to a refund of the whole duty paid.

Regulations were promulgated under the power given in s. 191 and the relevant regulation is reg. 139 (*a*) of the East African Customs Regulations which reads as follows:

> "139. (*a*) Any person claiming a refund of any duties which have been overpaid shall submit to the proper officer at the place where the duty was paid an application therefore in the form No. C. 54, in duplicate, together with such evidence of overpayment as the Officer shall require."

Now it is not in dispute that on 5 December 1968 (that is well within the limitation period of 12 months) the "proper officer" received a completed C. 54 form from the plaintiff but the proper officer, not unnaturally, wanted some evidence of non-importation and on the reverse of the C. 54 form there are 3 manuscript endorsements, the first of which reads "I. Attach claim paid certificate". There is an illegible signature and the date "6/12" underneath this endorsement. The plaintiff, apparently, produced a certificate from Dalgety (E.A.) Ltd; agents for Royal Interocean Lines dated 4 March 1969, stating, *inter alia*, that the consignment was not landed from the relevant vessel "at any port in Kenya and Tanzania" and "your claim will be paid or repudiated in due course". This certificate did not, apparently, satisfy the proper officer, for the second manuscript endorsement on the reverse of the C. 54 form is in the following terms:

> "Please see remark on certificate. Has the claim been paid or repudiated by the shipping? Please get their explanation."

Underneath which is the same illegible signature and the date "18/6". The third and final endorsement on the certificate reads as follows:

> "Your claim application cannot be entertained with the evidence produced, as it is apparent that the goods were landed and disposed of elsewhere. Ships Agents' letter confirms this."

Underneath which is the same illegible signature and the date "28/6". So that, by 28 June 1969 the plaintiff had not produced to the proper officer, apparently, "such evidence of overpayment as the officer shall require" under regulation 139. By 28 June 1969 the limitation period of twelve months had long since expired. So, submitted Mr. Muli, since the plaintiff had not complied with regulation 139

within 12 months from 19 April 1968, the date when the import duty was paid, he was time barred. Not so, submitted Mr. Anjarwalla, for the plaintiff. The plaintiff submitted his claim, namely, the C. 54 form duly completed, on 5 December 1968, well within the limitation period and hence he is entitled to a refund.

In essence the gravamen of the respective submissions is as follows:

Mr. Muli – for the Commissioner that s. 123 (2) ibid and Reg. 139 require the claim to be made, and the evidence to support it, as required by the proper officer, to be given, within 12 months from the date on which the duty was paid. Mr. Anjarwalla – and for the plaintiff that all that s. 123 (2) and Reg. 139 require is that the claim shall be made within such period of 12 months, for how can the plaintiff supply evidence at the same time as he submits the C. 54 form when he does not know what evidence will be required? I would add, how can the proper officer know what evidence to require until he knows the grounds of the claim? S. 123 (2), Mr. Anjarwalla submitted, relates to the making of the claim and not to proving it.

I think Mr. Anjarwalla is right. In my view, the words "together with" in Reg. 139 are synonymous with "as well as" and are not intended to signify contemporaneity. To construe these words in the sense of contemporaneity would produce an absurdity. Moreover, I think, if the words "together with" were to be construed in the sense of contemporaneity Reg. 139 would be ultra vires s. 191 of the Act. S. 123 (2) requires the claim to be made within 12 months, not the evidence to support it. Nor do I think s. 191 (3) assists Mr. Muli. This reads:

> "191. (3) Regulations made under this section shall be laid before the Assembly at the next meeting after the publication of such regulations, and if the Assembly within a period of seven days after such regulations are so laid resolves that such regulations shall be annulled, such regulations shall cease to have effect as from the date of such resolution but without prejudice to the validity of anything previously done thereunder, or to the making of new regulations."

It provides for annulment of regulations made under s. 191, in certain circumstances, but even if such regulations are not annulled, they could still be ultra vires s. 191, for the power given by that section is one to make regulations "generally for giving effect to the provisions of this Act and for the conduct of any business relating to the Customs." S. 124 (2) specifically mentions only the presenting of a claim and not the giving of evidence to support it.

For the above mentioned reasons, I overrule the objection in law as to limitation propounded by Mr. Muli.

Order accordingly.

For the plaintiff:
PD Prinja

For the defendant:
M Muli (Counsel to the Community)

Josia v Republic
[1972] 1 EA 157 (CAD)

Division: Court of Appeal at Dar Es Salaam

Date of judgment: 27 October 1971

Case Number:	88/1971 (45/72)
Before:	Sir William Duffus P, Lutta and Mustafa JJA
Sourced by:	LawAfrica
Appeal from:	High Court of Tanzania – El-Kindy, J

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[1] Criminal Law – Compulsion – Defence open to accused not charged with anyone else – Penal Code, s. 17 (*T.*).

Editor's Summary

The appellant pleaded that the murder with which he had been charged had been carried out under compulsion. The judge convicted the appellant on the evidence and also because the appellant was not jointly charged with anyone else and so could not rely on the Penal Code, s. 17.

On appeal, which was dismissed on the evidence:

Held – the two or more offenders do not have to be jointly charged to allow the accused to rely on the defence of compulsion.

No cases referred to in judgment

Judgment

The considered judgment of the court was read by **Mustafa JA:** The appellant was convicted of murder, but as he was found to be under 18 years of age, was sentenced to be detained at the President's pleasure.

In the course of his defence, the appellant's counsel invoked the provisions of s. 17 of the Penal Code which read:

> "A person is not criminally responsible for an offence if it is committed by two or more offenders, and if the act is done or omitted only because during the whole of the time it is being done or committed the person is compelled to do or omit to do the act by threats on the part of the offender or offenders instantly to kill him or to do him grievous bodily harm if he refuses; but threats to future injury do not excuse any offence."

The appellant had at one stage alleged that he and the deceased had gone fishing in a canoe. At the river bank they had met one Yeronimo. While in the middle of the river they came across a hippo, and both the appellant and the deceased became frightened and fell into the river. The appellant had managed to swim ashore, but the deceased was without sufficient strength to do so. The appellant went and told Yeronimo of the incident and the appellant alleged that Yeronimo thereupon decided that the deceased should be killed and his property taken over. The appellant led Yeronimo to where the deceased was, and Yeronimo was alleged to have told the appellant that if he, the appellant, did not kill the deceased, Yeronimo would kill the appellant. Yeronimo then handed a panga to the appellant, and the appellant then cut the deceased several times with the panga after which Yeronimo and the appellant went to the deceased's house and shared out the property of the deceased.

The trial judge found that the alleged threat by Yeronimo to kill the appellant was not present all the time, and that once the panga was handed to the appellant by Yeronimo, the threat had ceased to exist, as the appellant was then in a

position to withstand Yeronimo's attempt to put his alleged threat into effect. The appellant had therefore killed the deceased after the threat had ceased to exist, and therefore could not invoke the provisions of s. 17 of the Penal Code in his defence.

However, the trial judge also said:

> "It (that is s. 17) is only available to an offender who is jointly charged with another or others. . . ."

The trial judge held that as the appellant was not jointly charged with another person, that was another ground why s. 17 could not be invoked by him. With respect, we are satisfied that the trial judge was in error in so holding. The "two or more offenders" referred to in s. 17 need not be jointly charged with an accused person, they could be abettors of the offence and indeed could be persons who had absconded and could not be traced or had died. The word "offenders" is not synonymous with "co-accused". However, this misdirection had not in any way prejudiced the appellant or occasioned any injustice as the trial judge had rightly found that the alleged threat by Yeronimo to kill the appellant had ceased to exist before the appellant killed the deceased.

We accordingly dismiss the appeal.

Appeal dismissed.

The appellant did not appear and was not represented.

For the respondent:
SO Umezurumba (State Counsel)

Fatehali v Republic
[1972] 1 EA 158 (CAD)

Division:	Court of Appeal at Dar Es Salaam
Date of judgment:	8 February 1972
Case Number:	193/1971 (46/72)
Before:	Sir William Duffus P, Saidi CJ and Law JA
Sourced by:	LawAfrica
Appeal from:	High Court of Tanzania – Mwakasendo, J

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[1] Appeal – Jurisdiction – Sentence – Severity of revisional sentence – No appeal to Court of Appeal – Appellate Jurisdiction Ordinance (*Cap.* 451), *s.* 8 (*T.*).

[2] Criminal Practice and Procedure – Revision – Inadequacy of sentence – High Court has power to revise – Criminal Procedure Code, s. 327 (*T.*).

[3] Criminal Practice and Procedure – Sentence – Discrimination – Care should be taken not to discriminate between accused when circumstances and facts the same.

[4] Criminal Practice and Procedure – Revision – Magistrate's jurisdiction – Sentence may be revised beyond magistrate's jurisdiction – Criminal Procedure Code, s. 329 (*T.*).

Editor's Summary

The appellant was convicted with another man of an exchange control offence and fined. On the complaint of the Bank of Tanzania the High Court revised the sentence increasing the fine and imposing a sentence of imprisonment on the appellant only.

On appeal it was argued that as the magistrate had made no error in sentencing the appellant the High Court had no power of revision, that the court was in breach of natural justice in acting on the complaint of the bank, that the sentence

of imprisonment was discriminatory against the appellant, that the fine was beyond the jurisdiction of the magistrate.

Held –

(i) the High Court has power to revise a sentence which is inadequate in view of the seriousness of the offence;

(ii) the Court of Appeal has no jurisdiction to interfere with such revision;

(iii) care should be taken not to discriminate between two accused persons where all the circumstances and facts are the same: this was not the case here;

(iv) the sentence could be increased beyond the magistrate's jurisdiction.

Observation of the court that imprisonment for a first offence appeared unduly severe.

Appeal dismissed.

Case referred to in judgment:

(1) *Desai v. Republic*, [1971] E.A. 416.

Judgment

The considered judgment of the court was read by **Sir William Duffus P:** This is an appeal from an order of revision made by a judge of the High Court under s. 327 of the Criminal Procedure Code. The appellant and another person were charged with offences under s. 7 (1) (*b*) of the Exchange Control Ordinance, (Cap. 294). The appellant had paid to his co-accused Shs. 4,000/- in Tanzanian currency in exchange for a cheque for £200 sterling drawn on a British bank. They pleaded guilty in a trial before the magistrate's court and were both fined Shs. 2,000/-. Acting on a complaint from the Governor of the Bank of Tanzania the High Court called for the file and had a notice served on the accused that the High Court proposed to consider an enhancement of the sentence. The matter came before a judge of the High Court when the accused were represented and resulted in the High Court increasing the sentences imposed on both the accused. The appellant was sentenced to six months' imprisonment and had his fine increased from Shs. 2,000/- to Shs. 6,000/-. The other accused person had his fine increased to Shs. 10,000/-. This accused did not appeal.

The power of this Court to hear this appeal is that conferred by s. 8 (6) of the Appellate Jurisdiction Ordinance (Cap. 451), and is limited to "matters of law (not including severity of sentence)". This is an appeal against sentence only. We recently considered this matter as it applied to Tanzania in the case of *Desai v. Republic*, [1971] E.A. 416 at p. 419. We clearly set out the principles on which this Court will be guided when we said:

> "On consideration, we think that while it is not open to us to consider, on second appeal, whether a sentence is unduly severe or unduly lenient, it must be open to us to consider whether a sentence is lawful, and to interfere if it is not. By necessary extension, we think we have jurisdiction to entertain a submission that a trial court, in considering the sentence to be passed, has misdirected itself in law and, if we uphold such a submission and consider that the sentence passed resulted directly from the misdirection, to interfere with that sentence, so as to substitute for it the sentence which the trial court would have imposed had it directed itself correctly."

In this case Mr. Versi, who appeared for the appellant, relied on several matters which he said amounted to misdirections by the court in law in passing sentence. We will consider these submissions. He submitted first that the court

was wrong in revising the matter under s. 327 of the Criminal Procedure Code as the resident magistrate's court had not made any error in sentencing the accused. S. 327 states–

> "327. The High Court may call for and examine the record of any criminal proceedings before any subordinate court for the purpose of satisfying itself as to the correctness, legality or propriety of any finding, sentence or order, recorded or passed and as to the irregularity of any proceedings of any such subordinate court."

The Court is justified in interfering with a sentence on the ground that the sentence was completely inadequate having regard to the seriousness of the offence. In sentencing the appellant the senior resident magistrate found that the admitted contravention of the Exchange Control Ordinance did not adversely affect the national economy. In his judgment the judge held that this was wrong and that in fact the transaction did affect the national economy. With respect to both the senior resident magistrate and the judge, the transaction was of such a nature that although it would probably have caused some effect on the national economy, even if only to a minor extent, but the effect had not yet occurred, as the transaction was never completed. On the other hand, admittedly any offence against the Exchange Control Ordinance is potentially an offence of a serious nature as such offences may affect the economy and financial resources of the country. We consider that the High Court had jurisdiction to act under s. 327 on the facts of this case and, in the words of the section, "to satisfy itself as to the correctness, legality or propriety of the sentence". We further consider that the High Court acting as it did in increasing the sentence was acting legally within its jurisdiction and the question as to the quantum or nature of the sentence is a matter coming within the meaning of "severity of sentence", and therefore a matter on which we have no jurisdiction. This disposes of grounds 2 and 3 of the Memorandum of Appeal.

Ground 1 was to the effect that the judge failed to comply with the principles of natural justice in the exercise of his powers. In support of this Mr. Versi complained that these proceedings were, on the face of the record, instituted on a complaint by the Governor of the Bank of Tanzania and he suggested that the fact that this complaint was made by the Governor of the Bank of Tanzania would also have influenced the decision of the judge. With respect to Mr. Versi, and as we pointed out at the hearing, there was absolutely no justification to even suggest that the judge who heard and made the revisional order, was in any way affected by the question as to who made the complaint. A judge of the High Court has power, on his own motion, to call for and revise any proceedings in the magistrate's court, in whatever manner the proceedings came to his knowledge. It would perhaps have been better if the Governor of the Bank had made his complaint through the Director of Public Prosecutions but the fact that he made it direct cannot vitiate these proceedings. We can find no justification for the submission that there had been a breach of the principles of natural justice in this respect.

Mr. Versi then submitted that the sentence imposed on the appellant was discriminatory in that the sentence imposed on the second accused was only that of a fine whilst that imposed on the appellant is one of imprisonment. We agree that care should be taken never to discriminate between two accused persons when all the circumstances and facts are the same but this was not the case here. First, the offence had been brought about by the request of the appellant to the second accused to assist him in paying school fees in the United Kingdom so to some extent the appellant was perhaps more to blame than the second accused. Then there was the further fact that as a result of this transaction the second accused had lost a responsible and good position which he held in Tanzania and

has had to leave the country. There is the further fact that the appellant was a resident of Tanzania whilst the second accused is a foreigner. These were all facts which distinguished between the two accused persons and would in our view have been justification for the differences in sentence.

A further point Mr. Versi raised was the fact that the judge in imposing the increased fine on the appellant had exceeded the jurisdiction of the magistrate. The term of imprisonment was, however, within the magistrate's jurisdiction. However, as Mr. Versi himself pointed out, the amendment to s. 329 (3) of the Criminal Procedure Code specifically gave the High Court this power of increasing the sentence and in these circumstances we cannot say that the judge was wrong in exercising his discretion in the way which he did.

We find therefore that the High Court passed the sentence within its jurisdiction and we are unable to find that it acted on any wrong legal principles. We might say that in the circumstances of this case the sentence of imprisonment itself for a first offender appears to be unduly severe, especially having regard to the purpose for which the money was required, but this is not a matter on which we have any authority to act. It might, however, be considered by the proper authorities.

The appeal is dismissed.

For the appellant:
BAS Versi (instructed by *George N Houry & Co*, Dar es Salaam)

For the respondent:
KRK Tampi (State Attorney)

Furugence v Republic
[1972] 1 EA 161 (CAD)

Division:	Court of Appeal at Dar Es Salaam
Date of judgment:	3 February 1972
Case Number:	191/1971 (47/72)
Before:	Sir William Duffus P, Law and Mustafa JJA
Sourced by:	LawAfrica
Appeal from:	High Court of Tanzania – Makame, J

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[1] Criminal Practice and Procedure – Trial – Began by one judge and concluded by another – Nullity – Criminal Procedure Code, s. 196 (*T.*).

Editor's Summary

The appellant was convicted by a judge who took over the conduct of the case from another judge after the close of the prosecution case, relying on s. 6A of the Judicature and Application of Laws Ordinance, 1964, and s. 196 of The Criminal Procedure Act.

Held – s. 196 is limited to proceedings in subordinate courts and the continued trial was a nullity.

Appeal allowed.

No cases referred to in judgment

Judgment

The *ex parte* judgment of the court was delivered by **Law JA:** In this case the judge who convicted the appellant took over the conduct of the trial, after the close of the prosecution case, from another judge. He considered that he had power to do so, under the provisions of s. 6A of the Judicature and Application of Laws (Amendment) Ordinance, 1964, which

confers upon a judge "all the powers and functions conferred by law upon any class of magistrate", and he relied on s. 196 of the Criminal Procedure Code, which allows in certain cases the continuation of a trial by a different magistrate from the one who began the case.

We do not find it necessary to decide whether s. 6A confers magisterial powers on judges generally or only, as Mr. Samatta submits, when sitting as magistrates, because in our view s. 196 of the Criminal Procedure Code is limited to proceedings in subordinate courts and has no application to proceedings in the High Court. We have no doubt that the judge who convicted and sentenced the appellant had no jurisdiction to do so, and that the case, the subject of this appeal, is a nullity.

This being so, the appeal is allowed, the conviction quashed and the sentence set aside. The appellant will be retried before another judge.

Appeal allowed.

For the appellant:
PT Tehingisa

For the respondent:
BA Samatta (State Attorney)

Premchand Raichand Ltd and another v Quarry Services of East Africa Ltd and others (No. 3)

[1972] 1 EA 162 (CAN)

Division:	Court of Appeal at Nairobi
Date of judgment:	3 February 1972
Case Number:	41/1970 (49/72)
Before:	Sir William Duffus P, Spry V-P and Law JA
Sourced by:	LawAfrica

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[1] Costs – Level of – Must not confine access to courts to wealthy.

[2] Costs – Successful litigant – Should be fairly reimbursed.

[3] Costs – Level of – Awards should be consistent where possible.

[4] Cost – Level of – Should be such as to attract recruits to legal profession.

[5] Costs – Appeal – Interference by appellate court only where injustice to one party.

[6] Costs – Level of – Comparable cases – Allowance may be made for fall in value of money.

[7] Costs – Appellant's – Not generally distinguishable from respondent's costs.

[8] Costs – Counsel from overseas – Irrelevant – Fee estimated of a capable counsel.

Editor's Summary

The respondent referred to the full court the decision of a single judge on appeal from the taxing officer's taxation of the appellant's bill of costs. A certificate for two advocates had been given, and a brief fee to senior counsel of Shs. 27,000/- and an instruction fee of Shs. 20,000/- were allowed, and the total allowed was Shs. 55,597/-. In allowing these fees the taxing officer made an allowance for the fall of the value in money and for the fact that the costs were those of the appellants rather than of the respondents.

For the respondents it was contended that the brief fee was so manifestly excessive that an error in principle had been made, and alternatively that the overriding discretion of the court should be exercised to reduce the total of the bill to a reasonable figure.

Held –

(i) the court must consider the following principles:

(*a*) that costs be not allowed to rise to such a level as to confine access to the courts to the wealthy;

(*b*) that a successful litigant ought to be fairly reimbursed for the costs the has had to incur;

(*c*) that the general level of remuneration of advocates must be such as to attract recruits to the profession; and

(*d*) that so far as practicable there should be consistency in the awards made;

(ii) the court will only interfere when the award of the taxing officer is so high or so low as to amount to an injustice to one party;

(iii) in considering bills taxed in comparable cases an allowance may be made for the fall in value of money;

(iv) apart from a small allowance to the appellant for the responsibility of advising the undertaking of the appeal there is no difference between the fee to be allowed to an appellant as distinguished from a respondent;

(v) the fact that counsel from overseas were briefed was irrelevant: the fee of a counsel capable of taking the appeal and not insisting on the fee of the most expensive counsel must be estimated (*Simpson Motor Sales v. Hendon Corporation* (2) followed);

(vi) the total bill as taxed was excessive and would be reduced by Shs. 20,000/-.

Order accordingly.

Cases referred to in judgment:

(1) *Arthur v. Nyeri Electricity Undertaking*, [1961] E.A. 492.

(2) *Simpsons Motor Sales v. Hendon Corporation*, [1964] 3 All E.R. 833.

Judgment

The considered judgment of the court was read by **Spry V-P:** This is a reference to the full Court of a decision of a single judge on a reference from a taxing officer. The reference was as a matter of quantum only, and the single judge, while expressing the opinion that the brief fee was high, declined to interfere.

It has not been suggested that the ruling of the taxing officer, an officer of great experience, contains any express error of law. Mr. Gautama, for the applicants, made a two-fold submission, either that the award of the brief fee was so manifestly excessive that an error of principle ought to be inferred, which would justify our reducing that fee and consequentially the instruction fee, or that we should exercise the over-riding discretion given to use by para. 24 of the Third Schedule to the Eastern African Court of Appeal Rules, 1954, and say that the bill of costs, looked at as a whole, is excessive and reduce it to such figure as would render the total sum reasonable. From a practical point of view, it is immaterial, in the circumstances of this case, which approach is taken.

There was no fundamental disagreement on the relevant principles. Mr. Gautama argued, and Mr. J. J. Patel, for the respondent company, conceded, that we owe a duty to the public to see that costs are not allowed to rise to such a level as to deprive of access to the courts all but the wealthy. On the other hand, Mr. Patel argued, and Mr. Gautama conceded, that a successful litigant ought fairly to be re-imbursed the costs he had had to incur. We would add two other considerations. First, the general level of the remuneration of advocates must be such as to attract worthy recruits to an honourable profession. Secondly, there must, so far as is practicable, be consistency in the awards made, both to do justice between one person and another and so that a person contemplating

litigation can be advised by his advocates very approximately what, for the kind of case contemplated, is likely to be his potential liability for costs.

Mr. Patel particularly referred us to the judgment in *Arthur v. Nyeri Electricity Undertaking*, [1961] E.A. 492, as showing how reluctant this Court is to interfere in matters of quantum. We accept the principles there set out, but it must be borne in mind that that case concerned costs in the High Court where there is, so far as we are aware, no over-riding discretion such as we have under para. 24.

Mr. Gautama argued that para. 24 merely refers to a bill of costs being excessive and he submitted that this implied a more liberal approach than the "manifestly excessive" test from which an error of principle may be inferred. With respect, we do not think this distinction can properly be drawn. The taxation of costs is not a mathematical exercise; it is entirely a matter of opinion based on experience. A court will not, therefore, interfere with the award of a taxing officer, and particularly where he is an officer of great experience, merely because it thinks the award somewhat too high or too low: it will only interfere if it thinks the award so high or so low as to amount to an injustice to one party or the other.

In the case now before us, a certificate was given for two advocates. The case was a difficult one and involved a little over Shs. 1,000,000/-. The hearing took a day and a half. The respondents, who had succeeded in the appeal, submitted a bill totalling Shs. 95,153/-, which was reduced on taxation to Shs. 55,597/30. The main items in this bill were the brief fee to senior counsel, for which Shs. 45,010/- was claimed and Shs. 27,000/- allowed, and the instruction fee, for which Shs. 32,000/- was claimed and Shs. 20,000/- allowed (arrived at by taking two-thirds of the brief fee and of an additional fee for the second day's hearing and adding Shs. 1,500/- "as 'getting-up' (element of solicitor's work)").

Both before the taxing officer and before us much of the argument consisted of a comparison of the present case with an earlier one, Civil Appeal No. 37 of 1962. Mr. Gautama and Mr. Patel seemed in agreement that the cases were comparable, but they disagreed as to which was the more complex. In that case, the brief fee was Shs. 8,400/-, which a judge of this Court on reference and later a full bench thought on the high side. The taxing officer, while saying that no two cases are ever alike, though that Civil Appeal No. 37 was helpful as a guide, provided allowance was made, first, for the fall in the value of money and, secondly, for the fact that the costs in the present case are those of appellants, while those in the earlier case were respondents.

We think it is clearly right to make allowance for the fall in the value of money: There is no evidence before us as to the fall since 1964 (when the bill in Civil Appeal No. 37 of 1962 appears to have been taxed). Mr. Patel suggested a figure of 7½ per cent per annum, say 50 per cent overall, and Mr. Gautama did not dispute it. We are prepared to accept that figure.

We are not aware of any authority for saying that in principle an appellant should be allowed a higher brief fee than a respondent, nor do we think there is any such principle. The brief fee is based on the amount of work involved in preparing for the hearing, the difficulty and importance of the case and the amount involved. These factors apply to the respondent as well as to the appellant. The advocate for a respondent, if he is not to be taken by surprise, must make just as thorough a study of the case and the relevant authorities as the advocate for the appellant. The advocate for an appellant does, however, have the responsibility of advising his client to attack a judgment of a court, and this would, we think, justify his being allowed a slightly higher fee to include this element.

The taxing officer rightly directed himself that the fact that English barristers were briefed is irrelevant: the matter has to be looked at on an East African basis. The correct approach in assessing a brief fee is, we think, to be found in the case

of *Simpsons Motor Sales* (*London*) *Ltd. v. Hendon Corporation*, [1964] 3 All E.R. 833, when Pennycuick, J., said:

> "one must envisage an hypothetical counsel capable of conducting the particular case effectively but unable or unwilling to insist on the particularly high fee sometimes demanded by counsel of pre-eminent reputation. Then one must estimate what fee this hypothetical character would be content to take on the brief."

We have read the judgments of this Court in Civil Appeal No. 37 of 1962 and those in the appeal with which we are concerned. Both were complicated and difficult but the present case was made easier by the concessions made by counsel at the hearing. The amounts in issue were roughly similar. We think therefore that the taxing officer was entitled to use the earlier case as a guide but on that basis, making all due allowance for the two factors considered by the taxing officer, a brief fee of Shs. 27,000/- in the present case, as compared with Shs. 8,400/- in the earlier, does appear very high.

We have also examined the taxed bills of costs in several recent cases. We will refer only to three, all taxed in 1970. Civil Appeal No. 4 of 1969 concerned a technical question of civil procedure, but it called for a fairly lengthy judgment. The amount in issue was very large, over Shs. 22,000,000/-. A bill of Shs. 30,612/- was lodged, including an instruction fee of Shs. 30,000/-. This was taxed down to Shs. 11,015/-, of which Shs. 10,000/- was the instruction fee allowed. Civil Appeal No. 44 of 1969 concerned only a single question of law, but it was one of great difficulty and of great public importance. The amount involved, claimed as tax, was about Shs. 5,000,000/-. A bill of Shs. 61,882/- was lodged, including an instruction fee of Shs. 60,000/-. Shs. 27,507/- was allowed, including Shs. 15,000/- brief fee for the leader, Shs. 10,000/- for the junior and Shs. 1,000/- for "solicitors work". Civil Appeal No. 53 of 1968 again concerned only one question of law but it also raised an issue of judicial policy. The amount in issue was a little over Shs. 350,000/-. The bill which was unopposed and allowed virtually as claimed totalled Shs. 20,967/50, including a brief fee and refreshers for senior counsel of Shs. 10,500/- and an instruction fee of Shs. 8,500/-. Those are, we believe, among the highest fees that have been allowed prior to the present case.

After weighing all these considerations, we have reached the conclusion that this is a case where the bill of costs after taxation is excessive and we think, with respect to the taxing officer and to the single judge, that it should be reduced. On the basis of a brief fee for senior counsel of Shs. 15,000/- and an instruction fee of Shs. 10,000/-, plus Shs. 1,500/-, and leaving all other items unchanged, we would reduce the total bill from Shs. 55,597/30 to Shs. 35,597/30. We would give the applicant the costs of the reference, and the assessed costs of the reference to the single judge.

Order accordingly.

For the respondents:
SC Gautama and *TG Bakrania* (instructed by *Veljee Devshi & Bakrania*, Nairobi)

For the appellant:
JJ Patel

Mohamed and another v Haidara
[1972] 1 EA 166 (CAN)

Division: Court of Appeal at Nairobi

Date of judgment: 2 March 1972

Case Number:	42/1971 (50/72)
Before:	Spry V-P, Lutta and Mustafa JJA
Sourced by:	LawAfrica

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[1] Land – Caveat – Extension – Evidence required for order of extension – Government Lands Act, s. 116.

[2] Land – Caveat – Extension – Whether application on same basis as application for interlocutory injunction.

[3] Land – Case claiming – Effect on subsequent alienation – Transfer of Property Act 1882, *of India, s.* 52.

Editor's Summary

The respondent lodged against the title to the appellants' land registered under the Government Lands Act (Cap. 280) a caveat claiming a purchaser's interest under an agreement for sale and filed action for specific performance of the agreement. The respondent applied to the High Court for an extension of the caveat and merely set out that there was an action for specific performance. The appellants filed an affidavit alleging that the contract had been determined by mutual consent.

The High Court extended the caveat, holding that the caveat gave the respondent a right in law.

The appellants appealed, contending that the extension of a caveat should be granted only on the principles upon which an injunction would be granted, and there was no evidence upon which the order could have been made.

Held –

(i) (by the court) in view of the lack of evidence filed by the respondent the extension of the caveat should not have been granted;

(ii) (by Spry, V-P.) application for the extension of a caveat should be treated in the same way as an application for an interlocutory injunction, and that what an application must show is a *prima facie* case with a probability of success.

Observations by Spry, V-P., on the effect of The Transfer of Property Act 1882 of India, s. 52.

Appeal allowed.

Cases referred to in judgment:

(1) *Child v. Douglas* (1854), 43 E.R. 1057.

(2) *Hadley v. London Bank of Scotland* (1865), 46 E.R. 562.

(3) *Preston v. Luck* (1884), 27 Ch. D. 497.

Judgment

The following considered judgments were read. **Spry V-P:** This is an appeal from an order of the High Court, by which the judge, in exercise of the powers conferred on him by s. 116 (8) of the Government Lands Act (Cap. 280), extended the duration of a caveat registered under that Act pending the outcome of a suit for specific performance.

It seems to me that the appeal depends on the determination of a single question

of law. Subs. (8) empowers the court, on an application for such extension and "upon such evidence as the court may require", to make such order as the court thinks fit. The question is, in what circumstances and on what evidence ought such an extension to be granted.

The judge said–

> "I think the cases on injunction stand somewhat on a different footing. There, the applicant is seeking the indulgence of a court without having any other right or remedy. Here, a caveat had already been lodged in accordance with a right given to a purchaser by law. He has now filed a suit for specific performance and seeks extension of the caveat with the object of making specific performance, if he gets it, meaningful."

He then, without any consideration of evidence, granted the extension sought.

Mr. D. N. Khanna, for the appellant, submitted, as he did in the High Court, that the extension of a caveat and the granting of an injunction are in essence the same and should be governed by the same principles. Mr. Gautama, for the respondent, submitted that just as a purchaser has a right to lodge a caveat, so, if he has been served with a notice under s. 116 (6) and has filed a suit for specific performance, he should have a right to an extension of his caveat. He contended that it is fundamentally fallacious to identify the extension of a caveat with the grant of an injunction.

None of the advocates who appeared before us was able to cite any authority on this question and I am not aware of any.

In the absence of authority, I cannot, with respect, accept Mr. Gautama's argument. I agree that a purchaser may enter a caveat as of right and that the registration of the caveat, in addition to giving notice of his claim, affords it a temporary protection. Once, however, the owner of the land moves to have the caveat removed, the whole position changes. The caveator has now to go to the court, and the court clearly has a discretion. Had the legislature intended the filing of a suit, during the period of notice, to operate to extend a caveat, it could very easily so have provided.

If I am right in this, it seems to me that a court faced with an application for the extension of a caveat is substantially in the same position as a court faced with an application for an interlocutory injunction. The result will be exactly the same if the application is allowed, in so far as any alienation will be precluded pending the determination of the suit. In either case the court has a judicial discretion, and I can see no reason why different principles should apply merely because the circumstances of the application are different.

Mr. Khanna argued that before an injunction will be granted, a court must be satisfied, not only that the applicant has a *prima facie* case, but also that, on the evidence, the court feels a high degree of assurance that he is likely to succeed. I think, with respect, that that is too high a standard. Mr. Khanna cited two English cases but both were concerned with mandatory injunctions, where other considerations apply.

In *Preston v. Luck* (1884), 27 Ch. D. 497, Cotton, L.J., said, at p. 505:

> "Of course, in order to entitle the plaintiffs to an interlocutory injunction, though the Court is not called upon to decide finally on the right of the parties, it is necessary that the Court should be satisfied that there is a serious question to be tried at the hearing, and that on the facts before it there is a probability that the plaintiffs are entitled to relief."

So far as I am aware, that is still good law. In that case, the court was of the opinion that, on the evidence before it, there was a contract between the parties and Baggallay, L.J., went on–

> "That gives the Plaintiffs a *prima facie* right to have matters kept in statu quo to this extent, that their rights under that agreement shall not be defeated before the hearing."

On the other hand, in an earlier case, *Hadley v. London Bank of Scotland* (1865), 46 E.R. 562, Knight Bruce, L.J., considered the defendants more likely to succeed than the plaintiff on the question whether or not there was a binding contract between them and then weighed the balance of convenience. Turner, L.J., said that where a clear valid contract of sale is shown, the court will not permit the vendor to transfer the legal estate and he implied that an injunction would not be granted if there were doubt as to the enforceability of a contract.

As I understand the effect of these authorities, what the applicant for an interlocutory injunction has to show is that he has a *prima facie* case with a probability of success. If the court is in doubt, it will decide the issue on the balance of convenience, with the onus on the applicant to show that the inconvenience he would suffer from the refusal of an injunction is greater than that which the respondent would suffer from the grant of one (*Child v. Douglas* (1854), 43 E.R. 1057). I see no reason to apply any different principles as regards the extension of a caveat.

I now turn to the evidence. An affidavit was filed on behalf of the respondent. Mr. Khanna has rightly criticized it, for it is a most unsatisfactory document. For the purposes of this judgment it is unnecessary to say more than that all it even purports to show is that the respondent had lodged a caveat and that he had filed a suit for specific performance of an agreement for sale. The affidavit also contains a bare statement that the respondent has a good cause of action but being the opinion of a layman, unsupported by any facts, that cannot carry any weight. I am inclined to agree with Mr. Khanna that even if there had been no affidavit in reply, it would not have justified the extension of the caveat.

However, the appellants filed an affidavit in reply. In it, they admit that there was a contract of sale entered into between themselves as vendors and the respondent as purchaser but they say that this contract was determined by mutual agreement.

The respondent made no attempt to reply to these allegations and they therefore remain unrebutted. Mr. Gautama submitted that it would have been improper to put in a further affidavit. He argued that there is no prescribed procedure and that in any case an excess of affidavits is undesirable. I cannot agree. The position would be different if the respondent's affidavit had averred facts and the appellants denied them. Here, the respondent's affidavit gives no material facts and the only real evidence of fact is that contained in the appellants' affidavit. In these circumstances, it seems to me that a replying affidavit was essential. There was no need for it to be prolix but it should have made clear which of the facts alleged by the appellants were denied. I think the leave of the court would have had to be obtained to file such an affidavit, but I do not think that any court, in the circumstances, would have refused it.

Mr. Gautama submitted that it was implicit from the filing of the plaint that the respondent did not accept the appellants' contentions. In a broad sense, that is true, but the contents of a plaint are not evidence. There is no evidence to show whether the respondent denies all the facts alleged by the respondent or some of them or admits the facts but argues that in law they produce a result different from that claimed.

Mr. Gautama also argued that the facts alleged by the respondent were inherently improbable. That argument might have carried weight if the facts were in issue but cannot be considered when those facts are affirmed on oath and have not been rebutted.

In these circumstances, it seems to me, on the evidence before the court, that an interlocutory injunction could not have been granted and therefore that an extension of caveat ought to have been refused.

That being so, it is unnecessary to consider the balance of convenience or the various other aspects of the matter that were aired before us.

There are, however, two matters that I must mention. First, in the course of his address to us, Mr. Gautama referred to s. 52 of the Transfer of Property Act, 1882, of India, which provides that immovable property in issue in a suit cannot be alienated to the prejudice of a party to the suit, and submitted that it applies to land registered under the Government Lands Act. I am inclined to agree, but I am reluctant to express a firm opinion, as we do not have the benefit of any finding by the judge and the question was not fully argued before us. It would not appear from the record that it was ever part of the respondent's case in the High Court that an extension of the caveat ought to be granted by way of reinforcing the provisions of s. 52, which I assume to be Mr. Gautama's argument now, nor does it appear to have been the reason which led the judge to grant the extension. Moreover, the effect of extending a caveat, which, as I have said, is similar to that of an injunction, appears more restrictive than that of s. 52, since the former precludes the registration of a transfer or mortgage, while s. 52 only makes a disposition voidable at the instance of a successful party to the suit. I do not therefore think that s. 52 is relevant to this appeal, while the removal of the caveat will not affect such rights, if any, as are protected by the section.

Secondly, the respondent failed to annex to his affidavit a copy of the caveat of which he sought the extension. In my opinion, no caveat should ever be extended unless an authenticated copy of it is before the court. A caveat protects a specific interest and the evidence adduced in support of an application for extension must relate to that interest and no other.

I would allow the appeal and set aside the order of the High Court, substituting an order that the application be dismissed. I would give the appellant's costs in this Court and in the High Court, but I would not give a certificate for two advocates. As the other members of the Court agree, it is so ordered.

Mustafa JA: I agree that the appeal be allowed and I concur in the order proposed by the Vice-President.

I have only this to add. For my part I would prefer to reserve to a future occasion the question whether the same principles apply to the extension of a caveat as to the granting of an interlocutory injunction. In my view it is unnecessary to decide this point for the purposes of this appeal.

Here the respondent had filed a plaint, but the contents of a plaint are only allegations, not evidence. The affidavit filed in support of the application to extend the caveat was worthless as evidence. The appellants had filed an affidavit in reply which, if true, would mean that the contract between the parties was determined by mutual consent. The trial judge was empowered to deal with the application, in the words of s. 116 (8) of the Government Lands Act, "upon such evidence as the court may require". On the respondent's side no evidence was put in at all; only the appellants had put in evidence in the form of an affidavit. In the circumstances the trial judge was in error in granting the appellants' application to extend the caveat. On this ground I would allow the appeal.

Lutta JA: I agree.

Appeal allowed.

For the appellants:
DN Khanna and *MH da Gama Rose* (instructed by *Shapley Barret, Ennion Marsh & Co*, Nairobi)

For the respondent:
SC Gautama and *SM Akram* (instructed by *Akram & Co*, Nairobi)

Osongo and another v Republic
[1972] 1 EA 170 (CAN)

Division:	Court of Appeal at Nairobi
Date of judgment:	25 February 1972
Case Number:	2 and 3/1971 (51/72)
Before:	Sir William Duffus P, Spry V-P and Lutta JA
Sourced by:	LawAfrica

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[1] Appeal – Out of time – Motion filed before application to High Court – Motion competent – East African Court of Appeal Rules 1954, *r.* 18.

[2] Appeal – Summary dismissal – May be dismissed when appeal in fact is against weight of evidence – Criminal Procedure Code, s. 352 (*K.*).

Editor's Summary

The appeal of the applicants was summarily dismissed by the High Court. They filed notices of appeal out of time through the prison authorities. Then through an advocate fresh notices were filed and a notice of motion was filed in the Court of Appeal seeking an extension. Before this was heard application was made in the High Court and dismissed. Thereafter the motion was set down for hearing in the Court of Appeal.

For the respondent it was contended that the application was incompetent since it was filed before the application to the High Court.

Held –

(i) a motion is an oral application made when the applicant addresses the court;

(ii) the motion was accordingly made after application to the High Court and was competent;

(iii) if the substance of an appeal, fairly looked at, is that it is against the weight of the evidence, the appeal may be summarily dismissed.

Application dismissed.

No cases referred to in judgment

Judgment

The considered judgment of the court was read by **Spry V-P:** This reference to the full Court from a decision of a single judge rejecting an application for extension of time to give notice of appeal involves two questions. The first is whether the application to this Court was competent and the second, whether the judge was right in rejecting it.

The applicants were jointly charged with and convicted in the resident magistrate's court at Nairobi of stealing Shs. 267,135/-, the property of the Kenya Commercial Bank Ltd, Enterprise Road, Nairobi. Their appeal to the High Court was summarily dismissed under s. 352 (2) of the Criminal Procedure Code on 4 August 1971. A notice informing them of the dismissal was issued on 10 August 1971, and was served on them on 26 August 1971.

The applicants themselves filed notices of appeal through the prison authorities, but these were seriously out of time. Later, they instructed Mr. Owuor, who filed fresh notices of appeal and filed a notice of motion in this court to seek an extension of time. He then realised that, since both the High Court under s. 10 of the Appellate Jurisdiction Act and this Court, under r. 9 of the East African Court of Appeal Rules 1954, have jurisdiction to extend the time, he had, under r. 18 of the Rules, to apply in the first instance to the High Court. He did so and

his application was dismissed. He then had his notice of motion in this Court set down for hearing.

Mr. Sehmi, for the Republic, submitted that the application to this court was incompetent on the ground that it had been filed before application was made to the High Court. Mustafa, J.A., did not consider it necessary to decide this, but commented that it seemed that the application was incompetent. With respect, we do not agree. We think that a motion is an oral application and therefore that it is made at the time when the applicant addresses the court or judge, not when the notice of motion is filed. This is borne out by the wording of the prescribed form of notice of motion. It follows that the application to this Court was made after the application to the High Court and was competent, not being in breach of r. 18.

Mustafa, J.A., based his rejection of the application on the fact that no sufficient reason had been shown for the delay coupled with the fact that none of the proposed grounds of appeal appeared to involve any question of law. On the first of these grounds, no explanation has been given of the delay which elapsed between the applicants being notified of the dismissal of their appeal to the High Court and their signature of notices of appeal, a matter of some twenty-five days. The only explanation of the subsequent delay is that Mr. Owuor was under a misapprehension, believing valid notices of appeal to have been given.

As the intended appeal would be a second appeal, it could only be brought on grounds of law. The only real question of law which Mr. Owuor argued, was a submission that an appeal cannot be summarily rejected under s. 352 (2) of the Criminal Procedure Code unless it is expressed to be brought on the ground that the conviction is against the weight of evidence and that as those words had not been used in the memorandum of appeal to the High Court, the power of summary rejection could not lawfully be invoked. With respect, we cannot agree. We think that what the judge of the High Court has to do, and did in this case, is to look at the substance of the grounds of appeal and that if, fairly looked at, they amount to no more than a submission that the conviction is against the weight of evidence and the judge is satisfied that the evidence is sufficient and that there is no material raising a reasonable doubt that the conviction was right, he may summarily dismiss the appeal.

Mr. Owuor also submitted that one of the witnesses, Collins Audi was, or might have been, an accomplice but we can find no evidence to support this submission. He also submitted that the identification of the applicants was based on the evidence of only one witness and that other persons who might have given material evidence were not called by the prosecution, but these are not matters of law. We can find no merit in the proposed grounds of appeal and no reason to think that any injustice has been done.

For these reasons, the application is dismissed.

Application dismissed.

For the applicants:
M Owuor

For the respondent:
RS Sehmi and *Kwame-Amoo Adare* (State Counsel)

Pollok House Ltd v Nairobi Wholesalers Ltd (No. 2)
[1972] 1 EA 172 (CAN)

Division: Court of Appeal at Nairobi

Date of judgment:	21 April 1969
Case Number:	4/1969 (52/72)
Before:	Sir Charles Newbold P, Duffus V-P and Law JA
Sourced by:	LawAfrica

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[1] Appeal – Record – Time for preparation of – Runs from filing of notice of appeal.

[2] Appeal – Out of time – Application for extension – Record not applied for till 55 *days after judgment – Delay not accounted for.*

[3] Appeal – Out of time – Application for extension – Grounds of appeal not set out – Impossible to determine prejudice to respondent.

[4] Costs – Instruction fee – Two counsel – Solely to be decided by Court – Lack of opposition and fact that two counsel employed not conclusive.

Editor's Summary

The applicant filed a notice of appeal and applied for a copy of the judgment. After counsel's opinion had been given and instructions obtained on it, a copy of the record was applied for 55 days after delivery of the judgment. As this was not received in time application was made for extension of the time for filing the appeal. The legal grounds on which the appeal would be argued were not revealed in the supporting affidavits.

The dismissal of the application by a single judge was referred to the full court. Application was made for costs of two advocates.

Held –

(i) the period of 60 days following the giving of notice of appeal is for the preparation of the record;

(ii) the delay in applying for the record had not been satisfactorily accounted for;

(iii) there was no material on which it could be decided whether the appeal had any prospect of success;

(iv) the granting of a certificate for two advocates depends solely on whether the court considers the case is fit for a certificate: the facts that parties are represented by two advocates, consider the matter to be important and do not oppose the application are not conclusive.

Reference dismissed.

No cases referred to in judgment

Judgment

The following *ex parte* judgments were delivered. **Duffus V-P:** This is a reference under r. 19 (6) from the ruling of the Vice-President (Sir Clement de Lestang) refusing an application for extension of time. This application for extension of time was made under the provisions of r. 9 (1) of our Rules. Sir Clement de Lestang considered the application and dismissed it for two reasons; one, he held that no sufficient satisfactory reason had been given for the delay; and, two, that on the material before him it was impossible for him to say whether the respondent would be prejudiced or not if the

application was granted.

The facts have been fully set out in various affidavits by the advocate for the applicant. It appears that judgment was given in the case on 6 December 1968; notice of appeal was filed on 19 December, and thereafter various applications were made to the High Court, the first being on 13 December for a copy of the judgment which was delivered a month later. A copy of the record of the proceedings was applied for on 30 January 1969. One of the reasons given for the delay was that the opinion of senior counsel, Mr. Slade, was desired and this was delayed pending the receipt of a copy of the judgment and then there was a delay of some eleven days for his opinion, and after the opinion was given there was a further delay before instructions were given to appeal and it was then, and then only, that an application was made for a copy of the record. On the first point, the question was whether or not sufficient cause was shown why there was a delay of 55 days after judgment was delivered in applying for a copy of the record. That is a very long delay and I think it is a matter of almost judicial notice and certainly a fact well-known to all practitioners that considerable delays occur in the High Court in supplying copies of judges' notes and records.

It seems to me that the question here turns on the interpretation or meaning to be given to r. 58 and 62. Notice of appeal has to be first given under r. 54 within 14 days of the decision. Then r. 58 applies and subject to any extension of time being given or to any order under r. 82 the appellant shall within 60 days after filing the notice of appeal lodge the record of appeal and at the same time give security for costs. This period of 60 days affords time for the preparation of the record for appeal, which includes all the relevant matters which came before the lower court and also the grounds of appeal, the appellant has this time within which to consider the matter and prepare and decide on his grounds of appeal. This period of 60 days also affords the appellant time within which to fully consider his position and decide whether or not to proceed with the appeal or to abandon it, as he can under r. 59. The appellant has, in my opinion, first to make up his mind whether or not to appeal and he must do so within 14 days. It is true that he has this 60 day period in which to consider the matter and he can if he so decides not proceed with the appeal, but it is certainly not the intention of the Rules that the 60 days is an extension of the time within which to consider whether he is going to appeal or not, and that he can then after the expiration of this period start to prepare his record. In my opinion the Vice-President was entirely correct when he held that there was no satisfactory explanation as to this delay of 55 days in applying for a copy of the record. There are cases where a record is very long and in such a case there might be reason for delay in compiling a record of appeal but in this case it is clear that the record was not more than 12 pages and it appears to me to have been unreasonable for the applicant to have waited 55 days before applying for the record to be prepared. A successful party in the High Court has a vested right in his judgment and the right of appeal given to the unsuccessful party is a limited right and if he fails to exercise his right in accordance with the law, and then comes to this Court and asks for further time within which to prepare his record of appeal, then he must show sufficient reasons for this to be granted. The Vice-President was not satisfied that sufficient reason had been shown and he appears to me to have been perfectly right in his decision. An appellant must exercise his right to appeal with diligence and not delay it in a manner which might prejudice the respondent. Here the appellant had ample time in which to act, and if he did not, then the respondent cannot suffer for the appellant's lack of diligence.

There are two other points which I would deal with. First, the question whether the respondent would be prejudiced if the application was granted? There is very little material before us on which we can say what the case was all about, but in so far as I am concerned, the main reason for dismissing this

application, and in upholding the decision of the Vice-President is the fact that there has been no sufficient reason given for an extension of time. The other point raised was under r. 54 (5) and that is the meaning of the words “within the like period” as applied to the 14 days within which the notice of appeal has to be served. This is a matter on which I do not think this Court can now give an opinion and so far as I am concerned it would require much fuller argument and consideration.

For the reasons which I have given I would uphold the decision of the Vice-President and dismiss this reference.

Law JA: My sympathies notoriously lie on the side of the litigants who by not immediately ordering a copy of the record hope to save expense which might turn out to be unnecessary should they be advised not to proceed with an intended appeal but the preponderance of opinion in this Court, to which I must defer, is that if they do so they do so at their own risk, and this is especially so in a case such as this where only a small and comparatively inexpensive record was required from the High Court Registry. I am unable to say that Sir Clement de Lestang wrongly exercised his discretion in holding that in the circumstances of this case no proper explanation had been given for the failure to file the record within the time limited by law and I, too, would dismiss this reference.

Sir Charles Newbold P: I agree that this reference should be dismissed. On the facts I am not satisfied that the delay was excusable and certainly I see no reason whatsoever to interfere with the discretion of the single judge. Further, as has been mentioned by the Vice-President, Mr. Justice Duffus, there has not been placed before the single judge, nor before this Court, any sufficient facts which would enable the single judge or ourselves to determine that no injustice would be done to the successful litigant by extending the time. The second affidavit – the first does not mention it at all – referred in the very broadest terms to the matter which was to be the subject of appeal and all that one can ascertain from what is set out therein is that it relates to an order refusing possession of premises which apparently are alleged to come within the protection of the Landlord and Tenant (Shops, Hotels and Catering Establishments) Act. In one of the paragraphs it is stated that there is a novel point of law involved in this appeal which has never been decided before, but that novel point of law has been kept a dark secret from the single judge and from ourselves. Its very novelty may make it unarguable – who knows? At any rate, as we have held in the past where indulgence of this kind is sought, even if the delay be excusable the applicant still has to show that no injustice would be caused to the successful litigant. As I said in another case, injustice would be caused if the successful litigant were to be put to the burden of defending an appeal and thus increasing his costs where the appeal had no prospect whatsoever of success. As the single judge said, and as the Vice-President has mentioned, and as I for my part think, there is nothing disclosed in this application which would enable anyone to determine whether the appeal had any prospect of success.

Finally, Mr. Khanna has raised a point relating to the late service of the notice of appeal. As I understood him, he raised it on the basis that it was a ground for the decision of the single judge. I do not accept that it was a ground for his decision; I think it was merely an incidental remark. Be that as it may, the point was raised though the facts relating to it were never set out in an affidavit. It is true that those facts were stated from the Bar to the single judge in a very broad form and impliedly were accepted. Nevertheless I should not wish, nor from what the Vice-President has said would he wish, to arrive at a decision on this point without a full statement of the facts being before us. If it would be of any assistance at all to the profession I might mention that, without deciding the

point, my impression is that the service also has to be within the period of 14 days commencing from the date of delivery of the judgment. That is just an impression and I say it in the hope that it will be a helpful guide without in any way whatsoever tying myself to a final conclusive opinion should the matter ever be argued before us. Accordingly this reference is dismissed.

Application has been made for a certificate for two advocates. We should like to say that neither the fact that both sides happened to be represented by two advocates, nor the fact that one or both sides regard it as a matter of importance, nor the fact that the other side accepts the application for a certificate for two advocates, are conclusive. The determination by this Court whether the case is a fit one for a certificate for two advocates must be dependent upon the appreciation by the Court of the nature of the application. In this case we have no doubt whatsoever in saying that this is not a fit case for a certificate for two counsel and therefore no certificate will be granted.

Reference dismissed.

For the applicant:
JA Mackie-Robertson, QC and *RN Sampson* (instructed by *Archer & Wilcock*, Nairobi)

For the respondent:
DN Khanna and *Z Nimji* (instructed by *Shapley Barret Marsh & Co*, Nairobi)

Asiko v Gadhia and another
[1972] 1 EA 175 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	10 January 1972
Case Number:	1337/1970 (53/72)
Before:	Simpson J
Sourced by:	LawAfrica

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[1] Fatal Accident – Damages – Deduction – Gratuity – Deductible from damages – Fatal Accidents Act (*Cap.* 32), *s.* 4 (*K.*).

Editor's Summary

The question for decision was whether a gratuity paid to the administrator of the estate of a deceased person under s. 16 of the Pensions Act (Cap. 11) of the Community was or was not deductible as a benefit to the estate from the damages awarded under the Fatal Accidents Act (Cap. 32). The plaintiff argued that it fell within s. 4 (2) (*b*) of that Act.

Held –

(i) the requirement of gazettment applies to the whole of s. 4 (2) (*b*) of the Act;

(ii) gazettment means gazettment in the Kenya *Gazette* for the purposes of the Fatal Accidents Act, and gazettment of the Pensions Act in the Community *Gazette* was not a compliance with this;

(iii) a gratuity payable to a personal representative is not a payment to a widow or orphan nor is it a pension nor an allowance which in this context must be a periodical payment.

Order accordingly.

No cases referred to in judgment

Judgment

Simpson J: In this action for damages under the Law Reform Act (Cap. 26) and the Fatal Accidents Act (Cap. 32) the parties have agreed on a settlement in which the total amount to be paid by the defendants to the plaintiff, the administrator of the estate of the deceased, depends on the answer to a question of law.

The parties have accordingly applied to the Court under the provisions of O. 14 r. 6 of the Civil Procedure (Revised) Rules, 1948, for an adjudication of the following issue:

> "Whether a gratuity payable to the plaintiff as administrator of the estate of the deceased under s. 16 of the Pensions Act (Cap. 11) of The East African Community shall or shall not be taken into account in assessing the damages payable to the plaintiff in respect of the death of the deceased under the provisions of s. 4 (2) of the Fatal Accidents Act (Cap. 32)."

S. 16 (1) of the East African Community Pensions' Act (Cap. 11) provides–

> "16. (1) Where an officer holding a pensionable office who is not on probation or agreement, or an officer holding a non-pensionable office to which he has been transferred from a pensionable office in which he has been confirmed, dies while in the service of the Community or the Corporation, [i.e. the East African Posts and Telecommunications Corporation] it shall be lawful for the Authority to grant to his legal personal representative a gratuity of an amount not exceeding his annual pensionable emoluments or his commuted pension gratuity if any, whichever is the greater."

It was agreed that the deceased was at the time of his death an employee of the Corporation and that his legal personal representative was paid a gratuity of Shs. 19,000/–

S. 4 (1) of the Fatal Accidents Act provides for the award of damages in an action brought by virtue of the provisions of the Act for the benefit of the wife, husband, parent and child of the deceased, and sub.s. (2) reads as follows:

> "(2) In assessing damages, under the provisions of sub.s. (1) of this section, the court shall not take into account–
>
> (*a*) any sum paid or payable on the death of the deceased under any contract of assurance or insurance, whether made before or after the passing of this Act;
>
> (*b*) any widows' or orphans' pension or allowance payable or any sum payable under any contributory pension or other scheme declared by the Minister, by notice published in the *Gazette*, to be a scheme for the purpose of this paragraph."

Paragraph (*a*) is not applicable. With respect to paragraph (*b*) counsel for the plaintiff submitted that the words "declared by the Minister, by notice published in the *Gazette*, to be a scheme for the purpose of this paragraph" applied only to "other scheme" and the gratuity in question was paid under contributory pensions legislation not under any scheme. Alternatively they applied only to "any sum payable under any contributory pension or other scheme" and should not be read as qualifying "any widows' or orphans' pension or allowance".

In the first place the participial clause beginning "declared by the Minister" attaches to the word "scheme" and the words "any contributory pension" cannot be read independently of that word without ignoring the word "other" and inserting an alternative word immediately after the word "pension". The word "scheme" is as applicable to pension provisions contained in legislation as it is to such provisions made by private employers.

The construction contended for in the alternative submission leaves the word “payable” where it first occurs adrift in midparagraph without the expected prepositional clause. The expression “any widows’ or orphans’ pension or allowance payable” if it were to be independent of a declaration by the Minister would require to be followed by some such expression as “under any pensions legislation”. In the absence of any such prepositional clause it can only be read with the remainder of the paragraph and be qualified by the words “under any contributory or other scheme declared by the minister, by notice published in the *Gazette*, to be a scheme for the purpose of this paragraph”.

On any construction the word “payable” where it first occurs appears to be redundant but if the legislature had intended every widow’s and orphan’s pension and allowance to be non-deductible irrespective of a declaration by the Minister it would not have included them in this particular paragraph of the section.

Whether or not this is the correct construction paragraph (*b*) clearly does not cover the gratuity in question.

A gratuity payable to a deceased officer’s legal personal representative is not payable to a widow or an orphan although a benefit may accrue therefrom to the deceased’s widow and orphans nor is it a pension or an allowance which in the context must I think be a periodical payment in the nature of or subsidiary to a pension.

The *Gazette* as defined in the Interpretation and General Provisions Act (Cap. 2) is the Kenya *Gazette* and even if the East African Community Pensions Act had been published in the Kenya *Gazette* such publication would not be the publication of a declaration by the Minister as required by the Fatal Accidents Act.

It is I think clear that the only pensions allowances and other sums such as gratuities which are non-deductible by virtue of the provisions of s. 4 (2) (*b*) of the Fatal Accidents Act are those payable under a contributory pension or other scheme which has been declared by the Minister by notice published in the *Gazette* under the provisions of that paragraph to be a scheme for the purposes of that paragraph.

It was not in dispute that no declaration has been made by the Minister with respect to the Community Pensions Act.

Indeed I was informed that no declaration by the Minister could be traced in respect of any scheme.

Order accordingly.

For the plaintiff:
M da Gama Rose (instructed by *Shapley Barret, Ennion Marsh & Co*, Nairobi)

For the defendants:
P Le Pelley (instructed by *Hamilton Harrison & Mathews*, Nairobi)

Kaura v Republic
[1972] 1 EA 178 (HCK)

Division: High Court of Kenya at Nairobi

Date of judgment: 8 December 1970

Case Number:	871/1970 (54/72)
Before:	Trevelyan J
Sourced by:	LawAfrica

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[1] Criminal Law – Burglary – Article made or adapted for use in burglary – Hammer not made for use in burglary – Penal Code, s. 308 (2) (*K.*).

Editor's Summary

The appellant was convicted of preparing to commit the felony of burglary and it was alleged that he had a hammer which was made or adapted for use in committing a burglary. There was no evidence that the hammer was adapted in any way, and there was no evidence that the accused had it for the purpose of burglary.

On appeal.

Held – a hammer is not made as an instrument of burglary and there was no adaptation of the hammer of the appellant.

Appealed allowed.

No cases referred to in judgment

Judgment

Trevelyan J: The appellant was charged with preparing to commit a felony contra s. 308 (2) of the Penal Code in that at night, not being in his place of abode, he had with him "an article namely a hammer in such circumstances as to indicate that he was armed with the said article for use in committing a felony, namely burglary". There was, it seems, a degree of confusion about the charge, for being armed comes within subs. (1) of the section while subs. (2) simply caters for housebreaking instruments. But it does not matter for the conviction cannot be sustained since there was a finding that "there was no evidence adduced to indicate that accused had a hammer in the course of or in connexion with any burglary", and that should have been an end of the case.

But the magistrate purported to utilise that part of subs. (2) whereby, if an accused has with him an article made or adapted for use in committing a burglary, it is evidence that he had it with him for such use. The magistrate himself pointed out that "there was no evidence that a hammer is an article made or adapted for use in committing a burglary". So again, a conviction could not properly have been entered.

The magistrate, however, then sought to invoke the provisions of s. 60 of the Evidence Act and said that it being a matter of local notoriety he could say "that this article namely a hammer found with accused is an article made or adapted for use in committing a burglary". That, with respect, cannot possibly be. A hammer is not made as an instrument of burglary and that which the appellant had was in no way adapted for such purpose.

The appeal is allowed. I quash the conviction, set aside the sentence and acquit the appellant.

Order accordingly.

The appellant appeared in person.

For the respondent:
Miss P Rattansi (State Counsel)

Re Kibiego
[1972] 1 EA 179 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	6 March 1972
Case Number:	15/1972 (57/72)
Before:	Madan J
Sourced by:	LawAfrica

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[1] Probate and Administration – Intestacy – Widow, application by – Widow proper person to administer.

[2] Probate and Administration – Surety bond – Justification – Bond may be accepted without justification by sureties – Probate and Administration Act 1881, *s.* 78.

Editor's Summary

The applicant applied for letters of administration intestate to the estate of her husband a Nandi.

The application was referred to a judge to decide whether the grant should issue to the widow and whether the sureties should be called upon to justify their bond.

Held –

(i) a widow of whatever race is the proper person to obtain representation to her husband's estate, particularly where the children are under age;

(ii) surety bonds may be accepted without the sureties having to justify.

Order accordingly.

No cases referred to in judgment

Judgment

Madan J: This matter has come before me on a reference by the registrar for two reasons. The first raises the question whether the widow of an African of the Nandi tribe who died intestate may apply for a grant of letters of administration. A glimmering of the law relating to administration of a Nandi's estate is referred to in Restatement of African Law by Cotran, Vol. 2, p. 115 who states, at p. 116, that on intestacy the family elders will always appoint the eldest son of the deceased as administrator. I think it is this statement of the law which made the registrar consider the propriety of grant of letters of administration to the widow.

The second reason is whether under s. 78 of the Indian Probate and Administration Act 1881 which is applicable in Kenya the two sureties who have filed their surety bond should be called upon to justify their bond in the value of the sum expressed therein.

Whatever Cotran's source of Nandi law may be, I am of the opinion that in today's Kenya, in the absence of a valid reason such as grave unsuitability, a widow of whatever race living in the country, is entitled to apply to the court for the grant of letters of administration, more so when the children, as in the instant case, are minors. A widow is the most suitable person to obtain representation to her deceased husband's estate. In the normal course of events she is the person who would rightfully, properly and honestly safeguard the assets of the estate for herself and her children. It would be going back to a mediaeval conception to cling to a tribal custom by refusing her a grant which is obviously unsuited to the progressive society of Kenya in this year of grace. A legal system ought to be able to march with the changing conditions fitting itself into the aspirations of the people which it is supposed to safeguard and serve.

I am also of the opinion that under the provisions of s. 78 a surety bond may be accepted without the sureties being called upon to display their means provided

they are persons of responsibility and respect which the two sureties in this case seem to be. The law ought not to make it expensive for an intended administrator to find a surety bond e.g. by an insurance corporation. It is a commonplace that in most cases intended administrators find it both extremely hard and expensive to find two sureties in double the amount of the gross value of the estate. The administration and implantation of probate laws should be helpful instead of an impediment.

Let the grant issue to the widow in this case.

Order accordingly.

For the applicant:
PDB Walker (instructed by *Hamilton Harrison & Mathews*, Nairobi)

Javer v Pioneer General Assurance
[1972] 1 EA 180 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	17 November 1971
Case Number:	40/1971 (58/72)
Before:	Madan J
Sourced by:	LawAfrica

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[1] Rent restriction – Possession – For employee of landlord – Not dependent on nature of employment – Rent Restriction Act (*Cap.* 296), *s.* 15 (1) (*e*) (*K.*).

[2] Rent restriction – Possession – Facts must be proved at date of hearing.

Editor's Summary

The respondent applied to the Rent Tribunal for possession of a flat for its employee. The appellant applied to the Tribunal to strike out the respondent's plaint and for the dismissal of the application on the grounds that the plaint failed to name the employee or to state that his work was necessary.

The Tribunal held that no material statement had been omitted and that had anything been omitted, particulars should have been applied for.

The appellant appealed.

Held –

(i) the question of whether the conditions exist for the grant of relief must be determined at the hearing (*Benninga* (*Mitcham*) *v. Bijstra* (4) followed);

(ii) the employee need only be named at the hearing;

(iii) the work for which the employee is engaged is a matter of evidence;

(iv) it is not necessary that the premises be let to the employee because of the nature of his employment with the landlord (*Munro v. Daw* (5) followed).

Appeal dismissed.

Cases referred to in judgment:

(1) *Secretary of State for War v. Pratt* (1920), L.J. C.C.R. 95.

(2) *Beresford's Trustees v. Maclnnes* (1926), S.L.T. (Sh. Ct.) 78.

(3) *Pickford v. Mace*, [1943] K.B. 623.

(4) *Benninga* (*Mitcham*) *v. Bijstra*, [1946] 1 K.B. 58.

(5) *Munro v. Daw*, [1948] 1 K.B. 125.

(6) *Harris v. Rowley*, [1949] 2 All E.R. 524.

(7) *Chan Transport & Trading Co. v. Devine* (1953), S.L.T. (Sh. Ct.) 40.

(8) *Duncan v. Hay*, [1956] 1 W.L.R. 1329.

Judgment

Madan J: The respondent as landlord of a block of flats (hereafter called the plaintiff) instituted proceedings before the Rent Tribunal claiming possession of one of the flats occupied by the appellant as tenant (hereafter called the defendant) on the ground that the plaintiff reasonably required possession of the flat for occupation as a residence for a person who was in the whole-time employment of the plaintiff.

The defendant applied to the Tribunal that the plaintiff's plaint be struck out and the suit dismissed on the grounds that the plaint disclosed no reasonable cause of action and that it did not comply with the rules of pleading; failed to set out material facts, was embarrassing, the defendant did not know what case he had to meet, and it tended to prejudice a fair trial of the suit.

This is an appeal against the Tribunal's decision which dismissed the defendant's application. The ground of appeal may be summarised by saying that the plaint was devoid of material facts, that it failed to name the employee required to be housed or to state the nature and character of the work on which the employee was to be employed, or to state that such work was necessary for the proper maintenance or repair of the suit building in which the plaintiff as owner for his own benefit wished to have the named employee or one out of several named employees installed. Further that the Tribunal erred in holding that it was not necessary to name the intended employee to be housed or to state in the plaint the nature and character of his work or that such work was connected with the building in which the plaintiff as landlord wished the employee to be installed or that such work was for the benefit of the landlord, that the omission of one or more of these matters did not make the plaint bad or one not disclosing a reasonable cause of action; that the Tribunal also erred in holding that no material statement was omitted from the plaint, and had any been omitted the remedy would have been "particulars" and not "striking out".

The relevant paragraph of the plaint is paragraph 8 which reads as follows–

> "The ground on which possession is claimed is that the said flat is reasonably required by the applicant (plaintiff) for occupation as a residence for a person who is in the whole time employment of the applicant."

The cause of action is based upon s. 15 (1) (*e*) of the Rent Restriction Act (Cap. 296) which provides that no order for recovery of possession of any premises or for the ejectment of a tenant thereforom shall be made unless–

> "(*e*) the dwelling house is reasonably required by the landlord for occupation as a residence . . . for some person in his whole-time employment. . . ."

Mr. Khanna's arguments in support of the appeal may be summed up by saying that the plaint must state the name of the employee, the nature of his work, and why it is necessary for the employee to stay in the particular premises to perform his duties which must meet the needs of and also be for the benefit and in the interests of the landlord as employer.

The question is must a plaintiff go further and plead the matters stated by Mr. Khanna or is it enough to copy out the words of the section as the plaintiff has done in this case. If the latter course is followed is it a case for asking further and better particulars, or does it offend against O. 6 r. 1 of the Civil Procedure (Revised) Rules, 1948 which requires every pleading to contain a statement in a concise form of the material facts on which the party pleading relies for claim or defence, as the case may be.

Lord Atkin's Encyclopaedia of Court Forms and Precedents in Civil Proceedings, Vol. 14, Form 26, p. 51, suggests that the employee ought to be named. Although not a text-book on pleadings Megarry states that the landlord need not name the proposed occupant; it thus suffices if the landlord proves that the house is required for, say, one out of eight employees, without specifying which. (The Rent Acts, 10th Ed., p. 279). The authorities quoted for the foregoing proposition in Megarry are *Pickford v. Mace*, [1943] K.B. 623, C.A., *Secretary of State for War v. Pratt* (1920), 9 L.J.C.C.R. 95, *Beresford's Trustees v. Maclnnes* (1926), S.L.T. (Sh. Ct.) 78, and *Chan Transport and Trading Co. v. Devine* (1953), S.L.T. (Sh. Ct.) 40; the reports of the last mentioned three cases are not available to me.

Atkin in footnote (*g*) (ibid) further states that the person must be engaged to work for the employer at the date of hearing not necessarily at the date of issue of the plaint. The reason for this was given by Mackinnon, L.J. in *Benninga* (*Mitcham) v. Bijstra*, [1946] 1 K.B. 58 at p. 62, when he said:

> "The Rent Restriction Acts do not forbid the bringing of an action; they only prohibit the granting of certain relief to which the common law would entitle the plaintiff, unless certain conditions have been fulfilled. The question whether those conditions exist must be determined when the question whether the relief claimed may be granted has to be decided, namely, at the hearing of the action."

In *Pickford v. Mace* (*supra*), the dwelling house was required for an agricultural worker for which purpose a certificate was required from the War Agricultural Executive Committee, Lord Greene, M.R., said at p. 627,

> "Agricultural workers are not standing in queues ready to be employed. It may be impossible for a farmer when he comes before the agricultural committee to say that he has a definite worker in contemplation, and, even supposing that he has, between the time when he obtains his certificate and the time when he goes to the county court judge that person may have engaged himself to somebody else. He would then have to go back to the committee to get another certificate, and the same thing might happen again. The consequence would be that these matters, often of urgency having regard to the seasonal requirements of labour on a farm, would be dealt with in a most unsatisfactory manner."

Lord Greene also referred, at p. 628, to paragraph (*g*) in Schedule 1 to the Rent and Mortgage Interest Restrictions (Amendment) Act, 1933, which contains a provision similar to our s. 15 (1) (*e*) that is:

> "The dwelling house is reasonably required by the landlord for occupation as a residence for some person engaged in his whole-time employment. . . ." Lord Greene further said:
>
> "Paragraph (*g*) first mentions matters which are to be established to the satisfaction of the court, not by a certificate, but by evidence in the ordinary way. One is that the dwelling house is reasonably required by the landlord for occupation as a residence for some person. Another is that that person is engaged in the landlord's whole time employment, or that he is one with whom, conditional on housing accommodation being provided a contract for such employment has been entered into. The next step, that the person in question is to be employed on a work of a certain character, is to be proved, not by evidence in the ordinary way, but by the certificate mentioned in para. (*g*) (ii) . . . and it matters not that when the certificate was obtained no person was in contemplation because it is sufficient when the farmer comes before the county court judge for him to prove that he has a person for whom

> the house is required and that the work on which he proposes to employ him is so and so."

Paragraph (*g*) (ii) provides:

> "(ii) the court is satisfied by a certificate of the (War Agricultural Committee) that the person for whose occupation the dwelling house is required by the landlord is, or is to be, employed on work necessary for the proper working of an agricultural holding. . . ."

Pickford v. Mace was applied in *Harris v. Rowley*, [1949] 2 All E.R. 524, which held that the identity of the individual to be employed was not a material part of the certificate, the object of which was to certify that the landlord was in need of an agricultural worker of a particular type, and so the fact that the man who was about to do the work when the case came before the court was different from the man who was doing it when the certificate was granted did not deprive the certificate of its efficacy.

It seems eminently sensible to me that a landlord must not necessarily be required to name the employee at the date of issue of the plaint. The employee may not have been engaged at that date, or he may leave his employment and be substituted by another employee before trial of the action takes place. It will suffice if the landlord is able to name the employee at the date of hearing.

When Lord Greene said that the person in question is to be employed on work of a certain character, is to be proved, not by evidence in the ordinary way, but by the certificate mentioned in para. (*g*) (ii), he was seeking compliance with an express statutory provision. There is no such requirement in our Act. Work of a certain character has been called the employee's nature of work in these proceedings. It could only be proved in the ordinary way. It is not necessarily a material fact which must form part of the plaint. It may be proved by evidence in the ordinary way.

It was held in *Munro v. Daw*, [1948] 1 K.B. 125, that premises are let to a tenant "in consequence" of his employment by the landlord, within the meaning of para. (*g*) (ii) of Schedule 1 to the Rent and Mortgage Interest Restrictions (Amendment) Act, 1933, if they are so let because of the relationship of master and servant. It is not necessary, to constitute the prescribed causation, that the premises should have been let to the tenant because of the nature of his employment with the landlord. Tucker, L.J. said, at p. 129:

> "It is sufficient to say that, in my opinion, the natural meaning of the words in para. (*g*) of this schedule is that it refers to the relationship of employer and employed, and that there is nothing in the language of the schedule to suggest that what was intended was a requirement that the letting should be in consequence of the nature of the particular employment of the tenant. I think it would be straining the language used to put such an interpretation on it."

The dictum of Tucker, L.J. in *Munro v. Daw* was applied in *Duncan v. Hay*, [1956] 1 W.L.R. 1329.

If the letting is not required to be in consequence of the nature of the particular employment of the tenant, again, in my opinion it is not necessarily a material fact which must be stated in the plaint though it may well provide an opportunity to ask for further particulars.

The Rent and Mortgage Interest Restrictions (Amendment) Act, 1933, bears comparison with our legislation. The decisions of the Court of Appeal in England are a useful guide.

For these reasons this appeal is dismissed with costs.

Order accordingly.

For the appellant:
DN Khanna (instructed by *Khanna & Co*, Nairobi)

For the respondent:
MH da Gama Rose (instructed by *Shapley Barret, Ennion & Marsh*, Nairobi)

Waithaka and another v Republic
[1972] 1 EA 184 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	11 February 1972
Case Number:	1103/1971 (59/72)
Before:	Sir James Wicks CJ and Muli J
Sourced by:	LawAfrica

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[1] Evidence – Robbery – Single witness – No surrounding circumstances – Conviction unsafe.

[2] Criminal Practice and Procedure – Witness – For defence – Evidence refused – Fatal to conviction – Criminal Procedure Code, s. 211 (1) (*K.*).

Editor's Summary

The appellants were convicted of robbery with violence on the bare evidence of the complainant and there was no evidence of surrounding circumstances consistent with the complainant's evidence. The magistrate further refused to allow a witness to be called for the appellants on the ground that he had been present in court throughout the hearing.

On appeal:

Held –

(i) it is possible for a conviction to be based on the evidence of the complainant but not as here when there was no evidence of surrounding circumstances consistent with that evidence;

(ii) refusal to hear the appellants' witness was a denial of their mandatory right and fatal to the convictions.

Appeals allowed.

No cases referred to in judgment

Judgment

The considered judgment of the court was read by **Muli J:** The appellants were convicted by the resident magistrate Nairobi on one charge of robbery with violence contrary to s. 296 (2) of the Penal Code and each was sentenced to serve a term of imprisonment of 20 years together with 24 strokes of the cane and were ordered to be placed under police supervision for 5 years after their discharge from prison. They appealed against their conviction and sentence.

State Counsel did not support the conviction of either appellant. We agreed that the conviction of the appellants could not be upheld, quashed the convictions and set aside the sentences. We reserved our reasons for so doing which we now give.

Only two witnesses gave evidence for the prosecution, the complainant and a Sergeant of Police who arrested the appellants five days after the alleged robbery, they being pointed out by the

complainant. The evidence of the complainant was that at about 8.30 p.m. on 30 July 1971 he left a shop at Kikomba, Nairobi and after walking about 20 yards he was set upon by three men. During the affray the complainant suffered two severe knife wounds one on the left shoulder and the other on the left wrist and he was robbed of his property. The complainant said that he knew his assailants by sight but not name. The complainant further said that very many people pass the place where he was attacked and robbed, and there were some people there when he was attacked, but no one came to his assistance because he did not scream. Put on their defence the

appellants wished to call one witness but the magistrate would not allow the witness to be called on the ground that he had been present throughout the proceedings.

In his judgment the magistrate quite properly warned himself of the danger of basing a conviction on the bare evidence of a single witness, particularly when he is the complainant, pointing out that it is not difficult for a genuine complainant to be mistaken on the issue of identity and that it is not unknown for a complainant to be actuated by malice. We also agree with the magistrate that each individual case must be treated on its merits. Applying these principles it is possible for an accused person to be convicted properly under circumstances when the only evidence of a robbery and of the identity of an assailant is that of a single witness who is the complainant.

The evidence in this case was that some people were there when the complainant said he was attacked and the place was near Nairobi. Under such circumstances one could expect that there would be evidence of surrounding circumstances of the alleged robbery, such as that of bystanders who saw the attack, of assistance to the complainant in getting him to hospital, medical evidence of his treatment and age of the wounds and his report to the police, and police evidence of blood being found at the scene of the alleged robbery. On the identification of alleged assailants one could expect evidence that a report was made to the police, at a time that was reasonable after the alleged robbery, and that at the first opportunity the complainant stated that he recognised his assailants and gave a description of them, which description was a reasonably accurate one of the accused. In this case there was no evidence of such surrounding circumstances consistent with the complainant's evidence either of the alleged robbery or of the identity of the assailants.

As we have said the only evidence other than that of the complainant was evidence of arrest. The result of this is that it is possible that the complainant made his report to the police just before the arrest and five days after the alleged robbery. This together with the complete absence of evidence that could be expected to support the complainant's evidence made it unsafe for the magistrate to find that there was evidence establishing the guilt of the appellants beyond reasonable doubt.

The refusal by the magistrate to hear the appellants' witness, who was available and ready to give evidence, was a refusal to allow the appellants to put their defence, and a violation of the appellants' mandatory right set out in s. 211 (1) of the Criminal Procedure Code. That the witness had been in court during the hearing of the case for the prosecution might, but not necessarily so, have affected the weight of the evidence but to refuse to hear the witness was fatal to the convictions.

For these reasons we allowed the appeals.

Appeal allowed.

The appellants appeared in person.

For the respondent:
JB Shillenje (State Counsel)

Mohamed v Republic
[1972] 1 EA 186 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	31 January 1972
Case Number:	7/1972 (60/72)

Before: Harris J

Sourced by: LawAfrica

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[1] Appeal – Bail pending appeal – Appeal not filed – Application may be made to magistrate and High Court – Criminal Procedure Code, s. 356 (1) (*K.*).

Editor's Summary

Before his appeal had been admitted for hearing the applicant applied first to the magistrate and on refusal to the High Court for bail pending appeal. The respondent opposed bail contending that there was no jurisdiction to grant bail, and that no case for bail had been made out.

Held –

(i) "or" may be read as "and" in a statute and of two reasonable alternative meanings the one more favourable to the subject will be preferred (*I.R.C. v. Ross & Coulter* (5) and *Green v. Premier Glynrhonwy Slate Co*. (3) considered):

(ii) application for bail pending appeal may be made both to the magistrate and to the High Court;

(iii) prior to the filing of the appeal it was not possible to assess the probability of its success.

Application dismissed subject to applicant's right to reapply.

Cases referred to in judgment:

(1) *Braham v. Bannigan* (1913), S.A.L.R. 132.

(2) *Brown & Co. v. Harrison* (1927), 43 T.L.R. 394.

(3) *Green v. Premier Glynrhonwy Slate Co*., [1928] 1 K.B. 561.

(4) *R. v. Akibarali Juma Kanji* (1946), 22 (1) K.L.R. 17.

(5) *I.R.C. v. Ross & Coulter*, [1948] 1 All E.R. 616.

(6) *Lamba v. R*. [1958] E.A. 337.

(7) *Chimambhai v. Republic* (No. 2), [1971] E.A. 343.

Judgment

Harris J: This application for bail pending the entering of an intended appeal from a conviction in the Magistrate's Court, brought under s. 356 (1) of the Criminal Procedure Code following a refusal of bail by the trial magistrate, is resisted both on the question of jurisdiction and on the merits.

S. 356 (1) is as follows:

> "The High Court, or the subordinate court which has convicted or sentenced a person, may grant bail or may stay execution on any sentence or order pending the entering of an appeal, on such terms as to security for the payment of any money or the performance or non-performance of any act or the suffering of any punishment ordered by or in such sentence or order as to the High Court or such subordinate court may seem reasonable."

In regard to jurisdiction, counsel for the Attorney-General contends that since the section provides that "the High Court, or the subordinate court which has convicted or sentenced a person, may grant bail", the applicant is required to elect as to which court he will apply to and that where, as here, he

has applied unsuccessfully to the magistrate he cannot now have a second chance by applying to this Court. In short, counsel says that the word “or”, being used in the

section as a conjunction, cannot be construed as "and", with the result that this court has no jurisdiction to entertain the application.

In *I.R.C. v. Ross and Coulter*, [1948] 1 All E.R. 616 at p. 625, Lord Thankerton said in the House of Lords, dealing with a taxing statute, that if a provision is reasonably capable of two alternative meanings the courts will prefer the meaning more favourable to the subject. This canon of construction is, in my opinion, no less applicable in the case of the Criminal Procedure Code, particularly in a matter affecting personal liberty.

In *Green v. Premier Glynrhonwy Slate Co*., [1928] 1 K.B. 561, Scrutton, L.J. pointed out at p. 568 that "you do sometimes read 'or' as 'and' in a statute", and he instanced the case of *Brown & Co. v. Harrison* (1927), 43 T.L.R. 394, where Mackinnon, J. did so in construing the Carriage of Goods by Sea Act, 1924, and his decision was upheld by the Court of Appeal.

Similarly in the Australian Case of *Braham v. Bannigan* (1913), S.A.L.R. 132, Gordon, J. said at p. 135 that if the general scheme of an Act of Parliament obviously calls for "or" to be read as "and" the Court is free to do so.

It is to be observed that the next succeeding section of the Code, that is, s. 357, which deals with bail applications after an appeal has been filed, expressly prohibits an application for bail being made to this Court following a refusal by the magistrate, and provides instead for an appeal from such a refusal. In my opinion if a similar prohibition had been intended in regard to applications for bail pending the entering of an appeal, s. 356 would have expressly so provided.

For these reasons I must hold that there is jurisdiction to entertain this application and I now turn to its general merits. The proper exercise of the jurisdiction to grant bail pending the hearing of an appeal was considered by De Lestang, J. (as he then was) in *R. v. Akbarali Juma Kanji* (1946), 22 (1) K.L.R. 17, and has again been considered in more recent decisions. In such applications regard is had to *inter alia* the degree of probability of success which would appear to attach to the intended appeal. In *Lamba v. R.*, [1958] C.A. 337, this factor formed part of the reason for the refusal of bail, while in *Chimambai v. Republic* (No. 2), [1971] E.A. 343, in which bail was granted, the appeal was successful, the conviction was quashed and the sentence was set aside.

Here the appeal, which is not yet filed and therefore has not yet been admitted to hearing, will, I understand, be against both conviction and sentence and I have had the advantage of perusing the file of proceedings in the court below. I need say no more than that from what I have seen the probability of success is not sufficiently evident to justify the grant of bail at this stage.

The application is accordingly dismissed but without prejudice to the applicant's right to bring a fresh application under s. 357 of the Code after the appeal has been entered.

Order accordingly.

For the applicant:
O Kapila (instructed by *DV Kapila & Co*, Nairobi)

For the respondent:
AR Rebelo (State Counsel)

Mbuni Dry Cleaners Ltd v Barclays Bank D C O
[1972] 1 EA 188 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	1 April 1971
Case Number:	117/1969 (61/72)
Before:	Wicks and Chanan Singh JJ
Sourced by:	LawAfrica

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[1] Rent restriction – Business premises – Open market rent – Scarcity of accommodation may force rent beyond what is reasonable – Landlord and Tenant (*Shops, Hotels and Catering Establishment*) *Act* (*Cap.* 301), *s.* 15 (1) (*K.*).

[2] Rent restriction – Business premises – Increase of rent – On determination by Tribunal – Takes effect from date of landlord's notice – Landlord and Tenant (*Shops, Hotels and Catering Establishments*) *Act* (*Cap.* 301), *s.* 6 (*K.*).

[3] Rent restriction – Appeal – Out of time – No provision for extension of period – Appeal out of time a nullity – Landlord and Tenant (*Shops, Hotels and Catering Establishments*) *Act* (*Cap.* 301), *s.* 15 (*K.*).

Editor's Summary

The Business Premises Rent Tribunal assessed the open market rent of the premises rented by the appellant from the respondent.

The respondent appealed to the magistrate, the appeal being filed outside the period of 14 days allowed. A certificate by the Chairman of the Tribunal was filed setting out the time taken for the preparation of and delivery of the judgment.

The magistrate heard the appeal and held that the Tribunal had ignored the figure at which the premises would let in the open market because of the great demand for shops in the main centre. The magistrate also fixed a date from which the new rent was to take effect, the Tribunal not having done so.

The appellants appealed, contending that the first appeal had been incompetent, having been filed out of time, that the Tribunal had properly assessed the rent, and that the magistrate should not have fixed a date for the operation of the new rent.

Held –

(i) the time for lodging the appeal was mandatory;

(ii) the provisions of the Civil Procedure Act for extension of time could not be imported by reason of the special provision for time to appeal;

(iii) the failure to file the appeal in time could not be waived by the respondent and the first appeal was a nullity;

(iv) shortage of accommodation may force rents beyond what is reasonable (*John Kay v. Kay* (2) considered);

(v) the Tribunal had considered all the factors in coming to its decision and its order should stand;

(vi) when the Tribunal has fixed a rent the notice by the landlord to the tenant has effect and the new rent becomes payable.

Appeal allowed.

Cases referred to in judgment:

(1) *Maqbul Ahmad v. Pratap Narain Singh* (1935), 62 I.A. 80.

(2) *John Kay v. Kay*, [1952] 1 All E.R. 813.

(3) *Devan Nair v. Yong Kuan Teik*, [1967] 2 A.C. 31.

Judgment

The following considered judgments were read. **Wicks J:** This is an appeal against the judgment of the resident magistrate who allowed an appeal against the decision of the Business Premises Rent Tribunal which had fixed the rent of a shop in Derby House, Government Road, Nairobi.

One of the grounds of appeal is that the appeal to the court below was incompetent and a nullity having been filed outside the statutory limit of 14 days. This ground of appeal, relating as it does to jurisdiction, must be considered first.

The Tribunal delivered its decision on 11 December 1968. The appeal to the resident magistrate was filed on 22 January 1969, and the appellant sought to explain the delay in filing the appeal by filing a certificate signed by the Chairman of the Tribunal to the effect that the period from 11 December 1968 to 15 January 1969 was required for the preparation, delivery and approval of the judgment and decree.

S. 15 (1) of the Landlord and Tenant (Shops, Hotels and Catering Establishments) Act (Cap. 301) which I will refer to as the Act, as it applied at the time, provided that any party aggrieved by the determination or order of a Tribunal might within fourteen days appeal against the same to a competent subordinate court. It is seen that the appeal was filed long out of time. The time within which a party aggrieved may appeal is prescribed by the Act and it is established law that in a matter which is governed by an Act, it is impossible to hold that there can be implied in a court, outside the limits of the Act, a general discretion to dispense with its provisions. See *Maqbul Ahmad v. Pratap Narain Singh* (1935), 62 I.A. 80 at p. 87.

The time prescribed in s. 15 (1) of the Act is mandatory and the appellant's failure to observe the time for lodging an appeal resulted in the proceedings being a nullity. The result of the proceedings being a nullity is that the respondent could not waive the non-compliance with the provision of s. 15 (1) of the Act by taking a step in the action, or proceeding with the appeal. Indeed the magistrate could have struck out the appeal without hearing the parties, and this court must have taken the point even though it had not been made a ground of appeal. See *Devan Nair v. Yong Kuan Teik*, [1967] 2 A.C. 31 at p. 44 and p. 45. This being so I would allow the appeal and quash the finding of the magistrate as a whole on the ground that, the appeal not having been filed within the time prescribed by s. 15 (1) of the Act, the proceedings before the magistrate were a nullity.

In case I am wrong, the other grounds of appeal should be considered.

The first four grounds of appeal can be stated by the proposition that, the Tribunal having made an order that the rent of the premises was to be Shs. 1,700/- the magistrate erred in placing reliance on an observation by the Tribunal in their judgment that "It is true that if this shop was vacant it would fetch 2/- a foot but this is because of the great demand for shops in this main centre" to reject the order of the Tribunal and fix another rent. The basis on which the Tribunal is to fix rents was set out in s. 9 (*a*) of the Act which was:

> "determine or vary the rent to be payable in respect of the tenancy, having regard to the terms of the tenancy and the rent for which the premises comprised in the tenancy might reasonably be expected to be let in the open market, and disregarding–
>
> (i) any effect on rent of the fact that the tenant has or his predecessors in title have been in occupation of the premises;
>
> (ii) any goodwill attached to the premises by reason of the carrying on thereat of the trade, business or enterprise of the tenant (whether by himself or

by a predecessor of his in that trade, business or enterprise); and

(iii) any effect on rent of any improvement carried out by the tenant or a predecessor in title of his otherwise than in pursuance of an obligation to his immediate landlord."

It is seen that the Tribunal was required to have regard to many factors the principal one of which was "the rent for which the premises might reasonably be expected to be let in the open market". The case of *John Kay v. Kay*, [1952] 1 All E.R. 813 concerned the interpretation by a Tribunal of provisions different to the provision of our Act, which I have set out above, but certain dicta on the meaning of reasonableness and open market, which are elements in our legislation, are relevant. In particular at p. 821 Jenkins, L.J. is reported as saying:

> "It is manifest that the object of this enactment was to protect sitting tenants, as they are called, at the end of their leases from being faced with the choice between the disturbance caused by removing their business to some other premises, if they could find any, and being compelled to pay an inflated rent for their existing premises. That clearly was the state of affairs which the legislature set out to deal with, and, in my view, to meet that state of affairs it was necessary that the court should be given the greatest latitude in determining what would be a reasonable rent. If the only power the court had was to ascertain and fix the open market rent as the reasonable rent to be paid under a new tenancy, plainly this legislation, so far as it is concerned with shop tenants, would be in a great measure defeated, because the whole difficulty which has to be met is that, in conditions of scarcity, the open market value may be forced up to a point which exceeds all reason, and it is essential, to make legislation of this kind effective, that the tribunal which is to fix the rent should be able to discount contemporary open market values to the extent necessary in its opinion to arrive at a fair result."

With respect I agree. Our legislation contains the words "reasonably be expected to be let" and some meaning must be given to them. One sphere of their operation is when the open market value is affected by scarcity to such an extent as to bring into question the reasonableness of that rent.

In the case before us the extract from the judgment of the Tribunal relied on by the magistrate, which I have set out above, makes no reference to "rent that could reasonably be expected" but it does refer to "the great demand for shops in this main centre" which could involve the market rent not being a reasonable one. The paragraph was but part of the Tribunal's reasons which they set out before a rent was fixed and it cannot be looked at alone. It is necessary to consider the paragraphs that came before and that which came after. In those paragraphs the rates per square foot in a number of nearby buildings were stated and considered and clearly they are facts relevant to assessing the "rent that could reasonably be expected" for the premises in question. Looking at the judgment of the Tribunal as a whole it cannot be said that the rent fixed was not one which the premises might reasonably be expected to let in the open market and I would have allowed the appeal.

In their judgment the Tribunal made no reference to the date on which the rent fixed was to come into effect and the magistrate purported to fix that date as 1 March 1968. That the magistrate did so is the subject of the fifth ground of appeal. The functions of the Tribunal were originated by a landlord giving his tenant a notice to quit and on the tenant taking certain action s. 6 (1) of the Act came into force and this provided in part:

> "whereupon such notice of termination or alteration as aforesaid shall be of no effect until, and subject to, the determination of the matter by such Tribunal."

The position seems to have been that the tenancy sought to be determined subsisted until the Tribunal pronounced their decision. The determination of the Tribunal may have been to terminate the tenancy under s. 7 or they may have fixed a rent under s. 9, and that was the "matter" which constitutes the jurisdiction of the Tribunal. If a rent was fixed, the moment that the Tribunal did so the notice has effect to terminate the old rent and the new rent then becomes payable.

I would allow the appeal on the ground that the proceedings before the magistrate were a nullity. I would set aside the magistrate's judgment and the orders made therein and restore the judgment and orders of the tribunal as a whole.

Chanan Singh, J. agreeing, the appeal is allowed. The magistrate's judgment and the orders made then are set aside and the judgment and orders of the Tribunal as a whole are restored. The respondent is to pay the costs of this appeal and of the proceedings before the magistrate.

Chanan Singh J: I concur in the conclusions reached by Wicks, J. in the judgment which he has just delivered. I wish to add only a few observations of a general nature.

In my opinion s. 15 of the Act (as it stood before the recent amendment) allowed an utterly inadequate time for the filing of an appeal, so inadequate indeed as to render the right of appeal very nearly illusory. That is no doubt the reason why the period has now been doubled and the High Court, to which alone appeals now lie, has been given the usual power to extend the period still further for "sufficient reason", which, presumably, is intended to have the same meaning as the phrase "good and sufficient cause" in the proviso to s. 79G of the Civil Procedure Act. No power of extension existed previously and since the appeal was not filed within the prescribed fourteen days, the magistrate had no jurisdiction to hear the appeal and his judgment is a nullity.

Mr. Gama Rose argues that s. 15 should be divided into two parts, one giving the right to appeal and the other providing for the appeal to be filed within fourteen days. The former, according to him, is a substantive law which must be acted on but the latter is a merely procedural provision which can be waived by parties like any "irregularity". Since the appellant did not question the competency of the appeal but was content to argue the appeal on merits, he must be taken, so Mr. Gama Rose says, to have waived the irregularity and cannot now be heard to say that the magistrate had no jurisdiction to hear or determine the appeal.

This argument is difficult to accept. A statute cannot be split into a part which must be, and another part which need not be, strictly enforced, unless there is in its wording warrant for such a splitting. The wording in this case is clear. An aggrieved party has the right of appeal but if he does exercise that right he is required to do so "within fourteen days".

The provisions of the Civil Procedure Act in relation to the exclusion of time taken in obtaining a certified copy of the decision appealed from cannot be applied to appeals under the Act because of the existence of a special provision in s. 15. If this has caused injustice – our conclusions on the merits of the appeal do not suggest this – there is nothing that can be done. But the possibility of injustice with a provision like the old s. 15 could not be cut out and Parliament has in its wisdom changed the law so that no injustice is now likely to occur on this score.

To come to the merits of the appeal. The main point that was successfully raised by the respondent before the resident magistrate was that the Tribunal having found as a fact that the premises in question could fetch Shs. 2/- a foot could not then fix the rent at Shs. 1/65 a foot. This argument is based on s. 9 (*a*)

which says that the Tribunal may fix as rent a sum equal to that for which the premises "might reasonably be expected to be let in the open market". The finding of the Tribunal mentioned by the respondent is the following:

> "It is true that if this shop was vacant it would fetch 2/- but this is because of the great demand for shops in this main centre."

If the Tribunal means what it says in this sentence the rent in "the open market" – presumably at the appropriate date – was Shs. 2/-. The rent in "the open market" would at any time be the resultant of the forces of supply and demand. If demand at a particular rent exceeded supply, it would push the rent up. If supply at that figure exceeded demand the rent would come down. Thus, if, as the Tribunal seems to suggest, there was demand for this type of shop at Shs. 2/- a foot, then in my view the Tribunal is saying that the rent in "the open market" was Shs. 2/-.

I have in what I have just said looked at the sentence, as Mr. Gama Rose thinks we should do, torn from its context. I agree that the sentence is not happily worded but I must emphasise that it is part of a decision covering two typed foolscap pages. The decision should be read as a whole. If so read, it says this. The rent of shops in the newest building in this area (namely the Ambassadeur Hotel) is Shs. 2/- a foot. The older buildings fetch rents varying from Sh. 1/- to Shs. 1/76. But some of these rents are subject of applications for increases. The building in question is about thirty years old. (I have not mentioned the Lugard House which is on the opposite side and not comparable.)

On this evidence, the Tribunal comes to the conclusion:

> "The rent therefore shall be calculated at a rate of 1/65 per sq. ft."

The rates quoted for various shops in the area must be taken to be "open market" rates because no restrictions on letting were mentioned and rates were quoted without any objection from either party.

The sentence in question when read with the rest of the decision cannot, therefore, be regarded as a finding of fact that the "open market" rent of the shop occupied by the appellant company was Sh. 2/- at the relevant date. In fact, that was the rent of the most modern building in the area. It could not be the rent for old buildings also. Forces of supply and demand implied by the expression "open market" would make the rents of relatively new and old buildings different because tenants would always prefer the new to the old building.

We have, no doubt, taken the expression "open market" from the English Landlord and Tenant Act, 1954, s. 34 (1). It does not appear to have given difficulty there. I venture to think, however, it would have been better to give the Tribunal in Kenya power to fix rent at a figure which would be fair and reasonable in all the circumstances, the Tribunal being required in particular to take into account the capital investment in the building, the rates of interest, the cost of maintenance and other outgoings of the landlord, the general level of rents for comparable buildings. Such fair and reasonable rent would, in effect, be the long-term market rate which would not discourage building activity but which would not be influenced by short-term shortages.

Appeal allowed.

For the appellant:
DN Khanna and *SP Vaid*

For the respondent:
MH da Gama Rose (instructed by *Shapley Barret, Marsh & Co*, Nairobi)

Aneriko and another v Uganda

[1972] 1 EA 193 (CAK)

Division:	Court of Appeal at Kampala
Date of judgment:	14 March 1972
Case Number:	158/1971 (63/72)
Before:	Sir William Duffus P, Spry V-P and Lutta JA
Sourced by:	LawAfrica

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[1] Evidence – Extra-judicial statement – Part of confession untrue – Substantial part within knowledge of maker – Confession cannot be relied upon.

[2] Evidence – Extra-judicial statement – Voluntary – Actual violence – Puts higher burden on prosecution to prove voluntariness.

Editor's Summary

The appellants were convicted of murder on the identification of a witness who saw them only by night, and on their alleged confessions. The appellants stated that they had been beaten and forced to sign pre-prepared statements. Medical evidence supported some violence to the appellants and the confessions referred to the deceased having had his throat cut and having bled copiously. In fact the deceased had died from concussion and strangulation.

On appeal:

Held –

(i) the evidence of identification was unsatisfactory;

(ii) the fact that the appellants had suffered some violence while in custody made it more difficult for the prosecution to prove that the statements were voluntary;

(iii) all parts of a confession inconvenient to the prosecution cannot be excluded (*Siduwa Were v. Uganda* (1) considered);

(iv) where a material element in a confession which must have been known to the maker is untrue the confession cannot be relied upon.

Appeals allowed.

Case referred to in judgment:

(1) *Siduwa Were v. Uganda*, [1964] E.A. 596.

Judgment

The considered judgment of the court was read by **Spry V-P:** The appellants, Aneriko Kato and Yubu Byakunaga, were convicted of the murder, on or about 22 October 1970, of a taxi driver named Samuel Mpagi. There was evidence that Samuel died by strangulation and the circumstances were such to leave no doubt that he was murdered.

The evidence which tends to incriminate the appellants is, first, that of a young man, Clovis Kabeyanga, who claims that he was present when the appellants engaged Samuel to drive them somewhere and that he saw them drive off together. There was no evidence that Samuel was ever seen

again alive. Secondly, each of the appellants is alleged to have made a full and clear confession to the police. Thirdly, as regards Yubu alone, he is alleged to have pointed out to the police the places where certain things happened.

The judge believed Clovis to be a truthful witness, and we see no reason to disagree. If he was, there is every reason to think that the two men who went off in Samuel's taxi were his murderers. The question is, whether those two men were the appellants, and on this issue, the possibility that Clovis might genuinely

have been mistaken in his identification has to be eliminated. The witness saw men at night and he had never seen either of them before. On the other hand, he said that there was light from two electric bulbs on the verandah of an hotel fifteen yards away and some additional light from a shop eight yards from the hotel. He described all these as bright lights. In this connection, Mr. Mulenga, for the appellants, pointed out that another man who was present failed to identify either of the appellants, although he was, according to Clovis, nearer to the two men. It was not explained why this man was not called as a witness. It would seem fair to say that the conditions were such as to make recognition possible, but that they were not particularly good.

An identification parade was held at which Clovis identified the two appellants, but is of no evidential value, as he had previously seen both appellants in custody. He first saw Aneriko at the time of his arrest by the Muluka Chief but there is a conflict of evidence whether Clovis identified him after the arrest or whether the arrest was the result of a spontaneous recognition. Later, and before the identification parade, Clovis saw both appellants in police custody. In the circumstances, the identification of the appellants as the two strangers who hired Samuel's taxi must be regarded as unsatisfactory.

At trials within trials, both appellants denied that they had made the charge and caution statements attributed to them. They claimed that they had been beaten and forced to impress their thumbprints on papers that had already been prepared. Some support for these claims is to be found in medical evidence. Both appellants were found by a doctor to have injuries that were between one and three days old, when they had both been in custody appreciably longer than that. The judge rejected the evidence of the appellants as to their having been beaten while in prison, and it is quite possible that it was exaggerated. We think, however, that he lost sight of the fact that the burden of proof that the statements were voluntary was on the prosecution and that evidence that the appellants had been subjected to some violence while in custody made the discharge of that burden very much more difficult.

The second main ground on which the judge relied in holding that Yubu's statement was voluntary (and the same reasoning applies to Aneriko's statement), was that although the police officer who took the statement was at the time in charge of the investigation, the details contained in the statement could not have been within his knowledge. This would have been a valid argument had the facts narrated in the statement been true, but they were not. In his statement, Yubu described how his co-accused "cut his throat with a knife and pierced all over his body with that very knife". A little later, he repeated that Kato "just pulled out a knife and cut his throat". Later, he described taking the car to wash off the blood. The statement attributed to Aneriko corresponds closely to that attributed to Yubu and expressly refers to cutting the throat with a knife and to the need to wash the car because of the blood that had "poured in" it. This is completely at variance with the evidence of the doctor who performed the post mortem examination, who said that "the body had multiple skin abrasions and swelling round the neck, and right side face and skull. There was haemorrhage on the tissue of the neck. The deceased died of head injuries, i.e. concussion, and also of asphyxia due to the neck being squeezed or pressed by hands. I think the death was the result of a combination of concussion and asphyxia. I think the injuries on the head must have been caused by a blunt weapon or weapons." There is not a word regarding any cut or stab wound. There was also evidence by three witnesses that they saw the body of Samuel with a belt tied round the neck. They made no mention of the throat having been cut.

In his rulings, the judge made no reference to this startling discrepancy.

Taking into account the evidence that the appellants suffered violence while in prison and that the statements attributed to them were clearly untrue, we think the judge should have held them to be inadmissible.

In his judgment, the judge set out the contents of the alleged confessions, on which he clearly placed considerable reliance, but glossed over the discrepancy as to the manner of killing. Mr. Patel sought to justify this, on the ground that the judge was entitled to sever this part of the confessions from the remainder, calling in aid the decision of this Court in the case of *Siduwa Were v. Uganda*, [1964] E.A. 596. With respect, we cannot agree. *Siduwa Were's* case is authority for saying that a judge is entitled to disregard part of a confession when it is clearly severable from the remainder. For example, an account of the preparation for an offence may be severable from the account of the commission of it. Again, a person making a substantially truthful confession may seek to exculpate someone near and dear to him, and the exculpatory part of the statement may be severable from the remainder. But *Siduwa Were's* case is not authority for saying that any part of a confession that is inconvenient to the prosecution case may be excluded and that is not the law.

Again, a substantially truthful confession may contain mistakes. For example, a member of a gang may give a substantially true account of a crime but be confused as to the parts played by the other members of the gang. In an appropriate case, a trial judge may rely on such a confession, notwithstanding the mistakes it contains.

If, however, a material element in a confession, and one which must have been within the knowledge of the person making the confession, is demonstrably untrue, the value of the confession as a whole is destroyed and it cannot be relied on. In the present case, the focal point in both confessions is the cutting of the throat with a knife, with such bleeding that the car had to be washed. The medical evidence is that Samuel's throat was not cut and there is no evidence of any injury that would have resulted in substantial loss of blood. Therefore the alleged confessions are untrue.

As we have said, the other evidence against Yubu is that he is alleged to have pointed out to the police the places where Samuel's body was dumped and the place where the car was washed. The prosecution failed, however, to prove that the first place that Yubu is alleged to have pointed out was actually that where the body was found. Moreover, since Samuel's throat was not cut and there is no evidence to suggest any substantial bleeding, the story of the washing of the car must be regarded with caution and the alleged pointing out of the place where it is supposed to have happened has little evidential value. Incidentally, if there was such bleeding as the alleged confessions suggest, a proper examination of the car should have revealed traces of it, even if the car had been washed.

If the alleged confessions are excluded and the identification by Clovis is treated as unsatisfactory, there remains no case at all against either appellant.

We allow the appeals of both appellants: their convictions are quashed and the sentences passed on them are set aside.

Order accordingly.

For the appellants:
J Mulenga (instructed by *Ibingira & Mulenga*, Kampala)

For the respondent:
VM Patel (State Attorney)

Livingstone v Uganda

[1972] 1 EA 196 (CAK)

Division:	Court of Appeal at Kampala
Date of judgment:	14 March 1972
Case Number:	180/1971 (64/72)
Before:	Sir William Duffus P, Spry V-P and Lutta JA
Sourced by:	LawAfrica
Appeal from:	High Court of Uganda – Kiwanuka, CJ

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[1] Criminal Law – Illegal act intended to do grievous harm – Intent an essential ingredient of offence – Penal Code, s. 209 (*U.*).

[2] Criminal Practice and Procedure – Judgment – Content of – Points for determination – Intent included – Magistrates' Courts Act 1970, *s.* 134 (*U.*).

Editor's Summary

The appellant was charged with unlawfully doing grievous harm to the complainant in a case which arose out of a quarrel in a bar. The magistrate substituted a charge of doing an illegal act with intent to cause grievous harm. In the judgment there was no finding of intent.

On second appeal:

Held –

(i) a judgment must set out the point or points for determination which must cover the essential ingredients of the offence;

(ii) intent is an essential ingredient of the offence charged;

(iii) in the absence of a finding, no irresistible inference of intent could be found.

Conviction of grievous harm substituted.

No cases referred to in judgment

Ss. 209 and 212 of the Penal Code read:

209. Any person who, with intent to maim, disfigure or disable any person, or to do some grievous harm to any person, or to resist or prevent the lawful arrest or detention of any person–

(*a*) unlawfully wounds or does any grievous harm to any person by any means whatever; or

(*b*) unlawfully attempts in any manner to strike any person with any kind of projectile or with a spear, sword, knife, or other dangerous or offensive weapon; or

(*c*) unlawfully causes any explosive substance to explode; or

(*d*) sends or delivers any explosive substance or other dangerous or noxious thing to any person; or

(*e*) causes any such substance or thing to be taken or received by any person; or

(*f*) puts any corrosive fluid or any destructive or explosive substance in any place; or

(*g*) unlawfully casts or throws any such fluid or substance at or upon any person, or otherwise applies any such fluid or substance to the person or any person,

is guilty of felony and is liable to imprisonment for life.

212. Any person who unlawfully does any grievous harm to another is guilty of a felony and is liable to imprisonment for seven years.

Judgment

14 March 1972. The considered judgment of the court was read by **Spry V-P:** The appellant was charged in the Chief Magistrate's Court of Mengo with the offence of doing grievous harm contrary to s. 212 of the Penal Code.

After the close of the case for the prosecution, the magistrate, of his own motion, substituted a charge under s. 209 of the Code. We would observe in passing that the fresh charge was extremely badly drawn. The appellant then sought an adjournment and there were in fact, for various reasons, several adjournments. When the case was eventually resumed, three prosecution witnesses were recalled for further cross-examination and the appellant then gave evidence. The appellant was convicted, sentenced to three years' imprisonment and ordered to pay compensation.

The appellant appealed to the High Court against conviction and sentence, but his appeal was dismissed. There was no appeal against the order for compensation.

The facts are, briefly, that there was a quarrel in a bar between the appellant and the complainant. There was a struggle between them, which ended when the complainant fell or was thrown down some steps. He suffered a fracture of the left femur, which in the event resulted in a permanent shortening of the leg. The complainant also alleged that when he was lying on the ground, the appellant kicked the injured leg. As regards this last matter, there was some discrepancy between the evidence given by the complainant and a statement earlier made by him to the police. The evidence of the complainant on this point was also inconsistent with that of the chief prosecution witness supporting him. The magistrate does not appear to have noticed this inconsistency and made no express finding on it.

The two main grounds of appeal both in the High Court and before this Court were, first, that the magistrate was not entitled to convict of an offence under s. 209 without making a finding as to intent, which he had not done, and that he had misdirected himself as regards the onus of proof. The criticism was also made that the magistrate had exhibited prejudice against the appellant.

On the first of these grounds of appeal, the Chief Justice said:

> "I do not think that it is necessary to make a specific finding on this point in every case of this kind. It may be desirable but not necessary."

With respect, we would put the matter in a slightly different way. S. 134 of the Magistrates' Courts Act 1970 requires a magistrate to set out in his judgment "the point or points for determination". This must cover the essential ingredients of an offence, and intent is one of the essential ingredients of the offence created by s. 209. Failure to comply strictly with the requirements of s. 134 is, however, not necessarily fatal to a conviction. Where s. 209 is concerned, failure to make a specific finding of intent will not be fatal in all cases: it would, for example, be curable in the case of an unprovoked assault with a panga on an unarmed person resulting in grievous harm, because there would be an irresistible inference of an intent to cause such harm. In the present case, however, we do not see how such an inference can be drawn, and the fact that the magistrate made no finding leaves us in doubt whether he applied his mind to the question at all and if he did, as to the evidence which he thought showed the intent.

Assuming that the appellant deliberately threw the complainant down the steps, and even on this the evidence is not as consistent as might be desired, grievous harm would not necessarily result, indeed we think that simple harm

was probably the more likely. If the appellant kicked the complainant, knowing that his leg was fractured, such an act would show the necessary intent, but as we have said there is no finding to that effect and the evidence is unsatisfactory. This was simply a brawl in a bar and we are not satisfied that any intent to cause grievous harm was shown. Indeed, we can see no justification for the substitution of the charge by the magistrate. The fact that very serious injury actually resulted, which appears greatly to have influenced the magistrate, is irrelevant to this issue. This is illustrated by the evidence of the doctor who examined the complainant and who said that such an injury could be sustained if two people were wrestling and one fell heavily and awkwardly on a hard surface.

The second ground of appeal criticized the magistrate for remarking–

> "This is a simple case of the res ipsa loquitur category. . . ."

Mr. Gaffa, who appeared for the appellant, submitted that this reference to a principle which belongs to the civil law and has no place in the criminal law, amounted to placing a burden of proof on the appellant. This argument was rejected by the Chief Justice. We think, with respect, that the reference was a most unfortunate one, and is capable of the interpretation Mr. Gaffa sought to place on it, but we do not think that that was what the magistrate intended. We think it was more in the nature of a slip of the tongue.

Having dealt with the two main grounds of appeal, we do not think it necessary to deal in detail with all the various matters to which Mr. Gaffa drew attention as showing prejudice, although we think there was substance in his criticisms. We would, however, refer specifically to one. During the adjournments to which we have referred, the appellant applied for an extension of bail. In giving reasons for refusing bail, the magistrate observed that the original case file had been lost "presumably 'bought' ". This was a grossly improper remark: there was no evidence whatsoever that the appellant was in any way responsible for the loss of the file, nor had he been accused of any such offence or offered any opportunity of answering such a charge.

Mr. Gaffa, for the appellant, did not ask for an acquittal. He conceded that the evidence justified a conviction for common assault. We think it justifies a conviction under the section cited in the original charge, that is, s. 212. We are, however, satisfied that the conviction under s. 209 cannot be sustained, because there was no finding as to intent and the evidence would not justify inferring such an intent.

We accordingly quash the conviction of the appellant and substitute a conviction for an offence against s. 212. As this is a much less serious offence, we think we are entitled, and ought, to reduce the sentence. We set aside the sentence of three years' imprisonment and substitute a term of one year. This means that if the appellant is entitled to remission for good conduct, he will be released immediately.

Order accordingly.

For the appellant:
FR Gaffa (instructed by *Kilenga & Gaffa*, Kampala)

For the respondent:
AM Opu (State Attorney)

Shyam and others v New Palace Hotel Ltd (No 2)

[1972] 1 EA 199 (CAD)

Division:	Court of Appeal at Dar Es Salaam
Date of judgment:	17 March 1972
Case Number:	26/1971 (65/72)
Before:	Sir William Duffus P, Lutta and Mustafa JJA
Sourced by:	LawAfrica
Appeal from:	High Court of Tanzania – Biron, J

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[1] Civil Practice and Procedure – Review – Jurisdiction – Judge other than judge who made order – No jurisdiction to review – Civil Procedure Code, s. 78, *Civil Procedure Rules, O.* 42, *r.* 5 (*T.*).

[2] Civil Practice and Procedure – Execution – Request for possession in terms of order – Proper question for application – Civil Procedure Code, s. 38 (*T.*).

[3] Civil Practice and Procedure – Execution – Possession – Application to rescind writ – Inherent jurisdiction to hear application – Civil Procedure Code, s. 95 (*T.*).

[4] Civil Practice and Procedure – Adjournment – Whether any order other than costs can be made on.

Editor's Summary

The appellants were the lessees of a hotel owned by the respondent and in a suit for possession an application for adjournment was made. The adjournment was granted upon terms that the respondents paid certain sums on fixed dates.

There was default and the respondent applied for and obtained possession in terms of the order.

The appellants applied under ss. 38, 78 and 95 of the Civil Procedure Code for rescission of the order. The appellants brought the application on before a judge other than the one who had made the order, and when it was dismissed, applied to the judge who had made the order.

He refused to deal with the application, finding that it had already been decided.

The appellants appealed, contending that the first judge had had no jurisdiction to hear the application.

Held –

(i) (Lutta, J.A. not deciding) there was a question arising for determination by the executing court under s. 38, Civil Procedure Code;

(ii) (Sir William Duffus, P. doubting) a judge other than the judge who passed the original decree has no jurisdiction to hear an application for review;

(iii) (Mustafa, J.A. not deciding) the judge had inherent jurisdiction to hear the application.

Observations by Mustafa, J.A. on whether a judge had power to make any order other than costs on the adjournment of a suit.

Appeal dismissed.

Cases referred to in judgment:

(1) *Shrager v. Basil Dighton Ltd*., [1924] 1 K.B. 274.

(2) *Bhan Kumar Chand v. Lachmi Kanta* A.I.R. (1941), Vol. 28, p. 566.

Judgment

17 March 1972. The following considered judgments were read. **Sir William Duffus P:** I have had the advantage of reading the draft judgment of Mustafa, J.A.

The issue started as a claim by the respondents as landlords of premises known as the New Palace Hotel to recover possession and mesne profits from the two appellants. On 24 March 1971, the appellants applied for an adjournment of the hearing pending the hearing of an appeal. Both parties appeared and after some discussion Biron, J., before whom the application was heard, granted the adjournment on terms. The order stated:

> "*ORDER*. Hearing adjourned pending outcome of the appeal to the Court of Appeal for East Africa – In the meantime without prejudice to the right of the parties the defendants to pay off towards the arrears of rent accrued, shs. 25,000/- by the end of this month – 31st March, 1971 and shs. 25,000/- by the end of April, 1971 and thereafter to pay the current rent accruing until the determination of the suit. Also if any instalment is in arrear by more than 10 days, the defendant to hand over immediate possession.
>
> 24/3/1971."

There has been some argument in the subsequent proceedings and before us as to whether this was a consent order or not. This does not, however, really arise or matter as both parties accepted this order as a binding order of the court and there has been no appeal or attempt to set it aside.

The next step was that on 14 May 1971, a Mr. Remtulla, acting on behalf of the respondent company, filed an affidavit in which he averred that the terms of the order of 24 March 1971 had not been carried out. In his affidavit he applied for an order for possession of the premises and for the attachment of the appellants' goods and chattels. This affidavit came before Biron, J. on 15 May, 1971, who treated the affidavit as an application and ordered that an order for possession and also a warrant to attach the moveable property issue. Then on 18 May 1971, the appellants filed a chamber application asking the court to rescind the order for possession and seizure of the goods and also to stay the court broker from acting on these orders. This application was made under ss. 38, 78 and 95 of the Civil Procedure Code and was supported by an affidavit by Mr. Peera of the appellants' advocates. It is to be noted that there was no attack or complaint against the order of possession made on 24 March 1971, and that the only complaint then was that there had been no written application for the eviction order to issue. The appellants brought this application *ex parte* before the Chief Justice on 18 May 1971. He heard argument from Mr. Peera on that date and granted a stay of execution. The matter again came before the Chief Justice on 21 May 1971, when both the appellants and the respondents were represented and after hearing arguments from both sides the Chief Justice rejected the application and I would here set out his comparatively short order:

> "*ORDER*. From what has been said by the learned counsel on both sides and upon reading the order of my brother, Biron, J. recorded on 24.3.1971, on the consent of the parties it now seems to me that the application for stay of the execution against the defendant is without merit and unjustified. In making the order for stay of execution on 18.5.71 I had considered the question of ownership following the acquisition of the premises by the Government. The arguments of learned counsel clearly show that the issue of ownership is separate and distinct from the one concerning the claim of the plaintiff against the defendants. Since the defendants committed a breach of the consent order by default of payment of the 2nd instalment of Shs. 25,000/- on 30.4.1971 Biron, J. was justified

> in ordering the execution to issue in pursuance of the consent order and as such give possession of the premises to the plaintiff. Quite clearly the defendants cannot have it both ways and I am not therefore inclined to entertain the application for review of Biron, J.'s order. Full reasons for my decision will be given later."

This was on 21 May 1971, but in the meantime, on 20 May 1971, the appellants' advocates filed yet another application, very similar to the first application. This application, however, asked that the order for possession only be:

(*a*) discharged or rescinded, or;

(*b*) be reviewed or set aside

and was, in this case, made not only under ss. 38, 78 and 95 of the Civil Procedure Code but also under s. 19 (5) of the Rent Restriction Act. In fact, s. 19 (5) of the Rent Restriction Act would appear to have no application to the facts in this case so that in effect this application was also made under the three sections of the Civil Procedure Code. Although this application was filed a day before the hearing by the Chief Justice it does not appear to have been brought to his attention. We then had the ruling of the Chief Justice on 21 May 1971, and on 11 June 1971, the matter was again brought before Biron, J. The application before Biron, J. was apparently based on the application filed on 20 May 1971, but basically both the application before the Chief Justice and that before Biron, J. were similar and sought to set aside the order for possession made by Biron, J. on 15 May 1971. Both the appellants and the respondents were represented at the second hearing and in their submissions it also now appeared that the plaintiff's respondents had already re-entered into possession of the premises and were running the business since 18 May 1971. Biron, J. refused to make the order. He said:

> "Although applicant is not undeserving of sympathy, as indicated I cannot interfere with the order of the Chief Justice rejecting the application for review. And as for a stay of execution, apart from the fact that the Chief Justice would also appear to have refused a stay, I find Mr. Tarimo's submission that the Court cannot now grant a stay unassailable. I therefore must as I do reject the application in toto."

This appeal is against the order of Biron, J. rejecting the application. The first issue on this appeal is whether the order of the Chief Justice dated 21 May 1971, was made without jurisdiction and therefore a nullity. If that order was a nullity then clearly this appeal must be allowed and the application referred back to Biron, J. for further hearing. If, however, the order made by the Chief Justice was within his jurisdiction and therefore not a nullity, then the question is whether Biron, J. was correct in refusing to adjudicate on a matter already dealt with by the Chief Justice. Here the principles of res judicata as set out in s. 9 of the Civil Procedure Code, would apply.

The first issue then is, had the Chief Justice jurisdiction to hear the chamber summons on 18 May 1971? This application was made by the appellants under three separate sections of the Civil Procedure Code but in effect it was a simple application to set aside Biron, J.'s order of 15 May 1971.

The application could have been made under any of the three sections: that is ss. 38, 78, and 95 of the Civil Procedure Code but the appellants chose to make the application under all three sections. There appears to be no dispute as to the Chief Justice's jurisdiction to act under s. 38 or s. 95 of the Civil Procedure Code but it is submitted that the Chief Justice had no jurisdiction to act under s. 78, the review section of the Civil Procedure Code, as Biron, J., the judge who made the order for the writs to issue was available and should,

under mandatory provisions of O. 42 r. 5, have heard the application. I will consider these three sections. The question arises whether if, in fact, the Chief Justice had no jurisdiction to act under s. 78 he would still have had jurisdiction to act and hear the application under either or both of the other two sections.

The relevant portion of s. 38 of the Civil Procedure Code states:

> "38. (1) All questions arising between the parties to the suit in which the decree was passed, or their representatives, and relating to the execution, discharge or satisfaction of the decree, shall be determined by the court executing the decree and not by a separate suit."

"Court" here means the High Court and there appears to be no question but that the Chief Justice had jurisdiction, as a judge of the High Court, to act under this section. This section does not require that the application be heard or dealt with by the individual judge who passed the decree or ordered the execution. The appellants' main ground for the rescission of the order of possession was that the application for execution was not in writing in accordance with r. 10 (2) of the Civil Procedure Code and accordingly they argued that the order for possession was a nullity.

The order of Biron, J. of 24 March 1971 would in my view have been a "decree" within the meaning of s. 3 of the Civil Procedure Code, but if not a decree then it was an "order" within the meaning of that section and by virtue of s. 31. The provisions of the Code relating to the execution of decrees are, as far as applicable, deemed to apply to the execution of orders. This would therefore appear to be a proper application for determination under s. 38 of the Civil Procedure Code and in my view the court, presided over by the Chief Justice, had jurisdiction to hear the application.

S. 95 preserves "the inherent power of the court to make such orders as may be necessary for the ends of justice or to prevent abuse of the process of the court". Here again I think that it is unquestionable but that the Chief Justice would have had jurisdiction to hear this application acting under his inherent powers as preserved by s. 95 but, of course, it is another matter as to whether he would have granted any relief in the exercise of his inherent jurisdiction.

Then there is the reviewing section, s. 78. Here again it is not in dispute that the application for review should have been heard by Biron, J. by virtue of the express and mandatory provisions of O. 42 r. 5 (1) as he had made the order complained of and was still attached to the court and available to hear the application for review. Mr. Lakha, for the respondents however pointed out that it was the appellants themselves who brought this application before the Chief Justice and caused him to adjudicate and determine the matter and further that his hearing of the application was completed without objection by either side. He submitted that the hearing by the Chief Justice was only an irregularity in procedure and was not a case of a complete lack of jurisdiction. He submitted that the High Court did have jurisdiction and that the Chief Justice could properly have heard the application if Biron, J. was not still attached to the court when the application was presented.

This Court must presume that the appellants, or at any rate their legal advisers, knew of the provisions of r. 5 and it does seem to be most unfair and inequitable that the appellants should seek the ruling of the Chief Justice and then, when this ruling is unfavourable, turn around and endeavour to have it set aside and obtain another hearing on grounds which have been of their own making.

All the courts in Tanzania are created by statute and their jurisdiction is purely statutory. It is an elementary principle of law that parties cannot by consent give a court jurisdiction which it does not possess. Mr. Lakha, however, argues that in this case the High Court did have jurisdiction to hear the

application under all three sections of the Civil Procedure Code relied on by the appellants and that the directions under O. 42 r. 5 (1) as to the hearing of the application to review would be only a procedural matter, a breach of which would be an irregularity curable by consent or acquiescence of the parties and did not deprive the High Court of jurisdiction. There is some authority in support of this proposition; thus, I would refer to the majority judgment of the Court of Appeal in England in the case of *Shrager v. Basil Dighton Ltd*., [1924] 1 K.B. 274, where it was held that an irregularity in the appointment of an Official Referee to hear a High Court case did not render the trial a nullity but could be waived by the parties. In delivering his judgment Bankes, L.J. said at p. 281:

> "In my opinion the Rules of Court relating to the distribution of business, whether among the Official Referees or the judges of the Chancery Division, are rules of procedure introduced for obviously good reasons, but they do not touch the question of jurisdiction at all."

and the following short extract from the judgment of Younger, L.J. would seem appropriate to this case, at p. 293:

> "The judgment was not in his favour, and he now, any imputation of bad faith being disclaimed, applies to have that judgment set aside on the ground only of an irregularity in the proceedings of which he was aware, I think, all through, but certainly long before they were concluded. In my judgment elementary justice requires that such an application should fail."

There are other cases on this subject but I do not find it necessary to make a definite ruling on this aspect of the appeal as in my view the Chief Justice clearly had jurisdiction to hear this application under the provisions of the two other sections relied on by the appellants; that is ss. 38 and 95 of the Civil Procedure Code.

The provisions of s. 38 are particularly appropriate to the facts complained of in this application. The Chief Justice had all the facts before him, including the fact that the Government had recently acquired these premises and as I have mentioned earlier there was the fact that the original order for possession made by Biron, J. on 24 March 1971, was not questioned. There was also the fact that the affidavit previously referred to made by Mr. Remtulla on 30 May 1971, did, on the face of it, appear to be an application in writing sufficient to comply with the requirements of r. 2 of the Civil Procedure Rules. Although it is not necessary to consider the correctness of the Chief Justice's ruling I must say, with respect, his order appears to have been entirely correct and equitable in the circumstances of the case. The fact that matters, however, is that the Chief Justice acted with jurisdiction when he made his order of 21 May 1971.

The main question on this appeal was, therefore, whether Biron, J. was correct in refusing to make an order on the application before him. Mr. Dastur, for the appellants, referred to the application before Biron, J. as being the same application which came before the Chief Justice. With respect, this is not altogether clear as the application before the Chief Justice would appear to have been that made on 18 May 1971, whilst that before Biron, J. appeared to be that made on 20 May 1971. In fact, both applications dealt with the same issue, the setting aside of the order for possession of the premises, and although there were some differences between the two applications and the affidavits in support, the issues in each application appeared to have been identical and in each case the appellants relied on the same three sections – ss. 38, 78 and 95 of the Civil Procedure Code. The issue was finally determined by the Chief Justice in his decision of 21 May 1971, and in my view the principles of res judicata apply. Very little argument was raised before us on this question and

the main question was whether the Chief Justice had jurisdiction to hear the first chamber application. If he did, then I gather it was accepted that Biron, J. was correct and this appeal would be dismissed. I agree that this is the correct position here. The issue had, in fact, already been determined and dismissed by the Chief Justice and Biron, J. had no further jurisdiction to decide the same issue on the same facts.

I therefore agree with the order made by Biron, J. and I would dismiss this appeal. As both Mustafa and Lutta, JJ.A. also agree, the appeal is dismissed with costs to the respondent.

Mustafa JA: The appeal was first argued before the court on 26 October 1971 when judgment was reserved. When considering our judgment we felt we needed further argument on the following point:

> "Whether the application before Saidi, C.J. and heard by him on 21 May 1971 could be and/or was dealt with as a question relating to the execution, discharge or satisfaction of a decree in terms of s. 38 of the Civil Procedure Code and was thus within his competence and jurisdiction."

The Court then set the appeal down for further argument on 7 February 1972 when the same counsel who had earlier appeared addressed us. We are indebted to them for their assistance.

The facts leading up to this appeal are briefly as follows. The respondents herein had filed an action against the appellants for possession of certain premises known as the Palace Hotel on the ground that the lease under which the appellants held the premises had expired, and for mesne profits. The appellants claimed, *inter alia*, that they had the right to continue in occupation as statutory tenants. The issue whether the premises in question were subject to the Rent Restriction Act was crucial, and the issue had been referred to this Court in *Shyam v. New Palace Hotel Ltd*., [1971] E.A. 472. Before the decision of this Court was arrived at, on 24 March 1971, the appellants applied to Biron, J. for an adjournment of the action, pending the decision of this Court as to whether the subject premises were caught by the provisions of the Rent Restriction Act. The respondents raised no objection to the adjournment provided the appellants "pay the arrears of rent". Biron, J. granted the adjournment but also ordered the appellants to pay off the "arrears of rent" by instalments of Shs. 25,000/- at the end of March and at the end of April, and "if any instalment is in arrear by more than ten days, the defendant (i.e. the appellants) to hand over immediate possession". This was not a consent order. It would seem Biron, J.'s order for adjournment must have been made under O. 17 r. 1 of the Civil Procedure Rules. It seems to me that when an order granting an adjournment is made, the Court can only grant to the other party costs of and occasioned by the adjournment, and cannot, as was done here, unless by consent, on default pass a decree for possession without taking evidence. It is perhaps doubtful if the order of Biron, J. on 24 March 1971 was made with jurisdiction, but as it was not appealed, I will not pursue the matter.

The appellants paid the sum of Shs. 25,000/- due at the end of March. On 13 May 1971 a director of the respondents filed an affidavit deponing that the appellants had failed to pay the sum of Shs. 25,000/- due at the end of April and prayed for an eviction order to issue and for possession of the premises. On 15 May 1971, Biron, J. made an *ex parte* order granting the prayers of the respondents.

On 18 May 1971 the appellants filed an application to rescind Biron, J.'s order of 15 May 1971. The application came before Saidi, C.J. On 21 May 1971 the application was argued by counsel for both the parties before Saidi, C.J.

The appellants had filed an affidavit stating (1) that there was an error in procedure as there was no written application for execution and it was not in proper form and (2) that by virtue of the Acquisition of Buildings Act 1971 (13 of 1971) the suit premises were vested in the Registrar of Buildings on or about 23 April 1971 and that they had paid the rent for April to the Registrar of Buildings in terms of the Act. Saidi, C.J. who was under the impression that the adjournment order of Biron, J. of 24 March 1971 was a consent order declined "to entertain the application for review of Biron, J.'s order" of 15 May 1971.

On 11 June 1971 the appellants renewed their application for rescission of the order of 15 May 1971 before Biron, J. Biron, J. rejected the application on the ground that he could not interfere with the order of Saidi, C.J. who had already rejected the application. From the refusal of Biron, J. the appellants appeal to this Court.

The main ground of appeal is that Biron, J. was wrong in refusing to review or rescind or set aside his own order of 15 May 1971 on the ground that he could not interfere with the order of Saidi, C.J. of 21 May 1971. Mr. Dastur for the appellants has submitted that Saidi, C.J.'s order of 21 May 1971 was made without jurisdiction and was null and void. Mr. Dastur admitted that the appellants themselves were wrong to have in the first place moved Saidi, C.J. for a review of the order of Biron, J., and the proceedings before Saidi, C.J. were incompetent and misconceived. He submitted that an application for review of an order must be heard by the same judge who had made the order. He referred to O. 42 rr. 1 (1) and 5 (1) of the Civil Procedure Rules which read:

> "1. (1) Any person considering himself aggrieved–
>
> (*a*) by a decree or order from which an appeal is allowed, but from which no appeal has been preferred; or
>
> (*b*) by a decree or order from which no appeal is allowed, and who, from the discovery of new and important matter or evidence and which, after the exercise of due diligence, was not within his knowledge or could not be produced by him at the time when the decree was passed or order made, or on account of some mistake or error apparent on the face of the record, or for any other sufficient reason, desires to obtain a review of the decree passed or order made against him, may apply for a review of judgment to the Court which passed the decree or made the order.
>
> 5. (1) Where the Judge or Judges, or any of the Judges, who passed the decree or made the order, a review of which is applied for, continues or continue attached to the Court at the time when the application for review is presented, and is not or are not precluded by absence or other cause for a period of six months next after the application from considering the decree or order to which the application refers, such Judge or Judges shall hear the application, and no other Judge or Judges of the Court shall hear the same."

Mr. Dastur submitted that the only judge who had jurisdiction to hear the application for review in the circumstances was Biron, J. as he was still attached to the Court, and was not precluded by absence or other cause for a period of 6 months next after the application from considering the order to which the application referred. In the commentaries by Chitaley in relation to the corresponding provisions of the Indian Civil Procedure Code, it was stated that the application for review must be heard by the same judge who made the order.

Mr. Lakha for the respondents conceded that if the application was for review it had to be heard by the same judge who made the order. However, he submitted

that the application for review had to be submitted to the Court which made the order, in this case the High Court. The High Court had jurisdiction to entertain the application, only the wrong judge had heard it. Since the Court had jurisdiction the erroneous action of such Court in the exercise of that jurisdiction was merely an irregularity in procedure and did not affect the jurisdiction of Saidi, C.J. The order of Saidi, C.J. was not therefore null and void. The appellants themselves had moved Saidi, C.J. to hear the application, and having done so, cannot now be heard to complain.

Mr. Lakha also submitted that the application to Saidi, C.J. was not made only under the provisions of s. 78 of the Civil Procedure Code which refer to review. The appellants had also invoked the provisions of s. 95 (inherent jurisdiction) and s. 38 (Court executing decree). Saidi, C.J. clearly had jurisdiction under the provisions of ss. 38 and 95. Since Saidi, C.J. had finally dealt with the application Biron, J. could not but adopt the course he followed, as the decision of Saidi, C.J. was of the same Court.

It seems to me that if the application before Saidi, C.J. was one for review under the provisions of s. 78 of the Civil Procedure Code then the only judge who had jurisdiction to hear it would have been Biron, J. as he was not precluded by absence or other cause for 6 months and was still attached to the Court.

However can it be said that the provisions of s. 38 of the Civil Procedure Code which were also invoked by the appellants cannot apply? S. 38 reads as follows:

> "38. (1) All questions arising between the parties to the suit in which the decree was passed, or their representatives, and relating to the execution, discharge or satisfaction of the decree, shall be determined by the court executing the decree and not by a separate suit."

Mr. Lakha has submitted that there were two orders. The order of Biron, J dated 24 March 1971 was either an order or a preliminary order for payment of Shs. 25,000/- being arrears for rent due by the appellants and in default of payment an order to the appellants to hand over immediate possession. This order was not challenged and has therefore to be considered as a valid order. This order has the effect of a decree, for purposes of execution, in terms of s. 31 of the Civil Procedure Code. The second order by Biron, J. dated 15 May 1971 was merely to give effect to the order of 24 March 1971 and was therefore a matter relating to the execution, discharge or satisfaction of a decree and was within the provisions of s. 38 of the Civil Procedure Code. Even if the order of 15 May 1971 was irregular, and such irregularity amounted to a nullity, such a question would have to be determined by an executing court in terms of s. 38 of the Civil Procedure Code; see for instance *Bhan Kumar Chand v. Lachmi Kanta* A.I.R. (1941), vol. 28, p. 566.

Mr. Dastur has submitted that the order of Biron, J. dated 24 March 1971 was not an executable order or decree in terms of s. 3 of the Civil Procedure Code and that the order of Biron, J. dated 15 May 1971 could not relate to execution proceedings as execution proceedings pre-suppose a valid and executable order or decree. As I have said the order of 24 March 1971 was not challenged and must be considered as valid, and in my view that was an executable decree within the meaning of s. 3 of the Civil Procedure Code. It follows that the order of 15 May 1971 related to execution proceedings and came within the provisions of s. 38 of the Civil Procedure Code. In the circumstances Saidi, C.J. had jurisdiction to make the order he did and Biron, J. was correct in refusing to interfere with the order of Saidi, C.J.

I would dismiss the appeal with costs.

Lutta JA: The facts out of which this appeal arises, the issues and the grounds of appeal are set out fully in the judgments prepared by the President and Mustafa, J.A. which I have had the advantage of reading and it is unnecessary for me to repeat them.

Mr. Peera (counsel for the applicant then) is shown on the record as having stated that he made his application to the High Court under ss. 38, 78 and 95 of the Civil Procedure Code 1966. S. 38 is concerned with the determination, by the court executing the decree, of questions arising between the parties to the suit in which the decree was passed, and relating to the execution, satisfaction or discharge of the decree. Thus such questions must, firstly, relate to the execution of the decree and not to its validity, and secondly, must be decided in the execution proceedings.

S. 78 of the Civil Procedure Code, 1966 provides as follows:

> "Subject as aforesaid, any person considering himself aggrieved–
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> (*a*) by a decree or order from which an appeal is allowed by this Code, but from which no appeal has been preferred; or
>
> (*b*) by a decree or order from which no appeal is allowed by this Code, may apply for a review of judgment to the court which passed the decree or made the order, and the court may make such order thereon as it thinks fit."

O. 42 r. 1 provides for a review of judgment to the court which passed the decree or made the order. R. 5 of this Order provides that–

> "5. Where the Judge or Judges, or any one of the Judges, who passed the decree or made the order, a review of which is applied for, continues or continue attached to the court at the time when the application for a review is presented, and is not or are not precluded by absence or other cause for a period of six months next after the application from considering the decree or order to which the application refers, such Judge or Judges or any of them shall hear the application and no other Judge or Judges of the court shall hear the same."

The combined effect of s. 78 and O. 42 rr. 1 and 5 is to give entitlement to an aggrieved person to apply to the judge, who passed the decree or made the order, for a review of judgment. In my opinion the word "Court" which appears in both s. 78 and O. 42 r. 1 must mean "judge" as used in O. 42 r. 5. In other words, an application for review under s. 78 and O. 42 r. 1 is required to be made to the judge who passed the decree or made the order.

Biron, J., ordered, on 24 March 1971, the appellants to pay Shs. 25,000/- by 31 March 1971 and Shs. 25,000/- by the end of April 1971 and thereafter to pay the "current rent accruing until the determination of the suit" and also that if any instalment was in arrear by more than 10 days the appellant was to hand over immediate possession. This was an order within the meaning of "order" under s. 3 of the Civil Procedure Code, 1966. Then on 15 May 1971 he ordered as follows:

> "1. Leave for an eviction order granted;
>
> 2. Leave to attach all the moveable properties described in the affidavit is granted;
>
> 3. Order for possession be issued forthwith; and
>
> 4. Warrant to attach all the moveable properties be issued."

This was an order within the meaning of "order" under s. 3 and was merely carrying into effect the order of 24 March 1971 by Biron, J., as the appellants were in arrears by more than 10 days. In other words, it was an enforcement

order. It was in execution of the order made on 24 March 1971 and by reason of s. 31 of the Civil Procedure Code 1966, the provisions of the Civil Procedure Code relating to execution of decrees, would apply to it. In their application of 18 May 1971 for a rescission of the order of 15 May 1971 the appellants stated, as per Mr. Peera's affidavit of 18 May and Pyarali Jaffer Mawji's affidavit of 20 May 1971, *inter alia*, that the (plaintiffs) respondents did not file a written application for the execution of the order of 24 March 1971 as required by O. 21 r. 10 of the Civil Procedure Rules and that the appellants had been accepted by the Registrar of Buildings (to whom the rent for April had been paid) as his tenants and that the appellants were entitled to the occupation of the suit premises and therefore the respondents were not entitled to possession thereof. It seems to me that Mr. Peera's application of 18 May 1971 was against the procedure for the execution of the order and an objection to attachment of the property, or, rather, to the handing over of possession of the suit premises to the respondents, in which case these are matters which must be determined under s. 38 rather than under s. 78 of the Civil Procedure Code, 1966. In my view the Chief Justice was not barred from hearing the application of 18 May 1971; he had jurisdiction by virtue of s. 95 to make the order of 21 May 1971. I would accordingly dismiss the appeal with costs.

Appeal dismissed.

For the appellants:
PR Dastur

For the respondent:
MA Lakha (instructed by *Tarimo & Co*, Dar es Salaam)

Panesar v Balbir
[1972] 1 EA 208 (CAN)

Division:	Court of Appeal at Nairobi
Date of judgment:	10 April 1972
Case Number:	47/1971 (66/72)
Before:	Spry V-P, Lutta and Mustafa JJA
Sourced by:	LawAfrica
Appeal from:	High Court of Kenya – Trevelyan, J

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[1] Landlord and Tenant – Business premises – Used mainly for manufacturing – Not a shop – Landlord and Tenant (*Shops, Hotels and Catering Establishments*) *Act* (*Cap.* 301), *s.* 2 (1) (*K.*).

Editor's Summary

The respondent let to the appellant premises which the appellants used for the manufacture of furniture. Sometimes furniture in bulk was sold on the premises, otherwise the sale of furniture was at a shop in another road.

The High Court found that the premises were used mainly for the manufacture of furniture, not for

the sale of it and that accordingly they were not a shop within the definition in the Landlord and Tenant (Shops, Hotels and Catering Establishments) Act (Cap. 301).

The appellant appealed, contending that business includes all activities for the purpose of profit, and that as the premises were used to make furniture for sale in the retail shop they formed part of the shop.

Held –

(i) the judge was justified in finding that the premises were used mainly for manufacture;

(ii) the premises did not form part of the shop from which the manufactured goods were sold (*Hirani v. Ramji Mepa & Co*. (1) distinguished);

(iii) the definition of premises occupied for the purposes of rendering services for money or money's worth cannot apply to a factory.

Appeal dismissed.

Case referred to in judgment:

(1) *Hirani v. Ramji Mepa & Co*, [1971] E.A. 332.

[Judgment of the High Court sub. nom. *Balbir v. Panesar*, [1972] E.A. 94 upheld.]

Judgment

10 April 1972. The following considered judgments were read. **Mustafa JA:** The appellants were tenants of the respondent of certain premises in Hathi Road, Nairobi. The respondent filed a suit for the recovery of possession of these premises and the appellants resisted the claim for possession. The appellants claimed, *inter alia*, the protection of the Landlord and Tenant (Shops, Hotels & Catering Establishments) Act (Cap. 301) (hereinafter called the Act), alleging that the premises were a "shop" within the meaning of the Act. The High Court held that the premises were not a "shop" within the meaning of the Act and decreed possession in favour of the respondent.

The sole point for decision in this appeal is whether the said premises are a "shop" within the meaning of the Act. During the trial the following facts emerged. The appellants began a furniture making business in or about 1952. It was carried on in a workshop where furniture was made and sold. Some years later the appellants leased the suit premises from the respondent for the manufacture of furniture. The appellants had a shop and show room in Ngara Road where the furniture manufactured in the suit premises was retailed and sold. Sometimes if a large concern or a Government department wanted furniture in bulk the sale would take place at the suit premises, but otherwise the sale of the furniture was at the shop at Ngara Road. The trial judge found that the suit premises were mainly used for the manufacture of furniture, not for the sale of it, and were not therefore a shop within the meaning of the Act.

It will be convenient at this stage to set out the definition of a shop in the Act. A shop is defined in s. 2 as follows:

> "'Shop' means premises occupied wholly or mainly for the purposes of a retail or wholesale trade or business or for the purposes of rendering services for money or money's worth."

Mr. Khanna for the appellants has submitted that the trial judge erred in holding that the main use of the suit premises was for the manufacture of furniture, not to sell it. He submitted that the manufacture of furniture was not an end in itself; the appellants manufactured furniture in order to sell it. The manufacture, storage and sale of furniture formed an integral part of the business of the appellants. He submitted that the trial judge had used a wrong yardstick in singling out and isolating the element of manufacture and contrasting it with sale in coming to the conclusion that the suit premises were mainly used for the manufacture of furniture, not to sell it. The suit premises were used to manufacture furniture to feed the retail shop at Ngara Road and would therefore be a part of the shop, and the suit premises would be "occupied wholly or mainly for the purposes of a retail trade or business". He further submitted that the word "business" has a wide meaning and would include all activities for the purposes of gaining profit or reward. He also submitted that the word "for the purposes of a retail trade or business" cannot be restricted to only sale; the words would include storage and manufacture as well. He argued that

manufacturing was only one stage in a trading or business activity. He further submitted that what the appellants did in the suit premises could also be construed as activities designed for the "purposes of rendering services for money or money's worth". He referred to the case *Hirani v. Ramji Mepa & Co*., [1971] E.A. 332 where the trial judge had held that storehouses which were situated separately from the shop premises were occupied for the purposes of a business and were entitled to protection under the Act. He argued that by parity of reasoning the suit premises would also be so protected. In brief he submitted that the suit premises could be a shop either because (*a*) sales had taken place there, (*b*) the suit premises were used to manufacture furniture to feed the retail shop at Ngara Road and thus would form a part of the retail shop, or (*c*) the suit premises were used for the purposes of rendering services for money or money's worth.

In my opinion the definition of a "shop" in the Act has to be construed from a common sense point of view. The authorities cited by counsel are hardly of any assistance. I think that the trial judge was justified, on the evidence before him, in concluding that the suit premises were mainly used for the purposes of manufacturing furniture, not to sell it, and that they were not occupied wholly or mainly for the purpose of a retail or wholesale trade or business. There is something termed a lease for manufacturing purposes (s. 106 of the Transfer of Property Act of India) and the lease here clearly was such a lease. The long title to the Act refers only to shops, hotels and catering establishments, not to factories or premises for manufacturing goods. The sales from the suit premises did not form any substantial or material part of the business, they were merely incidental and infrequent.

I am not prepared to accept the proposition that as the suit premises were used to manufacture furniture to feed the retail shop at Ngara Road they would form a part of the said shop. Such a proposition can lead to absurd results. Indeed Mr. Khanna suggested that a factory, like say the Bata Shoe Factory at Limuru, would be protected as a shop because its products are being sold through its retail shops in Nairobi. With respect that seems to me to be a fanciful argument and I reject it without hesitation. If the legislature had wanted to protect factories it could easily have said so. In the *Hirani* case referred to by Mr. Khanna, storehouses separated from a shop were considered as part of a shop. Perhaps storehouses have much more affinity with a shop than a factory or premises where goods are manufactured and can therefore be distinguished. As Mr. Couldrey for the respondent has pointed out, the decision in that case has reached the high water mark and as the trial judge said in reference to it "a line must be drawn somewhere". It is after all a question of degree. Assuming without deciding that the *Hirani* case is correctly decided I am not prepared to say that storehouses used for storing goods for a shop would be in the same category as a factory or the suit premises where furniture is manufactured. I am also of the view that "premises occupied . . . for the purposes of rendering services for money or money's worth" would be applicable to offices like those of advocates, accountants, manufacturers' representatives, barbers and so forth, and cannot apply to a factory or the suit premises.

In my opinion the trial judge was right in holding that the suit premises were not a shop within the meaning of the Act and were thus not protected. I would dismiss the appeal with costs and order that the appellants hand back possession of the suit premises to the respondent on or before 31 May 1972.

Spry V-P: I agree, and as Lutta, J A. also agrees, it is so ordered.

Lutta JA: I agree.

Appeal dismissed.

For the appellant:
DN Khanna (instructed by *Khanna & Co*, Nairobi)

For the respondent:

JA Couldrey (instructed by *Kaplan & Stratton*, Nairobi)

Rex Hotel Ltd v Jubilee Insurance Co Ltd
[1972] 1 EA 211 (CAM)

Division:	Court of Appeal at Mombasa
Date of judgment:	12 April 1972
Case Number:	49/1971 (70/72)
Before:	Sir William Duffus P, Law and Mustafa JJA
Sourced by:	LawAfrica
Appeal from:	High Court of Kenya – Mosdell, J

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[1] Landlord and Tenant – Lease – Variation – Whether extension of old lease or new term.

[2] Landlord and Tenant – Lease – Variation – Option to terminate prior to variation – No longer in existence.

[3] Rent Restriction – Controlled tenancy – Termination within 5 *years – Cannot mean only termination by landlord – Landlord and Tenant* (*Shops, Hotels and Catering Establishments*) *Act* (*Cap.* 301), *s.* 2 (*K.*).

[4] Civil Practice and Procedure – Relief – Further or other – May not be granted when could not have been included in plaint, and when not consequential upon prayer – Civil Procedure (*Revised*) *Rules*, 1948, *O.* 2, *r.* 7, *O.* 7, *r.* 6 (*K.*).

Editor's Summary

The appellant leased a hotel owned by the respondent for a term of 10 years from 1955. This lease contained a proviso allowing the appellant to terminate the lease at the end of the first five years. In September 1963 a deed of variation was executed whereby the period of the lease was extended up to August 1970 together with a reduction of rent which took effect immediately.

Before the termination of the lease the respondent gave the appellant notice that it would require possession at the termination of the lease, and the appellant claimed to be a protected tenant under the Landlord and Tenant (Shops, Hotels and Catering Establishments) Act (Cap. 301).

Before the expiry of the lease the respondent sued for a declaration that the hotel was not subject to the provisions of the Act and that the respondent would be entitled to possession on expiry of the lease. At the hearing, which was after the expiry of the lease, the respondent asked for an order for possession, and mesne profits as further relief.

In the High Court the judge held that the deed of variation created an extension of the original lease and not a new lease, and that in any case paragraph (*b*) (ii) of the definition of controlled tenancy must be read as if referring only to a provision for termination by the landlord.

The judge granted the declarations sought and also an order for possession and mesne profits, stating that the plaint was amended.

The appellant appealed contending that there was a new lease for less than 5 years, alternatively that it contained a provision for termination within 5 years of its commencement, and that the further

relief should not have been granted.

Held –

(i) (Sir William Duffus, P. dissenting) the deed of variation extended the original lease from 10 to 15 years and did not create a new lease;

(by Sir William Duffus, P.) the deed created a new lease for 7 years from September 1963;

(ii) the option to terminate had been specifically deleted;

(iii) the declarations had accordingly been properly granted;

(iv) (Sir William Duffus, P. not deciding) the provision for termination in

the definition of controlled tenancy cannot be read as applying only to termination by the landlord;

(v) the orders for possession and mesne profits should not have been made;

(*a*) because these could not have been claimed when suit was filed, and

(*b*) because such relief was not consequential upon the declarations that the premises were not controlled and that the respondent would be entitled to possession on expiry of the lease.

Appeal allowed in part.

No cases referred to in judgment

Judgment

12 April 1972. The following considered judgments were read. **Mustafa JA:** The respondent, Jubilee Insurance Co. Ltd. (hereinafter called the Company) by a lease dated 31 January 1955 leased to the appellant, Rex Hotel Ltd. (hereinafter called Rex Hotel) a hotel building and premises from 1 October 1955 for a term of 10 years at a monthly rental of Shs. 8,000/-. The lease contained this proviso:

> "If the lessee shall be desirous of determining this lease at the end of first five years of the aforesaid term and of such desire shall give to the lessor three calendar months previous notice in writing then in such case at the end of such five years the term hereby granted shall cease but subject to the rights and remedies of the lessor for or in respect of any rent in arrears or any breach of any of the lessee's convenants."

On 12 September 1963 a deed of variation was executed between the Company and the Rex Hotel whereby it was mutually agreed that the term of 10 years created by the first lease "shall be and is hereby extended for a further period to include up to 31 August 1970". This deed of variation provided for the following matters – (*a*) an extension of the term, (*b*) a reduction of the monthly rent from Shs. 8,000/- per month to Shs. 6,200, (*c*) the payment by Rex Hotel of any increase in the amount of the existing municipal rates, (*d*) that the covenants and the conditions contained in the original lease which were then applicable to the premises shall continue to be applicable.

Before the expiry of the lease the Company gave the Rex Hotel a notice in writing to the effect that the Company would require vacant possession of the premises when the lease would expire on 31 August 1970. The Rex Hotel refused to give the Company any such assurance and claimed protection under the Landlord and Tenant (Shops, Hotels and Catering Establishments) Act (Cap. 301) (hereinafter called the Act). On or about 24 March 1970 the Company filed a suit against the Rex Hotel in the High Court claiming (*a*) a declaration that the demised premises were not subject to the provisions of the Act, (*b*) a declaration that the company was entitled to vacant possession of the premises on 31 August 1970. At the trial the Company added verbal prayers for an order for possession of the premises and for an order for mesne profits from 31 August 1970 until the date of possession, as when the case came to be heard the lease had already expired. The trial judge decreed the two declarations as prayed for as well as the orders for possession and for mesne profits. From that judgment the Rex Hotel has appealed to this Court, and the Company has cross-appealed.

The trial judge found that to discover the intention of the parties both the

lease and the deed of variation must be read together. He came to the conclusion that the deed of variation of 1963 was intended to create an extension of the original lease and was not intended to be a new lease. He concluded that the deed of variation extended the term of the old lease subject to a reduced rent and to the Rex Hotel paying any increased municipal rates and subject to such terms and conditions of the original lease as were still applicable as on the date of the deed of variation, that is, 12 September 1963. It is true he said "the lease was not surrendered expressly or by implication". I think what the trial judge meant was that the original lease was at no time surrendered but was merely extended for a further period by the deed of variation.

Mr. Nazareth for the Rex Hotel submitted that the deed of variation had created a new lease from the date of expiry of the original lease which was 1 October 1965. In that event the new lease would be for a term of 4 years 11 months, from 1 October 1965 to 31 August 1970. He said that the trial judge had found as a fact that the lease was not surrendered expressly or by implication and this finding was not appealed. He submitted, in view of this finding, that the new term could only commence from 1 October 1965 after the term of the original lease had expired. He pointed out that the judge also said "In my opinion the lease and deed of variation must be read together and their joint effect is that, as from 12 September 1963, the defendants obtained an extended term up to 31 August 1970 at a reduced rent, subject to such terms and conditions. . . ." He submitted that if the trial judge had found that the new lease was to take effect from the date of the deed of variation, that is 12 September 1963 then he was contradicting himself because he had also found that the original lease had not been surrendered, and the new lease therefore could only take effect after the original lease had expired. If there was a new lease and the new lease commenced from the 1 October 1965 then the new lease was only for a term of 4 years 11 months, and the Rex Hotel would be protected as the lease would be a "controlled tenancy" as defined in the Act. S. 2 of the Act, as amended, reads:

> " 'controlled tenancy' means a tenancy of a shop, hotel or catering establishment–
>
> (*a*) which has not been reduced into writing; or
>
> (*b*) which has been reduced into writing and which–
>
> (i) is for a period not exceeding five years; or
>
> (ii) contains provision for termination, otherwise than for breach of covenant, within five years from the commencement thereof; . . ."

Mr. Nazareth submitted that if the new lease was for a period of less than 5 years, then s. 2 (*b*) (i) applies. However if the lease was a continuous one for 15 years then the original lease contained a provision for termination otherwise than for breach of covenant within 5 years from the commencement thereof. In that event he submitted that s. 2 (*b*) (ii) would apply because in that case the original lease of 1965 has to be looked at and that lease contained the clause for an option to terminate within the first 5 years. Mr. Nazareth however conceded that the deed of variation effectively deleted the option to terminate.

Mr. Nazareth also submitted that the trial judge was wrong in making an order for possession and for mesne profits. At the time when the plaint was filed the Company could not have asked for an order of possession or for mesne profits as that would clearly have been premature. Again the suit was for declarations which are essentially discretionary remedies whereas a prayer for possession is a remedy which can be claimed as of right provided the facts are proved. Mr. Slade submitted that he had asked for the orders for possession

and for mesne profits as ancillary and consequential reliefs. The trial judge in his judgment had dealt with this matter as if Mr. Slade had asked for an amendment to the plaint. The trial judge said:

> "I therefore grant Mr. Slade's application and order that the plaint be and is hereby amended accordingly."

Mr. Slade never asked for any amendment; what he had asked for was in the nature of consequential reliefs following on the declarations. Mr. Slade invoked the provisions of O. 2 r. 7 and O. 7 r. 6 of the Civil Procedure Rules.

I am satisfied that the trial judge was in error in making the orders for possession and for mesne profits when these remedies could not have been claimed by the Company when the suit was filed as no cause of action would have existed at that time. Nor can I understand how an order for possession could possibly be a consequential or ancillary relief arising from a declaration that the premises were not subject to the provisions of the Act, and that the Company would be entitled to vacant possession at the expiry of the lease. I am of the view that the lease and the deed of variation have to be read together and the combined meaning and effect of these two declarations is that there was to be a continuation of the original lease but subject to the variations and amendments in terms of the deed of variation, that is to say, at a reduced rent, an obligation by the Rex Hotel to pay any increased municipal rates, and the deletion of the option of termination within the first 5 years, such variations to take effect as from 12 September 1963. The deed of variation did not in my view create a new lease either from 12 September 1963 or from the expiry of the original lease, that is from 1 October 1965. The effect of this deed of variation was merely to extend the term of the old lease from 10 to 15 years subject to certain variations as contained in the deed itself. The parties had stated what they intended, and meant what they said. That being so, the suit premises would not be under a controlled tenancy within the meaning of the Act as amended, as the lease was for a period exceeding 5 years and did not contain any provision for termination otherwise than for breach of covenant within 5 years from the commencement of the lease, the option for termination having expressly been deleted by the deed of variation in 1963.

I will now briefly deal with the cross appeal. In construing s. 2 (*b*) (ii) of the Act the trial judge in acceding to the submission of Mr. Slade held that the words "by the landlord" should be interpolated after the word "termination" as he was of the view that these words were implied since the purport of the Act was to protect the tenant. With respect I disagree. There is no ambiguity in the meaning of the words in s. (2) (*b*) (ii) of the Act and I can see no reason at all why a literal interpretation should not be adopted. The word used there is "termination", not "re-entry", and termination can apply with equal force to a tenant or a landlord. Mr. Slade in his cross-appeal sought to support the orders for possession and for mesne profits as orders for consequential relief. He also submitted, as an alternative, that if a new lease was created by the deed of variation, then it commenced as from 12 September 1963 and would be a new lease for about 7 years. He also submitted that the deed of variation had expressly deleted the option to terminate and in any event the said option had expired prior to the enactment of the Act or its amendment. In view of my finding that the lease was a continuous and unbroken lease for a term of about 15 years, and that the words "by the landlord" could not be interpolated after the word "termination" in s. 2 (*b*) (ii) of the Act, the cross-appeal substantially fails.

I am of the view therefore that the trial judge was right in granting the declarations namely (1) that the demised premises were not subject to the provisions

of the Landlord and Tenant (Shops, Hotels and Catering Establishments) Act, (Cap. 301) as amended and (2) that the Company was entitled to vacant possession of the demised premises on 31 August 1970. I am of the view that the trial judge was in error in granting the company the "further reliefs", namely, the orders for possession and for mesne profits. I would therefore amend the judgment and decree of the High Court by deleting therefrom (*a*) the order for possession of the demised premises, (*b*) the order for mesne profits as from 31 August 1970 till the date of possession.

The appellant, Rex Hotel, has partly succeeded in its appeal. I would award half the costs of the appeal and the costs of the cross-appeal to the appellant Rex Hotel. As regards the costs in the High Court, I see no reason to disturb the order made.

Sir William Duffus P: I have had the advantage of reading the judgment of Mustafa, J.A. in draft.

Tenancy, as set out in the definition of a "controlled tenancy" in s. 2 of the Landlord and Tenant (Shops, Hotels and Catering Establishments) Act, Cap. 301 (as amended by the 1970 Act) must refer to the tenancy existing at the relevant date. The relevant date here is the date on which the suit was instituted, i.e. the 24 March 1970. I quote the relevant portions of s. 2:

> "controlled tenancy" means a tenancy of a shop, hotel or catering establishment–
>
> (*a*) which has not been reduced into writing; or
>
> (*b*) which has been reduced into writing and which–
>
> (i) is for a period not exceeding five years; or
>
> (ii) contains provisions for termination, otherwise than for breach of covenant, within five years from the commencement thereof;"

Therefore the tenancy in this case is the tenancy existing at the time when the action was filed and also when the judgment was given. This tenancy had been reduced into writing and the terms and conditions were those set out in the deed of variation dated 12 September 1963, and in the original lease dated 31 January 1955.

Mr. Nazareth has submitted that the deed of variation in fact created a new lease for a term of under five years, running from 1 October 1965, until 31 August 1970. With respect, this cannot be correct. I agree that the deed of variation created a new agreement and a new tenancy in accordance with the terms and conditions set out in that variation. The parties intended to and, in fact, entered into a new tenancy on these conditions. They agreed that the tenancy, as from 12 September 1963, was for a definite term extending from that date up to 31 August 1970, a period of nearly seven years. They also agreed on a new and reduced rental and other conditions. By clause 3 of the deed of variation the parties specifically agreed:

> "It is hereby further mutually agreed between the parties hereto and declared that all the Lessor's and Lessee's covenants and conditions as contained in the said Lease and the proviso for re-entry therein contained and which are now applicable to the premises comprised therein shall continue to be applicable to the demised premises as if the rent thereby reserved has been only Shs. 6,200/- (six thousand two hundred) per month and the term extended to the 31st day of August, 1970."

It is in my view quite clear that the proviso to paragraph 4 (3) of the 1955 lease, giving an option to the lessee to determine the lease at the end of five years, i.e.

on 30 September 1960, would no longer apply to the new agreement made on 12 September 1963, as the option no longer existed.

I therefore agree with Mustafa, J.A. that the tenancy, the subject of this action, would not be a "controlled tenancy" within the meaning of the Landlord and Tenant (Shops, Hotels and Catering Establishments) Act.

I also agree with Mustafa, J.A. for the reasons which he has set out in his judgment, that the trial judge should not have made the orders for possession and for mesne profits. The lease was still in force at the time the action was brought and the tenant was still lawfully in possession and there could have been no question at that time of having an order for possession made. The respondent did not seek to amend the plaint at any time and the judge was, with respect, in error when in the circumstances of this case, he amended the plaint during the course of his judgment. The main purpose of the cross-appeal was to support the order for possession and mesne profits as being such consequential relief as could be included in the prayer "such further or other relief". I agree with Mustafa, J.A. that the judge was wrong to have granted this relief either by way of amendment to the plaint or by way of including this as consequential relief sought in the prayer to the plaint.

The question of the interpretation of paragraph 2 (*b*) (ii) of the definition of "controlled tenancy" arose and the judge held that the words "contains provision for termination" must be read as if the words "by the landlord" were applied after the word "termination". With respect, this question does not arise in this hearing. As I have said, the tenancy in existence at the relevant time was clearly for a period exceeding five years and the provision for the termination of the tenancy within five years from the commencement no longer existed. It is therefore unnecessary to consider whether the provision for termination only applied to the landlord and not to both parties.

There remains the question of costs. I agree with Mustafa, J.A. that the appellant, having only succeeded in a part of his appeal should, in the particular circumstances of this case, have only half the costs of the appeal. I agree that the order for costs in the court below should remain. On the question of the cross-appeal I agree that the plaintiff has not succeeded in the main purpose of his cross-appeal which was to support the order for possession, and although I have agreed in part with grounds 2 and 3 of his cross-appeal, I agree that the appellant should have the costs of the cross-appeal.

As Law, J.A. also agrees the appeal is allowed in accordance with the order set out in the judgment of Mustafa, J.A.

Law JA: I have had the advantage of reading in draft the judgment prepared by Mustafa, J.A. I agree with it in every respect, and cannot usefully add anything. I concur with the order proposed.

Appeal allowed in part.

For the appellant:
JM Nazareth QC and *S Hirji* (instructed by *Atkinson, Cleasby & Satchu*, Mombasa)

For the respondent:
H Slade and *P Le Pelley* (instructed by *Hamilton Harrison & Mathews, Nairobi*)

Attorney-General v Musisi
[1972] 1 EA 217 (CAK)

Division: Court of Appeal at Kampala

Date of judgment:	29 April 1972
Case Number:	2/1972 (71/72)
Before:	Spry V-P, Law and Lutta JJA
Sourced by:	LawAfrica
Appeal from:	High Court of Uganda – Oteng, J

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[1] Damages – Exemplary – To dependants – Not awardable on action by relatives.

[2] Fatal accident – Damages – Exemplary – Not awardable.

Editor's Summary

The respondent sued the appellant for damages under the fatal accidents provisions for the death of her husband who had been shot by troops. Liability was not denied. The High Court awarded Shs. 160,000/-, stating that the average expectation of life in Uganda has risen from 45 to 60 years. The deceased had been about 30, and a 15 year multiplier would have given a figure of Shs. 72,000/-. It appeared that some element of exemplary damages had been awarded.

The appellant appealed the assessment of damages, contending that it was excessive and that exemplary damages should not have been awarded.

Held – (Spry, V-P. dissenting)

(i) the right to claim exemplary damages is a personal right;

(ii) assessment of damages under the Fatal Accidents provisions is purely compensatory.

Damages reduced.

Cases referred to in judgment:

(1) *Blake v. Midland Railway* (1852), 18 Q.B. 93; 118 E.R. 35.

(2) *Franklin v. South Eastern Rail Co.*, [1843–60] All E.R. Rep. 849; (1858), 157 E.R. 448.

(3) *Davies v. Powell Duffryn Associated Collieries*, [1942] A.C. 601.

(4) *Malyon v. Plummer*, [1964] 1 Q.B. 330.

(5) *Rookes v. Barnard*, [1964] A.C. 1129.

(6) *Pevec v. Brown* (1964), 108 S.J. 219.

(7) *Kassam v. Kampala Aerated Water Co.*, [1965] E.A. 587.

(8) *Obongo v. Municipal Council of Kisumu*, [1971] E.A. 91.

(9) *Broome v. Cassell & Co*., [1971] 2 Q.B. 354.

Judgment

29 April 1972. The following considered judgments were read. **Law JA:** On 19 December 1969, an unsuccessful attempt was made on the life of the then President of Uganda. This was followed by military action in and around Kampala in the course of which there was much indiscriminate shooting and loss of life. The respondent's husband, Seth Musisi, at about 6 a.m. on the following day, was

walking to Kampala to his usual work as a shop assistant. On the outskirts of Kampala he was shot at by soldiers, without warning, and suffered several wounds from which he subsequently died. The respondent sued for damages in respect of her husband's death for herself and her six minor children, whose ages run from one to seven years. No defence was filed, and the allegation that Seth Musisi was killed by members of the Armed Forces of Uganda in the course of their employment as soldiers has not been challenged.

The appellant Attorney General entered an appearance and was heard at the trial, through State Counsel, on the question of damages.

The trial judge awarded the respondent £8,000 damages, and directed that £2,500 should be paid to her and the balance of £5,550 allocated to "all the minor children" and invested by the Public Trustee on their behalf. The judgment is silent as to how the figure of £8,000 was calculated, and it contains a patent misdirection on a material consideration affecting the calculation of damages in a case such as this, that is to say, life expectancy. The judge said:

> "Where some 5 or so years ago life expectancy was assessed to be about 45 years, today it would be an under-statement to state that life expectancy is still 45 years. It is somewhere now nearer 60 than 45 years."

I do not know where the judge obtained his information that during the past 5 years, the average expectation of life in Uganda has risen from 45 to 60 years. There is certainly no evidence on record to justify this conclusion.

The appellant has appealed against the award of damages in this case as being a figure, arbitrarily selected, which is manifestly excessive. As was pointed out in *Kassam v. Kampala Water Co*., [1965] E.A. 587, pure arithmetic does not always in cases such as this lead to a just result. The usual method is to estimate the loss of reasonable expectation of pecuniary benefit. The respondent was in receipt of Shs. 400/- a month for the maintenance of herself and her six infant children. Her husband was about 30 years old at the time of his death. On the basis of a 15 to 20 year working life expectancy, a multiplier of around 15 is not unreasonable. This would give a figure of £3,600. Admittedly this is only a guide, but it is an indication that the £8,000 awarded by the judge was excessive. It is possible, but by no means clear from the judgment, that this latter figure contains some element by way of exemplary damages, to mark disapproval of oppressive and arbitrary action by servants of the Government. Such damages can be awarded in appropriate cases, see *Obongo v. Municipal Council of Kisumu*, [1971] E.A. 91. So far as I am aware, however, the right to claim exemplary damages is a personal right, and I do not know of any case in which such damages have been awarded to a plaintiff in a suit on the death of a person brought under the fatal accidents provisions of the Law Reform (Miscellaneous Provisions) Act, (Cap. 74), even if the circumstances surrounding the death of that person (had he not died) would have entitled him to an award of exemplary damages in a personal suit. So personal is the right to exemplary damages that even if a cause of action survives on the death of a person, the damages recoverable for the benefit of his estate shall not include exemplary damages; see s. 13 (2) of the Act. The type of action, the subject of this appeal, is not an action in tort, it is the creation of statute. I can find no authority for the proposition that exemplary damages can be awarded to the plaintiff in such an action, unless the statute creating the cause of action so provides, which in this case it does not. The opinions of writers and editors of text-books on the subject appear to support my view. For instance, in the passage dealing with the assessment of damages in suits under the Fatal Accidents Act in England, the following extract is taken from Halsbury's Laws of England, 3rd Ed., Vol. 28 at p. 101:

> "Regard must be paid only to benefits which arise from the family relationship between the plaintiff and the deceased. . . . It follows that damages cannot be recovered for the gravity of the injury to the deceased or as a compassionate allowance or solatium. . . ."

In Clerk and Lindsell on Torts, 13th Ed., at p. 427, the following appears:

> "It has, however, for long been settled that the damages are not awarded as a solatium for the bereaved but as compensation for the pecuniary loss suffered by the dependants of the deceased as a consequence of his death."

In Mayne and McGregor on Damages, 12th Ed., at p. 809, note 45, dealing with damages in Fatal Accidents Act cases, the learned editor has this to say:

> "Thus, a fortiori, exemplary damages cannot be recovered."

In *Pevec v. Brown* (1964), 108 S.J. 219, Megaw, J. held that in such cases it was financial loss, and financial loss only, which was recoverable.

I am left with no doubt at all that in actions under the fatal accidents provisions of the Law Reform (Miscellaneous Provisions) Act of Uganda the assessment of damages can include no element by way of exemplary or punitive damages.

I have come to the conclusion that the damages awarded in this case were excessive and must be reduced. Having regard to all the circumstances of this case, and doing the best I can on the evidence available, I would reduce the damages awarded from £8,000 to £4,000.

The trial judge did not apportion the damages awarded by him to all the persons entitled, as required by s. 8 (2) of the Law Reform (Miscellaneous Provisions) Act. The advocates who appeared on this appeal have agreed that this Court should undertake the apportionment, rather than remit the matter to the High Court. I would apportion the damages as follows:

To the widow			£1,60
To the children	(1	Kagwa	300
	(2	Kizito	367
	(3	Kituuka	367
	(4	Nakibirige	400
	(5	Luyima	466
	(6	Nansubuga	500
			£4,00

The children's shares are to be paid to the Public Trustee to be invested and applied on their behalf. It follows that in my view the appeal succeeds to the extent indicated above. The judgment and decree in the Court below should be amended accordingly. I would make no order for costs on the appeal, having regard to all the circumstances.

Spry V-P: This is an appeal solely against the quantum of damages awarded. The facts appear in the judgment of Law, J.A. and I agree with him that there are serious misdirections in the judgment appealed against, notably the direction that the expectancy of life in Uganda has vastly increased in the last five years, a direction which is supported by no evidence whatsoever, and the judge's references to measuring the worth of a man's life, when what he had to assess was the financial loss to his dependant relatives. Moreover, as Mr. Bamutaraki pointed out, the judge's assessment of £8,000 appears to be an arbitrary one, based on no reasoning. I accept, of course, that the assessment of an award is not simply a mathematical exercise, but there must be some mathematical basis, even though a judge is entitled eventually to adopt some figure higher or lower than the sum of his calculations to

give effect to what he thinks the case warrants, looked at as a whole.

We have, therefore, to make our own assessment of the appropriate damages, as neither party wished the case to be remitted. On the purely compensatory aspect, I would accept the figure proposed by Law, J.A., and I would agree with his apportionment of that figure between the dependants. What occasions me more difficulty is to decide whether that figure ought to be enlarged, either by way of aggravated damages or to include an exemplary element.

It was not argued in the High Court that either aggravated or exemplary damages ought to be awarded, but it was made a ground of appeal that the award was so high that it must include a punitive element. For the respondent, Mr. Sebalu argued that if and so far as the award included any punitive element, it was fit and proper in the circumstances. Although the judge expressed disapprobation of the conduct of the soldiers, I do not think his judgment indicates that he was intending to make a punitive award: indeed, I do not think he gave the question any consideration.

It is not necessary for a claim to exemplary damages to be pleaded (see *Broome v. Cassell & Co*., [1971] 2 Q.B. 354), nor is it necessary that it should have been prayed. In the ordinary way, we should, of course, hesitate to award aggravated or exemplary damages where there has been no argument on the subject in the lower court, but if we are to make our own assessment, we must consider all the factors which the trial judge, properly directing himself, would have considered.

The right of action for damages on behalf of the dependant relatives of the deceased is a statutory one, created by s. 7 of the Law Reform (Miscellaneous Provisions) Act, (Cap. 74), which was derived from the English Fatal Accidents Act, 1846. S. 8 (2) of the Uganda Act provides that:

> "In every such action the court may give such damages as it may think proportioned to the injury resulting from such death to the parties respectively for whom and for whose benefit such action is brought."

In England, it was decided at a very early stage (*Blake v. Midland Ry*. (1852), 18 Q.B. 93) that these damages are not to be given as a solatium but in reference to a pecuniary loss. In *Franklin v. South Eastern Rail Co*. (1858), 157 E.R. 448, Pollock, C.B. said that "mere injury to feelings could not be considered" and in *Davies v. Powell Duffryn Associated Collieries*, [1942] A.C. 601, Lord Wright said "There is no question here of what may be called sentimental damage, bereavement or pain and suffering." These decisions have been consistently followed in the English courts and in the courts of East Africa and the law could now, in my opinion, only be changed by legislation. In my opinion, these decisions preclude any award of aggravated damages under s. 7 and 8.

The position regarding exemplary damages is different, because, whereas aggravated damages are still essentially compensatory in nature, the object of exemplary damages is to punish and deter and they are awarded over and above the damages that compensate for the wrong. Whether exemplary damages may be awarded under the Fatal Accidents Act did not arise and was not considered in any of the cases to which I have referred, nor have I been able to trace any decision in England or East Africa which has any bearing on it. The only reference that I can find in any textbook is a brief footnote in Mayne and McGregor on Damages, 12th ed., at p. 687. The text contains a statement that mental suffering cannot be considered in computing damages under the Fatal Accidents Act, 1846, and that the action is limited to pecuniary loss: to this is appended a footnote "Thus, a fortiori, exemplary damages cannot be recovered." A solatium for mental suffering would take the form of aggravated damages, which are compensatory in nature, and not of exemplary damages, which are punitive and deterrent, and I think, with respect, that the reference in the footnote I have quoted should have been to aggravated damages. I am forced to the conclusion that this is a question on which there is no authority either way.

I do not think the wording of ss. 7 and 8 is so restrictive as of itself to exclude an award of exemplary damages, which, where they are awarded, are part of the general damages. It is perhaps not wholly irrelevant to note, though I attach no great significance to this, that s. 13 of the Uganda Act, which provides for

the survival of certain causes of action, expressly precludes an award of exemplary damages, but no similar provision was. included in s. 8.

Subject to very limited exceptions, exemplary damages are only awarded where the action is in tort but I do not think this is to be restricted to actions brought under the Common Law. Although the right of action in the present case is one created by statute, the right to damages arises out of a tortious act and the action is, in my opinion, one in tort.

Within the sphere of tort, the law, as it stands at present, does not allow the award of exemplary damages in every case. The most restrictive view of the law on this subject is that contained in *Rookes v. Barnard*, [1964] A.C. 1129, which was followed by this Court in *Obongo v. Municipal Council of Kisumu*, [1971] E.A. 91. This allows the award of exemplary damages in the case of "oppressive, arbitrary or unconstitutional action by the servants of the government". The wilful shooting, without warning, of an innocent citizen going about his ordinary affairs must fall into this category, and had he been wounded, but not fatally, I would have had no hesitation in saying that exemplary damages might and ought to have been awarded. I see no reason in principle to hold that such damages may not be awarded to his dependants.

There is also the question whether the loss suffered by the dependants is too remote from the oppressive conduct of the soldiers. In *Rookes v. Barnard*, Lord Devlin referred to three considerations which had to be borne in mind. The first was that:

> "the plaintiff cannot recover exemplary damages unless he is the victim of the punishable behaviour. The anomaly inherent in exemplary damages would become an absurdity if a plaintiff totally unaffected by some oppressive conduct which the jury wished to punish obtained a windfall in consequence."

Here, the immediate victim of the oppressive conduct was the deceased, but I do not think the widow and children can be said to be "totally unaffected" by it. These dependants have suffered as the direct result of the outrageous behaviour of the soldiers who shot the deceased, and even if one were to apply the test of foreseeability the result would, I think, be the same. The conduct of the soldiers in the present case clearly called for an expression of the court's disapprobation.

For these reasons, I would have increased the general damages by an additional amount as exemplary damages.

As the other members of the Court are of a different opinion, there will be an order in the terms proposed by Law, J.A.

Lutta JA: I have had the advantage of reading in draft the judgment prepared by Law, J.A. which sets out fully the facts of this case and I find it unnecessary to repeat them in full.

Paragraph 1 of the plaint states that the plaintiff "brings this action on behalf of herself and the children of the deceased". Thus although it is not expressly stated in the plaint, the action was brought by virtue of the Law Reform (Miscellaneous Provisions) Act, (Cap. 74), ss. 7 and 8. The Court has power under s. 8 (2) to award such damages as it may think commensurate with the injury resulting from death caused by a wrongful act. The judge awarded £8,000 to the respondent but Mr. Bamutaraki for the appellant, has attacked this award on the grounds, *inter alia*, that the judge arbitrarily arrived at that figure and that it included a punitive element. In my opinion, the judge acted upon a wrong principle when he awarded £8,000 on the basis that life expectancy in Uganda has increased to "somewhere now nearer 60 than 45 years". It may very

well have increased but there was no reference to any evidence to that effect. In view of this, this Court is justified in interfering with the award. Mr. Sebalu, for the respondent, argued that this is a case in which punitive damages should be awarded because public servants acted oppressively. Damages can be punitive (which is synonymous with exemplary) or compensatory. The judge, in awarding £8,000 strongly criticised the conduct of the soldiers but he did not indicate that this amount included a punitive element. I agree, however, with Law, J.A. that the award was intended to be compensatory and that the compensatory damages should be reduced to £4,000. However, the facts as pleaded were not contradicted; that is, that the deceased was lawfully walking to his place of work when he was shot at and seriously injured by soldiers without warning and without a lawful excuse. He subsequently died. The soldiers acted in an outrageous and criminal manner. Their conduct showed a reckless indifference to human life. It seems to me that had the deceased continued to live and brought a suit against the appellant, there were factors which could have justified the court in awarding punitive damages, even if they were or had not been pleaded, in order to show disapproval of such conduct and as a deterrent from similar conduct in future. However, punitive damages are not expressly provided for in s. 8 (2) of the Act. S. 8 (1) provides that an action brought under s. 7, that is, in respect of the death of the deceased, shall be for the benefit of the relatives of the deceased and sub.s. (2) enacts that in every such action:

> "the Court may give such damages as it may think proportioned to the injury resulting from such death. . . ."

S. 13 provides for the survival of causes of action against or vested in the deceased for the benefit of his estate. Thus under s. 8 an action is brought for the benefit of the relatives of the deceased whereas under s. 13 an action is brought for the benefit of his estate, and the court awards damages, under s. 8 (2), to compensate the relatives of the deceased for the loss of an economic or pecuniary gain which they could reasonably have expected to enjoy had the deceased survived. However, this section is silent on the question whether such damages can include a punitive element, which under s. 13 (2) is expressly not allowed. I have been unable to find any authority in East Africa which would enable the Court to award punitive damages under s. 8 (2), which is substantially copied from the English Fatal Accidents Act (1846), s. 2. Under the latter the English courts have consistently held, since 1846, that the only damages which are recoverable in an action for the benefit of the deceased's relatives is the pecuniary loss to them – *Blake v. Midland Railway Co*. (1852), 18 Q.B. 93; *Davies and Another v. Powell Duffryn Associated Collieries*, [1942] A.C. 601 and *Malyon v. Plummer*, [1964] 1 Q.B. 330. Punitive damages are aimed at punishing the wrongdoer. The main purpose of s. 8, in my view, is to protect the relatives of the deceased by compensating them for the loss of dependency, that is, the economic benefits which they would have continued to receive from the deceased had the deceased survived. That is why the benefits, in terms of money, the relatives received from the deceased in the past, are taken as a basis for estimating the future "dependency". In this exercise no regard can be had to the circumstances surrounding the death of the deceased or the cause thereof. It seems to me that in trying to estimate the future dependency, it would not make any difference whether, for example, the deceased died as a result of a motor accident or by reason of any other deliberate act of the defendant. In my view the amount of the "future dependency" of the relatives of the deceased is limited to the pecuniary or economic gain which would have accrued to the relatives of the deceased had he continued to live. This amount is what, under s. 8 (2), is referred to as damages and in my view cannot include a punitive element.

In her evidence the respondent said that the deceased provided her with Shs. 400/- per month for personal use. Presumably this amount was also for the benefit of their six children. Thus the amount of dependency was Shs. 4,800/- per annum. The deceased was 30 years of age prior to his death and had 20 years as his working life and taking that figure as the period for which Shs. 4,800/- would have been likely to continue to accrue to the respondent, that is, the dependency, had the deceased not been killed by the wrongful act of the appellant but allowing for the possibility of that amount increasing or diminishing, as the case may be, if the deceased had survived, it is not unreasonable to take a figure of 15 as the appropriate multiplier and to apply it to Shs. 4,800/- thus resulting in Shs. 72,000/-. This would be a rough estimate of the figure of "future dependency". However, making the best estimate I can in the circumstances of this case, I think that a reasonable figure of dependency would be Shs. 80,000/-. For these reasons I would allow the appeal to the extent stated by Law, J.A. and the apportionment of damages should be as proposed by him.

Appeal allowed.

For the appellant:
GM Bamutaraki (instructed by *Kazzora & Co*, Kampala)

For the respondent:
LKN Sebalu (instructed by *Sebalu & Co*, Kampala)

Castelino v Rodrigues
[1972] 1 EA 223 (CAK)

Division:	Court of Appeal at Kampala
Date of judgment:	15 April 1972
Case Number:	4/1972 (72/72)
Before:	Spry V-P, Law and Lutta JJA
Sourced by:	LawAfrica

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[1] Appeal – Record – Supplementary record – May be filed by appellant – East African Court of Appeal Rules 1954, *r*. 63.

[2] Appeal – Record – Supplementary record – Unnecessary – Penalty only costs.

[3] Appeal – Order – Form of – Settled by judge – Form correct.

[4] Appeal – Out of time – Service of notice of appeal – Time for, can be extended – East African Court of Appeal Rules 1954, *r*. 9.

[5] Appeal – Interlocutory applications – Desirable that these be disposed of prior to hearing of appeal.

[6] Civil Practice and Procedure – Pleading – Reference to annexure – Incorporates contents of annexure in pleading.

[7] Civil Practice and Procedure – Motion – Grounds contained in annexed affidavit – Motion properly brought – Civil Procedure Rules, O. 23, *r*. 4, *O*. 48, *r*. 3 (*U*.).

[8] Civil Practice and Procedure – Pleading – Amendment – Motion not containing grounds – Irregularity curable by amendment.

[9] Civil Practice and Procedure – Forms – No prescribed form – Use of English form not obligatory.

Editor's Summary

The respondent applied for summary judgment in a civil suit and the appellant applied by motion for leave to appear and defend. The motion stated that it was made on the grounds set out in an affidavit annexed to it.

On the hearing of the motion the respondent submitted that the motion was incurably defective as not containing the grounds in the body of the motion. The magistrate agreed, refused an application by the appellant to amend, and

dismissed the application. After the dismissal of his appeal by the High Court the appellant appealed again.

The respondent objected to the competence of this appeal on the grounds that the appellant had filed a supplementary record when there was no power for him to do so, that the formal order extending time was incorrectly drawn, that time for service of notice of appeal could not be extended, and that once an appeal had been set down for hearing an application for extension of time should not have been entertained.

Held –

(i) no rule prohibits the filing of a supplementary record by an appellant and it may sometimes be unavoidable;

(ii) the filing of an unnecessary supplementary record can be penalised only in costs;

(iii) the formal order had been settled by the judge;

(iv) the time for service of a notice of appeal can be extended;

(v) it is desirable that interlocutory matters such as extension of time be disposed of prior to the hearing of an appeal;

(vi) a reference in a document to an annexure incorporates the contents of the annexure in the document;

(vii) the motion accordingly was not in a breach of the rules;

(viii) had the motion not contained the grounds this would have been a minor irregularity curable by amendment;

(ix) the respondent could not have been prejudiced by the form of the notice, and leave to amend should have been given;

(x) the use of English forms is not obligatory and their use is only as a help in providing precedents (dictum of Sir Udo Udoma, C.J. in *Masaba v. Republic* (1) disapproved);

(xi) irregularities of form may be ignored or cured by amendment.

Appeal allowed.

Case referred to in judgment:

(1) *Masaba v. Republic*, [1967] E.A. 488.

Judgment

15 April 1972. The considered judgment of the court was read by **Spry V-P:** This is an appeal from a judgment and decree of the High Court, dismissing an appeal from a ruling and order of the Magistrate's Court at Jinja.

The respondent filed a plaint endorsed "Summary Procedure Order 23", claiming Shs. 1,100/- for advocate's fees and disbursements, plus interest. The appellant applied by notice of motion for unconditional leave to appear and defend. The notice of motion was supported by his own affidavit.

At the hearing of the motion, Mr. Bhatt, who has appeared for the respondent throughout, took a preliminary objection, submitting that the grounds of the application did not appear in the notice of motion. This objection was sustained by the trial magistrate. The advocate for the appellant, while

maintaining that the notice of motion was in order, sought leave, in the alternative, to amend. The magistrate refused leave to amend, on the ground that in applying to amend, the appellant was seeking a new relief.

In the High Court, the judge dismissed the appellant's appeal, holding that as the grounds on which the appellant sought leave to defend were not set out in the body of the notice of motion, it was incurably defective

Before us, Mr. Bhatt advanced three preliminary objections. We dismissed these, but said we would give reasons when we came to write our judgment.

The first objection was to the fact that the appellant had filed a supplementary record. Mr. Bhatt submitted that r. 63 of the East African Court of Appeal Rules, 1954, only provides for the filing of a supplementary record by a respondent. He asked that the supplementary record be excluded. We agree that there is no express provision allowing a supplementary record to be filed by an appellant, but there is, as far as we are aware, no rule which prohibits it. There may well be cases where such a course is unavoidable. If in any particular case such a course was adopted when it was not necessary and it led to any serious inconvenience, we might consider penalising the party concerned in costs. We saw no merit in this objection.

The second objection was that a formal order extending time was incorrectly drawn as it did not cover all the matters included in the original order. Mr. Ponda, for the appellant, was able to show that the formal order had been settled by the judge who dealt with the matter and who struck out the matter to which Mr. Bhatt was referring, as being unnecessary.

The third objection was that the order in question, which extended the time for serving the notice of appeal, was ultra vires r. 9 of the Rules. We could not agree. The rule is drafted in very wide terms and allows an extension of time "for taking any step in or in connection with any appeal".

Mr. Bhatt also submitted that once the appeal had been set down for hearing and a notice of preliminary objection had been given, the judge ought not to have entertained an application for extension of time. Again, with respect, we could not agree. It is most desirable that these interlocutory matters be disposed of before the hearing of an appeal, whenever it is possible.

We turn now to the actual appeal. As regards the form of the notice of motion, we agree that this is governed by O. 48, r. 3, which has to be read with O. 23, r. 4. The objection taken to the notice of motion was that it did not contain the grounds of the application. The notice of motion asked for unconditional leave to appeal and defend the suit "on the grounds stated in the annexed affidavit of V. F. Castelino the above-named defendant". As a general rule, a reference in a document to an annexure has the effect of incorporating the contents of the annexure in the document. On this principle, we do not think the notice of motion in the present case was in breach of the rules, especially having regard to the matters which, under O. 23, r. 4, have to be included in the affidavit.

Even had we held that the form of the notice of motion did not comply with the rules, we should have regarded the breach as a minor irregularity easily cured by amendment. In this connection, we are unable to understand what the trial magistrate meant when he spoke of a new relief being sought: there was never any suggestion of a different relief. All that was being sought was leave to defend. The respondent could not possibly have been prejudiced by the form of the notice, since he had before him all the grounds on which leave to defend was being sought. In these matters of procedural irregularities, it is the question of prejudice that is all-important. If there is no possible prejudice, the wide power to allow amendment conferred by s. 103 of the Civil Procedure Act should normally be exercised.

In the lower courts, considerable reliance was placed on the decision in *Masaba v. Republic*, [1967] E.A. 488. That case is easily distinguishable, because, as Mr. Ponda pointed out, it dealt with an originating motion. Also, an examination of the judgment shows that there were several reasons for holding the notice of motion bad in that case, and failure to include the grounds

was one of the minor ones. We would, however, make two comments on the judgment. First, if and so far as it says that English forms must be used when there is no prescribed local form, we cannot agree: English forms are helpful in providing precedents but their use is certainly not obligatory except, possibly, where their regular use over a long period in the courts of Uganda has given them the authority of local practice. Secondly, we think that the Chief Justice put the case too strongly when he said:

> "When considering an application by motion the courts are usually very strict to see that such an application is in proper form."

Of course, rules are made to be observed, but irregularities of form may be ignored or cured by amendment when they have occasioned no prejudice. In these matters of form, courts are much less strict today than formerly.

Mr. Ponda asked that the appeal be allowed and that the application for leave to appear and defend be remitted to the magistrate's court to be heard and decided on its merits by another magistrate. We are satisfied that the appeal must succeed, and it is accordingly so ordered.

Mr. Ponda asked for the costs of the appeal, and for costs in the two lower courts. This was opposed by Mr. Bhatt, who submitted that the appellant might have taken a different course. Even if the appeal succeeded, he argued that the respondent should be awarded costs or there should be no order. We are not satisfied that there was anything wrong in the course followed by the appellant. Accordingly, we think he must be and he is hereby awarded the costs of the appeal and the costs in the High Court. We think the costs in the magistrate's court must await the determination of the application. We therefore set aside the order for costs made by the magistrate and direct that the decision of these costs stand over pending the determination of the application.

Order accordingly.

For the appellant:
VN Ponda (instructed by *Ponda Asaria & Co*, Kampala)

For the respondent:
JH Bhatt

Obiero v Opiyo and others
[1972] 1 EA 227 (HCK)

Division:	High Court of Kenya at Kisumu
Date of judgment:	8 February 1971
Case Number:	44/1970 (73/72)
Before:	Bennett J
Sourced by:	LawAfrica

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[1] Land – Registered – Proprietor – First registration – Title indefeasible for fraud or mistake – Land Registration Act (*Cap*. 300), *s*. 143 (1) (*K*.).

[2] Land – Registered – Encumbrances – When none noted proprietor's title free of interests and

claims – Registered Land Act (*Cap*. 300), *s*. 28 (*K*.).

[3] Land – Registered – Overriding interests – Customary law rights not overriding interests – Registered Land Act (*Cap*. 300), *s.* 30 (*K*.).

Editor's Summary

The plaintiff was in 1968 registered under the Land Registration Act (Cap. 300) as proprietor of a piece of land and no encumbrances were noted on the register. She sued for possession of the land and the defendants admitted that they were in possession and claimed to be the owners under customary law and to have cultivated it from time immemorial. They further alleged that the plaintiff's registration, which was a first registration, was obtained by fraud.

Held –

(i) even if fraud had been proved the plaintiff's title was indefeasible as it was a first registration;

(ii) the plaintiff's title was subject to no encumbrances and was therefore free from all interests and claims;

(iii) rights arising under customary law are not overriding interests.

Judgment for the plaintiff.

No cases referred to in judgment

Judgment

Bennett J: In this suit the plaintiff claims damages for trespass against the four defendants and an injunction to restrain them from continuing or repeating the acts of trespass complained of.

The plaintiff, Sela Obiero, is the widow of one Opiyo who died in 1938 or 1939 and the defendants, Orego Opiyo, Masime Opiyo, Charles Wasonga and Nyasembe Opiyo, are sons of the plaintiff's co-wives. I am satisfied on the evidence of the plaintiff and that of Mr. Adongo of the Land Registry, Kisumu, and from an inspection of the land certificate that the plaintiff is the registered proprietor of an area of land of about 9 acres in extent, title number North Gem/Marenyo/539 and has been so registered since 15 January 1968. The defendants admit in their defence that they have been in possession of the land in dispute and have cultivated it from time immemorial. They claim to be the owners of the land in dispute under customary law and deny the plaintiff's title to it. No serious attempt has been made by the defendants to prove the allegation in para. 8 of the defence that the plaintiff had the land registered in her name by concealment or false representation of material facts. I am not satisfied that the plaintiff obtained registration by fraud or by mistake. Even had she done so, it would seem from s. 143 (1) of the Registered Land Act (Cap. 300) that her title would be indefeasible since this was a first registration. It is plain from the evidence that before the plaintiff's title was registered, there had been conflicting

claims to the land which were determined in her favour by a Land Adjudication Committee.

The only issue which remains is whether, despite the fact that the plaintiff is the registered proprietor, the defendants have any right to occupy or to cultivate the land under customary law. I am not satisfied on the evidence that the defendants ever had any rights to the land under customary law, but even if they had, I am of the opinion that those rights would have been extinguished when the plaintiff became the registered proprietor. S. 28 of the Registered Land Act confers upon a registered proprietor a title "free from all other interests and claims whatsoever" subject to the leases, charges and encumbrances shown in the register and such overriding interests as are not required to be noted in the register. There are no encumbrances noted on the land certificate and according to the evidence of Mr. Adongo, the plaintiff's title is free of encumbrances. Rights arising under customary law are not among the interests listed in s. 30 of the Act as overriding interests. Had the legislature intended that the rights of a registered proprietor were to be subject to the rights of any person under customary law, nothing could have been easier than for it to say so. In my judgment, the defendants ceased to have any rights over the land in dispute, if indeed they were ever entitled to any interest in it, when the plaintiff became the registered proprietor. It is plain from the evidence that they have been cultivating the land in dispute or part of it without the consent of the plaintiff since she became the registered proprietor in January 1968. The plaintiff has proved to my satisfaction that she is entitled to the relief which she seeks.

There will be a perpetual injunction to restrain the defendants, their wives, servants or agents, from trespassing or continuing to trespass on the land in dispute.

The assessment of damages presents some difficulty since although it is established that the land is about 9 acres in extent and that some of it is arable land, there is no evidence as to whether all of it is cultivable or as to what crops it is suitable for; nor is there any evidence as to whether it is near enough to water to be capable of being irrigated. In the absence of any such evidence which ought to have been adduced by the plaintiff, I do not consider that it would be proper to make a high award of damages. The award which I do make is calculated on the footing that the defendants have been trespassing on the land since January 1968 up till the time when the suit was filed and that they have deprived the plaintiff of the use of it. On that footing, I assess damages at Shs. 2,000/-. There will be judgment for the plaintiff for that sum and costs.

Order accordingly.

For the plaintiff:
CN Omondi

For the defendants:
U Fernandes

Queens Cleaners and Dyers Ltd v East African Community and others
[1972] 1 EA 229 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	19 May 1972
Case Number:	442/1970 (75/72)
Before:	Trevelyan J

Sourced by: LawAfrica

[1] Evidence – Negligence – Conviction of careless driving – Conclusive nature of conviction may not be challenged – Evidence Act (*Cap*. 80), *s*. 47A (*K*.).

[2] Evidence – Conviction – Conclusive nature of – Applicable to civil and criminal proceedings and in any court – Evidence Act (*Cap*. 80), *s*. 47*A* (*K*.).

[3] Evidence – Conviction – Included in the word judgment – Evidence Act (*Cap*. 80), *s.* 47*A* (*K*.).

[4] Negligence – Careless driving – Necessarily evidence of some negligence.

Editor's Summary

The third defendant was the driver of a vehicle involved in a motor accident and had been convicted of careless driving. In the negligence action arising out of the same accident, he attempted to lead evidence showing his reasons for pleading guilty. The plaintiff objected, contending that the conviction was conclusive evidence of carelessness under the Evidence Act, s. 47A.

For the third defendant it was argued that the section only applied in other criminal proceedings, that traffic cases are not criminal cases, that judgment did not include a criminal conviction, that the section did not bind a higher court, and that careless driving did not necessarily connote any negligence.

Held –

(i) evidence may not be admitted to qualify the conclusive nature of the evidence of conviction (dictum of the Court of Appeal in *Robinson v. Oluoch* (6) followed);

(ii) the section applied to both civil and criminal proceedings;

(iii) traffic cases are criminal cases;

(iv) judgment means a conviction (*Confiance v. R*. (3) considered);

(v) the section applies to proceedings in all courts;

(vi) careless driving necessarily connotes some degree of negligence;

(vii) the convicted defendant could not deny negligence completely.

Objection upheld.

Cases referred to in judgment:

(1) *R. v. Plummer*, [1902] 2 K.B. 339.

(2) *R. v. McNally*, [1954] 2 All E.R. 372.

(3) *Confiance v. R.*, [1960] E.A. 567.

(4) *Panesar v. Lochab*, [1966] E.A. 401.

(5) *Stupple v. Royal Insurance Co. Ltd*., [1970] 1 All E.R. 390.

(6) *Robinson v. Oluoch*, [1971] E.A. 376.

Judgment

Trevelyan J: There was a collision between two cars on the evening of 27 July 1969, in which both vehicles were damaged. At the time, one was owned by the plaintiff and was being driven by a Mrs. Allen and the other was owned by the first defendant and was being driven by the third defendant. There are cross-claims for damages. The plaint alleges that the third defendant caused the collision by his negligent driving, but this is denied. It is also alleged that Mrs. Allen drove negligently, but that, too, does not concern us at the moment.

When I looked at the file just before going into court for the case to be opened, I noticed that the first defendant had admitted, for the purposes of the suit, that the third defendant (who was not at that time a party to it) had pleaded guilty to a charge of careless driving arising out of the accident, and it occurred to me that it might not be open to the defence as a consequence thereof to deny the third defendant's negligence. In fact the proceedings were in 1969 and he did not appeal either against conviction or sentence. Counsel for the plaintiff opened his case, and whilst he was doing so each of the defendants admitted the third defendant's conviction on his own plea for the offence of careless driving in relation to the accident. The plaintiff opened and shut its case and, by arrangement between defence counsel and with the court's consent, the third defendant opened his. Part-way through this defendant's evidence in chief, he admitted that he had pleaded guilty to careless driving and had been fined for it. His counsel then asked "Why did you plead guilty to the charge of careless driving?" and this question was objected to by plaintiff's counsel.

The objection is that this court cannot go into the reasons why the third defendant pleaded guilty because s. 47A of the Evidence Act (Cap. 80) precludes it from doing so. The section reads:

> "47A A final judgment of a competent court in any criminal proceedings which declares any person to be guilty of a criminal offence shall, after the expiry of the time limited for an appeal against such judgment or after the date of the decision of any appeal therein, whichever is the latest, be taken as conclusive evidence that the person so convicted was guilty of that offence."

Counsel relies on a dictum of the Court of Appeal in *Robinson v. Oluoch*, [1971] E.A. 376, at p. 378 that:

> "The respondent to this appeal was convicted by a competent court of careless driving in connection with the accident, the subject of this suit. Careless driving necessarily connotes some degree of negligence, and we think, without deciding the point, that in those circumstances it may not be open to the respondent to deny that his driving in relation to the accident, was negligent."

When I mentioned that I thought that there was an English decision on the Civil Evidence Act 1968 which might help us, he said that it was *Stupple v. Royal Insurance Co. Ltd.*, [1970] 1 All E.R. 390 but that s. 11 of that Act is worded differently from our s. 47A.

Counsel for the third defendant argued that he could, in spite of the section, "go behind the conviction and explain the circumstances in which the conviction was arrived at" to determine the degree of carelessness admitted and, referring to "plea bargaining" said that the third defendant was advised to plead guilty and did so, and "so one should go back behind the conviction to decide the degree of negligence". And whilst admitting that the section "is plain of conclusive proof of conviction" counsel said that this would not embrace conclusive proof of negligence. He then argued (as he put it, in the alternative) that the

section has no application except in other criminal proceedings "where such evidence is required, e.g. how many previous convictions?" and that, in any event, traffic cases are not criminal cases. Counsel for the first defendant adopted this argument, asked me to ignore the English law, and said that this court can go behind a subordinate court's judgment particularly if it is not a final one. He said that he accepted that the plea was admissible in evidence before us but only along with other evidence. I agree that such plea is so admissible: see e.g. my comments in *Panesar v. Lochab*, [1966] E.A. 401 at p. 403, but that is not because of s. 47A. Indeed the section must, in my view, generally lessen the need for the leading of such evidence now that it has been enacted. Counsel for the second defendant supported the argument that the section is inapplicable to civil proceedings mainly, as I understood it, because its marginal note says "Proof of guilt".

In my view the expression "conclusive evidence" in s. 47A means evidence which cannot be the subject matter of dispute, qualification or challenge. The word "conclusive" has a number of meanings such as final, that closes the question, and decisive, and, in the context of the section "conclusive evidence" is evidence of such a nature. It would therefore be wrong to admit evidence to explain why a plea of guilty was tendered for it would at least go to qualify if not to nullify what the legislature has decreed shall be conclusive. I think I should say that there appears to be, at any rate, no reported decision on the point, but I derive considerable comfort from the dictum to which I have referred. One must bear in mind when reading it that the point was not dealt with in the judgment of the court below and that a definitive answer to it was unnecessary to the decision on appeal.

As for the argument that the section has no applicability except to criminal proceedings, it is at once to be pointed out that there is nothing whatever in the section to support such proposition. The section simply lays down that a final judgment of the court (or an appellate court in appeal thereon) cannot be impugned. It must relate both to criminal and civil proceedings. I earlier mentioned the *Stupple* case. It is true, as I said, that the English rule is differently worded, but our provision may have been derived therefrom so that I may not unfairly point to the fact that the *Stupple* case was a civil one. As for traffic cases not being criminal proceedings, myself have before said that, generally speaking, traffic offenders are not criminals in the narrow sense of the word, but I fail to see that because in certain places such cases are dealt with in courts trying no other kind of case, and because they are referred to as "traffic cases" rather than as "criminal cases", they are not cases within the criminal jurisdiction of the courts. S. 49 of the Traffic Act (Cap. 403) lays down that:

> "Any person who drives a motor vehicle on a road without due care and attention . . . shall be guilty of an offence. . . ."

and this surely leaves no room for doubt. Nor am I able to accept the argument that the word "judgment" is to be defined as in a civil case. I think I am right to say that the word is not legislatively defined for general use and that the Criminal Procedure Code does not define it either, though it (*inter alia*) says what it should contain. In *Confiance v. R.*, [1960] E.A. 567, an appeal from Seychelles, the Court of Appeal held, on similar provisions to those which we have, that "convicted of manslaughter" and "9 months imprisonment" amounted to a judgment, albeit a defective one, having regard to the applicable provisions and to the use of the word in English criminal law, where its basic elements are a conviction and sentence. I would just mention two English cases. In *R. v. Plummer*, [1902] 2 K.B. 339 the accused pleaded guilty and sought to change his plea before he was sentenced. At p. 347, Wright, J. said:

> "Another point is raised in this case, namely, whether the court had

> power to allow the appellant to withdraw his plea of guilty. There cannot be any doubt that the Court had such power at any time before, though not after, judgment. . . .”

And in *R. v. McNally*, [1954] 2 All E.R. 372, Lord Goddard, C.J. said:

> “. . . Once sentence has been pronounced there is no power in the court to allow the plea to be withdrawn. . . . In *R. v. Plummer* it was stated plainly . . . that a plea cannot be changed after judgment. . . .”

The argument that the section was never intended to apply where the criminal proceedings were conducted by an inferior court and the subsequent proceedings are in the High Court, is quite unacceptable. I do not doubt that, in so far as traffic cases are concerned (and other criminal cases too) the large majority of the decisions given at first instance are not appealed, but whether that is so or not, the section has its safeguards for if there is an appeal – which I would think embraces a second appeal – it is the last decision which is conclusive. In any event, there is nothing to support the argument in the section itself.

The offence to which the third appellant pleaded guilty, as its definition makes clear, is that there was a lack of care in the manner of his driving and care, or rather the legal duty to take care, is at the root of the tort of negligence. In my respectful view, careless driving does, of necessity, connote some degree of negligence, as the Court of Appeal has said, and the defence cannot be heard to contend that the third defendant was not negligent on the occasion which concerns us in this case. But the Court of Appeal said in the *Robinson* case:

> “But that is a very different matter from saying . . . that a conviction for an offence involving negligent driving is conclusive evidence that the convicted person was the only person whose negligence caused the accident, and that he is precluded from alleging contributory negligence on the part of another person in subsequent civil proceedings. That is not what section 47A states. We are satisfied that it is quite proper for a person who has been convicted of an offence involving negligence, in relation to a particular accident, to plead in subsequent civil proceedings arising out of the same accident that the plaintiff, or any other person, was also guilty of negligence which caused or contributed to the accident.”

The decision, of course, I accept. But the “degree of negligence” as counsel put it, i.e. the issue of contributory negligence, is a live one in the case. How is it to be resolved? It cannot, as I see it, be done by referring back to what happened in the other court; that has never been possible. It must be done by evidence in the instant proceedings. To establish a claim in negligence simpliciter the degree thereof is immaterial for if you are negligent in the smallest degree it is enough to fix you with liability and there is no problem; applying section 47A the conviction spells out negligence and that concludes the matter. But where contributory negligence is concerned, it is different for the court must investigate whether one or other or both of the parties were at fault so as to apportion the damage according to the relative importance of their acts in causing the damage and their relative blameworthiness. What s. 47A does is make it impossible to hold that the person convicted was not negligent at all for the conviction is conclusive evidence that he was, i.e. the court can find that his blameworthiness was small enough; it cannot find that he had none. With all respect I doubt this to be satisfactory but, if I have interpreted the section correctly, that is the result and so I must find.

In the result I uphold the objection and refuse to allow the question to be put.

Order accordingly.

For the plaintiff:
JN Desai (instructed by *Hamilton Harrison & Mathews*, Nairobi)

For the first defendant:
JM Khaminwa (Deputy Counsel to the Community) and *GH Kaunda* (Assistant Counsel to the

Community)

For the second defendant:
JK Kibicho

For the third defendant:
M Owuor

Opa Pharmacy Ltd v Howse & McGeorge Ltd
[1972] 1 EA 233 (HCU)

Division:	High Court of Uganda at Kampala
Date of judgment:	8 November 1971
Case Number:	13/1970 (76/72)
Before:	Oteng J
Sourced by:	LawAfrica

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[1] Costs – Taxation – Notice of – To be given to party who has entered appearance – Advocates (*Remuneration and Taxation of Costs*) *Rules, r.* 9 (*U.*).

[2] Civil Practice and Procedure – Appearance – Meaning – Filing of memorandum not physical appearance – Civil Procedure Rules, O. 9, *r.* 1 (*U.*).

[3] Costs – Instruction fee – Increase with no reasons given – Discretion not properly exercised – Advocates (*Remuneration and Taxation of Costs*) *Rules, Schedule VI, para. M.* (*i*) (*U.*).

Editor's Summary

The respondent filed a memorandum of appearance in the suit but did not appear at the hearing when judgment was given against it. A bill of costs was filed and taxed without notice having been given, the taxing officer allowing double the scale fee. The appellant appealed contending that it should have had notice of taxation and that the taxing officer's discretion to increase the instruction fee had been exercised unjudicially.

Held –

(i) appearance means the filing of a memorandum of appearance;

(ii) the appellant was therefore entitled to notice of taxation;

(iii) the taxing officer had not exercised his discretion judicially as he had given no reason for increasing the instruction fee.

Appeal allowed.

Case referred to in judgment:

(1) *Din Mohamed v. Lalji Visram* (1937), E.A.C.A. 1.

Judgment

Oteng J: Howse & McGeorge Ltd., the respondent in this appeal, sued Opa Pharmacy Ltd., the appellant, claiming Shs. 19,729/- being balance of account allegedly due and owing to the respondent. Appearance was entered by M/s Patel & Shah, advocates for the appellant/defendant on 9/6/67. On 26/6/67 a written Statement of Defence was filed on behalf of the present appellant. On 30/6/68, the suit came before Jones, J., for hearing. On that day, the respondent, a corporation was present by an advocate but the appellant, also a corporation, was, in all manners of ways, absent. Judgment was entered for the respondent in default of appearance of the appellant at the hearing, for Shs. 19,507/- with interest and costs. On 30 October 1968 a bill of costs, claiming in item 2 thereof, "Instruction (fee) to sue" of Shs. 2,500/- was filed and the taxing officer taxed off this items Shs. 500/- allowing, therefore, an instruction fee of Shs. 2,000/-.

The appellant now, being aggrieved by the order of the taxing officer on this item in the bill of costs, appeals, he says, on principle, to this Court. The grounds for this appeal are enlisted in a supporting affidavit, and may be summarised as follows:

(*a*) that the taxing officer erred in law in not issuing a copy of notice of taxation to the appellant's advocates, who were entitled to receive the

same as required by the Advocate's (Remuneration and Taxation of Costs) Rules, hereinafter referred to as "The Rules".

(*b*) that he failed to exercise his discretion judicially in allowing the fee of Shs. 2,000/- which was immensely excessive according to the scale laid down in Schedule VI of the Rules, under the heading "Costs in the High Court", although the bill of costs itself mentioned nothing of the case being unusually complex,

(*c*) that he failed to give reasons for increasing the instruction fee from Shs. 500/- provided under the Schedule to the Rules, to Shs. 2,000/-, and

(*d*) that he erred also in principle, before exercising his discretion, in not giving an opportunity for counsel for the appellant to make representations.

Mr. Ponda, who argued the appeal for the appellant, drew the attention of the court, quite correctly in my opinion, that there was no affidavit filed by the respondent in reply to the one filed for the appellant. This affidavit was filed on 23 November 1970, and counsel for the appellant in the presence and hearing of counsel for the respondent averred also that a copy of the same had been served on a firm of advocates representing the respondent.

Mr. Oder, appearing for the respondent, made no statement in denial of any of these averments. It must, therefore, be taken that no affidavit was filed in reply by counsel for the respondent and that the respondent's firm of advocates had indeed received a copy of affidavit filed by the appellant's counsel. It would also appear, from the record that the bill of costs was taxed *ex parte*. At any rate counsel for the appellant submitted that much and this also was not denied by counsel for the respondent.

Mr. Ponda argued that the taxing officer ought to have issued a notice of taxation of costs to the appellant's firm of advocates since r. 53 of the Rules was inapplicable. His grounds for claiming the inapplicability of this Rule was that the appellant had entered appearance in the manner prescribed by O. 9 r. 1. R. 53 herein referred to by Mr. Ponda is in the following terms:

"53. It shall not be necessary for a notice of taxation of costs to be given to a defendant against whom such costs are being taxed in any case in which the defendant has not appeared in person or by advocate."

The question now remains, what construction is to be put to the single word "appeared" in this rule? If the word "appeared" in the rule means "appeared in fact" then any defendant who on the day the case was called for hearing did not walk or in some way find himself into court and did not thereby physically present himself there, would not be entitled to the notice of taxation. If, however, the word "appeared" is used, not in its factual but in its technical sense and by it is, therefore, meant appeared "in law", then mere absence of the defendant from the court house at the hearing of the suit would not necessarily convert what might be an appearance in law into non-appearance and would not be a circumstance depriving him of a right to be given the Notice of Taxation.

Now O. 9 r. 1 prescribes the mode of entering appearance, that is to say, how, and by this law, a defendant appears. Shaven of all its irrelevant words, it provides:

"(1) a defendant on or before the day fixed in the summons to enter an appearance shall enter such appearance by delivering a memorandum in writing dated on the day of its delivery . . . and containing the name of the defendant's advocates or stating that the defendant defends in person. . . ."

This is a very far cry from being physically present in the court house on the day a case is called out for hearing. It is a process a defendant can easily carry out by delivering the necessary document on or before a date mentioned in the summons, a date not said and is quite known to be not, necessarily the date a case is called out for hearing. So, in this sense, such a defendant could still have entered appearance though on the hearing date he might not be anywhere near the court house.

It would, therefore, seem that a defendant who enters appearance in this mode, that is to say, who in law "appears", does not necessarily have to be physically present in court, in order that he be considered to have in law appeared. It would seem, too, that to appear in the manner and style enshrined in O. 9 r. 1. means simply to deliver a written and dated memorandum showing the name of the defendant's advocates or stating that the defendant appears in person. It has nothing whatsoever to do with being physically present in court on the day the case is called for hearing. If this is right then a defendant who complies with O. 9 r. 1 but does not even as much as march or otherwise find himself into court to be there present when the case is called out or whose advocate does not do so, does not thereby render a subsequent trial in the same case an *ex parte* trial. This seems to be supported by a statement of Sir Joseph Sheridan, C.J., in *Din Mohamed v. Lalji Visram* (1937), E.A.C.A. 1, a neighbouring country's persuasive case, where the Chief Justice had said:

> "If counsel elected to leave the court and take no further part in the case that fact does not constitute the proceedings *ex parte*."

The principle must equally apply if it is the defendant, instead of counsel, who does so.

The question still remains, what is the meaning to be given to the word "appeared" in the rule? Is that word used there in its legal sense as meaning a step taken by a defendant and prescribed by O. 9 r. 1? Or is it used in its factual sense as meaning being physically present in court?

Now, the word "appear" is defined in the 1964 edition of the Concise Oxford Dictionary as: "become, be visible, present oneself formally, publicly be published". It is there also stated that it is a verb intransitive – one which does not take a direct object. This is the factual sense of the word. In that sense one speaks of a person appearing drunk, or before a committee, or in an examination, etc. If the word was used in this sense, one then would expect r. 53 to say at least where the defendant was to be, or was to be visible, or where or in what he was to present himself formally, or publicly published or what he appeared to be. The short sentence in r. 53, when examined with a view to satisfying one in this respect, leaves one quite unsatisfied; it mentions nothing of where or in what the defendant "*has not appeared*". Law must be complete and make sense, and as this construction would have the effect of giving the word an incomplete meaning and make no sense, it cannot be that the word "appeared" in r. 53 is there used in this factual sense.

If, however, it is given the meaning that the defendant has taken the steps as laid down in O. 9 r. 1, it would make sense. The word "appearance", which is derived from the word "appear", is defined in the Annual Practice, "The White Book" – Vol. I at p. 88 as "process by which a person against whom a suit has been commenced

(*a*) shows his intention to defend the suit, and

(*b*) submits himself to the jurisdiction of the court . . .".

By this definition, and in conjunction with the mode laid down by O. 9 r. 1, the word "appear" would mean "to take a step showing an intention to defend

a suit and submit to jurisdiction". Much the same thing is said by Odgers in Pleading and Practice, 16th ed., when at p. 9 he says of it ". . . (it) merely entails leaving a memorandum . . . in the Court. . . ." By corollary a person who has not "appeared" has not "taken such a step". This construction would give a sense of completion to the sentence in r. 53. In my opinion the proper construction, therefore, to be given to that word as used in r. 53 is the one that gives it the meaning of taking the steps ordained by O. 9 r. 1. The word is used in the sense connoting the appearance entered for the appellant on 9 June 1967. It does not mean non-attendance in court and of which appellant was certainly guilty on 30 June 1968.

Therefore, provided a defendant has taken the process spelled out by O. 9 r. 1, he nevertheless continues to "appear" in law, even if he may leave the court room.

In that sense, r. 9 of The Advocates (Remuneration and Taxation of Costs) Rules would apply to a defendant who was absent from the court on the hearing date. This rule provides that a notice of taxation is to be given by the taxing officer to a party lodging the bill and that a copy of such notice is to be issued to the other party endorsed on the bill of costs and entitled to receive the notice of taxation.

The appellant in the instant appeal was entitled to a copy of such notice as is required by r. 9.

This interpretation alone of the word would dispose of this appeal but there were other grounds of appeal.

Counsel for the appellant had also complained that the taxing officer had not exercised his discretion judicially in allowing instruction fee of Shs. 2,000/-. In this respect it must be noted that according to paragraph C of Schedule VI to the Advocates (Remuneration and Taxation of Costs) Rules, to sue or defend in a case other than in an ordinary suit where no appearance is entered or in one to which the provisions of O. 33 of the Civil Procedure Rules apply and where the subject matter is between Shs. 10,000/- and Shs. 20,000/-, the normal instruction fee allowable is Shs. 1,000/-. The taxing officer, however, is given discretion under proviso (i) to paragraph (*m*) of taking into account other fees and allowances to an advocate in respect of the work to which they apply, the nature and importance of the case, the amount involved, the interest of the parties, the general conduct of the proceedings and all other relevant circumstances and taking any of these into consideration, may therefore increase the instruction fee.

Mr. Ponda, for the appellant, complained that the taxing officer gave no reason whatsoever for doubling the instruction fee. In my opinion I consider this a legitimate complaint. Had the taxing officer given his reasons why he chose to give an instruction fee of Shs. 2,000/- at least there would be known the reason for the inflation. As it is, he has denied the appellant a reason for his choice of the figure, with the result that it is impossible to say what was in the taxing officer's mind. The failure to give any reason for the choice of Shs. 2,000/-, surely must, therefore, amount to an arbitrary determination of the figure and is not a judicial exercise of one's discretion.

In the result, the Taxing Officer's order, made in violation of r. 9 of the rules, is unlawful, cannot be justifiably allowed to stand and is, therefore, set aside. This appeal is allowed with costs of both the appeal and of the application to appeal out of time.

It is further ordered that the instruction fee in the bill of costs be remitted to the taxing officer and for him to tax the same ab initio, on notice thereof to the respondent.

Order accordingly.

For the appellant:
VN Ponda (instructed by *Ponda, Asaria & Co*, Kampala)

For the respondent:
Oder

Mugenyi v Securicor (U) Ltd
[1972] 1 EA 237 (HCU)

Division:	High Court of Uganda at Kampala
Date of judgment:	29 February 1972
Case Number:	437/1971 (78/72)
Before:	Mead J
Sourced by:	LawAfrica

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[1] Animal – Dog – Liability for – Trained to attack humans – Absolute liability of owner.

Editor's Summary

The plaintiff was attacked and bitten by a guard dog which was loose on bank premises to which the public had access.

The dog had been trained to attack people on the order of its handler. On the plaintiff's claim for damages the defendant contended that it had to be shown that it knew that the dog would attack without orders.

Held –

(i) the dog was not indulging its natural propensities but it was doing what it had been trained to do;

(ii) the defendant was accordingly liable and the fact that the dog acted without orders was irrelevant.

Judgment for the plaintiff.

Cases referred to in judgment:

(1) *Filburn v. People's Palace & Company* (1890), 25 Q.B.D. 258.

(2) *Buckle v. Holmes*, [1926] 2 K.B. 125; [1926] All E.R. Rep. 90.

(3) *Sycamore v. Ley* (1932), 147 L.T. 342; [1932] All E.R. Rep. 97.

(4) *Manton v. Brocklebank*, [1923] 2 K.B. 212; [1923] All E.R. Rep. 416.

(5) *Fitzgerald v. Cooke Bourne* (*Farms*) *Ltd.*, [1963] 3 All E.R. 36.

Judgment

Mead J: The plaintiff Yesero Mugenyi, an advocate, claims damages from the defendant company for injuries sustained by the plaintiff as a result of an attack on him by a guard dog belonging to the defendant company.

The plaintiff went to Grindlays Bank (Uganda) Ltd., Kampala Road, Kampala on 27 March 1971. Whilst in the bank the plaintiff was bitten by the defendant-company's dog. This is admitted by the defendant. The dog was in the charge of Peter Obbo, employed by the defendant as a dog-handler.

[The judge considered the evidence concerning the incident and continued.]

I find that at the moment the dog attacked the plaintiff, the plaintiff was close to Miss Kamya's counter. The plaintiff was not talking with Obbo. The dog was loose, and Obbo was some distance away from the dog and the plaintiff.

Although it was suggested to the plaintiff in cross-examination the cause of the dog attacking the plaintiff was because the plaintiff had irritated the dog, no evidence was given by Obbo to support that suggestion. I find there was no justification for the dog attacking the plaintiff.

Mr. Kateera submitted that for the defendant to be held liable the onus was on the plaintiff to show scienter, that the dog was dangerous and this was known to the defendant. Mr. Kateera submitted the defendant was, as he put it, entitled to a first bite by the dog before liability could attach. No evidence on this point was led by the plaintiff. The defendant's witnesses, Peter Obbo and Frederick

Baleka, the latter being a trainer of the guard dogs and dog handlers, gave evidence of the training record and character of the dog that bit the plaintiff. The dog was identified by the name Cherie. For ease of reference I will refer to the dog by that name. The plaintiff said in his evidence that after the incident he reported the matter to the defendant's personnel manager, who told the plaintiff Cherie had previously bitten another dog. That is not evidence of a propensity to bite a human being. The personnel manager was not called as a witness. I find Cherie had no previous record of attacking or biting a human being. Both Obbo and Baleka said the guard dogs are taught to attack human beings on being ordered so to do by their handler. Obbo said Cherie had been so trained. Both these witnesses described Cherie as a fierce dog. In cross-examination Baleka said the purpose of keeping guard dogs on a chain was to prevent them from attacking people. Baleka agreed, in cross-examination, that dog handlers were instructed not to let the dogs run loose. In his evidence he had given it as his opinion that if a guard dog were not on a lead, running loose, it would not attack a human being. The fact of this particular case is that Cherie did bite.

With this evidence of the training and character of Cherie as back-ground, I will consider the defendant-company's submissions, and the decisions to which the court has been referred. None of the decisions is an East African decision, all are English. I have myself made some slight research and have not been able to find any reported East African decision on a claim of this nature.

Sycamore v. Ley (1932), 147 L.T. 342 was cited for the proposition that a dog is an animal that is not of fierce nature, and is classified as of mild nature not ordinarily doing mischief of the nature in question. This proposition has long been accepted by the English courts and I have no doubt it has been accepted by our courts. That is a general proposition. I agree with the law as stated by Scrutton, L.J. in this case, that before the owner of a dog can be made liable in any particular case it must be shown that the particular dog is of a fierce nature and that this is known to the owner of the dog. Mr. Kateera distinguished a dog from animals of accepted fierce nature by reference to *Filburn v. People's Palace & Aquarium Company* (1890), 25 Q.B.D. 258, which case is cited in the judgment of Scrutton, L.J. I agree a dog does not come within the class of wild animals described in that case, tigers, gorillas, elephants, various kinds of monkeys and zebra. The dictum of Greer, L.J. at p. 345 in *Sycamore* is of assistance.

> "A dog ordinarily is presumed to be a tame animal, and its owner is not responsible for what it may do in the way of biting, but if it has proved itself to his knowledge not to be of the presumed tame character which the law attributes to dogs, then he is liable absolutely if it escapes from his control and causes damage by biting any human being. It does not matter whether he has taken the greatest precaution that might be taken to keep it under control, his liability is absolute."

In further support of his submission on this proposition Mr. Kateera referred to *Manton v. Brocklebank*, [1923] 2 K.B. 212 at p. 232. I agree that decision supports the general proposition that where an animal is of a class that is not naturally of a mischievous disposition the owner is not responsible for injuries of a personal nature caused by the animal. The exception to this proposition is stated by Atkin, L.J. at pp. 232–233 as being that where an animal of this class is shown to have acquired some vicious or mischievous habit or propensity and the owner is shown to have been aware of the fact, the owner will be liable. The Lord Justice continued: "If the animal has such vicious propensity, and the owner knows of it, he is bound to take such care as he would of an animal which is ferae naturae, because it forms an exception to its class." Mr. Kateera then

cited *FitzGerald v. Cooke Bourne* (*Farms*) Ltd., [1963] 3 All E.R. 36 at p. 40 as quoting with approval the decision in the *Manton* case. The *FitzGerald* case involved two young unbroken fillies. It was held that a filly being an animal mansuetae naturae the plaintiff was required to prove knowledge on the part of the defendants that the fillies were vicious and dangerous to people.

Atkin, L.J., referring to the *Manton* decision in his later judgment in *Buckle v. Holmes*, [1926] 2 K.B. 125 at p. 129, said "*Manton v. Brocklebank* makes it quite plain that the mere fact that an animal mansuetae naturae has a natural propensity to injure in some circumstances is not sufficient to make the owner liable".

The decisions to which the court has been referred by the defendant support the proposition that an owner of an animal coming within the class of mansuetae naturae can only be liable for personal injury caused to a human being if it is shown that the animal has acquired some vicious habit or propensity, of which the owner is aware, causing it to be a danger to human beings. I find the dicta expressed in those decisions strongly persuasive.

The dog Cherie has been deliberately trained by the defendant to attack human beings on being ordered so to do by its handler. The dog Cherie is described by its trainer and handler as being a fierce animal. Such being the case the defendant cannot claim Cherie to be no more than an ordinary dog. In attacking the plaintiff Cherie was not indulging in a natural propensity, the dog was doing what it had been trained to do. The fact that the dog Cherie has been trained to attack human beings only when ordered so to do is no defence. Cherie is trained to attack human beings, and if the dog attacks without being ordered to do so the defendant is liable. The owner of a dog who trains it to attack human beings does so at his peril. It is his duty to keep the dog under such restraint that injury to innocent persons will not result. The owner is not entitled to the benefit of first bite to find out whether or not the training has been successful. The defendant having so trained Cherie that the dog has a vicious propensity to attack human beings, and having failed to keep the dog under proper restraint, is liable to the plaintiff.

The claim for special damages is not seriously disputed. The claim was proved. I allow the claim for special damages at Shs. 706/-.

The injuries to the plaintiff were described by Dr. B. J. Patel, witness for the plaintiff, as being of a very minor nature. It has not been argued for the defendant that the injury to the plaintiff's elbow was aggravated by the medical treatment. In all the circumstances of the attack and the subsequent pain and shock suffered by the plaintiff I award the plaintiff Shs. 1,500/- general damages.

Judgment for the plaintiff.

J Sendege (instructed by *Sendege & Co*, Kampala).

For the defendant:
J Katera (instructed by *Hunter & Greig*, Kampala)

Lusiya v Kampala City Council
[1972] 1 EA 240 (HCU)

Division: High Court of Uganda at Kampala

Date of judgment: 28 April 1972

Case Number: 110/1971 (80/72)

Before: Kiwanuka CJ

Sourced by: LawAfrica

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[1] Damages – Fatal Accident – Working life of deceased – to age 48 *only.*

[2] Damages – Fatal accident – Dependants – Existence of all dependants to be proved.

Editor's Summary

The court assessed the damages for the death of the plaintiff's husband. She alleged that she had four children but could not produce the fourth. It was contended that the deceased would have had a working life to the age of 58.

Held –

(i) no damages should be awarded in respect of any dependant who could not be produced in court;

(ii) in the circumstances of Uganda a working life to the age of 48 only would be accepted.

Judgment accordingly.

No cases referred to in judgment

Judgment

Kiwanuka CJ: This is a running down action in which the plaintiff, a widow, claims damages against the Kampala City Council for the death of her husband, who died in a motor accident. The action is brought under the Law Reform (Miscellaneous Provisions) Act and it is brought on behalf of herself and that of her children. Interlocutory judgment was entered against the defendant on 7 April 1971, under O. 9 r. 6 of the Civil Procedure Rules. The cases was then listed for the assessment of damages.

On 8 February this year the plaintiff appeared before me and gave evidence as to her age and the age of her husband, and as to how much money her husband used to get by way of salary at his place of employment. It turned out that her husband was employed by the defendant and she said that he used to get Shs. 150/- a month. Of that he gave her Shs. 90/- for the maintenance of the home and for paying rent. This rent was Shs. 50/- a month, so that what remained for home maintenance was Shs. 40/-. She said that her husband's age was 28 years at the time when he died. She was not quite certain but said he used to say so. As for the ages of her children, she said that the first-born was 7 years and the next one was 5 years, the third one was 4 years and the fourth was 2.

I had my doubts about the existence of these children and I asked her to produce them. I was then told that two of them were in Buyaga County in Bunyoro District, staying with a relative whose name was not disclosed while the other two lived with her at Nakulabye, Kampala. I asked counsel to bring the children today when I would resume the hearing of this case.

Today, the plaintiff came with three children. Having looked at the children I asked her to tell me the ages of those children. She said the first, Bakomaga, was aged 9, the second one, Kalebe, was aged 7 and the third, Tindiwegi, was aged 6, but she said she was not quite sure as she knew no dates. She said the other child could not be brought because it was not available when she went for it. In court on 8 February the plaintiff had told me that the third child was a

girl and she was aged 4 years. Now this child turned out to be a boy and she said he was 6 years old. But then I asked the children certain questions, in order to confirm that she was in fact their mother. The first boy said that the plaintiff was his mother and that his father was called John and that he was dead. He died in a motor accident. Then I asked the second child. He said his father was dead, he was staying with his mother, and that the plaintiff was his mother. Then I asked him about the last child. He said that child was also his mother's child and that the child was his brother. Although I did not record this, it gave me satisfaction that at least those three children were the children of the plaintiff and her husband who is now dead. But I do not believe that there was another child, because this young child here – the second boy – said that the other boy, the youngest, was the last one. In any case, even if there was another child, as I told counsel in court on 8 February this year, I would not make any award in respect of that child unless I saw it. Counsel should be warned that in cases of this kind when an action is filed claiming damages for dependency, all claimants must be produced in court. The court must see them and make sure that the ages stated in the plaint are correct because these awards go by the ages of the children; and the courts should be on their guard to watch against fictitious claims where several children are alleged when in fact they are not there. I say this because counsel told me in court that ordinarily, in cases of this kind, courts did not bother to ask for the children to look at them. In my judgment this is wrong, because a court which is out to do justice to all the parties ought not to grant damages to claimants who have not appeared before it. It is not unusual that people died after claims have been filed in court. Unless these claimants are seen awards might be made to people who are no longer alive, which is not the intention of the law applicable to cases of this kind.

Now, coming to the measure of damages to be awarded, I feel that I have not been greatly assisted by this plaintiff. Since she did not know the ages of her children it is very difficult for me to rely on her word with regard to the age of her husband. Counsel for the plaintiff ought to have brought a certificate from the doctor who examined the body of this man to throw some light on the age of the man who died. It is not unusual that considerably older men get married to young women so that the age of the wife cannot throw any light on the probable age of the husband.

Mr. Mugabi for the plaintiff said that taking the age of the deceased to be 28 years as stated by the plaintiff, he would have had another 30 years of working life. He said also that the husband was giving to his wife the sum of Shs. 1,080/- per annum, and following that line of argument, during 30 years the dependants' allowance would have amounted to Shs. 32,000/-. This was if I believed the wife that the husband was aged 28 years. But as I have said before, I do not believe it. In any case I do not think it is established that men in this land of the type of the deceased have a working life of up to 58 years. I think courts have decided it is less than that. I am prepared to accept the figure of 20 years of working life, in which case the amount of money would be Shs. 21,600/-.

There will therefore be judgment for the plaintiff in that sum divided amongst the four people, that is, the plaintiff and the three children who appeared before me, as follows:

The wife, Lusiya Nyamalembo will get	Shs. 8,000/-
The first-born S. Bakomaga will get	Shs. 3,800/-
The next boy, Kalebe, will get	Shs. 4,800/-
and the last child, F. Tindiwegi, will get	Shs. 5,000/-

The money payable to the minor children will be paid to the Public Trustee to

be administered by him for their maintenance and education until they become of age, or until the fund gets exhausted.

Order accordingly. Costs of the action to the plaintiff.

Order accordingly.

For the plaintiff:
E Mugabi (instructed by *Mugabi & Co*, Kampala)

The defendant did not appear.

Mweu v Kabai and another
[1972] 1 EA 242 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	24 March 1972
Case Number:	212/1971 (81/72)
Before:	Trevelyan J
Sourced by:	LawAfrica

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[1] Limitation of Actions – Personal injuries – Extension of time – Knowledge of liability of negligent driver – Ignorance of limitation period not a material fact – Limitation of Actions Act 1968, *s.* 30 (*K.*).

Editor's Summary

The applicant applied for leave to file action outside the limitation period on the ground that material facts were outside his knowledge. He had been injured in a traffic accident in respect of his driving in which he was subsequently imprisoned. It was contended that it was outside his knowledge that his injuries were attributable to the other driver's negligence, and that he did not know the statutory period of limitation.

Held –

(i) knowledge of possible legal liability is knowledge of a decisive character;

(ii) the applicant knew that the other driver could be sued;

(iii) ignorance of the statutory period of limitation could not be a material fact within the section (dicta of Salmon, L.J. and Cross, L.J. in *Drinkwater v. Joseph Lucas* (6) followed).

Application dismissed.

Cases referred to in judgment:

(1) *Clark v. Forbes Stuart*, [1964] 2 All E.R. 282.

(2) *Goodchild v. Greatness Timber Co*., [1968] 2 All E.R. 255.

(3) *Pickles v. National Coal Board*, [1968] 2 All E.R. 598.

(4) *Skingsley v. Cape Asbestos Co*., [1968] 2 L1. Rep. 201.

(5) *Newton v. Cammell Laird & Co*., [1969] 1 All E.R. 708.

(6) *Drinkwater v. Joseph Lucas*, [1970] 3 All E.R. 769.

(7) *Smith v. Central Asbestos Co*., [1971] 3 All E.R. 206.

(8) *Re an application by Peter Musyoki* (H.C. Misc. C.C. 106 of 1971), unreported.

Judgment

Trevelyan J: This is an application by Stephen Mweu for leave to file a suit for damages for personal injuries which he claims to have suffered on 19 August 1968, a date which is outside the period of three years laid down by s. 4 (2) of the Limitation of Actions Act, 1968. The application can only succeed if he can avail himself of the provisions of s. 27 of the Act which enacts that s. 4 (2) shall not afford a defence to an action founded on tort where

the action is for damages for negligence, nuisance or breach of duty, the damages claimed consist of or include damages in respect of personal injuries of any person, the court gives leave for the purposes of the section, and the requirements of sub.s. (2) thereof "are fulfilled in relation to the cause of action". This subsection reads:

> "The requirements of this subsection are fulfilled in relation to a cause of action if it is proved that material facts relating to that cause of action were or included facts of a decisive character which were at all times outside the knowledge (actual or constructive) of the plaintiff until a date which . . ."

in this case need not concern us, for the applicant is within it. But we do need to know what, in law, can amount to such material facts, and the answer is to be found in s. 30 (1) (*a*) of the Act which provides that:

> "In sections 27, 28 and 29 of this Act, any reference to the material facts relating to a cause of action is a reference to one or more of the following: (*a*) the fact that personal injuries resulting from the negligence, nuisance or breach of duty constituting that cause of action; (*b*) the nature or extent of the personal injuries resulting from that negligence, nuisance or breach of duty; (*c*) the fact that the personal injuries so resulting were attributable to that negligence, nuisance or breach of duty, or the extent to which any of those personal injuries were so attributable."

Sub.s. (2) provides that a material fact shall be taken to be of a decisive character if a reasonable person knowing that fact, and having obtained appropriate advice in respect of it, would have thought that he had a reasonable chance of succeeding and getting damages of such an amount as would justify the bringing of the action; sub.s. (3) lays down that a fact shall be taken to have been outside a person's knowledge when he did not know it, in so far as it was capable of being ascertained he took all necessary steps to ascertain it, and that in so far as there existed and were known to him facts from which, with appropriate advice, he might have ascertained or inferred it, he took all reasonable steps to take that advice, all three of these requirements being established; sub.s. (4), in view of s. 2 (2) (*b*) does not need consideration; and sub.s. (5) defines "appropriate advice" for the purpose of the section as the advice of a competent person qualified in his particular sphere to advise "on the medical, legal or other aspects of that fact or those circumstances as the case may be". I will only add that the application for leave is, under s. 28, made *ex parte*, so that even if leave be given the issue may be re-activated in the proceedings authorised, and that the sections to which I have drawn attention are based on, and follow, those (though they are otherwise numbered) in the English Limitation Act, 1963. The application, then, is based on s. 27. On what facts is it based?

In his supporting affidavit Mr. Mweu says that on the day concerned he was driving an omnibus and was injured, losing an eye, when his vehicle collided with another such vehicle. Four people were killed and he and the other driver were charged with causing death by dangerous driving. He was convicted and jailed for the offence on 23 May 1969 and was let out of prison on 21 September, 1971. (His counsel tells me that the other driver was similarly convicted and sentenced.) He says that whilst he was in prison he often tried, through prison officers to obtain "the services of lawyers to file civil suit for recovery of damages in respect of my injuries . . . but all the time I was told by the prison authorities that I would have to wait until I got released from prison". He goes on to say that whilst he was trying to get the prison authorities to let him have a lawyer, he was unaware that the period of limitation was three years. But in a supplementary affidavit filed without leave long after the application was filed, but

which I allowed to be read, he says that he believed that he had no right to sue the other driver because he had been convicted, and that he wanted to know, from a lawyer, if he could sue the other driver. Counsel, indeed, told me that the applicant "genuinely believed" that he had no such right. But, with all respect to him, I will not accept it as being so. Not only are the contents of the second affidavit intrinsically contradictory though, perhaps, it may be argued that one can reconcile what is said in it, but on the basis of the first affidavit, they are not true. Nothing can be clearer than this, that the applicant first said, on oath, that he often tried to get the services of a lawyer so as to file a suit to recover damages for his injuries. Nor can it be said that the applicant sought advice from the prison authorities or intended (according to his first affidavit) to take advice from lawyers as to whether an action would likely be successful. It was simply his intention to file a suit.

When the application came before me, I asked counsel to tell me upon which of the material facts within s. 30 he relied, for he could rely on none other, and he said that it was paragraph (*c*). Accordingly, he relies on the fact that it was outside the applicant's knowledge that his personal injuries were attributable to the other driver's negligence. I cannot see how it can be so. As his injuries resulted from the collision and there was a cause of action in his favour to be founded in negligence in regard thereto that negligence would have to be charged against the other driver. That, Mr. Mweu must have known and, on his affidavits, though more clearly on the second one, he did know. The case of *Pickles v. National Coal Board*, [1968] 2 All E.R. 598 indicates that knowledge of possible legal liability is knowledge of a decisive character. I do not see how the applicant, having sworn his first affidavit, can contend that he did not at all times know that there was a possible legal liability in the other driver, to say the least.

The facts of this case are quite different from those ordinarily to be found in cases of industrial injuries and indeed from all the other cases to which I have referred, namely: *Clark v. Forbes Stuart*, [1964] 2 All E.R. 282, *Goodchild v. Greatness Timber Co*., [1968] 2 All E.R. 255, the *Pickles* case, *Skingsley v. Cape Asbestos Co*., [1968] 2 L1. Rep. 201, *Newton v. Cammell Laird & Co*., [1969] 1 All E.R. 708, *Drinkwater v. Joseph Lucas*, [1970] 3 All E.R. 769, *Smith v. Central Asbestos Co*., [1971] 3 All E.R. 206 and the unreported decision of my brother Madan, J. in *Re an application by Peter Musyoki* (H.C. Misc. C.C. 106 of 1971).

Edmund Davies, L.J. pointed out in the *Smith* case that the English Act was "presumably passed in order to deal with a special set of circumstances", i.e. that it had a limited purpose, and so did Lord Denning, M.R. in the *Clark* case when he said:

> "This is the first application which we have had under the new Limitation Act 1963. The Act was designed to remedy a hardship whereby a person might suffer from a disease such as pneumoconiosis, caused by somebody's fault, and not know of it until after the three year's period of limitation had expired."

And Edmund Davies, L.J., also in the *Smith* case thought "the whole setting of the legislation is of vital importance". But I am not to be taken as suggesting that cases such as that which the applicant wishes to bring cannot be the subject of a successful application.

That the prison authorities may have afforded Mr. Mweu no assistance in obtaining the services of a lawyer does not appear to me to be capable of being a material fact as defined. As a matter of fact he could have employed one long before he was sentenced for about nine months passed between the date of the accident and the date when he was imprisoned. He could have employed one whilst he was imprisoned notwithstanding the lack of assistance; he had but to write or get a letter written. He has not suggested that he was stopped from communicating, within the Prison rules, with the outside world. And so we are left to consider whether it avails him that he did not know the statutory period of limitation concerned. I have found nothing exactly on point, but there are dicta which assist me in arriving at a decision. Thus, in the *Drinkwater* case the question arose, though it was not conclusively answered, as to whether a mistaken belief that the Act barred a claim could amount to a material fact, on which Salmon, L.J. said:

> "I should say, however, that I find some difficulty in seeing how one could fit a mistake about such a fact (if it be a fact) into the statutory definition of material facts"

and the other judge, Cross, L.J. commented:

> "But like Salmon, L.J. I find it difficult to bring that ignorance on his part within the wording of [material facts]."

It seems to me, also, that ignorance of the period of limitation cannot be fitted into any one of the three heads of the statutory definition. I think that there is, perhaps, further if small, support for this view in the comment which Stamp, L.J. made in the *Smith* case when he emphasised:

> ". . . that the 'cause of action' spoken of . . . is the cause of action which the plaintiff seeks to establish *and which but for the provisions of the Act of* 1963 *would be statute barred*."

The italics are mine.

I recognise that I have no discretion in the matter one way or the other. The *Skingsley* case says, and says clearly enough, that if evidence showing *prima facie* that the requirements of the Act are satisfied, leave should be given leaving the defendant to challenge the facts in the action in due course. But I do not apprehend that to mean that because a statement in support of the application is made, it *must* be accepted. Generally speaking it will be or it will become the practice that it will be, but where, as in the present case, that statement is contradicted by the applicant himself, it is not necessarily for acceptance and, in this case it is for rejection. I refer, of course, to the statement in the second affidavit of the applicant not knowing of his rights. The *Goodchild* case iterates a judge's responsibility in applications of this kind. Lord Denning, M.R. said:

> ". . . a judge in chambers should not grant leave as of course. He should carefully scrutinise the case to see whether it is a proper one for leave"

to which the other two members of the court signified their positive approval; as, with respect, do I.

One may, perhaps, have some sympathy for the applicant. It may be, I put it no higher, that if all that needed to be proved were "good cause" leave might have been granted, but the expression "material facts" is not to be equated with it. When one considers the affidavits filed, the applicant has not brought himself

within s. 27. It seems to me impossible to hold other than that he at all times knew that the personal injuries which he sustained resulted from the accident with the other vehicle. He knew who the driver of that vehicle was. He understood that if he wished to claim damages in negligence for his injuries, both in law and on the facts that driver could be sued. That is decisive against him.

Application dismissed.

For the applicant:
AB Shah (instructed by *Shah & Parekh*, Nairobi)

Nazziwa v Serwaniko and another
[1972] 1 EA 246 (HCU)

Division:	High Court of Uganda at Kampala
Date of judgment:	5 February 1972
Case Number:	971/1971 (82/72)
Before:	Fuad J
Sourced by:	LawAfrica

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[1] Civil Practice and Procedure – Pleading – Application to strike out written statement of defence on grounds other than that of the written statement of Defence discloses no cause of action – Facts and issues raised in the pleading which are in dispute – Application misconceived – Civil Procedure Rules, O. 6, *r.* 29.

Editor's Summary

The plaintiff applied for an order that the defence be struck out on the grounds that certain of the facts stated therein were incorrect, and that the defence was irrelevant, vexatious and frivolous and would not succeed. An affidavit challenging the facts alleged was filed.

Held – The application was wholly misconceived. The functions of the trial court in determining where the truth lay could not be usurped.

Application dismissed.

Cases referred to in judgment:

(1) *Attorney-General of the Duchy of Lancaster v. London & North Western Railway Co.* (1892), 3 Ch. 274.

(2) *Wenlock v. Maloney*, [1965] 1 W.L.R. 1238.

(3) *Baxi v. Bank of India*, [1966] E.A. 130.

Judgment

Fuad J: This is an application under O. 6 r. 29 for an order that the defence filed in the suit be struck out. The plaintiff, who is the present applicant, has sued the defendants jointly and severally for special and general damages. The relevant paragraphs of the defence are as follows:

> "3. The first defendant contends that in 1965, Lakeri Nakaima who is the mother of the plaintiff was the owner of both the land and the sugar cane plantation which is the subject of these proceedings measuring approximately 2½ acres in area. Lakeri Nakaima gave verbal authority to the first defendant in 1965 to sell the cane for her.
>
> 4. The first defendant sold the cane to the second defendant during the month of December 1970 under an oral agreement of sale which

stipulated that the price the second defendant would pay for each lorry load of cane cut would depend on the current market price prevailing at the time the cane was cut. The first defendant agreed to this arrangement because he knew the second defendant well and had in 1968 sold cane to it under a similar arrangement.

5. At no time was the first defendant aware that Lakeri Nakaima had either sold or given away the sugar plantation to the plaintiff. Neither Lakeri Nakaima nor the plaintiff ever communicated the change of ownership to him.

6. The second defendant admits entering the land and cutting 6 lorry loads of cane before it was stopped by the plaintiff. The value of the cane cut is Shs. 600/-, i.e. Shs. 100/-for each lorry load of 5 tons.

7. The second defendant denies trespassing on the plaintiff's land. It entered the land by virtue of an enforceable agreement with the first defendant for the purpose of cutting cane and for no other purpose."

The application is stated in the notice of motion to have been made on the following grounds:

"(*a*) that the said Lakeri Nakaima is not the owner of the sugar cane plantation;

(*b*) that the said Lakeri Nakaima has never at any time authorised the first defendant to sell sugar canes on her behalf or at all;

(*c*) that the whole defence is irrelevant, vexatious and frivolous and cannot therefore succeed."

There are two affidavits, one by Lakeri Nakaima herself, in support of these averments. Although it is not very clear upon which part of r. 29 the applicant relies, it seems that she is really saying more than that the defence discloses no reasonable defence and relies on the other grounds mentioned in the rule. If the only ground upon which the application is made had been that the pleading attacked disclosed no reasonable defence, then it is clear that the court would be precluded from looking at the affidavits, *Baxi v. Bank of India*, [1966] E.A. 130, applying *Attorney-General of the Duchy of Lancaster v. London & North Western Railway Co.*, [1892] 3 Ch. 274. In the circumstances, therefore, I will peruse the affidavits.

I should say at once that as the pleadings stand, facts and issues have been raised which are in dispute. The defence pleaded, if it succeeds, is a valid one which would defeat the plaintiff's claim. It is only by accepting the facts stated in the affidavits as true, that one could reach the conclusion that the defence has no merit.

I consider that this application is wholly misconceived for if it were to succeed such an application could be made in every case and the court hearing the application could usurp the functions of the trial court in determining where the

truth lay. A case would thus be decided on affidavits only, without oral evidence As was pointed out in *Wenlock v. Maloney*, [1965] 1 W.L.R. 1238, the English courts will not permit such a practice and I am sure that the courts of Uganda must not encourage this type of application. There is no short cut. The case will have to be heard in the usual way and judgment be given in accordance with the evidence called at the trial.

For the reasons I have given, I dismiss the application and the respondents/defendants are awarded the costs of this application, in any event.

Order accordingly.

For the plaintiff:
Nsubuga-Nsambu (instructed by *Nsubuga-Nsambu & Co*, Kampala)

For the defendant:
GL Binaisa QC and *Miss U Pradhan* (instructed by *Binaisa & Co*, Kampala)

Russell v Principal Registrar of Titles
[1972] 1 EA 249 (CAN)

Division:	Court of Appeal at Nairobi
Date of judgment:	14 April, 1972
Case Number:	55/1971 (68/72)
Before:	Spry V-P, Law and Mustafa JJA
Sourced by:	LawAfrica
Appeal from:	High Court of Kenya – Simpson, J

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[1] Land – Agricultural – Control – Consent – Option – Whether consent required to grant and exercise of option.

Editor's Summary

In December 1964 consent was given under s. 218 of Schedule 2 of The Kenya Independence Order in Council 1963 by the appropriate Divisional Board to a transaction between the appellant and the Agricultural Settlement Trust, firstly to a five year lease of agricultural land and second to an option to the appellant to purchase the land at a fixed price during the lease and to an option to renew the lease on terms to be agreed.

The lease when executed in 1965 contained the option to purchase but not the option to renew.

After the expiry of the term of 5 years the appellant presented for registration two documents, the first extending the lease for two years and the second exercising the option to purchase.

The respondent refused to register the documents on the ground that no consent to them had been obtained under the Land Control Act (Cap. 302) which had come into force since the granting of the original consent.

On reference to the High Court it was held that consents were required not only to the granting of the options but also to their exercise and that the transactions were therefore void.

The appellant appealed contending that no further consent was required for the exercise of an option to which consent had been given. The respondent conceded that a valid consent given under the previous legislation would not be affected by the enactment of the Land Control Act, but that the exercise of an option was a new transaction.

Held –

(i) the purported renewal of the lease was void as no consent had been obtained to the terms of the renewal which had not been previously agreed;

(ii) the purported exercise of the option to purchase was void–

(by) Law and Mustafa, JJ.A.) because consent to the granting of an option is not consent to the future exercise of the option which must be separately obtained;

(by Spry, V.-P.) because the option to purchase had expired with the expiry of the lease;

(iii) (by Spry, V.-P. dissenting) by an option the lessor is binding himself to be a party to the transaction concerned and consent is given to the proposed transaction.

Appeal dismissed.

Cases referred to in judgment:

(1) *Hill v. Hill*, [1947] 1 All E.R. 54.

(2) *de Ellis v. Stotsky* (1949), 16 E.A.C.A. 65.

(3) *Stromdale & Ball Ltd. v. Burden*, [1952] Ch. 223.

(4) *Griffith v. Pelton*, [1958] Ch. 205.

(5) *Longmuir v. Kew*, [1960] 3 All E.R. 26.

(6) *In re Button's Lease*, [1964] 1 Ch. 263.

Judgment

14 April, 1972. The following considered judgments were read. **Law JA:** This appeal concerns agricultural land at Kitale registered as No. I.R. 13687/9 under the Registration of Titles Act (Cap. 281), the title being registered in the name of Lands Ltd. as lessee for the term of 999 years from 1 April 1957. The Agricultural Settlement Trust, the predecessor in title to Lands Ltd., granted a lease of the land to John Eyre Russell (hereinafter referred to as the appellant) for the term of 5 years from 1 November 1964, by a deed executed on 23 April 1965. I shall refer to this deed hereinafter as the lease. By a further deed executed between Lands Ltd. (hereinafter referred to as the lessor) and the appellant on 12 February 1971, the term of 5 years was extended by a further term of 2 years from 1 November 1969. The lease contained provision for an option to acquire the whole estate or interest of the lessor in the land and the improvements thereon at the sum of Shs. 122,040/-, such option to be exercisable at any time during the currency of the lease. The appellant exercised this option, and a transfer to him of the lessor's right title and interest in the land in purported exercise of the option to purchase was executed on 15 February 1971. The appellant duly applied to the Principal Registrar of Titles for the registration of the transactions evidenced by the deeds dated 12 February and 15 February 1971, that is to say the extension of the term of 5 years conferred by the lease by a further term of 2 years, and the purported exercise of the option to purchase the whole of the lessor's interest in the land. The Principal Registrar of Titles has refused registration, under s. 20 (1) of the Land Control Act, (Cap. 302), on the ground that he is not satisfied that the necessary consents to these transactions have been obtained. The appellant's contention is that the necessary consents under the land control legislation then in force were obtained from the appropriate authority when consent to the lease was obtained on 29 December 1964. The Principal Registrar of Titles (hereinafter referred to as the respondent) referred the question to the High Court for decision under s. 63 of the Registration of Titles Act. The judge who dealt with the matter resolved it in favour of the respondent. He held that the respondent acted correctly in refusing to register the extension of the lease and the transfer of the reversion, the necessary consents not having been obtained, and that the transactions are now void for all purposes. He awarded costs to the respondent. From this decision the appellant has appealed.

The law relating to the granting of consents to transactions was, at the date of the consent relied on by the appellant, contained in s. 218 of Schedule 2 of the Kenya Independence Order in Council, 1963. The position has been complicated by the enactment of the Land Control Act in 1967, which prohibits the giving of consent to disposals of agricultural land in favour of persons who are not citizens of Kenya. The appellant is not such a citizen. This complication is however of no practical importance in this case, in view of the admission by Mr. Shields, who appeared for the respondent, that if valid consents were obtained in 1964 to the transactions, the subject of this appeal, such consents would be valid for all purposes and would not be affected by the enactment of the Land Control Act in 1967.

The only question on this appeal is whether the consent obtained to the lease from the Trans-Nzoia Divisional Board, as conveyed by its letter of 29 December 1964, covered consent not only to the transaction by way of lease but also to the exercise of the option to purchase and the option to renew.

S. 218 of Schedule 2 aforesaid, so far as is relevant, is in the following terms:

"218. (1) No person shall be a party to any of the following transactions, that is to say:

(*a*) the sale, lease, charge, mortgage, exchange, partition or other disposal of or dealing with any estate, interest or right in or over agricultural land situated within an area to which this Part of this Chapter for the time being applies . . .;

Unless the consent to such transaction of the Divisional Board in whose area of jurisdiction the land in question is situated . . . has been given in accordance with the provisions of this Part of this Chapter; and every land transaction in respect of which such consent has not been given shall be absolutely void for all purposes.

(2) Any agreement to be a party to any land transaction shall be absolutely void for all purposes–

(*a*) at the expiration of three months after the making of the agreement if application for consent has not been made within that time to the appropriate Divisional Board; . . ."

The appellant's application for consent to the lease is not on the record, but its contents can be inferred from the letter conveying consent which emanated from the Board, dated 29 December 1964, the material parts whereof read as follows:

"Sir/Madam,

1. With reference to your letter of 24th November, 1964, the consent of the above-mentioned Board was accorded to the following transaction on 9th December, 1964, at the eleventh 1964 meeting of the Board.

2. Nature of transaction:

(*a*) L.R. No. 9173

(*b*) Locality – S.

(*c*) Sale, lease or mortgage, etc. – Lease, with (1) option to purchase and (2) option to renew lease for further term, rent and term to be negotiated.

(*d*) Names of parties:

(i) from – Agricultural Settlement Trust

(ii) to – John Eyre Russell.

(*e*) Length of term – 5 years from 1st November, 1964.

(*f*) Consideration:

Shs. 156,700/-

Shs. 4,400/- rent."

It will be noted that the transaction consented to was a lease containing two options.

Mr. Slade for the appellant submitted that the consent to the transaction of lease as conveyed in the Board's letter included consent to the consequent transactions represented by the future exercise of the options. He pointed out that the reference to the consideration of Shs. 156,700/-, which could only be the consideration payable on the exercise of the option to purchase, showed that the Board had that option very much in mind when considering whether or not to consent to the lease. Relying on *Stromdale & Ball Ltd. v. Burden*, [1952] Ch. 223, Mr. Slade submitted that an option to purchase creates in equity an interest in land and is an agreement to purchase land, and that it accordingly was a transaction requiring consent within three months if it was not to be void under s. 218 (2) aforesaid. That consent, Mr. Slade submitted, had clearly been obtained.

Mr. Shields for the respondent submitted that all that had been obtained was consent to a lease containing two options, one to renew and the other to purchase. The person to whom options are given is not bound to exercise them; in each case an irrevocable offer is made but until accepted no contract arises. The options, when exercised, give rise to contracts, each being a separate and distinct transaction requiring consent. Relying on *Griffith v. Pelton*, [1958] Ch. 205, Mr. Shields submitted that an option represents no more than a contingent interest in land, which does not crystallize until it is exercised, and relying on *In re Button's Lease*, [1964] 1 Ch. 263, he submitted that an option to purchase cannot be equated with a contract as the lessee is under no obligation to buy. He submitted that both options referred to in the letter of consent gave rise to transactions requiring separate consent when exercised, and that consent was required at every stage. He gave as an example a mortgage with a power of sale, and submitted that consent to such a mortgage would not imply consent to the exercise of the power of sale at some future date. Such a sale would represent a separate transaction requiring separate consent, and he relied in this respect on *de Ellis v. Stotsky* (1949), 16 E.A.C.A. 65.

I have come to the conclusion, after consideration of all these matters, that the judge's decision in the court below was correct and should be affirmed. The consent given by the Board was to a lease containing two options; it was not consent to the transactions resulting from the possible future exercise of those options. This seems to me to be clear from the wording of the letter of consent. In its reference to the option to renew, the words "rent and term to be negotiated" appear. Obviously the Board was not consenting to a renewal, the rent and term whereof still had to be negotiated. It would not consent to a transaction affecting land until the particulars of that transaction were known. The Board consented to the lease making provision for the two options. There was nothing to oblige the appellant to exercise these options. If and when he chose to do so, a new contract would come into existence, and a new transaction arise. Each one of these transactions would constitute a separate disposal of, or dealing with, an estate, right or interest in land requiring consent. In seeking and obtaining consent to the inclusion of the options in the lease, the appellant was safeguarding his contingent rights under his agreement with the lessor for the grant of these options, in accordance with s. 218 (2) aforesaid. When the stage was reached of exercising those rights and putting them into effect, then the appellant's rights became contractual and he became a party to the transactions resulting from the exercise of those rights, transactions which were quite different and separate from the options and which then required consent under s. 218 (2) aforesaid. I agree with the judge that consent to the transactions of renewal of the lease and purchase of the reversion has never been obtained. I would dismiss this appeal, with costs, and certify for two advocates.

Spry V-P: The facts out of which this appeal arises are set out in the judgment of Law, J.A. I propose to begin by considering the law generally regarding the consent required under s. 218 of the 1963 Constitution of Kenya and then seek to apply it to the somewhat peculiar facts of the present case.

As I understand it, s. 218 was aimed at transactions, not at documents. Before a transaction was completed, consent had to have been obtained, otherwise the transaction was void. An agreement to be a party to a transaction might be entered into without consent but an application for consent had to be made within three months, otherwise the agreement was void. This seems to envisage, in a simple case, first, an agreement; secondly, an application for consent; and, thirdly, if consent is given, the instrument which effects the transaction.

The Constitution does not define what is meant by an agreement to be a party to a transaction. Obviously it will include an agreement to sell, or to lease, or

to mortgage land. The question with which we are concerned is whether it includes also an agreement for an option to extend the term of a lease or to buy the land the subject of a lease. It seems to me that it must. In this context, I do not, with respect, think that the English decisions cited by Mr. Shields are really relevant. It is true that the lessee is not bound to exercise his option, but I do not think that affects the issue. What matters is that the lessor is binding himself to being a party to an extension of the lease or to a sale, as the case may be. Therefore, if the agreement is not to become void after three months, consent must be obtained and, as I have said, that consent is, in my opinion, not to the agreement but to the proposed transaction.

I now turn to the facts of the case. On 29 December 1964, the Trans Nzoia Divisional Board gave consent by letter to a "Lease with (1) Option to purchase and (2) Option to renew lease for further term – rent and term to be negotiated" of the land known as L.R. No. 9173 from the registered owner, the Agricultural Settlement Trust, to the appellant for 5 years from 1 November 1964. The consideration is shown as Shs. 156,700/-, Shs. 4,400/- rent. This seems to me to be a consent not only to the lease itself but also to the transactions for which options were to be given.

Pursuant to this consent, a lease was executed on 23 April 1965, and duly registered. This lease contains an option for the lessee during the currency of the lease to acquire "the whole estate and interest of the Lessor in the said land and the improvements thereon at the sum of Shs. 122,040/- being the value of such estate or interest at the commencement of this Lease as determined by the Lessor plus the value as at the date of the exercise of the aforesaid option of any improvements effected on the land thereafter at the expense of the Lessor . . . plus the cost . . . of any survey or re-survey of the said land . . .". The lease did not contain any option for extension or renewal.

On 12 February 1971, a company known as Lands Ltd., the successor in title to the Agricultural Settlement Trust, purported to lease the said land to the appellant for 2 years from 1 November 1969, and on 15 February 1971, Lands Ltd. purported to transfer the reversion to him for a consideration of Shs. 129,686/-. The sole question for determination is whether the consent granted on 29 September 1964, covers these two instruments.

As regards the new lease, I do not think it can possibly be covered by the consent. The Board gave consent to a lease with an option to renew. The parties chose to enter into a lease with no option to renew. On the expiry of the lease, the lessor was under no obligation to grant a further term. Therefore, as I see it, the lease of 12 February 1971 was a new transaction and was void under the Land Control Act, which was by then in force, since no consent to it was obtained.

The position regarding the transfer presents a more difficult problem. The option contained in the lease of 23 April 1965, was exercisable "during the currency" thereof. On the face of it, the option expired on 31 October 1969. It appears that after that date, the appellant was holding over. There have been several decisions in the English courts on the question whether a tenant could, during the period of extension or renewal of a lease containing an option, exercise that option (see in particular *Hill v. Hill*, [1947] 1 All E.R. 54 and *Longmuir v. Kew*, [1960] 3 All E.R. 26). I am not aware of any East African case. At the risk of over-simplification, and of course every case depends on the construction of a particular document, the cases suggest that an option to purchase exercisable during the currency of a lease will usually be exercisable while the relationship of landlord and tenant subsists, provided that it subsists by the will of the parties and not under any statutory protection of tenants. Here, however, we have an additional complication. If the appellant was

holding over with the consent of the lessor, there must have been an agreement between them, or at least one must be implied. Such an agreement required consent under the Land Control Act, and as no such consent was obtained, it became void after three months. It seems to me, therefore, that the appellant could not rely on any agreement between the lessor and himself as preserving the option and that in the absence of any agreement, it must have lapsed on the expiry of the lease. The mere fact of holding over could not in my opinion, preserve the option as against the lessor. If the option had in fact expired, the transfer must have been a new transaction and if it was a new transaction fresh consent was required. It is, in my opinion, immaterial that the parties may have believed that the option had been exercised or that the transfer is expressed to be in pursuance of it.

I cannot, with respect, agree with Law, J.A., that the exercise of an option is a new transaction. I agree that the Board ought not to give consent to a transaction unless it has full particulars of it, and the Board has power to require any particulars to be furnished and to refuse consent if the particulars furnished are inadequate. On this basis, I do not think consent should have been given to the so-called option for renewal of the lease because the terms and conditions had not been agreed. But where the terms of the transaction to which an option gives a right are clear and are consented to, the consent, in my opinion, covers the transaction and no subsequent consent is required.

I agree with Law, J.A., that this appeal must be dismissed but for reasons entirely different from those on which he relies and on which the learned trial judge relied. I would dismiss the appeal on the ground that the option contained in the lease of 23 April 1965, expired before the purported exercise of it. I think both the lease dated 12 February 1971, and the transfer were new transactions and required consent under the Land Control Act.

There will be an order in the terms proposed by Law, J.A.

Mustafa JA: I have read the judgments prepared by Spry, V.-P. and Law, J.A.

In December 1964 the Trans Nzoia Divisional Board gave consent to the appellant to a

> "lease with (1) option to purchase
>
> (2) option to renew lease for further term, rent and term to be negotiated . . ."

The question here is whether the consent to the lease transaction as given by the Board covered consent to the subsequent transaction of sale of the land in exercise of the option to purchase. The relevant provision is s. 218 of the 1963 Constitution of Kenya.

S. 218 refers to

(1) transactions, that is to say, sale, lease charge mortgage and so on of agricultural land

(2) an agreement to be a party to any land transaction.

As regards a transaction, consent must be obtained before its completion, otherwise it is void. As regards an agreement to be a party to any land transaction, consent must be obtained within 3 months of the making of such agreement, otherwise it is void.

In my view the consent given by the Board to the appellant was only to the lease transaction containing two options. A fresh consent would be required for any transaction arising out of the exercise of an option. I think a transaction in s. 218 (1) is a different matter from an agreement to be a party to any land transaction in s. 218 (2).

I therefore agree, for the reasons given by Law, J.A., that the appeal be dismissed, and I concur in the order proposed by Law, J.A.

Appeal dismissed.

For the appellant:
H Slade and *PJ Ransley* (instructed by *Archer & Wilcock*, Nairobi)

For the respondent:
JF Shields (Senior State Counsel) and *R Sharma* (State Counsel)

Sardarilal Ltd v Gusii County Council
[1972] 1 EA 255 (HCK)

Division:	High Court of Kenya at Kisumu
Date of judgment:	20 April 1970
Case Number:	66/1967 (74/72)
Before:	Bennett J
Sourced by:	LawAfrica

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[1] Contract – Rectification – To be ordered only when contract otherwise correctly expresses agreement between parties.

[2] Contract – Execution – Seal of Council – Presumption of due execution – May be rebutted by evidence of lack of authority.

Editor's Summary

The plaintiff tendered for a contract with the defendant Council for the year 1966. The plaintiff's tender was accepted. The contract which was subsequently signed by the plaintiff and sealed with the seal of the plaintiff was for four years and did not contain a price list which should have been annexed.

The plaintiff claimed rectification of the contract by the annexing of a price list, and for the price of goods sold and delivered and of goods agreed to be sold.

The defendant contended that the contract had not been sealed with its authority and that it was ultra vires since the Council could contract only for one year.

Held –

(i) rectification of an instrument can only be given of an instrument which in all other respects correctly expresses the agreement between the parties;

(ii) a contract sealed with the seal of a Council without authority is invalid;

(iii) the presumption of due execution may be rebutted by clear evidence.

Judgment for the plaintiff for goods sold and delivered only.

Case referred to in judgment:

(1) *Frederick E. Rose* (*London*) *Ltd. v. William H. Pim Jnr. & Co. Ltd*., [1953] 2 Q.B.D. 450.

Judgment

Bennett J: The plaintiff is a limited liability company carrying on business in Kisumu. The defendant is a County Council established under the Local Government Regulations, 1963.

It appears that in 1962, the plaintiff had a contract for the supply of school equipment for three years to the Kisii District Education Board. When the functions of the Board were taken over by the County Council on its establishment, the Council also took over the benefit of the contract. On the expiry of the contract in April 1965, the Clerk to the Council, by a letter to the plaintiff dated 22 April 1965, purported to extend the duration of the contract for a further period of four years with effect from 13 April 1965. The clerk was apparently acting under the authority of the Supply Committee of the Council. On 26 April 1965, the plaintiff sent to the Clerk to the Council a draft contract to give effect to the Committee's decision. The draft contract was apparently submitted by the Council to the Ministry of Local Government for consideration and on 8 September 1965, the Clerk to the Council wrote to the plaintiff:

> "As the Ministry has refused to accept the extension of the above contract, I have to inform you that soon the council will invite tenders for the supply. You are accordingly advised by the council to apply immediately when the council invites tenders. The council regrets very much for the inconvenience caused by the Ministry."

On 12 October 1965, the Clerk to the Council wrote to the plaintiff:

> "Further to my letter dated 8 September 1965, I have to confirm the Ministry's decision on the proposed contract of the above. This was that tenders must be invited as provided under Local Government Regulations. . . .
>
> 3. For your information the tenders have been sent for advertisement and would appear in the paper soon."

By a letter dated 12 October 1965, the plaintiff replied to the Council's letter of 12 October 1965:

> "We note in the daily news papers that you have invited tenders for the schools equipment, text books, etc. for the year 1966, which has taken us by complete surprise.
>
> Following upon and in consequence of the above two quoted letters vide our contract with you and the subsequent correspondence on the details of the contract we have entered into definite commitments with our suppliers for the period of the contract, for the equipment required in your district. . . .
>
> The foregoing has created a very embarrassing and serious position, including that of our considerable financial commitments and lay out, and in view of our good relations with your council for over past eight years, during which we have been your contractors, we shall be gratefully obliged if you will be good enough to throw more light and inform us what you expect us to do in the matter."

It is to be observed that the invitation to tender which appeared in the press called for tenders for the supply of school equipment for the year 1966. On 28 October 1965, the plaintiff wrote to the defendant:

> "TENDER FOR SCHOOL EQUIPMENT AND STATIONERY.
>
> We refer to your invitation to tender for the items under reference, and our letter dated 22 October 1965, subsequent to your advertisement, and have the pleasure in advising that our existing price schedule will stand. . . ."

A copy of the price list was enclosed with the letter.

A meeting of the Council's tender committee was held on 5 November 1965 under the chairmanship of Councillor Kenyuri, the chairman of the committee and vice-chairman of the Gusii County Council. It is recorded in the minutes

of the meeting that a total of 14 tenders had been received, but that only four of them fulfilled the requirements of the committee. One of the four which fulfilled the requirements was the plaintiff's. The relevant portion of minute 17/65 reads:

> "After a careful consideration, the committee selected the lowest tender–
>
> M. S. Sardarilal Ltd. of Box 209, Kisumu."

There is nothing in the minute about the duration of the contract. The minutes are unsigned and do not appear to have been confirmed.

According to the evidence of Mr. Bhasin, managing director of the plaintiff company, on 5 or 6 November 1965, he received a telephone message from Mr. Nyamweya, Clerk to the Council, informing him that the plaintiff's tender had been accepted. He attended the offices of the County Council on 10 November 1965, and at this meeting, Mr. Nyamweya produced a formal contract for signature. Mr. Bhasin conceded that the document had been sent to the County Council by his lawyers. Mr. Nyamweya affixed the seal of the Council and signed the document as a witness. Mr. Bhasin affixed the seal of his company and also attested the document. The instrument in question which is the subject matter of this suit gave the plaintiff the exclusive right to supply scholastic equipment to the defendant council for a period of four years as from 13 April 1965, subject to the right of the council to obtain supplies elsewhere if the plaintiff was unable to meet all its requirements. Clause 3 entitled the plaintiff to the exclusive use and occupation of a store belonging to the council for the purpose of storing articles of scholastic equipment during the contractual period at a yearly rental of Shs. 600/-. Clause 3 insofar as it is material reads:

> "The suppliers shall provide from time to time each item or items of the articles to the schools upon an order being placed by the County Education Officer for and on behalf of the Council at the price or prices quoted in the price list already furnished by the suppliers to the Council; and a copy of the same is annexed hereto and every page where of is stamped with the rubber stamp of the suppliers and signed by one of their directors for identification purposes."

In fact, no price list was ever annexed to the document. Mr. Bhasin testified that he signed the document without reading it and that he did not notice that no price list was annexed to it. He said that it was intended that a price list should be attached to the document.

On 10 May 1966, Mr. Nyamweya wrote to the plaintiff:

> "Following our verbal conversation in my office between you and I, I here confirm that the School Equipment and Supplies contract is valid for one year thus 1966. This is in accordance with the Local Government Regulations, 1963 and the interpretation of the Attorney General's Chambers on Contracts for School Equipment. Please treat the period of four years quoted in your Contract Agreement as reduced to ONE YEAR.
>
> Hence, therefore, this Council will shortly invite tenders for the above supplies for 1967 where you will be free to submit your application for consideration along with the other applicants."

On 16 May 1966, the plaintiff wrote to the Clerk to the Council asking him "to throw more light on your letter and inform as what you expect us to do with the stocks on hand and those which have been specifically committed for your County Council." On 17 August 1966, Mr. Nyamweya wrote to the plaintiff:

> "I refer to my letter dated 10th May, 1966, addressed to you.

> I confirm now that the contract agreement between you and this Council is valid. Please treat the contents of the above letter as cancelled.
>
> I would be grateful if you would arrange for 1967 deliveries."

On 21 November 1966, Mr. Nyamweya wrote to the plaintiff:

> "EDUCATION SUPPLIES.
>
> ALLEGED EDUCATION SUPPLIES CONTRACT 1965–69.
>
> As you are aware, the validity of the above contract has been in question and on the advice of the Ministry of Local Government, I have now to inform you that the alleged contract dated 10 November 1965, between Gusii County Council and Sardarilal Limited is ultra vires and therefore null and void."

In its amended plaint, the plaintiff seeks rectification of the contract of the 10 November 1965, by annexing thereto a copy of the price list referred to in clause 2 of the contract; Shs. 13,283/83 being the unpaid price of articles supplied and delivered to the defendant under the contract; Shs. 101,461/18 as the price of goods bargained and sold under the contract lying in the defendant's store at Kisii occupied by the plaintiff, or alternatively, Shs. 50,000/- damages for breach of contract; special damages for loss of profits which the plaintiff would otherwise have made for the remainder of the contract period and general damages.

In its defence to the amended plaint, the defendant denies that the plaintiff is entitled to rectification of the instrument; denies that the instrument constituted a valid contract and avers that the alleged contract was ultra vires the constitution of the defendant council.

The principles upon which the court will rectify a written instrument are set out in the judgment of Denning, L.J. as he then was in *Frederick E. Rose* (*London*) *Ltd. v. William H. Pim Jnr. & Co. Ltd.*, [1953] 2 Q.B.D. 450 at p. 461:

> "In order to get rectification it is necessary to show that the parties were in complete agreement on the terms of their contract, but by an error wrote them down wrongly; and in this regard, in order to ascertain the terms of their contract, you do not look into the inner mind of the parties – into their intentions – no more than you do in the formation of any contract. You look at their outward acts, that is, at what they said or wrote to one another in coming to their agreement, and then compare it with the document which they have signed. If you can predicate with certainty what their contract was, and that it is, by a common mistake, wrongly expressed in the document, then you rectify the document; but nothing less will suffice."

Before rectifying the instrument by annexing a price list, I should have to be satisfied that the instrument correctly expressed the agreement between the parties in all other respects. I am not so satisfied.

The invitation to tender was to supply materials to the Council for the year 1966 only. Mr. Bhasin admitted in evidence that when he submitted his tender he knew that it was for the year 1966.

It is plain from the evidence of Mr. Kenyuri, who presided over the meeting of the committee when the tenders were considered, that that committee was considering tenders for the supply of goods for one year only. I believe the evidence of Mr. Kenyuri.

Mr. Onyancha, the Committee Clerk who recorded the minutes of the meeting of 5 November 1965, testified that the committee had decided that the contract was to be awarded for one year only and that this fact was recorded in his first

draft of the minutes. He said that the final draft was prepared by Mr. Nyamweya who was responsible for deleting the reference to the contract being for one year only. Mr. Nyamweya was not called as a witness and Mr. Onyancha's evidence on this point is uncontradicted. I see no reason to disbelieve it. I am satisfied that the plaintiff tendered for the supply of goods for one year only in accordance with the terms of the invitation to tender and that the tender committee accepted his tender for the supply of goods for one year only. The minutes do not express fully the committee's resolution in that they omit all reference to duration of the proposed contract. It follows that the document did not truly express the agreement between the parties and I decline to rectify it.

In paragraph 2 of the defence it is pleaded that there was no valid contract between the parties. Turning to this contention, the tender committee, by resolution, accepted a tender to supply goods for the year 1966. The resolution could be regarded as authority for setting the Council's seal to a contract for the supply of goods for 1966 only. It was not authority for the sealing of a contract for the supply of goods for four years. A contract to which the Council's seal is affixed without its authority is not a valid contract. The affixing of a corporate seal by a person having the legal custody of it to a document which the corporation has power to execute raises a presumption that the seal was set with sufficient authority. It is, however, open to the corporation to show by clear evidence that the seal was set without its authority: See 9 Halsbury, 3rd Ed., para. 22.

In my judgment, the defendant Council has by the clearest evidence rebutted the presumption that the document was sealed with its authority. I therefore find that there was no valid contract between the parties to the suit and that, accordingly, the plaintiff is not entitled to damages.

With regard to the plaintiff's claim for Shs. 101,461/18, as the price of goods bargained and sold under the contract, since I have held that there was no contract between the parties, it follows that this part of the plaintiff's claim must also fail. The goods in the store at Kisii remain the property of the plaintiff.

Judgment has already been given for the plaintiff for the sum of Shs. 13,283/83 being the price of goods sold and delivered. The plaintiff is to have interest on that sum at 8 per cent per annum from the date of the filing of the suit up to the date of payment into court. The plaintiff is also to have costs on that part of the claim.

The general costs of the suit are given to the defendant.

Order accordingly.

For the plaintiff:
JA Couldrey (instructed by *Kaplan & Stratton*, Nairobi)

For the defendant:
JM Nazareth QC and *U Fernandes*

Muthengi v Republic
[1972] 1 EA 260 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	26 November 1971
Case Number:	807/1971 (85/72)
Before:	Simpson & Muli JJ

Sourced by: LawAfrica

[1] Criminal Practice and Procedure – Charge – Duplicity – Different penalties – Separate counts proper.

[2] Criminal Practice and Procedure – Sentence – Plea of not guilty – Sentence may not be increased because of waste of court's time.

Editor's Summary

The appellant was convicted of one count of possession of seven elephant tusks and one cheetah skin, and sentenced to 3½ years' imprisonment for possession of the ivory and 1½ years for possession of the skin.

The magistrate stated that the appellant should be more severely punished for pleading not guilty and wasting the court's time.

The appellant contended that two sentences should not have been imposed on the same count.

Held –

(i) where offences otherwise properly chargeable in one count are the subject of different penalties, they must be charged in separate counts, but no failure of justice had resulted;

(ii) further penalty should have been imposed in respect of the ivory of further elephants;

(iii) no increase in sentence may be made because the accused has pleaded not guilty.

Sentence reduced.

No cases referred to in judgment

Judgment

26 November 1971. The considered judgment of the court was read by **Simpson J:** The appellant was convicted of being in unlawful possession of game animal trophies contrary to s. 33 (1) of the Wild Animals Protection Act (Cap. 376).

The particulars of the offence alleged joint possession with a co-accused and another person not before the court and we are satisfied that there was ample evidence before the magistrate to support the conviction.

The trophies in question were 7 elephant tusks and one cheetah skin.

The magistrate sentenced the appellant to 3 ½ years' imprisonment for possession of the elephant ivory and 1½ years' imprisonment for possession of the cheetah skin the sentences to run consecutively.

Counsel for the appellant submitted that two sentences should not have been imposed on one count.

S. 47 however, the penalty section, provides different sentences in respect of different trophies and additional sentences for trophies of the same kind from more than one animal.

S. 47 (1) provides a maximum of 5 years' imprisonment for unlawful possession of an elephant ivory and unlawful possession of a cheetah skin is punishable under s. 47 (3) with a maximum of 3 years' imprisonment.

Were it not for the different penalties the appellant would have been properly charged on one count, the time, place and circumstances of the possession being the same. Having regard to the different penalties there should we think have been two counts but we are satisfied that no failure of justice has resulted.

We would add that as the ivory was obviously the ivory of at least 4 elephants fines should have been imposed under s. 47 (1) in respect of the ivory of the 3 additional elephants. We do not however propose to enhance the sentence on that account.

In sentencing the appellant the magistrate made the following comment:

> "All that he succeeded in doing was to waste the time of the court and in following the decision of the High Court in Criminal Appeal No. 230/70 that those who unnecessarily waste the time of the court ought to be punished more severely than those who do not."

In the case referred to Chanan Singh, J. said:

> "I think he ought to have made a distinction between the persons who pleaded guilty on the one hand and the person who was found guilty after trial on the other."

He then proceeded to reduce the sentences of those who had pleaded guilty. He did not increase the sentence of the person who was found guilty after trial for unnecessarily wasting the time of the court.

While it is perfectly proper and indeed desirable to impose a lesser sentence than that which would otherwise be imposed on the ground that the accused pleaded guilty it is quite wrong to impose a sentence higher than that which would otherwise have been imposed on the ground that the accused had wasted the court's time.

The magistrate sentenced the appellant's co-accused who pleaded guilty to 3 years' imprisonment for possession of the tusks and one year for the cheetah skin. He did not say he took into account the fact that the accused pleaded guilty and we can only assume that he considered this the proper penalty for the offence.

In view of the magistrate's misdirection, while fully agreeing with the principle to which Chanan Singh, J. referred, we feel we must reduce the sentences from 3½ to 3 years' imprisonment and from 1½ years to 1 year's imprisonment to run consecutively. We so order.

In addition under s. 47 (4) we make the mandatory order of forfeiture of the trophies which the court below failed to make.

Order accordingly.

For the appellant:
GM Kakuli

For the respondent:
JB Shilenje (State Counsel)

Kimai v Republic
[1972] 1 EA 262 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	30 March 1972
Case Number:	118/1971 (93/72)
Before:	Simpson and Muli JJ
Sourced by:	LawAfrica

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[1] Criminal Practice and Procedure – Sentence – Minimum sentence beyond power of court to award – No jurisdiction to try offence.

[2] Criminal Practice and Procedure – Sentence – Remission to resident magistrate – Not possible where court has no power to pass minimum sentence.

Editor's Summary

The appellant was convicted by a second class magistrate of stock theft alleged to have been committed after the coming into force of the Criminal Law (Amendment) Act 1971 which increased the penalty for the offence to between 7 and 14 years' imprisonment. A subordinate court of the second class can impose a prison sentence of 12 months only.

For the respondent it was argued that the appellant could have been committed to a resident magistrate for sentence.

Held –

(i) a court which cannot pass the minimum sentence provided by the law has no power to try the offence;

(ii) an accused cannot be remitted to a resident magistrate for sentence on the ground that the court has no power to impose the minimum sentence.

Observations on the method of conducting a trial in a subordinate court.

Appeal allowed.

Cases referred to in judgment:

(1) *R. v. Yonasani* (1942), 9 E.A.C.A. 65.

(2) *R. v. Yekoyasi Okedi* (1944), 11 E.A.C.A. 110.

(3) *Byarufu v. R.* (1950), 17 E.A.C.A. 125.

Judgment

30 March 1972. The considered judgment of the court was read by **Simpson J:** The appellant was convicted of two counts of stock theft contrary to s. 278 of the Penal Code (not s. 278 (B) as shown on the charge) and sentenced to one and a half years' imprisonment and four strokes.

The offences were alleged to have been committed on 2 November 1971. The Criminal Law (Amendment) Act, 1971, which came into force on 23 October 1971, amended s. 278 of the Penal Code by substituting for the sentence therein provided a sentence of imprisonment of not less than 7 and not more than 14 years with hard labour.

The appellant was convicted and sentenced by a district magistrate of the second class. The 1st Schedule to the Criminal Procedure Code has not been amended. Thus the offence of stock theft under s. 278 of the Penal Code is shown as triable by a subordinate court of the first or second class.

Under s. 7 (3) of the Criminal Procedure Code, however, a subordinate court of the second class cannot pass a sentence of imprisonment for a term of more than 12 months.

Since such a court cannot pass the minimum sentence provided by the law it has in effect no power to try the offence.

It was suggested by State Counsel that the court could have committed the accused to a resident magistrate for sentence under s. 221 of the Criminal Procedure Code. The provisions of this section however are expressly applicable only where in the opinion of the court the accused's character and antecedents are such that a greater punishment should be inflicted than it has power to inflict. A subordinate court of the second class cannot send an accused person to a resident magistrate's court for sentence on the ground that it has no power to impose the minimum sentence provided by the law.

We think it necessary also to invite the magistrate's attention to the following defects in procedure:

1. There is no record that the charge was read over and explained to the accused.
2. Instead of recording the plea in the words of the accused the magistrate has merely recorded "The accused pleaded guilty".

   (See *R. v. Yonasani* (1942), 9 E.A.C.A. 65
   R. v. Yekoyasi Okedi (1944), 11 E.A.C.A. 110
   Byarufu v. R. (1950), 17 E.A.C.A. 125.)
3. Having recorded pleas of guilty (if he was satisfied as he appeared to be that they were unequivocal) the magistrate instead of taking evidence should have proceeded to convict the accused. (See s. 207 of the Criminal Procedure Code). Details of the offence should then have been given by the prosecutor and an opportunity afforded to the accused to plead in mitigation of punishment.
4. There is no record to show whether or not the witnesses were sworn. (See s. 151 of the Criminal Procedure Code.)
5. Two witnesses of tender years were allowed to give evidence without being questioned to ascertain if they were of sufficient intelligence. (See s. 19 of Oaths and Statutory Declarations.)
6. There is no record that s. 211 Criminal Procedure Code was complied with.
7. The sentence is beyond the jurisdiction of a second class magistrate and a separate sentence should have been imposed on each count.

The appeal is allowed on the ground of lack of jurisdiction.

The conviction and sentence are set aside and a retrial ordered before a court of competent jurisdiction.

Order accordingly.

The appellant was absent and unrepresented.

For the respondent:
KA Amoo-Adare (State Counsel)

Macharia v Wanyoike and others
[1972] 1 EA 264 (HCK)

Division: High Court of Kenya at Nairobi

Date of judgment: 28 December 1971

Case Number: 128/1971 (87/72)

Before: Miller J

Sourced by: LawAfrica

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[1] Civil Practice and Procedure – Pleading – Material facts – Must be contained in pleading not referred to – Civil Procedure (*Revised*) *Rules* 1948, *O.* 6, *r.* 1 (*K.*).

Editor's Summary

The respondent filed a defence stating that he adopted the defence filed on behalf of other defendants in the case.

The plaintiff applied to strike out the defence as not containing the material facts on which the party pleading relies.

Held – a pleading does not contain the material facts required if it only refers to them.

Order accordingly.

No cases referred to in judgment

Judgment

Miller J: This is an application by way of motion under O. 6 rr. 17 and 29 of the Civil Procedure (Revised) Rules seeking the striking out of the pleading on behalf of three of eight defendants and the entering of judgment against them in accordance with the provisions of the latter rule. On the 27 January 1971 the plaintiff applicant filed a plaint in which he claimed the sum of Shs. 71,944/95 from eight defendants as joint contractors in an agreement with him under which agreement he advanced various sums of money to their joint and several use and/or benefit. He alleged that the defendants contrary to the agreement failed or refused to sell to him a parcel of land in discharge of a substantial portion of the amount of money he now claims and that they have also failed or refused to refund the Shs. 71,944/95 the total amount of monies he advanced to them. Counsel for the respondents in the instant application and who informed the Court that he was representing defendants Nos. 1, 2, 4, 5 and 6 in the suit filed a defence to the plaint on the 11 March 1971. Later, on 8 September 1971 he filed the document to which objection is now being taken. The nature of the document being of much importance, I reproduce its most relevant portion viz.:

> "TAKE NOTICE that the Defendants Nos. 2, 4 and 6 served herein with the plaint on 13th day of August, 1971, and who have appeared in this action on 23rd day of August, 1971 hereby adopt the defence dated 11th March, 1971 and filed by Messrs. Khanna & Company also in the action, and further pleads as follows:
>
> 8. The defendants will rely upon s. 3 (3) of the Contract Act (Cap. 23)."

It was conceded and rightly so that this document is intended to be a pleading, i.e. "a defence by reference" and indeed it would have been difficult to contend to the contrary by virtue of the phrases "adopt the defence dated 11 March 1971" and "and further plead" contained therein.

The rules under which the application is brought provide as follows:

> "r. 17: The Court may at any stage of the proceedings order to be struck out or amended any matter in any endorsement or pleading which may be unnecessary or scandalous or which may tend to prejudice, embarrass, or delay the fair trial of the action. . . .

r. 29: The Court may upon application, order any pleading to be struck out on the ground that it discloses no reasonable cause of action or answer and, in any such case, or in case of the suit or defence being shown by the pleadings to be frivolous or vexatious may order the suit to be stayed or dismissed or judgment to be entered accordingly as may be just. . . .”

Counsel for the respondents contending that the filed defence by reference constitutes no irregularity and submitted in the main that it should be shown on behalf of the plaintiff that some ingredient of the above mentioned rules on which the plaintiff relies has been disregarded and with regard to r. 17 the motion was incompetent in that it does not set out the particular portion of the pleading objected to by the plaintiff and that with respect to the filed defence of the 11 March 1971 to which the present “defence” points, it cannot be said that it is or contains matters frivolous or vexatious. He further contended that there is no rule which prohibits the defendants putting in a common defence or compelling them to repeat the seven paragraphs of the defence of 11 March 1971. If I may say so, with respect to the main submission, counsel for the respondents appears to have misunderstood the true nature of the objection or is assuming that the filed defence of 11 March 1971 is already or effectively before the Court as an approved pleading to the benefit of the respondents. As I see it the plaintiff is complaining against the nature and purports of the present “pleading by reference”, the potential tow-line being cast from the tug to ship or wharf. It is the document of the 8 September 1971 per se against which objection is being made and with which the Court is particularly concerned and in this behalf I think it is correct to address my mind to the all-embracing provisions of the relevant portion of the cardinal r. 1 of O. 6:

“Subject to the provisions of rules 27 and 28 of this Order, every pleading shall contain and contain only, a statement in a concise form of the material facts on which the party pleading relies for claim or defence as the case may be. . . .”

It appears to me that the mandatory terms of this portion of the rule in relation to the contents of “every pleading” are the correct media by which the questioned pleading should be assessed. It also appears to me with respect that the contention that there is no rule compelling the party pleading to repeat paragraphs of a pleading he intends to adopt must also fail as a matter of interpretation of the portion of r. 1 above. I am firmly of the view that the stating of facts is the primary dictate of the rule and since it is also permitted to raise points of law in a pleading, the proviso relating to rr. 27 and 28 was incorporated in the verbiage of the cardinal rule itself and not elsewhere, so as to eliminate instances of doubt, on the principle – Expressio unius personae vel rei, est exclusio alterius. That a pleading by way of the proposed short-cut method may or may not be an out-of-place is perhaps a worthwhile proposition for the rule-making body on grounds of expedience or as a time-saving device; but experience has repeatedly shown that short-cuts invariably result in being more expensive and time-absorbing in the end. It may be specifically urged that in relation to the precaution against delay envisaged by r. 17, a short-cut accepted or applied doth expedite but not delay; but a short-cut in breach of a fundamental rule creating or occasioning remedial action as in the circumstances under consideration cannot escape the stigma of “delay”. The court must construe the rules as they happen to be and I fail to see or agree that the proposed defence of the respondents as pleaded, is

in accordance with the existing r. 1 and find that in the circumstances it manifests a tendency if not an already accomplished reality likely to delay the fair trial of the action. The proposed pleading is accordingly struck out. The court however considers that its discretion will not be justly exercised to enter judgment against the respondents as prayed having regard to all the circumstances.

The motion succeeds in part mentioned with the costs of the application to the plaintiff.

Order accordingly.

For the applicant:
JM Gachuhi (instructed by *Kaplan & Stratton*, Nairobi)

For the respondent:
RN Khanna (instructed by *Khanna & Co*, Nairobi)

Ogola v Republic
[1972] 1 EA 266 (CAM)

Division:	Court of Appeal at Mombasa
Date of judgment:	30 May 1972
Case Number:	3/1972 (88/72)
Before:	Spry V-P, Lutta and Mustafa JJA
Sourced by:	LawAfrica
Appeal from:	High Court of Kenya – Mosdell, J

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[1] Traffic – Careless driving – Pedal cycle – Charge lies against pedal cyclist – Traffic Act (*Cap.* 403), *s.* 87 (*K.*).

[2] Traffic – Notice of intended prosecution – Pedal cyclist – Must be given notice – Traffic Act (*Cap.* 403), *s.* 50 (*K.*).

Editor's Summary

The appellant was convicted of riding a pedal cycle without due care and attention. On appeal to the Court of Appeal the issues were whether a charge of careless driving lies against a cyclist and whether notice of intended prosecution must be given.

Held –

(i) a charge of careless driving lies against a pedal cyclist (*Taylor v. Goodwin* (1) followed);

(ii) vehicle can include pedal cycle;

(iii) notice of intended prosecution must be given to a pedal cyclist to be charged with careless driving.

Appeal allowed.

Case referred to in judgment:

(1) *Taylor v. Goodwin* (1879), 4 Q.B.D. 228.

Judgment

30 May 1972. The considered judgment of the court was read by **Lutta JA:** On 10 May 1972 we allowed the appeal, set aside the judgment of the High Court and ordered that the ruling of the trial magistrate that the appellant had no case to answer be restored, with consequential acquittal of the appellant. We now give our reasons.

The appellant was charged in the Court of the Resident Magistrate at Mombasa with the offence of riding a pedal cycle on the road without due care

and attention, contrary to s. 87 of the Road Traffic Act (Cap. 403). At the close of the case for the prosecution it was submitted on behalf of the appellant that there was no case to answer. The trial magistrate upheld the submission and acquitted the appellant. The Republic appealed from that ruling to the High Court on the grounds, *inter alia*, that the trial magistrate erred in law in ruling that notice of intended prosecution under s. 50 of the Road Traffic Act applied to the offence of careless riding of a pedal cycle under s. 87 and also in interpreting that careless driving applied to vehicles like pedal cycles. The judge held that s. 50 did not apply to cycles and allowed the appeal. The appellant now appeals to this Court against that decision.

Briefly the case for the prosecution was that on 9 December 1969, at about 4 p.m. the appellant was riding a cycle when it collided with a police landrover at the junction of Lumumba and Kinyozi roads in Mombasa. The appellant was charged with the offence of riding a pedal cycle on a road without due care and attention, contrary to s. 87, but was not served with a notice of intended prosecution under s. 50. In the High Court the prosecution contended, as it did before the trial magistrate, that it is not necessary to serve a notice of intended prosecution under s. 50 on an accused person who is charged with an offence of riding a pedal cycle without due care and attention under s. 87. In his judgment, the judge said:

> "The words 'the maximum speed at which motor vehicles may be driven, to reckless or dangerous driving or to careless driving' in section 50, being in Part 5 of Cap. 403, which is headed 'Driving and other offences relating to the use of vehicles on roads' and deals exclusively with motor vehicles, seem to me to be intended to relate exclusively to motor vehicles. If it were intended that section 50 should apply to cycles, one would have expected to find its provisions in Part 12 of the Act which is headed 'General' or even in Part 9 which is headed 'Offences by drivers of vehicles other than motor vehicles and other road users'."

He held that s. 50 only related to offences in which a motor vehicle is involved and therefore does not apply to cycles.

The appeal to the High Court was argued solely on the question whether or not on a prosecution under s. 87 it was necessary to prove that the notice had been served under s. 50. The judge remarked, however, in passing:

> "I have some doubt as to whether section 87 was intended to relate to cycles for the word used therein is 'drive' and one hardly drives a cycle, one rides it. However, I express no finding on this as it is irrelevant to this appeal."

With respect, we do not think the question was irrelevant. If a charge sheet does not disclose an offence, a conviction based on it cannot be sustained, whatever grounds of appeal may have been advanced.

At first sight, the argument that a bicycle is ridden and not driven seems attractive and is reinforced by the use of the word "rider" in s. 89, the only section of the Act that relates expressly to bicycles. This point was, however, decided long ago in England, in the case of *Taylor v. Goodwin* (1879), 4 Q.B.D. 228, and since the Kenya Act is clearly derived from the English statutes, we think that decision must have a high persuasive value. The definition of "vehicle" in the Act, though not very helpful, is wide enough to include a bicycle and we think that many of the provisions of the Act, such as s. 52, must have been intended to apply to the riders of bicycles. We think therefore that the appellant was properly charged under s. 87.

S. 50 provides, *inter alia*, that:

> "Where a person is prosecuted for an offence under any of the sections of this Ordinance relating respectively to the maximum speed at which motor vehicles may be driven, to reckless or dangerous driving or to careless driving he shall not be convicted unless–
>
> (*a*) he was warned at the time the offence was committed that the question of prosecuting him for an offence under some one or other of the sections aforesaid would be considered:"

Before us, Mr. Anjarwalla, for the appellant, argued that on a true interpretation of this section, while the reference to maximum speed relates only to motor vehicles, the references to reckless or dangerous driving and to careless driving are not so limited. He stressed also the reference to "any of the sections of this Act" and contrasted it with the English precedent which referred to "any of the sections of this Part of the Act". He submitted that a cyclist charged with an offence under s. 87 should be warned as required by that section. Mr. Rana, for the Republic, argued and submitted that s. 50 does not apply to cyclists and it was therefore not necessary to serve a notice of intended prosecution on the appellant. We think, with respect, that the judge was wrong in saying that Part V of the Act relates only to motor vehicles. The heading of this Part refers to "vehicles" and some sections, such as ss. 52 and 53, appear clearly to apply to all vehicles. We must assume that the use of the words "motor vehicles" in some places and the word "vehicles" in others was deliberate. It would follow that there is no reason to restrict the operation of s. 50 to motor vehicles, except as regards exceeding the speed limit.

The whole purpose of this section is to let people know that they are going to be prosecuted or charged, so that they can organise their defence, for example look for witnesses. As we have held earlier in this judgment, careless driving or "riding" of a bicycle is within the mischief of s. 87; we do not think that the legislature intended to discriminate against persons who "drive" or "ride" bicycles carelessly in the application of s. 50. In our view s. 50 applies to all persons charged under s. 87, whether they are cyclists or drivers of other vehicles. For these reasons we allowed the appeal.

Appeal allowed.

For the appellant:
HAT Anjarwalla

For the respondent:
MR Rana (Senior State Counsel)

Selemani v Republic
[1972] 1 EA 269 (CAD)

Division:	Court of Appeal at Dar Es Salaam
Date of judgment:	9 May 1972
Case Number:	1/1972 (89/72)
Before:	Sir William Duffus P, Spry V-P and Mustafa JA
Sourced by:	LawAfrica
Appeal from:	High Court of Tanzania – Makame, J

[1] Criminal Practice and Procedure – Compensation – Principles of award – Accused must be heard – Criminal Procedure Code, ss. 176, 294*A* (*T.*).

[2] Criminal Practice and Procedure – Sentence – Suspended – Should not be made to reinforce order for compensation – Criminal Procedure Code, s. 304 (*T.*).

Editor's Summary

The appellant was convicted of manslaughter and sentenced to 10 years' imprisonment, 5 of them to be suspended, provided that within 30 days he paid Shs. 4,000/- to the relatives of the deceased. There was no enquiry into whether there was a case for ordering compensation and the appellant was given no opportunity to be heard. There was no evidence of whether the deceased had any dependants.

Held –

(i) compensation can only be ordered under the Criminal Procedure Code, s. 176 under which it has been shown:

(*a*) that the person entitled has suffered material loss or personal injury;

(*b*) that compensation would be recoverable by civil suit; and

(*c*) that the compensation is reasonable;

(ii) the convicted person must be given an opportunity to be heard;

(iii) there was no evidence of material loss;

(iv) a suspended sentence should not be used to give a greater sanction for an order for compensation.

Appeal allowed.

No cases referred to in judgment

Judgment

9 May 1972. The considered judgment of the court was read by **Mustafa JA:** This is an application for leave to appeal against sentence imposed on the appellant by the High Court at Mwanza. We allowed the application and heard the appeal. The appeal is on the ground that the sentence imposed was excessive.

The appellant pleaded guilty to a charge of manslaughter. The appellant was a bus conductor and he had some dispute with one, Martin, about a bus fare. The appellant had no driving licence and soon after his dispute with Martin he got into the cab of a bus and started reversing it. In the meantime Martin and his mother were behind the bus. While reversing the bus, the appellant crushed Martin's mother resulting in her death. The judge sentenced the appellant to ten years' imprisonment, five years to be suspended for thirty days provided that during the period of suspension the appellant shall pay to Martin, in the presence of the senior resident magistrate, Mwanza, on behalf of the deceased's relatives, Shs. 4,000/-.

The judge apparently invoked the provisions of s. 294A of the Criminal Procedure Code in suspending 5 years of imprisonment if compensation amounting to Shs. 4,000/- was paid. We are of the view that compensation in s. 294A

must refer back to the compensations provisions in s. 176 of the Criminal Procedure Code. S. 176 reads:

> "(1) When an accused person is convicted by any court of any offence not punishable with death and it appears from the evidence that some other person, whether or not he is the prosecutor or witness in the case, has suffered material loss. or personal injury in consequence of the offence committed and that substantial compensation is, in the opinion of the court, recoverable by that person by civil suit, such person may, in its discretion and in addition to any lawful punishment order the convicted person to pay to that other person such compensation, in kind or in money, as the court deems fair and reasonable."

It will be seen that three elements have to be present before compensation can be ordered. (1) the person entitled should have suffered material loss or personal injury; (2) compensation would be recoverable by civil suit; and (3) such compensation is to be such as the court deems fair and reasonable, which must connote an enquiry and the opportunity given to a convicted person to present his case.

In this case the judge did not conduct any enquiry and the convicted person was given no opportunity to be heard before the order of compensation was made. This alone would have vitiated the order made. The judge also ordered that compensation should be paid to Martin on behalf of the deceased's relatives. There is no evidence to show whether Martin had suffered any material loss by the death of the deceased, and there is no evidence who the deceased's relatives are, or whether they or any of them were financially dependent on the deceased.

In the circumstances we are of the opinion that the judge erred in imposing a five year suspended sentence conditional on the appellant's paying Shs. 4,000/-as compensation. We do not think a suspended sentence should be used to provide a greater sanction for an order for compensation than that which the Criminal Procedure Code provides in s. 304. The State Attorney does not support the suspended sentence. We accordingly set aside the sentence of ten years' imprisonment.

We think, on the facts of this case, that a sentence of five years' imprisonment would be reasonable. Although we have set aside the suspended sentence and the order for compensation, this does not prevent Martin or the deceased's relatives, from suing the appellant for compensation or damages, should he or they have a valid claim.

Accordingly, the appeal is allowed. The sentence of ten years' imprisonment and the order for compensation are set aside, and there will be substituted a sentence of five years' imprisonment.

Appeal allowed

The appellant did not appear and was not represented.

For the respondent:
AMA Omar (State Counsel)

Hardware & Ironmongery (K) Ltd v Attorney-General
[1972] 1 EA 271 (CAM)

Division: Court of Appeal at Mombasa

Date of judgment: 31 May 1972

Case Number: 5/1972 (91/72)

Before: Spry V-P, Lutta and Mustafa JJA

Sourced by: LawAfrica

Appeal from: High Court of Kenya – Mosdell, J

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[1] Licensing – Import licensing – Powers of officials – Different from powers of ministers.

[2] Licensing – Import licensing – Cancellation of licence – No right of director to delegate power – Imports, Exports and Essential Supplies Act (*Cap.* 502), *s.* 3 (*K.*).

[3] Civil Practice and Procedure – Issues – Not open on pleadings – Not for decision by judge.

Editor's Summary

The appellant company was granted a licence under the Imports, Exports and Essential Supplies Act (Cap. 502) for the import of hinges from China. After the order had been accepted and an irrevocable letter of credit issued, the appellant received a letter purporting to be signed for the Director of Trade and Supplies cancelling the licence under s. 6 (1) of the Act. The signatory was not the Director and the Director was not consulted before the cancellation.

On the arrival of the hinges, clearance was refused, and a request for permission to re-export was ignored.

On the appellant's suit for damages the High Court held that the letter had been properly signed on behalf of the Director, and that since both licence and cancellation had been signed by the same person if one were bad for lack of authority the other would be too.

On appeal the appellant contended that the Director could not delegate his powers except to a Deputy or Assistant Director.

For the respondent it was contended that the cancellation was signed for the Director and that there was nothing to show he was acting contrary to instructions.

Held –

(i) the powers of officials are different from the powers of ministers (*Metropolitan Borough and Town Clerk of Lewisham v. Roberts* (1) distinguished);

(ii) the decision was not taken by the director and no right to delegate the power to cancel the licences can be inferred:

(*a*) because of the express power of delegation in s. 3 (2), and

(*b*) because of the decision to cancel a licence is of great importance involving weighing the national interest against a grave injustice to an individual;

(iii) the validity of the licence itself was not in issue on the pleadings.

Appeal allowed.

Cases referred to in judgment:

(1) *Metropolitan Borough & Town Clerk of Lewisham v. Roberts*, [1949] 2 K.B. 608.

(2) *Woolett v. Minister of Agriculture & Fisheries*, [1955] 1 Q.B. 103.

(3) *Karia & Co. Ltd. v. Dhanani*, [1969] E.A. 392.

Judgment

31 May 1972. The following considered judgments were read. **Spry V-P:** This is an appeal from a judgment and decree of the High Court dismissing a suit brought by the appellant company.

In September 1970, the appellant company applied to the Director of Trade and Supplies for a licence to import a quantity of hinges from China. Such a licence was required by para. 2 of the Control of Imports Order, 1962, an Order made under the powers conferred by s. 4 of the Imports, Exports and Essential Supplies Act (Cap. 502). A licence was issued on 25 September. It took the form of endorsements on a letter of indent, written by Thara Agencies, as agents of the appellant company, and addressed to China National Metals and Minerals Import and Export Corporation.

This indent was sent to the Corporation on or about 29 September by Overseas Commercial and General Agencies Ltd., also as agents of the appellant company, and the Corporation replied on 13 October, accepting this and other orders and asking that the appropriate credits be opened as early as possible. The appellant company applied to Habib Bank (Overseas) Ltd., who on 31 October issued an irrevocable letter of credit.

On the same day, a Mr. T. K. Theuri, signing “for Director of Trade & Supplies” wrote to the Commissioner General of Customs and Excise informing him that the licence had been cancelled under the powers conferred by s. 6 (1) of the Act. The letter stated that the cancellation of the licence “should be considered to have taken effect” from the date of issue. Copies of this letter were sent to Thara Agencies and the appellant company and to the Import/Export Licensing Officer at Mombasa to inform them of the cancellation.

The copy letter was received by the appellant company on 5 November and the following day, the company addressed a letter to the Director pointing out that the letter of credit was irrevocable and that the goods would be shipped on the strength of it.

On or about 21 December 1970, the appellant company presented the licence at Kilindini Port to clear the goods, which were expected to arrive on 27 December. The licence was seized by the Import Licensing Officer, who returned it to the Director by letter of 22 December, a copy of which was sent to the appellant company, notifying it that goods could not be cleared with a cancelled import licence.

On 29 December, the appellant company again wrote to the Director stating that the goods had been shipped and that the Bank had refused to cancel the letter of credit, and asking authority to clear the goods. A reply dated 9 January 1971, stated briefly that the cancellation could not be withdrawn.

The appellant company then consulted an advocate, who wrote to the Director, submitting that the cancellation was illegal and appealing to the Director to reconsider the matter. Without prejudice, the Director was also asked if he would issue a re-export licence, if the appellant company could find a market for the goods elsewhere. This letter received no reply. The appellant company then filed a suit against the Attorney-General claiming damages for the loss suffered by it as a result of “the seizure and/or confiscation” of the licence, that is to say the price of the goods and the reasonable profit which the appellant company might have made.

At the trial, evidence was called on both sides but the only evidence to which it is necessary to refer for the purposes of this appeal is that of Mr. Theuri, who had signed the letter of cancellation. His evidence is clear and frank and leaves it in no doubt that the decision to cancel the licence was taken by him after consultation with a Mr. Kariuki. Mr. Theuri is a Trade Officer, as, apparently, is Mr. Kariuki. It is also clear that Mr. Theuri issued the licence and it appears from his evidence that licences were at the relevant time issued as a matter of course, because he said that he refused licences if the application forms were not in order.

The arguments put forward at the trial were substantially repeated at the hearing of the appeal, when there were, of course, additional arguments. It will therefore suffice to set out the arguments as they were advanced at the appeal.

There were four issues at the trial. The first was whether the letter signed by Mr. Theuri was effective to cancel the licence, Mr. Anjarwalla's submission being that the letter ought to have been under the hand of the Director or someone to whom he had lawfully delegated his powers and that there could have been no lawful delegation to Mr. Theuri.

The judge began by considering where the onus of proof lay and applied the general principle that he who asserts must prove. He said that it was the appellant company that was asserting that the purported cancellation was invalid and therefore that the onus of proving that it was invalid was on the appellant company.

This ruling formed the basis of Mr. Anjarwalla's first ground of appeal. He pointed out that the plaint was based on the seizure of the licence, not on its cancellation: it was the respondent who relied on the cancellation as justifying the seizure and therefore the onus was on him. I think that, on the pleadings, there is merit in Mr. Anjarwalla's argument, although in the event I do not think the question is of any great importance.

On the substantive issue, the judge held that Mr. Theuri had signed the letter of cancellation on behalf of the Director, as a member of his office staff and not by virtue of any delegation.

Mr. Anjarwalla submitted that the evidence showed that Mr. Theuri had received a complaint from someone concerned with an industrial estate in which the Government was interested, to the effect, that certain imported goods competed with the products of the estate. Mr. Theuri discussed the matter with Mr. Kariuki and decided to revoke certain licences. There was no suggestion that the matter was ever referred to the Director prior to the revocation. The Director is empowered under s. 6 (1) of the Act at any time to cancel any licence already granted. Under s. 3 (2) of the Act, the Director may, with the approval of the Minister delegate all or any of his powers to the Deputy Director or an Assistant Director. There was no suggestion that either Mr. Theuri or Mr. Kariuki was a Deputy or Assistant Director. Mr. Anjarwalla argued that since the Act gives the Director very wide discretionary powers and expressly provides for the persons to whom he may delegate those powers, he cannot lawfully delegate to anyone else.

Mr. Shields, who appeared for the Attorney-General, supported the decision of the judge. He argued that this was a case of agency and not of delegation. The letter of cancellation was signed on behalf of the Director by a public officer of his department and there was nothing to show that that officer, who held a fairly responsible post, was acting contrary to instructions. Prior approval must be assumed unless the contrary is proved. He relied on the English case of *Metropolitan Borough and Town Clerk of Lewisham v. Roberts*, [1949] 2 K.B.

608 and the East African case of *Karia & Co. Ltd. v. Dhanani*, [1969] E.A. 392. He also pointed out that the forms of licence prescribed by the Imports, Exports and Essential Supplies Regulations all provide for signature "for" the Director.

Mr. Anjarwalla argued that the *Metropolitan Borough* case can be distinguished because it relates to powers conferred on Ministers and the reasoning behind the decision is based on the special constitutional position of Ministers in England. A similar position is created in Kenya by s. 38 of the Interpretation and General Provisions Act (Cap. 2), which gives a power of delegation to the Attorney-General and to Ministers, but not to other public officers.

I do not think, with respect, that the *Metropolitan Borough* case is of any relevance to this appeal. I think that ministerial powers are on a different footing from those of other officials. Nor do I think, with respect, that the *Karia* case is of any assistance. It deals with a ministerial power, the letter in question began "I am directed . . ." (in this respect, see *Woollett v. Minister of Agriculture and Fisheries*, [1955] 1 Q.B. 103) and there was no evidence whether or not there had in fact been a direction; on all these grounds, the present case can be distinguished.

It seems to me, with respect, that far too much importance has been attached to the signature of the letter. In my view, what matters is the taking of the decision. If the Director had taken the decision that the licence was to be cancelled, he could then, quite properly, have told Mr. Theuri to convey the decision to the parties. But it is clear from Mr. Theuri's evidence that this is not what happened. I agree with Mr. Anjarwalla that the fact that the Act makes express provision for the delegation of the Director's powers makes it, if not impossible, at least more difficult to infer any power of delegation. As I understand the position, there is no absolute rule governing the question of delegation, but in general, where a power is discretionary and may affect substantial rights, a power of delegation will not be inferred, although it might be in matters of a routine nature. It seems to me that the decision whether or not the licence should be revoked required the exercise of discretion in a matter of the greatest importance, since it involved weighing the national interest against a grave injustice to an individual. It was clearly a decision to be taken only by a very senior officer and was not one in respect of which a power of delegation could be inferred. I think, both on a strict interpretation of the Imports, Exports and Essential Supplies Act and on general principles, that this was not a power that could be delegated otherwise than under s. 3 (2) of the Act.

The judge went on to remark that even if the appellant company had succeeded on this issue, it would have availed nothing because, both the licence and the cancellation having been signed by Mr. Theuri, if the one were bad for lack of authority the other must also be. With respect, I do not think this follows. As Mr. Anjarwalla pointed out, the plaint asserted the grant of a licence and this was expressly admitted in the defence: the validity of the licence was never in issue and it would be useless to speculate on how the case might have developed had the defence been different.

I do not think it necessary to deal with the other grounds of appeal. For the reasons I have given, I would allow the appeal. There was no dispute as to the damages to be awarded if the appeal succeeded, and I would therefore set aside the judgment and decree of the High Court and substitute an order awarding the appellant damages, interest and costs as prayed in the plaint and the costs of the appeal. As the other members of the Court agree, it so ordered.

Lutta JA: I agree.

Mustafa JA: I agree with the judgment of Spry, V.-P., and I have nothing to add.

Appeal allowed.

For the appellant:
HAT Anjarwalla

For the respondent:
JF Shields (Senior State Counsel)

Ismail v Attorney-General
[1972] 1 EA 275 (CAM)

Division:	Court of Appeal at Mombasa
Date of judgment:	31 May 1972
Case Number:	10/1972 (92/71)
Before:	Spry V-P, Lutta and Mustafa JJA
Sourced by:	LawAfrica
Appeal from:	High Court of Kenya – Mosdell J

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[1] Constitutional Law – - Citizenship – Entitlement – - Established before increase of fees – - Lower fee chargeable – - Kenya Citizenship Act (*Cap.* 170), (*K.*).

Editor's Summary

The appellant applied for citizenship in December 1965 and in December 1969 he was informed that his application had been approved. No certificate had been issued to him when in May 1970 the fee for registration as a citizen was increased to Shs. 2,000/ – . He paid the fee under protest and sued for its recovery.

Held –

(i) the appellant was entitled to be registered as a citizen before the increase in the fee, and the lower fee only was chargeable.

Appeal allowed.

No cases referred to in judgment

Judgment

31 May 1972. The following considered judgments were read. **Mustafa JA:** The facts in this case are not in dispute, and briefly are as follows. On 9 December 1965 the appellant who was a citizen of the United Kingdom and Colonies, applied to the Principal Immigration Officer, Nairobi, to be registered as a citizen of Kenya. He was entitled to be registered as such under the provisions of s. 2 (5) of the 1963 Kenya Constitution, now s. 88 (5) of the revised Constitution contained in the Second Schedule to the Kenya Constitution Act of 1969. The appellant made his application to be registered as a Kenya citizen in terms of s. 10 of the Kenya Citizenship Act (Cap. 170).

S. 10 reads:

"10. (1) Every application under section 2, section 5, section 6, or section 7 of the Constitution, shall be made to the Minister.

(2) Every application to the Minister under section 2, section 5, section 6 or section 7 of the

Constitution, or under this Act–

(*a*) shall be accompanied by the prescribed fee (if any);

(*b*) where the form of any such application is prescribed under this Act, shall be made in such form with such variations as the circumstances require and the Minister accepts;

(*c*) shall be supported by such evidence of the statements made therein as may be prescribed under this Act or as the Minister may require; and

(*d*) shall be verified by a declaration made before a magistrate or commissioner for oaths."

Under s. 14 the Minister is empowered to make regulations and to prescribe forms and fees payable under the Act. In the 2nd Schedule to the regulations so made is the following item:

"Second Schedule (r. 3)

Matter in which fee may be taken. Registration of a citizen of the United Kingdom and Colonies or a British protected person born in Kenya."	Fee payable 50/ –

The appellant forwarded the sum of Shs. 50/ – together with his application form on 9 December 1965 and the sum of Shs. 50/ – was duly received by the Immigration Department Nairobi on 11 December 1965.

Nothing happened for some years, but the appellant then received a letter from the Office of the Vice-President and Minister of Home Affairs dated 22 December 1969 informing him that his application for Kenya citizenship has been approved by the Vice-President and Minister of Home Affairs, and that he should contact the Immigration Department, Nairobi, to obtain his citizenship certificate. This was followed by a letter from the Principal Immigration Officer Nairobi dated 9 January 1970 asking the appellant to forward the sum of Shs. 50/ – for his application for Kenya citizenship. The appellant replied pointing out that the sum of Shs. 50/ – had been forwarded to and received by the Principal Immigration Officer in December 1966. Thereafter the appellant wrote several times to the Principal Immigration Officer for his citizenship certificate, but it was not forwarded to him. In the meantime L.N. 74 of 1970 dated 6 May 1970 was published which increased the fee for registration as a Kenya citizen from Shs. 50/ – to Shs. 2,000/ – . On 28 May 1970 the appellant personally attended upon the Immigration Officer in charge of citizenship section at Nairobi to collect his citizenship certificate. The appellant was informed that he had to pay a further Shs. 1,950/ – for the certificate as the registration fee had been increased by L.N. 74 of 1970 to Shs. 2,000/ – . The appellant paid the extra Shs. 1,950/ – under protest and was on the same day issued with a certificate of registration No. 17729 which reads as follows:

"Certificate of Registration

This is to certify that Ismail Jiwaji has today been registered as a citizen of Kenya under Section 88 (6) of the Kenya Constitution/The Kenya Citizenship Act 1963.

Date 28th May, 1970 Registering Officer

Receipt No. B 516684

Fee 2,000/ – E 755012."

The appellant filed a suit to recover the sum of Shs. 1,950/ – in a Resident Magistrate's Court at Mombasa where he was successful. The Republic then appealed to the High Court which reversed the judgment of the Resident Magistrate. From the High Court judgment the appellant has now appealed to this Court.

Briefly the Republic's contention which found favour with the judge, is that the fee payable for registration would be that prevailing at the date the appellant was registered as a citizen. The appellant was so registered on 28 May 1970, and on that date the fee for registration was Shs. 2,000/ – . The Minister is empowered to make regulations prescribing the fees to be paid and he had prescribed for the fee for registration at Shs. 50/ – in 1963 and had increased the fee to Shs. 2,000/ – in 1970. Mr. Shields for the Republic has submitted that the fee for registration is only payable on the registration of a person as a citizen and not at the time of the application for citizenship. S. 10 (2) (*a*) of the Kenya Citizenship Act relates to a fee (if any) prescribed for an application to be registered as a Kenya citizen. There is no prescribed fee for such application; the

prescribed fee in the Second Schedule to the regulations made by the Minister refers only to registration. It was not necessary for the appellant to remit any fee with his application for citizenship; the registration fee was payable on the date when he was registered as a citizen.

With respect I am unable to agree with Mr. Shields' submission. To my mind, in this case, the date of registration was the date when the appellant was entitled to be registered, after he had properly complied with all the requirements and formalities in terms of s. 10, and when he had paid the fee for registration as a citizen of Kenya. The letter dated 22 December 1969 from the office of the Vice-President and the Ministry of Home Affairs was evidence that the appellant had complied with all the requirements of s. 10 and the letter dated 9 January 1970 from the Principal Immigration Officer was evidence that the fee for registration was due. There is evidence that the registration fee of Shs. 50/- was paid prior to 9 January 1970. At that stage the appellant was entitled as of right to be registered as a citizen of Kenya. Indeed Mr. Shields agrees that it is so, and states that the appellant could have at that time sought the assistance of a court of law to be registered as a citizen of Kenya by an order of mandamus.

I think that on 9 January 1970, at the latest, the appellant was entitled to be registered as a citizen of Kenya and the fee for registration on 9 January 1970 was Shs. 50/ – . That was the fee payable by the appellant. The clerical or administrative act of preparing a certificate of citizenship cannot, in my view, alter or affect the date. The Immigration Department took nearly 5 months to carry out the clerical act of making out the certificate of citizenship of the appellant, but the date of registration must refer back to the date when the appellant was entitled as of right to be registered as a citizen. On 9 January 1970 the right of the appellant had crystallised and he had done everything needed to protect and enforce that right. His right could not be prejudiced or whittled away by any clerical or administrative act on the part of the Immigration Department.

I am therefore of the view that the fee payable for registration by the appellant was Shs. 50/ – and not Shs. 2,000/ – . I would allow the appeal, set aside the judgment of the High Court and restore the judgment and decree of the Senior Resident Magistrate. I would allow the appellant the costs of the appeal and of the High Court.

Spry V-P: I entirely agree with the judgment of Mustafa, J.A., and as Lutta, J.A., also agrees there will be an order in the terms proposed.

Lutta JA: I also agree.

Appeal allowed.

For the appellant:
SC Gautama and *AYA Jiwaji*

For the respondent:
JF Shields (Senior State Counsel)

Kariuki and others v Republic
[1972] 1 EA 278 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	28 April 1972
Case Number:	1179/1972 (94/72)

Before: Wicks CJ and Simpson J

Sourced by: LawAfrica

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[1] Criminal Law – Theft – Intention to deprive permanently – Empty cash box – Saleable in itself – Intention proved.

[2] Criminal Practice and Procedure – Forfeiture – Of vehicle – Used to facilitate commission of offence – Proper order for forfeiture – Penal Code, s. 211 (*K.*).

Editor's Summary

The appellants were convicted of breaking and entering premises for the purpose of stealing paint. They had also moved a locked but empty cash box which they were also convicted of stealing. The magistrate also ordered forfeiture of the vehicle owned by the second appellant in which they drove to the factory and which was to be used for the transport of the goods to be stolen.

On appeal the appellants contended that intention to deprive the owner permanently of the cash box had not been proved, and that the magistrate had a different offence in mind from that charged when he made the forfeiture order.

Held –

(i) the cash box itself was saleable and intention to deprive had been proved (*R. v. Easom* (1) distinguished);

(ii) the vehicle was clearly used to facilitate the commission of the offence of which the appellants were convicted and was therefore properly made.

Appeals dismissed.

Case referred to in judgment:

(1) *R. v. Easom*, [1971] 2 All E.R. 945.

Judgment

28 April 1972. The considered judgment of the court was read by **Simpson J:** The three appellants were convicted of office-breaking and committing a felony contrary to s. 306 (*a*) of the Penal Code.

They now appeal against their convictions and sentences.

The particulars of the offence are as follows:

"1. John Mwangi Kariuki

2. Mucheru Muthumbi

3. Mbuthia Njoroge: – On 23 May 1971, at about 5.30 a.m. at Industrial Area, Nairobi, in the Nairobi area, jointly broke and entered the office of Messrs Robbialac Paints (K.) Limited, and stole from therein one empty cash Box, valued at Shs. 100/ –, the property of the said Messrs Robbialac Paints (K.) Limited."

Mr. Shah conceded, and we fully agree, that there was ample evidence that the three appellants jointly broke and entered these premises on the date in question for the purpose of stealing paint, that they were caught in a police ambush before they could effect their purpose and that an empty cash box had been moved by one of the appellants from the drawer in which it was kept to a table in the same room. Asportation, he submitted had been proved but not an intent to deprive the owners permanently of the

cash box.

He referred to the recent English case of *R. v. Easom*, [1971] 2 All E.R. 945 in which a lady's handbag was removed from beside the cinema seat where the owner was sitting (obviously with the intention of extracting the contents) and returned without any of the contents (which were of little value) having been taken. This was held by the Court of Appeal to have been conditional appropriation, an intention to deprive the owner permanently of the handbag not having been established.

In the present case Mr. Shah submitted there was at least reasonable doubt that there was an intention on the part of the appellants to take away the cash box.

The magistrate did not specifically consider the question of intention in this context. He said, however:

> "The circumstances under which the cash box was removed from the drawer to the table, in my opinion, constitutes theft."

We have no doubt that he had in mind all the relevant elements of the offence. The box was empty but locked. As far as the appellants knew there might have been currency notes, postal orders or cheques inside. Even if empty the cash box itself was a small, saleable article worth Shs. 100/ – . Although their main object was no doubt the theft of paint the fact that they opened drawers in the office indicated an intention to take other easily removable articles of value.

They were interrupted before they could remove the cash box from the room.

We think there is sufficient evidence to support the magistrate's finding that they stole the cash box.

The third appellant claimed to have been merely an employee of the second appellant and to have no knowledge of the offence. There is however evidence that he was present at 4 a.m. while the first appellant broke the lock of the office and entered with the others. The magistrate after due consideration rejected his defence and we are satisfied that he was fully justified in so doing.

The first appellant had one previous conviction in 1965 to which the magistrate as he said did not give undue importance. He was sentenced to 6 years' imprisonment and 16 strokes.

The second appellant's previous conviction for being idle and disorderly in 1960 was disregarded. He was sentenced to 4 years' imprisonment and 10 strokes.

The third appellant was sentenced to 3 years' imprisonment and 6 strokes.

In submitting that the sentences were manifestly excessive Mr. Shah referred to the magistrate's comment that but for the loyalty of the watchman the appellants would have got away with a large amount of property, and suggested that the watchman in fact encouraged the offence. It is true that a number of meetings took place between the first appellant and the watchman before the latter reported to his employers but at the outset he merely had reason to suspect the first appellant. As soon as he realised that he really intended to break in he put him off and reported to the Security Officer of Factory Guards, his employers.

The first appellant made every effort to undermine the loyalty of the watchman and persuade him to facilitate the breaking of the premises he was employed to guard. As the magistrate said:

> "It also cannot be denied that the first accused was the evil genius from the beginning up to the end."

The sentences are perhaps severe but they are not manifestly excessive and we are not disposed to disturb them.

Two vehicles were used by the appellants to convey them to the premises and were clearly intended for the transport of whatever goods they might remove from the premises. One of these was owned by the second appellant. The magistrate ordered its forfeiture under the provisions of s. 311 of the Penal Code. In so doing he remarked that it "was obviously used to facilitate the commission of theft from Robbialac, i.e. for conveying paint if successful".

As Mr. Shah pointed out the magistrate appears to have had a different offence in mind from that of which the appellants were convicted. The forfeiture therefore was wrong, he said.

The magistrate we think with respect did give the wrong reasons but we are satisfied that the order of forfeiture was properly made. The vehicle was clearly used to facilitate the commission of the offence of which the appellants were convicted.

Appeals dismissed.

For the appellants:
RK Shah

For the respondent:
DN Kibuchi (State Counsel)

Kingi v Republic
[1972] 1 EA 280 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	28 April 1972
Case Number:	1121/1971 (95/72)
Before:	Sir James Wicks CJ and Simpson J
Sourced by:	LawAfrica

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[1] Evidence – Theft – Alleged vendor of goods to accused not called – Presumption that evidence unfavourable to prosecution.

Editor's Summary

The appellant was charged with and convicted of stock theft. At all times he insisted that he had bought the cattle from a man whose identity was known to the police. At his trial the alleged vendor was not called to give evidence, and the magistrate stated that the appellant's evidence could not be accepted.

On appeal:

Held –

(i) as the alleged vendor had not been called the court was entitled to presume that his evidence would have been unfavourable to the prosecution;

(ii) the appellant had no case to prove and the weakness of his evidence was irrelevant.

Appeal allowed.

No cases referred to in judgment

Judgment

28 April 1972. The considered judgment of the court was read by **Simpson J:** The appellant was convicted of stock theft contrary to s. 278 of the Penal Code and, the offence having been committed prior to the coming into force of the Criminal Law Amendment Act 1971, was sentenced to 5 years' imprisonment and 24 strokes.

After some discussion State Counsel quite properly conceded that the appeal must be allowed. We accordingly did so, quashing the conviction and setting aside the sentence.

We now give our reasons therefore for the benefit of the magistrate who wrote a long and carefully-considered judgment.

It was not disputed that the appellant was found in possession of the four head of stolen cattle, the subject of the charge, four days after the discovery of the theft. The appellant at once said that he had bought them from Ole Leshao. The appellant, it may be observed, is a stock-trader having become one about four years ago on his retirement from the Kenya Rifles. He is no longer a young man.

When arrested he again insisted he had bought the cattle; from Tine Ole Kiok. Since the point was not taken by the magistrate we can safely assume that Ole Leshao was the same person as Tine Ole Kiok. The appellant was given an opportunity of pointing out Ole Kiok which he duly did in front of a large number of people. Ole Kiok was charged with the theft of the cattle before the same magistrate who subsequently convicted the appellant. Ole Kiok denied the theft, the charge was withdrawn and the appellant was charged instead.

In answer to the charge he said

> "I bought the cattle from Tine Ole Kiok."

Thus the prosecution was well aware at the outset of the case that the appellant's defence was that he had bought the cattle from Ole Kiok-not, it may be observed, a fictitious or unknown person.

They had held Ole Kiok in custody and therefore knew him and knew where he could be found but they failed to call him to rebut the appellant's defence. Not only therefore did this defence stand unrebutted but the court was entitled to presume, and should have so done, that the evidence of Ole Kiok had he been called would have been unfavourable to the prosecution case. Without the evidence of Ole Kiok the magistrate could not properly say as he did that the evidence given by the accused "cannot be accepted".

Moreover, as State Counsel conceded, the record of another criminal case, *Republic v. Ole Kiok*, was wrongly taken into account by the magistrate to disprove the evidence of the appellant.

In his judgment the magistrate stated that he called for the case to which the appellant referred and ascertained from the record that the appellant's version of the case was not entirely accurate. It was a point of little substance but nevertheless since it reflected on the credibility of the appellant it was a step highly prejudicial to him and leads one to wonder if perhaps the magistrate's knowledge of this previous case was such as to conceal from him the necessity of calling Ole Kiok.

On the basis presumably of his examination of this record the magistrate said Ole Kiok was discharged "for lack of evidence against him". Some weight appears to have been given to that fact (assuming that was indeed the reason for withdrawing the case) without considering that inability to prove beyond reasonable doubt theft by Ole Kiok is by no means proof that he did not sell the cattle to the appellant.

Disregarding as he did the failure of the prosecution to adduce rebutting evidence the magistrate proceeded to base the conviction on weaknesses in the defence case, namely on findings with respect to the evidence of the appellant and his witness which were at least equally consistent with purchase by the appellant (perhaps under suspicious circumstances) as with theft by him. In so doing he appears to have shifted the burden of proof to the defence. The appellant he said "miserably failed to prove" that he bought the cattle. (He

was of course debarred from finding the appellant guilty of handling stolen goods under s. 322 of the Penal Code since that offence is triable by a Resident Magistrate only.)

The appellant's application for the return of his money or the cattle was refused there being ample evidence that the cattle had been stolen and that they were not bought by him in market overt.

State Counsel has asked us to consider ordering a retrial. After careful consideration we have come to the conclusion that the evidence adduced in this case is not such as would justify an order for a retrial.

Appeal allowed.

The appellant appeared in person.

For the respondent:
JB Shilenje (State Counsel)

Queens Cleaners & Dyers Ltd v East African Community and others (No. 2)

[1972] 1 EA 282 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	12 June 1972
Case Number:	442/1970 (96/72)
Before:	Trevelyan J
Sourced by:	LawAfrica

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[1] Constitutional Law – Community – Minister – Appointment ceases on appointment as Minister of a State – Treaty for East African Co-operation, Arts. 49, 50, 51.

[2] Master and Servant – Vicarious liability – Ratification of servant's tort – No ratification by legal defence of driver.

[3] Master and Servant – Vicarious liability – Course of employment – Constituted by order given by person with ostensible authority from master.

Editor's Summary

The plaintiff sued the defendants for damages arising out of a traffic accident. The third defendant was found entirely to blame for the accident. The third defendant was a driver employed by the first defendant which also owned the car he was driving.

The second defendant had been a Minister of the East African Community and the car and a driver were taken by him when he went on leave. The regular driver wanted to go on leave, and the second defendant ordered the third defendant to take him to the railway station. On the way the collision occurred.

Nineteen days previously the second defendant had gone on 30 days' leave to which the court found he was entitled. By a *gazette* notice appearing later the second defendant was *gazetted* as a Minister in the Kenya Government with effect from a date three days before the accident.

The first defendant contended that the second defendant ceased to be a Minister of the Community before the accident and that the third defendant was driving in the course of his employment by the second defendant.

The full facts are set out in the judgment.

Held –

(i) on the date of his appointment as a Minister of the Kenya Government the second defendant ceased to be a Minister of the Community;

(ii) the first defendant had not ratified the third defendant's tort by arranging for his defence on a charge of careless driving;

(iii) the second defendant had ostensible authority on behalf of the first defendant to give orders to the driver;

(iv) the driver was accordingly driving within the scope of his employment with the first defendant (*Irwin v. Waterloo Taxi Cab Co. Ltd*. (5) and *Young v. Edward Box & Co. Ltd.* (14) followed).

Judgment for the plaintiff against the first and third defendants.

Cases referred to in judgment:

(1) *Quarman v. Burnett* (1840), 6 M. & W. 499; [1835–42] All E.R. Rep. 350.

(2) *Storey v. Ashton* (1896), L.R. 4 Q.B. 476.

(3) *Donovan v. Laing, Whatton & Down Construction Syndicate*, [1893] 1 Q.B. 629.

(4) *Sanderson v. Collins*, [1904] 1 K.B. 628.

(5) *Irwin v. Waterloo Taxi-Cab Co. Ltd*., [1912] 3 K.B. 588.

(6) *Lloyd v. Grace, Smith & Co*., [1912] A.C. 716.

(7) *Rand v. Craig*, [1919] 1 Ch. 1.

(8) *Century Insurance Co. Ltd. v. Northern Ireland Road Transport Board*, [1942] 1 All E.R. 491.

(9) *Canadian Pacific Railway v. Lockhart*, [1942] 2 All E.R. 464.

(10) *Hewitt v. Bonvin*, [1940] 1 K.B. 188.

(11) *Mersey Docks & Harbour Board v. Coggons & Griffiths* (*Liverpool*) *Ltd*., [1946] 2 All E.R. 345.

(12) *Chowdhary v. Gillot*, [1947] 2 All E.R. 541.

(13) *Warren v. Henlys Ltd*., [1948] 2 All E.R. 935.

(14) *Young v. Edward Box & Co. Ltd*., [1951] 1 T.L.R. 789.

(15) *Conway v. George Wimpey & Co. Ltd*., [1951] 1 All E.R. 363.

(16) *Ormrod v. Crosville Motor Services Ltd*., [1953] 2 All E.R. 753.

(17) *Crook v. Derbyshire Stone Co. Ltd*., [1956] 2 All E.R. 110.

(18) *Gibb v. United Steel Co. Ltd*., [1957] 2 All E.R. 110.

(19) *Hilton v. Thomas Burton* (*Rhodes*) *Ltd*., [1961] 1 All E.R. 74.

Judgment

Trevelyan J: There was a collision between two cars on the evening of 27 July 1969. It happened in Spring Valley, Nairobi. Both vehicles were damaged. One of them, a Peugeot, was owned by the plaintiff, and was being driven by Mrs. Allen, one of its directors. The other, a Mercedes, was owned by the first defendant, the East African Community and was being driven by one of its drivers, Mr. Kamau, the third defendant. The plaintiff claims damages from each of three defendants, though only alternatively against the first and second of them, the first as the owner of the Mercedes and employer of the third defendant, that defendant as such driver, and the second defendant, Mr. Odero – Jowi in case the driver should be held to have been acting in the course of his particular employment with him rather than in the course of his general employment with the first defendant.

The first defendant has formally admitted that its “servant or agent, who at all material times was

the driver of the Mercedes, pleaded guilty to a charge of careless driving arising out of this accident", denies that the third defendant was, at the time concerned, driving its vehicle in the course of his employment

with it, denies negligence on his part and, saying, that the accident occurred through Mrs. Allen's negligent driving, claims damages from the plaintiff for the damage to its vehicle by way of counterclaim. The second defendant denies knowledge of the accident, alleges that at the time it occurred the third defendant was driving in the course of his employment with the first defendant and not in the course of his employment with himself, and also denies that he drove negligently. The third defendant denies that the accident was caused by his negligence as alleged or at all, and claims that it was caused wholly, or was substantially contributed to, by Mrs. Allen's negligence. I have ruled that he cannot deny his negligence (see [1972] E.A. 229), and it is interesting to observe that though the plaint particularises five heads of negligence on the third defendant's part, only three of them are specifically denied leaving two, one of which is that he drove without due care and attention, to be but generally denied. But then he was convicted of careless driving on his own plea in relation to the accident and was fined Shs. 100/ – for it as each defendant admits.

I need not consider whether an allegation that a man drove without due care and attention is strictly a head of negligence or rather a re-statement that he was negligent, but I intend to deal with the facts of the cross-allegations of negligence without regard to the conviction so that my views thereon may be known. Of course, I stand by the ruling I gave. Subject to liability, including the apportionment of blame, the quantum of damages on each side is agreed.

There are six issues. They are:

"1. At the material time, was the third defendant driving the motor vehicle ARC 734 in the course of his general employment of the first defendant?

2. Was the third defendant driving at the material time in the course of his employment with the second defendant?

3. Was the third defendant at the material time driving on a frolic of his own?

4. Was the plaintiff to blame in whole or in part for the accident?

5. Was the third defendant to blame in whole or in part for the accident?

6. Costs."

I shall first consider issues four and five in respect of which three people gave evidence, Mrs. Allen, the third defendant and Mr. Ombwodo, or Francis as he has also been called. [The judge considered the evidence on negligence and continued.]

I find that the third defendant was, by reason of his negligent driving of the Mercedes, entirely to blame for the accident and the resultant damage to the cars and that Mrs. Allen was not at all to blame for it. No fault is to be found in the manner of her driving.

Whether the third issue was ever in contest is open to question, but it does not matter because the third defendant was driving not on a frolic of his own but on the instructions which Mr. Odero-Jowi gave him. In these circumstances, and on the facts before me, either Mr. Odero-Jowi or the first defendant must also be liable for what he did. Which of them is it?

Mr. Odero-Jowi was a Minister in the East African Community and the third defendant was a driver in the Community's employ. To Mr. Odero-Jowi was assigned the portfolio of Finance and Administration. Mr. Musubiri, now the Senior Superintendent of Works for the Community and stationed at Arusha, but then the Superintendent of Works stationed at Nairobi, told us:

> "I had drivers under me. Our division deals with buildings and all the staff employed are under the supervision of the Superintendent of Works. We have a transport division. It is the same division as the Works Division and the Superintendent of Works is overall in charge of the whole division, including transport. Under the Superintendent of Works we have vehicles which are under him at Nairobi. They are owned by the Works Division. These vehicles take us to places of work, say the Legal Department of the Community. Their vehicles would be no concern of ours – the vehicles only cater for the Works Division, to take the materials to work, transporting furniture from here to Arusha sometimes or to houses used by Community employees. But not, e.g. for Mr. Ouko who is Minister for Common Market. I do not and did not deal with transport for the Minister of Finance and Administration. . . ."

But that cannot be so for he came under Mr. Odero-Jowi's ministerial aegis and the reference to there having been no transport for the Minister of Finance and Administration must be meant to refer to him personally. Mr. Muchembi the Deputy Secretary in the office of the Community's Secretary General told us that:

> "Each department has its own Transport Officer if the department has any cars. I know Mr. Musubiri. He is Works Superintendent. At that time stationed in Nairobi. I do not know if he deals with transport. Works Superintendent would be within the Finance and Administration secretariat. Before he left Mr. Odero-Jowi was Minister of Finance and Administration. That is the ministerial head of the department – there is a Civil Service head also, called a Secretary."

I also have doubts about what Mr. Musubiri told us about another aspect of the case as I will indicate. At all events, on 8 July 1969, Mr. Odero-Jowi wrote a letter to the Secretary-General that he was, that day, going on thirty days' leave, and left Arusha for Nairobi with his official car and driver, Mr. Ombwodo. Whilst they were in Nairobi, on 27 July to be exact, Mr. Ombwodo asked Mr. Odero-Jowi if he could go and see his family in Arusha, and Mr. Odero-Jowi said that he could. Another driver, the third defendant, was pressed into service and Mr. Odero-Jowi told him to take Mr. Ombwodo to the omnibus terminal and then to report back to him. But the collision occurred on the way there. Meanwhile, with effect from 24 July, Mr. Odero-Jowi was appointed to a ministerial post in Kenya.

Upon the foregoing facts the first defendant says that the third defendant was, at the time, in Mr. Odero-Jowi's particular employ and he says that this is not so and that such defendant was simply in the former's general employ.

Mr. Kamau told us:

> "I was coming from Spring Valley from Odero-Jowi's house. I was taking another driver to the bus station so he can go to Arusha. His name is Francis. My instructions were given by Mr. Odero-Jowi himself . . . (xxn) . . . (Q) Who instructed you to drive the vehicle? (A) Odero-Jowi . . . I was to bring back the car to him . . . I am a driver employed in the Community and was so at the time of the accident. At that time I worked for the Works Division of the Community. It is the Division responsible for all transport in the Community . . . (Q) Who gave you daily instructions? (A) The Works Superintendent . . . Mr. Musubiri. (Q) On 27.7.1969 did he give you instructions to go to the house of Mr. Odero-Jowi? (A) He had told me to go. (Q) Did Mr. Musubiri tell you what to do when you got to Mr. Odero-Jowi's house? (A) He said I was to work with Mr. Odero-Jowi. (Q) Did he tell you what work? (A) No. I took it I was to do work as a

> driver for Mr. Odero-Jowi as I am employed as a driver . . . I was Mr. Odero-Jowi's driver for the purpose of taking the other driver to the O.T.C. bus terminus . . . In July 1969 the Community was paying me as I was driving their car . . . On the morning of 27.7.69 I reported for duty in the office. It was a Sunday so I could not have gone to the office. (Q) When were you told to go to Mr. Odero-Jowi's house? (A) Around 2 p.m. on the Sunday by my superior boss whom I have named . . . I was told this in Nairobi at 2 p.m. I was told this on Saturday afternoon not Sunday in Nairobi . . . On Saturday 26th July Mr. Musubiri told me to go to Mr. Odero-Jowi's house and be there by 2 o'clock on Sunday afternoon. I was only told to go to him and work with him as a driver . . . I was told to go there and do as Mr. Odero-Jowi would tell me . . . as far as driving is concerned. I reached Mr. Odero-Jowi's house around 7 p.m. because I was fetched from my house to go there . . . we left for the O.T.C. . . . I was told to drive by Mr. Odero-Jowi . . . I do not question a Minister's instructions. On 27.7.69 I was told to take Francis to the bus . . . In July, 1969, I was a driver and required to drive any vehicle I was asked to drive. . . ."

Mr. Ombwodo, however, says:

> "I told him [i.e. Mr. Odero-Jowi] I wanted to go to Arusha. It was a Sunday when I asked him . . . I said my children were sick in Arusha. He said I could go. He told me Kamau would drive me to the O.T.C. bus stop. I went to Mr. Kamau's home. When I had asked for a lift of Mr. Odero Jowi, it was about 6 p.m. I went to Mr. Kamau's home about 3 p.m. No, I had asked him in the morning about 10. It was 6 p.m. when he told Mr. Kamau to take me to the O.T.C. . . . I went to Kamau's house . . . I told him that the Minister Mr. Odero-Jowi wants him. That is all I said . . . about 5.30 p.m. . . . he called me and Kamau . . . He told Kamau to drive me first to the house for a box and then to the O.T.C. . . . I would not know if Mr. Kamau ever saw Mr. Musubiri. When he [Mr. Odero-Jowi] gave me permission I knew he was still a Minister. I obeyed all his orders and instructions . . . I was Mr. Odero-Jowi's driver from the time he was appointed a Minister in the Community . . . I asked Mr. Odero-Jowi a few times for permission to be out of duty. When I got such permission sometimes he got a driver from Mr. Musubiri and sometimes he drove himself . . . Mr. Odero-Jowi used to give me transport to go to the bus station before. . . ."

And Mr. Musubiri told us:

> "In July 1969 Mr. Kamau worked under me. I do not remember Mr. Odero-Jowi asking me for Mr. Kamau at any time. No-one ever asked me to release Mr. Kamau to drive for Mr. Odero-Jowi . . . Mr. Kamau never spoke to me about it. (Q) Mr. Kamau says he saw you on Saturday 26.7.69 and got permission to drive Mr. Odero-Jowi's Mercedes? (A) It is not true. Nobody asked me for such a driver on 26.7.1969. I never provided Mr. Odero-Jowi with relief drivers at his request. I never provided him with a relief driver . . . I did not give Mr. Kamau permission . . . on 27.7.1969. . . ."

I am impelled to say that I do not think that Mr. Kamau was a witness of truth. He readily, and more than once, changed his evidence about the date when Mr. Musubiri told him to report to Mr. Odero-Jowi, and he did so because he had been caught out by saying that he had received his instructions at his place of work on a Sunday. From that moment he was not quite sure what he ought to say. He could not have got his instructions at his place of work on the Sunday because it was not then open and he could not have received them on the Saturday because Mr. Ombwodo had not, by then, asked for his leave.

Indeed he knew nothing about it till he was told that "the Minister" wanted him. Moreover if, as he says, he was told to report at 2 p.m. why did he not do so? It is not enough for him to say that he was waiting to be fetched. Mr. Musubiri says that he knew nothing of the matter until later and I think that this must be so, but I nonetheless believe that he did provide Mr. Odero-Jowi with a relief driver on other occasions as Mr. Omwodo has told us. It will be recalled that when the latter asked for leave, Mr. Odero-Jowi said that "Kamau" should be brought and Mr. Omwodo knew which "Kamau" to fetch and where he lived some twelve miles out of Nairobi. This, at first blush, may suggest that it was not the custom to consult Mr. Musubiri but it was a Sunday and apart from that Mr. Ombwodo lived in Arusha and would take hours to get there and back on public transport and there would be no point in him going there if he could not have at least a reasonable time with him family. Accordingly, relief work would have to be spread over more than an evening or a day or two, or so it seems to me. Anyway, on this occasion Mr. Odero-Jowi did not consult Mr. Musubiri but sent for Mr. Kamau and told him to drive Mr. Ombwodo to the omnibus terminal and to report back to him. Both men say so and Mr. Odero-Jowi has not given evidence to say that he did not. As a matter of fact I do not think that his counsel suggested to either witness that it was not so, but whether that is right or not, I do not believe that these two drivers, on a frolic of their own, thought it expedient to implicate a man whom they understood to be a Minister. They certainly accepted that he was one. Mr. Kamau said that he would not question a Minister's instructions and Mr. Ombwodo "knew he was still a Minister". Whether Mr. Odero-Jowi as Minister had authority to give such an instruction to the third defendant as he did need not be decided in view of what I shall have to say. It could be argued that he had and that he had not. But what was Mr. Odero-Jowi's status in the Community on 27 July 1969? Mr. Muchembi who deals with its employees' terms and conditions of service has told us something about this.

Mr. Odero-Jowi was appointed a Minister in the Community as from 1 December 1967 by a letter of that date which said that his appointment was being made under Article 49 of the Treaty for East African Co-operation (which I shall later be considering) and that it was subject to a Statement of Conditions of Service containing some eight paragraphs. As two of these paragraphs particularly concern us, I will set them out so far as I think I need:

> "5. *Transport on duty*. A Minister will be provided with an official car and a driver. If a Minister uses his own car for travelling on Community business, he may claim mileage allowance . . . When travelling on Community business other than by car . . . When travelling to or from headquarters on first appointment or on relinquishing his appointment. . . ."
>
> "7. *Leave*. 15 days during each six months of service, accumulable up to 30 days to be taken within each period of twelve months. Leave unspent in each period of twelve months will be forfeited. Free first class travel for Ministers and their families to any leave destination within East Africa may be provided once in any period of six months in which leave is taken."

It is agreed, at any rate it is not in dispute, that Mr. Odero-Jowi was given an official car and a driver upon his appointment.

On 8 July 1969 he wrote the letter to which I have already referred, and left Arusha with his official car and driver. The first defendant says that he had no right to take his car or driver with him, with which I agree, and that he was only entitled to 15 days' leave, with which I do not agree. It was suggested that in regard to transport for leave purposes, paragraph 5 (above) should be consulted, but it is not so for the issue is governed by paragraph 7. Paragraph 5 concerns itself only with matters of duty, its heading says so and its contents make clear

that it does so. Looking at paragraph 7, then, the only entitlement in respect of transport on leave is "free first class travel" and that surely must mean public transport. One does not refer to travel by car in that way. As for the quantum of leave, as the same paragraph speaks of six-monthly periods of service accumulable up to 30 days to be taken within each period of twelve months it precludes an overlapping of those latter periods but provides that leave may be taken before it has been fully earned. In other words there are separate periods of twelve months each and leave must be taken (subject to the restricted right to accumulate) during and not after each such six months of service. In Mr. Odero-Jowi's case, his period would have begun on 1 December in each year, the six-monthly periods ending on 31 May and 30 November and the twelve-monthly ones on the latter date. If I am right he was, on 8 July, entitled to 30 days leave because he could carry forward 15 days earned between 1 December and 31 May and he could also take 15 days partly earned "during" a period of 6 months' service, i.e. that which began on 1 June. With respect, counsel for the second defendant was right when he said that he was entitled to that amount of leave and that "if he was on 30 days' leave he was still a Minister for 30 days unless he ceased to be". In the final analysis it will not matter whether 15 or 30 days is the correct period but let us consider whether he ceased to be a Minister. To decide this we must first refer to three articles of the Treaty:

Article 49 (3) lays down that:

> "A person shall be qualified to be appointed an East African Minister if he is qualified to vote under the national electoral laws of the Partner State nominating him: Provided that if at the time of his appointment as an East African Minister a person holds office as a Minister, . . . of a Partner State, he shall immediately resign from that office while he remains an East African Minister."

Article 50 provides that:

> "An East African Minister shall not be appointed for a fixed term but shall vacate his office on the happening of any of the following events – (*a*) if he transmits his resignation in writing to the Authority and the Authority accepts his resignation; (*b*) if he ceases to be qualified for appointment as an East African Minister; (*c*) if the Authority terminates his appointment, which it shall do upon the request in writing of the Partner State which nominated him."

And Article 51 (6) says that:

> "Each of the Partner States undertakes that it will grant to the East African Minister nominated by it a status within its territory commensurate with that of a Minister of its Government, and shall permit that East African Minister to attend and speak at meetings of its Cabinet."

As I see it, the only qualification for appointment which Article 49 (3) provides is the qualification to vote. It may therefore be argued that Article 50 (*b*) only applies when the qualification to vote is lost. But I do not think that this is how it is to be read. If a man is appointed at a time when he already holds office as a Minister in a Partner State he has, under Article 49 (3), immediately to resign that office because, as is clear, he is not to be the holder of two such offices. It seems to me, therefore, that the provision about ceasing to be qualified for appointment in Articles 50 (*b*) refers not only to the qualification proper in Article 49 (3) but to the proviso as well. I think that there is support for this view in Article 51 (6) because if a man could hold two ministries, one in the Community and one in his own territory, it would be quite differently worded. How does this affect Mr. Odero-Jowi?

By *Gazette* Notice 2234 which appeared in the Kenya *Gazette* on 1 August 1969 Mr. Odero-Jowi was shown to have been appointed Kenya's Minister for Economic Planning and Development with effect from 24 July 1969 by an instrument of that date. By another instrument, but undated, Mr. Ouko was appointed to be a Community Minister with effect from the same date (and, we are told, was appointed to the same portfolio that Mr. Odero-Jowi had held). Counsel in the case all seemed to accept that Mr. Uoko was Kenya's nomination and if he was it was certainly not intended that Mr. Odero-Jowi should remain in his Community post, for Article 49 (2) of the Treaty only allows each Partner State to have one of its nominees appointed. But I will not rely on that. It is conceded that no notice of revocation of Mr. Odero-Jowi's appointment in the Community was ever published. But I cannot believe that he would have been appointed a Kenya Minister without first having been asked if he wanted the post and had said that he did. If that is so, the last thing he would want to do would be "immediately [to] resign" from it. I think that in the particular circumstances of this case I cannot but hold that he ceased to be a Minister in the Community on 24 July 1969 or immediately thereafter, i.e. on that date or so soon thereafter as makes no difference to us. I have not forgotten that he had earned leave extending beyond that date but that seems not to affect the issue at all. But whether he was or was not a Community Minister on 27 July cannot affect the decision in this case because what as I think to be the deciding factor is whether or not the third defendant was, at the relevant time doing the work that he was employed to do. Let us, then, consider the law.

A master is liable for his servant's tort which he has authorised or subsequently ratified, and he is also liable for it when it was committed in the course of the servant's employment. In the present case there is no suggestion that anyone authorised the third defendant's tort so we need say nothing more about that, but it is suggested that it was ratified by the first defendant allowing one of its counsel to appear for him when he was prosecuted for careless driving in relation to the accident. As to this, no more is to be said than that such assistance falls far short of an act of ratification. This leaves for consideration whether Mr. Kamau was acting in the course of his employment with the Community or with Mr. Odero-Jowi when the accident occurred. In regard thereto, and as a result of counsel's industry, I was referred to a great number of authorities to enable a decision to be arrived at so that it is with diffidence that I say that I think that I need consider in detail no more than three authorities altogether. I do not doubt the decision in such cases as *Storey v. Ashton* (1869), L.R. 4 Q.B. 476, *Lloyd v. Grace, Smith & Co*., [1912] A.C. 716, *Sanderson v. Collins*, [1904] 1 K.B. 628, *Rand v. Craig*, [1919] 1 Ch. 1, *Warren v. Henlys, Ltd*., [1948] 2 All E.R. 935, *Canadian Pacific Railway v. Lockhart*, [1942] 2 All E.R. 464, *Crook v. Derbyshire Stone, Ltd*., [1956] 2 All E.R. 447 and *Hilton v. Thomas Burton* (*Rhodes*), *Ltd*., [1961] 1 All E.R. 74, on the question as to whether the servant was or was not doing what he was actually employed to do. Nor on the question as to whether this person or that was the master (or principal), do I query the decisions in such cases as *Quarman v. Burnett* (1840), 6 M. & W. 499, *Donovan v. Laing, Wharton & Down Construction Syndicate*, [1893] 1 Q.B. 629, *Century Insurance Co. Ltd. v. Northern Ireland Road Transport Board*, [1942] 1 All E.R. 491, *Mersey Docks & Harbour Board v. Coggins & Griffiths* (*Liverpool*) *Ltd*., [1946] 2 All E.R. 345 and *Gibb v. United Steel Co. Ltd*., [1957] 2 All E.R. 110. There are, as we know, cases particularly concerned with the liability which may arise from the use of a vehicle, such as *Hewitt v. Bonvin*, [1940] 4 K.B. 188, *Chowdhary v. Gillot*, [1947] 2 All E.R. 541 and *Ormrod v. Crosville Motor Services, Ltd*., [1953] 2 All E.R. 753 as well. But what, as I think, is at the core of the problem before us is the ostensible authority with which Mr. Odero-Jowi was or had been clothed. I say this because of his status as Minister, his portfolio,

his instructions to the third defendant (who had previously driven for him) and that the latter was employed to drive the Community's vehicles and was driving one of them when the accident occurred. In other words what I think we have to decide is whether Mr. Odero-Jowi, though (upon my finding) not at the time a Minister in the Community, had ostensible authority to instruct Mr. Kamau to take Mr. Ombwodo to the omnibus terminal and whether Mr. Kamau should have obeyed that instruction.

In *Conway v. George Wimpey & Co. Ltd*., [1951] 1 All E.R. 363 various contractors were engaged in work at an airport. One of them, the defendants, started a sort of omnibus service within the airport's perimeter for the benefit of its employees. Each of their drivers was expressly prohibited by the defendants from giving a lift to anyone else. Not knowing that the defendants did not employ him, one of their drivers gave such a man a lift on a lorry designed for the carriage not of men, but of materials who was injured as he got off the vehicle and sued them for their driver's negligence. It not being proved that the defendants, as opposed to their drivers, knew of any practice by their drivers to give lifts to anyone other than their own employees, the claim failed. The court rejected the argument that the driver had an ostensible, as apart from an actual authority, to carry workmen working at the airport whether or not the company employed them, and must have known that such a practice was likely to grow up or must inevitably do so. I agree. In the ordinary course of events a firm of contractors does not run a public omnibus service, and there was the express prohibition as well. An ostensible authority in the driver on the facts, could not be established. But there was a different result in *Young v. Edward Box & Co. Ltd*., [1951] 1 T.L.R. 789. The plaintiff was employed by the defendants under a contract which required him to make his own way to and from his home to where he worked in the unloading of certain stores. There was a practice which had existed for a number of Sunday evenings when the public omnibus service was crowded, for him and his fellow workmen to be given a lift in one of the defendants' lorries with the consent of his foreman and of the driver of the lorry. One Sunday evening, in the course of such a journey, the plaintiff was injured through the driver's negligence and brought an action against the defendants accordingly. The defendants' traffic manager, who was also the manager of the stores depot, gave evidence that he had never given instructions to the foreman that he should arrange for the lifts to be given on Sunday and that the foreman had no authority to consent to the plaintiff's riding on the lorry. But it was nonetheless held that the right to give the plaintiff leave to ride on the lorry was within the foreman's ostensible authority and the plaintiff was entitled to rely on that authority. Again do I agree. Would not a foreman on the site be thought by the workman there to have authority to let them have a lift on their employers' lorry rather than that they should have to get other transport or walk having regard to the difficulty of obtaining public transport? And there was a similar result in *Irwin v. Waterloo Taxi-Cab Co. Ltd*., [1912] 3 K.B. 588. The defendants owned some taxicabs which they let out on hire. By agreement with one of their customers, one of their vehicles was appropriated to his exclusive use. One of their drivers, by order of their general manager, whose orders it was the driver's duty to obey, drove him in that cab on his private business. The general manager had no authority to use the cab for that purpose, but the driver had no reason to suppose that the order was an improper one. When the plaintiff was injured by the negligence of the driver while driving the cab, he succeeded in his claim because it was held that the driver was acting within the scope of his employment when the accident occurred. And so he was. I would quote from each of the three judgments. Vaughan Williams, L.J. said:

> "This is not a case in which the plaintiff could say, 'you the defendants

> had by prior practice held out Bird as your servant'. It is not like the case of a master who has held out Bird as acting for him. Bird was never held out to the plaintiff in any capacity.
>
> The case of the plaintiff must be: 'Bird in driving was in fact acting as the defendant's servant; you told him, in respect of his duties as your servant in the taxi yard, to obey, as his orders, all the directions of Black.' I think, therefore, that any defence which is founded on Bird not being a servant of the defendant company fails.
>
> . . . since Bird drove in pursuance of the direction of Black, whose direction he (Bird) was by his duty to the defendants bound to carry out unless there was something about the direction of Black which would make a reasonable man doubt the authority, which is not the case here."

Fletcher Moulton, L.J. had this to say:

> "If a master directs a servant to take his orders in respect of matters within his contract from A.B., such orders when given, become the orders of the master. A master can always delegate his authority and he does so when either expressly or impliedly he designates a person as authorised to give orders for him and on his behalf. In the present case the fact that Black was the general manager implied that it was the duty of a servant in the position of Bird to obey the orders given to him in the ordinary matters of his service. His driving the car on this occasion was thus in fulfilment of his duty of obedience to his masters, the defendant company, and therefore he was at the time their servant doing what he was engaged upon by their orders. Nothing more than this is needed to make the principle respondent superior apply."

And Buckley, L.J. added:

> "I agree, for the reason that Bird when the accident occurred was acting as the defendant's servant and none the less because he was obeying an order which Black had no business to give him. Black did give him the order and Bird was by the defendant's directions bound to obey the order."

So, too, in the present case do I believe that when the accident occurred the third defendant was acting as the first defendant's servant. The fact that Mr. Odero-Jowi had no business to give him the order which he did is of no consequence to us. It is true that, so far as we know, no-one in terms ever said to the third defendant "You will obey all Mr. Odero-Jowi's orders at all times", but the latter was the Minister responsible, if not for all the transport in the Community as one witness said, at least for the department in which Mr. Kamau worked, and there was no reason for him to doubt his authority. It was simply his duty to obey orders given him in the ordinary matters of his service. If Mr. Musubiri had told him to drive someone to the omnibus terminal there is no reason to suppose that he would have asked whether he had authority to give him that order and I see no reason why he should have doubted that his particular Minister, for whom he had previously driven, should not have such authority also. Mr. Ombwodo, as I have said, did not doubt that he was the Minister's driver and nor did the third defendant doubt that he was a Minister. No doubt protocol demanded that a Minister should ordinarily act through subordinates, but that is no reason for supposing that he cannot act by himself and, with the odd hours to be kept, a driver could not be expected to doubt the authority of so important a personage to order him to drive his official driver on his way to take some leave even though it was a Sunday evening.

But Mr. Odero-Jawi was no longer a Community Minister when he gave his instruction. Nonetheless it makes no difference. He had been clothed with authority and neither Mr. Ombwodo nor Mr. Kamau knew that he had been

divested of it. He still had the official car and its driver, the Official *Gazette* had not yet published (though I leave open whether it would have been adequate notice had it been published before the accident) and no-one, so far as we know, had told either driver that he was no longer their political head. It will be recalled that Mr. Kamau said "I do not question a Minister's instructions." He was given an order to drive the car, his job with the Community was to drive cars and, as I believe, it was his duty not knowing of the change of circumstances to have obeyed Mr. Odero-Jowi's orders.

In the result I answer the first issue in the affirmative and the second in the negative. This means that the plaintiff is entitled to judgment for the amount claimed and interest as prayed against the first and third defendants and that the first defendant's counterclaim is dismissed. It also means that the second defendant is entitled to judgment against the plaintiff.

The plaintiff's costs will be paid by the first and third defendants jointly and severally, and the second defendant's costs will be paid by the first defendant.

Order accordingly.

For the plaintiff:
JN Desai (instructed by *Hamilton Harrison & Mathews*, Nairobi)

For the first defendant:
JM Khaminwa (Deputy Counsel to the Community) and *GH Kaunda* (Assistant Counsel to the Community)

For the second defendant:
JK Kibicho

For the third defendant:
M Owuor

Re N S
[1972] 1 EA 292 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	14 June 1971
Case Number:	37/1971 (97/72)
Before:	Harris J
Sourced by:	LawAfrica

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[1] Mental Treatment – Practice – Application for vesting of property – Must be by petition – Mental Health Act (*Cap.* 248), *s.* 38 (*K.*).

Editor's Summary

The applicant applied by originating summons under the Mental Treatment Act (Cap. 248) for an

order that her husband was incapable of managing his affairs and for the vesting of his property in trustees.

Held –

(i) an inquiry into whether a person is suffering from mental disorder can only be initiated by petition;

(ii) "manager" means the manager to whom the management of the estate of a person suffering from mental disorder has been committed.

Application dismissed.

No cases referred to in judgment

Judgment

Harris J: This is an application brought by the wife of one, Narinjan Singh (to whom I will refer as Mr. Singh), for the appointment of a guardian ad litem of Mr. Singh in proceedings brought by her under the Mental Treatment Act (Cap. 248) to have him adjudged "incapable of managing his business affairs but capable of managing himself" and to have his property vested in trustees upon a trust to be set up by the Court.

The proceedings have been initiated by means of an originating summons and when they came before Chanan Singh, J. he expressed some doubt as to the correctness of that procedure. The present application is by way of a

summons in Chambers under rr. 3 and 15 of O. 31 of the Civil Procedure Rules, and as I was also in doubt as to the proper procedure I have found it necessary to examine in some detail the provisions of the Act and of the Rules made under it so far as material.

The purpose of the Act, as stated in its long title, is *inter alia* to make provision for the care of persons who are suffering from mental disorder or mental sub-normality and for the management of their estates. It is clear, therefore, that it may be regarded as in pari materia with the corresponding legislation in England, now to be found principally in the Mental Health Act, 1959.

The power of this Court over both the persons and the estates of those suffering from mental disorder is set out in Part XI of the Mental Treatment Act, which Part contains, amongst others, ss. 38 and 40. By s. 38 (1), as amended by the Mental Treatment (Amendment) Act, 1968, it is declared that the Court may make orders–

(*a*) for the custody of any person (to whom I will refer as a patient) who shall have been found on inquiry by the Court to be suffering from mental disorder;

(*b*) for the management of the estate of any such patient; and

(*c*) for the guardianship of any such patient by any near relative or by any other suitable person.

By subs. (3) of that section (as amended by the Act of 1968) it is provided that where upon inquiry it is found that the patient to whom the inquiry relates is suffering from mental disorder to such an extent as to be incapable of managing his affairs, but that he is capable of managing himself and is not dangerous to himself or to others or likely to act in a manner offensive to public decency, the Court may, without making an order for his custody, make such orders as it thinks fit for the management of his estate including proper provision for his maintenance and for that of such members of his family as are dependent upon him therefore.

Although the only specific reference in s. 38 to the appointment of a "manager of the estate" of such a patient is in subs. (2), by which power is given to the Court, where there is no known relative or other suitable person, to order that the Public Trustee be so appointed, it is reasonably clear that the subsequent references in the Act to "managers" are intended to comprise persons to whom, by virtue of orders under subs. (1) and (3) of the section, the management of the estates of patients suffering from mental disorders has been committed.

To understand the foregoing reference to an "inquiry" by the Court it is necessary to turn to Part VI of the Act, dealing with reception orders, which, as amended by the Act of 1968, contains, in ss. 11, 12, 15 and 16, the following provisions:

"11. (1) An application for a reception order shall be made by petition, accompanied by an affidavit of particulars in support thereof, to a magistrate within the local limits of whose jurisdiction the person alleged to be suffering from mental disorder normally resides, shall be in the prescribed form, and shall be supported by a certificate from a medical practitioner.

(2) . . . . . .

(3) The petition shall state whether any previous application has been presented for a judicial inquiry into the mental capacity of the person alleged to be suffering from mental disorders in any court, and, if such application has been made, a certified copy of the order made thereon shall be attached to the petition.

12. (1) A petition shall be presented by–

(*a*) the husband or wife or any other relative of the person alleged to be suffering from mental disorder;

(*b*) where there is no known husband, wife or relative, by the Attorney-General; or

(*c*) . . . . . .

15. (1) A petition shall be considered in private in the presence of the petitioner, the person alleged to be of unsound mind (unless the magistrate in his discretion otherwise directs), any person appointed by the person alleged to be suffering from mental disorder to represent him and such other persons as the magistrate may think fit.

(2) If no such person is appointed to represent the person alleged to be suffering from mental disorder the magistrate may appoint a person for such purpose.

16. (1) After consideration of the petition, the magistrate may either adjudge such person to be suffering from mental disorder and make a reception order, in the prescribed form, for the admission of such person into a mental hospital, or may dismiss the petition, or may adjourn the same for further evidence or inquiry, and may make such order as to the payment of the costs of the inquiry by the person upon whose application it was made, or out of the estate of the person alleged to be suffering from mental disorder or otherwise, as he may think fit."

From these provisions it is clear that the expression "found by inquiry . . . to be suffering from mental disorder" should be given the same meaning as in the English legislation, namely, so found after a judicial inquiry based on medical evidence. The provisions of Part VI of the Act relate to such inquiries when held by magistrates while Part XI deals with those held by the High Court.

The relationship in this respect between Parts VI and XI of the Act is further illustrated by the amending Act of 1968 which, following the recent change of nomenclature in England, introduces the expression "suffering from mental disorder" in place of the expression "of unsound mind" and which by s. 2 defines a person suffering from mental disorder as a "person who has been found to be so suffering under Part VI or Part XI of this Act".

It is clear from the title of these present proceedings that they have been brought under s. 38 (3) and it will be observed that the jurisdiction under this section arises, as in all matters under Part XI, only in the case of a person duly found after a judicial inquiry to be suffering from mental disorder.

Although s. 38 does not specifically require that proceedings under it shall be commenced by petition I am of the view that this is the intention of the legislation. Support for this is seen in s. 40, which is in more general terms than s. 38 and enables the Court, upon application to it by petition concerning "any matter whatsoever connected with a person who is suffering from mental disorder or mental subnormality, or with his estate", to make such orders, subject to the other provisions of Part XI, regarding such application as it thinks fit. Some further support is to be obtained from the fact that, so far as can be gathered, the practice hitherto would seem to have been to initiate proceedings under s. 38 by way of petition, added to which it may be said that, whereas a summons does little more than indicate the precise relief sought, a petition generally sets out the facts and allegations upon which the claim for relief is based.

The desirability of giving fair warning to the person alleged to be suffering from mental disorder of the presentation of such a petition is recognized by the Mental Treatment Rules made under the Act. By r. 16 a prescribed form of notice of the petition is required to be served on the person concerned, together with a copy of the petition and supporting documents, and r. 17 prohibits the making of any order on the petition until the expiration of seven days after such service. R. 18 expressly precludes the Court from dispensing with such service and r. 19 specifies in detail the manner in which service is to be effected and requires the filing of an affidavit of service in every case. In all these respects the general desirability of affording to every person, in regard to whom the control of his affairs is intended to be removed by the Court from his hands on an allegation of mental incapacity, an opportunity to resist such a measure, is fully recognised by the law and practice in England under the analogous legislation in force there. It is to be observed also that the Mental Treatment Rules make no provision for the service of summonses as it does of petitions, an omission which lends further support to the view that, in a case such as the present, the proceedings should be commenced by petition.

For these various reasons it seems to me that the present proceedings, which have been initiated by a summons, should have been initiated by petition. From this it would seem to follow that the proceedings are a nullity.

Apart from the foregoing matters Part XI of the Act confers jurisdiction upon the Court to make orders for the guardianship of the person concerned and for the management of his estate and, although by s. 39 (4) it is expressly declared that for the purposes of the Act and of the Penal Code a manager so appointed is deemed to be a trustee, the subsection categorically states that he shall have none of the powers of a trustee under any other law for the time being in force. It is manifest, therefore, that the Court would have no power to grant the relief sought in these proceedings of vesting the property in trustees upon a trust to be created by the Court.

The application for the appointment of a guardian ad litem, which is the only matter at present before me, is accordingly dismissed. In addition the applicant will have liberty, if she should so wish, to discontinue the proceedings and, in the event of her filing fresh proceedings by way of petition in the matter which I have indicated, to make use of the medical evidence already before the Court in the present proceedings. I make no order as to costs and they are hereby reserved.

Order accordingly.

For the applicant:
GS Pall

Wambugu v Public Service Commission
[1972] 1 EA 296 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	15 October 1971
Case Number:	73/1971 (98/72)
Before:	Chanan Singh J
Sourced by:	LawAfrica

[1] Costs – Successful party deprived of costs – Reasons other than misconduct – Notice to other party of intention to sue – Principles.

Editor's Summary

The applicant applied for orders of certiorari and mandamus without first giving notice of his intention to do so to the Attorney-General.

The Attorney-General asked that no costs be awarded against the respondent, and that effect be given to the special position of the defendant Commission. The applicant contended that costs should follow the event.

Held –

(i) where a body is amenable to the jurisdiction of the court an order for costs can be made against it;

(ii) there can be good reason other than misconduct for depriving a successful plaintiff of his costs;

(iii) notice of intention to sue should be given in all cases unless the plaintiff's interests are likely to be harmed by it;

(iv) in this instance the applicant would be awarded no costs.

Order accordingly.

Cases referred to in judgment:

(1) *Upmann v. Forester* (1883), 24 Ch. D. 231.

(2) *Goodhart v. Hyett* (1883), 25 Ch. D. 182.

(3) *ex p. Brooks* (1883–4), 13 Q.B.D. 42.

(4) *ex p. Blease* (1884–5), 14 Q.B.D. 123.

(5) *Wittman v. Oppenheim* (1884), 29 Ch. D. 260.

(6) *Imtiaz Bano v. Latafat-un-nissa* (1889), 11 All. 328.

(7) *Walter v. Steinkopff*, [1892] 3 Ch. 489.

(8) *In Civil Service Co-operative Society v. General Steam Navigation Co.*, [1903] 3 Ch. 489.

(9) *Laxmibai v. Radhabai* (1917), 42 Bom. 327.

(10) *Allah Diya v. Sona Devi* (1942), 64 All. 745 at p. 752.

(11) *Kameshwar Singh v. Nebilal Mistry* (1944), 23 Pat. 927.

(12) *Swaminatha v. Official Receiver* (1957), S.C.R. 775.

Judgment

Chanan Singh J: This is an application for orders of certiorari and mandamus arising out of the "removal" of the applicant from the post of Inspector of Police. The application is not contested by the Attorney-General who consents to the making of both the orders sought; but Mr. Mitra, for the applicant, has informed me from the Bar that his client will be content with an order of certiorari and does not any longer require an order of mandamus. Therefore, I grant the order of certiorari and direct that the decision of the Public Service Commission confirming the decision of the Commissioner of Police dated 4 February 1971 removing the applicant from service shall be quashed forthwith.

This disposes of the main application but the question of costs remains to be dealt with. Mr. Potter, of the Attorney-General's Chambers, who appears for the respondent says that as soon as he received from the Public Service Commission papers in relation to this case, he told Mr. Mitra that the application for orders of certiorari and mandamus would not be contested but that he would be arguing that, in the special circumstances of this case, no costs should be ordered against the Public Service Commission. In fact, the only argument in Court was on the subject of costs.

S. 27 (1) of the Civil Procedure Act (Cap. 5) gives the court "discretion" and "full power to determine by whom . . . and to what extent" costs are to be paid "subject to such conditions and limitations as may be prescribed, and to the provisions of any law for the time being in force". No special conditions or limitations or law governing proceedings like these seem to exist, but a Proviso to s. 27 (1) states that costs "shall follow the event unless the court . . . shall for good reason otherwise order". The law in India and England is the same and is more or less similarly worded.

It has been generally held that unless a successful party has been guilty of misconduct he is entitled to costs as of right. But there can be other "good reason" than misconduct justifying a departure from the general rule and it is necessary to examine the facts of each case to come to a conclusion.

In Civil Service Co-operative Society v. General Steam Navigation Co., [1903] 2 K.B. 756, the trial judge had, during the hearing, suggested the matter might be left to him to say what, apart from strict legal rights, should be done. The defendants had not agreed. Thereupon, the judge had suggested a solution which also was not acceptable to the defendants. A judgment for the defendants was now pronounced and this ordered that each party should bear his own costs. It was held on appeal that the trial judge had no materials before him on which he could exercise his discretion by making that order. See also *Upmann v. Forester* (infra).

Laxmibai v. Radhabai (1917), 42 Bom. 327 was a case between two women both of whom claimed to be widows of one person. The defendant lost throughout but the trial judge, regarding the plaintiff to be more at fault, ordered the costs to come out of the estate. On appeal, the High Court upset this order as a violation of the established principle that, in the absence of misconduct, a successful party must not be burdened with the costs of the unsuccessful party

Mr. Mitra has drawn my attention to passages in Vol. 11 of Halsbury's *Laws of England* and also to some local cases which say or decide that costs of proceedings for orders of certiorari and mandamus are governed by the same principles as costs of other civil proceedings. He says that his client had to come to court because he had exhausted the other remedies available to him.

Mr. Potter does not challenge the general principles as stated in textbooks and decided cases but contends that those principles admit of exceptions being made in the discretion of the Court. He asks me to take into consideration the special position given to the Public Service Commission by the Constitution which in s. 106 (2) says that "the Commission shall, in the exercise of its functions under this Constitution, not be subject to the direction or control of any other person or authority". This provision does not, Mr. Potter accepts, preclude the Court from issuing orders of certiorari and mandamus – see s. 123 (8) of the Constitution – (because these orders no more than ensure that the functions of the Commission are performed in accordance with law) but it does establish the independent position of the Commission. The Attorney-General himself enjoys a similar, independent, position under s. 26 (8) of the Constitution, but it has never been argued that he should not pay the costs of proceedings if law makes him liable for them.

The Public Service Commission is not like an ordinary executive body. The Constitution in s. 106 makes elaborate provision for the appointment and removal and qualifications and disqualifications of members of the Commission. And s. 8 of the Service Commissions Act gives to every member "such and the like protection and privileges in case of any action or suit brought against him for any act done or omitted to be done in the execution of his duties . . . as is by law given to a magistrate acting in the execution of his office".

The high dignity with which the Constitution and other laws endow the Public Service Commission is, thus, clear. The question, however, is whether this position of dignity entitles the Commission to exemption from the payment of costs in accordance with general principles. In my opinion, it does not. The very fact that a person or a body is amenable to the jurisdiction of the Court shows that he or it is amenable not only in respect of the decision on the subject matter of the dispute but also in respect of costs of court proceedings.

Mr. Potter also argues that the suit was not contested and that this shows the bona fides of the respondent. In *Kameshwar Singh v. Nebilal Mistry* (1944), 23 Patna 927, costs had been disallowed because the claim had not been contested and because the amount involved was "paltry". The High Court held that these could not be valid grounds for disallowing costs. So far as the absence of contest was concerned, it should be observed that all that happened was that the defendant did not appear at the hearing. The plaintiff offered evidence and a witness was examined on his behalf. This was not, therefore, an uncontested case in the sense in which the present case is. Mulla's statement of the principle (*Civil Procedure Code*, 13th ed., p. 181) on the basis of the *Kameshwar Singh* case is that a successful party cannot be deprived of his costs "merely" because the suit proceeds *ex parte*. The Supreme Court of India decided in *Swaminatha v. Official Receiver* (1957), S.C.R. 775 that the Official Receiver not defending an appeal for want of funds was nevertheless liable for costs if the appeal succeeded.

In my opinion, the fact that the respondent did not contest the case is not in itself a ground for refusal of costs but it is a factor that can be taken into account if other good reason exists.

Another argument advanced by Mr. Potter is that the applicant did not give a notice before action and that, therefore, the respondent had no opportunity to seek legal advice and to make amends without the necessity of a court case. Mr. Potter assures me that there would have been no need for these proceedings if the matter had been brought to the attention of Attorney-General by the usual notice before action.

Two cases are usually quoted in support of such a request. These are bankruptcy cases: *ex p. Brooks* (1883–4), 13 Q.B.D. 42 and *ex p. Blease* (1884–5), 14 Q.B.D. 123. A preliminary objection was raised in those proceedings without prior notice to the other side. The objection was upheld but no costs were awarded to the successful objector.

These two cases were quoted in *Imtiaz Bano v. Latafat-un-nissa* (1889), 11 Allahabad 328 and the court's decision was: "We, however, see no reason to depart from the practice of this Court in these matters. We do not see any reason why we should follow what apparently is the special practice of Courts in England in deciding bankruptcy appeals."

This would not, from the report, appear to be really a case of absence of notice before suit. An appeal had been filed which did not lie. The respondent, without warning the appellant, raised a preliminary objection which prevailed and the appeal was dismissed.

Another case which is usually quoted in support of the proposition is *Upmann v. Forester* (1883), 24 Ch. D. 231. There, the defendant had imported some cigars which, unknown to him, infringed the trade mark of the plaintiffs. The boxes of cigars were lying at the docks when the plaintiffs came to know and, without communication with the defendant, served him with a writ. The defendant, who had no knowledge of the breach of trade-mark, immediately wrote to the plaintiffs consenting to the orders sought, only the question of costs being reserved. It was held that the defendant must pay costs. Chitty, J., in the course of his judgment observed: "I do not think that this is a case where it would be just for me to deprive the plaintiffs of their costs. A plaintiff in these cases is placed in circumstances of difficulty, because if he were to give notice there is a great probability of the defendant at once getting rid of the spurious articles before the plaintiff could interfere, and the plaintiff, therefore, by giving notice would in many instances be affording the defendant an opportunity of doing that which an injunction would have prevented."

Thus, there were in the *Upmann* case circumstances which clearly prevented a departure from the general rule.

Another case in which the question of absence of prior notice was involved was *Goodhart v. Hyett* (1883), 25 Ch. D. 182. There, a right was set up by the plaintiffs and was denied by the defendant and North, J., held that "the plaintiffs must have the costs of the action" in spite of the fact that no notice before action had been given. In that case, there was not, however, merely a denial but witnesses were produced on both sides. The judge had this to say on the subject of notice at pp. 192–193:

> "I am very sorry to find an action of this kind commenced without any communication to the defendant but there is no rule that a plaintiff must first apply to the defendant before bringing his action . . . an application to the defendant could not have defeated the plaintiffs' object . . . all parties might have benefited by coming to an arrangement . . . it seems to me very probable that the suit would have been avoided altogether.
>
> "Under these circumstances I have felt very much disposed, if I could, to say that there ought to be no costs of the action. I do not think I can do that. . . ."

The reason given was that a right had been asserted and denied and witnesses had been produced. *The Goodhart* case is, in these matters, distinguishable from the present.

Wittman v. Oppenheim (1884), 27 Ch. D. 260 concerned the infringement of a design for a lamp. The relevant part of the judgment at pp. 267–268 reads as follows:

> " . . . I am satisfied that there has been no mala fides whatever; I think that the Defendant in no way intended to act dishonestly. The only questions are whether I ought to grant an injunction, and, if so, whether I shall order the defendant to pay costs. I should be very willing to make no order as to costs, but, looking at the decision in *Upmann v. Forester* and to the rule as there stated by Chitty, J., with which I entirely agree, I am afraid I have no choice. It is said that the plaintiffs issued their writ without notice to the defendant, and that the defendant, as soon as he had notice of the plaintiffs' title, did his best to undo what he had done. But at the same time, I cannot say that the plaintiffs were wrong in issuing their writ without notice, and after that the only offer which the defendant could properly make was to submit to an injunction and pay costs."

I have already held above that the *Upmann* case on which the *Wittman* judgment was based is distinguishable from the present case. In the matter of notice

before suit, cases concerning breaches of a trade-mark or design are in a class by themselves.

In Walter v. Steinkopff, [1892] 3 Ch. 489, North, J., from whose judgment in the Goodhart case I have quoted above, explained his views more fully. He says at p. 501:

> ". . . when we came to costs, having regard to what has been so notorious a practice for so many years, I think that the Defendants should have had notice given or protest made to them before proceedings on these grounds were commenced against them.
>
> "I desire not to be misunderstood. It never has been the law, nor am I laying down any rule, that a defendant should always have notice of the intention to bring an action before it is brought. In many cases there is no time for such notice, as promptitude is essential; for instance, in this very case, as to the Ridyard Kipling article. In many cases the knowledge that an action was about to be brought would enable the defendant to take such steps as would render such action useless. Notice by a patentee that he was about to bring an action against an infringer would probably, according to recent decisions, have the effect of precipitating an action against himself for the use of a threat."

This suggests I think a notice ought to be given unless the plaintiff's interests are likely to be harmed by communication with the opposite party. Although the judge did not say so, it seems he would regard the giving or absence of notice before action as a relevant consideration in awarding costs. The judgments in the *Goodhart* and *Wittman* cases expressly admitted relevancy and would, but for the reasons stated, have, it seems, refused costs to the successful parties.

I will conclude this review of cases with a recent case from Allahabad. I give below an extract from the judgment in *Allah Diya v. Sona Devi* (1942), All. 745 at p. 752:

> "The learned Judge of the court below refused to allow the plaintiff respondent her costs in his court. He gave no reason, saying merely that he thought in the circumstances of the case that costs should not be allowed. We can see no circumstances which could justify the learned Judge in refusing to allow costs to the plaintiff respondent. Learned counsel on behalf of the applicants has suggested that she did not issue notice to his clients before she instituted the suit, but we cannot see what difference that makes since the suit was contested and there is nothing to suggest that no costs would have been incurred if notice had been sent. We are satisfied that the plaintiff respondent is entitled to her costs."

In all the cases that I have quoted costs were ultimately allowed to the successful party, but I think they envisage circumstances in which, quite apart from misconduct, costs might be refused. The present proceedings were not contested and I am satisfied that they would not have been necessary if notice of action had been given. The applicant was removed from service in the first week of June 1970, and he did not file his application until a year later. Another two weeks' delay would not have made any difference to his case even if his complaint was not remedied out of court. I think this is a case in which I should exercise my discretion by awarding no costs to the successful applicant. Accordingly, I order that each party shall bear his or its own costs. This, incidentally, is in accord with two unreported English cases quoted by Mr. Potter from a footnote at p. 81 of Vol. 11 of Halsbury, (3rd ed.), although those cases go further than it is necessary for me to go in the present case.

I should perhaps add that even if I had come to a different decision on the subject of costs I was bound to place it on record – and this I do now – that in my opinion the Public Service Commission was not at any time actuated by any improper motive. It took the decision completely bona fide. Some confusion was introduced into the situation by the distinction that exists in the regulations between "removal" (which means termination of service without loss of any accrued rights) and "dismissal" (with loss of all rights and privileges). The procedure in the two cases is different. The Commissioner of Police and the Public Service Commission in ordering "removal" were only trying to be generous towards the applicant but, in the process, they overlooked the need formally to invite the applicant to make what explanation he wanted to of certain complaints against him.

Order accordingly.

For the applicant:
RK Mitra (instructed by *JK Winayak & Co*, Nairobi)

For the respondent:
KD Potter, QC (Special Legal Constitutional Counsel) and *MG Sharma*

Jubilee Insurance Co Ltd v Ombaka
[1972] 1 EA 301 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	21 December 1966
Case Number:	548/1966 (99/72)
Before:	Farrell J
Sourced by:	LawAfrica

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[1] Insurance – Motor Insurance – Third party risks – Compulsory insurance – Driver not authorised – No liability on insurer – Insurance (*Motor Vehicles Third Party Risks*) *Act* (*Cap.* 405), *ss.* 8, 10 (*K.*).

[2] Insurance – Motor Insurance – Compulsory Insurance – Insurer only liable when judgment entered against assured – Insurance (*Motor Vehicles Third Party Risks*) *Act* (*Cap.* 405), *s.* 10 (*K.*).

[3] Restitution – Money paid for another – Insurance claim – No liability on insurer to pay and no request by assured to pay – Money not recoverable.

Editor's Summary

The defendant owned a motor vehicle which was insured by the plaintiff company in respect of the driving of any authorised driver. In the absence of the defendant the keys were taken from his jacket by the defendant's son who was unlicensed. An accident was caused by the son's negligent driving.

A passenger in the other vehicle involved made a claim on the plaintiff for damages for the injuries suffered by him. The plaintiff repudiated liability to the defendant, as the son was not an authorised driver.

Negotiations proceeded for the settlement of the third party's claim during the course of which the defendant disclaimed any responsibility for the negotiations or any settlement. Nevertheless the plaintiff paid the third party damages agreed upon although no suit had been filed or judgment entered.

The policy contained a clause authorising the insurer to settle claims.

The plaintiff claimed from the defendant the amount it had paid to the third party as money which it became liable to pay under the Insurance (Motor Vehicles Third Party Risks) Act (Cap. 405) and which it was not liable to pay under the policy and alternatively as money paid for and on behalf of the plaintiff and contended that the car had been driven with the defendant's permission.

The defendant contended that a judgment was necessary before any liability on the insurer arose, that the liability was not covered by the policy, that the

money was not paid for the defendant and that the plaintiff had no power to settle a claim after having repudiated liability to the defendant.

Held –

(i) the car was being driven without the defendant's permission;

(ii) as well as being unlicensed, the son was not an authorised driver;

(iii) it is a precondition for liability on the insurer that judgment must have been obtained;

(iv) the cover given by the policy extended only to authorised drivers;

(v) the nullification of the exception excluding liability for an unauthorised driver did not operate to extend the policy to cover more than was agreed upon (*New Great Insurance Co. of India v. Cross* (3) distinguished);

(vi) accordingly the plaintiff would not have been liable to the third party;

(vii) payment was not made with the consent of the defendant;

(viii) there was no compulsion on the plaintiff to pay the third party;

(ix) the plaintiff had no right under the policy to settle the third party's claim after repudiating liability to the defendant (*Groom v. Crocker* (2) followed);

(x) accordingly the claim for money paid failed.

Judgment for the defendant.

Cases referred to in judgment:

(1) *Berton v. Alliance Economic Investment Co. Ltd*., [1922] 1 K.B. 742.

(2) *Groom v. Crocker*, [1938] 2 All E.R. 394.

(3) *New Great Insurance Co. of India v. Cross*, [1966] E.A. 90.

[**Editorial note:** In cases where it is not disputed that the insurer is liable to pay the third party, but claims that he is entitled to recover from the assured, the insurer must have power under the condition in the policy to settle the third party claim. The insurer is not repudiating the policy, but claiming recovery under the terms of the policy.]

Judgment

Farrell J: This is a claim by the plaintiff an insurance company for repayment by the defendant, the insured under a policy of insurance, of a sum of money which the plaintiff claims that it became liable to pay to a third party by virtue of the provisions of the Insurance (Motor Vehicles Third Party Risks) Act (Cap. 405), to which I shall refer as "the Act". There is an alternative claim for an identical sum as money paid by the plaintiff for an on behalf of and to the use of the defendant.

The facts out of which the claim arises are as follows. The defendant is the owner of a Fiat motor vehicle which is the subject of the policy. During the week-end of 2 to 3 January 1965, the defendant had gone to Nakuru, leaving his family at home in Nairobi, and the motor-car in the garage of his house. The defendant's eldest child was at that time a schoolboy about 16 or 17 years of age who had been learning to drive at his school and held a provisional licence. On the Sunday afternoon, the defendant's son wished to visit the near-by shops. He looked for the keys of the car, found them in his father's coat pocket, took them and proceeded to drive the car along the main Ngong Road. While

doing so he had to swerve to avoid running into the back of a lorry which had braked suddenly. A car approaching from the opposite direction in order to avoid a collision drove into the ditch, and a passenger in the vehicle (to whom I shall refer as “the third party”) sustained a fractured leg.

It is not disputed in these proceedings that the accident was due to the negligence of the defendant's son, and that he was at the time an unlicensed driver. The only fact in dispute is whether the defendant's son was driving with the defendant's permission, a point which is of importance in connection with the definition in the policy of "authorised driver". For the insurers Mr. da Gama Rose has valiantly contended that permission, if not actually given, is to be inferred from the surrounding circumstances, and relying on a definition of the word "permit" given by Atkin, L.J. in *Berton v. Alliance Economic Investment Co. Ltd*., [1922] 1 K.B. 742, he argues that the defendant, not having taken reasonable steps to prevent his son from driving the car where it was in his power to prevent it, must be deemed to have given him permission to do so. I am wholly unable to accept this submission, which to my mind is negatived by the unchallenged evidence that the son had never driven the defendant's car before, nor is there anything to suggest that the defendant had reason to suppose that he would do so on the occasion in question or that any precautions were necessary to prevent him from doing so. I have ho hesitation in holding that the defendant's son was driving the car without his father's permission.

Such being the facts, the issues which arise fall to be decided in the light of the construction to be given to the terms of the policy and to the provisions of the Act. I shall first set out those parts of the policy which appear to be material. The policy is a comprehensive policy of insurance for a private car and is in the usual form of such a policy. Section II is headed "Liability to Third Parties" and so far as relevant reads as follows:

> "1. The Company will subject to the Limits of Liability indemnify the Insured in the event of accident caused by or arising out of the use of the Motor Vehicle against all sums including claimant's costs and expenses which the Insured shall become legally liable to pay in respect of
>
> (*a*) death of or bodily injury to any person" (there follow certain exceptions and exclusions which are not material to this case). . . .
>
> 2. In terms of and subject to the limitations of and for the purposes of this Section the Company will indemnify
>
> (*a*) any Authorised Driver who is driving the Motor Vehicle" (and there follow certain provisions which it is unnecessary to set out)

The expression "Authorised Driver" is defined later in the policy as "any of the following:

> The Insured:
>
> Any person driving on the Insured's order or with his permission. Provided that the person driving is permitted in accordance with the licensing or other laws or regulations to drive the Motor Vehicle or has been so permitted and is not disqualified by order of a Court of Law or by reason of any enactment or regulation in that behalf from driving the Motor Vehicle."

Section III of the policy contains, under the heading "Avoidance of Certain Terms and Right of Recovery", the following provision (to which I shall refer as "the avoidance clause"):

> "Nothing in this policy or any endorsement hereon shall affect the right of any person entitled to indemnity under this policy or of any other person to recover an amount under or by virtue of the legislation" (which by definition includes the Act).
>
> "But the Insured shall repay to the Company all sums paid by the Company which the Company would not have been liable to pay but for the Legislation."

After the avoidance clause there are set out certain General Exceptions as follows:

> "The Company shall not be liable in respect of
>
> 1. any accident loss damage or liability caused sustained or incurred . . .
>
> (*b*) whilst any motor vehicle in respect of which indemnity is provided by this Policy is . . .
>
> (ii) being driven by or is for the purpose of being driven by him in charge of any person other than an Authorised Driver. . . ."

Then follow the usual "conditions" of which it is unnecessary to refer to any except the following:

> "5. No admission offer promise or payment shall be made by or on behalf of the Insured without the written consent of the Company which shall be entitled if it so desires to take over and conduct in his name the defence or settlement of any claim or to prosecute in his name for its own benefit any claim for indemnity or damages or otherwise and shall have full discretion in the conduct of any proceedings and in the settlement of any claim and the Insured shall give all such information and assistance as the Company may require."

The contention of the plaintiff is twofold. First, it submits that it was not in the events which happened liable to pay any indemnity under the terms of the policy regarded simply as a contractual document and unaffected by legislation; secondly, it submits that under the provisions of the Act it was obliged to satisfy the claim of the third party. On that footing, the plaintiff claims that the conditions of the avoidance clause are fully satisfied and that it is entitled to exercise against the defendant the right of recovery conferred in that clause.

So far as the first submission is concerned there is no substantial dispute between the parties. Even if, as the plaintiff contends, the defendant's son had been driving with his father's permission, so as *prima facie* to fall within the definition of authorised driver, it is conceded that as he was an unlicensed driver, he would be caught by the proviso to the definition, so as to prevent any liability arising under Section II, paragraph 2 (*a*) of the policy.

It is, however, in respect of the second limb of the plaintiff's argument that the principal issue arises, since it is the contention of the defendant that the third party had no right to the payment of any sum of money under or by virtue of the Act, and that accordingly the plaintiffs are not entitled to recover from the defendant the amount paid by them to the third party as being a sum which the plaintiffs "would not have been liable to pay but for the Legislation".

The only provision in the Act which directly imposes upon an insurer an obligation to pay compensation to an injured third party is to be found in s. 10 of which subs. (1) reads as follows:

> "(1) If, after a policy of insurance has been effected, judgment in respect of any such liability as is required to be covered by a policy under paragraph (*b*) of section 5 of this Act (being a liability covered by the terms of the policy) is obtained against any person insured by the policy, then, notwithstanding that the insurer may be entitled to avoid or cancel, or may have avoided or cancelled, the policy, the insurer shall, subject to the provisions of this section, pay to the persons entitled to the benefit of the judgment any sum payable thereunder in respect of the liability, including any amount payable in respect of costs and any sum payable in respect of interest on that sum by virtue of any enactment relating to interest on judgments."

It is common ground that any liability which arose in this case was a liability which required to be covered by a policy under paragraph (*b*) of s. 5 of the Act. It is also common ground that no question of avoidance or cancellation arises in this case. But for the defendant it is pointed out that a precondition for the application of the subsection is that a judgment should first have been obtained against a person insured by the policy, and it is of necessity conceded in this case that there has been no such judgment. Nor has any case been cited which suggests that an insurer can be obliged to pay any sum to an injured third party in the absence of a judgment first obtained against a person insured under the policy. In the recent case on which the plaintiffs particularly rely, the *New Great Insurance Co. of India v. Cross*, [1966] E.A. 90 the injured respondents had recovered judgment in other proceedings against the insured. In this case the third party had made a claim and threatened proceedings, but no proceedings had in fact been instituted. The question whether it was reasonable in the circumstances for the plaintiffs to negotiate a settlement of the claim may be relevant in another context. But where the issue is whether the plaintiff was obliged by law to pay the sum of £800 to the third party, I am satisfied that the absence of a judgment is fatal to the plaintiffs' contention, since the obligation under s. 10 (1) does not arise until a judgment has been obtained.

That, in my view, is sufficient to dispose of the principal issue, without the necessity of going on to consider whether the liability to the third party was a liability in fact covered by the policy. But as the question has been argued at some length, it is right that I should express an opinion on it. On the construction of the Act which has been consistently applied for the last 30 years in its country of origin, and up till recently applied (with certain minor exceptions) in this country, the reference in s. 8 to "any condition" has been given a narrow rather than a wide meaning. See the dissenting judgment of De Lestang, J.A., in the *New Great Insurance* case *supra*. But by the majority decision in that case it has been held that s. 8 makes ineffective a condition providing that no liability shall arise under a policy insofar as it relates to such liabilities as are required to be covered under s. 5 (*b*) of the Act. This court is, of course, bound by that decision but is not called upon to apply it more widely than the decision itself demands. That case was concerned with an unlicensed (and disqualified) driver driving with the permission of the insured, and it was held that the proviso in the schedule of the policy dealing with disqualification must be treated as a condition caught by the provisions of s. 8 and that the liability was covered because the condition excluding liability was ineffective. The present case, however, is concerned with an unlicensed driver driving (as I have found) without the permission of the insured. So far as the fact of his being unlicensed is concerned, I am bound to hold that the similar proviso in the schedule to the policy excluding him from the definition of "authorised driver" is a condition which is invalidated by s. 8 and so must be ignored. But it does not necessarily follow that the liability is covered by the policy, since in this case the driver was not only unlicensed but also unauthorised, and it is by no means self-evident that the inclusion within the definition of authorised driver of "any person driving on the insured's order or with his permission" is to be treated as a condition on the same basis as the proviso. A condition is in its nature restrictive, but the part of the definition referred to is the reverse of restrictive. It in fact enlarges the cover of the policy by extending it to persons whom the insured is under no obligation to bring within the cover if he does not choose to do so. As Newbold, V.P. (as he then was) remarks in the case cited at p. 95 I, "the cover required by the section may properly be restricted to the vehicle when used by the owner himself". But in this case the cover is not restricted but is extended to cover the class of person falling within the definition of "authorised driver" and such an extension cannot be regarded as a condition without doing violence

to the ordinary meaning of language. It is true that paragraph 1 (*b*) (ii) of the General Exceptions excludes liability when the vehicle is being driven by any person other than an authorised driver, and in that form the provision may properly be regarded as a condition. But granted that it is and that as such it is of no effect by virtue of s. 8 of the Act, the mere annulment of the exception is not sufficient positively to bring within the cover of the policy persons who have not already been brought within its scope by paragraph 2 (*a*) of Section II and the definition of "authorised driver", viz., persons driving without the permission of the insured. To hold otherwise would involve a liability arising under the policy when the vehicle was being driven by a joy-rider or a thief. In any case, some meaning must in my view be given to the words in s. 10 (1) of the Act "being a liability covered by the terms of the policy". That implies that there may be liabilities not covered by the terms of the policy. In so far as this result arises from conditions nullified by s. 8, those conditions must, of course, be ignored; but s. 10 recognises that, quite apart from such conditions, there may be liabilities required to be covered by a policy, but not in fact so covered.

For these reasons, as it seems to me, even if the third party had obtained a judgment either against the defendant or (as appears more likely) against his son, the insurers would not be obliged by s. 10 (1) to satisfy the judgment since liability in respect of a person driving without the permission of the insured is not a liability covered by the terms of the policy.

The alternative claim of the plaintiffs against the defendant that the sum of Shs. 16,000/- paid by them to the third party was money paid for and on behalf of and to the use of the defendant, and as such recoverable by them, appears to have been overlooked in argument, but nevertheless remains an issue. Before considering the legal aspects of the question, it will be convenient to touch briefly on the correspondence which passed between the parties and their advocates, and the third party's advocates up to the point when the settlement was reached.

The accident was reported by the defendant to the plaintiff as insurer on 6 January 1965. It appears that on 29 June a claim was put forward by advocates for the third party, and in their letter of 28 July they gave particulars of their claim, supported by medical reports, and indicated that it would amount to something over Shs. 50,000/-. In a letter to the defendant dated 25 October 1965, the plaintiff through its advocates repudiated liability under the policy on the ground that the defendant's son, not being licensed, was not an authorised driver, and invited the defendant, if he wished to do so, to negotiate a settlement with the third party. The defendant was warned that if the plaintiff should be held liable to the third party, it would seek to recover from the defendant any payments ordered by the court. The defendant thereupon appointed his own advocates who continued to represent him throughout the negotiations.

The third party's advocates continued to press his claim, and on 4 November 1965, the plaintiff's advocates asked the defendant's advocates whether they intended to negotiate a settlement, and gave them notice that if they did not hear from them in 7 days they would consider themselves free to negotiate with the advocates of the third party for a settlement on the best possible terms. The defendant's advocates replied on 8 November, that they would obtain their client's instructions and asked the plaintiff's advocates to refrain from any further steps in the meantime. On 16 November the plaintiff's advocates replied stating that unless they heard within 10 days, their client would consider themselves free to take such steps as might be necessary "to protect its interests". Three days later an offer by the third party to accept Shs. 20,000/- in settlement was passed to the defendant's advocates.

The negotiations dragged on, and on 12 January 1966, the third party's advocates gave the defendant and his son until 27 January to meet their client's claim. On 21 February 1966, the plaintiff's advocates wrote to the defendant's advocates informing them that in view of the defendant's persistent and continued silence, the plaintiff was now proceeding to negotiate with the advocates of the third party for a settlement of the claim, and would look to the defendant for reimbursement of any payment made. The defendant's advocates replied on 25 February that any claim for damages must be directed against the lorry driver, and concluded:

> "In the premises my client is not responsible for any negotiations that yours may have with (the third party) or his advocates."

Notwithstanding this disclaimer, the plaintiff's advocates continued the negotiations and on 25 March 1966, informed the defendant that they had agreed a sum of £800 in full and final settlement of the third party's claim. The money was paid in the following month.

From this correspondence, together with submissions made by counsel for the plaintiff in argument, one or two points emerge clearly. First of all, it is plain that at no time did the defendant authorise or request the plaintiff or its advocates to negotiate with the third party or to make a settlement of his claim on the defendant's behalf. Secondly, the plaintiff was concerned to a considerable extent, at least, to protect its own interests, and arrived at a settlement with the third party because it believed (mistakenly, as I have found) that in the event of the third party obtaining judgment against the defendant or his son, it might be compelled to satisfy the judgment, in which case its chance of reimbursing itself from the defendant or his son would at best be problematical.

In these circumstances can it be said that the payment to the third party was made for and on behalf of and to the use of the defendant, so as to entitle the plaintiff to be reimbursed by him. The law of "money paid" is not easy to summarise, nor have I had the benefit of counsel's assistance on this topic. But there are two cases in which it seems clear that there is an obligation to repay: (*a*) when payment is made at the request of another; and (*b*) when one person has been compelled to pay the debt or discharge the liability of another. See Halsbury's Laws of England (3rd edn.) vol. 8, p. 227; Chitty on Contract, (22nd edn.) vol. 1, paragraphs 1598 et seq., and 1625 et seq. Here there has been no request by the defendant, and it is not easy to see in what way there was any compulsion. Admittedly, there was a threat of legal proceedings by the third party, but those proceedings were not threatened against the plaintiff, but against the defendant and his son. There could arise no obligation on the plaintiff to pay unless and until a judgment was obtained against one or the other, and even then, if I am right, the plaintiffs were in error in thinking that they would be obliged to meet the liability. I find that the plaintiff has not shown that it made the payment under compulsion, and that being so the payment so far as the plaintiffs were concerned was a voluntary one for which repayment cannot be claimed. "It is a clearly established principle that no legal right to repayment will be established by the mere voluntary payment of the debt of another person; for one man cannot make himself the creditor of another without his knowledge and consent": Chitty, para. 1627.

For these reasons I find that the alternative claim in respect of money allegedly paid to the use of the defendant also fails. It seems to me that the plaintiff has, perhaps excusably in view of the uncertain state into which the law has recently fallen, been led into error as regards its legal rights and liabilities, and, partly in order to protect its own interests, partly in what they genuinely believed to be the interests of its insured, have arrived at a settlement with the third party

which in terms of money was by no means unreasonable both from its own point of view and that of the defendant, but without taking the precaution of obtaining the consent of the defendant himself to such an arrangement. Once that consent was withheld, the plaintiff had no mandate to continue the negotiations with the third party. By continuing them it may have limited its own potential liability, but in doing so they were acting on their own account and cannot either by virtue of the Act or on principles of common law claim to reimburse themselves out of the pocket of the defendant.

In this context I have made no reference to Condition 5 of the policy, because I do not understand that the plaintiff relies upon it. The condition on its face appears to confer a wide authority on the insurer to settle claims, and it might have been argued here that it was wide enough to cover the settlement negotiated by the plaintiff with the third party. But Mr. Jamidar for the defendant has quoted extensively from the well-known case of *Groom v. Crocker*, [1938] 2 All E.R. 394, and has satisfied the court that the apparently wide discretion conferred by such a condition must be construed subject to some limitations and in particular that it only continues to exist as long as there is a genuine community of interest between the insurer and the insured. In the present case that community of interest came to an end as soon as the insurer by its letter of 25 October 1965, repudiated liability under the policy. After that, as it seems to me, on the principles applied in *Groom v. Crocker* the plaintiffs could no longer rely on the condition as giving them discretion to settle the third party's claim, particularly as any settlement implied an admission of liability on the part of the defendant which was clearly not in the defendant's interest. In the circumstances it seems to me that counsel for the plaintiff was right in not seeking to rely on the condition.

The suit is dismissed and there will be judgment for the defendant with costs.

Order accordingly.

For the plaintiff:
MH da Gama Rose (instructed by *Shapley Barret Marsh & Co*, Nairobi)

For the defendant:
GS Vohra (instructed by *Gautama & Gautama*, Nairobi)

Kanyankole v Republic
[1972] 1 EA 308 (CAK)

Division:	Court of Appeal at Kampala
Date of judgment:	22 June 1972
Case Number:	18/1972 (101/72)
Before:	Sir William Duffus P, Lutta and Mustafa JJA
Sourced by:	LawAfrica
Appeal from:	The High Court of Uganda – Russell, Ag. J

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[1] Criminal Practice and Procedure – Trial – Agreement of facts – Facts must be set out in memorandum – Trial Indictment Decree 1971, *s.* 64.

Editor's Summary

This appeal is reported solely on the point of the procedure to be followed where facts are agreed under s. 64 of the Trial Indictment Decree 1971.

Held – Any fact agreed must be set out in the memorandum and not left to a reference to the summary of evidence which does not form part of the record of the trial.

No cases referred to in judgment

Judgment

The considered judgment of the court was read by **Sir William Duffus P:** The deceased, Banard Kahambwe, disappeared from his home on 23 April 1971. A report was made to the chief and the police and a search was carried out and investigations started but it was not until 5 May 1971 when the appellant, who had in the meanwhile been detained, led the Muluka Chief Yosamu Ndiba, and some of the villagers to a place where he pointed out the remains of the dead body which he said was that of the deceased. The identity of the body was established by the fact that the appellant had pointed out these remains as being those of the deceased person and also by a pair of shorts found on the remains of the body which was identified by his widow as belonging to the deceased.

In convicting the trial judge relied on the following circumstances:

1. That on the day previous to his disappearance the appellant and the deceased were abusing each other;
2. That the appellant who was detained as a suspect whilst the police and the villagers were searching for the deceased suddenly run away.
3. That the appellant on his re-arrest by the villagers confessed to the Muluka Chief that he had killed the deceased.
4. He then led the chief and the villagers and pointed the place where he had hidden the body of the deceased. This body was subsequently identified to be that of the deceased.
5. The appellant made a voluntary confession to the police.

The appellant's defence was a complete denial of all these allegations. The trial judge accepted the prosecution's case and found the appellant guilty. Mr. Mulenga who appeared for the appellant argued several grounds of appeal; his main ground of appeal was that the trial judge had misdirected himself on the burden of proof on material issues and in particular on the identity of the body and on the admissions and the confession of the appellant. He submitted that the trial judge appears to have accepted certain aspects of the prosecution's case because it was not denied by the defence and he referred to various portions of the judgment. The judgment cannot, however, be considered in isolated instances but must be considered in its entirety and also with reference to the summing-up to the assessors, and to the opinion given by the assessors. It is clear from the judge's notes in his summing-up that he correctly directed the assessors on the onus of proof and it must be presumed that he directed himself as to the onus of proof in considering and arriving at his judgment. We consider that his reference to the case for the defence in his judgment does not mean that he has cast any onus on the defence. The Court when it finally deliberates and comes to a decision in a case has to consider all the evidence and all the circumstances arising in that case and the behaviour and the evidence or lack of evidence on behalf of an accused person is a most important and relevant factor in the decision. Of course the Court always has to bear in mind that the onus of proof is on the prosecution to establish all the essential facts that are needed to prove the guilt of the accused. In this case we are satisfied that the judge when he stated that he accepted the evidence of the prosecution witnesses, had only done so after correctly directing himself as to the onus of proof. We are satisfied that the trial judge had not misdirected himself on the various issues and that there was ample evidence to justify his findings.

The identity of the skeleton as being the remains of the deceased were proved both by the widow's identification of the pair of shorts on the remains and also by the fact that the appellant pointed out the remains as being those of the deceased and also by the admission made by the appellant in his confession. There was abundant proof of the appellant's guilt by his admissions to the Muluka Chief and the villagers and his taking them to the remains of the deceased and in his voluntary confession to the police.

We dismiss the appeal but would like to make a few observations on the new procedure laid down by s. 64 of the Trial Indictment Decree 1971, the relevant portions which read as follows:

> "64. (1) Notwithstanding the provisions of section 63 of this Decree, if an accused person who is legally represented pleads not guilty, the court shall as soon as is convenient hold a preliminary hearing in open court in the presence of the accused and his advocate and of the advocate for the prosecution to consider such matters as will promote a fair and expeditious trial.
>
> (2) At the conclusion of a preliminary hearing held under this section, the court shall prepare a memorandum of the matters agreed and the memorandum shall be read over and explained to the accused in a language that he understands, signed by the accused and by his advocate and by the advocate for the prosecution, and then filed.
>
> (3) Any fact or document admitted or agreed (whether such a fact or document is mentioned in the summary of evidence or not) in a memorandum filed under this section shall be deemed to have been duly proved:
>
> Provided that if, during the course of the trial, the court is of the opinion that the interests of justice so demand, the court may direct that any fact or document admitted or agreed in a memorandum filed under this section be formally proved."

These provisions are an advance in the due administration of justice. They provide for a more expeditious and efficient criminal trial by providing for the admission of facts not in dispute. We, however, note that there is considerable variation between the judges as to the actual carrying into effect of these provisions. Subs. (3) refers to any fact or document admitted or agreed in the memorandum as being deemed to be duly proved. We consider that any fact agreed upon should be set out in the memorandum filed under s. 64 and not proved by a reference to the summary of evidence. The summary of evidence does not form a part of the record of trial, thus in this case we had to call for the summary of evidence to find out what were the facts agreed on. If a document is admitted or agreed on then this document should be admitted in evidence and form part of the record of appeal.

This is the procedure that has in fact been followed in some of the cases before us and does mean that the record of a case as presented to this Court is complete. Any of the facts or documents admitted or agreed on must of course be read over to the assessors as these form part of the evidence in the trial.

Appeal dismissed.

For the appellant:
JN Mulenga (instructed by *Ibingira & Mulenga*, Kampala)

For the respondent:
PS Ayigihugu (Senior State Attorney)

Olowo v Attorney-General
[1972] 1 EA 311 (HCU)

Division: High Court of Uganda at Kampala

Date of judgment: 10 April 1972

Case Number: 603/1971 (106/72)

Before: Russell Ag J

Sourced by: LawAfrica

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[1] Defamation – Broadcast – Broadcast of pre-recorded words – Libel.

[2] Defamation – Damages – Restricted publication – Measure of damages.

Editor's Summary

The plaintiff claimed damages for libel arising out of the broadcast for general reception by the Ministry of Information and Broadcasting of a song sung in a vernacular. The defendant admitted that the words were defamatory of the plaintiff.

The only issues were whether the broadcast was libel or slander, and the quantum of damages.

Held –

(i) the recording of the defamatory words was of permanent nature and the broadcast of the recording was libel;

(ii) the defamatory meaning could only be understood by the persons who understood the language and who were acquainted with the plaintiff and knew of the circumstances. The plaintiff's career as a police officer was not affected. Damages of Shs. 8,000/- would be awarded.

Judgment for plaintiff.

No cases referred to in judgment

Judgment

Russell Ag J: The plaintiff is an Assistant Inspector of Police at present stationed in Kampala and is claiming general damages for libel arising out of a broadcast or broadcasts for general reception of a song in the Dupadhola language by the Ministry of Information and Broadcasting in Kampala at the beginning of April 1971. Although by the defence filed by the Attorney-General it was admitted that the words quoted by the plaintiff as being the actual words of the song in Dupadhola and set out in the plaint were correct, when the suit came on for hearing the State Attorney contended that the translation of those words into English set out in the defence were not correct and sought leave to amend the translation. As neither counsel or myself were acquainted with the Dupadhola language I directed counsel to take my personal tape recorder to the broadcasting studios and record the song as actually broadcast. This I did for two main reasons, firstly to satisfy myself that the song had been broadcast from a recording and secondly so that I could personally listen to the intonation.

Counsel duly produced the recording, and after it had been played back to them and their interpreter advisers, the State Attorney came to the conclusion that the song undoubtedly referred to the plaintiff and that the words were defamatory by innuendo. This admission was duly recorded and the only issues then remaining were whether it amounted to libel or slander and the quantum of damages, if any.

Counsel were unable to assist me on the legal issue as to whether the broadcast was a libel or a slander and I have not been able to trace any relevant decisions in the East African courts. I have therefore referred to Gatley on Libel and Slander, 6th ed., and find the following comment in paragraph 146 on p. 82:

> "146. Broadcasting. The reason for the distinction between libel and slander stated above has been completely destroyed by the modern systems of broadcasting by which defamatory words uttered by one person may be disseminated over the whole world: 'A defamatory statement transmitted over the radio in a broadcast, reaching as it may an audience of many millions, is calculated to cause as much, if not more, damage than a written report in a newspaper, however large its circulation'."

In paragraph 147 there is the further comment that:

> "In England (though the matter has not been the subject of any formal decision) the view generally held among lawyers and judges is that at common law – apart from statute – a broadcast which is read from a written script amounts to libel, while a broadcast spoken extempore amounts only to slander."

Various decisions are referred to in the footnotes but none of the relevant reports are available in the Court library.

I have not been able to trace any Uganda legislation corresponding to the Defamation Act 1952 in England which provided that for the purposes of the law of libel and slander, the broadcasting of words for general reception shall be treated as publication in permanent form, that is to say, as libel.

As the recording of the defamatory words was of a permanent nature I have no doubt they must be treated as libel and not slander and the relevant part of the tape should be erased to avoid further publication.

As to the quantum of damages it is conceded by counsel for the plaintiff that the words could have been understood only by a limited section of the community who understood Dupadhola and amongst that section the song would have had little meaning except to those who were acquainted with the plaintiff and knew of his land dispute with the deceased and the untimely death of the deceased. It must also be borne in mind that the libel has not in any way affected the plaintiff in his career in the Uganda Police. I do, however, appreciate the fact that the song was highly defamatory of the plaintiff as it suggested the plaintiff had caused the death of the deceased by exercising some unexplained powers.

It is not easy to assess damages in cases such as this but I consider the sum of Shs. 8,000/- would, under the circumstances, be adequate compensation to the plaintiff. There will therefore be judgment for the sum of Shs. 8,000/- in favour of the plaintiff against the defendant. As an interesting point of law was raised the plaintiff will be entitled to costs on the High Court scale.

Judgment accordingly.

For the plaintiff:
ES Kirenga (instructed by *Kirenga & Gaffa*, Kampala)

For the defendant:
MB Matovu (Senior Principal State Attorney)

Uganda v Kalokole
[1972] 1 EA 313 (HCU)

Division: High Court of Uganda at Kampala

Date of judgment: 11 March 1972

Case Number: 523/1971 (107/72)

Before: Saied J

Sourced by: LawAfrica

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[1] Criminal law – Accessory after the fact – Principal unknown – Accused may be convicted.

[2] Evidence – Accused – Acts of after accusation of crime – Acts admissible.

Editor's Summary

The accused was charged with murder. It was established that on being challenged the accused showed where the body had been hidden and how he had helped convey it there.

No-one else was charged with the accused.

Held –

(i) the conduct of the accused after the statement made in his presence was evidence, but not the statement itself (*Mibinga v. Uganda* (3) followed);

(ii) an accused may be convicted of being an accessory after the fact to murder even though no-one else has been convicted of the murder (*Saidi Nsubuga v. R.* (2) followed).

Accused convicted of being accessory after the fact to murder.

Cases referred to in judgment:

(1) *R. v. Christie*, [1914] A.C. 545.

(2) *Saidi Nsubuga v. R.* (1941), 8 E.A.C.A. 81.

(3) *Mibinga v. Uganda*, [1965] E.A. 71.

(4) *Hall v. R.*, [1971] 1 All E.R. 322.

Judgment

Saied J: The indictment of murder which the accused faces alleges that he and others not yet arrested, on or about 13 day of December 1970 at Nakiduduma Village, Gombolola Kasawo, Kyaggwe, murdered Severino Ndenzako.

The deceased was a Murundi tribesman and had lived in the village for about 1½ months by the time of his death. He used to live with Yosefu Minani, and both worked for the same employer.

The accused is a Munyarwanda, and lived in the same village with a Muganda woman called Maria Nkfula.

Maria had some children from another man, living with them in the same house. Of those children the two who figure prominently in this case are Baali and Kato.

On 13 December 1970 the deceased, Yowana Nkujire and Yosefu Minani were at the accused's home at about 6 p.m. drinking Kiganda beer. Minani left his companions still drinking at about 7 p.m.

This was the last he saw the deceased alive. There is evidence that about 11 p.m. the accused together with Baali and Kato escorted Nkujire to the relief mutongole chief Mikairi Muchumi and reported him for having assaulted them at their home. The chief asked them to report back in the morning.

In the morning Minani found the deceased missing from their quarters. As a result of what Nkujire told him, both started looking for the deceased at all the possible places he could have gone to. Near the accused's home, Minani came across some blood stains which had been covered up with soil. They failed to find the deceased, and late in the evening reported his disappearance to the mutongole chief, Yusufu Kagwa.

Kagwa saw accused at his home the next day, and enquired about the deceased. The accused denied any knowledge. Minani and his friend Yowana also arrived. The accused again denied any knowledge about the deceased when Minani taxed him about the blood stains which he had seen.

The accused was then escorted with is hands bound with banana fibre to the home of the muluka chief, Yosamu Lubega. While passing by his home, Yusufu also noticed the patches of blood. As a result of what he learnt about Kato on the way, Kagwa despatched two people – Aramazani and Ahamada, neither of whom was available to give evidence – to fetch the young lad from Kabimbiri.

Kato was duly brought to the muluka chief's home.

The prosecution case is based primarily on the allegations made by Kato in the presence of the accused. Kato also was not available to give evidence, as his whereabouts are unknown. It is the prosecution case that as a result of those allegations, the accused said, "I can do nothing. Come and I will show you the body." The accused then led the party including Kato to three different places. He first explained the patches of blood near his home as the place where the deceased was assaulted. The second place was a bush about 700 yards from the house where, he explained, the body had been left for the night. According to the mutongole chief, the accused explained that his wife had objected to leaving the body so close to the house. He then led the people to a swamp, about ¼ mile from the bush, where he pointed out the body. It was in a thick growth of tall elephant grass.

Police were informed, and the muluka chief escorted the accused and Kato to Kayunga Police Station. He handed them over to a police officer he met on the way.

On 18 December 1970 Inspector Etyang released Kato for lack of evidence. He is alleged to have left the village with his mother at the end of 1971.

In his unsworn statement the accused refers to the trouble he had with Nkujire at his home. He made no mention of the deceased, and maintained that it was Kato who led the people to the body.

This is an unusual case, for the main witnesses like Nkujire, Kato and his mother were not available to testify in court. Even Baali has not been seen since that night.

There can be no doubt that on 13 December 1970 the deceased accompanied by Minani and Nkujire was at the accused's home in the evening drinking local beer. The accused admits this much in his charge and caution statement. It is pertinent to note that when Nkujire was taken to Muchumi at 11 p.m., the deceased was not with them. Nobody mentions him. In the absence of those main witnesses, what happened to him that evening will remain a mystery.

However, the evidence upon which the prosecution relies is the allegations made by Kato in the accused's presence and hearing. Under cross-examination Minani said,

> "I heard Kato tell the chief that it was the accused and Baali who had killed the deceased. It is true I heard Kato tell the chief that it was Baali who had strangled the deceased."

The mutongole chief Kagwa said,

> "Kato said he had seen Kalokole and Baali beat the deceased and tie a rope round his neck. He said he had seen the deceased being dragged on the ground, and then he was chased away. . . ."

Under cross-examination this witness denied hearing Kato say that Baali had strangled the deceased.

The muluka chief's version of what Kato said is materially different from the others. This is what he heard:

> "Kato said that when his mother returned home she said that a man had been killed and that they should pack up and run away. Kato said that his mother had told him that Kalokole and another man had killed the man."

Kato was then aged about 13 or 14. He was caught while on the run. He must have been a very scared and frightened young lad. To be kept in mind also is the fact that whereas he was a Muganda like his mother and Baali, the accused though his step-father is of a different tribe.

I directed the assessors, as I now do myself, to treat all this evidence with great caution as Kato was not available to give evidence. The need for caution is all the greater as his allegations and veracity as a witness have not been tested under cross-examination.

In these circumstances, the accused is, in my opinion, entitled to every allowance and benefit that he may have lost by the absence of the opportunity of more full investigation by means of cross-examination. The versions of what Kato is alleged to have said are all different. I am not losing sight of the fact that all this took place as long ago as December 1970. Even making due allowance for human forgetfulness over such a long period, one cannot help doubting whether Kato had actually seen what had happened to the deceased with his own eyes. It may very well be that he based himself on what he was told by his mother. His allegations would thus be nothing but hearsay. Even if Kato's accusations made in the accused's presence and hearing were perhaps based on hearsay, the accused's conduct subsequent to those accusations being relevant is manifestly admissible. The law in a nutshell is that in all such cases the statement made in the party's presence or hearing is not evidence against him but his own conduct in consequence of such statement is the sole evidence – *Mibinga v. Uganda*, [1965] E.A. 71 citing the main authority of *R. v. Christie*, [1914] A.C. 545, and *Hall v. R.*, [1971] 1 All E.R. 322. I explained this to the assessors in as simple language as I could.

The accused's reply to those accusations allegedly was, "I can do nothing. Come and I will show you the body". The defence contended that it was Kato who led the people to the body in the swamp. This was consistently and strenuously denied by the chiefs who testified in this court. Notwithstanding the fact that Kato was walking with the accused in front of all others, I am satisfied beyond any reasonable doubt that it was in fact the accused who led the party to the body. The vital question of course is whether his reply and subsequent conduct amount to an admission of killing the deceased. It will be recalled that according to one of the chiefs Kato had implicated his elder brother Baali in the killing as well. Baali has absconded and has not been seen since that night. One thing in the accused's favour undoubtedly is that he stayed behind. Furthermore, there is the doubt regarding Kato as to whether he had actually seen anything himself, or had simply adopted what his mother had told him. These I consider as material and substantial considerations on this point. In view of all this it is my considered judgment that it would be extremely unsafe to draw the inference of admission from the accused's reply and his subsequent conduct

as the prosecution would have this court to infer. The reply and his conduct in view of all the circumstances, in my view, are just as compatible with the knowledge of where the body was dumped. The accused is entitled to this benefit.

For these reasons, I agree with the assessors that the accused cannot, on the evidence as it stands, be found guilty of murder.

I directed the assessors in such an event to consider whether the evidence makes the accused an accessory after the fact to the murder of the deceased, as defined by s. 376 (1) of the Penal Code.

The evidence leaves no doubt that the accused played a major role in transporting the body to the swamp. This is manifest from what the accused himself is alleged to have explained to the chiefs. He gave the reason for removing it farther from the house after his wife had objected to leaving the body in the bush near the house. He also explained how the body had been taken to the swamp by carrying it hanging from a pole. All this shows beyond any doubt that the accused gave personal assistance to the felon in hiding the body in the swamp where, as is clearly seen from the photograph, it would have been virtually impossible to trace. His conduct and the circumstances are such that he must have known that the deceased had been murdered, and I find that his actions were tantamount to "the hindrance of public justice by assisting the felon to escape the vengeance of the law" – 4 Black. Comm. 38. It has been held that if it is sufficiently established that a murder has been committed by someone, even though that person has not been convicted or even found, then another person can be convicted as an accessory after the fact to that murder, provided the evidence supports such a conviction – *Saidi Nsubuga v. R.* (1941), 8 E.A.C.A. 81. For the reasons I have endeavoured to give, there is such evidence in this case. I accept the views of the two assessors that the accused can properly be convicted of being an accessory after the fact to murder.

The accused is accordingly acquitted of murder, but is found guilty of being accessory after the fact to that murder, contrary to s. 199 of the Penal Code as read with s. 88 of the Trial on Indictments Decree, 1971. He is convicted of this offence.

Judgment accordingly.

For the prosecutor:
AM Khan (Senior State Attorney)

For the accused:
J Balikuddembe (instructed by *Mpungu & Balikuddembe*, Kampala)

Janson v Samwiri
[1972] 1 EA 317 (HCU)

Division:	High Court of Uganda at Kampala
Date of judgment:	8 March 1972
Case Number:	13/1972 (109/72)
Before:	Fuad J
Sourced by:	LawAfrica

[1] Appeal – Out of time – Grounds for exercise of discretion – Civil Procedure Act, s. 80 (*U*.).

Editor's Summary

The applicant applied for leave to appeal out of time on the ground that he had been informed by his former advocate that he had filed the appeal, when in fact he had not done so. There had been delay in making the application.

Held –

(i) there is no unqualified right to an extension of time set by the rules;

(ii) there was no explanation of the delay in applying.

Application dismissed.

Case referred to in judgment:

(1) *Ratnam v. Cumarasamy*, [1964] 3 All E.R. 933.

Judgment

Fuad J: This is an application for leave to appeal out of time brought, presumably, under the proviso to s. 80 (1) of the Civil Procedure Act, which empowers the court to admit an appeal although the 30 days prescribed has elapsed "for good cause shown". The matter arose in this way. The present applicant was the plaintiff in a suit instituted in the Magistrate's Court of Mengo. After the pleadings had closed, the suit was set down for hearing before a Magistrate Grade I, on 29 June 1971. Counsel representing the applicant and the applicant himself, did not appear before the court when the case was called on and eventually, at 10 a.m. the hearing proceeded in their absence. The defendant had admitted by his defence that he was indebted to the applicant in the sum of Shs. 272/- and had pleaded a counter claim. After hearing the respondent give evidence, the trial magistrate, while entering judgment in the applicant's favour for the Shs. 272/- admittedly owed, dismissed the rest of his claim and entered judgment in the sum of Shs. 1,000/- for the respondent on his counter claim.

The applicant then applied for an order under O. 9, r. 20 to set the dismissal aside and after hearing counsel the same magistrate rejected the application. This notice of motion was filed on 14 February, 1972 and was heard by me on the 1 March. The application was filed by a different advocate to the one hitherto appearing for the applicant and though he was served with the hearing notice he did not appear. I asked the applicant whether he wanted an adjournment to be able to get hold of his advocate but he wanted to go on by himself.

After setting out the facts, the applicant in his supporting affidavit has this to say:

> "7. THAT I honestly believe that I have a good case both in support of my plaint and the defendant's Counter claim.
>
> 8. THAT the period for filing my memorandum of appeal is now overdue because my former advocate, the said Mugabi, had informed me and I had

> truly believed him that he had filed the said memorandum of appeal but later I discovered that there was no memorandum of appeal filed in this Honourable Court."

The court has a wide discretion in these matters, but it is a discretion to be exercised judicially. With respect, I consider that a passage of the opinion of the Privy Council in *Ratnam v. Cumarasamy*, [1964] 3 All E.R. 933, at p. 935, correctly sets out the principle involved:

> "The rules of court must, *prima facie*, be obeyed, and, in order to justify a court in extending the time during which some stop in procedure requires to be taken, there must be material on which the court can exercise its discretion. If the law were otherwise, a party in breach would have an unqualified right to an extension of time which would defeat the purpose of the rules which is to provide a time table for the conduct of litigation."

One of the most important questions the court has to ask is whether the application for extension of time was promptly made. Good cause must be shown for the entire period of the delay. The applicant's affidavit tells us that he instructed his former advocate to file an appeal and he was under the impression that an appeal had been filed but he does not say when it was that he discovered that the appeal had not in fact been instituted. There has been an excessive delay in bringing this application, nearly five months, and I do not feel I would be justified in granting the application. Each case of this kind must be judged on its own facts and on the material before me (although I have every sympathy with the applicant, who seems to have been poorly served by his advocates) I am satisfied that the application must be refused. It is therefore dismissed with costs.

Order accordingly.

For the applicant:
GM Rwomubanyoro (instructed by *Rwomubanyoro & Co*, Kampala)

For the respondent:
MC Dhruva

Sabani v Crispus
[1972] 1 EA 319 (HCU)

Division:	High Court of Uganda at Kampala
Date of judgment:	28 March 1972
Case Number:	25/1966 (110/72)
Before:	Mead J
Sourced by:	LawAfrica

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[1] Tort – Cause of action – Death of wife – Claim by husband for loss of consortium and servitium – Death of wife as cause of action – Action would not succeed.

Editor's Summary

The plaintiff's wife died some hours after an accident for which the defendant was responsible. The plaintiff claimed damages for loss of his wife's services.

Held –

(i) the death of the wife was immediate for the purpose of the claim;

(ii) although causing loss, death itself is not a legal wrong giving the plaintiff a cause of action (*Baker v. Bolton* (1) followed);

(iii) no claim for loss of services of a wife based on her death would lie.

Claim dismissed.

Cases referred to in judgment:

(1) *Baker v. Bolton* (1808), 1 Camp. 493, 170 E.R. 1033.

(2) *Jackson v. Watson*, [1909] 2 K.B. 193.

(3) *Admiralty Commissioners v. S.S. Amerika*, [1917] A.C. 38.

(4) *Berry v. Humm*, [1915] 1 K.B. 627.

(5) *Best v. Samuel Fox & Co.*, [1950] 2 All E.R. 798.

(6) *Tooney v. Hollier*, [1955] A.C.R. 302.

(7) *Hare v. British Transport Commission*, [1956] 1 All E.R. 578.

(8) *McNeill v. Johnstone*, [1958] 3 All E.R. 16.

Judgment

Mead J: The plaintiff, Sabani Kiribire, claims damages from the defendant, Crispus Drake Juko, for loss, through death, of the services of the plaintiff's wife caused by the negligence of the defendant on 2 May 1964.

On the evening of 2 May 1964 at about 9 p.m. the plaintiff's wife Mwajuma was a passenger on the bicycle of a neighbour, Erenesti Ssagala. They were travelling along the Kampala to Port Bell road intending to go to Kitintale where they both lived. They were travelling in the direction towards Port Bell. The defendant was driving his motor-car in the same direction along the same road going to his home at Port Bell. With him was his nephew David Katerega. Shortly after passing the Silver Springs Hotel the defendant's car hit Ssagala's bicycle. Mwajuma was knocked onto the road. She died in Mulago Hospital shortly afterwards as a result of the accident. Ssagala fell into the grass at the left-hand side of the road facing towards Port Bell. He was slightly injured on the head. [The judge considered the evidence and continued.]

I find the accident involving Ssagala and resulting in the death of Mwajuma solely due to the negligence of the defendant.

I have now to consider whether the defendant is liable in tort to the plaintiff for the defendant's negligent act resulting in the death of Mwajuma, the plaintiff's wife.

The defendant contests the plaintiff's claim on the ground that such a claim by a husband is only maintainable if the wife lives. The defendant contends

that where, as in the present case, the wife dies immediately, the husband has no remedy. The plaintiff contends the claim is maintainable even although the wife dies immediately as a result of the accident. The survival of Mwajuma for only a few hours after the accident constitutes, in my view, an immediate death for the purposes of this claim.

The cases to which the court has been referred by both counsel are all English decisions. I myself have made some slight research. There does not appear to be any East African decision on the point at issue in the present suit.

Mr. Haque referred to *Berry v. Humm*, [1915] 1 K.B. 627, *McNeill v. Johnstone*, [1958] 3 All E.R. 16, and to decisions referred to in Bingham's Motor Claims Cases (5th Ed.), pp. 359–369, generally. Mr. Parekhji referred to *Hare v. British Transport Commission*, [1956] 1 All E.R. 578 and *Best v. Samuel Fox & Co*., [1950] 2 All E.R. 798.

With respect I do not find the decisions referred to by Mr. Haque of assistance to the plaintiff's claim. In *Berry v. Humm* the claim was made under the Fatal Accidents Act 1846, commonly known as Lord Campbell's Act. The claim in the present suit is made under common law. In *McNeill v. Johnstone* the wife survived the accident and was alive at the date of the hearing of the suit. There was no prospect that her expectation of life had been shortened. The plaintiff was not able to refer the court to any authority to support his contention that a husband can maintain such a claim as is put forward in the present suit where the wife dies immediately as a result of the defendant's wrongful act.

I find the decision in *Hare v. British Transport* also of no assistance, that also being a case where the wife survived the accident on which the claim was founded. *Best v. Samuel Fox & Co*. was a claim brought by a wife. It is of interest in that in it the courts took into consideration what would have been the husband's rights had he been the plaintiff. Consideration of a widower's or widow's claim did not arise and was not discussed.

I have found the decision in *Jackson v. Watson*, [1909] 2 K.B. 193 of assistance in considering the grounds on which a husband can claim damages for loss of consortium, which would include servitium, caused by the death of his wife. In that case it was held the husband was entitled to recover damages on the ground that the cause of action lay in a breach of warranty, that food sold by the defendant to the plaintiff was fit for human consumption, and the death of the plaintiff's wife was only an element in ascertaining the damages arising therefrom. The cause of action was independent of the wrong causing death. The legal principle that death itself, although causing loss to the plaintiff, is not a legal wrong of which he can complain was endorsed as long ago as 1808 by Lord Ellenborough in *Baker v. Bolton* (1808), Camp. 493. Lord Ellen-Borough gave no reason for supporting this principle, but in *Admiralty Commissioners v. S.S. Amerika*, [1917] A.C. 38, Lord Parker of Waddington in a learned and exhaustive speech traced the reasoning and authorities upon which the principle must have been based, showing that at the date of Lord Ellenborough's decision in *Baker v. Bolton* this had become such an accepted principle that it did not necessitate explanation. It is a principle that is valid today and in my view is and always has been recognised by the law of Uganda. The Fatal Accidents Act 1864 of England, to which I have already referred, was an Act of general application the provisions of which were applied in Uganda. This Act provided a remedy for the recovery of damages where no remedy had previously existed for the recovery of damages in the case of injury resulting in death where, but for the death, the injured person could have recovered damages for the injury. The Law Reform (Miscellaneous Provisions) Act, enacted as an Ordinance in 1953 and now Chapter 74 on the Statute Book, consolidates the provisions of the Fatal Accidents Act 1864 together with the provisions of other

English Acts. It is the common law principle endorsed in *Baker v. Bolton* that prompted the Fatal Accidents Act, the provisions of which Act are now incorporated in the Law Reform (Miscellaneous Provisions) Act. The common law principle remains: the Act provides exceptions to the common law.

The decision in *Jackson v. Watson* is of strongly persuasive value. I see no reason to disagree with the reasoning and conclusions of that judgment. There is no comparable East African decision. I hold that where a plaintiff husband has to base his claim for loss of consortium, which in my view includes servitium, on the death of his wife as the cause of action he cannot succeed. I dismiss the plaintiff's claim for damages for loss of the services of his wife.

Had I not dismissed the plaintiff's claim on this issue it would have been necessary to assess the damages suffered by the plaintiff. In *Hare v. British Transport Commission*, Goddard, L.J., as he then was, expressed the opinion that although loss of consortium still survived as a cause of action it was not one for which generous compensation should be given in addition to such legitimate expenses as the husband had to occur on account of his wife's absence. In the *Hare* case the husband recovered as special damages (*inter alia*) expenses incurred in board and lodging for himself and son whilst his wife was in hospital. The proposition as to the scale of damages to be awarded in such cases was considered in the Australian case of *Tooney v. Hollier*, [1955] A.C.R. 302. The reasoning of Goddard, L.J. appears to be that the plaintiff is in the main compensated by the award of special damages, and the additional loss of his wife's presence can be compensated by an award of moderate amount. In the *Tooney* case the court thought otherwise and awarded a substantial amount by way of general damages. In the present case the plaintiff is not claiming special damages for the hire of servants to do the work he said had been performed by his wife. The plaintiff gave evidence of the amounts he said he expended on the replacement of his wife's services, both in the house and on the kibanja. The plaintiff remarried in 1968. The plaintiff's present wife attends to family and household duties but does not cultivate, for the reason that she does not care to do this type of work. The plaintiff was fortunate that his wife Mwajuma was both able and willing to undertake the cultivation work, although it is customary for a wife in the class in which the plaintiff would appear to be a small-holder (his occupation at the time of Mwajuma's death and now was not stated) to undertake such work. I take into account this loss occurred eight years ago. The value of money then was a little higher than it is today. In my view the plaintiff is entitled to be awarded as nearly as is practicable the amount he would have been awarded had the suit been determined in 1964–1965. No reason has been given for the inordinate delay in bringing this suit to trial. In the circumstances of the case I would have awarded the plaintiff Shs. 1,500/- for loss of the services of his wife.

The defendant does not contest the plaintiff's right to claim for funeral expenses. The issue is of quantum. The plaintiff was not able to detail the expenses he claims to have amounted to Shs. 1,200/-. The plaintiff admitted that some of the funeral expenses had been paid by his relatives. This is as would be expected. I have again to take into account the expenses were incurred eight years ago. Making as reasonable assessment as possible in the circumstances I award the plaintiff Shs. 800/- for funeral expenses.

I enter judgment for the plaintiff in the sum of Shs. 800/-.

Judgment accordingly.

For the plaintiff:
Z Haque (instructed by *Haque & Gopal*, Kampala)

For the defendant:
BD Dholapia (instructed by *Parekhji & Co*, Kampala)

Nyamwaya v Kisumu County Council
[1972] 1 EA 322 (CAN)

Division:	Court of Appeal at Nairobi
Date of judgment:	14 September 1971
Case Number:	160/1968 (112/72)
Before:	Spry V-P, Law and Lutta JJA
Sourced by:	LawAfrica
Appeal from:	The High Court of Kenya – Bennett, J

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[1] Criminal law – Trespass – Private land – Must be proved land is private before any burden on accused – Trespass Act (*Cap*. 294), *s*. 3 (*K*.).

Editor's Summary

The appellant was convicted of trespass after the respondent had alleged that he had built on a plot other than the one leased to him. Evidence showed that the appellant had continued to build after a warning.

Held – (Law, J.A. dissenting)

(i) the prosecution must first prove beyond reasonable doubt that the accused was on private land;

(ii) only thereafter is there a burden on the accused to show reasonable excuse or consent.

Appeal allowed.

Case referred to in judgment:

(1) *Wachira v. Republic*, [1967] E.A. 201.

Judgment

The considered majority judgment of the court was read by **Lutta JA:** This is a second appeal. The appellant was charged in the Resident Magistrate's Court at Kisumu with two counts of trespass on private land contrary to s. 3 (1) of the Trespass Act (Cap. 294). He was convicted and fined Shs. 20/- on each of the counts and was also ordered under s. 12 (1) of the Act to remove, within three months from the date of conviction, the building constructed by him on the said private land. He appealed to the High Court which quashed the conviction on the first count and set aside the sentence in respect thereof but dismissed the appeal against conviction and sentence on the second count. He now appeals to this Court.

The facts as found by the magistrate are that the County Council of Kisumu (to which I shall refer hereinafter as "the complainant") is the registered owner of a piece of land known as Ahero Market under the Registered Land Act (Cap. 300). The complainant leased Plot No. 72 at Ahero Market to the appellant under a lease dated 14 June 1967 for a period of 33 years from 14 June 1967. However, the complainant discovered subsequently that it had already been leased to Ongando and Sons in 1952, who had been issued with a lease under the Registered Land Act – and they had already put up a

building on it. The prosecution case is as follows – Mr. John Ogola Sanga, the clerk to the complainant went to Ahero Market on 13 June 1967 and saw that some sand had been placed on Plot No. 87 and the appellant was present at the site. Mr. Sanga informed the appellant that he was building on the wrong plot and asked him to stop construction until the position was clarified by the Commissioner of Lands. The appellant promised to do so. On 17 June 1967, Mr. Sanga wrote a letter to the Registrar of Lands, copied to the appellant, in which he pointed out the confusion which had occurred and asked the appellant to stop further construction. On 19 and 21 June 1967, Mr. Sanga wrote to the appellant

asking him to stop construction on the said plot 87. On 22 June 1967 the appellant called on Mr. Sanga who warned him against continuing with building operations before the Commissioner of Lands had replied to Mr. Sanga's letter clarifying the position. The appellant said that he was not going to stop construction and that Mr. Sanga could take any action he saw fit. On 8 August 1967, Mr. Sanga went to Ahero Market and found a house under construction on what he believed to be part of Plot No. 87. The complainant then instituted proceedings against the appellant. In his evidence the appellant stated that Mr. Barnabas Ombuso, the complainant's Health Inspector, pointed out the land in question as being Plot No. 72. The appellant then placed building materials on it; it was subsequently demarcated by Mr. Ombuso – he pegged it out believing it to be Plot No. 72. It was the duty, according to Mr. Sanga, of the Health Inspector, to point out plots to lessees. The magistrate did not make a finding as to whether the appellant, on 13 June 1967, had reasonable excuse to enter Plot No. 87 and build thereon. However, he found the appellant guilty of the offence charged, and from this it must be inferred that he was of the view that the appellant had no reasonable excuse to enter the land. The judge, however, held the appellant had, on 13 June 1967, reasonable excuse to enter Plot No. 87, as he believed it to be the one which had been leased to him, and quashed the conviction on the first count. With regard to the second count, the judge held that the appellant had no reasonable excuse for building on the plot on 8 August 1967 after he had had numerous warnings to stop building operations on the plot.

Mr. Malik, for the appellant, argued that the charge as laid was bad for duplicity, in that there are two offences disclosed in the particulars. According to the record, no objection to the charge was raised at the earlier proceedings. We are satisfied that no failure of justice has been occasioned by any defect in the charge. Mr. Malik further argued that there was no evidence that building operation was in progress after 8 August 1967 and the judge erred in holding that the appellant was engaged in building operations up to the end of August 1967. Mr. Sanga visited the land on 8 August 1967, and found a house under construction. The appellant does not deny that he had a house under construction on the plot. He testified that he stopped construction on 22 July 1967. We think that the appellant ought to have been charged with erecting a building on the plot between 13 June and 8 August 1967. However we are satisfied that this defect in the particulars did not lead to a failure of justice. We think this is a case in which s. 382 could have been properly applied.

Mr. Rebelo, for the respondent, argued that the appellant had no reasonable excuse to continue with building operations after Mr. Sanga had informed him that he was building on the wrong plot and submitted that from that moment the appellant became a trespasser, as he had no right to remain on the plot. He relied on *Wachira v. Republic*, [1967] E.A. 201.

There is in this case an unsatisfactory feature relating to the identity of the plot the appellant is alleged to have entered onto and carried out building operations. Mr. Sanga conceded that it was the duty of Mr. Ombuso, the Health Inspector, to point out plots to the lessees. Mr. Ombuso made enquiries from Mr. Joel Ngolo, the complainant's senior market clerk but the latter did not know where Plot No. 72 was. It appears that these plots had not been demarcated on the ground. Mr. Ombuso maintained emphatically at the trial that the plot he pegged out was Plot No. 72 and he said that Messrs. Ongondo and Sons had built on Plot No. 73.

It appears from the record that the Commissioner of Lands did not reply to Mr. Sanga's letter in which he had sought clarification of the position of the two plots. Mr. Sanga is apparently not a surveyor and he did not say what reason

he had to believe that the building erected by the appellant was on Plot No. 87. There is nothing on the record to show that it was proved beyond a reasonable doubt that the building was not on the land to which the appellant's lease related. Thus the identity of these two plots was not established with that degree of certainty required in a criminal case. S. 3 (2) of the Trespass Act places on an accused person the burden of proving that he had reasonable excuse or the consent of the occupier for being on private land but before that question arises it is for the prosecution to prove as fact that the accused was on private land. We think that on the evidence in this case there was a real doubt as to whether the plot pegged out for the appellant was part of Plot No. 87. Had the magistrate appreciated that there was this doubt he would have given the benefit of the doubt to the appellant. In these circumstances we do not think it safe to allow the conviction to stand. We therefore quash the conviction and set aside the sentence and the order for demolition.

Order accordingly.

For the appellant:
MZA Malik (instructed by *AH Malik & Co*, Nairobi)

For the respondent:
AR Rebelo (State Counsel)

Alowo v Republic
[1972] 1 EA 324 (CAN)

Division:	Court of Appeal at Nairobi
Date of judgment:	12 July 1972
Case Number:	175/1971 (116/72)
Before:	Sir William Duffus P, Spry V-P and Mustafa JA
Sourced by:	LawAfrica
Appeal from:	The High Court of Kenya – Chan, Singhan J

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[1] Evidence – Witness – Hostile – Evidence of unreliable and not to be regarded.

[2] Evidence – Witness – At preliminary enquiry not found for trial – Statement to police not admissible.

Editor's Summary

During a murder trial the prosecution tendered the evidence of an eight year old child who, after being admitted to give unsworn evidence, was allowed to be treated as a hostile witness on the basis of an earlier statement. The trial judge stated that it should be possible to derive assurance from whichever story of a hostile witness is found to be true.

A further witness, who gave evidence at the preliminary enquiry, could not be found and the prosecution tendered and the judge admitted her statement to the police which was inconsistent with her sworn deposition.

Held –

(i) the basis on which a witness may be treated as hostile is that the conflict between his evidence and some earlier statement shows him to be unreliable;

(ii) this makes his evidence to be ignored and the earlier statement is not in evidence;

(iii) the statement of the unfound witness was inadmissible and also was of no evidential value being contrary to the sworn testimony.

Appeal allowed.

Cases referred to in judgment:

(1) *Leonard Harris*, 20 Cr. App. R. 144.

(2) *R. v. Golder*, [1960] 1 W.L.R. 1169.

Editor's Summary

The considered judgment of the court was read by **Spry V-P:** The appellant was convicted of murder and sentenced to death. On 3 July 1972, we allowed his appeal, quashed the conviction and set aside the sentence. We now give our reasons.

He was charged, jointly with a youth named Ibrahim Mohamed Alio, with murdering another youth named Mohamed Mohamed Abdille at a comparatively lonely place near Mandera. The case against the appellant consisted of the following elements:

(i) He was alleged to have been seen chasing the deceased at about the date of the latter's death;

(ii) He was alleged to have made a confession to a neighbour that he had taken a human life;

(iii) He was implicated by confessions made by his co-accused but later repudiated.

Before dealing with these three matters, there are certain other matters of which it may be convenient to dispose.

First, a girl named Musilima was called as a witness. She is a daughter of the appellant, aged about 8 years. After a voir dire, the judges held that she was able to give unsworn evidence. A few questions were put to her, when she denied any knowledge of the matter and the State counsel then asked that she be declared a hostile witness, and it was so ordered. State counsel put a series of leading questions to her, all of which she answered with a simple affirmative. She was cross-examined and confirmed the contents of a statement she had made to the police.

The judge dealt with the effect of evidence given by a hostile witness at considerable length and then said–

> "It will, therefore, be best to ignore all her evidence and I propose not to take any of it into consideration, in so far as the prosecution is concerned . . ."

He said that he was doing this to follow such precedents as were available to him on circuit. He went on–

> "My own feeling is that it should be possible for a Court to derive assurance from whichever (if any) story of a hostile witness is found to be true in the end. The proper procedure should be to keep the evidence of a hostile witness in reserve instead of rejecting it. When a conclusion on other evidence is reached and this conclusion is found to accord with one of the stories of the hostile witness, that story should be regarded as strengthening the conclusion. If, as in the present case, the hostile witness is a child who has given unsworn evidence and one of his or her stories is upheld in the end, then that story, if properly corroborated, should be regarded as substantive evidence. This should be so at least in a case in which a definite reason for a hostility is known to exist."

With respect, that is not and cannot be the law. In the first place, the basis of leave to treat a witness as hostile is that the conflict between the evidence which the witness is giving and some earlier statement shows him or her to be unreliable, and this makes his or her evidence negligible. Secondly, the earlier statement is not evidence at the trial and could not therefore be relied on.

There does not appear to be any reported East African decision on this matter, but there are several English decisions, of which perhaps the clearest are *Leonard Harris*, 20 Cr. App. R. 144 and *R. v. Golder*, [1960] 1 W.L.R. 1169.

The judge also said that a certain statement made by the girl to the police that one Yusuf killed the deceased "is available for consideration in support of

the defence along with other evidence". Again, with respect, that is not correct, as the statement is not evidence admissible at the trial. What is evidence at the trial, for what it is worth, is simply that the girl made the statement.

Secondly, a woman named Sokore gave evidence at the preliminary inquiry. She could not be found to give evidence at the trial. The State Attorney sought to put in, not her deposition, but a statement she had earlier made to the police and which was inconsistent with her deposition. The learned judge held that it was admissible under s. 33 of the Evidence Act. With respect, we think it was clearly inadmissible. In any case, it could have no possible evidential value, since it was inconsistent with the maker's own subsequent sworn evidence.

Thirdly, the judge's notes of his summing-up contain a reference to two statements and then continue:

> "Not admissible in evidence strictly because the interpreter not called. Put in at request of defence."

Evidence is either admissible or inadmissible, and where it is inadmissible, it can no more be put in at the request of the defence than at the request of the prosecution.

The misdirections to which we earlier referred would probably not have been fatal to the conviction, but we are satisfied that even if there had been no misdirection, the evidence was so inconclusive that the conviction could not safely have been sustained.

Appeal allowed.

For the appellant:
PS Gatimu (instructed by *Odhiambo & Gatimu*, Nairobi)

For the respondent:
KA Amoo-Adare (State Counsel)

Bukenya v Attorney-General
[1972] 1 EA 326 (HCU)

Division:	High Court of Uganda at Kampala
Date of judgment:	24 April 1972
Case Number:	730/1971 (117/72)
Before:	Russell Ag J
Sourced by:	LawAfrica

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[1] Criminal Law – Assault – Shooting to secure arrest – Unlawful.

[2] Civil Practice and Procedure – Pleading – Assault – Plaint to allege whether shooting intentional or negligent.

[3] Criminal Practice and Procedure – Arrest – By shooting – Unlawful.

[4] Negligence – Arrest – Shooting not justified.

Editor's Summary

The plaintiff claimed general damages from the defendant for injuries he sustained as a result of being shot by a member of the Armed Forces. The defendant contended that the shooting was done in order to effect arrest of the plaintiff.

The plaintiff did not state in his plaint whether the shooting was intentional or negligent. The defendant however pleaded that the shooting was in self-defence.

Held –

(i) the plaint ought to have alleged whether the shooting was intentional or negligent;

(ii) neither the police, soldiers nor private citizens when lawfully entitled to arrest without a warrant may shoot anyone in cold blood;

(iii) self defence had not been proved;

(iv) general damages of Shs. 40,000/- awarded.

Judgment for the plaintiff.

Cases referred to in judgment:

(1) *Fowler v. Lanning*, [1959] 1 Q.B. 426.

(2) *Muhidini s/o Asumani v. R.*, [1962] E.A. 383.

(3) *M'Ibui v. Dyer*, [1967] E.A. 315.

Editor's Summary

Russell Ag J: The plaintiff Efulaimu Bukenya, a fisherman from Kihigi village in Kigezi, is seeking special and general damages from the representative defendant for trespass to the person. The cause of action is set out succinctly in paragraph 1 of the plaint which reads:

> "On 19 March 1971, at Nakivubo in Kampala City the soldiers of the Uganda Army of which Komeko was one, the servants of the Uganda Government assaulted and wounded the plaintiff by shooting at him with a gun on the abdomen, chest and hips and the plaintiff thereby suffered severe injuries. The plaintiff contends that at the material time the said soldiers were acting in course of their duty as agents/servants of the Uganda Government."

The plaint should have contained an allegation as to whether the shooting was intentional or alternatively that the servants of the Uganda Government had been negligent and, if so, giving particulars of the alleged negligence. In commenting thus I am fortified by the relevant opinion of Farrell, J. in his judgment in *M'Ibui v. Dyer*, [1967] E.A. 315 at p. 319, with which I respectfully agree:

> "As originally filed the plaint alleged merely that the defendant shot at the plaintiff and caused him injury, but on the basis of the ruling in *Fowler v. Lanning* (1), an amended plaint was filed alleging in the alternative that the shooting was either intentional or negligent. The defence in the first place denies both intention and negligence, but goes on to allege justification in that the defendant was trying to effect an arrest on reasonable suspicion that a felony had been committed. Two other grounds of justification were pleaded but not pressed at the trial. There is also an allegation of contributory negligence. Finally there is a plea of inevitable accident, but this I take to be no more than a denial of negligence in another form. (See *Fowler v. Lanning*, [1959] 1 Q.B. 426 at p. 433.)"

This omission appears to have been rectified and clarified by the defence in which paragraph 2 reads:

> "On the date and the place mentioned in paragraph 1 of the plaint, the plaintiff, with another person not mentioned in the plaint, attempted to shoot the defendant's servant or agent who was performing his duty. Thereupon the defendant's servant or agent, to protect himself as he was entitled to do, shot at the plaintiff. Defendant pleads that his servant or agent used no more force than was reasonably necessary. Save as aforesaid paragraph 1 of the plaint is denied."

It will be observed that the defendant pleaded that the shooting was intentional but justified solely on the grounds of self defence and the hearing was conducted on the basis that the onus of proving the justification rested on the defendant. It will be further observed that it was not pleaded in the defence that the "defendant's servant or agent" was a soldier nor that " . . . performing his duty . . ." was attempting lawfully to arrest the plaintiff.

As both parties were professionally represented it did not appear necessary to settle the issues as they had been clearly joined in the pleadings by which both parties were bound. Mr. N. W. Harrison was called as a witness for the plaintiff as a matter of convenience out of turn and the State Attorney representing the defendant then called Staff Sgt. John Komeko (to whom I shall refer as "Komeko") a military policeman stationed at Makindye Barracks, as the first witness for the defence.

Komeko testified that on 19 March 1971 at about 5.45 p.m. while in civilian clothes he was returning to the Barracks from Naguru in a large black car accompanied by a police driver, Ismail Mustafa. When they were close to Kisenyi Road they were stopped by a civilian who informed them he had been frightened by some civilians in the area who were armed with guns. The civilian then directed them to Nakivubo Stadium car park and pointed out two men standing near a stationary car. Komeko got out of the car leaving Mustafa near the car and went towards the two men and spoke to them from a distance of about 12 feet.

Komeko, who was holding a pistol in his right hand but concealed under the left side of his shirt, alleged he spoke to the two men and said he wanted to question them. The shorter of the two men replied "harshly" and said "What do you want" and at the same time produced a pistol from the region of his left hip and appeared to be trying to release the safety catch. As Komeko thought the shorter of the two men was about to shoot him he thus shot him first and the man fell to the ground and shouted out that he should not be killed as he was an Army Officer from Gulu. It is common cause that he was in fact a lieutenant in the Uganda Army from Gulu and although his identity card and pistol were taken as exhibits they were not produced at the hearing.

Up to this point of the hearing it appeared that the evidence adduced by the defendant was relevant and compatible with the pleadings as I not unnaturally presumed the shorter of the two men who had been shot was the plaintiff. This, however, was not the case as Komeko then testified that the other man ran away without speaking and he, Komeko, shouted to him three times in Swahili "Simama" which means "Stop". As he did not stop he shot him twice in the back from a distance of about 15 yards and he fell unconscious to the ground. To my surprise I was informed that it was the second man who had been shot while running away who was in fact the plaintiff.

Mustafa was the only other witness called for the defence and he substantially corroborated the testimony of Komeko. Apart from the surgeon, Mr. Harrison, the only witnesses called for the plaintiff were the plaintiff himself and Lt. Dick Sekiwana, the first man who had been shot in the back and as a direct result has probably been crippled for life.

Despite the evidence of the only two witnesses for the defence, Komeko and Mustafa, which could not conceivably be regarded as in any way establishing the defence of justification of the shooting of the plaintiff by Komeko in self defence, counsel for the defence did not apply for leave to amend the defence by introducing a substituted or alternative issue as to whether Komeko shot the plaintiff while he, the plaintiff, was attempting to avoid lawful arrest and whether in so doing Komeko had not used any more force than was reasonable or necessary

under the circumstances. It is therefore clear that on the issue of justification as pleaded by the defence there must be judgment in favour of the plaintiff.

Miss Katende in her closing address on behalf of the defendant directed my attention to s. 2 of the Armed Forces (Powers of Arrest) Decree 1971 which enacts that a soldier may, without an order from a court or a warrant, arrest any person, whom he suspects on reasonable grounds of having committed or being about to commit certain offences (amongst which is carrying an offensive weapon liable to cause terror to any person, s. 71 of the Penal Code). She also referred to s. 3 of the said Decree which reads:

> "3. A soldier or a prison officer in making an arrest shall use only such force as is necessary to take the person he is arresting into his custody and to prevent him escaping."

She finally submitted that Komeko shot the plaintiff to prevent him escaping and that the shooting was necessary and reasonable and he did not use any more force than was necessary to effect the lawful arrest of the plaintiff. She did not even suggest that Komeko shot the plaintiff in self defence or "for his protection".

There appears to be a widespread but mistaken belief not only among the general public and apparently even in legal circles that the police, soldiers and private persons lawfully entitled to arrest without warrant persons whom they reasonably suspect of having committed or being about to commit designated offences may shoot them in cold blood should they fail to acquiesce in their arrest. Such cases usually come before the courts when trying charges of murder or manslaughter but as the issue has been raised in this suit and, in the event, was not relevant I feel it would not be out of place to refer briefly to the relevant law generally and in relation to this suit if the issue had become relevant.

In the instant suit on Komeko's own testimony it was established that he had not identified himself as being a soldier with the right of arrest under certain circumstances, nor did he intimate to the plaintiff that he wished to arrest him. All he said to the two men was that he wished to interrogate them but he did not say for what reason. Even if Lt. Sekiwana produced a pistol there was no valid reason to believe the plaintiff was similarly armed as he was running away and was at least 15 yards away when he was shot twice in the back by Komeko. It appears to me that, far from being grounds for suspicion, the fact that the plaintiff ran away was the natural and probable result of seeing his friend, who was a lieutenant in the Army, shot in the back by an unidentified assailant in civilian clothes.

In the *Dyer* case the defendant on reasonable grounds suspected the plaintiff to be one of a gang of three thieves who had stolen some sheep on the farm which he was managing. As it happened they were not in fact thieves but the defendant fired two shots in the air from a shotgun in the direction of the gang. Two of the men stopped but the third man kept running away despite the fact that the defendant had shouted to him to stop – "Simama". He then fired a third shot allegedly in the air in the direction of the third man and the pellets wounded him and he surrendered. It was accepted that the defendant had not intended to hit the plaintiff (the third man) but it was held he was guilty of negligence and that he was not protected by any provisions of the criminal law as the amount of force he used in the particular circumstances was neither reasonable nor necessary. Farrell, J. dealt fully with the relevant law, and as I respectfully agree with his findings I will quote from his judgment at p. 322 commencing at E:

> "I find that by firing in the direction of the plaintiff the defendant took a substantial risk of hitting him, as in fact happened, and that it was neither necessary for the purpose of affecting the plaintiff's arrest, since the other

two fugitives were stopped in their flight without any shot being fired in their direction, nor was it reasonable in the circumstances to use a degree of force which could or might probably result in the infliction on the plaintiff of gunshot wounds. In this connection it is pertinent to compare the Canadian case of *Merin v. Ross* (2), summarised as follows:

> 'In an action against a police officer for the death of a person who had been killed by the ricocheting of a bullet from a revolver which the officer had fired, without aiming at anyone, when pursuing the deceased in order to arrest him:
>
> Held: the officer believed on reasonable and probable grounds that the deceased had been abetting one who he also believed on such grounds had broken into a shop, and the officer in shooting as he did was acting properly within his rights and doing no more than his duty required him to do.'

Without a fuller report and material upon which to compare the Canadian law with the law of this country, such decisions must be treated with caution, but some significance may be found in the words 'without aiming at anyone'.

Reference may also be made, for what it is worth, to case number 641 on the same page, *Cretzu v. Lines* (3), where it was held that, although the police officer believed on reasonable grounds that the deceased had committed a crime which rendered him liable to arrest, he had used a revolver unnecessarily, and therefore unjustifiably, and also negligently.

The case immediately preceding, *Woodward v. Begbie* (4) might at first sight appear to be in favour of the defendant, as the circumstances which negative justification in that case are not present here. But it is not clear from the summary whether, even if the use of pistols had been found justified, it might not have been open to argument that the particular use of them, in aiming so close to the plaintiff, in the circumstances was negligent.

While no great reliance can be placed on any single case among those cited, it may perhaps be fair to remark that in the one Commonwealth country where the use of firearms in effecting arrest is, so it appears, not uncommon, the only reported case in which the infliction of injuries has been held justifiable is one in which the defendant had fired without aiming at anybody."

Before leaving this issue I retiterate that it has frequently had to be considered as a criminal aspect as in the case of *Muhidini s/o Asumani v. R.*, [1962] E.A. 383.

I will now deal with the quantum of special and general damages.

The plaintiff is a fisherman from Kigezi who used to hire a licensed canoe which he operated with the assistance of hired porters. He was unable to identify the licensed owner of the boat nor quote the boat or licence number. He was also unable to produce any documentary evidence or accounts to establish his alleged profit earnings of Shs. 500/- a month from this venture. He testified he paid a graduated tax of Shs. 150/- which would place his income at the most in the Shs. 2,500/- to Shs. 3,000/- class. He still has an income from other properties in which he invested his savings but, here again, he was unable to give any particulars.

In the plaint the plaintiff has pleaded that although he was in hospital for 20 days only he was unable to carry on his business for 3 months as a fishmonger at Shs. 500/- a month. He therefore claimed Shs. 1,500/- special damages. There has not been any application to amend the plaint and I am not now prepared to deal with the issue of special damages at large even though at the hearing he testified he had lost his business completely. In view of the medical

evidence I am prepared to accept he was unable to work effectively for 3 months. In the absence of any accurate figures, and judging by his own amount of income for tax purposes, I may be erring on the generous side by allowing Shs. 250/-per month for 3 months, which comes to Shs. 750/- in respect of special damages.

The plaintiff testified that he had been shot twice and had suffered severe pain and that a bullet is still lodged in his spine. He still suffers pain in his right leg and is losing weight. He is a married man with four children and due to his injuries is impotent. If he stands for any length of time he feels dizzy and falls down.

The plaintiff relied for particulars of his injuries and medical treatment on the very full and carefully prepared medical report of Mr. Henderson which was admitted by consent. The report deals fully with the surgical aspect of the wounds inflicted by the gunshot from the time the plaintiff was admitted to hospital on 19 March 1971 until his discharge on 1 April 1971. It is clear that the plaintiff had to undergo major surgery including the removal of his spleen. It is also clear that a bullet or part of a bullet has lodged between the bodies of the 4th and 5th vertebrae.

The plaintiff was examined by Mr. Henderson on 23 March 1972 and the results of that examination and his conclusions are as follows:

> "He is a tall man of generally healthy appearance who walks with a limp. There is no evidence of anaemia. The injuries referred to and the operation scars are satisfactorily healed. Pulse 76 per minute; Blood pressure 130/75 mm. Hg. No abnormality of the heart or lungs was found. There was abdominal tenderness in the region of the operation scars. His mental state suggested some degree of depression. There was muscle weakness of the right arm and right leg, being more marked in the leg but the degree of weakness was inconsistent. There was a small degree of wasting of the quadriceps and calf muscles on the right side. The limb reflexes were all very brisk but equal on both sides, except for the ankle jerk which was absent on the right. The plantar reflexes were normal. Tests for sensory appreciation of light touch and pinprick revealed a complete loss of sensation of the right half of the body from the face to the foot. Anal tone was normal and the anal reflex present.
>
> 3. An x-ray of the chest and abdomen shows no abnormalities other than an opacity consistent with a bullet near the midline between the bodies of the 4th and 5th lumbar vertebrae.
>
> *Conclusions*
>
> 1. The injuries sustained are suggestive of bullet wounds one of which entered the lower part of the chest and emerged through the upper abdomen causing damage to the diaphragm, spleen and stomach. Another bullet entered the lower part of the back and remains in situ.
> 2. He has made a good recovery from the major abdominal injuries.
> 3. The injuries to the lumbar spine can be expected to account for some of the pain in the back and right leg and for some of the weakness and sensory loss in the right leg.
> 4. The extent and distribution of the weakness and sensory loss on the whole of the right side of the body is not consistent with an organic lesion resulting from the injuries described, and is suggestive of a substantial degree of psychological overlay.
> 5. No organic basis for the symptoms of palpitations and giddiness or impotence have been found.

6. It is possible that the back injury may be the source of persistent or recurrent pain in the back and legs and some muscle weakness. It is a very difficult problem to assess the outcome of the psychological symptoms and a specialist psychiatrist opinion and treatment may be necessary."

The witness stood in the witness-box for a considerable time being examined and cross-examined and did not appear to be disabled to the extent I would have expected if the symptoms he described were due to any permanent organic reasons.

In the absence of a report by a psychiatrist I must do the best I can to assess the extent and permanency of the plaintiff's injuries and have come to the conclusion that the symptoms described by the plaintiff, apart from those directly attributable to organic reasons, are largely psychotic and exaggerated.

There is, however, no doubt that the plaintiff has suffered very severe pain and has been left with a bullet lodged in his body and loss of sensation on his right side from his face downwards. He may have suffered for a time from lack of ability to have sexual intercourse but I am not satisfied that he is in fact impotent. Neither counsel nor I have been able to trace any decisions on all fours with the facts in the instant case, but bearing in mind all the circumstances I consider a sum of Shs. 40,000/- fair and reasonable compensation for the pain and suffering caused to the plaintiff and also for loss of amenities and permanent disability.

There will therefore be judgment in favour of the plaintiff against the defendant for Shs. 750/- special damages, Shs. 40,000/- general damages, costs of suit and interest as prayed.

Order accordingly.

For the plaintiff:
JF Kityo (instructed by *Kityo & Co*, Kampala)

For the defendant:
Mrs JK Katende (State Attorney)

Munyagwa v Kamujanduzi
[1972] 1 EA 332 (HCU)

Division:	High Court of Uganda at Kampala
Date of judgment:	27th April 1972
Case Number:	594/1971 (118/72)
Before:	Saied J
Sourced by:	LawAfrica

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[1] Civil Practice and Procedure – Pleading – Cause of action – Recovery of possession of land – No statement of money value of land – Cause of action shown.

[1] Jurisdiction – Unlimited in civil cases – Judicature Act, s. 3 (*U.*).

Editor's Summary

The plaintiff sued in the High Court for possession of his house and did not include in the plaint a statement of the value of the house.

The defendant contended that the High Court had no jurisdiction to hear the case which was within the jurisdiction of the Chief Magistrate's Court and that the omission of the value of the house was fatal to the claim.

Held –

(i) the jurisdiction of the High Court in civil matters is unlimited;

(ii) institution of a suit in the High Court when it was within the jurisdiction of a lower court only affected costs;

(iii) as the plaintiff was not claiming the value of the house its value need not be set out (*Kaggwa v. Vithaldas & Sons Ltd*. (1) distinguished).

Preliminary objections dismissed.

Case referred to in judgment:

(1) *Kaggwa v. Vithaldas & Sons Ltd*., [1965] E.A. 165.

Judgment

Saied J: This is a suit involving ownership of some land and a house built thereon. The plaintiff claims ownership of both, and further alleges that the defendant has wrongfully taken possession of this property. There is also an averment that the previous tenants had withheld payment of the rent till this dispute over ownership is finally decided. The plaint does not state the money value of the suit.

The plaintiff is seeking the following reliefs:

"(*a*) Possession of the land and house.

(*b*) A declaration that the defendant is not the owner of the land and the house and is therefore not entitled to claim rent from the tenants in respect of the said house.

(*c*) A declaration that the defendant is not entitled to the money held by Uganda Publishing House Ltd. as arrears of rent and referred to in Paragraph 7 hereof.

(*d*) Damages.

(*e*) Mesne profits at the rate of Shs. 2,000/- per month until possession is delivered up."

Paragraph (1) of the defence states:

> "The defendant states that the plaint fails to disclose that the High Court at Kampala has jurisdiction to hear the suit and the plaint fails to disclose that notice to sue was given to the defendant WHEREFORE the defendant prays that the plaintiff's claim against the defendant be dismissed with costs."

When this case came up for hearing on 20 April 1972 this objection to the plaint was argued as a preliminary point in law. Mr. Mugenyi for the defendant made no submissions in respect of latter part of the objection regarding notice to sue. His main contention is that the plaint is bad in law because the money value of the subject matter of the suit has not been specifically stated in the plaint. He argued that this omission is fatal to the plaint which he asked to be struck out. He submitted also that this is a case which is within the jurisdiction of the court of a chief magistrate. He relied on s. 11 (4) of the Civil Procedure Act, and O. 7, r. 1 (i) of the Civil Procedure Rules.

For the plaintiff Mr. Sengoba submitted that it was not possible for his client to estimate the money value of the subject matter of the suit in view of the various declarations being sought by him. He stated further that the plaintiff hoped that he would be awarded damages beyond the jurisdiction of a magistrate's court. He relied on the general jurisdiction conferred on this Court by s. 3 of the Judicature Act.

That the jurisdiction of the High Court in civil matters is unlimited is beyond question – s. 3 of the Judicature Act. S. 11 of the Civil Procedure Act was amended when the Magistrates' Courts Act, 1964 came into operation by the substitution of subsections (1), (2) and (3) with the following new subsection:

> "Save as provided in this Ordinance or the Magistrates' Courts Act 1964 suits and proceedings of a civil nature shall be instituted in the High Court."

The Magistrates' Court Act 1964 has since been repealed and replaced by Act No. 13 of 1970. This amendment however does not seem to have been affected by the repeal of the old Act. Subsection (4) on which Mr. Mugenyi relies, states:

> "(4) Whenever for the purposes of jurisdiction or court fees it is necessary to estimate the value of the subject matter of a suit capable of a money valuation the plaintiff shall, in the plaint, subject to the provisions of any rules of court, fix the amount at which he values the subject matter of the suit: Provided. . . ."

Reading both these subsections together it is manifest that reference to jurisdiction therein is to the pecuniary jurisdiction of the courts. In my opinion all that is meant is that cases which fall within the pecuniary jurisdiction which is clearly defined and set out in the Magistrates' Courts Act, of various grades of Courts should be brought in those Courts, and see the proviso to s. 220, Magistrates' Courts Act. This is a matter of procedure only, and regulates the practice of the Courts, but does not deprive any Court of jurisdiction which it may otherwise possess. Thus, the institution in a court of a higher grade, of a suit, which ought to have been instituted in a court of a lower grade, is only an irregularity in procedure and does not affect the jurisdiction of the Court. I think I am fortified in this conclusion by s. 11 (7) of the Civil Procedure Act, the opening words of which read:

> "(7) Notwithstanding the other provisions of this section, any suit may be instituted in the High Court which could have been commenced in a subordinate court or in a magistrate's Court. . . ."

In such an event what is affected is not the jurisdiction of the Court, but the costs to which a successful plaintiff may be entitled.

For these reasons, I am of the considered opinion that the provisions of s. 11 (4) of the Civil Procedure Act have no application to the High Court in so far as jurisdiction is concerned, but apply only in subordinate courts whose jurisdiction is clearly defined by statute. This subsection nevertheless applies to all Courts with regard to the court fees payable, even so subject to any rules of court.

Mr. Mugenyi's objection based on section 11 is clearly misconceived.

Turning now to O. 7, r. 1 (i) which states:

> "1. The plaint shall contain the following particulars–
>
> (i) A statement of the value of the subject matter of the suit so far as the case admits."

Mr. Mugenyi's main contention is that the land and the house which form the basis of this suit are capable of being estimated in money value, and that such an omission from the plaint is fatal. I am not persuaded by this argument. The plaintiff is not seeking to recover the value of the land and the house, but seeks possession from the defendant. The question therefore is whether the plaint as drawn setting out the various facts leading to this litigation but without stating the money value of the property involved sufficiently complies with O. 7, r. 1 (i). This rule was considered in the case of *Kaggwa v. Vithaldas & Sons Ltd.*, [1965] E.A. 165. There the plaintiff claimed the value of certain trees, which he enumerated, felled and converted by the defendant but the plaint did not set out their value. Sir Udo Udoma, C.J., said at p. 169:

> "Without a statement of such value methinks it would be well nigh impossible for the court to assess fair and reasonable damage, especially if what is stated by counsel for the plaintiff is correct, that the plaintiff is not in a position to fix values to the trees because he is too old."

It was held that the plaint was defective for non-compliance with O. 7, r 1 (i). Each case has to be considered on its own facts. In the circumstances of this case where the plaintiff is seeking to recover possession and not the value of the land and the house, I do not see what useful purpose will be served in making the plaintiff state the money value of the subject matter. Furthermore, besides a prayer for general damages, the plaintiff claims also mesne profits, which according to its definition in s. 2 of the Civil Procedure Act, are an unascertained amount.

For these reasons I hold that this is not a case which admits of the value of the subject matter of the suit being set out in the plaint.

I see no merit in the preliminary objection, which is dismissed with costs. I order that the suit proceed to hearing on a date to be fixed without any further delay.

Order accordingly.

For the plaintiff:
A Sengoba (instructed by *Hunter & Greig*, Kampala)

For the defendant:
Y Mugenyi (instructed by *Mugenyi & Co*, Kampala)

Difasi v Attorney-General
[1972] 1 EA 335 (HCU)

Division:	High Court of Uganda at Kampala
Date of judgment:	16 June 1972
Case Number:	860/1971 (119/72)
Before:	Fuad J
Sourced by:	LawAfrica

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[1] Limitation of Actions – False imprisonment – Continuing injury – Cause of action arises continuously during imprisonment – Civil Procedure and Limitation (*Miscellaneous Provisions*) *Act* 1969, (*U.*).

Editor's Summary

The plaintiff claimed damages for wrongful arrest and false imprisonment. The plaintiff had been arrested and imprisoned on a charge of murder. The Director of Public Prosecutions had directed the charge to be withdrawn and the accused to be released on 25 December 1969. He was not released however, until 19 July 1971.

The defendant raised a preliminary point that the action was statute barred under the Civil Procedure and Limitation (Miscellaneous Provisions) Act 1969. It was argued for plaintiff that false imprisonment was a continuing injury, a fresh cause of action arising each day that he was detained.

Held –

(i) false imprisonment is a continuing tort with a cause of action accruing continuously during the imprisonment (*John Siya v. Attorney-General* (4) followed; *Musambu v. West Mengo District Administration* (3) not followed);

(ii) a claimant can recover in respect of imprisonment during the limitation period.

Judgment for plaintiff on preliminary point.

Cases referred to in judgment:

(1) *Hardy v. Ryle* (1829), 9 B. & C. 603. 109 E.R. 224.

(2) *O'Connor v. Isaacs*, [1956] 2 Q.B. 288.

(3) *Musambu v. West Mengo District Administration*, [1971] E.A. 379.

(4) *John Siya v. Attorney-General*, H.C.C.S. 29 of 1971 (unreported).

Judgment

Fuad J: The claim of the plaintiff is against the Attorney-General for damages for wrongful arrest and false imprisonment. The facts upon which the plaintiff relies are set out in the plaint as follows:

> "(3) On 25 December 1968 at Konko village in Kyaggwe County the Police constables from Lugazi Police Post, the servants or agents of the Uganda Government assaulted and falsely arrested the Plaintiff upon a false charge of murder and caused the Plaintiff to be remanded to prison pending the hearing of the said charge.
>
> (4) During the month of December 1969, the Director of Public Prosecutions ordered and directed the Police to withdraw the said charge against the Plaintiff and release the Plaintiff on 25 December 1969, but the Police negligently/carelessly and maliciously detained the Plaintiff and falsely procured the Magistrate to remand the Plaintiff to prison on the same said charge until 19 July 1971, when the Plaintiff was released on the order of the High Court Judge at Kampala.
>
> (5) The Plaintiff contends that at the material time the said Police were acting in the course of their employment as such agents/servants of the Uganda Government.
>
> (6) By reason of the premises the Plaintiff contends that he was wrongfully arrested and falsely imprisoned for a period of 572 days from 25 December 1969, till 19 July 1971, in consequence of which he suffered damage."

The defence admits the arrest on 25 December 1968 but pleads that it was lawful. The defendant also admits that the plaintiff was not released in accordance with the instructions of the Director of Public Prosecutions contained in his letter of 16 December 1969 addressed to the Deputy Supt. of Police, Mengo, but denies that any malice or negligence was involved, the error being due to a "mere oversight". It is pleaded that the plaintiff was lawfully remanded in prison until he was released on 19 July 1971. It is common ground that the plaintiff's plight was brought to the attention of the Chief Justice who, after investigation, discovered the terrible injustice that had occurred and it was as a result of an order made by the Chief Justice that the plaintiff regained his liberty on 19 July last year.

The defence included the following plea of limitation–

> "IN THE ALTERNATIVE the defendant pleads that the plaintiff can only recover in respect of false arrest-imprisonment only for a period of one year computed backwards from the date of filing of this suit in the High Court, and the defendant will invoke the provisions of the Civil Procedure and Limitation (Miscellaneous Provisions) Act, 1969."

With the agreement of counsel for the parties, the issue of limitation was taken as a preliminary point of law and the matter was argued before me on 7 June 1972, on the pleadings as they stood, without any evidence being heard.

Mr. Matovu, for the Attorney-General, departing from his pleadings, submitted that the cause of action arose in December 1969 (when the instructions of the Director of Public Prosecutions should have been obeyed) and thus that the whole action was time-barred when the plaint was filed on 22 October 1971 by virtue of the provisions of s. 2 (1) of the Act, which stipulates that no action founded on tort shall be brought against the Government "after the expiration of twelve months from the date on which the cause of action arose". He relied on the decision of Youds, J. in *Musambu v. West Mengo District Administration,* [1971] E.A. 379 and on the English case followed by Youds, J., *O'Connor v. Isaacs*, [1956] 2 Q.B. 288.

Mr. Kityo, for the plaintiff, argued that if the cause of action had arisen in December 1969 the cause of action had continued from day to day until his client was released. A fresh cause of action arose each day that he was detained after he should have been released. He submitted that *O'Connor's case* was decided on a particular statute and had no relevance here. He attempted to persuade the court, however, that on the facts as pleaded in this case, the cause of action had in fact only arisen on 19 July 1971 when the plaintiff was released by the Chief Justice's order. He prayed in aid s. 5 of the Act, contending that the plaintiffs right to be released had been concealed from him by fraud, and that time did not start to run against him until his right had been made known to him.

During the course of his submissions, Mr. Kityo cited the following passages from p. 197 of Franks on Limitation of Actions:

> "False imprisonment is necessarily a continuing tort so that a cause of action accrues continuously throughout its duration and an action may be brought at any time in respect of imprisonment occurring in the previous six years."

He also cited a passage from para. 512 of Clerk & Lindsell on Torts (12th ed.), which is in the following terms:

> "Where there is a continuing nuisance or a continuing trespass, every fresh continuance is a fresh cause of action, and therefore an injured party who sues after the cessation of the wrong may recover for such portions of it as lie within the period limited."

The judgment of Youds, J. in *Musambu's* case, is so short that I will set it out in full:

> "With the agreement of the parties, a preliminary point of law was taken by Mr. Tinyinondi on behalf of the defendant local authority that the plaintiff's claims for wrongful arrest and false imprisonment are statute-barred by s. 2 of the Civil Procedure and Limitation (Miscellaneous Provisions) Act 1969.
>
> The submission of Mr. Tinyinondi is that the causes of action for the torts of wrongful arrest and false imprisonment arose on 2 October 1969 according to the plaintiff's own case as pleaded, yet the action was not commenced against the defendant until the filing of the plaint on 19 October 1970, which was 17 days out of time.
>
> Mr. Balikuddembe's argument is that the causes of action for wrongful arrest and false imprisonment are so intertwined and mixed with the cause of action for malicious prosecution that it ought to be held that time should not begin to run against the plaintiff until after 22 October 1969 which was the date when criminal proceedings taken against him in the magistrate's court for tax evasion terminated in his favour; and that it was not until after the termination of those proceedings in his favour that he became aware of his wrongful arrest and knew he had been falsely imprisoned.
>
> I am afraid that I cannot accede to Mr. Balikuddembe's argument, and I consider it is immaterial to the question which I have to decide at what point of time it was that the plaintiff first became aware that he had an actionable case. I have to decide the question in accordance with the terms and wording of the statute and consider "the date on which the cause of action arose" as the sole criterion.
>
> Neither of the advocates produced any decision from East African courts which provides me with any assistance, but the English case of *O'Connor v. Isaacs*, [1956] 2 Q.B. 288 and Court of Appeal at p. 328 is

> directly in point and was a case of false imprisonment where it was held both by Diplock, J. (as he then was) in the court of first instance and by the Court of Appeal that the cause of action arises at the date of imprisonment and time starts to run at that date, and not at the date of the subsequent quashing of a conviction or order which in that case was a necessary preliminary step before the action for false imprisonment could be brought-see also Clerk & Lindsell on Torts (12th ed.), para. 1801, at p. 941.
>
> I therefore must hold that the causes of action for wrongful arrest and false imprisonment arose on and by 2 October 1969 and that time began to run against the plaintiff on and after that date. He is therefore statute-barred and is unfortunately 17 days out of time in starting his action for wrongful arrest and false imprisonment."

As I read *O'Connor v. Isaacs*, it was held that the right of action for false imprisonment was barred by s. 21 (1) of the Limitation Act, 1939 notwithstanding the fact that under the Justices' Protection Act, 1848, a conviction (and in certain cases an order) must be quashed before an action for the resulting false imprisonment can be brought, because the cause of action accrues at the date of the imprisonment and the proviso to s. 2 of the Justices' Protection Act does not postpone the accrual of the cause of action until the time when the various orders complained made by the justices were quashed. On the facts of the case it would have been irrelevant for the Court of Appeal to have considered whether the cause of action in false imprisonment accrues continuously throughout its duration. The plaintiff had been imprisoned for a total of 193 days during the years 1942, 1944 and 1945. The writ claiming damages for false imprisonment in respect of these periods of detention was not issued until December 1954, a very long time after his final release in October 1945. In view of the construction put upon the relevant statutes by the Court of Appeal and on the facts, it could not have been suggested that any of the causes of action had accrued within the limitation period.

To return to *Musambu's* case, it must be appreciated that the judgment does not reveal the duration of the plaintiff's imprisonment. I have been able to discover what it was from a "ruling" given by the learned Chief Justice upon another point of law raised in the same case. It is clear that the plaintiff averred that he had been falsely imprisoned for a period of 7 hours on 2 October 1969. Since, as we have seen, the suit was not instituted until 19 October 1970, there was no imprisonment within the limitation period, and I respectfully agree that the claim in so far as it related to false imprisonment (there was also a claim in respect of malicious prosecution) was statute-barred.

A question similar to the one before me was, however, raised in the unreported case of *John Siya v. Attorney-General*, High Court Civil Suit No. 29 of 1971, which has come to my attention. In that case the plaintiff was arrested on 1 January 1970 and released on 11 August 1970. His plaint was filed on 5 April 1971. Wambuzi, J. held:

> "I am inclined to the view that false imprisonment is a continuing injury, that is limiting the freedom of the individual. In this case therefore the effect of s. 2 of the Civil Procedure and Limitation (Miscellaneous Provisions) Act is to wipe out so much of the injury as falls outside twelve months of the filing of the action. The plaintiff is at liberty to show that any imprisonment within 12 months of the filing of the suit was false. I accordingly hold that so much of that alleged imprisonment is not statute barred."

Mr. Kityo's submission regarding s. 5 of the Act cannot, in my opinion, be upheld. One has only to read the section to see that none of its provisions could

possibly apply in this case on the pleadings as they stand. I am of the respectful view that the law as set out in the passages from the text books I have quoted above, and as expounded by Wambuzi, J., on the continuing nature of the tort of false imprisonment and the effect of this attribute upon the law of limitation is correct. There is some additional support in the old case of *Hardy v. Ryle* (1829), 9 B. & C. 603; 109 E.R. 224 in which it was held that where the plaintiff was released from wrongful detention of one month's duration on the 14 December, and issued his writ on the 14 June (the period of limitation under the repealed Constables Protection Act, 1750, being 6 months), he was entitled to maintain an action in respect of the trespass to his person committed on 14 December.

Paraphrasing part of para. 411 of Halsbury's Laws of England (3rd ed.). Vol. 24, I hold that where an action is brought for false imprisonment against the Government, if the imprisonment began more than 12 months before action but continued to a time within that period, damages for so much of the imprisonment as took place within the 12 months before action may be recovered, although a plea of the statute prevents the recovery of damages for so much of the imprisonment as took place outside that period. Therefore on the facts of this case the plaintiff is not statute-barred from attempting to establish his claim for damages from 22 October 1970 until his release on 19 July 1971.

Order accordingly.

For the plaintiff:
JF Kityo (instructed by *Kityo & Co*, Kampala)

For the defendant:
MB Matovu (Senior Principal State Attorney)

Nyarbungu Tin Mines Ltd and another v Attorney-General
[1972] 1 EA 339 (HCU)

Division:	High Court of Uganda at Kampala
Date of judgment:	26 April 1972
Case Number:	879/1971 (120/72)
Before:	Fuad J
Sourced by:	LawAfrica

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[1] Limitation of actions – Computation of time – Exclusion of day of accident and last day when a Sunday or Public Holiday – Interpretation Act (*Cap.* 16), *s.* 38 (*U.*).

Editor's Summary

The plaintiffs sued the defendant for damages for tort. The accident occurred on 31 October 1970. The plaint was filed on 1 November 1971, 31 October 1971 being a Sunday.

Counsel for defendant raised a preliminary objection that the suit was time-barred under s. 2 (1) of the Civil Procedure and Limitation (Miscellaneous Provisions) Act 1969.

Held –

(i) the day of accident is excluded from the computation of the limitation period;

(ii) 31 October 1971 being a Sunday, the suit could be filed on the next day and the suit was not statute-barred.

Preliminary objection dismissed.

Cases referred to in judgment:

(1) *Gelmini v. Morriggia*, [1913] 2 K.B. 549.

(2) *Marren v. Dawson Bentley & Co. Ltd.*, [1961] 2 Q.B. 135.

Judgment

Fuad J: The two plaintiffs sued the Attorney-General in negligence for special and general damages arising out of a motor car collision. The plaint was filed on 1 November 1971. Appearance was entered on 20 November 1971 and the defence was filed on 1 February 1972. It was in the following terms:

> "The defendant admits all the averments contained in the plaint and at the trial will only ask the court to quantify damages."

On 10 March 1972 interlocutory judgment was entered by the registrar in the plaintiffs' favour, under O. 11, r. 6. The suit then came before me for assessment of damages, on 5 April. Counsel for the Attorney-General asked for an adjournment (which was consented to, and granted) to 11 April to enable the defendant to have the second plaintiff examined by another doctor. On that date Mr. Kityo appeared for the plaintiffs but no-one appeared for the Attorney General. Mr. Kityo was ready to go on but stated that he was not calling evidence about the damage caused to the first plaintiff's car, because of the admissions in the written statement of defence. I informed him that I did not understand the defence to have accepted the amount claimed in respect of the damaged motor car and that I would require to hear evidence on the matter. I then granted Mr. Kityo an adjournment to 19 April and, in the interests of justice, directed that notice of the new hearing date should be served upon the Attorney-General.

On 19 April, before Mr. Kityo could call evidence, Mr. Ogwal, a Senior State Attorney, raised a preliminary objection. He had not represented the defendant at a previous stage of these proceedings. He submitted that the suit was statute-barred by virtue of the provisions of s. 2 (1) of the Civil Procedure and Limitation (Miscellaneous Provisions) Act 1969. The subsection provided that no action founded on tort shall be brought against the Government after the expiration of 12 months from the date on which the cause of action arose. He submitted that since the accident giving rise to the claim had occurred on 31 October 1970, the suit should have been filed on or before 30 October 1971. Mr. Kityo, understandably, said that he was taken by surprise but rejected my offer of an adjournment so that he could consider the new point that had been raised at such a late stage of the proceedings. He submitted that since liability had been admitted, the limitation rule did not apply. In any event, he argued, the date of the accident should not be counted and that therefore the suit, filed as it was on 1 November 1971, was filed within the limitation period.

There is an English case interpreting the Limitation Act, 1939 which is of assistance. In *Marren v. Dawson Bentley & Co. Ltd.*, [1961] 2 Q.B. 135, an accident occurred, by which the plaintiff was injured, on 8 November 1954. A writ was issued on 8 November 1957. It was held that the day of the accident was to be excluded from the computation of the limitation period and the defendant's plea that the action was statute-barred failed. I am sure, with respect that this view of the meaning of "after the expiration of twelve months from the date on which the cause of action arose" is correct and that 31 October 1970, for the purposes of this suit, must be excluded. However, in my opinion, this interpretation does not help Mr. Kityo, for by this reckoning the suit should have been filed on or before the 31 October 1971.

This does not end the matter for I have looked up the calendar for the year 1971 (as counsel should have done) and find that the 31 October fell on a Sunday. There is clear authority in England that O. 3, r. 4 of the Rules of the Supreme Court does not serve to extend the period of limitation under a statute and if that period expires on a Sunday, a writ issued on the following day is out of time (*Gelmini v. Moriggia*, [1913] 2 K.B. 549). I have no doubt therefore that our O. 47, r. 3 cannot help Mr. Kityo. In the United Kingdom, however, there appears to be a provision of general application similar to s. 38 (1) (*b*) of our Interpretation Act (Cap. 16). It reads:

> "38. (1) In computing time for the purpose of an Act of Parliament–
>
> (*a*) . . .
>
> (*b*) if the last day of the period is Sunday or a public holiday (which days are in this section referred to as excluded days) the period shall include the next following day, not being an excluded day;"

I am of the view that these provisions apply to the facts before me and hold that the suit, having been filed within the period of limitation (as extended by s. 38 (1) (*b*) of the Interpretation Act) is not statute-barred, and Mr. Ogwal's preliminary objection must fail.

I order that the costs of the hearing on 19 April 1972 shall be the plaintiffs' in any event. I am now ready to hear evidence on the issue of damages, at the earliest date convenient to the parties.

Order accordingly.

For plaintiff:
JF Kityo (instructed by *Kityo & Co*, Kampala)

For defendant:
JK Katende (*Mrs*), (State Attorney)

Byarugaba v Kilembe Mines Ltd
[1972] 1 EA 341 (HCU)

Division:	High Court of Uganda at Kampala
Date of judgment:	25 April 1972
Case Number:	945/1971 (121/72)
Before:	Saied, J
Sourced by:	LawAfrica

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[1] Master and servant – Vicarious liability – Work unauthorised but within course of employment – Master liable.

[2] Negligence – Res ipsa loquitur – Mining – Roof of tunnel not under control of defendant – Facts of accident known – Doctrine inapplicable.

Editor's Summary

The plaintiff, a miner employed by the defendant claimed damages for injuries sustained in a rock fall in the mine. As a result both his legs were amputated.

The plaintiff had been ordered to work in the stope by the gang boss before the necessary supports had been fitted. The plaintiff also claimed that res ipsa loquitur applied.

The plaintiff was aged 22, earning a salary of Shs. 350/- a month. He was fitted with artificial limbs.

Held –

(i) the gang boss had disobeyed instructions and ordered the plaintiff to work in the stope before the necessary supports had been fitted;

(ii) this was merely an unauthorised method of doing his work and his employers were liable for negligence;

(iii) the facts of the accident were known; res ipsa loquitur did not therefore apply;

(iv) for the injuries general damages of Shs. 225,000/- would be awarded.

Judgment for plaintiff.

Cases referred to in judgment:

(1) *Bennett v. Chemical Construction Ltd.*, [1971] 3 All E.R. 822.

(2) *Dewshi v. Kuldip's Touring Co.*, [1969] E.A. 189.

(3) *Parry v. British Transport Commission*, Kemp & Kemp, The Quantum of Damages, Personal Injury Claims, 2nd ed. 551.

(4) *Kulsum Jivan v. S. Senteza*, H.C.C.S. 633/60 (unreported).

(5) *Mondo v. Jessa*, [1969] E.A. 156.

Judgment

Saied J: The plaintiff claims damages against the defendant company arising out of the plaintiff's loss of both legs, amputated after being injured by a fall of rock, whilst working in the defendant's mine at Kilembe on 1 June 1971.

The plaintiff avers, first, that the defendant company was in breach of the requirements of statutory duties imposed by the Mining (Safety) Regulations and the Factories Regulations, and, secondly, that the defendant was negligent and in breach of duty and in breach of contract to the plaintiff on the following grounds:

(*a*) Failing to take any or any adequate precautions for the safety of the plaintiff while he was engaged upon the defendant's work;

(*b*) Exposing the plaintiff to the risk of damage or injury of which the defendant knew or ought to have known;

(*c*) Forcing the plaintiff to work in a stope which had injured a miner on the previous day;

(*d*) Failing to provide or maintain adequate or suitable roof bolts, policemen, cementing or sand fills to enable the plaintiff to work in safety;

(*e*) Failing to provide or maintain a safe system of work.

The defendant denies liability, and accuses the plaintiff of negligence on the following grounds:

(*a*) The plaintiff failed to take notice of or ignored instructions not to go into Stope 40/27 until the same had been supported;

(*b*) Standing in a place which was unsafe;

(*c*) Failed to keep any or any sufficient look-out;

(*d*) Failed to take any or any sufficient steps to avoid being injured.

At the commencement of the hearing the defendant was allowed to amend its defence by adding a further paragraph pleading inevitable accident caused by constant earth tremors.

The undisputed facts are as follows. The plaintiff was employed by the defendant as scraper operator. On 1 June 1971 at about 9 a.m. some workers gathered at the underground waiting place for assignment of duties. Some seven workers including the plaintiff were detailed by the shift boss Semanza through his subordinate, the ganger Paulo Ruteshereka to proceed to Stope No. 40/27. There is some dispute as to the nature of the work they were ordered to carry out in the stope. I shall deal

with this conflict later in my judgment. There was evidence that the shift boss also instructed the timber foreman, Johnson Bicwicumu to erect a timber roof support, in mining parlance called a policeman, in

the same stope. It is common ground that before the timber foreman arrived at the stope to carry out his part of instructions, a large piece of rock measuring something like 47 inches long, 25 inches wide and 17 inches thick dislodged from the roof and struck the plaintiff and another man. The plaintiff was injured in the legs with the tragic consequence of amputation of both legs. The injuries of the other man proved fatal.

Whereas the plaintiff's case was that they were instructed to clean up the stope after the previous day's accident, which was not in dispute, to enable the policeman to be erected, and to remove a scraper from within the stope to another place; the defence was that the men were not to start working within the stope until the policeman had been erected. The shift boss maintained that three men including the plaintiff were to do lashing which involves taking copper ore with shovels to the mill hole; and to lift up the scraper from ten feet below to the level of the sand fill barricade. The reason for providing the policeman in this stope was given by two defence witnesses. The ganger whose duty it is to make safe the place which is not safe, while agreeing that the general condition of the stope was bad, said that chute 2290 where the plaintiff had been detailed for lashing, was unsafe. The mining captain, John David Hughes, mentioned a geological fault in the east end of the stope near the ore pass 2290, which has been there for a very long time. He described it as an "inclined fault" with approximately 6 to 8 inches of clay in between both planes of the fault. He said that on the material day he had instructed the shift boss to take a timber man into that stope "to support around 2290 mill hole before any one else should work in the area". When Mr. Hughes arrived after the accident and saw the piece of rock, he noticed that the entire face of the thickness, i.e. 17 inches, was all clay, indicating that the stone had come from the fault.

Five issues were framed for decision of the court as follows:

(1) Whether the doctrine of res ipsa loquitur applies?

(2) Whether there was a breach of the Mining (Safety) Regulations by the defendant company;

(3) Whether the defendant was negligent;

(4) Whether the plaintiff contributed to this accident? If he did, to what extent;

(5) If the defendant is negligent, the quantum of damages to which the plaintiff is entitled.

I shall now proceed to consider these various issues.

Although the plaintiff averred in his plaint that he intended to invoke the doctrine of res ipsa loquitur, counsel did not deem it necessary to argue who had the right to begin. However, authority exists that res ipsa loquitur need not be pleaded if facts pleaded and proved show that an accident was *prima facie* caused by some negligence on the part of the defendants – *Bennett v. Chemical Construction Ltd.*, [1971] 3 All E.R. 822. In Clerk & Lindsell on Torts, (13th ed.) the application of this doctrine is stated thus in paragraph 967:

> "The doctrine applies (1) when the thing that inflicted the damage was under the sole management and control of the defendant, or of someone for whom he is responsible or whom he has a right to control; (2) the occurrence is such that it would not have happened without negligence. If these two conditions are satisfied it follows, on a balance of probability, that the defendant, or the person for whom he is responsible, must have been negligent. There is, however, a further negative condition: (3) there must be no evidence as to why or how the occurrence took place. If there is, then appeal to res ipsa loqitur is inappropriate, for the question of the defendant's negligence must be determined on that evidence."

It seems to me that whereas the stope, of which the ore pass 2290 forms part could be said to be under the sole management and control of the defendant, the same could not be said of "the thing that inflicted the damage", that is, the piece of rock which fell from the roof. Furthermore, the maxim applies only in cases where the causes of the accident are unknown but the inference of negligence is clear from the nature of the accident, and the defendant is therefore liable if he does not produce evidence to counteract the inference. If the causes are sufficiently known, the case ceases to be one where the facts speak for themselves, and the court has to determine whether or not, from the known facts, negligence is to be inferred – Vol. 28, Halsbury's Laws of England, (3rd ed.) 79.

I need not say much on this issue. Suffice it to say that in view of the undisputed facts and my ultimate conclusions as will appear presently, I consider that appeal to this doctrine is inappropriate. The answer to the first issue must therefore be in the negative.

The plaintiff did not give evidence of, or otherwise indicate, the particular Mining (Safety) Regulations or Regulations of which the plaintiff avers the defendant was in breach. The plaintiff called no evidence to show any such breach. The defendant's witnesses were not cross-examined on that point. I find that the plaintiff has failed to prove the breach on the part of the defendant of any Mining (Safety) Regulation.

Having held that the doctrine of res ipsa loquitur does not apply, it is well settled that at common law the defendant is required to take reasonable care to ensure the safety of its employees at work. The onus of proof which lies on a party alleging negligence is that he should establish his case by a preponderance of probabilities. [The judge considered the evidence and continued.]

It is fairly obvious I think from the findings made by me so far that although the instructions given by Mr. Hughes were aimed at securing maximum protection for the men who were detailed to work at the ore pass, those instructions were definitely not carried out by his subordinate officers. The preponderance of evidence suggests rather that those instructions were in fact ignored by both the shift boss and more particularly the ganger who, as I have already held, ordered the men to start clearing up the stope immediately on getting inside it. I have considered very carefully whether this disobedience or, in other words, departure from instructions, of the junior officer is sufficient to absolve the defendant from liability to the plaintiff. The ganger quite clearly was engaged in doing what he had been instructed to do, but he went against the instructions of how he had to do it. Likewise the plaintiff was acting within the scope of his employment. The ganger, just as any other employee of the defendant who had had occasion to visit and work in this particular stope, must have known of the geological fault near the ore pass. In trying to make room for the timber men to erect the policeman – and this indeed is the extent of the ganger's departure from instructions – he did not take any other reasonable alternative safety precaution. He was, in my opinion, manifestly negligent and failed in his duty to his colleagues. I find that in these circumstances his departure from instructions does not absolve the defendant from liability.

This now leaves the defence of inevitable accident. Inevitable accident has been explained by Lord Esher in *The Schwan v. The Albano* cited in *Dewshi v. Kuldip's Touring Co.*, [1969] E.A. 189 at p. 192 as follows:

> "What is the proper definition of inevitable accident? To my mind these cases show clearly what is the proper definition of inevitable accident as distinguished from mere negligence – that is a mere want of reasonable care and skill. In my opinion, a person relying on inevitable accident must show that something happened over which he had no control, and the effect

> of which could not have been avoided by the greatest care and skill. That seems to me to be the very distinction which was taken, and was meant to be taken between the case of inevitable accident and a mere want of reasonable care and skill."

The evidence on this point is very unsatisfactory. As a matter of fact the only witness who mentioned an earth tremor that morning about 15–20 minutes before the accident is the ganger. Nobody else seems to have felt any such tremor. This witness said categorically that the cause of this accident was the earth tremor. Had there been such a tremor in the mine, many other people must have felt it also. The defendant did not call any such witness, nor did it call any expert witness. In view of my earlier findings about the integrity and credibility of this witness, I do not accept the ganger's word on such an important issue. In my opinion, the defendant has failed to discharge the burden of proving this defence.

For these reasons I make the following findings of fact:

1. That the defendant knew of the generally bad condition of this particular stope;
2. That the defendant realised and appreciated fully the fact that roof support was absolutely necessary for the safety of the men working in that area, besides the steel straps which had been fitted across the face of the split;
3. That the danger of not providing such an additional support was foresee-able and within the knowledge of the defendant;
4. That the ganger acted in complete disregard of instructions by ordering the men including the plaintiff to start clearing up the stope of the debris left by the previous day's accident, before the erection of the policeman;
5. That no other reasonable alternative precaution was taken to ensure the safety of the plaintiff, and the accident caused by falling rock from the fault is thus solely attributable to the negligence of the company.

These findings lead me to the conclusion that the company is solely liable in negligence for this accident. My answer to Issue No. 3 is in the affirmative, and to Issue No. 4 in the negative.

There remains now to consider the question of damages, and it is quite obvious from the terrible injuries which this man sustained that the damages must be substantial. According to the plaintiff he was unconscious for about a month. On waking up at Kilembe Mines Hospital on 3 July 1971 he felt great pain in both his legs. Two days later both legs were amputated above the knee. He was later transferred to Mulago Hospital. On 7 February 1972 he was provided with artificial legs by the Salvation Army Hostel. He said that he is having difficulty in using the artificial limbs. Dr. Sekabunga examined him on 3 March 1972. His report was admitted in evidence by consent, and the relevant portion reads:

> "When I saw him on 3 March 1972 he was in a wheel chair. Both legs were amputated above the knees and the stumps were well healed. He did not show me any document from Kilembe Hospital and he informed me that all the documents were taken away from him by Kilembe Hospital authorities. But from his story and my examination it appears that this man sustained severe injuries to his legs as a result of which both legs were amputed above the knees. The stumps are healed well. This is a permanent disability."

He is a young man aged 22 and had worked for the defendant for about two years as scraper operator at a salary of Shs. 350/- a month. In the normal course of events, he would probably retire at about sixty. According to his

evidence he had prospects of promotion to the post of a ganger, at a starting salary of Shs. 650/-, and two years thereafter to the post of shift-boss whose starting pay is Shs. 850/-. It is apparent that there is bound to be a significant loss of earning capacity. This however does not mean that he cannot obtain any employment whatever. He has studied up to Senior 11 and this educational standard should enable him to obtain some sort of reasonable sedentary employment. For the time being it does seem to me that he has not seriously tried to adapt himself to his changed circumstances as a result of his physical disability. According to him he was a keen sportsman and an athlete. He also mentioned his fear that he might not be able to find a girl who would marry him. I think that this is too pessimistic a view to adopt. Notwithstanding his counsel's remark that he has been thrown on the "scrap-heap" at such an early age, I believe that the loss of his legs serious and tragic as it obviously is, is not the end of the world for him.

I have to assess first of all the proper compensation for the elements which I have got to take into account, proper compensation for loss of both legs above the knee, for the loss of amenities which directly results from that, the difficulty he will face in trying to manage on the artificial legs or transporting himself in a wheel chair. I also have to give him a reasonable sum for pain and suffering. Mr. Mugabi cited the following two cases: *Kulsum Jivani v. S. Senteza*, H.C.C.S. 633/60 (Monthly Bulletin 29/61). There the plaintiff suffered a crushed leg which had to be amputated at mid thigh. The other leg had a compound comminuted fracture of the tibia and fibula. Stiffening of the knee occurred and an artificial limb was fitted. She was awarded Shs. 140,000/- by way of general damages. In *Mondo v. Jessa*, [1969] E.A. 156, the plaintiff suffered a fracture of the spine at the level of the eleventh thoracic vertebra and was completely paralysed in his legs and bladder. He was awarded Shs. 300,000/- damages. The facts in both these cases are clearly distinguishable from the instant case but they do indicate the extent of the damages which might be awarded in such cases. When considering leg injuries where amputation has been effected, it is important to bear in mind the distinction to which Sellers, L.J., referred in the following passage from *Parry v. British Transport Commission*, quoted in Kemp & Kemp, The Quantum of Damages, Personal Injury Claims, 2nd ed. 551 at p. 554:

> "It is important to make allowance for the distinction, as the cases do, and the medical evidence substantiates, between an injury which involves amputation below the knee, and one which involves amputation above the knee. As a rule the greater disability by far is that where the amputation takes place in the thigh and cases show that larger sums are awarded in those circumstances."

Doing the best I can considering the various items which enter into consideration, I think that the proper sum which I should award by way of general damages should be Shs. 225,000/-.

Judgment accordingly.

For plaintiff:
J Balikuddembe (instructed by *Mpungu & Balikuddembe*, Kampala)

For defendant:
G Tinyinondi (Senior State Attorney)

Mayers and another v Akira Ranch Ltd (No. 2)

[1972] 1 EA 347 (CAN)

Division: Court of Appeal at Nairobi

Date of judgment: 11 August 1972

Case Number:	40/1971 (123/72)
Before:	Sir William Duffus P, Spry V-P and Mustafa JA
Sourced by:	LawAfrica
Appeal from:	The High Court of Kenya – Simpson, J

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[1] Constitutional law – Relief – Limitation of – Does not derogate from unlimited jurisdiction of High Court.

*[2] Judicial Precedent – Stare decisis – Court of Appeal – Not bound by pre-*1898 *common law decisions of England – Decisions entitled to high respect.*

[3] Jurisdiction – Inherent jurisdiction – Exclusion by express provision – Cannot be used to defeat express provisions of statute.

[4] Civil Practice and Procedure – Restitution – Claim allowable only on reversal or variation of decree – Civil Procedure Act (*Cap.* 5), *s.* 91 (*K.*).

[5] Injunction – Temporary injunction wrongly granted – Summary damages limited to Shs. 2,000/ *– Civil Procedure Act* (*Cap.* 5), *s.* 64 (*K.*).

[6] Injunction – Temporary injunction wrongly granted – Damages recoverable on breach of term of Order – Civil Procedure (*Revised*) *Rules* 1948, *O.* 39, *r.* 2 (*K.*).

[7] Injunction – Temporary injunction wrongly granted – Damages – Unlimited – Only suit for abuse of civil process appropriate.

[8] Abuse of Civil Process – Temporary injunction wrongly granted – Elements to be proved.

Editor's Summary

The respondent sued the appellants for a declaration that a mortgage over certain cattle was void. When the appellants seized the cattle the respondent obtained an *ex parte* injunction preventing their sale. The respondent was not required to enter into an undertaking as to damages. On the application of the appellants the injunction was discharged, but the judge refused to order an enquiry into damages.

The appellants appealed from this refusal, and argued that the court could award compensation exceeding Shs. 2,000/- notwithstanding s. 64 of the Civil Procedure Act, on the grounds that the section either did not apply to the High Court or that it unconstitutionally attempted to derogate from the unlimited jurisdiction of the High Court, that it was to be read subject to s. 91, that the limitation only applied to applications specifically made under the section, and that the court could award unlimited damages in the exercise of its inherent jurisdiction.

For the respondent it was submitted that a suit could only be founded on an undertaking, the appellants replying that an undertaking could not confer jurisdiction.

The respondent further submitted that decisions of the English courts prior to 1898 on the interpretation of the common law were binding on the court.

Held –

(i) the limit to the summary award of compensation applies to the High Court;

(ii) the legislature can limit relief or deprive a person of relief without infringing the unlimited jurisdiction of the High Court;

(iii) restitution under s. 91 Civil Procedure Act applies only on the variation or reversal of a decree;

(iv) s. 64 Civil Procedure Act applies whether there is a specific reference to it in the application: such a reference should always be included;

(v) the inherent power cannot be invoked to defeat the express provisions of a statute;

(vi) the only suit which can be brought is a suit for abuse of civil process (*Nanjappa Chettiar v. Ganapathi Gounden* (3) followed);

(vii) damages in respect of a temporary injunction wrongly granted can be recovered only:

(*a*) on the breach of a term contained in an order made under O. 39, r. 2;

(*b*) summarily, up to a maximum of Shs. 2,000/-;

(*c*) where a decree has been varied or reversed; or

(*d*) in a suit for abuse of civil process;

(viii) pre-1898 English decisions should be treated with the highest respect, but the court is not bound by decisions thought to be wrong and which have been or might in the future be held to be wrong in England.

Appeal dismissed.

Cases referred to in judgment:

(1) *Smith v. Day* (1882), 21 Ch. D. 421.

(2) *Attorney-General v. Albany Hotel Co.*, [1896] 2 Ch. 696.

(3) *Nanjappa Chettiar v. Ganapathi Gounden* (1912), I. L.R. 35. Mad. 598.

(4) *Noormohamed Janmohamed v. Kassamali Virji Madhani* (1953), 20 E.A.C.A. 8.

Judgment

The following considered judgments were read. **Spry V-P:** A consent judgment was entered in certain proceedings in the High Court, in pursuance of which the respondent company (to which I shall refer as Akira) executed a chattels mortgage over 1,200 head of cattle in favour of the appellants. The present suit was brought by Akira and another company, the name of which has since been struck out, for a declaration that the chattels mortgage, and certain other instruments with which we are not now concerned, were void and unenforceable.

In purported exercise of the powers conferred by the chattels mortgage, the first appellant (to whom I shall refer as Mayers) seized the cattle and removed them. The two plaintiff companies then applied *ex parte* for an injunction to prevent the sale of the cattle and to order their return. An injunction was granted, as prayed, on 18 December 1969. As soon as they became aware of it, the appellants moved to have it set aside. The mandatory injunction was immediately suspended but the application for rescission was not disposed of until 1 April 1971. The judge who heard the application discharged the injunction but refused to order an enquiry into damages, an order for payment of damages so found and a stay of the proceedings until payment. It is against that refusal that the present appeal is brought.

The application for the injunction was rightly criticised as not complying with the practice as set out in *Noormohamed Janmohamed v. Kassamali Virji Madhani* (1953), 20 E.A.C.A. 8. The order granting it was criticized partly on

the ground that it should not have been made because the affidavits supporting the application did not prove the essential requirements prerequisite to the grant of an injunction and partly because the applicants were not required to enter into an undertaking as to damages. I think there is substance in both these criticisms. As regards the latter, there does not appear to be any East African authority laying down any rule of practice. In England, such undertakings are invariably required, save in certain special circumstances, such as applications on behalf of the Crown. I do not know the practice in India, but O. 39, r. 2 (2) in the First Schedule to the Civil Procedure Code, 1908, allows the court, when granting an injunction, to impose terms, and it appears from the commentaries that this power had been used to require an undertaking as to damages. When that rule was reproduced in the Kenya Civil Procedure (Revised) Rules, 1948, the words "an enquiry as to damages" were inserted, which suggests that the intention was that the English practice should be followed. Be that as it may, I am firmly of the opinion that, save in exceptional circumstances, such an undertaking should always be required when an interlocutory injunction is granted.

This brings me to a matter on which we thought it desirable to ask counsel to address us, as it touches on jurisdiction. The application for discharge of the injunction, which was headed *inter alia* with a reference to s. 97 of the Civil Procedure Act, contained a prayer for such further or other order as the justice of the case might require. At the hearing of the application, Mr. Khanna, who appeared for the appellants, specifically asked for an order for an enquiry into damages and the consequential orders. It was quite apparent from the affidavit annexed to the application that a very large sum would be claimed. We wished to be satisfied that the High Court had jurisdiction, in the circumstances, to make the order sought and that the procedure adopted was correct.

Mr. Khanna made various submissions on these matters. First, he submitted that s. 64 of the Act, to which we had referred him, could not apply to the High Court. That section allows the court, on application, summarily to award compensation not exceeding two thousand shillings to a defendant as compensation for expense or injury caused to him by a temporary injunction granted on insufficient grounds. Mr. Khanna argued that if it applied to the High Court, it would be in derogation of the unlimited jurisdiction of the court and so be unconstitutional. With respect, I see no merit in that argument. The fact that the High Court is a court of unlimited jurisdiction does not mean that the legislature cannot limit the relief to which a person is entitled or even deprive him of relief, as indeed is done by the laws relating to limitation of actions. I can see nothing in s. 64 itself to suggest that it applies only to subordinate courts and I am firmly of the opinion that it, like the section which precedes it, applies also to the High Court. I may add that it would appear from the commentaries of Mulla and Chitaley and Rao on the Indian Code that s. 95, from which the Kenya s. 64 was derived, is invoked by the High Courts in India.

Secondly, Mr. Khanna argued that s. 64 should be read subject to s. 91, which provides for restitution and imposes no limit. He conceded that s. 91 applies only when a decree is varied or reversed, and that, I think, disposes of this argument.

Thirdly, he argued that the limitation imposed in s. 64 should only apply to applications brought under that section. This brought him to his main argument, which was, that nothing in the Act affects the inherent power of the court, preserved by s. 97, and that it is the duty of the court to invoke that power when, the ends of justice so require.

Mr. Slade, for Akira, argued that the High Court has jurisdiction to award damages in respect of an injunction wrongly obtained only on one of three bases:

under s. 64, in which case it is subject to the limit of Shs. 2,000/-, under s. 91, which he submitted would apply only to perpetual injunctions; and where an undertaking has been given. S. 64 (2) provides that an order on an application under the section bars a suit for compensation and this implies that a suit may otherwise be brought. Mr. Slade submitted that such a suit could only be a suit founded on an undertaking. With respect, this cannot be so. An undertaking is given to the court, not to the other party, and a suit cannot be founded on such an undertaking. In England, the breach of such an undertaking is dealt with in the same way as the breach of an injunction (see the Supreme Court Practice, 1967, notes under O. 29, r. 1 and O. 45, r. 5), by proceedings for committal. In Kenya, the procedure is by attachment or committal, under O. 39, r. 2 (3).

Mr. Slade sought to support his argument by reference to various English cases and he drew our attention to the use by Cotton, L.J., in *Smith v. Day* (1882), 21 Ch. D. 421 at p. 430, of the expression "jurisdiction founded on the undertaking". Mr. Khanna, in reply, submitted that jurisdiction could not be based on the undertaking, as consent of parties can never confer jurisdiction. This argument again is based, I think, on a misconception. The matter is not one of consent. The court has power to enforce undertakings given to it and to punish the breach of such undertakings: the power comes into being when the undertaking is given, and it is only in this sense that the word jurisdiction should be read. In this connection, in arguing that the reason for an under-taking is not to confer jurisdiction, Mr. Khanna submitted that the reason for it is to avoid the necessity for a fresh action, a submission which seems to me inconsistent with his main argument.

In my opinion, the reference to suits in s. 64 (2) can only be to suits in tort for abuse of civil process. I cannot think of any other cause of action that could be invoked. I am reinforced in that opinion by an examination of the judgment in *Nanjappa Chettiar v. Ganapathi Gounden* (1912), I.L.R. 35 Mad. 598 and the commentaries of Mulla and Chitaley and Rao, which show that s. 95 of the Indian Code is so interpreted. I do not think this is necessarily inconsistent with a remark of North, J., in *Attorney-General v. Albany Hotel Co.*, [1896] 2 Ch. 696 to which Mr. Slade referred us. Speaking of undertakings in damages, the judge said "it is difficult to see how in the absence of such an undertaking, the defendant could recover from the plaintiff the damages which were really sustained by him by reason of the improper order of the Court". The action for abuse of civil process is only available where both absence of reasonable and probable cause and malice can be proved and this will obviously only be in the exceptional case.

The position in Kenya would seem to be that a defendant can recover damages from the plaintiff in respect of a temporary injunction wrongly granted–

(*a*) on a breach of any term contained in an order made under O. 39, r. 2 (2), and enforceable under r. 2 (3);

(*b*) summarily, up to a maximum of Shs. 2,000/- under s. 64;

(*c*) under s. 91, where a decree has issued and has been subsequently varied or reversed; or

(*d*) in a suit brought for abuse of civil process.

The question is, whether the High Court may, and should, invoke its inherent power so as to award damages which could not be awarded in any of those ways. In my view, it cannot. The inherent power could only be invoked in the proceedings in which the injunction was discharged, but that is precisely the situation for which s. 64 provides. In providing that the court may award compensation not exceeding Shs. 2,000/-, the statute is, in effect, saying that the court shall not in such proceedings award more than Shs. 2,000/-. The inherent power cannot be invoked so as to defeat the express provisions of a statute.

Mr. Khanna, in the course of his argument suggested that s. 64 only applied to an application expressly brought under that section and could not limit the power of the court to grant an application invoking the inherent power of the court. With respect, I cannot accept that proposition. I think s. 64 governs all interlocutory applications made to the court for damages for injury suffered through the improper grant of a temporary injunction. An application should properly be headed with a reference to the section, but it applies whether or not it is so cited.

It follows that in my opinion the application for an order for an enquiry into damages in the form in which it was presented could not properly have been granted and therefore that this appeal must fail.

The judge gave three reasons for refusing to order an enquiry. First, he said that Mayers had "brought these costs upon himself by removing the cattle as he did and could at any time have avoided further costs by returning the cattle to Akira Ranch". With respect, I think the first part of this proposition would have justified standing the application over until the hearing of the suit rather than dismissing it, because it seems to go to the merits of the suit. As regards the second part, Mr. Khanna complained that the cattle could not lawfully have been returned, owing to foot-and-mouth regulations and in any case, considerable cost would have been involved.

Secondly, the judge said that there had been inordinate delay in prosecuting the application. Here, Mr. Khanna complained that the delay had not been the fault of the appellants. He alleged that it had been partly the inevitable consequence of the agreement of the parties to give priority to an application for the striking out of the other plaintiff company and partly to delays in the court itself. I must say that I find the delay disgraceful and inexplicable. This was a simple little matter of great urgency, yet it took over fifteen months before it was decided. I can see no reason why it needed to await the outcome to the other application nor do I see why it need necessarily have been taken by the same judge. There is, however, in my opinion, not sufficient material before us to enable us to apportion the blame and certainly not enough to justify our saying that the judge was wrong, when he knows, as we do not, the causes of delay in the High Court.

Thirdly, the judge gave as a reason for dismissing the application that it had not formally been contained in the notice of motion. On this, I am inclined to agree with Mr. Khanna that it was not a good reason. Mr. Slade argued that had it been included in the formal application, Akira would have been prepared for it and could have produced evidence as to the damages. The time for such evidence, however, was after an inquiry had been ordered and, in any case, an adjournment could, if necessary, have been granted on terms.

There is one other matter that I would mention. Mr. Slade, in the course of his argument, submitted that decisions of the English courts given prior to 1898 on the interpretation of the common law are binding on this Court and not merely persuasive. With respect, I cannot agree. There have been cases where the English courts after that date have held that earlier decisions were wrong. I think it would be quite absurd if we were to be bound by decisions of English courts which we think wrong and which have, in England, been held wrong, or which may in the future be held wrong there. In my opinion, we should treat the pre-1898 English decisions on the common law with the highest respect, but I think we have the power to depart from any such decision if we are convinced that it was wrong and that there is no reason of judicial policy for continuing to follow it.

I have referred briefly to these matters, but I would base my decision on my belief that the enquiry, as sought by the appellants, could not properly have been granted.

I would dismiss the appeal with costs and a certificate for two advocates.

Mustafa JA: I have had the advantage of reading the judgment prepared by Spry, V.-P. I am in complete agreement with his reasoning and conclusion and concur in the order proposed by him.

Sir William Duffus P: I have read and entirely agree with the judgment of the Vice-President and as Mustafa, J.A. also agrees, the appeal is dismissed with costs and with a certificate for two advocates.

Appeal dismissed.

For the appellants:
DN Khanna and *M da Gama Rose* (instructed by *Shapley Barret Ennion & Marsh*, Nairobi)

For the respondent:
H Slade and *JN Desai* (instructed by *Hamilton Harrison & Mathews*, Nairobi)

Mbowa v East Mengo Administration
[1972] 1 EA 352 (CAK)

Division:	Court of Appeal at Kampala
Date of judgment:	26 July 1972
Case Number:	6/1972 (124/72)
Before:	Sir William Duffus P, Lutta and Mustafa JJA
Sourced by:	LawAfrica
Appeal from:	The High Court of Uganda – Musoke, J

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[1] Limitation of Actions – Malicious prosecution – Cause of action – Arises on dismissal of prosecution.

Editor's Summary

The respondent sued the appellant for damages for malicious prosecution. The prosecution was begun in June 1969 and the respondent's conviction was quashed in January 1970. Action was filed in September 1970.

The appellant contended that the suit was barred as it had not been brought within one year after the cause of action had risen, arguing that the cause of action arose when the prosecution was begun.

The judge ruled that the cause of action arose on the dismissal of the prosecution.

On appeal:

Held –

(i) cause of action means all facts which the plaintiff would have to prove to succeed (*Cook v. Gill*

(3) followed);

(ii) a cause of action does not arise until the termination of the prosecution in favour of the plaintiff (dictum of Diplock, J. in *O'Connor v. Isaacs* (8) disapproved).

Appeal dismissed.

Cases referred to in judgment:

(1) *Savile v. Roberts*, 91 E.R. 14.

(2) *Gilding v. Eyre* (1861), 142 E.R. 14.

(3) *Cook v. Gill* (1873), L.R. 8 C.P 107.

(4) *Read v. Brown* (1889), 22 Q.B.D. 128.

(5) *Thorpe v. Priestnall*, [1897] 1 Q.B. 159.

(6) *Mohamed Amin v. Jogendra Kumar Bannerjee*, [1947] A.C. 322.

(7) *Pike v. Waldrum*, [1952] 1 Lloyd's L. Rep. 431.

(8) *O'Connor v. Isaacs*, [1956] 2 Q.B. 288.

Judgment

The following considered judgments were read. **Lutta JA:** This is an appeal by the original defendant from a ruling on a preliminary objection raised at the hearing of the suit on 14 December 1971. The preliminary objection was that the suit against the defendants for malicious prosecution was time-barred by reason of s. 2 of the Civil Procedure and Limitation (Miscellaneous Provisions) Act, 1969, to which I shall hereinafter refer as "the Act". It was argued for the defendants that the cause of action arose on 18 July 1969; that the suit was filed on 28 September 1970; that the first defendant (who is the appellant) was a local Administration by virtue of s. 1 of the Local Administration Act, 1967; that under s. 2 of the Act the suit should have been brought within 12 months after the cause of action arose and that the suit was actually instituted after the expiration of 12 months from the date the cause of action arose. For the plaintiff it was contended that the cause of action arose on 7 January 1970 when the criminal proceedings against him were terminated and therefore the suit was in time.

The judge ruled that the cause of action arose on 7 January 1970 when the criminal proceedings were terminated in the plaintiff's favour and that the suit against the first defendant was not time-barred. He ruled also that under s. 3 of the Act the suit against the other defendant was time-barred. The defendant now appeals against that ruling on two grounds, namely, that the judge erred in law in holding that the plaintiff's claim for malicious prosecution was not time-barred under the provisions of the Act on the ground that the cause of action arose on 7 January 1970 and not on 18 July 1969 and that he should have held that the plaintiff's cause of action arose on 18 July 1969 and therefore was time-barred.

Before us, Mr. Tinyinondi, for the appellant argued that in the case of malicious prosecution damage occurs when information is laid before a court but before the latter determines the matter either way; he submitted that it is at that time, that is, before determination, when the cause of action accrues. He relied on the cases of *Mohamed Amin v. Jogendra Kumar Bannerjee*, [1947] A.C. 322; *O'Connor v. Isaacs*, [1956] 2 Q.B. 288 and *Thorpe v. Priestnall*, [1897] 1 Q.B. 159. Mr. Gaffa, for the respondent, argued that in an action of malicious prosecution the plaintiff must show that the proceedings were brought to a legal end. He submitted that the cause of action accrues when the proceedings are finally determined. He relied on the case of *Gilding v. Eyre* (1861), 142 E.R. 14.

In the plaint it was alleged that on 4 June 1969 one Akaya Katende (the second defendant) accompanied by a local askari at Bowa Ssaza Headquarters and another person a Mutongole Chief of the area, acting in the normal course of his employment as a servant or agent of the first defendant (to whom I shall, for convenience, hereinafter refer as "the defendant") collected from the plaintiff Shs. 130/- as part-payment of the Graduated Tax payable by the plaintiff for the year 1969. On 25 June 1969 the plaintiff paid Shs. 30/- to Akaya Katende being the balance of the tax. The plaintiff was not issued with a receipt in respect of the two payments. The following paragraphs in the plaint are relevant:

> "6. On or about 18 July 1969 the second Defendant maliciously and without reasonable or probable cause instituted criminal proceedings against the plaintiff for allegedly failing to pay Graduated Tax for 1969 before the

expiration of the prescribed period of six months, contrary to s. 69 (3) of the Local Administration Act 1967. The plaintiff was arrested under a warrant of arrest issued by the Magistrate Grade II, Katikamu, at the active instance and instigation of the second Defendant and remanded in prison as from 18th July, 1969 until 8th August, 1969 when the plaintiff was released on bail bond of Shs. 200/-.

7. On or about 13 October 1969, the plaintiff was then prosecuted for and convicted by the Grade II Magistrate Katikamu in Criminal Case No. 216 of 1969 for failure to pay Graduated Tax, contrary to section 69 (3) of the Local Administration Act, 1967, and was sentenced to a fine of Shs. 100/- or one month's imprisonment in lieu thereof. The plaintiff paid the fine and lodged an appeal to the Chief Magistrate's Court, Mengo who in Criminal Appeal No. 72 of 1969 on 7 January 1970 quashed the conviction and set aside the sentence and prosecution then wholly terminated in the plaintiff's favour."

The defendant admitted paragraph 7 but denied paragraph 6 of the plaint.

The action for damages for malicious prosecution is part of the common law of England which is administered by the High Court of Uganda by virtue of s. 15 of the Uganda Order in council 1902, s. 4 of the Uganda (Independence) Order in Council 1962 and s. 39 of the Constitution of Uganda (First Amendment) Act 1963. The tort of malicious prosecution is committed where there is no legal reason for instituting criminal proceedings. The purpose for the prosecution should be personal and spiteful rather than for the public benefit. It originated in the medieval writ of conspiracy which was aimed against combinations to abuse legal procedure, that is, it was aimed at the prevention or restraint of improper legal proceedings – see Winfield on Tort (7th ed.), p. 704. It occurs as a result of the abuse of the minds of judicial authorities whose responsibility it is to administer criminal justice. It suggests the existence of malice and the distortion of the truth. Its essential ingredients are:

1. The criminal proceedings must have been instituted by the defendant, that is, he was instrumental in setting the law in motion against the plaintiff. It suffices if he lays an information before a judicial authority who then issues a warrant for the arrest of the plaintiff or a person arrests the plaintiff and takes him before a judicial authority.
2. The defendant must have acted without reasonable or probable cause. Thus there must exist facts, which on reasonable grounds, the defendant genuinely believes that the criminal proceedings are justified.
3. The defendant must have acted maliciously. In other words the defendant must have acted, in instituting criminal proceedings, with an improper and wrongful motive, that is, he must have had "an intent to use the legal process in question for some other than its legally appointed and appropriate purpose" *Pike v. Waldrum*, [1952] 1 Lloyd's Rep. 431 at p. 452.
4. The criminal proceedings must have been terminated in the plaintiff's favour, that is, the plaintiff must show that the proceedings were brought to a legal end and that he has been acquitted of the charge.

The issue in this appeal is: at what stage, in the course of the criminal proceedings against the plaintiff, is there laid the foundation for an action for damages for malicious prosecution? In other words, when did the cause of action accrue, in the course of the criminal proceedings against the plaintiff, to entitle him to claim damages for malicious prosecution? The "cause of action" has been held to mean "every fact which is material to be proved to entitle the plaintiff to succeed, every fact which the defendant would have a right to traverse". Brett, J. in the case of *Cook v. Gill* (1873), L.R. 8 C.P. 107 at p. 114. This

definition was adopted in the case of *Read v. Brown* (1889), 22 Q.B.D. 128 in which, referring to the meaning of the cause of action, Lord Esher, M.R. said, at p. 131:

> "every fact which it would be necessary for the plaintiff to prove, if traversed, in order to support his right to the judgment of the Court. It does not comprise every piece of evidence which is necessary to prove each fact, but every fact which is necessary to be proved."

It seems to me that the plaintiff, in order to succeed, has to prove that the four essentials or requirements of malicious prosecution, as set out above, have been fulfilled and that he has suffered damage. In other words, the four requirements must "unite" in order to create or establish a cause of action. If the plaintiff does not prove them he would fail in his action. The damage that is claimed is in respect of reputation but other damages might be claimed, for example, damage to the person and damage to property – see *Savile v. Roberts*, 91 E.R. 14. The question is: at what stage does damage to the plaintiff result? In my opinion it must be at a stage in the criminal proceedings when the plaintiff is acquitted or, if there is an appeal, when his conviction is quashed or set aside. In other words, the damage results at a stage when the criminal proceedings come to a legal end in his favour, whether finally or not. It seems to me clear that the plaintiff could not possibly succeed without proving that the criminal proceedings terminated in his favour, for proving any or all of the first three essentials of malicious prosecution without the fourth which forms part of the cause of action, would not take him very far. He must prove that the court has found him not guilty of the offence charged. In the instant case criminal proceedings were instituted against the respondent on 18 July 1969. He was convicted on 13 October 1969 and appealed to the Chief Magistrate. His conviction was quashed and sentence set aside on 7 January 1970. Proceedings terminated in his favour on 7 January 1970. The respondent could not, in my opinion, bring this action unless his conviction was quashed; it was at the stage when the conviction was quashed that damage resulted and the cause of action accrued. In my view, time did not, in terms of the Act, start to run against him until 7 January 1970. In my opinion this action was not time-barred by reason of s. 2 of the Act.

For these reasons I would dismiss the appeal with costs.

Sir William Duffus P: I have read the draft judgment of Lutta, J.A. and Mustafa, J.A. and I agree that this appeal must be dismissed.

The law in an action for malicious prosecution has been clearly defined and in so far as the ordinary criminal prosecution is concerned the action does not lie until the plaintiff has been acquitted of the charge. In this case the prosecution was a criminal prosecution for failure to pay graduated tax. This is a criminal offence in Uganda and the ordinary rule as to criminal prosecutions apply. The respondent could not have brought his action for malicious prosecution until the prosecution ended in his favour. He could not have maintained his action whilst the prosecution was pending nor could he have maintained an action after he had been convicted. His right to bring the action only accrued when he secured his acquittal of the charge on appeal, and he then had the right to bring this action for damages.

Mr. Tinyinondi for the appellant relied *inter alia* on the obiter dictum of Diplock, J. in the English case of *O'Connor v. Isaacs*, [1956] 2 Q.B.D. 288 to the effect that time would begin to run in action for malicious prosecution as from the date that damages resulted. With respect this cannot be right. Time must begin to run as from the date when the plaintiff could first successfully

maintain an action. The cause of action is not complete until such time, and in this particular case this was only when he was acquitted on appeal.

I agree therefore that this appeal must be dismissed with costs and it is so ordered.

Mustafa JA: The sole question for decision in this appeal is when does time begin to run, or in other words, when does a cause of action accrue, in an action for malicious prosecution. The appellant's advocate submitted that the cause of action arises when a person is arraigned before a court and a court has taken cognisance of the matter, that is to say, before determination by the court of the criminal proceedings. The advocate for the respondent submitted that a plaintiff to succeed in an action for malicious prosecution must establish that the action had come to a legal end in his favour.

I am satisfied, for the reasons as stated by him, that the learned trial judge was correct in his finding that no cause of action for malicious prosecution can arise until the determination of the criminal proceedings complained of in favour of the plaintiff.

In the circumstances the cause of action in the matter under appeal arose on 7 January 1970 when the proceedings were terminated in the respondent's favour and not on 18 July 1969 when the appellant instituted criminal proceedings. The action was not time-barred.

I agree that the appeal be dismissed and I concur in the order proposed by Lutta, J.A.

Appeal dismissed.

For the appellant:
GM Tinyinondi (State Attorney)

For the respondent:
FR Gaffa (instructed by *Kirenga & Gaffa*, Kampala)

Attorney-General v Sengendo
[1972] 1 EA 356 (CAK)

Division:	Court of Appeal at Kampala
Date of judgment:	3 August 1972
Case Number:	14/1972 (125/72)
Before:	Sir William Duffus P, Lutta and Mustafa JJA
Sourced by:	LawAfrica
Appeal from:	The High Court of Uganda – Phadke, J

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[1] Civil Practice and Procedure – Pleading – Defence – Failure to file – Discretion to permit defendant to take part in proceedings – Principles of exercise.

[2] Civil Practice and Procedure – Claim against Government – Judgment in default not allowed: judgment after hearing permitted – Civil Procedure (*Government Proceedings*) *Rules, r.* 6 (*U.*).

[3] Damages – Aggravated – Vicarious liability – Aggravated damages may be awarded where liability vicarious.

Editor's Summary

The respondent sued in the High Court for damages for injuries caused him by soldiers. No defence was filed for the appellant and counsel for him did not take advantage of an offer to consider an application to file a defence out of time.

The judge ruled that he had thereafter no discretion to allow the appellant to take part in the proceedings, and, after finding for the respondent, awarded him aggravated damages of £10,000.

On appeal:

Held –

(i) judgment in default of pleading by the government is prohibited but not judgment after hearing;

(ii) the court has a discretion whether to allow a defendant who has filed no defence to be heard, but in the circumstances the discretion would not have been exercised in favour of the appellant;

(iii) aggravated damages may be awarded when the liability to pay is vicarious.

Appeal dismissed.

Case referred to in judgment:

(1) *Kanji Devji v. Damodar Jinabhai & Co.* (1934), 1 E.A.C.A. 87.

Judgment of the High Court sub nom. *Sengendo v. Attorney-General*, [1972] E.A. 140 upheld.

Judgment

The following considered judgments were read. **Mustafa JA:** The respondent was an assessor employed by the Income Tax Department, Kampala, and had filed a suit claiming general and special damages from the appellant as the representative of the Government of Uganda. The respondent had alleged that on 19 December 1970 at about midnight while he was lawfully driving his car along a road in Kampala, members of the Uganda armed forces had shot at him causing him serious injuries.

Upon service of the summons, the appellant entered an appearance but did not file a written statement of defence.

On the day set down for the hearing of the case Mr. Matovu appeared for the appellant and indicated that he wanted to cross-examine the respondent and his witnesses. The trial judge referred Mr. Matovu to the case of *Kanji Devji v. Damodar Jinabhai & Co.* (1934), 1 E.A.C.A. 87 and suggested that Mr. Matovu should apply for an extension of time to file a statement of defence which would be dealt with on its merits. Mr. Matovu declined to do so and the trial judge held that as he was bound by the *Kanji* case he had no discretion in the matter and refused Mr. Matovu permission to take part in the proceedings. Mr. Matovu then drew the trial judge's attention to r. 6 of the Civil Procedure (Government Proceedings) Rules but the trial judge held that r. 6 had no application as the respondent was not applying for judgment in default.

The respondent and his witnesses then gave evidence, at the end of which the trial judge awarded him general and special damages totalling Shs. 201,265/-. The appellant appeals.

The grounds of appeal briefly are as follows:

(i) That the judge erred in holding that he had no discretion to allow the appellant to take part in the hearing in the circumstances of the case;

(ii) that the judge erred in his ruling as regards the effect of r. 6 of the Civil Procedure (Government Proceedings) Rules;

(iii) that the damages awarded were excessive.

The judge held that the *Kanji* case decided "that a defendant who fails to file a defence puts himself out of Court and no longer has any locus standi and cannot be heard". He held that he had no discretion therefore to allow Mr. Matovu to take part in the hearing as he was bound by the decision in the *Kanji* case, a Court of Appeal decision. With respect I think the judge was in error here. As I understand it, the *Kanji* case only decided this. The defendant there

had failed to file a statement of defence within the time allowed and when the case came on for hearing, his advocate applied for extension of time to file a defence. The judge in exercising his discretion refused the application and proceeded with the hearing. His advocate then sought permission to cross-examine the witnesses and the judge refused permission. Sir Joseph Sheridan, C.J. in the *Kanji* case said:

> "After the proper exercise of his discretion to have allowed the defaulting defendant to take any part in the proceedings would have amounted to a stultification of his decision refusing the application for extension of time."

Similarly Wilson, Ag. J. said:

> ". . . and it is difficult to see, once he had exercised his discretion as above, what other course he could have taken without stultifying himself. . . ."

In that case the judge had exercised his discretion in refusing extension of time to file a defence and naturally he could not, in the circumstances, allow the defendant's advocate to cross-examine the witnesses. There was no question of the judge not having any discretion. In the present case the trial judge had indicated to Mr. Matovu that he was prepared to entertain an application for extension of time to file a statement of defence. Mr. Matovu did not take up the suggestion. In these circumstances to have allowed Mr. Matovu to cross-examine the respondent and his witnesses would have been, to quote the words of Wilson, Ag. J. in the *Kanji* case:

> "not only to put the plaintiff into the very disadvantageous position of making his case without knowing what case was to be put up in rebuttal, but also to give a definite and gratuitous advantage to the defendant, the guilty party."

I have not the slightest doubt that the trial judge would not have exercised his discretion in allowing Mr. Matovu to cross-examine the respondent once Mr. Matovu had refused to apply for extension of time to-file a statement of defence. Although the trial judge was wrong in holding that he had no discretion in the matter, the error had not made any difference to the final outcome, as in the circumstances, he would not have granted permission to Mr. Matovu to take part in the proceedings in any event.

R. 6 of the Civil Procedure (Government Proceedings) Rules reads:

> "Judgment shall not be entered, and no order shall be made, against the Government in default of appearance or pleading under any provision of the principal Rules without the leave of the Court, and any application for such leave shall be made by summons served not less than seven days before the return day."

The trial judge held that r. 6 only applied if the respondent was asking for judgment in default. In the instant case the respondent wanted his suit heard and it was in fact set down for hearing. In my view the trial judge was right in his conclusion that r. 6 was inapplicable.

I will now deal with the issue of damages. The respondent was stopped by armed soldiers, pulled out of his car, and assaulted. He then managed to drive on and then his car was shot at by soldiers and other armed members of the forces. He was hit and on opening the door of the car fell on the road. While he was lying on the road, the soldiers fired shots at and hit him several times. His car was also riddled with bullets. Eventually some policemen came and took him to hospital where he was treated.

There are still two bullets embedded in his body. He still suffers from pain which is expected to increase with time. He cannot bend to his left nor sleep

on his left. He can no longer take part in sports. His sexual life has been affected by his injuries, and he cannot now have normal sexual intercourse. He reckons he has lost chances of promotion due to his absence from work, and some of his colleagues have been promoted but he has not been, due to his irregular attendance as a result of his injuries. He is unable to sit down for periods of more than an hour, due to his muscles becoming rigid. He still requires periodic treatment.

Medical evidence adduced amply supported the respondent's account of his injuries. A bullet is embedded in the nervous system, but there is no pressure on the nerves, and he has suffered spinal injury.

The trial judge rightly found that the act of the soldiers "was clearly a wanton, unlawful and unjustified one". He considered assessment of damages under two heads, (1) pecuniary loss, such as loss of prospective earnings, handicap in the labour market and other material loss, and (2) personal loss, such as pain and suffering, inconvenience and discomfort, loss of amenities and loss of expectation of life.

The trial judge dealt with the two heads of damages and stated that "to assess the general damages with regard to all the circumstances outlined above is a difficult task". Mr. Wilkinson for the respondent had suggested an award of Shs. 200,000/-, and said that it was a case for aggravated damages. The trial judge stated:

> "I confess that much to my relief this submission has made my task easy because I agree with Mr. Wilkinson's submission without the slightest hesitation."

He therefore awarded the respondent Shs. 200,000/- as general damages.

Mr. Binaisa submitted that although the trial judge mentioned two heads of damages and considered evidence in relation thereto, he made no attempt to' apportion the sums, but awarded one composite sum. In my view the trial judge was right in awarding only one sum. He also submitted that the trial judge appeared to have accepted Mr. Wilkinson's assessment and did not independently make his own assessment. However I think the trial judge probably had a higher figure in mind, and was happy to accept a figure proposed by the respondent's advocate as he said "without the slightest hesitation". Mr. Binaisa submitted that the trial judge had failed to compute the respondent's alleged loss of prospective earnings, and that such an omission was fatal, as he had chosen to consider damages under two heads, one of which referred to loss of prospective earnings. The trial judge could have dealt with this matter more clearly but I am not persuaded that his failure in this regard could be fatal. Mr. Binaisa also referred to the uncertain nature of the evidence as regards the respondent's allegation that he has lost chances of promotion and suffered loss of sexual activity. I think the trial judge was entitled to believe the respondent on these matters on the evidence adduced.

Mr. Binaisa also submitted that the sum awarded must have included a punitive element, although Mr. Wilkinson only mentioned aggravated damages. He said that no punitive element should have been included in this case as the wanton shooting by the soldiers was against the Government's orders, and as this was a case of vicarious liability, the Government should not be so severely punished for acts which it never authorised. In the first place I doubt if punitive damages were in fact awarded, although in my view it would be a fit case for such award. I see no reason why in a case of vicarious liability, different principles of assessment of damages should apply.

The respondent had suffered very severely as a result of a brutal and wanton attack and substantial damages are appropriate here. I see no reason to interfere with the sum of general damages awarded, and it certainly is not so excessive as to amount to an error in principle. There is no reason to remit the matter to the High Court for assessment of damages as prayed for by the appellant.

I would dismiss the appeal with costs.

Sir William Duffus P: I have had the advantage of reading the judgment of Mustafa, J.A.

The summons in this case was issued under the provisions of O. 5, r. 1 (*a*) of the Civil Procedure Code.

An appearance was duly entered as provided by O. 7, r. 1, and in accordance with this rule and also r. 11 of the Civil Procedure (Government Proceedings) Rules the statement of defence should have been filed within 30 days thereafter. In this case the Attorney-General – the appellant – failed to file his defence and the next step was the setting down of the matter for trial under O. 9, r. 10, which reads:

> "Where a defendant has entered an appearance under rule 1 of this Order, the plaintiff may set down the suit for hearing in court, with notice to the opposite party, after the expiration of the time allowed to a defendant for filing a defence, or the last of the defences."

On the matter coming for hearing the trial judge refused to allow the advocate appearing for the Attorney-General to cross-examine the witness or take part in the trial. He relied on the judgment of this Court in *Kanji Devji v. Jinabhai* (1934), 1 E.A.C.A. 87.

O. 9, r. 10, is silent on the procedure to be followed when the appellant fails to file a defence. The procedure is different when a defendant has failed to enter an appearance, in that case the action is set down for hearing *ex parte*, no notice is served on the defendant but provision is made by r. 18 of that Order that if a defendant does appear and desires to take part in proceedings then the court is given a wide discretion and has power to allow the defendant to take part in the proceedings even though this would no doubt be on terms to see that the appellant does not suffer through the defendant's default. The court must clearly have a discretion to act under r. 10. The whole basis of our civil procedure laws is to see that justice is done between the parties, and the courts will be slow to prevent a defendant from making his defence even though he is in default, if the plaintiff can be reasonably compensated for any loss he suffers in costs. I agree with Mustafa, J.A. that the judge has a discretion, when the suit is set down for hearing under r. 10 to allow a defendant to apply to make good his default and might even, in his discretion, have allowed the defendant to cross-examine the witnesses if in fact he was only cross-examining on the question of damages. However, it does not appear from the record in this case that the defendant ever admitted liability for the injuries received: he first appears to do so in his memorandum of appeal to this Court. I do not think that the *Devji* case takes away the discretion of a trial judge to allow the defendants to be heard under r. 10. The relevant passage appears in the judgment of Lucie-Smith, Ag. C.J. when he states at p. 92:

> "The learned Chief Justice ruled that he would not and it is difficult to see, once he has exercised his discretion as above, what other course he could have taken without stultifying himself, and unduly prejudicing the plaintiff, the innocent party. In effect the learned Chief Justice decided that the defendant having failed to file a defence as ordered had put himself out of court and no longer had any locus standi and could not be heard.

> To have allowed him to be heard would have been not only to put the plaintiff into the very disadvantageous position of making his case without knowing what case was to be put up in rebuttal, but also to give a definite and gratuitous advantage to the defendant, the guilty party. Such a decision would have been contrary to the elementary principles that a defendant must, if ordered, disclose his defence before the trial (O. VIII, r. 1) and be bound by his pleadings (O. VI, r. 5)."

The Chief Justice there very clearly sets out the correct principles to guide a trial judge, but I do not think that he intended to lay down a definite ruling that the judge had no discretion to allow the defendant to further take part in the trial. In that case the judge had further refused an application to enlarge the time to file the defence and of course if he then granted the defendant permission to take part in the trial he would have stultified his first order. In the present case the trial judge did, in fact, appear to use his discretion as he was willing to hear an application for an extension of time to file the defence but no such application was made. I agree with Mustafa, J.A. that whilst the trial judge did, in fact, have the discretion that he would in any event, in the circumstances of this case, have refused the appellant permission to appear and take part in the proceedings. The appellant had not complied with the rules and he could not appear as of right.

I agree with Mustafa, J.A. that the provisions of r. 6 of the Civil Procedure (Government Proceedings) Rules do not apply to this case.

The judge awarded £10,000 general damages and in doing so he accepted the respondent's advocate's submission that the damages were aggravated. By "aggravated" here he must have referred to the callous and cruel manner in which the respondent was assaulted and shot at some six or seven times by the soldiers without any possible justification or reason. He did not class these damages as being awarded by way of exemplary or punitive damages but in any event it appears to me that the grievous injuries received by the respondent would, of themselves, have justified the amount awarded.

I agree with Mustafa, J.A. that this appeal be dismissed with costs and as Lutta, J.A. also agrees it is so ordered.

Lutta JA: I have had the advantage of reading in draft the judgments prepared by Mustafa, J.A. and the President. I entirely agree with them and have nothing useful to add.

Appeal dismissed.

For the appellant:
GL Binaisa QC (instructed by *Binaisa & Co*, Kampala)

For the respondent:
ES Kirenga (instructed by *Kirenga & Gaffa*, Kampala)

Securicor (U) Ltd v Mugenyi
[1972] 1 EA 362 (CAK)

Division:	Court of Appeal at Kampala
Date of judgment:	26 July 1972
Case Number:	24/1972 (126/72)
Before:	Sir William Duffus P, Lutta and Mustafa JJA
Sourced by:	LawAfrica

Appeal from: The High Court of Uganda – Mead, J

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[1] Animal – Dog – Liability for – Trained to attack humans – Absolute liability of owner.

Editor's Summary

The respondent was attacked and bitten by a guard dog which was loose on bank premises to which the public had access. The dog had been trained to attack people on the order of its handler.

The respondent was awarded damages on the grounds that the dog was doing what it had been trained to do and the fact that it had acted without orders was irrelevant.

On appeal the appellant contended that liability should not have been found in the absence of knowledge that the dog would attack.

Held –

(i) the owner is liable for the act of any particular animal which he knows the animal is likely to commit;

(ii) the owner knew that the dog was fierce by reason of training, and he was therefore liable.

Appeal dismissed.

Cases referred to in judgment:

(1) *Worth v. Gilling* (1866), L.R. 2 C.P. 1.

(2) *Filburn v. People's Palace Co.* (1890), 25 Q.B.D. 258.

(3) *Manton v. Brocklebank*, [1923] 2 K.B. 212, [1923] All E.R. Rep. 416.

(4) *Buckle v. Holmes*, [1926] 2 K.B. 125, [1926] All E.R. Rep. 90.

(5) *Sycamore v. Ley* (1932), 147 L.T. 342, [1932] All E.R. Rep. 97.

(6) *McQuaker v. Goddard*, [1940] 1 K.B. 687.

(7) *Gromberg v. Smith*, [1962] 1 All E.R. 725.

(8) *Fitzgerald v. Cooke Bourne* (*Farms*) *Ltd.*, [1963] 3 All E.R. 36.

Judgment of the High Court sub. nom. *Mugenyi v. Securicor* (*U.*) *Ltd*., [1972] E.A. 237 upheld.

Judgment

The following considered judgments were read. **Lutta JA:** This appeal arises out of a claim for damages for personal injuries received by the respondent (to whom I shall refer as "the plaintiff") in consequence of his being attacked and bitten by the appellant's dog upon the premises of the Grindlays Bank (U.) Ltd. in Kampala on 27 March 1971. For convenience, I shall refer to the appellant as "the defendant". Briefly the facts were that after about 12.15 p.m. on 27 March 1971 the plaintiff, who had been on the premises of the bank, returned thereto to enquire about his car keys. As he walked towards the inquiry box in the bank the defendant's dog rushed

towards him and bit him on the left elbow and finger and scratched him on his thighs and left leg, tearing his shirt and trousers. He brought this action against the defendant claiming damages for negligence. He alleged in the plaint that the defendant's servant or agent was negligent in that he (the defendant's servant) failed to keep the dog on the lead in public, let the dog lie alone away from him, did not handle the dog in such a way so as to stop the same from attacking and biting the plaintiff, failed to stop or hold the dog so that it could not reach the plaintiff and that he was indolent in that he failed to take steps to see that the dog could not bite members of the public in the place where it was brought to stay. It was contended for the defendant that the latter can only be liable if scienter can be shown, that the dog was dangerous and this was known to the defendant and that in any case, the dog was entitled to a first bite, the benefit to which the defendant is entitled. The judge found that the dog had been deliberately trained by the defendant to attack human beings when ordered so to do by its handler, that the dog was a fierce animal, that the dog was loose and that its handler was some distance away from it and the plaintiff. He also found that the dog had no previous record of attacking or biting human beings. However, he held that the dog, in attacking the plaintiff, was not indulging in a natural propensity; it was doing what it had been trained to do; that the defendant having so trained the dog that it has a vicious propensity to attack human beings, and having failed to keep the dog under proper restraint, is liable to the plaintiff, and awarded damages in the sum of Shs. 2,206/-. The defendant has appealed against that decision on the grounds, *inter alia*, that the judge erred in holding that the defendant was strictly liable for its trained dog even if it was not instructed to attack human beings and that the judge's finding that in attacking the plaintiff the dog was not indulging in its natural propensity was not supported by evidence. Mr. Kateera, for the defendant, argued before us that there was no evidence of scienter and the judge should not have held the defendant liable in damages. He submitted that the action was one on negligence rather than on scienter and that in order for the dog owner to be liable in damages there must be evidence that he had prior knowledge or could foresee that the dog was dangerous and therefore likely to do harm. He also submitted that a dog is an animal which is not dangerous and not likely to do mischief like the one in question and therefore a person can safely keep it unless he knows that the particular dog has a propensity to do mischief. He relied, for these propositions, on the cases of *Manton v. Brocklebank*, [1923] All E.R. Rep. 416, *Sycamore v. Ley* (1932), 147 L.T. 342 and *Buckle v. Holmes*, [1926] All E.R. Rep. 90. Mr. Kateera contended that the judge's finding that the dog had no previous record of attacking or biting human beings excluded any evidence of scienter and that the dog should, therefore have been judged by the behaviour of its species rather than the behaviour of trained dogs. He further contended that as this action was framed in negligence it should have been decided on findings of fact as to the defendant's negligence rather than on the basis of scienter.

Mr. Sendege, for the plaintiff, argued that a dog need not have bitten for an action of this nature to succeed. It is enough, he submitted, if the defendant knew that the particular dog might bite or that it had a fierce nature. He cited the case of *Worth v. Gilling* (1866), L.R. 2 C.P. 1 to support this proposition. He submitted further that by training the dog to bite human beings it was put out of its class-species – as it would bite if left at large.

The position with regard to liability for animals generally is, apart from liability for cattle-trespass, that the owner of an animal may be held liable if he is negligent or upon proof of the scienter in the case of an animal mansuetae naturae, that is, if it can be proved that he knew of the vicious propensity or fierce nature in the animal. In the latter case the owner is liable if the animal commits an act which is contrary to or not in the nature of the species to commit

but which he knows that that particular animal has a propensity to commit – see Salmond on the Law of Torts, (15th ed.), chap. 14, and Clerk and Lindsell on Torts, (13th ed.), chap. 20. Thus under the common law an action to redress damage by animals may be brought in respect of animals which are harmless to mankind and those which are dangerous. Harmless animals, that is, animals mansuetae naturae, are of two kinds – those which are harmless by their very nature, for example, hares, pigeons, etc. and domesticated animals which history and experience have shown to be harmless, for example, cats, cattle, dogs and horses, etc. All other animals are dangerous animals, that is, animals ferae naturae – see *Filburn v. People's Palace Co.* (1890), 25 Q.B.D. 258. An action for damages caused by a harmless animal does not lie unless the plaintiff proves that the animal had a mischievous propensity and that the owner of the animal knew that the particular animal by its past conduct had that trait. As was said by Branson, J. in *McQuaker v. Goddard*, [1940] 1 K.B. 687, at p. 690:

> "In order to recover against the owner of an animal of that class (that is, the class of domesticated animal) for damage done by the animal, the plaintiff must show by evidence that the owner had reason to believe that the particular animal was a dangerous animal because of its particularly bad temper, or its tendency to bite or some other viciousness, which rendered it unsafe to deal with in the way in which an animal of that class can usually be dealt with."

and by Scott, L.J., in the same case, on appeal, at p. 695:

> ". . . the plaintiff has to prove that the defendant was aware of the particular propensity to hurt human beings which was evinced in the case where, ex hypothesi, the plaintiff suffered; unless he proves that knowledge, there is at common law no liability upon the defendant."

In the case of damage done by a dangerous animal, the defendant is liable without having to prove that the particular animal had a mischievous propensity or that the defendant knew that his animal had the same. However, a defendant is liable in negligence for damage done by his animal, even if harmless, if he has knowledge of the general tendencies or propensities of the claws of animal, for example, if there is evidence that he knew of a general propensity in bulls to attack children and the evidence establishes such propensity. There is the principle of ordinary duty of care that the owner of an animal owes to other persons. The duty is that it is incumbent on him to take reasonable care that his animal is not handled in such a manner as is likely to cause injury to another person.

In this appeal the main issue is whether there is any liability on the defendant for the damage suffered by the plaintiff by reason of the attack on him by the defendant's dog. The law as to the liability of a person for the damage done by his animal was fully considered in *Manton v. Brocklebank*, [1923] All E.R. Rep. 416 and, more recently, in *Gomberg v. Smith*, [1962] 1 All E.R. 725, and *Fitzgerald v. Cooke Bourne* (*Farms*) *Ltd.*, [1963] 3 All E.R. 36. Subject to what I have attempted to state above, what emerges from all these authorities is that in regard to dogs, there is clearly a duty of care owed to other persons by the owner of a dog, in addition, generally, to the proposition that the owner of an animal mansuetae naturae is not liable for mischief unless scienter is proved, and in the case of an animal ferae naturae the owner is liable for its mischief. In the present case the dog, an animal of the class mansuetae naturae, was a well-trained dog; it was trained to attack human beings on being commanded so to do. The defendant knew that the dog was a fierce one, presumably as a result of the training. The dog was taken by its handler in the course of his duties, to a place where the public has access, for the purpose of guarding the

said bank's property. Mr. Kateera argued that the defendant can only be liable for the damage done by the dog if scienter can be proved or unless it can be shown that the defendant could foresee that the dog was dangerous and therefore was likely to do harm. The evidence establishes that the dog was fierce, that is, it was violent and intractable in temper. The dog's action in attacking and biting the plaintiff was because it was fierce, can it then be said that the defendant could not know how the dog would act when not on a lead or not under the control of its handler in a public place? When an animal mansuetae naturae is trained to attack human beings, the tameness of its nature is destroyed, and if it is known to be fierce, that is, it is dangerous because of its ferocity, practically there is no difference between such an animal and an animal ferae naturae. It enters the class of animals which are dangerous by nature. If a person then takes such an animal to a place where members of the public have access, he is under a duty to control it, that is, he has a duty to see to it that the animal does not cause injury to other persons. In my view an animal mansuetae naturae when known by its owner to be dangerous to mankind, because it is fierce, falls within the category of those animals ferae naturae and if it commits an act of damage to a person, the owner is liable for the consequences. In the present case, when the defendant took the dog to the bank, having trained it to attack human beings and knowing the dog to be fierce, he was under a duty to use reasonable care to avoid acts or omissions which he could reasonably foresee would result in injury to those in the said bank. The evidence showed that the dog was not on a lead. The judge found that the dog was loose and that the handler was some distance away from the dog and the plaintiff. In my opinion the circumstances show that there was negligence on the part of the defendant in that the dog's handler failed to take reasonable care to control the dog in the said bank, knowing of its fierceness. A reasonable man could foresee that a fierce dog let loose in a place where the public have access would cause injury to persons therein. In my view the dog, as a result of the training, acquired some vicious or mischievous propensity, and the evidence shows that the defendant was aware of the fact. The dog having acquired the mischievous habit, was no longer of the class mansuetae naturae, and the owner therefore kept it or brought it to the said bank at his peril. On the whole there was sufficient evidence to support the judge's conclusion that the dog had a vicious propensity to attack human beings and that the defendant having knowledge of such propensity was therefore liable to the plaintiff for the dog's damage, bearing in mind that negligence here involves scienter. I can see no reason to differ.

For these reasons I would dismiss the appeal with costs.

Sir William Duffus P: I have read the draft judgment of Lutta, J.A. and I agree that this appeal must be dismissed.

The respondent was savaged and bitten by the appellant's dog, a dog which had been trained as a guard dog to attack people on the command of his handler. I am of the view that the trial judge correctly set out the law in his judgment when he said:

> "The owner of a dog who trains it to attack human beings does so at his peril. It is his duty to keep the dog under such restraint that injury to innocent persons will not result. The owner is not entitled to the benefit of first bite to find out whether or not the training has been successful. The defendant company having so trained Cherie that the dog has a vicious propensity to attack human beings, and having failed to keep the dog under proper restraint, is liable to the plaintiff."

As Mustafa JA: also agrees this appeal is dismissed with costs.

Mustafa JA: The appellant had trained dogs to be watch dogs. One of the appellant's dogs, Cherie, attacked and injured the respondent while the respondent was going about his lawful business in the premises of a bank. There was evidence that Cherie was a fierce dog and had been trained to attack people when ordered to do so. There was also evidence that it was dangerous to leave Cherie loose; the dog must be on a lead or a chain and under close control of a dog-handler as otherwise it might attack and bite people. On the day in question Cherie was unattended and unchained, and without provocation attacked and injured the respondent.

On these facts the trial judge found that the appellant had failed to keep Cherie under restraint, after having trained Cherie to attack human beings and knowing that it had such a vicious propensity, was liable in damages for injury to the respondent. I am of opinion that the trial judge was right. Once a dog is trained to attack people in the way Cherie was, the animal could no longer be considered to belong to the class of animal mansuetae naturae, but should be treated as belonging to the class of animal ferae naturae.

I agree with Lutta J.A. that the appeal be dismissed and concur in the order proposed by him.

Appeal dismissed.

For the appellant:
J Kateera (instructed by *Hunter & Greig*, Kampala)

For the respondent:
S Sendenge (instructed by *Sendenge & Co*, Kampala)

Mwakera v Republic
[1972] 1 EA 366 (HCT)

Division:	High Court of Tanzania at Arusha
Date of judgment:	7 May 1972
Case Number:	59/1971 (130/72)
Before:	Kwikima Ag J
Sourced by:	LawAfrica

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[1] Criminal Practice and Procedure – Plea of guilty – Change of – Allowable after conviction but before sentence.

Editor's Summary

The appellant had been allowed to change her plea of guilty to one of not guilty after conviction but before sentence.

Held – a plea of guilty may be changed on reasons to be recorded after conviction but before sentence (*Hussein Hassani v. R.* (3) followed).

Appeal dismissed.

Cases referred to in judgment:

(1) *R. v. Plummer*, [1902] 2 K.B. 339.

(2) *R. v. Blakemore* (1948), 33 Cr. App. R. 49.

(3) *Hussein Hassani v. R.* (1951), 1 T.L.R. (R.) 355.

Judgment

Kwikima Ag J: The appellant was convicted of unlawful possession of poisonous drugs contrary to s. 25 (1) (*b*) (*c*) (*e*) and (*f*) of the Cap. 416. She was then sentenced to two months' imprisonment. She appeals against conviction and sentence.

This appeal was admitted because the trial court permitted the appellant to withdraw her plea of guilty after conviction had been recorded. It now transpires that the trial magistrate was fully entitled to give the appellant such permission before he had passed sentence. This was laid down in *Hussein Hassani v. R.* 1.T.L.R. (R.) 355 when the High Court of Tanzania followed with approval the English decisions of *R. v. Plummer*, [1902] 2 K.B. 339 and *R. v. Blakemore* (1948), 33 Cr. App. R. 49. Indeed in a very recent case, Duff, J. held that:

> "It is quite clear that a plea of guilty may be withdrawn with the leave of the court before sentence and this is entirely a matter for the discretion of the Court. (*Hassan Mohamed v. R.*, 1968 (HCD) 429.)"

It should be emphasised that the court must use its discretionary power judicially. It must record the reasons why such leave is granted and it must record such reasons as the accused used to persuade it to use its discretion in the accused's favour. It would be much more in the interest of justice, especially, to make such record where the discretion was exercised against the accused.

There can be no cause to interfere with the conviction and sentence, although this court has constantly opposed short prison terms. However the appellant does not appear to have suffered any injustice in the process. Accordingly her appeal is dismissed in its entirety.

Order accordingly.

The appellant was absent and unrepresented.

For the respondent:
DZ Lubova (State Attorney)

Hamisi v Republic
[1972] 1 EA 367 (HCT)

Division:	High Court of Tanzania at Mwanza
Date of judgment:	28 April 1971
Case Number:	10/1971 (132/72)
Before:	Mnzavas Ag J
Sourced by:	LawAfrica

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[1] Criminal Law – Indecent assault – Assault accompanied by indecent suggestions – Constitutes indecent assault.

Editor's Summary

The appellant was convicted of indecent assault, having dragged the complainant to the ground with the threat of raping her.

Held – an assault becomes indecent if it is accompanied by utterances suggestive of sexual intercourse (*R. v. Coombes* (4) followed).

Appeal dismissed.

Cases referred to in judgment:

(1) *R. v. Culgan* (1898), 19 N.S.W. 160.

(2) *R. v. Chong* (1915), 32 Ontario 66.

(3) *R. v. Abrahams*, [1918] 32 C.P.H. 590.

(4) *R. v. Coombes*, [1961] Crim. L.R. 54.

(5) *R. v. Haruna Ibrahi* (1967), H.C.D. 76 (unreported).

Judgment

Mnzavas Ag J: In this case the accused was charged with attempted rape contrary to s. 132 of the Penal Code but, on the evidence, the resident magistrate found him not guilty of the offence but guilty of indecent assault contrary to s. 135 (1) of the Penal Code and sentenced him to 12 months' imprisonment.

On inspection of the record this Court found it necessary to admit the case for argument as to whether the facts as found by the trial magistrate amounted to indecent assault on the complainant by the accused. The facts are as follows:

On 26 June 1970 Ester Lyenga, the complainant, was going home from the Government guest house in Tabora. As she was on her way home the accused who was riding a bicycle overtook her and after riding a few steps ahead alighted from his bicycle and appeared as if he was repairing his bike. When the complainant reached him the accused threw his bicycle to the ground and held the complainant and said to her that he was going to have sexual intercourse with her by force. According to the evidence the accused then dragged her to a place where there was tall grass and threw her to the ground, drew a knife, and threatened to kill her if she did not comply with his request. According to her evidence the accused holding the knife at her, forced her to remove her underclothes which she did. The accused then started to remove his trousers but as he was doing so a police car stopped nearby and the complainant called for help. The driver of the car went to the scene and took both parties to the police station. The accused was eventually charged with attempted rape.

From these facts there can be no doubt that the magistrate was right in holding that a charge of attempted rape was unsupportable. The only argument is whether the facts were sufficient to support the alternative verdict of indecent assault. The State Attorney argued in support of the alternative verdict. It was argued that because the accused chased the complainant and knocked her to the ground when he had already mentally decided to have sexual intercourse with her by force, the knocking down of the complainant by the accused amounted to indecent assault. It was also argued that the forcing of the complainant to remove her underpants by the accused amounted to removing the underpants by the accused and as such was tantamount to indecent assault. In support of his argument the State Attorney referred to the court the decision in *R. v. Haruna Ibrahi* (1967), H.C.D. Case No. 76. In that case the accused was convicted by the trial court of attempted rape. The evidence was that he had dragged the complainant to a ditch, placed his hands over her mouth and pulled down her underpants but while lying on her, he was observed by a passer-by and fled. The High Court held that the acts of the accused did not amount to attempted rape but found that his acts were consistent with indecent assault.

The facts in that case can easily be distinguished from the facts in this case. In that case the accused himself removed the underclothes of the complainant. In the present case the complainant removed her underclothes on being threatened by the accused that if she did not do so he was going to kill her.

The Republic argues that the accused is guilty of indecent assault notwithstanding this difference in the facts. Alternatively it was also argued that because the accused had formed an intention to have sexual intercourse with the complainant by force, his throwing her to the ground in order to accomplish his desires amounted to indecent assault. The State Attorney did not quote any cases to support his alternative argument. I have myself failed to find a local decision which supports the argument that an assault on any part of the body of a complainant which follows indecent utterances by an accused amounts to indecent assault. There are, however, a number of authorities on this point from other jurisdictions. The question whether it was essential to prove an indecent act before a

person is convicted of indecent assault or whether it was

sufficient if proved that an assault, decent in itself, was indecent because it was committed with an indecent aim was discussed in *R. v. Culgan* (1898), 19 N.S.W. 160. In that case it was held that to constitute indecent assault an indecent act must be proved. The Supreme Court of New South Wales was of the view that it was not sufficient to support the charge merely by saying that the accused tried to drag the prosecutrix to a place where he could have intercourse with her. This decision was followed in *R. v. Abrahams*, [1918] 32 C.P.H. 590, a South African case. These two decisions were not followed by the Supreme Court of Ontario in *R. v. Chong* (1915), 32 Ontario 66. In that case it was held that an indecent assault is an assault which has in it an element of indecency, even a merely mental one. In the case of *Col. Valentine Baker – The Times* of 30 July 1875, Lord Esher instructed the grand jury in the following terms:

> "If a man kisses a young woman against her will, and with feelings of carnal passion and with a view to gratify his passions or to excite hers, that would be an indecent assault."

He went on:

> "The kisses of young people in seasons of universal gaiety are not indecent, but kisses given by a man under the influence of carnal passion are indecent."

In a more recent case in England *R. v. Coombes*, [1961] Crim. L.R. 54, a light touch with the hand on a woman's back was held to be indecent assault because, though the touch was not by itself indecent, it was accompanied with words which suggested a request for sexual intercourse.

From this recent decision and that of Lord Esher I agree with the reasoning that an assault on a lady though not indecent in itself becomes indecent if it is accompanied by indecent utterances suggestive of sexual intercourse. This is, in my view, good law and sound common sense. As the accused in this case had earlier asked the complainant to have sexual intercourse with him and he, in trying to accomplish his passions, threw her to the ground, his throwing her to the ground amounted to indecent assault. I also agree with the State Attorney that the forcing by the accused of the complainant to remove her underpants amounted to removing the underpants of the complainant by the accused and as such the accused was guilty of indecent assault.

In the event I agree with the Republic that the alternative verdict is fully supported by the evidence.

Appeal dismissed

The appellant was absent and unrepresented.

For the respondent:
JC d'Souza (State Attorney)

Potgieter v Stumberg and another (No. 2)
[1972] 1 EA 370 (CAN)

Division:	Court of Appeal at Nairobi
Date of judgment:	30 August 1972
Case Number:	20/1971 (140/72)
Before:	Sir William Duffus P, Lutta and Mustafa JJA
Sourced by:	LawAfrica

Appeal from: The High Court of Kenya – Simpson, J

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[1] Contract – Frustration – Joint ownership of cattle – Sale of ranch on which cattle run – Sale self – induced – Effect.

[2] Sale of goods – Passing of property – Exercise of option to purchase – All goods on estate – Goods ascertainable although unknown to one party – Sale of Goods Act (*Cap.* 31), *s.* 19 (*K.*).

[3] Costs – Account – Claim for – Costs may be awarded whatever result of account when entitlement disputed.

Editor's Summary

The appellant granted to the respondents for consideration an option to purchase an undivided half share in his farm including the livestock and movables on it. By letter in October 1965 the respondents exercised the option. No documents of transfer were executed. In March 1966 the mortgagee sold up the appellant's farm on his failure to pay the mortgage instalments. The appellant sold up the livestock and movables and did not account therefor to the respondents.

The respondents sued alleging either that they had become partners with the appellant or that they had become joint owners of the livestock and movables, and they prayed for an account.

The judge found that the respondents were joint owners as alleged and ordered an account and awarded them the costs of the action.

The appellant appealed, contending that the agreement had been frustrated by the sale of the ranch, that the appellant had not consented to the joint ownership of the livestock by the respondents, that the account should be overall, and that costs should not have been awarded as the respondents had not established a partnership.

Held –

(i) the appellant could not rely on frustration because:

(*a*) (by Sir William Duffus, P., and Lutta, J.A.) the respondents had already become joint owners of the livestock before the sale;

(*b*) (by Mustafa, J.A.) the sale was caused by the default of the appellant;

(ii) (Mustafa, J.A. dissenting) the livestock and movables on the farm at the date of the exercise of the option were ascertainable even though unknown to the respondent;

(iii) (Mustafa, J.A. dissenting) the respondents acquired a joint interest on the exercise of the option;

(iv) (Mustafa, J.A. not deciding) the order for the account was proper;

(v) (Mustafa, J.A. not deciding) the respondents were held to be entitled to an account and the judge was entitled to award them the costs of the action (*Raja v. Swaran Singh* (2) considered).

Appeal dismissed.

Cases referred to in judgment:

(1) *Re Wait*, [1927] 1 Ch. 606.

(2) *Raja v. Swaran Singh*, [1962] E.A. 288.

(3) *Howard & Co. (Africa) Ltd. v. Burton*, [1964] E.A. 540.

Judgment

The following considered judgments were read. **Mustafa JA:** The appellant at the material time was the owner of a ranch known as Osinye Farm in Kenya. The respondents were businessmen resident in the United States of America. The appellant was also a professional hunter and Louis, one of the respondents, was his client. They became friends. Louis evinced an interest in having a share in the appellant's ranch. The appellant needed money for the development of his ranch which he had purchased for £26,800. The appellant had told Louis that he had paid £10,000 towards the purchase price, and that the ranch was mortgaged in favour of the previous owner to secure the balance of £16,800, such sum being payable by yearly instalments of £750.

The appellant needed £8,000 for development and for the purchase of stock to make the ranch viable. The appellant did not have the money. The respondents agreed to provide that sum. For reasons connected with income tax avoidance in the States the respondents did not want to remit the sum of £8,000 direct to the appellant. Instead the respondents adopted the following method. They were to arrange for a bank in the States to provide an irrevocable letter of credit for £8,000 to the appellant's bank in Kenya. The respondents were to deposit a sum equivalent to £8,000 with the bank in the States as security. The appellant would be entitled to have overdraft facilities to the tune of £8,000 with his bank in Kenya, and if the appellant did not repay the overdraft, the bank in Kenya would be paid by the bank in the States on the letter of credit.

At this stage it will be convenient to set out the letter the respondents sent to the appellant on 13 August 1962. It reads:

> "13 August 1962.
>
> Mr. Theo Potgeiter,
>
> Dear Theo:
>
> After a number of meetings we have come with the following method of setting up our association on the ranch and farm:
>
> 1. We will supply a letter of credit for 8,000 pounds to your bank which they can draw against in the event that your 18 month loan is not paid and which this letter of credit acts guarantee. If you will have your bank send us the form of the letter of credit that they would like our bank to issue we will follow their suggestions. All they have to do in the case of failure of payment is to draw against this letter of credit, an equivalent amount of money having been deposited in our bank to guarantee it.
> 2. Have your attorney draw up an option for Louis H. Stumberg and H. E. Stumberg, jr. to buy within two years at 500 pounds one-half interest in your ranch and farm and we can apply the 500 pounds against the note for the money you have already invested in the ranch or whatever other equitable arrangements.

> There are to be two separate transactions for legal purposes.
>
> Our tax people tell us in this way we have the best tax advantage under U.S. Law. We can decide at the time we exercise the option as to setting it up as a company, a corporation, or partnership or have it owned by U.S. Corporation. In the meantime for all practical purposes you will be the full owner of all of your land and stock.
>
> The 18 month loan should read from your bank to you that this money is for the development and stocking of your ranch.
>
> I think it gives you exactly what you wanted and is completely in line with what we discussed. The only thing we tried to do is to look at it from the best tax angle. We may even set up an American Corporation owning all of the land and stock and then you would own one half of the American Corporation. If you and I feel that we would have a better chance in dealing with the Kenya Government on this basis.
>
> We are ready to submit the letter of credit to your bank as soon as we have the option and the form of the letter of credit that the bank desires.
>
> I tell you from the bottom of my heart that I look forward to being with you on this venture. If it goes well at the end of the six or eight months we might leave the letter of credit with the bank after the 18 months loan so as to acquire additional land and stock.
>
> My understanding is that you have 8,000 pounds in the ranch and when we exercise the option you would be given a note for this amount so that you would get your money out of it as well.
>
> If there are any questions on this, or if I am not quite clear drop me a line immediately, and we will straighten it out to our mutual satisfaction. I assure you that you and I will never have a misunderstanding and I do not know of a nicer friend that I would rather be associated with and I know you will pay the loan as due. You might set it up in part payments over the 18 months.
>
> Sincerely yours,
>
> Louis H. Stumberg."

An option agreement in the terms mentioned in the said letter of 13 August 1962 was drawn up and executed by the parties. The bank in the States duly issued an irrevocable letter of credit to the appellants bank in Kenya enabling the appellant to overdraw to the extent of £8,000. This letter of credit was renewed from time to time. It would seem that it was intended that both the appellant and the respondents would respectively recover £8,000 from the profits of the ranch, and that they would re-invest such sums for further development. The respondents in that event would be able to have a half-share in the ranch by the exercise of the option to buy without having to put in any money into Kenya apart from the sum of £500 mentioned in the option agreement. The appellant promised to pay the money so guaranteed into a special farm account and that the sum would be used solely for development and the buying of stock.

During 1964 it seemed the respondents were dissatisfied with the way the appellant was running the ranch. The appellant had not opened any special farm account as he had promised, and despite repeated requests the appellant had failed to keep the respondents informed of the progress of the ranching venture. The respondents then arranged for a new agreement of option to be executed. It is in the following terms and is dated 19 September 1964.

"*THIS AGREEMENT* is made the 19th day of September One thousand nine hundred and sixty four *BETWEEN THEODORE WYNAND POTGIETER* of Timau Kenya (hereinafter called 'the vendor' which expression where the context so admits shall include his personal representatives and assigns) of the one part and *LOUIS HERBERT STUMBERG* and *HENRY EDWARD STUMBERG* both of San Antonio Texas in the United States of America (hereinafter together called 'the Purchasers' which expression shall where the context so admits include their respective personal representatives and assigns) of the other part.

WHEREAS

1. The Vendor is the registered proprietor of all that piece or parcel of land situate at Timau aforesaid comprising ten thousand nine hundred and forty six (10,946) acres more or less being L.R. No. 9840 registered as I.R. No. 5861 together with all buildings improvements and movables including the livestock now or hereafter being thereon (hereinafter together called 'the Farm');

2. The Vendor has charged the said piece or parcel of land by Legal Charge (hereinafter called 'the Mortgage') dated the First day of August One thousand nine hundred and sixty one to Albert Boaz Bartlett, Frederick G. Bartlett, Robert Edwin Bartlett and Mrs Anne Bosfield (formerly Bartlett) (therein described) and there is still owing by the Vendor on the foot of the Mortgage the sum of approximately Pounds Fourteen thousand five hundred (£14,500) repayable annually by the instalments and with the interest as therein provided;

3. The Purchasers have guaranteed to the Standard Bank Ltd. banking overdraft facilities for the benefit of the Vendor (hereinafter called 'the Overdraft') to the extent of Pounds eight thousand (£8,000);

NOW THIS AGREEMENT WITNESSETH AS FOLLOWS:

1. The Vendor in consideration of the hereinbefore recited guarantee given by the Purchasers hereby grants unto the Purchasers the option to purchase at any time prior to the Thirty first day of March One thousand nine hundred and sixty seven an undivided one half share in the Farm at the price of Pounds three thousand (£3,000) payable as provided in paragraph 2 hereinbelow.

2. In the event that the Purchasers exercise the hereinabove described option, the said purchase price of Pounds three thousand (£3,000) shall subsequently be paid to the Vendor out of the profits to be thereafter earned from the operation of the Farm which profits shall be applied in the following priority:

   Firstly towards the annual capital and interest payments provided in the Mortgage

   Secondly towards the liquidation of the overdraft

   Thirdly towards payment of the said Pounds three thousand (£3,000) to the Vendor.

3. The Vendor covenants that he will

   (*a*) reduce the overdraft

      (i) to Pounds five thousand five hundred (£5,500) or less by the thirty first day of March One thousand nine hundred and sixty five.

      (ii) to Pounds three thousand (£3,000) or less by the thirty first day of March One thousand nine hundred and sixty six.

(iii) entirely by the thirty first day of March One thousand nine hundred and sixty seven.

(*b*) Create no further encumbrances over the Farm or any part thereof without the prior written consent of the Purchasers who shall be entitled to register a caveat claiming a mortgagee's interest over the lands comprising the Farm;

4. In the event of the Purchasers exercising the option to purchase hereinbefore referred to and at such time or subsequently thereto the overdraft has not been reduced as provided in Clause 3 (*a*) hereof the Purchasers shall have sole and unfettered discretion to appoint Gilfrid Astley Powys or Charles William Powys as manager for the Farm for the complete control and operation of the Farm on behalf of the Vendor and themselves;

5. In the event of any serious disagreement arising between the Vendor and the Purchasers after the said option to purchase has been exercised then the Purchasers shall be entitled at any time to give written notice to the Vendor offering to sell to him their full undivided half share in the Farm at a figure to be quoted by them and the Vendor shall elect within ten days of the date of receipt of such notice to accept or reject such offer. Should Vendor fail to make an election during said ten-day period, his silence shall be considered as a rejection of said offer. In the event of the Vendor rejecting such offer then the Vendor shall be bound to sell his own undivided half share in the Farm at the same said figure to the Purchasers and the Purchasers shall be bound to buy said share. The Completion of the sale and purchase shall in either event take place within Ninety (90) days of the date of election as aforesaid by the Vendor.

IN WITNESS whereof the parties have hereunto set their hands the day and year first herein written."

The appellant apparently still failed to supply information to the satisfaction of the respondents and no reduction of the overdraft was being made. The respondents eventually were called upon to meet the overdraft which they did by payment of slightly over £8,000.

The respondents decided to exercise their option in terms of the agreement of 19 September 1964 which they did through their advocates Archer and Wilcock, who wrote a letter dated 26 October 1965 to the appellant reading as follows:

"Theodore Wynand Potgieter, Esq.,

P.O. *Timau*.

Dear Sir,

L.R. No. 9480 (*Previously known as L.R.* 9840) *Timau*.

We write formally on behalf of Mr Louis Herbert Stumberg and Mr Henry Edward Stumberg to advise you that they hereby exercise the option given to them under the terms of an Agreement bearing date 19 September 1964 to purchase an undivided half share in the above property together with all buildings improvements and movables including improvements and movables including the livestock at the price of £3,000. The said purchase price will be paid in the manner provided in paragraph two of the above mentioned Agreement.

In as much as the overdraft has not been reduced in accordance with the provisions of Clause 3 (*a*) of the Agreement Mr L. H. Stumberg and Mr L. E. Stumberg have power to appoint Mr Gilfred Astley Powys as Manager for the farm but it is not their intention to exercise this right, at any rate for the time being.

> We would, however, call for your assurance that you will not sell, charge or otherwise part with possession of the property or any of the movables including the livestock thereon without the prior approval of Messrs. Stumberg and will cause all proper statements of account concerning the operation of the farm to be submitted to them.
>
> Yours faithfully,
>
> ARCHER & WILCOCK."

The appellant, during 1966, sold livestock from the ranch and paid the proceeds into his wife's bank account. Some time in March 1966 the mortgagees foreclosed on the ranch and sold it as the appellant had failed to keep up his instalment payments.

The respondents, in May 1966, filed an action in the High Court, claiming that as a result of their exercising the option on 26 October 1965 they had become partners in the ranching business. They claimed a dissolution of the partnership and an order for accounts. The plaint was subsequently amended to include an alternate claim as joint owners in equal shares with the appellant in the land, livestock and movables of the ranch.

The case went on trial, and the trial judge found that no partnership between the respondents and the appellant was constituted by the exercise of the option. However he found that on exercising their option the respondents became joint owners in equal shares with the appellant in the livestock and movables. He held that the contract was not frustrated by the disappearance of the ranch through sale as that occurred after the respondents had become joint owners of the stock and movables. He made an order that the appellant "do account to them (respondents) for the sale and disposal of all the livestock and movables which were on the ranch on 26 October 1965 and to judgment against the defendant (appellant) for the sums found due in respect of the plaintiff's (respondents) one-half share".

From that decision the appellant appeals.

The grounds of appeal can broadly be summarised under four heads.

(1) that the option agreement was frustrated due to the sale of the ranch and had become impossible of performance;

(2) there was no consensual act of the appellant to change the sole possession and ownership of the livestock into a joint one;

(3) an account if to be taken must be an overall one and not confined to livestock only;

(4) the order for costs was wrong.

Mr. Khanna for the appellant submitted that the option agreement was frustrated and impossible of performance because of the disappearance of the ranch as a running business. In terms of the said agreement the purchase price of £3,000 was to be from the profits to be earned from the operation of the ranch. It was payment in a qualified manner. That would have been impossible with the disappearance of the ranch. However the ranch was sold because the appellant had failed to pay the instalments due to the mortgagees. There was hardly any evidence adduced by the appellant to show why he defaulted in paying the instalments resulting in the foreclosure and sale of the ranch. On the evidence, I am of the view that the sale of the ranch was due to the fault of the appellant himself. Frustration can be successfully set up if "after the formation of a contract, certain sets of circumstances arise, which owing to the fault of neither party, render the contract . . . impossible . . .", see *Howard & Co.* (*Africa*) *Ltd. v. Burton*, [1964] E.A. 540. Here the frustration was in a way induced by the appellant. In the circumstances I am of opinion that the defence of frustration fails.

What was the effect of the exercise of the option by the respondents on 26 October 1965? In terms of the agreement of 19 September 1964, the appellant granted to the respondents "the option to purchase at any time prior to 31 March 1967 an undivided one half share in the farm at the price of £3,000 payable as provided in paragraph 2 hereinbelow". The farm was to include "land, all buildings, improvements and movables including livestock now or hereafter thereon". The respondents, by their advocates' letter of 26 October 1965 exercised their option "to purchase an undivided half share in the above property with all buildings improvements and movables including the livestock at the price of £3,000".

The trial judge held that the exercise of the option did not constitute a partnership in itself. He however held that:

> "on exercising that option the plaintiffs became joint owners in equal shares with the defendant in the livestock and movables. No act of delivery was required and no prior payment. Such was clearly the intention of the parties."

He also said:

> "Further steps were required to complete the purchase of an undivided half share of the land. Those steps were not taken."

And again:

> "Joint ownership of the stock and movables took effect from the exercise of the option, not from the payment of the price."

As I understand it, an option is no more than an offer, which given for consideration may be irrevocable, and if accepted becomes a complete contract which either party is entitled to enforce. In English law an option to have a right to call for a conveyance of land creates an interest in land, but it is not so in Kenya, see s. 54 of the Indian Transfer of Property Act which applies to Kenya. When the respondents exercised their option a complete contract came into existence which the respondents could enforce by action. So on 26 October 1965 there was a complete contract between the respondents and the appellant for the purchase of a half share in the ranch. In view of the judge's finding, I will restrict the purchase to a half share in the livestock and movables. The judge found that after the exercise of the option, the respondents did not by themselves or their agents, carry on the ranching business jointly with the appellant. The appellant took no steps to carry out the contract of purchase. There was no act of transfer of the half interest in the livestock and movables. No steps or acts were taken by the respondents to indicate that they had acquired a half share in the livestock or movables. The appellant throughout had claimed that he was the sole owner of the animals. The appellant had at no stage consented to the respondents being a joint or co-owner with him of the livestock and movables. In fact no transfer or vesting of the half interest in favour of the respondents took place.

Even if the exercise of the option can be equated to a contract of sale on the peculiar facts of this case, did the property in the livestock pass to the respondents on 26 October 1965 or at any subsequent date? Mr. Salter for the respondents referred the Court to ss. 19 and 20 of the Sale of Goods Act (Cap. 31). However, these sections refer to specific or ascertained goods and specific goods as defined in the said Act means goods identified and agreed upon at the time a contract of sale is made. "'Ascertained' probably means identified in accordance with the agreement after the time of a contract of sale is made . . ." *Re Wait*, [1921] 1 Ch. 606: per Lord Atkin, L.J. at p. 630. Here the livestock would not be specified or ascertained goods in terms of the Sale of Goods Act. There was nothing in the agreement, express or implied, to provide for the passing of the

property in the livestock to the respondents automatically without some act of delivery or consent. The respondents did not take physical or constructive delivery of the livestock, did not identify or list the animals, in fact did not know how many animals there were on the ranch on 26 October 1965, or if there were any animals at all. Nothing happened subsequently to alter that state of affairs. I am of the view that no property in the livestock passed to the respondents on 26 October 1965 or on any subsequent date. I believe all that the respondents had against the appellant was a claim for damages for breach of the contract to sell, since the appellant had put it out of his power to fulfil the terms of the contract. Consequently they were not entitled to an account from the appellant.

In view of this finding it will be unnecessary for me to deal with the other grounds of appeal. I would therefore allow the appeal, set aside the judgment and decree of the High Court, and substitute therefor an order dismissing the respondents' claim. I would award the appellant costs in the High Court as well as costs of this appeal. I would certify for two advocates.

Sir William Duffus P: This matter started out as a transaction between friends and perhaps largely due to this, the arrangements between the parties became involved and difficult to understand. The facts have been fully set out by Mustafa, J.A. in his judgment. The plaint suffered many amendments but eventually the plaintiffs claimed under two alternatives: the first being a claim in partnership asking for the dissolution of the partnership and an order for the accounts; or in the alternative the plaintiffs claimed to be joint owners with the defendants in the land, livestock and movables as set out in the option agreement of 19 September 1964, and averred that the defendant had sold their joint property and not accounted for it and also asked for accounts. The option agreement was in respect of a farm which term included the land, buildings and movables on the farm and included all the livestock.

The trial judge found for the plaintiffs on the alternative claim. He found against the existence of the partnership but held that by the exercise of the option by the plaintiffs on 26 October 1965, they became the joint owners in equal shares with the defendant of the livestock and movables on the farm and he ordered that the defendant do account for the sale and disposal of all the livestock and movables on the farm at the date of the exercise of the option and he decreed that the plaintiffs do have judgment for such sum as may be found due and awarded the plaintiffs the cost of the action.

He made no order with regard to the land as he found that no steps had been taken after the exercise of the option to complete the purchase and that the land was in fact sold by the mortgagees after the exercise of the option.

The defendant now appeals against that order. Mr. Khanna, for the defendant, fully and ably argued various grounds of appeal but his main grounds were that the option agreement had been frustrated and could not be carried into effect and further that the ownership in the cattle and other movables on the farm had never been transferred. He also advanced several grounds of appeal on the matter of the order for costs.

The option agreement of 19 September 1964, was undoubtedly a legal and enforceable agreement made for valuable consideration. It set out what had been agreed between the parties at that stage of the various arrangements made between them. The option was exercised by the letter of 26 October 1965. The defendant admitted receiving this letter and it is not in dispute that the firm of advocates, Archer and Wilcock, had the necessary authority to act on behalf of the plaintiffs. The option having been exercised the agreement of 19 September 1964, then became a contract for the sale of the land and of the movables

and livestock on the land. The sale of the land was never completed and the mortgagee sold the farm in March 1966. The contract for the sale of the land having been concluded the plaintiffs acquired an enforceable right but in fact the land was apparently sold at a price insufficient to cover the amount due on the mortgage. The following extract from the letter from Archer and Wilcock to the defendant dated 22 March 1966, is of relevance as showing the position on that date:

> "I have received a copy of the registered letter sent by Kaplan & Stratton to you, confirming that the farm has been sold to P. G. Grattan for £15,000. You will see that, so soon as Land Board consent has been given, he will wish to take possession.
>
> Since, presumably, it will not be possible for you to move the livestock and movable assets to a neighbouring farm, you will have to affect a complete sale in the very near future. As you will appreciate, all the movables, including livestock, are partnership property. Out of the proceeds of sale, there will have to be discharged the current bank overdraft, the shortfall on the mortgage in the sum of approximately Shs. 36,000/- and the current farm debts. Thereafter the balance of the proceeds of sale will be divided equally between you and the Stumberg brothers.
>
> I have discussed this with you on various occasions when you have visited me and you have confirmed that you will ensure that very full details of every sale made by you are passed to John Story. I must emphasise that it is essential that this is done."

The plaintiffs would appear to have had no further interest in the land and the only question that might arise is whether the "shortfall" of the mortgage debt is to be paid out of the proceeds of the sale of the movables and livestock but this is a matter that could be considered when the accounts are being settled.

The judge dealt with the agreement of sale of the movables and livestock separately and I would here quote from that part of his judgment where he summarised his findings on this matter:

> "I am however satisfied that on exercising their option the plaintiffs became joint owners in equal shares with the defendant in the livestock and movables. No act of delivery was required and no prior payment. Such was clearly the intention of the parties and the relationship between the parties prior to the exercise of the option is I think immaterial. Whatever the true relationship may have been the exercise of the option replaced any prior Agreement. The option agreement provided the plaintiffs with some security for their guarantee should the need arise and I see no reason to find that it did not contain all the terms agreed between the parties.
>
> Further steps were required to complete the purchase of an undivided half share in the land. These steps were not taken because it became known that the mortgagees were contemplating foreclosure, the defendant having failed to meet his obligations and in fact they sold the ranch in March, 1966.
>
> This sale effectively prevented further running of the farm but it did not, as submitted on behalf of the defendant, frustrate the contract since it occurred after the plaintiffs became joint owners of the stock and movables. In agreeing the consideration of £3,000 account was taken of the amount put into the farm by the defendant by way of development not of the value of the land. The fact that this sum had not been paid at the time of the sale of the farm by the mortgagees does not frustrate the agreement. Joint ownership of the stock and movables took effect from the exercise of the

> option not from payment of the price. Account will, of course, have to be taken of the non-payment of this amount in any final settlement between the parties.
>
> I can see no reason for holding that the option agreement did not constitute a binding contract. The consideration may not have been stated with complete accuracy but was well understood by both parties to be the guarantee arranged by the plaintiffs which enables the defendant to obtain overdraft facilities."

One of the main issues in the case was whether any property in the movables and livestock passed to the plaintiffs. s. 19 of the Sale of Goods Act (Cap. 31) applies. This states:

> "19. (1) Where there is a contract for the sale of specific or ascertained goods, the property in them is transferred to the buyer at such time as the parties to the contract intend it to be transferred.
>
> (2) For the purpose of ascertaining the intention of the parties, regard shall be had to the terms of the contract, the conduct of the parties and the circumstances of the case."

It is a question of fact in each particular case. In my view the movables and livestock in this instance were definitely ascertained and known goods. On the exercise of the option the plaintiffs obtained an undivided half-share in all the movables and livestock then on the farm belonging to the defendant. The plaintiffs themselves might not have known exactly what these goods were but these were definite goods known to the defendant and could be proved by evidence. It was not a question of plaintiffs purchasing only some of the livestock and movables but the plaintiffs purchased an undivided half share in all the livestock and movables on the farm at the time of the exercise of the option. These were definite and ascertained goods and in my opinion the plaintiffs immediately on the option being exercised acquired a joint interest and the property passed to them.

The Court ascertains the intention of the parties from the terms of the contract, the conduct of the parties and the circumstances of the case. The option agreement of 19 September 1964, in effect provided that the farm should continue to be run as a going concern and the profits were to be applied in the manner shown. It was clear that the defendant should remain in charge of the farm but clause 4 provided that the plaintiffs could, in certain circumstances, appoint another person as manager and to have complete control and operation of the farm. The letter of 26 October 1965, exercising the option also showed that it was the intention of the parties that the defendant should remain in physical control of the movables and livestock although the property, that is the plaintiffs' joint ownership in the property, immediately vested in the plaintiffs. There was evidence to show that in fact that defendant understood this to be the position and undertook to account for all sales. The evidence of Mr. Wilcock, senior partner in Archer & Wilcock, the advocates dealing with the matter, is to this effect and this is borne out by the extract I have quoted from their letter of 22 March 1966.

The judge was in my view fully justified in his finding that on the exercise of the option the plaintiffs became joint owners in equal shares in the livestock and movables.

I agree also with the trial judge that the doctrine of frustration cannot apply here. The defendant alleges frustration because with the sale of the land, the farm could no longer be run, and the running of the farm was required as the condition of the option agreement but as the judge points out the option had already been exercised and the plaintiffs then became joint owners with the defendant.

There can be no doubt that the defendant sold off all the movables and the livestock and paid the amount realised into his wife's account and that he used these profits personally. He freely admits this in his evidence: I quote:

> "Every since August 1965, ranch receipts were paid into my wife's account. That is possible.
>
> I paid my income tax out of these receipts from cattle, wool, etc. I paid school fees, everything, personal debts. All my money went into these accounts. Wilcock told me it had to be separate account. I took no notice."

The plaintiffs were entitled to an order for an account and to judgment for any balance found to be due in respect of their interest in the property.

Mr. Khanna also raised the question that the accounts should be overall and not be confined only to the livestock. The accounts are ordered as from the date of the exercise of the option and in my view correctly relate only to the disposal of the livestock and movables which were on the farm at that date. I can see that difficult questions may arise as to what debts or liabilities are a proper charge against any of the amounts realised but this question does not now arise. I note the trial judge reserved liberty to the parties to apply for directions as to how the account was to be taken.

There remains the question of costs. Both Mr. Khanna, for the defendant, and Mr. Morrison, for the plaintiffs, referred to the judgment of this Court in *Raja v. Swaran Singh*, [1962] E.A. 288 at p. 299. In his judgment in this case Forbes, V.-P. set out the principles which would equally well apply here:

> "Costs are a matter in the discretion of the court and this Court will not interfere unless satisfied that the lower court acted on a wrong principle. The proviso to sub-s. (1) of s. 27 of the Civil Procedure Ordinance (Cap. 5) provides that:
>
> > 'the costs of any action, cause or other matter or issue shall follow the event unless the court or judge shall for good reason otherwise order.'
>
> The reason given by the learned judge here for his order is that the appellant 'failed on four issues and succeeded on one'. I have already mentioned the grounds advanced by the appellant in support of his motion to have the award set aside on which he failed. With respect to the learned judge, I feel bound to agree with Mr. Khanna that these grounds are not 'issues' within the meaning of the proviso to s. 27. In *Reid, Hewitt & Co. v. Joseph* (7) (1918), A.C. 717 at p. 742 Viscount Haldane, in relation to a similar provision in the English rules of court then in force, defined an issue within the meaning of the rule as–
>
> > 'an issue which has a direct and definite event in defeating the claim to judgment in whole or in part.'
>
> I do not think the grounds on which the appellant failed fall within this definition. I therefore think that the learned judge erred in principle in ordering each party to pay his own costs of the motion to set aside the award on the ground that the appellant had failed on four 'issues' while succeeding on one."

Mr. Khanna's argument is that the main issue was the partnership and that the judge found against the plaintiffs on this issue. Mr. Morrison's answer was that the real issue was for an order for the defendant to account for the livestock and movables that he sold after the plaintiffs had acquired a joint interest. I think it clear in this case that the plaintiffs were seeking to recover their share as joint owners of the movables and livestock and it was for this purpose that they

asked for an order for accounts. The judge made no order with regard to the land but this was due to the fact that the land had been sold by the mortgagees and the entire proceeds absorbed by the mortgage.

I agree that the main issue in this case was that the plaintiffs were seeking to recover what was due to them, and this could only be done by the taking of the accounts. Mr. Khanna also argued that when the accounts were taken, it may be found that after payments of such debts as may be properly deducted from the proceeds of the sales that there is nothing left for the plaintiffs. This is very doubtful, but even if it were so, the plaintiffs would still be entitled to the order for accounts and this order has been consistently resisted by the defendant. In my view the plaintiffs were entitled to have the costs of the action and the judge was justified in the order he made.

I would therefore dismiss the appeal with costs and I would allow the respondent costs for two advocates. As Lutta, J.A. also agrees it is so ordered.

Lutta JA: The facts of this appeal are fully set out in the judgment of Mustafa, J.A., which together with the judgment of the President, I have had the advantage of reading in draft and I consider it unnecessary to restate them here. One of the main questions here was whether on the exercise of the option the respondents acquired an undivided half share in the loose assets including livestock on the farm. The letter of 22 March 1966 from Archer and Wilcock to the appellant states that "all the movables, including livestock, are partnership property". The movables, including livestock, on the farm, were specific goods and clearly known by the appellant, if not identifiable by him at the material time. It is in respect of these that the respondents purchased an undivided half share when they exercised the option, and under s. 19 of the Sale of Goods Act property in them was transferred at such time as they intended it to be transferred. If the intention is obscure, s. 20 of the Act contains rules which assist in discovering the same. Thus rule (*a*) of s. 20 provides that:

> "Where there is an unconditional contract for the sale of specific goods, in a deliverable state, the property in the goods passes to the buyer when the contract is made, and it is immaterial whether the time of payment or the time of delivery or both be postponed;".

In my opinion, property in the movables, including livestock, passed to the respondents when they acquired an undivided half share and exercised the option as per the letter of 26 October 1965 from Archer and Wilcock to the appellant and I agree with the President that the respondents were entitled to an order for an account, in view of the sale by the appellant of all the movables and the livestock. Accordingly I would dismiss this appeal, and I concur in the order proposed by the President.

Appeal dismissed.

For the appellant:
DN Khanna and *TR Johar* (instructed by *Johar & Co*, Nairobi)

For the respondents:
C Salter QC and *AF Morrison* (instructed by *Archer & Wilcock*, Nairobi)

Ngakwila v Lalani
[1972] 1 EA 382 (CAK)

Division: Court of Appeal at Kampala

Date of judgment: 29 August 1972

Case Number: 21/1971 (142/72)

Before: Sir William Duffus P, Lutta and Mustafa JJA

Sourced by: LawAfrica

Appeal from: The High Court of Uganda – Mead, J

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[1] Land – Leasehold – Consent not obtained before agreement to sell – Consent subsequently obtained – Contract illegal and void – Land Transfer Act (*Cap.* 202), *s.* 2 (*U.*).

Editor's Summary

The appellant agreed to sell his leasehold land to the respondent and immediately thereafter the consents of the Commissioner of Lands and Surveys and of the Minister were given. The respondent had not taken possession of the land. The respondent then refused to transfer the land and the appellant sued for and obtained an order for specific performance of the contract.

On appeal the court raised the question of the legality of a contract entered into before the granting of consent by the Minister.

The respondent contended that the contract was inchoate until the consent had been given.

Held – a contract made before the consent of the Minister is obtained is illegal and void ab initio (*Broadways Construction Co. v. Kasule* (7) followed).

Appeal allowed.

Cases referred to in judgment:

(1) *Harnam Singh v. Sadhu Singh Dhiman* (1951), 18 E.A.C.A. 75.

(2) *Abdulla and Mzee v. Nand Singh* (1954), 21 E.A.C.A. 80.

(3) *Manji v. Khursid Begum*, [1957] E.A. 101.

(4) *Denning v. Edwardes*, [1960] E.A. 755.

(5) *Mistry Amar Singh v. Kulubya*, [1969] E.A. 408.

(6) *Kakungulu v. Sekiumba Estates Ltd*., [1969] E.A. 557.

(7) *Broadways Construction Co. v. Kasule*, [1972] E.A. 76.

Judgment

The following considered judgments were read. **Lutta JA:** This appeal arises out of a suit in which the plaintiff (the respondent in this court) asked for an order against the defendant (the appellant here) for specific performance of a contract made on 9 September 1970 relating to a leasehold property at Mbarara which the defendant had agreed to sell to the plaintiff, or in the alternative, damages for breach of contract. The judge ordered that the defendant do specifically perform the contract and it is against that decision that the defendant has appealed.

The plaintiff was a business man residing at Mbarara and the defendant was employed by the Uganda Transport Company in Jinja. By a contract dated 9 September 1970 the defendant agreed to sell his plot of land with buildings thereon. Conditions of sale were:

(1) The possession of the property sold to be given by the vendor to the purchaser on 1 January 1971.

(2) Transfer of the property sold to be executed by the vendor in the favour of the purchaser or his nominees.

(3) All the transfer documents shall be prepared by Messrs. Ishani and Ishani, advocates, Mbarara.

(4) The payment of purchase price shall be made as soon as consent to transfer is approved and obtained.

(5) Ground rent, Assessment rate etc. and other taxes payable in respect of the property sold to be borne by the vendor until 31 December 1970.

(6) The vendor to execute and sign such applications, deeds and other letters as be required by the purchaser to complete the transfer of the property.

(7) The sale of property sold is subject to the consent by the Lands and Surveys Department.

(8) All the costs of transfer and other disbursements to be borne by the purchaser.

The plaintiff applied to the Commissioner of Lands and Surveys for consent under s. 22 (5) (*c*) (i) of the Public Lands Act 1969 on 7 October 1970, which was given on 24 November 1970. He also applied to the Minister for consent under s. 2 of the Land Transfer Act (Cap. 202) on 10 December, 1970 and this was granted on 4 January 1971. In December 1970 the plaintiff through Mr. Ishani asked the defendant to complete the sale by executing the transfer but the defendant refused and the plaintiff thereafter filed the suit.

[The judge dealt with the evidence and the grounds of appeal as pleaded and continued.]

In the course of the hearing of this appeal the court raised the question of illegality of the contract on the ground that it contravened the provisions of the Land Transfer Act (Cap. 202). As the plaintiff was a non-African he could enter into the contract to purchase the land in question only after obtaining the consent as provided for under s. 2 of the Land Transfer Act, and that in this case as no consent was obtained before the contract was entered into, the contract would be illegal ab initio and was therefore not only unenforceable but also that the plaintiff could be prosecuted under s. 4 of the Land Transfer Act. The Court then granted a short adjournment to counsel for them to consider this point and then address us thereon. Mr. Gaffa submitted that the contract was illegal and in support of this proposition he cited the cases of *Manji v. Khursid Begum*, [1957] E.A. 101, *Mistry Amar Singh v. Kulubya*, [1963] E.A. 408 and *Kakungulu v. Sekiumba Estates Ltd*., [1969] E.A. 557. Mr. Mitha contended that the contract was inchoate until the consent provided for under s. 2 of the Land Transfer Act was obtained and therefore it was not illegal. He relied on the cases of *Denning v. Edwardes*, [1960] E.A. 755.

In the High Court, the question of the illegality of the contract was never raised nor was it included in the grounds of appeal before us. However, as this is a question of law we would have had to consider it any way even if it was not raised by the parties – see *Harnam Singh v. Sadhu Singh Dhiman* (1951), 18 E.A.C.A. 75 and *Abdulla and Mzee v. Nand. Singh* (1954), 21 E.A.C.A. 80. *Mistry Amar Singh v. Kulubya* (*supra*) is clear authority for holding that a non-African has no right, without the minister's consent to occupy or enter into possession of land or to enter into a contract for the purchase of such land. In that case the respondent, who was an African, had purported to lease his land to a non-African. The Governor's consent as required by s. 2 of the Land Transfer Act was not obtained nor was the Lukiko's consent obtained as required by s. 2 of the Possession of Land Law, although the appellant had been

in occupation for some years. The Court of Appeal and Privy Council held that a non-African had no right without the consent, in writing, of the Governor to occupy or enter into possession of land or to make any contract to take any such land on lease. The object of s. 2 of the Land Transfer Act is, as a matter of public policy, to protect ownership of land by Africans by regulating its transfer and controlling its sale to non-Africans. There is also the provision in the s. 4 of the Act which creates an offence in the case of a contravention of the provisions of the Act. It is convenient to set out these provisions. Ss. 2, 3 and 4 read as follows:

> "2. No non-African or any person acting as his agent shall without the consent in writing of the Minister occupy or enter into possession of any land of which an African is registered as proprietor (otherwise than by receiving rents and profits payable by non-Africans who have gone into occupation or possession with the consent of the Minister) or make any contract to purchase or to take on lease or accept a gift inter vivos or a bequest of any such land or of any interest therein other than a security for money:
>
> 3. The Minister may refuse the consent mentioned in section 2 of this Act without assigning any reason, or may specify terms upon which such consent is conditional.
>
> 4.(1) Any person who contravenes the provisions of this Act or of any terms imposed by the Minister under section 3 of this Act shall be guilty of an offence and liable on conviction to a fine not exceeding two thousand shillings or to imprisonment for a period not exceeding twelve months or to both such fine and imprisonment."

S. 4 directly prohibits occupying or entering into possession of land or making any contract to purchase or to take on a lease of such land without the Minister's consent. Thus the contract is illegal and therefore void ab initio if it is made without the Minister's consent. The wording of s. 2 is very wide and as can be gathered from the Act the legislature considered it as a matter of great importance to protect ownership of land by Africans by not allowing non-Africans, without the Minister's consent, to occupy or enter into possession of their land and thus framed the Act in order to prohibit any transactions in respect thereof, whether formal or informal – see *Manji v. Khursid Begum* (*supra*). Mr. Mitha cited the case of *Denning v. Edwardes* (*supra*) to support the proposition that a contract which is expressed to be subject to the Minister's consent, as in the present case, is inchoate at the time it is made and became choate and effective when the consent was obtained. I have sympathy for this view. However, as it was pointed out by this court in the case of *Broadways Construction Co. v. Kasule*, [1972] E.A. 76 there are material differences between the relevant Kenya Act, that is, s. 88 of the Crown Lands Act (Cap. 155) (as it was at the material time) and the Uganda Land Transfer Act – ss. 2 and 4 (1). In the relevant Kenya Act, there was no provision (similar to s. 4 (1) in the Uganda Act) in s. 88 making it an offence punishable by fine or imprisonment, to occupy or enter into possession of land or to make a contract for the purchase of land without the Governor's consent. Such a transaction, without the Governor's consent, was void but not illegal. That case, in my view, does not assist Mr. Mitha. In these circumstances the defendant as the registered proprietor of the property in question, and as a member of the protected class, is entitled, in the absence of the Minister's consent when the contract was made, to the protection of the Land Transfer Act. For these reasons I would allow the appeal, set aside the judgment and decree of the High Court ordering the defendant specifically to perform the contract by executing the transfers and giving possession of the property in question to the plaintiff. As regards costs in the High Court, the

plaintiff ought not have sought to enforce an illegal contract; the defendant, on the other hand, should have pleaded illegality of contract or raised it at an early stage of the proceedings or as a ground of appeal in order to give reasonable notice to the plaintiff and the court. I would therefore make no order as to costs in the High Court and allow the appellant 75 per cent of the costs of this appeal.

Sir William Duffus P: The facts in this case have been fully set out in the judgment of Lutta, J.A.

The major consideration in this appeal is whether the contract entered into between the parties was a legal and enforceable contract.

The provisions of the Land Transfer Act (Cap. 202) apply, and the relevant sections have been set out in the judgment of Lutta, J.A. The appellant was not represented in the High Court, and the illegality of the contract was not raised in the High Court nor in the grounds of appeal, but as this is a question of law and especially as the courts will not enforce an illegal contract, this was a question which this Court had to determine, and accordingly heard full arguments from the advocates on both sides. S. 2 of the Act is clear in its terms and it prohibits any non-African from making any contract to purchase land in Uganda registered in the name of an African without the consent in writing of the Minister.

This prohibition covers the contract in this case. The land was registered in the name of the appellant, an African; the respondent, a non-African, made this contract to purchase this land and this was done without the consent of the Minister.

The contract in this case fixed the date for the giving up of possession of the land and similarly the dates for the apportionment of the rates and taxes. The contract was clearly illegal and void ab initio. The Minister eventually gave his consent on the 4 January 1971, but before that date the appellant had already renounced the whole transaction and made it clear that he was no longer selling his land. The consent of the Minister has to be given before the contract is made and not afterwards.

I agree with Lutta, J.A. that the contract cannot be enforced and this appeal will have to be allowed and the judgment and decree of the court below set aside and in lieu thereof the action will be dismissed.

On the question of costs the plaintiff clearly could not succeed in his action and he should never have tried to enforce an illegal contract. On the other hand, the defendant failed to bring this fact to the attention of the court nor did he plead this in his defence. I would make no order for costs in the High Court. On the appeal the appellant again failed to raise this in his grounds of appeal. On the other hand, he had to come to this Court to set aside the judgment. I would allow the appellant 75 per cent only of his costs in the appeal.

As Lutta and Mustafa, JJ.A. also agree the appeal is allowed; the judgment and decree of the High Court is set aside, and in lieu thereof the action is dismissed.

There will be no order as to costs in the High Court and the appellant will have 75 per cent of the costs of the appeal.

Mustafa JA: I have had the advantage of reading the judgment prepared by Lutta, J.A.

The appellant had contracted to sell his plot of land with buildings thereon at Mbarara, Uganda, to the respondent, and a contract was duly drawn up to

that effect. The appellant was an African from Tanzania while the respondent was a non-African. Among the conditions of sale are the following:

(1) The possession of the property sold to be given by the vendor to the purchaser on 1 January 1971.

(2) The payment of the purchase price shall be made as soon as consent to transfer is approved and obtained.

(3) The sale of the property sold is subject to the consent by the Lands and Surveys Department.

The High Court decreed specific performance of the contract of sale at the instance of the respondent and the appellant has appealed from that decision.

This transaction was clearly within the ambit of the provisions of s. 2 of the Land Transfer Act (Cap. 202) which reads:

> "No non-African or any person acting as his agent shall without the consent in writing of the Minister occupy or enter into possession of any land of which an African is registered as proprietor (otherwise than by receiving rents and profits payable by Non-Africans who have gone into occupation or possession with the consent of the Minister) or make any contract to purchase or to take a lease or accept a gift inter vivos or bequest of any such land or of any interest therein other than a security for money."

The contract on the face of it is prohibited by the provisions of s. 2 above and is illegal. Possession was expressed to be given on a definite date, i.e. 1 January 1971 unfettered and without it being subject to the written consent of the Minister. There is no express condition in the contract that a consent from the Minister was to be obtained, although it might conceivably be argued that the consent to the transfer in condition (2) could be referable to such Ministerial consent. I have no doubt that the contract in this case is illegal and offends the provisions of s. 2 and is unenforceable. On this ground the appeal must succeed.

This question of illegality was raised by the court itself in the course of the appeal. In the circumstances the appellant should only have a portion of the costs of the appeal. I agree that there should be no order for costs in the High Court as this contract was an illegal one. I concur in the order proposed by Lutta, J.A.

Appeal allowed.

For the appellant:
FR Gaffa (instructed by *Kirenga & Gaffa*, Kampala)

For the respondent:
T Mitha (instructed by *Ishani & Ishani*, Kampala)

Income Tax v Kagera saw Mills Ltd
[1972] 1 EA 387 (CAD)

Division:	Court of Appeal at Dar Es Salaam
Date of judgment:	19 August 1972
Case Number:	29/1972 (144/72)
Before:	Sir William Duffus P, Spry V-P and Mustafa JA
Sourced by:	LawAfrica
Appeal from:	The High Court of Tanzania – Biron, J

[1] Income Tax – Investment allowance – Farm workers – Piping and sprinklers water supply works other than machinery – Severable from the pump – East African Income Tax Management Act (*Cap.* 24), 2*nd Sch. para.* 25.

[2] Income Tax – Investment allowance – Trade – Whether trade of refining sugar separate from husbandry of producing cane – East African Income Tax Management Act (*Cap.* 24), 2*nd Sch. para.* 27.

Editor's Summary

The taxpayer cultivated 10,000 acres of sugar cane and also owned a sugar mill and factory for the processing of refined sugar from sugar cane. The mill was expensive and the processes of manufacturing and refining sugar were highly complex and technical. Cane grown by other growers was processed by the factory. Only one set of books was kept for the whole of the taxpayer's operations.

The taxpayer incurred capital expenditure on the construction of an irrigation system on its land, on which the Commissioner allowed a 12½ per cent wear and tear allowance on machinery and on which the taxpayer contended that it should have had an allowance of 20 per cent on farm works on agricultural land.

The irrigation system consisted of a housed diesel engine, a fixed pump linked to it and a series of movable pipes ending in a network of sprinklers. The High Court found that the three components were severable and that the diesel engine was machinery, and the pump, pipe and sprinklers were farm works. In the Court of Appeal the taxpayer conceded that the pump was machinery. For the Commissioner, it was argued that the piping was part of the machinery which could not work without it.

The taxpayer also incurred capital expenditure on the purchase, installation and alteration of machinery in the sugar mill. The Commissioner refused an allowance on the ground that the taxpayer was engaged solely in the trade of husbandry. The taxpayer contended that it was engaged in the two distinct trades of growing and refining.

Held –

(i) the piping and sprinklers are not an integral part of the machinery (*Customs & Excise v. Elliots Bakeries Ltd*. Kenya, C.A. 47 of 1970 (unreported) distinguished);

(ii) the piping and sprinklers are accordingly farm works;

(iii) it is not necessary to have separate accounts to establish two separate trades;

(iv) the question whether a separate trade is carried on is one of fact, and the separateness of the trades had been fully established;

(v) the machinery was accordingly entitled to an investment allowance.

Appeal dismissed.

Cases referred to in judgment:

(1) *Auckland City Corporation v. Auckland Gas Co. Ltd.*, [1919] N.Z.L.R. 561.

(2) *Commissioner of Inland Revenue v. William Ransom & Son Ltd*., 12 T.C. 21.

(3) *Commissioner-General of Income Tax v. Kiganga Estates Ltd*., [1968] E.A. 464.

(4) *Customs and Excise v. Elliots Bakeries Ltd*., Kenya C.A. 47 of 1970 (unreported).

Judgment

The following considered judgments were read. **Mustafa JA:** The respondent company (hereinafter called the Company) was assessed to income tax in respect of the years of income 1967 and 1968 by the appellant Commissioner-General of Income Tax (hereinafter called the Commissioner). The Company was dissatisfied with the assessments and unsuccessfully appealed to the local committee against such assessments. The Company then appealed to the High Court which allowed its appeals, and the Commissioner now appeals to this Court.

The facts in the case are not in dispute. The Company owns 18,000 acres of land, 10,000 acres of which are under sugar cane cultivation, the other 8,000 acres being undeveloped. The Company owns and operates a sugar mill and factory for the manufacture and processing of refined sugar from sugar cane. The sugar mill occupies about 10 acres of land in the sugar plantation. The cost of the sugar mill was about Shs. 10,000,000/- and it employs 300 people, of whom 20 to 25 are highly skilled workers. The sugar mill processes the Company's sugar cane and also that purchased from other sugar cane growers. In 1966 3.3 per cent of sugar cane was supplied by outside growers, in 1967 4.9 per cent and in 1968 10.5 per cent. In 1967 the mill purchased outside sugar cane to the value of Shs. 99,839/-; in 1968 – Shs. 186,553/-; in 1969 – Shs 280,400/-; and in 1970 – Shs. 434,236/-. The Company commenced growing sugar cane from 1956 and commenced building the sugar mill in 1957. The Company has two departments, the timber department and the sugar department which comprises both the sugar mill and the sugar plantation. There is only one set of books for the sugar department. In the timber department the labour force is 135; in the sugar department it is 1,400.

During the financial year 1967 the Company incurred capital expenditure to the extent of Shs. 1,601,579/- on the construction of an irrigation system on its land. The Commissioner allowed a deduction of 12½ per cent on the capital expenditure by way of a "wear and tear" allowance on machinery under paragraph 9 (2) (iii) of Part II of the Second Schedule to the East African Income Tax Management Act (Cap. 24) (hereinafter referred to as the Act). The Company contended that the Commissioner should have allowed a deduction of 20 per cent by way of deduction on "farm works" on agricultural land under paragraph 25 of the Part IV of the Second Schedule to the Act.

Similarly during the financial year 1967 the Company incurred capital expenditure to the extent of Shs. 144,707/- in the purchase and installation of machinery in buildings of the sugar mill and the necessary alterations thereto. The Commissioner refused any deduction for such capital expenditure on the ground that the Company was engaged solely in the trade of husbandry, that is to say, the growing of sugar cane, and the manufacture and processing of sugar cane into refined sugar was only part and parcel of the trade of husbandry and therefore the Company was not entitled to any investment deduction in respect of such capital expenditure. The Company claimed that it was engaged

in two separate and distinct trades, that of growing sugar cane and that of the manufacture and refining of sugar which constitutes the subjection of goods or materials of local origin to a process, within the meaning of paragraph 27 (*e*) of Part V of the Second Schedule to the Act. The Company claimed an "investment deduction" of 20 per cent of the capital expenditure in terms of paragraph 27 (*e*) (ii) of Part V of the Act.

I will deal with the irrigation system first. The irrigation system consists of a caterpillar diesel engine, apparently housed in a building, linked to a pump which is fixed to the ground, and a series of interconnected pipes of diminishing sizes and dimensions ending in a network of sprinklers connected at intervals to the pipes of the smallest dimensions. The pipes are all above ground and can be disconnected and moved about. The diesel engine is the prime mover, and operates the pump which draws water from a river and by the operation of its valve it pumps and forces water through the series of interconnected pipes to the sprinklers which irrigate about 2,000 acres of the sugar plantation. The Commissioner submitted that the irrigation system constitutes but one unit and is machinery coming under paragraph 9 (2) (iii) of Part II of the Second Schedule to the Act, entitling the Company to an allowance of 12½ per cent for wear and tear. The Company contended that apart from the diesel engine which is machinery, the rest of the equipment is "farm works" within the meaning of paragraph 25 of Part IV of the Second Schedule to the Act and qualifies for a 20 per cent deduction. Machinery is defined in paragraph 34 of Part VI of the Second Schedule to the Act as–

> "34. (1) In this Schedule, except where the context otherwise requires–
>
> 'Machinery' includes ships and plant used in carrying on any trade",

"Farm works" is defined in paragraph 26 of Part IV of the Second Schedule to the Act as–

> " 'farm works' means farmhouses, labour quarters, any other immovable buildings necessary for the proper operation of the farm, fences, dips, drains, water and electricity supply works other than machinery, wind-breaks, and other works necessary for the proper operation of the farm."

In Auckland City Corporation v. Auckland Gas Co. Ltd., [1919] N.Z.L.R. 561 at p. 586, quoted in *Words and Phrases Legally Defined* (2nd ed.):

> "a machine in its popular sense is a piece of mechanism, which by means of its inter-related parts, serves to utilise or apply power, but does not include anything that is merely a reservoir or conduct, although connected with something which is without doubt a machine."

The trial judge found that the components of the irrigation system were severable and he divided them into three sections, the diesel engine, the pump and the pipes and sprinklers. He found that the diesel engine was machinery, but that the pump and the pipes and sprinklers were "farm works". In the course of this appeal, Mr. Wilkinson for the Company conceded that the pump would be "machinery". That would leave for decision only the pipes and sprinklers. Reading "farm works" as defined in paragraph 26 of Part IV of the Second Schedule to the Act, especially the phrase "water and electricity supply works other than machinery", I am satisfied that the pipes and sprinklers must be farm works. "Water . . . supply works other than machinery" must connote the means or conduits by which water is carried, just as ". . . electricity supply works other than machinery" must connote the cables and lines and posts by which electricity is carried. Mr. Khaminwa for the Commissioner referred to an unreported case of this Court being *Customs and Excise v. Elliot's Bakeries Ltd*., Kenya C.A. 47 of 1970 where it was held that baking pans were an integral part of the bread baking machinery. In that case the pans were regarded as

part of the machine because the machine could not operate without them. Here the facts are different. The engine and the pump could extract and pump water from the river without the pipes and sprinklers, the water pumped out could be carried away in wagons or flow away to the fields through channels. I agree with the trial judge that the irrigation system here is severable, between what is machinery and farm works, although the system is operated as one unit. This does not necessarily conflict with the wide definition of machinery in paragraph 34 of Part VI of the Second Schedule to the Act because this definition contains the words ". . . where the context otherwise requires".

I now come to the issue whether the Company was engaged solely in the trade of husbandry, that is the growing of sugar cane was the main and substantial trade, with the manufacturing and refining of sugar being only an ancillary and incidental part of such husbandry, or whether the Company was engaged in two separate and distinct trades, that of growing and planting sugar canes and that of manufacturing and processing and refining sugar from sugar canes. Mr. Khaminwa for the Commissioner relied on the case *Commissioner General of Income Tax v. Kiganga Estates Ltd*., [1968] E.A. 464 for the proposition that the Company was only carrying on one trade, that of sugar planting husbandry. He submitted that as the sugar factory was situated on the sugar plantation the presumption must be that the trade of manufacturing and refining sugar from sugar cane was only ancillary to that of growing sugar.

Trade is defined in s. 2 of the Act as–

> " 'trade' includes every trade, manufacture adventure or concern in the nature of trade."

It is thus clear that the manufacture and refining of sugar is a trade, the only question being whether it is a separate and distinct trade or is merely a part of the trade of husbandry. In dealing with such a question, the particular facts of each case have to be looked at, and ultimately it is a question of degree.

In this case the sugar mill cost Shs. 10,000,000/-, a not inconsiderable sum. It has a labour force of 300, of whom 20 to 25 are highly skilled. It has chemist analysts, engineers, samplers and highly specialized sugar experts imported from Mauritius. The process of manufacturing and refining sugar is highly complex and technical, involving liming, sulphuration, clarifying, heating, boiling, crystallisation and so on. It is true that, in the sugar mill, the rendering of sugar cane from the fields into refined sugar is a continuous, extensive and complex process. However the sugar mill has been purchasing sugar cane from other growers on an increasing scale: in 1966 it was 3.3 per cent; in 1967 it was 4.9 per cent and in 1968 it was 10.5 per cent. In terms of cash the purchases of outside sugar cane were as follows – in 1967 it was Shs. 99,839/-; in 1968 it was Shs. 186,553/-; in 1969 it was Shs. 280,400/- and in 1970 it was Shs. 434,236/-. It is a considerable undertaking in its own right. This case is easily distinguishable from the *Kiganga Estates* case. In that case it was agreed that the Kiganga Estates was only carrying on one business, which was the growing and preparing to marketable stage of tea, and that all of such activities were "for the purposes of husbandry". In the instant case the Company claims it is carrying on two separate and distinct trades. In the *Kiganga* case there was no evidence whether the preparation of tea grown on the estate to a marketable stage was a complex process or not. It would seem that the drying of tea leaves and its process to a marketable stage must be comparatively a simple operation. The processing, manufacturing and refining of sugar is a highly technical, delicate and complex process. There was no evidence in the *Kiganga* case that the Estates bought any tea grown from other tea growers for processing, whereas in the instant case there is evidence that the Company was purchasing sugar cane from other sources for processing into refined sugar. From the evidence adduced the sugar

mill of the Company could exist by itself by processing sugar cane from other sources without necessarily relying on sugar canes grown on the Company's land. It would appear that the situation was different in the *Kiganga* case.

Mr. Khaminwa submitted that the Company has admitted that its main trade was husbandry. I have perused the passages in the proceedings referred to by Mr. Khaminwa as supporting that proposition, but with respect, I cannot find any such admission. The Company has consistently asserted that it has two separate and distinct trades. It is true that there was only one set of accounts covering both the sugar cane growing and the manufacture of refined sugar, but it is not necessary to have two separate sets of accounts to establish two separate trades, see *Commissioner of Inland Revenue v. William Ransom & Son Ltd*., 12 T.C. 21. Taking all the facts into consideration, and considering the size, investment, complexity and independent standing of the sugar mill, I am of opinion that the manufacturing of refined sugar, that is, the subjection of goods or materials of local origin to a process, was a separate and distinct trade from that of sugar cane growing. As I have said earlier, in deciding such a matter, it is a question of degree. I believe that the Company was carrying on its processing activities in the sugar mill separate from its sugar cane growing activities. As was said by Newbold, P. in the *Kiganga Estates* case–

> "In different circumstances, for example, if the company carried on its processing activities in the factory quite separate from its growing activities, the company might be said to be carrying on the trade of processing local material. . . ."

Before concluding I think I should comment on an observation made by Mr. Wilkinson in the course of arguing his appeal. He laid particular stress on a ministerial statement in Parliament as indicating the intention of the Legislature on the construction of the Act. I doubt whether such a statement could influence a court in the construction of an enactment. I would have thought the intention of Parliament should be ascertained from the enactment and legislation itself.

The Company has rightly conceded that the pump is machinery. I would amend the judgment and decree of the High Court accordingly. Apart from this amendment I would affirm the judgment and decree of the High Court, and would dismiss the appeal.

The Commissioner has succeeded on the minor issue of the pump. In the circumstances I would award the Company seven eighths of the costs of the appeal. I would certify for two advocates.

Spry V-P: I agree.

Sir William Duffus P: I agree with the judgment of Mustafa, J.A. and as Spry, V.-P. also agrees, the appeal is dismissed with costs and the judgment of the High Court amended in accordance with the order set out in the judgment of Mustafa, J.A.

Appeal dismissed.

For the appellant:
JM Khaminwa (Deputy Counsel to the Community) and *BMK Bishota* (Principal Assistant Counsel)

For the respondent:
PJ Wilkinson QC and *Ponda* (instructed by *Donaldson & Wood*, Dar es Salaam)

Attorney-General v Oluoch
[1972] 1 EA 392 (CAN)

Division: Court of Appeal at Nairobi

Date of judgment:	8 September 1972
Case Number:	41/1972 (145/72)
Before:	Spry Ag P, Lutta Ag V-P and Mustafa JA
Sourced by:	LawAfrica
Appeal from:	The High Court of Kenya – Chanan Singh, J

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[1] Constitutional Law – Government immunity – Judicial officers – No liability of Government for acts in purported discharge of judicial functions – Government Proceedings Act (*Cap.* 40), *s.* 4 (5) (*K.*).

[2] Police – Warrant – Execution of – Warrant apparently legal – Position of police officer – Police Act (*Cap.* 84), *s.* 15 (2) (*K.*).

Editor's Summary

The respondent claimed damages against the appellant for wrongful arrest and wrongful detention in respect of the actions of two magistrates and two police officers.

It was clear from the plaint that the magistrates were acting as magistrates and the police officers were executing their warrants. There was no allegation that they had not acted in good faith.

The judge refused to strike out the claim and the appellant appealed.

Held – no suit lies against the Government in respect of acts done in the discharge or purported discharge of judicial functions.

Observations of the court on:

(*a*) the necessity for alleging bad faith in a suit against a judge or magistrate; and

(*b*) the position of a police officer executing an apparently lawful order or warrant.

Appeal allowed. Plaint struck out.

Case referred to in judgment:

(1) *Jeraj Shariff & Co. v. Chotai Fancy Stores*, [1960] E.A. 374.

Judgment

The following considered judgments were read. **Spry Ag P:** The respondent (to whom I shall refer as "the plaintiff") filed a suit in the High Court, claiming damages for wrongful arrest and wrongful detention. He named five defendants, of whom the first was the Attorney-General, the appellant in the present appeal.

Of the defendants, the Attorney-General is the only one so far to have been served. He entered a conditional appearance and then filed a notice of motion, claiming that the plaint disclosed no cause of action against him and asking that it be struck out and that the suit be stayed or dismissed as against him. The judge dismissed the application with costs and it is against that decision that the present appeal is brought.

The plaint alleged that the second and third defendants were, at the material time, district magistrates and the fourth and fifth defendants, police officers. It alleged that on or about 20 August

1971, a certain Samwel Nyamolo had

sworn an affidavit before the second defendant to the effect that the plaintiff had taken away Samwel's wife. The plaint went on to allege that on 21 August the second defendant had issued a search warrant to the officer-in-charge of the Central Police Station requiring him "to seize and take possession of the plaintiff and one Margret Juma". It alleged that on 27 August the fourth and fifth defendants "purporting to act on the said search warrant unlawfully and without any reasonable cause arrested and detained the plaintiff . . .". It then alleged that although no charge had been preferred, the second defendant refused to release the plaintiff on bail or bond and "unlawfully" committed him to confinement in a certain remand home. It alleged that on 30 August, the plaintiff was taken before the third defendant, who, although no charge had been preferred, "unlawfully and without any reasonable cause or excuse" committed him to the Ofafa Police Station. It alleges that on 31 August, the plaintiff again appeared before the second defendant who again committed him to police custody. It alleges that he appeared before the third defendant on 2 September and was again "unlawfully" committed to police custody. Finally, on 3 September, he was released on bond by the senior resident magistrate, although he was required to appear again before the second defendant on various dates.

The Attorney-General was, of course, sued as the representative of the Government, it being alleged that the Government was vicariously liable for the torts of the other defendants.

The basis of the Attorney-General's case was that the suit could not succeed against him, since the Government was protected by s. 4 (5) of the Government Proceedings Act (Cap. 40), which provides:

> "(5) No proceedings shall lie against the Government by virtue of this section in respect of anything done or omitted to be done by any person while discharging or purporting to discharge any responsibilities of a judicial nature vested in him, or any responsibilities which he has in connection with the execution of judicial process."

He also placed considerable reliance on s. 6 of the Judicature Act (Cap. 8), which reads as follows:

> "6. No judge, magistrate or justice of the peace, and no other person acting judicially, shall be liable to be sued in any civil court for any act done or ordered by him in the discharge of his judicial duty, whether or not within the limits of his jurisdiction, provided he, at the time, in good faith believed himself to have jurisdiction to do or order the act complained of; and no officer of any court or other person bound to execute the lawful warrants, orders or other process of any judge or such person shall be liable to be sued in any court for the execution of any warrant, order or process which he would have been bound to execute if within the jurisdiction of the person issuing the same."

The judge seems to have been greatly influenced by the repeated use in the plaint of the word "unlawfully". He thought the complaints should be fully investigated and remarked that this could only be done if the other four defendants were served and heard. He questioned whether he should or could strike out the plaint at that stage. His order gives the impression, although this may not have been intended, that he thought he was dealing with the suit as a whole.

Mr. Otieno, for the plaintiff, supported the judge's decision, arguing that it was only when the evidence came to be heard that it would be possible to say whether any or all the acts of the defendants had been lawful. He argued that any interference with liberty had to be justified and submitted that the fact that no charge had been preferred raised a presumption of illegality. He argued that whether or not the magistrates had acted "in good faith" could only be

decided on evidence and that the statutory protection afforded to police officers applied only where they were acting on a warrant "lawfully" issued.

I think that this appeal can be disposed of very simply, although out of courtesy I will deal with some of the arguments raised before us which are not, I think, necessary to the decision. In deciding whether or not a suit discloses a cause of action, one looks, ordinarily, only at the plaint (*Jeraj Shariff & Co. v. Chotai Fancy Stores*, [1960] E.A. 374) and assumes that the facts alleged in it are true. It seems to me clear that the plaint in the present suit alleges that the second and third defendants were magistrates and that in all relevant matters they were acting as such, and that the third and fourth defendants were police officers and were acting as such in obedience to a warrant issued by a magistrate. Assuming these facts to be true, this appears to me to be a case exactly covered by s. 4 (5) of the Government Proceedings Act and one in which, in law, no proceedings lie against the Government. For the purpose of this appeal, we are not concerned with the question whether or not the warrant was rightly issued, or the various committal orders rightly made. Similarly, we are not concerned with the question whether any right of action has been disclosed as against the other defendants. I think, therefore, with respect, that the judge was wrong in dismissing the application and that the appeal must succeed.

Mr. Harwood, who appeared for the Attorney-General, relied also, as I have said, on s. 6 of the Judicature Act and he cited s. 27 of the Government Proceedings Act as entitling him to invoke it. With respect, I do not think that s. 27 is relevant or necessary for the purpose. It is, in my opinion, always open to a person who is sued for vicarious liability to show that no action lies against the person for whom he would be vicariously liable. It would appear, though I prefer to express no firm opinion on this since it is unnecessary for this appeal, that s. 6 affords a full protection to the second, third, fourth and fifth defendants, and consequently to the Attorney-General, since the plaint contains no allegation that the defendants, or any of them, were acting otherwise than in good faith.

Mr. Otieno submitted that the evidence at the trial might disclose a lack of good faith and argued that the plaint was sufficient to allow the introduction of such evidence. With respect, I cannot agree. I think it is clear from O. 6, r. 42, that lack of good faith, like malice, must be pleaded, although it is sufficient merely to allege it as a fact. The lack of good faith, in proceedings such as these, goes to the root of the cause of action, since if the defendants were acting in good faith, there is no liability.

There is one other matter that I think I should mention. Mr. Otieno drew our attention to s. 15 (2) of the Police Act (Cap. 84), which provides that a police officer shall:

> "promptly obey and execute all orders and warrants lawfully issued to him . . ."

and argued that the use of the word "lawfully" in that subsection and the reference to "lawful warrants" in s. 6 of the Judicature Act, means that police officer is not protected if a warrant is unlawful. With respect, I can only agree to a very limited degree. A police officer is, in my opinion, not required or entitled to question a warrant issued to him by a magistrate unless there is something patently unlawful on the face of it. A police officer would not be protected if he executed a warrant or order requiring him to commit some criminal act, but if a warrant is, on the face of it, usual and proper, the officer will be protected even though the warrant ought not, in law, or on the facts, to have been issued.

As the other members of the Court agree, it is ordered that the appeal be allowed. The order of the judge is set aside and there is substituted an order that the suit be dismissed as against the Attorney-General. The Attorney-General is awarded his costs of the appeal and his costs in the High Court.

Lutta Ag V-P: I agree and I would only add a few remarks. I think that public policy does require that a person acting judicially or who is executing the lawful warrants or process of the Court should not be sued for any act done or ordered by him in the lawful discharge of his duties. It seems to me that this is necessary if such a person is to perform his duties without fear of harassment by those who may feel aggrieved by his acts. In this case the two magistrates were, in the course of their duties, discharging responsibilities of a judicial nature and the two police officers were discharging responsibilities connected with the execution of judicial process. In my view, s. 4 (5) of the Government Proceedings Act provides protection for such persons and I would therefore in the circumstances agree with the Acting President that this appeal must be allowed.

Mustafa JA: I have read and agree with the judgment of the Acting President.

Appeal allowed.

For the appellant:
G Harwood (Senior State Counsel)

For the respondent:
SM Otieno

Sadolins Paints Ltd v Wali Mohamed & Co
[1972] 1 EA 395 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	13 October 1971
Case Number:	652/1971 (56/72)
Before:	Miller J
Sourced by:	LawAfrica

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[1] Civil Practice and Procedure – Summary judgment – Possession of premises – Claim for – Plaintiff entitled to use summary procedure – Civil Procedure (*Revised*) *Rules* 1948, *O.* 35, *r.* 2 (*K.*).

[2] Civil Practice and Procedure – Summary judgment – Leave to defend – Defendant must show facts entitling him to defend and not state law.

Editor's Summary

The plaintiff applied for summary judgment for possession of premises from its tenant to whom it had given notice to quit. The defendant alleged that it was protected by the Landlord and Tenant (Shops, Hotels and Catering Establishments) Act (Cap. 301) but gave no facts on which the court could ascertain whether its occupation came within that Act.

Held –

(i) a claim for summary judgment for possession of premises is competent (*Momin's Corp.* (*U.*) *Ltd. v. Jiwani* (2) followed);

(ii) no facts were given from which it could be seen that the defendant had any defence.

Judgment for plaintiff.

Cases referred to in judgment:

(1) *N.A.S. Airport Services v. A.G.*, [1959] E.A. 58.

(2) *Momin's Corp*. (*U*.) *Ltd. v. Jiwani*, [1946] E.A. 244.

(3) *Kashibai v. Sempagama*, [1967] E.A. 16.

(4) *Premchand Raichand v. Quarry Services*, [1969] E.A. 517.

(5) *Hirani v. Ramji Mepa*, [1971] E.A. 332.

Judgment

Miller J: This is an application by way of motion under O. 35, rr. 2 and 3 in which the plaintiff prays that judgment be entered against the defendant for the possession of a portion of land upon which there is a godown and an office used by the defendant as a heavy manufacturing workshop leased to the defendant upon a monthly tenancy at the rent of Shs. 950/-. It is common ground that the defendant's occupancy of the premises is under a written agreement which provides that the tenancy may be determined at any time by one calendar month's previous notice in writing given by either party; and that the plaintiff issued a notice to the defendant on 29 March 1971. In the filed defence the defendant company contended that – "This Honourable Court has no jurisdiction to entertain the claim for possession as the tenancy of the premises in question subject-matter of the suit is controlled within the provisions of The Landlord and Tenant (Shops, Hotels and Catering Establishments) Act (Cap. 301) as amended by Act No. 2 of 1970 and the defendant is entitled to protection under the said statutes and all remedies and actions in respect of controlled tenancies fall within the purview and jurisdiction of the Tribunal constituted thereunder; and that in spite of the plaintiff's notice to quit the defendant's continued possession does not render the defendant a trespasser in law." It has been urged on behalf of the plaintiff that the defendant's counter-affidavit to that of the plaintiff in support of the motion does not disclose a good defence on the merits as required by O. 35, r. 2 . . . "The Court may, unless the defendant by affidavit or otherwise, shall satisfy it that he has a good defence on the merits, or discloses such facts as may be deemed sufficient to entitle him to defend, pronounce judgment accordingly." Counsel for the plaintiff conceded that the suit premises are in fact being used as a heavy engineering workshop but submitted that this use does not bring the premises within the ambit of the Landlord and Tenant (Shops, Hotels and Catering Establishments) Act (hereinafter referred to as the Act). He has attacked the defendant's counter-affidavit on the following grounds:

(1) That the defendant does not state the purpose for which the premises are used, therefore there are no alleged facts at which the Court can look in order to decide whether or not there is a good defence on the merits, and

(2) That the affidavit fails to state the source of information in respect of paragraphs 2 and 4 thereof, and

(3) That the defence itself states no facts except a bald statement of law.

The defendant's affidavit is as follows:

(1) I am the manager of the defendant's firm and I have been duly authorised to make this affidavit.

(2) I have read an affidavit purporting to have been sworn by the managing director of the plaintiff's company in support of the application for summary judgment and I have been advised by my firm's advocates which I verily believe to be correct that an application such as present does not lie in law for recovery of possession and also that the affidavit verifying the cause of action is bad in law.

(3) Without prejudice to the foregoing I have been advised and I verily believe it to be so that this application ought not to have been filed in the face of the triable issues disclosed in the defence on merits filed prior thereto which defence will be referred to at the hearing.

(4) I reiterate that the premises irrespective of the tenancy agreement fall within the ambit of the Landlord and Tenant (Shops, Hotels and Catering Establishments) Act and they are occupied by the defendant for the purposes mentioned in the definition of "Shop" under the said statute.

> Annexed hereto is a photostat copy of the Retail Licence dated 23 July 1970 issued to the defendant's firm in respect of the premises in question.
>
> The facts deponed in paragraphs 1 and 3 are true and within my own knowledge whereas the other facts are true to the best of my knowledge, information and belief.

It is correct to say that in the filed defence there are no opposing facts stated; the defence hinges upon the portion thereof set out. With respect to the first objection to the defendant's counter-affidavit the defendant must be heard to say therein: "the premises are occupied by the defendant for the purposes mentioned in the definition of "Shop" under the statute, i.e. "wholly or mainly for the purpose of a retail or wholesale trade or business or for the purposes of rendering services for money or money's worth" and by annexing a copy trade licence under The Trade Licensing Act 1967 it would appear that it was intended to show the type of undertaking actually being conducted on the premises within the definition of "Shop". The Court observes that in the licence the type of business is not mentioned; the space after the words – "is hereby licensed to conduct the business of", is left blank, and under the heading "Special conditions under section 5 of the Act", appear the words "Not allowed to deal in specified goods". Counsel for the plaintiff has urged that the exhibiting of the trade licence is not of itself indicative of the fact that business is actually being carried on and in the light of the omission on the exhibit referred to above I find the licence useless in support of determining whether the business conducted on the premises falls within the category of any of the undertakings which comprise the definition of "Shop".

The definition of "Shop" is not as simple as may appear; it is not a mere question of showing that there is a business enterprise being conducted in or upon certain premises; one must go further and show the nature and degree of the enterprise in order to satisfy the purposes of the Act; accordingly much judicial consideration may be necessary in arriving at a conclusion in relation to the phrase – "wholly or mainly for the purposes of". So also the Court may be called upon to decide whether or not several or separate buildings and even a building which is not used for serving customers can be construed as "shop" or necessary parts thereof. I do not think that the fact that an undertaking has the word "shop" incorporated in its name or classification, e.g. "Theatre workshop" that one is empowered to conclude as a matter of general or local notoriety that the undertaking is a shop within the definition and the objects and reasons of the Act. I have perused *Hirani v. Ramji Mepa*, [1971] E.A. 332 in which Trevelyan, J. was at pains and with much industry to extract from English decided cases the basis of reasoning when construing premises as "shop" but I think I should limit myself to determining whether the defendant has satisfied the court "that he has a good defence on the merits, or has disclosed such facts as may be deemed sufficient to entitle him to defend". I may be wrong but I think that whichever way the filed defence is read it amounts to saying no more than – "I will show the trial court that I am protected by the Act"; and the affidavit repeats this and in effect says to the Court – "You look at the definition of the word "shop" in the Act, that definition gives me a good defence on the merits and entitles me to defend". By the provisions of O. 6, r. 27 a party is entitled to raise a point of law in his pleading as was done in the filed defence but the question arises whether or not it is sufficient for the defendant in answer to the present application to point to the definition of "shop" in the Act and no more. It is clear that quite a variety of undertakings can qualify as shops within the definition in the Act and it appears to me to be incumbent upon a party claiming to be protected by that definition to assist the court by even the briefest statement of fact and not to leave the court to guess as to which of the various

categories of shop his undertaking belongs and if at all. In *Kashibai v. Sempagama*, [1967] E.A. 16 it was held that where points of law are pleaded in a defence particulars must be given. This rule was further explained by Windham, J.A. in *N.A.S. Airport Services v. A.G.*, [1959] E.A. 58 when commenting upon O. 6, r. 27. "Clearly the object of the rule is expedition. But to achieve that end the point of law must be one which can be decided fairly and squarely, one way or the other on facts agreed or not in issue on the pleadings, and not one which will not arise if some fact or facts should be proved; for in such a case the short-cut, as is often the way with short-cuts, would prove longer in the end".

It has already been pointed out that the trade licence annexed to the defendant's affidavit fails to evidence the probable fact it was perhaps intended to convey. Counsel for the defendant has clearly not overlooked the proposition of the need for facts in the affidavit and he met this by submitting as follows: "We are not here to give evidence; plaintiff should have asked for particulars. We have admitted 'office and workshop premises'. We are not here seeking an interpretation of the Act on which we rely. I submit we are within the definition of shop in the Act. I refer to paragraph 4 of our affidavit and submit that we have satisfied the test of sufficient facts. This is all we need do at this stage." I may again be wrong; but it is my opinion that in the circumstances of this case and on the pleadings the disclosure of facts in support of the submission of being "within the definition of shop" was necessary to an evaluation of the defence – "a good defence". Counsel for the defendant also attacked the plaintiff's affidavit as being bad in law in that it did not say, e.g. "the defendant is indebted to me in the sum of £X" and therefore it offended the combined interpretational consideration of the phrase – "to recover a debt or liquidated demand" in rule 2 of O. 35 and r. 2 (*e*) of that Order and that the plaintiff thereby failed to verify the cause of action. It is enough to point out that this proposition was fully discussed by Sheridan, J. (as he then was) in *Momin's Corp.* (*U.*) *Ltd. v. Jiwani*, [1964] E.A. 244. The judgment makes it clear that the phrase "and the amount claimed (if any)" appears to refer to a judgment other than for a liquidated amount whereas it is inconceivable that the plaintiff's claim for a liquidated amount in an action for recovery of land would be other than rent or mesne profits. The apparent conflict in the provisions of the Order has been designated to faulty drafting and I cannot adopt this view. Plaintiff's counsel also stressed the fact that in the defendant's affidavit and in relation to paragraphs 2 and 4 thereof the defendant said those "facts are true to the best of my knowledge, information and belief", without stating the source of information. Defence counsel did not advance any argument in relation to this aspect of the matter and I apprehend that it may be contended in these circumstances that knowledge, information and belief are so inextricably bound up that information results in knowledge. But I think that even if this is the case, belief may be proved erroneous depending upon the information which gave it birth and it is perhaps for this as well as other reasons that in *Premchand Raichand v. Quarry Services*, [1969] E.A. 517 the Court of Appeal in nigh mandatory and cautioning manner observed: "It has repeatedly been said by this Court that affidavits based on information must disclose the source of information." I think it is fair to say that the determination of this application turns almost entirely on the pleadings for the purposes of the application of O. 35, rr. 2 and 3. Bearing in mind the history, objects and reasons which prompted the promulgation of the Act this court is very reluctant to grant applications which may deprive a litigant of the opportunity of presenting his case to the Tribunal created by the Act if only he appears to be so entitled. But there is nothing in the Act tending to suggest that a landlord is precluded from recovery of his premises because of the mere existence of the Act. I believe it is for the tenant to seize hold of the umbrella which the Act provides at the earliest possible opportunity and in proper form.

The power of the court in an application as this is discretionary and subject to correction, it appears to me that the proposal to show the court at the trial of the suit that the defendant is protected by the Act has perhaps unwittingly yet substantively been placed before the court by the defence in this application in paragraph 4 of the defendant's affidavit. For the above reasons I find it difficult to arrive at a decision other than that the defendant has failed to satisfy the Court that there is a good defence on the merits. There will be judgment for the plaintiff as prayed in the plaint together with the costs of this application.

Order accordingly.

For the plaintiff:
WS Deverell (instructed by *Kaplan & Stratton*, Nairobi)

For the defendant:
YP Vohra

Motichand v Republic
[1972] 1 EA 399 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	3 March 1972
Case Number:	21/1972 (84/72)
Before:	Muli J
Sourced by:	LawAfrica

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[1] Appeal – Bail pending appeal – Probability of success of appeal – Effect of other factors.

Editor's Summary

The appellant had been convicted of handling stolen property and sentenced to the minimum of seven years imprisonment. He applied for bail pending appeal, contending that there was an overwhelming likelihood of his appeal succeeding and that there were exceptional factors in his previous good character, the probable delay in the hearing of the appeal, the hardship he would suffer and his ability to give recognisances for his appearance.

Held –

(i) it is sufficient if the appellant demonstrates a probability of success on appeal rather than an overwhelming probability of success (*Mansurali Hasham v. Republic* (4) and *Achieng v. Republic* (7) followed; *Lamba v. R.* (3) not followed);

(ii) all other grounds, if taken alone, would not suffice, but taken together suffice to allow bail.

Application allowed.

Cases referred to in judgment:

(1) *R. v. Starkie* (1932), 24 Cr. App. R. 1.

(2) *R. v. Akberali Juma Kanji* (1946), 22 (1) K.L.R. 17.

(3) *Lamba v. R.*, [1958] E.A. 337.

(4) *Mansurali Hasham v. Republic*, H.C. Cr. App. 582 of 1967 (unreported).

(5) *Jetha v. Republic*, H.C. Cr. App. 938 of 1968 (unreported).

(6) *Chimambhai v. Republic* (No. 2), [1971] E.A. 343.

(7) *Achieng v. Republic*, Misc. Cr. App. 2 of 1971 (unreported).

Judgment

Muli J: This is an application by way of chamber summons for bail pending appeal under the provisions of s. 357 (1) of the Criminal Procedure Code. The petition of appeal has been filed and I have jurisdiction to

hear this application *de novo* notwithstanding that the appellant unsuccessfully applied to the trial magistrate to be released on bail pending the entering of his appeal.

The applicant was jointly charged with seven others and was convicted of the alternative charge of handling stolen property contrary to s. 322 (1) of the Penal Code. His co-accused in the alternative charge was acquitted but the appellant was convicted and sentenced to the minimum sentence of 7 years' imprisonment with hard labour. There were eight accused in the case. Six including the applicant were convicted. I am informed that the other accused persons may have filed their appeals and that the record of the proceedings in the lower court may take considerable time to compile.

The petition of appeal filed on behalf of the appellant appears to me to attack the judgment of the trial magistrate essentially on points of law. This being so the appeal is not the type envisaged under the provisions of s. 352 (2) of the Criminal Procedure Code and which may be summarily dismissed.

Mr. Kapila who appeared for the appellant advanced five grounds on which he relied in support of this application. Firstly, that the pending appeal has overwhelming likelihood of success; secondly, that the lapse of time between now and the hearing of the appeal is likely to be long to the detriment of the appellant in the event that his appeal succeeds; thirdly, that the appellant's previous good record and character should be taken into account; fourthly, the hardship likely to be suffered by the appellant, if bail is refused, will be irreparable in the event that his appeal succeeds and fifthly, that, the appellant's ability to provide adequate bail and ensure his attendance at the hearing of his appeal should be considered along with other circumstances.

The authorities on the point appear to have established the principle that bail pending an appeal should only be granted on grounds of exceptional, special or unusual reasons appearing in the case. Exceptional, special or unusual reasons is not a phrase of art so that each must inevitably be determined on its own merits having regard to the circumstances of each particular case.

Applying this principle, the onus is on the appellant to demonstrate exceptional, special or unusual reasons which would rebut the presumption which is always against the appellant, after conviction, that a man who has been convicted has been properly convicted until the conviction is set aside by an appellate Court. I am not sitting as a court of appeal to hear the appellant's appeal on its merits and consequently I cannot predict the outcome of his appeal. However, the law recognises the possibility of admission to bail pending an appeal.

Mr. Kapila for the appellant relied on the recent cases of *Mansurali Hasham v. Republic*, H.C. Cr. App. 582 of 1967 (unreported), *Jetha v. Republic*, H.C. Cr. App. 938 of 1968 (unreported), and *Chimambhai v. Republic* (No. 2) [1971] E.A. 343 in each of which the appellant was granted bail pending the hearing of his appeal. In his decision in *Chimambhai's* case following the decision in *R. v. Akbarali Juma Kanji* (1946), 22 (1) K.L.R. 17 Harris, J. held that:

> "anticipated delay in the hearing of the appeal together with other factors could constitute good grounds for granting bail pending appeal."

Mr. Rao, the Assistant Deputy Public Prosecutor, opposed the application relying on *Lamba v. R.*, [1958] E.A. 337, *H. K. Jetha's* case and *Achieng v. Republic*, Misc. Cr. App. 2 of 1971 (unreported). Mr. Rao suggested that the decision in *Chimambhai's* case tended to dilute the test laid down in *Lamba's* case.

I will now deal with the grounds. As regards the first ground presented by Mr. Kapila, namely that of the overwhelming likelihood of success of the appeal,

I will say no more than this that, having perused the petition of appeal and the judgment of the trial magistrate coupled with careful analysis of the submission of both counsel, I formed the opinion that the pending appeal may very well have overwhelming probability of success if not a probability of success. Madan, J. in *Mansurali Hasham's* case while allowing bail said:

> "I am conscious that it must be shown there is an overwhelming probability of success. I accept this for I am bound to accept it by reason of it having been said by a higher court; speaking for myself, I would respectively say that the expression overwhelming is far too stringent an onus to discharge and places far too heavy burden upon an applicant. It should suffice if the applicant is able to demonstrate a probability of success."

He did not follow the decision in *Lamba's* case. Trevelyan, J. in *Achieng's* case while refusing bail said:

> "I agree that it would be right to consider the chances of appeal succeeding but the presumption of course is that a man who has been convicted has properly been convicted and he cannot at this stage say from the record that the chances are that the appellant will almost inevitably or even probably succeed. I am not now sitting as a court of appeal."

I am not bound by the decision in *Lamba's* case. I think I am free to adopt the test of probability of success as adopted by Madan and Trevelyan, JJ.

The prospects of the appeal appear to me to reach the realm of overwhelming probability of success. I will say no more than this. If the test in *Lamba's* case were to apply, it would virtually mean that in all the application for bail, the overwhelming probability of success of the appeal must be conclusively demonstrated. In doing so, it would be tantamount to constituting the court hearing the application for bail, a court of appeal. In addition it would be tantamount to deprivation of the fundamental rights and freedoms of the individual to his liberty of which the Constitution of the Republic of Kenya enjoins except as may be authorised by law. S. 357 permits the admission to bail pending an appeal and I see no justification in applying too stringent a test to defeat this statutory provision. But even if there cannot be said to be exceptional circumstances, there may be a combination of factors which, in their totality will amount thereto. Are there any such factors here?

The next ground was the delay likely to occur before the appeal comes for hearing. I am informed that the record of the proceedings and the likelihood of the appeals of other accused being consolidated with the appellant's appeal, may result in a considerable delay which will be to the detriment of the appellant in the event that his appeal succeeds.

Following the decision in *R. v. Starkie* (1932), 24 Cr. App. R. 1 I would not be led to grant the bail on this ground alone.

The next ground was the appellant's good record. It is not in dispute that he was a first offender. As Trevelyan, J. said in *Achieng's* case that

> "while I doubt the applicability of the circumstances of this case of the appellant being a first offender, if I bear in mind, it would not alone or with other facts lead me to allow the bail."

I accept this proposition and hold that the mere fact that the appellant is a first offender, this alone would not be sufficient demonstration of special, unusual or exceptional circumstances to entitle him to admission to bail. Similar arguments obtain in respect of whether the appellant was admitted to bail pending his trial or that he would suffer hardship if bail is refused. These considerations, taken in isolation are not grounds on which bail should ordinarily be granted.

Finally the fifth ground dealt with the ability to provide adequate security and to ensure attendance at the hearing. The danger which the Court must bear in mind when granting bail pending appeal is the possibility of the appellant absconding or committing further offences. I agree with Harris, J. in *Chimambhai's* case that this may be a question of condition to be imposed rather than the granting of the bail itself. This flows from the presumption I have referred to. I am informed that in the present case his passport is in the custody of the police. The question of absconding or committing other offences is an apparent risk which cannot be ruled out altogether; one must simply take it into account.

By taking the totality and cumulative considerations of all the facts of this case, I would in any event feel justified in saying that the appellant has demonstrated the required special, unusual or exceptional circumstances. I would, therefore, allow bail.

It remains for me to impose the conditions or terms. The period of imprisonment is the statutory minimum of 7 years' imprisonment with hard labour. The appellant was on bail before his trial and was aware of the magnitude of the sentence if he was convicted. He nevertheless, travelled between Nairobi and Mombasa to comply with the terms of the bail as well as to attend his trial. He is married with children and a pregnant wife. Having taken all the factors into consideration, I would be prepared to grant bail if the appellant is prepared to surrender his passport and to deposit a sum of Shs. 20,000/- in cash and to provide two sureties, each in respect of the sum of Shs. 10,000/-, such sureties being acceptable to the police or to the Registrar of this Court.

Order accordingly.

For the applicant:
AR Kapila (instructed by *AR Kapila & Co*, Nairobi)

For the respondent:
SS Rao (Assistant Deputy Public Prosecutor)

Kyobe v East African Airways
[1972] 1 EA 403 (CAN)

Division:	Court of Appeal at Nairobi
Date of judgment:	13 June 1972
Case Number:	54/1971 (90/72)
Before:	Sir William Duffus P, Spry V-P and Mustafa JA
Sourced by:	LawAfrica
Appeal from:	High Court of Kenya – Chanan Singh, J

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[1] Contract – Frustration – Service contract – Abolition of statutory office – Effect of.

[2] Master and servant – Contract of service – Frustration – Abolition of statutory office – Effect of.

[3] Master and servant – Contract of service – Notice – No period specified – Reasonable period.

[4] Master and servant – Contract of service – With Corporation and not with Authority – Notice

required.

[5] Master and servant – Contract of service – Termination – No claim for benefits for official use thereafter.

Editor's Summary

The appellant was employed as general manager of East African Airways Corporation under s. 6 of The East African Airways Corporation Act 1963 on a contract which contained no provision for termination. By the East African Airways Corporation Act (Cap. 16) the post of general manager was abolished, and provision was made for the post of director-general who had different powers and status.

A further provision deemed the appointment by the new corporation of all servants of the old corporation.

The appellant was dismissed and paid a sum said to be by way of gratuity and based on his total salary.

On his action the judge decided that the appellant's employment had been wrongfully terminated, that he was entitled to reasonable notice of 6 months and finally that he had already been paid a sum in excess of the damages to which he was entitled.

On appeal the appellant contended that he should have had 12 months' notice, that the payment to him had not been in discharge of the respondent's liability, and that he should have been given damages in respect of loss of the respondent's contribution to the pension fund, leave pay and travelling expenses, free housing and medical treatment and use of car and driver.

The respondent contended that the Authority had power to dismiss at pleasure and that the appellant's appointment had been frustrated by the enactment of the East African Airways Corporation Act (Cap. 16).

Held –

(i) (Spry, V.-P., dissenting) the repeal of the statutory post held by the appellant did not bring his service contract to an end and he was deemed appointed together with other servants (*Reilly v. The King* (1) distinguished)

(by Spry, V.-P.) the rights of one appointed to a statutory office are subject to determination by the abolition of the office;

(ii) the appellant's appointment was by the corporation and not by the authority: accordingly it was not at pleasure;

(iii) on the evidence the judge's finding that six month's notice was reasonable would not be disturbed;

(iv) the payment made to the appellant was in settlement of his claims;

(v) there was no evidence in support of the pension fund claim;

(vi) use of a car and driver was only for official use and therefore no claim lay for a period when the appellant was not working for the respondent.

Appeal dismissed.

Case referred to in judgment:

(1) *Reilly v. The King*, [1934] A.C. 176.

Judgment

The following considered judgments were read. **Sir William Duffus P:** The appellant was general manager of the respondent until 9 December 1967 when his services were terminated. In this action the appellant claims damages for the wrongful termination of his contract.

In a carefully considered judgment the trial judge found that the appellant's appointment had been wrongly terminated and accordingly he would have been entitled to damages but he found that the appellant had already been paid an amount in excess of the damages to which he was entitled and he therefore dismissed the claim. The payment which the judge referred to was the payment of £4,033.15 which the respondent made to the appellant after his dismissal and which was said to be by way of a gratuity calculated on the basis of 25 per cent. of the total amount of salary paid to the appellant during his term of office. The judge also found that the appellant was entitled to reasonable notice which he found to be six months in the particular circumstances of the appellant's contract of service. The judge also dismissed various subsidiary claims made by the appellant arising out of his dismissal and in the end he dismissed the appellant's claim with costs to the respondent Corporation.

The appellant had some twelve grounds of appeal but his main complaints were that the period of notice should have been twelve and not six months and further that the judge was wrong in deciding that the payment of £4,033.15 was a payment which settled or satisfied the appellant's claim for damages. He also submitted that he should have been allowed damages in respect of (i) the loss of the Corporation's contribution to his pension fund (ground 10), (ii) the loss of pension contribution for his earned leave (ground 11), (iii) one month's leave pay and travelling expenseu (ground 12) and during the course of the hearing of the appeal Mr. Waruhiu for the appellant was also allowed to amend his grounds and argued against the judge's refusal to allow damages in respect of (iv) free housing, (v) free medical treatment, (vi) loss of the use of car and driver.

The respondent filed a cross-appeal and this questioned various findings in the judgment. In particular it contended (*a*) that the appellant's appointment was a political one, (*b*) that the appellant was still on secondment from the Uganda Government when he was dismissed, (*c*) that the authority had the power to dismiss the appellant "at pleasure", (*d*) that the appellant's appointment had been frustrated by the enactment of East African Airways Corporation Act, (*e*) that the period of six months' notice was too long.

In determining this appeal it will be first necessary to determine the exact status of the appellant with the respondent Corporation. The present respondent was established under the East African Airways Corporation Act (Cap. 16) which came into force on the 1 December 1967. The appellant's appointment

as general manager was made under the 1963 Act (4 of 1963) but by virtue of s. 29 (1) of the 1967 Act, the assets and liabilities of the Corporation established under the 1963 Act were transferred and vested in the present respondent Corporation. The judge after full consideration of all the facts found that the appellant was employed by the respondent under a contract of service which terminated on 9 December 1967. It would be convenient here to consider the various submissions made by the respondent in its cross-appeal in so far as they affect the status of the appellant with the Corporation. Mr. Sebalu's first submission was that the judge erred in not finding that the appellant held a "political" appointment. With respect I can find no merit on this submission. By the term "political" appointment I gather this means that the appointment of a chairman or director of the respondent was one made on the nomination of the Government of Uganda. Even if this was so, I cannot see how it would have any effect on the appellant's appointment. There was more substance in Mr. Sebalu's submission that the appellant was only seconded from the Uganda Government and that on the termination of his employment with the respondent he would have automatically returned to the service of Uganda Government. The trial judge fully considered this question and decided against the submission. With respect I entirely agree with the judge. The position was not altogether clear when the appellant first took up his duties with the respondent, but, in my view, there can be no doubt that he was definitely appointed general manager of the respondent with effect from 1 September 1964. I would refer here first to the resolution passed by the Board of the respondent at its meeting on 26 August 1964. This resolution as set out in the letter from the secretary to the respondent dated 27 August 1964 stated:

> "THE BOARD RESOLVED
>
> that Mr. Wilson Kyobe be appointed general manager with effect from 1 September 1964 and that the Authority be asked to approve the appointment in the terms of Clause 6 of the East African Airways Act 1963."

And further the letter from the secretary-general to the chairman of East African Airways dated 10 September 1964 setting out the approval of the authority to the appellant's appointment as general manager which stated *inter alia*:

> ". . . I am pleased to inform you that the Authority has approved the appointment of Mr. Wilson Kyobe to be General Manager of the East African Airways Corporation in terms of Clause 6 of the East African Airways Act 1963."

There is also the fact that the appellant ceased to contribute to the pension fund of the Uganda Government and was in fact drawing a pension from Uganda Government and also the fact that he started to contribute to the pension fund of the respondent Corporation.

I can also find no merit in the submission that the Authority could dismiss the appellant "at pleasure". The appellant was employed by the respondent and not by the Authority. The Corporation as established under East African Airways Corporation Act 1963 had all the powers of a body corporate. His appointment was not made by a Government nor was he ever employed by the East African Community. As I have already stated all the assets and liability of the 1963 Corporation vested by virtue of 1967 Act in the respondent and these included all contracts.

Ground 5 of the cross-appeal raised the issue that the appellant's contract of service was frustrated by the enactment of the East African Airways Corporation Act (Cap. 16). In making his submissions on this question Mr. Sebalu relied largely on the Privy Council's decision in the case of *Reilly v. The King*, [1934]

A.C. 176 at p. 180 and the following extract from the judgment of the court would be applicable to his argument in this matter:

> "But the present case appears to their Lordships to be determined by the elementary proposition that if further performance of a contract becomes impossible by legislation having that effect the contract is discharged. In the present case the office held by the appellant was abolished by statute: thenceforward it was illegal for the executive to continue him in that office or pay him any salary; and impossible for him to exercise his office. The jurisdiction of the Federal Appeal Board was gone. The position, therefore, seems to be this. So far as the rights and obligations of the Crown and the holder of the office rested on statute, the office was abolished and there was no statutory provision made for holders of the office so abolished. So far as the rights and obligations rested on contract, further performance of the contract had been made by statute impossible, and the contract was discharged. It is perhaps unnecessary to add that discharged means put an end to and does not mean broken. In the result, therefore, the appellant has failed to show a breach of contract on which to found damages."

The issue then is whether the appellant's appointment as general manager still existed after the 1967 Act came into force. The 1967 Act makes no provision for a general manager but it does provide for a director-general. It is a fact that the new post of a director-general does appear to a great extent to have taken the place of the general manager but there are considerable differences between the establishment of this post in the respective Acts. Thus the director-general is now a member of the board of directors while the general manager was not, but the main difference is however in their respective duties. The authority and power of the general manager were such as were given him by the Corporation (see s. 6 of the 1963 Act). In the 1967 Act the control and the executive management of the Corporation is now vested in the director-general, and he is given certain other specific powers.

The judge in considering whether the appellant's position had been abolished by statute relied on the fact that the appellant had a vested right to notice and also on the fact that s. 24 (3) of the 1967 Act specifically provided that persons in the service of the previous Corporation shall be deemed to be appointed to the service of the Corporation established by the 1967 Act. I am of the view that the judge was correct in finding that the appellant's appointment continued with the respondent after the 1967 Act came into force.

The 1963 Act had been repealed so that the statutory post of general manager, as established under s. 6 of that Act had been abolished but in my view there still remained the contract of employment between the respondent and the appellant. S. 29 of the 1967 Act specifically transferred all assets and liabilities of the former Corporation to the present Corporation and subs. (2) enacted that all contracts made on behalf of the previous Corporation would have effect as if made with the respondent. The appellant's contract of service was not made illegal by the 1967 Act.

The statutory post of general manager had ceased to exist but the contract remained. S. 24 (3) states:

> "(3) Such persons as are in the service of the previous Corporation on the day of the coming into operation of this Act shall be deemed to have been appointed on that day to the service of the Corporation in accordance with the provisions of this Section."

The appellant was clearly a person in the service of the previous Corporation and I can see no reason to limit the meaning of subs. (3) only to such other

persons as the previous Corporation may have appointed under the provisions of s. 15(1) of the 1963 Act.

I have read the draft judgment of the Vice-President on this aspect of the matter. I agree that the statutory post of general manager ceased to exist when the 1967 Act came into operation but so did all the other appointments made by the previous Corporation. The word "deemed" creates a fiction which makes something exist which did not and could not exist before. In this case, all the persons in the service of the previous Corporation are "deemed" to have been appointed by the respondent Corporation on the day that the 1967 Act came into force. When the 1967 Act came into force the appointments of all persons then serving the previous Corporation ceased as that Corporation no longer existed, but then these persons were "deemed" to have been appointed by the present Corporation and in my view, and with respect, the "deeming" provision must apply equally to the appellant as it would to all the other persons in the service of the previous Corporation on the appointed date.

The purpose of s. 24 (3) and s. 29 were to provide for the continuous running of the East African Airways Corporation as a "going" concern and to ensure that there would not be a hiatus between the determination of the 1963 Corporation and the coming into being of the respondent Corporation. These provisions of the 1967 Act therefore provided that the business of the East African Airways Corporation should continue. The various contracts with third parties had still to be carried out and the various employees continued to exercise their powers and carry out their duties until such time as the respondent or the director-general took these away. In my opinion the provisions of s. 24 (3) and s. 29 did apply to the appellant's contract of service with the respondent. In fact, it does appear that the respondent had accepted that his contract of service was still in existence and that he was entitled to reasonable notice on termination of this contract.

The appellant's contract did not provide for the termination of his service with the respondent. It was a contract for an unspecified period and so would be subject to termination on reasonable notice. This question is one of the main issues in this appeal. The appellant contends that the notice should be for a period of twelve months and in the cross-appeal the respondent contends that this period should only be three months.

The appellant complains that the judge misdirected himself in his judgment when he was considering the evidence on this aspect of the case and in particular the evidence of a Mrs. O'Dell, an accountant in the respondent, when he said:

> "There is no other evidence which will help me to determine the length of notice. I think six months' notice would be reasonable for a man in the plaintiff's position."

It does appear that the judge had overlooked the evidence of the appellant himself when he stated:

> "The senior officers of the Corporation had a provision in their written contracts for termination on 12 months' notice."

There was no cross-examination on this statement but the written contracts were not produced and even if this statement was true it need not necessarily have applied to the appellant who had no written contract as such, and this bald statement without the production of the contract and particulars as to whether it applied only to expatriates or included local appointments was of little value; the onus was on the appellant to establish any evidence on which he relied. This was not evidence of a custom but evidence generally which could have assisted the judge in deciding what was a reasonable notice. It is also a fact that the

witness Mrs. O'Dell did give more detailed evidence as to the length of the notice given by the respondent Corporation to officers both on expatriate terms and on local terms. In the final result this was a matter to be decided by the trial judge on the evidence before him and I can see no reason to interfere with his finding that the six months' notice was a reasonable notice in the circumstances of this case.

The other important issue depends on the payment of £4,033.15. The appellant claims that this again was a gift apparently "a parting gift in recognition of his services". He claimed that this had nothing to do with the amount that he is entitled to by way of damages for the wrongful termination of his appointment and by this action he now seeks to recover salary for the period of reasonable notice together with all other subsidiary benefits arising out of his contract for service.

The respondent on this issue in the appeal supported the judge's findings. The appellant in fact was not badly treated by the respondent when they terminated his services. They paid him in full his salary up to the date of termination, in addition, they paid him (*a*) salary for 19 days earned vacation leave which was due him, (*b*) a refund of £4,814.13/75 as a refund of both the respondent Corporation and his own contributions to the pension fund, (*c*) and allowed him to remain in a Corporation house free of rent for a period of over seven months after the termination of his contract, and (*d*) in addition to all this they paid him this sum of £4,033.15. It does seem with great respect that the appellant is being slightly avaricious in his demands on the respondent Corporation and he certainly must have a poor opinion of its financial advisers who would allow the Corporation to make him a gratuitous gift of over £ 4,000 at a time when he had already taken active steps to launch his claim for damages against the Corporation. The trial judge fully considered this matter and in particular he referred at length to the correspondence between the parties in his judgment. I do not find it necessary to refer to this correspondence except to say that I agree with the judge that it appears clear that the respondent were considering making a cash payment to the appellant in lieu of notice, and did pay this amount to settle his claims.

There was considerable argument both in the trial court and in this Court as to whether this payment was a set-off. Clearly this payment was never a set-off, what the defence really sought to prove was that this amount was paid in full satisfaction of the appellant's claim against the respondent Corporation. I agree that a lot of this misunderstanding could have been prevented by a definite statement from the respondent Corporation to this effect. I must also agree that the defence as pleaded was by no means clear. After full consideration the judge in dealing with these issues found:

> "It is quite clear from the Chairman's letter from which I have quoted that the payment was intended to be salary in lieu of notice. I do not know why it was described in the defence as 'terminal benefits' or 'gratuity'. I do not think a mis-description changes either the amount by the intended purpose of the payment. The two paragraphs in the defence which I have quoted above do not plead a 'set-off' in the usual manner but I think they do say, in effect, that all payments due to him were made. They pleaded satisfaction. Even if 19 days' leave pay is regarded as something due apart from the salary in lieu of notice, the 25 per cent, payment comes to more than six months' salary and must in my view be regarded as satisfying the plaintiff's claim in this respect. In any case, the plaintiff had a duty to mitigate damages and he must set off the amount he has received against the damages due."

The judge then found that the appellant's claim for salary in lieu of notice had

already been settled in full and he thus disallowed his claim in that respect. I entirely agree with the judge. The payment of £4,033.15 is more than sufficient to cover not only the six months' period of notice but all the other subsidiary claims made by the appellant.

As however these subsidiary claims were fully considered by the trial judge and argued before us I will shortly consider these. Two of these claims covered claims under the pension fund. The judge accepted the evidence of the accountant called by the respondent Corporation Mrs. O'Dell and found the appellant had no claim on these matters. All these special issues were actually claims in respect of special damages and the onus was on the appellant to prove his claim. The appellant made hardly any effort to properly prove his entitlement to any of these special amounts. Thus there was a pension plan and rules applying to the respondent Corporation and its employees, but all that was put in evidence was a pamphlet giving information on the subject. This same lack of evidence applied to the appellant's claim for travelling and medical expenses, both of which claims were dismissed by the judge. He also claimed free housing but it appears from the evidence that he did in fact occupy a Corporation house free of rent for a period beyond the six months' period of notice. Then there is a claim for the use of a car and driver but these were only provided for official use and so no claim for these items could possibly by made when he was, in fact, no longer working with the respondent. I can find no merit at all in any of the appellant's submission on these various miscellaneous claims. I would therefore dismiss the appeal with costs to the respondent and as the other members of the court agree it is so ordered. I have already dealt with all the grounds covered in the cross-appeal and again I can find no merit in any of these grounds. I would therefore also dismiss the cross-appeal with costs to the appellant and as Mustafa, J.A. agrees it is so ordered.

We allow a certificate for two counsel in both the appeal and the cross-appeal.

Spry V-P: I have read the judgment of Sir William Duffus, P., and save in one respect, I am in complete agreement.

The fifth ground of the cross-appeal was that the judge had erred in law in not holding that the appointment of the appellant as general manager was frustrated by the enactment of the East African Airways Corporation Act (Cap. 16).

The appellant was appointed general manager of the Corporation by the Corporation with the approval of the Authority under the provisions of s. 6 (1) of the East African Airways Corporation Act 1963. That Act was repealed by the 1967 Act, which made no provision for a general manager. It did provide for a director-general, with somewhat different powers and status. Mr. Sebalu argued, relying on *Reilly v. The King*, that with the coming into force of the 1967 Act, the office of general manager ceased to exist and that this automatically terminated the appellant's service.

The judge dealt with this issue in the following passage–

> "I think it is clear to anyone comparing the two East African Airways Acts, of 1963 and 1967, that the post of the general manager was replaced by that of the director-general. But a statute cannot take away the vested rights of individuals unless there are words to that effect. While it is true that in this case, one post was re-designated or, perhaps, replaced by another post, the 1967 Act does not say anywhere that any person in the employment of the Corporation should be dismissed without notice."

After quoting s. 24 (3) of the 1967 Act, to which I shall return later, he continued–

> "This means, I think, that on the coming into operation of the 1967 Act the plaintiff continued in service and if his services were terminated he would be entitled to reasonable notice. I agree that termination in a case like this would be imperative but, in the absence of express words authorising dismissal without notice a reasonable notice would have to be given."

I may say at once that I do not consider that the office of director-general was a mere re-designation of the office of general manager. I accept that it replaced the previous office, in the sense that each was the chief executive of the Corporation, but I am satisfied that it was a different office. I have no doubt that the office of general manager came to an end with the coming into operation of the 1967 Act.

I think, with respect, that the judge misdirected himself in the passages I have quoted above. Where an office is created by statute and the statute is repealed, the office comes to an end, unless there is anything to preserve it. The question is not whether the 1967 Act authorised the dismissal of the appellant without notice but whether there is anything in the Act which preserved the appointment of the appellant after his office had been abolished.

S. 24 (3) of the 1967 Act, to which the judge referred, reads as follows–

> "3. Such persons as are in the service of the previous Corporation on the day of the coming into operation of this Act shall be deemed to have been appointed on that day to the service of the Corporation in accordance with the provisions of this section."

This appears to save the contracts of employment of all the Corporation's servants. It does so, however, by deeming a re-appointment and I do not see how the appellant could be deemed to be re-appointed to an office which no longer existed. This difficulty does not exist in relation to servants appointed under s. 15 (1) of the 1963 Act.

In this connection, I do not think it irrelevant to note that the appointment of the general manager was always on a different footing from that of all other employees of the Corporation. He was appointed by the Corporation with the approval of the Authority (later, this was amended to vest the power of appointment in the Authority itself), whereas all other employees were appointed by the Corporation. He had, by s. 6 (1)–

> "such of the authority and powers of the Corporation as may be delegated to him by the Corporation or as may otherwise be conferred upon him by law."

He had, by s. 6 (2), power, with the prior consent of the Corporation, to delegate such of the powers delegated to him–

> "to such servants of the Corporation as the General Manager may consider necessary and desirable for the convenient and efficient working of the Corporation."

Although in a broad sense the general manager was undoubtedly a servant of the Corporation, I think the fact that the nature of his employment was so different from that of the other employees of the Corporation means that there is nothing inherently absurd about an interpretation of s. 24 (3) of the 1967 Act, which would apply it to persons employed under s. 15 (1) of the 1963 Act but not to the general manager.

S. 29 (2) of the 1967 Act provides that contracts made by or on behalf of the previous corporation shall have effect if made by or on behalf of the Corporation. I have considered whether this helps the appellant but in my view it does not.

To invoke this section on his behalf would involve regarding the appellant's appointment to office and his contract of service as divisible. I do not think they are. He was not an employee assigned to a particular post: he was appointed to a statutory office. He could not be required to perform the duties of another post when that office was abolished. He might, of course, have been employed by the Corporation in some other capacity, but that would have necessitated a fresh agreement. At the moment immediately after the 1967 Act had come into operation, he had no office and therefore his contract of service must have ended.

Finally, for the sake of completeness, the appellant could not claim, under s. 14 (*c*) of the Laws of the Community (Interpretation) Act (Cap. 2) that the repeal of the 1963 Act could not affect his rights acquired under that Act, because, as was said in *Reilly's* case, the rights he acquired on appointment to a statutory office were–

> "from the inception . . . subject to be determined by the office being abolished by statute."

I would have allowed this ground of cross-appeal.

Assuming, however, that the appellant was entitled to notice, I agree that there is no reason to interfere with the decision of the judge that six months' would have been reasonable. The appellant said in his evidence that some senior officers of the Corporation had contracts which provided for twelve months' notice. If that were so, it could fairly be argued that the general manager should not receive less notice. The appellant did not, however, call any evidence to substantiate his statement. It should surely have been possible to establish the matter by interrogatories or discovery or by calling one of the officers concerned. As it was, there was some evidence to the contrary. In the inconclusive state of the evidence, the judge exercised his discretion in deciding what was reasonable and I am not prepared to say that he was wrong.

On all other questions, I agree with the opinions expressed by the President.

Mustafa JA: I agree with the President that both the appeal and cross-appeal be dismissed.

With regard to the cross-appeal, there is one point which requires consideration. That is ground 5 of the cross-appeal. Mr. Sebalu for the Corporation has alleged that the office of general manager had been abolished by statute and consequently the performance of the contract had become impossible and hence there was no wrongful dismissal.

It is clear that the post of general manager which the appellant held, was a statutory creation, see s. 6 of the East African Airways Corporation Act of 1963. The 1963 Act, including s. 6, was repealed by the East African Airways Corporation Act of 1967 which created the new post of Director-General. I am of the view that with the repeal of s. 6 of the 1963 Act the office of general manager was abolished.

Relying on *Reilly v. The King*, [1934] A.C. 176 Mr. Sebalu submitted that since the post held by the appellant which was a creature of statute was subsequently abolished by statute, the performance of the contract had become impossible. However, in my view, the facts and the circumstances in the *Reilly* case were different. In that case Reilly was appointed a member of the Federal Appeal Board in pursuance of an Order-in-Council for a certain term. The Federal Appeal Board was constituted by an amending Act of the Parliament of Canada. Subsequently, before Reilly's extended term had expired, by another amending Act the Federal Appeal Board was abolished and two new bodies were constituted in its stead. Reilly's office was thus abolished and Reilly was not

appointed a member to either of the two bodies. Reilly sued. Their Lordships of the Privy Council said:

> ". . . In the present case the office held by the appellant was abolished by statute: thenceforward it was illegal for the executive to continue him in that office or pay him any salary: and impossible for him to exercise his office. The jurisdiction of the Federal Board was gone. The position therefore, seems to be this. So far as the rights and obligations of the Crown and holder of the office rested on statute, the office was abolished and there was no statutory provision made for holders of the office so abolished. . . ."

It will be seen that in the *Reilly* case, with the abolition of the office, it had become illegal for the executive to pay Reilly any salary as the jurisdiction of the Federal Appeal Board was gone. In the present case, unlike the Federal Appeal Board which had ceased to exist, the Corporation continued in existence, and only some re-organisation was carried out by the amending Act. No question of illegality based on lack of jurisdiction can arise here. Again, unlike the *Reilly* case, here there was statutory provision made for the holder of the abolished office. S. 29 (2) of the 1967 Act reads:

> "Every contract made by or on behalf of the previous Corporation (whether in writing or not or whether or not of such a nature that rights and liabilities thereunder can be assigned by the previous Corporation) shall have effect as if made by or on behalf of the Corporation and as if for reference therein to the previous Corporation. . . ."

In my opinion, although the post of general manager was abolished the contract of service between the Corporation and the appellant remained valid and effective. If for instance, the appellant had asked to be given other duties in the Corporation on the same terms and salary as he was getting, I would have thought that the Corporation could have lawfully done so. There was nothing to indicate that the contract of service was linked exclusively to the post of general manager to the exclusion of other duties, or that no variation can subsequently be made.

For the above reasons I am of the view that the appellant was entitled to reasonable notice. I agree, in the circumstances of this case, six months' notice was reasonable.

I concur in the order proposed by the President.

Appeal dismissed.

For the appellant:
SN Waruhiu and *PK Muite* (instructed by *Waruhiu & Co*, Nairobi)

For the respondent:
P Sebalu (Counsel to the Community) and *JM Khaminwa* (Deputy Counsel to the Community)

National & Grindlays Bank Ltd v Shariff and another
[1972] 1 EA 413 (CAD)

Division:	Court of Appeal at Dar Es Salaam
Date of judgment:	26 June 1972
Case Number:	9/1972 (103/72)
Before:	Sir William Duffus P, Spry V-P, and Mustafa JA
Sourced by:	LawAfrica
Appeal from:	High Court of Tanzania – Saidi, C.J

[1] Bankruptcy – Adjudication – Requirement that court adjudicate directory not mandatory – Bankruptcy Ordinance (*Cap*. 25) *s.* 20 (*T.*).

[2] Bankruptcy – Receiving order – Rescission of – Application for – Court will not generally go behind judgment on application to rescind.

[3] Bankruptcy – Receiving order – Rescission of – Grounds for.

[4] Bankruptcy – Receiving order – Rescission of – No misconduct – Only a condition for order, not a ground of it.

[5] Bankruptcy – Orders – General power to rescind – Only exercisable when no prejudice to creditors and not against public interest – Bankruptcy Ordinance (*Cap.* 25) *s.* 103 (*T.*).

Editor's Summary

The respondents had receiving orders made against them with their own consent on petitions based on bankruptcy notices arising out of unpaid judgments.

After the official receiver had applied for their adjudication the respondents applied for rescission of the receiving orders. The judge postponed adjudication until the hearing of the applications for rescission.

After various proceedings set out in the judgment of Spry, V.-P., the Chief Justice rescinded the receiving orders.

The appellant appealed, contending that receiving orders could only be set aside where the judgment had been satisfied, where it had been obtained by fraud or collusion or there had been a miscarriage of justice.

The respondents argued that the court could go behind a decree, that there was no misconduct by the respondents and that the appellant was the only creditor.

Held –

(i) The requirement that the court shall adjudicate is directory and not mandatory and the court could adjourn the application for adjudication (*In re Lord Thurlow* (5) followed);

(ii) only in the most exceptional circumstances would the court go behind a judgment on an application for the rescission of a receiving order;

(iii) the usual grounds for rescission of a receiving order are that the order ought not to have been made or that the debt had been discharged;

(iv) as the orders were made with consent they could not be attacked;

(v) the onus is on the debtor to show that he has discharged his debt;

(vi) the general power to rescind an order will only be exercised when it is clear that it will not prejudice creditors generally nor operate against the public interest;

(vii) lack of misconduct is a condition for the making of a rescission order: it is not a ground for rescission;

(viii) the fact of there being only one creditor would only be relevant if he consented to the rescission order.

Appeal allowed.

Cases referred to in judgment:

(1) *Ex. p. Revell* (1884), 13 Q.B.D. 720.

(2) *Ex. p. Lennox* (1885), 16 Q.B.D. 315.

(3) *In re Flatau* (1889), 22 Q.B.D. 83.

(4) *In re Fraser*, [1892] 2 Q.B. 633.

(5) *In re Lord Thurlow*, [1895] 1 Q.B. 724.

(6) *Re Izod*, [1898] 1 Q.B. 241.

Judgment

The following considered judgments were read. **Spry V-P:** This is an appeal from a decision of the Chief Justice in bankruptcy proceedings. To clarify the issues, it will be necessary to set out the history of the proceedings in some detail.

The appellant (to which I shall refer as "the Bank") lent a very large sum of money to a company named Moshi Trading Co. Ltd. against the security of a debenture and of personal guarantees from four directors, two of whom are the respondents to this appeal.

In 1964, the Bank, in exercise of powers contained in the debenture, appointed a receiver of the company's assets. A little later, following some negotiations, the Bank filed a suit against the four guarantors. No defence was filed and a default decree was issued on 7 October 1965.

On 14 April 1967, the advocates for the Bank applied for the issue of bankruptcy notices to the two respondents and bankruptcy notices were issued on 24 April 1967. At the hearing of the appeal, Mr. Salter, who appeared with Mr. Kesaria for the respondents, took the point that these notices did not comply strictly with the requirements of r. 101 (2) of the Bankruptcy Rules. This point was not taken at any earlier stage and I think it is far too late to take it now for the first time.

The respondents appear to have taken no action following the service of the notices and on 4 August 1967, creditor's petitions were lodged on behalf of the Bank against the respondents. These petitions were heard on 18 October 1967, when receiving orders were made by consent.

On 11 January 1968, Mr. Desai, for the Official Receiver, lodged applications for adjudication but no action appears to have been taken on them. On 26 March 1968, Mr. Kesaria lodged applications for rescission but the hearing of them was adjourned and he was given leave to file amended applications. Subsequently, the two bankruptcy causes were consolidated. Amended applications were filed on 8 April 1968.

On 6 August 1968, Mr. Desai formally moved the court to adjudge the first respondent bankrupt. Mr. Kesaria opposed the application and argument ensued on the question whether the court was bound, under the provisions of s. 20 of the Bankruptcy Ordinance, to make adjudication orders. On 13 August 1968, the late Hamlyn, J., in a reasoned ruling held, relying on *In re Lord Thurlow*, [1895] 1 Q.B. 724, that the provisions of s. 20 are directory rather than

mandatory and he adjourned the proceedings to enable the first respondent “to produce his objections to adjudication”.

On 27 September 1968, Mr. Kesaria filed a chamber application supported by the affidavit of the two respondents asking for rescission of the receiving orders. This was set down for hearing on 30 October 1968. when the hearing was adjourned sine die, in order that a copy of the affidavit might be sent to the Bank and to enable the Official Receiver, if he so wished, to file a counter-affidavit, with liberty to the respondents to file a reply by way of affidavit.

On 7 August 1969, the proceedings were again adjourned at the request of the Bank. On 20 September 1969, a replying affidavit, made by a Mr. Williamson, was filed on behalf of the Bank. On 29 September 1969, another adjournment was granted. On this occasion, Mr. Kesaria asked that Mr. A. C. Satchu (who is an advocate living in Mombasa, and who was instructing Mr. Jussa, the advocate appearing for the Bank) should be present at the resumed hearing to give evidence. The judge ordered that it should be “a condition precedent to the hearing of the petition that . . . Mr. A. C. Satchu be present in Court for examination. . . .”

This order is difficult to understand. In the first place, it was not a petition which was being heard, but an application for rescission. Secondly Mr. Satchu being outside the jurisdiction, could not be ordered to attend. It was for the party who required his evidence to seek to procure his appearance or the taking of his evidence on commission. This was the beginning of a confusion that ran through all the subsequent proceedings.

The hearing eventually resumed on 9 April 1970, when Mr. Kesaria began by saying that his application was for rescission of the receiving order. Mr. Mansur Satchu, for the Bank, then applied to call Mr. Williamson as a witness for the Bank, as he was about to leave the jurisdiction. By consent, this evidence was taken and the proceedings were once more adjourned.

They were resumed on 9 July 1970, when someone, presumably Mr. Kesaria, called a witness from the National Bank of Commerce. The following day, the first respondent was called and his examination in chief was concluded. The judge then said, apparently of his own motion, that he would not permit cross-examination of the first respondent by Mr. Mansur Satchu “as he appears to be concerned with the affairs both of bank and debtors”. He directed that a new counsel be instructed to act for the Bank and again ordered that Mr. A. C. Satchu be present when the hearing was resumed.

When the hearing was resumed on 5 August 1970, another adjournment was sought by the new advocate for the Bank, Mr. Balsara, and allowed. The following day, Mr. Balsara sought a further adjournment. He is recorded as saying that “Satchu” (presumably Mr. A. C. Satchu) was unable to be present as his passport was in course of renewal. Mr. Kesaria strongly opposed any further adjournment. Mr. Balsara said he did not wish to cross-examine then, but if necessary he would. He referred to the “condition precedent” of Mr. Satchu’s attendance and asked for a ruling on it. The judge ruled that the case should not go forward in the absence of Mr. Satchu, and referred to the “evasion” of his order. Mr. Kesaria thereupon asked that the court should not make an adjudication order; he claimed that there had been abuse of the process of the court and he asked that the petition be dismissed. I find these submissions very difficult to understand. The judge was apparently dealing with the application for rescission when he ruled that the case should not go forward, and yet immediately on the delivery of that ruling, Mr. Kesaria appears to be asking the court to dispose of both applications before it. In any case, the reference to dismissing the petition appears to have been quite inappropriate at that stage

of the proceedings: the only "petition", the petition in bankruptcy, had been disposed of when the receiving order was made.

Mr. Balsara then made the surprising submission that the respondents should not be allowed to lead further evidence and said that the case should stand or fall on the evidence before the court. It is not clear whether he was waiving his right to cross-examine the first respondent. He said that Mr. A. C. Satchu was not a witness for the Bank and the Bank should not be penalised for his non-appearance. He submitted that a judgment is binding until set aside and that there was nothing before the court that would justify rescission of the receiving order. After Mr. Kesaria had replied, the Official Receiver said that he did not wish to address the court and Hamlyn, J., reserved his ruling. It is not clear on what he was going to rule at this stage and unhappily he died before he had prepared his ruling.

On 3 September 1971, the matter was mentioned in chambers before the Chief Justice. Mr. Jussa, for the Bank, asked that the matter be re-heard, except for the evidence of Mr. Williamson, which, having been taken de bene esse could be considered by a successor judge. (As Mr. Salter pointed out during the hearing of the appeal, this evidence was not in fact taken de bene esse but merely out of order.) Mr. Kesaria submitted that either the evidence should be accepted as recorded and judgment given or that there should be a complete re-trial.

The Chief Justice in his ruling recited the application for adjudication and the application for rescission. He referred to the so-called "condition precedent" that Mr. A. C. Satchu was to appear before the hearing might continue. He held that it would be unreasonable as well as unjust either to order a re-trial or to give judgment on the evidence, since it was incomplete. He referred to the fact that the Bank had failed to make available any figures regarding the proceeds from the realization of the assets of the Moshi Trading Co. Ltd. He referred to the evidence of the first respondent as raising the possibility that the Bank might have been fully paid or indeed overpaid, and he saw in the failure of Mr. A. C. Satchu to appear some reinforcement of the respondents' allegations. He dismissed "the petitions to adjudge the debtors bankrupt". It is from that decision that the present appeal is brought.

At the hearing of the appeal, the main submission made by Mr. Mansur Satchu, who appeared for the Bank, was that where a bankruptcy notice has been issued on the strength of a decree and has resulted in a receiving order, that order ought not to be set aside unless the decretal amount has been satisfied or there is evidence to establish that the judgment was obtained by fraud or collusion or that there has been some miscarriage of justice. He relied for this proposition on the case of *In re Flatau* (1889), 22 Q.B.D. 83.

He submitted that there was no evidence to suggest that the Bank had been paid in full. Even the first respondent in his evidence had said nothing about the proceeds of sale: he had talked of pre-sale values and it is well known that on a forced sale assets commonly realize less than the amount at which they have been valued.

He referred also to one of the reasons for the Chief Justice's decision, which was that Mr. Williamson's evidence was incomplete. He submitted that in fact Mr. Williamson's evidence was complete. He had not been able to say what amount had been realized, but that was not a matter within his own knowledge. He had undertaken to make certain papers available, but they were papers that were not under his personal control.

Mr. Salter, for the respondents, submitted that the affidavit evidence showed that the respondents had consented to judgment on an understanding that the Bank would pursue a certain course, part of which was that it would not pursue

a bankruptcy notice. This was a consideration for the consent to judgment which, in the event, had failed. He argued that the respondents could not prove that the debt had been satisfied; they had asked for accounts but had not received them. They had gone as far as they could in showing that the assets of the Moshi Trading Co. Ltd. had been capable of satisfying its debts. He submitted that if the court thought the judgment had been obtained unfairly, it should not treat as valid the debt on which the petition was based.

In arguing that a court of bankruptcy is entitled to go behind a decree, Mr. Salter relied on the decision in *In re Fraser*, [1892] 2 Q.B. 633, but, with respect, the position there was very different from the present case, because there the judgment was attacked during the hearing of the bankruptcy petition. There is ample authority, notably *Ex p. Lennox* (1885), 16 Q.B.D. 315, for the saying that in considering a bankruptcy petition the court may go behind a judgment, particularly, though not exclusively, to see if there has been any fraud or collusion. Again, when the stage is reached for debts to be proved, the court may go behind a judgment (*Ex p. Revell* (1884), 13 Q.B.D. 720). I do not say that the court could not go behind a judgment on an application for rescission but I think it would only be in the most exceptional circumstances that it could do so.

The proceedings with which we are concerned began with an application by the Official Receiver for an adjudication order. I accept that “shall” in s. 20 of the Bankruptcy Ordinance is directory rather than mandatory and that Hamlyn, J., was entitled to adjourn the proceedings to allow an application to be heard for rescission of the receiving order. This, I think, is what Hamlyn, J., did, although it was not expressly so stated, and I think, in the circumstances, that such an adjournment was proper.

The court then had to consider the application for rescission. The two normal grounds for seeking rescission are either that the receiving order ought not to have been made, or that the debt has been discharged in full, although the court is not restricted to those two grounds (*Re Izod*, [1898] 1 Q.B. 241). The making of the receiving order cannot properly be attacked in the present case, since it was made by consent. Where a debtor seeks rescission on the ground that he has discharged his debts, I think it is clear that the onus is on him to prove it. Here, the respondents have not even claimed that the debt has been paid in full but only that it may have been.

There remains the general power created by s. 103 of the Ordinance, which enables the court to rescind any order made by it. It is well established that this is a power which is only exercised to rescind a receiving order after searching enquiry, when it is quite clear that its exercise will not prejudice the creditors generally nor operate against the public interest. Moreover, it seems to me that the burden on a debtor seeking rescission of a receiving order when it was made by consent must be exceptionally heavy.

The grounds which the respondents put forward in their formal application were as follows. First, there was an allegation that the court ought not to have made the receiving order. This is clearly without any merit. On the facts before it, the court had no alternative and in any case the order was made by consent. Secondly, it was alleged that the Bank “by making express or implied promises had taken away from us most of our assets and properties”. It is far from clear what this means. There is mention in the affidavit of the handing over of certain shares and insurance policies, but in his evidence the first respondent dealt only with the properties of the Moshi Trading Co. Ltd. These latter were taken over by the receiver of the company and do not concern us at this stage. Thirdly, the respondents allege that they only consented to certain transactions to avoid the presentation of bankruptcy petitions: this seems in

consistent with their consent to the making of receiving orders. It would appear, at least *prima facie*, that the matters being put forward as grounds for rescission should more appropriately have been raised in opposition to the bankruptcy petitions. Fourthly, it was alleged that the presentation of the bankruptcy petitions was an abuse of the process of the court: this again is inconsistent with the respondents' consent to the making of the receiving orders, It is not suggested that any facts have since come to light which change the situation. Fifthly, it was alleged that there was no misconduct on the part of the respondent: that meets one of the conditions for the making of a rescission order but it is not a ground for rescission. Sixthly, it was alleged that the Bank is the only creditor and that it would not be in the public interest for the respondents to be adjudicated bankrupt: that would have been a relevant consideration had the Bank been concurring in the application for rescission but in fact, of course, it was opposing the application. Finally, there is an allegation of acquiescence on the part of the Bank but it is not stated in what the Bank has acquiesced. I find it very hard to see how a court could possibly make a rescission order on these grounds.

The Chief Justice held that the only reasonable course was to "dismiss the petition to adjudge the debtors bankrupt". This was an expression that had been used by Mr. Kesaria, presumably on the authority of decisions given prior to the English Bankruptcy Act 1883, but it is an expression that is no longer appropriate. There was some difference of opinion before us as to the effect of the Chief Justice's decision. Both Mr. Satchu and Mr. Salter appeared to be arguing on the basis that it amounted to a rescission of the receiving orders, but the Official Receiver submitted that it was a rejection of the application for adjudication and left the receiving orders intact. Having regard to the submissions that were made at the final hearing before Hamlyn, J., I am satisfied that the intention of the Chief Justice was to rescind the receiving orders. I have every sympathy for him coming at a very late stage into proceedings which were almost hopelessly confused and having to deal with submissions that appear to deal indiscriminately with two different applications, but I am of the opinion that his decision cannot stand.

I do not consider that there was material before the court which could possibly justify rescission of the receiving orders, particularly as they were consent orders. On the other hand, I do not think it is open to us to dismiss the application for rescission, because the applicant never closed his case. Much as I should have liked to see this matter disposed of, I can see no alternative to remitting it to the High Court.

There has been a great deal of criticism of the Bank, its legal advisers and in particular Mr. A. C. Satchu. Some of this criticism is justified, but not, I think, all. The Bank has been criticised for not producing figures showing the amounts it had received towards the debt due to it. I do not understand why the Bank should have been reluctant to produce these figures, but it was under no obligation to produce them in connection with the application which was actually before the court. It would have had to do so when the stage of proof of debt was reached. Moreover, most, if not all, the property realized was property of the Moshi Trading Co. Ltd. and was realized by the receiver. He was the agent of that company and had to account to it. It is not clear from the record whether or not his accounts were in the possession of the respondents and, if not, whether they had called for them from him. If there is any truth in the general allegations made by the respondents that the Bank has been fully paid, they could have substantiated those allegations by producing the receiver's accounts. I accept that the Bank and its advisers have been dilatory, on the evidence of the record itself and of the statement to that effect of the Official Receiver, but I am not sure that there is not an equal blame that might be laid on the respondents.

As regards Mr. A. C. Satchu, the court ordered his appearance as a witness, which it could not do as he was outside the jurisdiction. No formal process was served on him and it was left to his local agent to convey the court's wishes to him. We do not know in what terms those wishes were conveyed. He may have been guilty of discourtesy to the court. The matter cannot be put more strongly than that. It has also been suggested that he may have been guilty of professional misconduct. It is true that a conflict of interest arose when the firms of Atkinson, Cleasby & Co. and Satchu and Satchu amalgamated and on this account it was undesirable for Mr. Mansur Satchu to conduct the cross-examination of the first respondent. But the record does not show any professional misconduct and if any was suspected, Mr. A. C. Satchu should have been asked to attend as an advocate of the High Court to explain his conduct, not as a witness in the proceedings. He could not be condemned unheard.

I would allow the appeal and set aside the order of the Chief Justice. I would remit the proceedings to the High Court and direct that the application for rescission of the receiving orders be heard de novo. It is for the parties themselves to decide what evidence they call on that application and it is of course open to either party to apply to the court for evidence to be taken on commission, if it is considered necessary. If the application for rescission is dismissed, it will then be for the court to hear and determine the application by the Official Receiver for adjudication, an application which stands adjourned pending the determination of the respondents' application.

I regret that I have to comment on the state of the record, which contains mistakes and omissions. For this reason, while I would give the Bank its costs of the appeal, to be paid out of the debtors' estates, I would direct that the cost of the preparation of the record be excluded. I would leave the costs in the High Court in abeyance, pending the outcome of the new hearing, when it will be for the High Court to make such order as it considers appropriate. The Official Receiver has been awarded the costs of certain adjournments but he made no application for costs of the hearing in the High Court or of the appeal and accordingly I would make no order as to his costs.

Sir William Duffus P: I have read and entirely agree with the judgment of the Vice-President and as Mustafa, J.A. also agrees, the appeal is allowed in accordance with the order set out in the Vice-President's judgment.

Mustafa JA: I have had the advantage of reading the judgment of Spry, V.-P., with which I am in complete agreement. I agree with his reasoning and conclusion and I concur in the order proposed by him.

Appeal allowed.

For the appellant:
M Satchu (instructed by *Atkinson Cleasby & Satchu*, Mombasa)

For the respondent:
C Salter QC and *RC Kesaria*

For the Official Receiver:
MBH Rahim and *AA Kinguje*

E A Industries Ltd v Trufoods Ltd
[1972] 1 EA 420 (CAN)

Division: Court of Appeal at Nairobi

Date of judgment:	7 July 1972
Case Number:	11/1972 (104/72)
Before:	Sir William Duffus P, Spry V-P and Mustafa JA
Sourced by:	LawAfrica
Appeal from:	The High Court of Kenya – Madan, J

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[1] Appeal – Order – Refusing injunction – Order made under O. 39, *r.* 2 *– Leave not required – Civil Procedure* (*Revised*) *Rules* 1948, *O.* 42, *r.* 1 (1) (*K.*).

[2] Passing off – Package – Overall effect – Impression created to be considered rather than specific words.

[3] Passing off – Sophistication of shoppers – Matter for evidence not judicial notice.

[4] Passing off – Carelessness of shopper – Not necessarily negativing deception.

Editor's Summary

The appellant applied in the High Court for an interlocutory injunction to restrain the passing off of the respondent's product as the appellant's. In dismissing the application the judge directed his attention to the names on the labels and not sufficiently to the overall impression created by the bottles and the labels. The judge also stated that he took judicial notice that the vast majority of customers for the product would be sophisticated and able to read English, and that the woman deponent was deceived only by her own carelessness.

For the respondent it was contended that the appeal was incompetent as leave to appeal was required where application for an injunction was refused.

Held –

(i) The rejection of an application for an injunction is an order made under Order 39, rule 2. An unqualified right of appeal applies to both orders granting and orders refusing relief;

(ii) the overall impression created by the package should be the primary consideration;

(iii) the sophistication or otherwise of Kenya shoppers is a matter for evidence and not judicial notice;

(iv) carelessness on the part of the shopper does not necessarily negative deception (*Schweppes Ltd. v. Gibbens* (1) disapproved);

(v) nevertheless on the balance of convenience the application was properly refused and the appellant would suffer no loss which could not be compensated in damages.

Appeal dismissed.

Case referred to in judgment:

(1) *Schweppes Ltd. v. Gibbens* (1905), 22 R.P.C. 601.

Judgment

The following considered judgments were read. **Spry V-P:** This is an appeal from a ruling and order

of the High Court, dismissing an application by the appellant company for a temporary injunction.

Mr. Gautama, for the respondent company, raised a preliminary objection. He submitted that O. 42, r. 1 (1) (*q*) Civil Procedure (Revised) Rules, 1948, applies only to orders granting an injunction. He argued that where an application is rejected, there is no appeal as of right. It is common ground that no application was made for leave to appeal and, if Mr. Gautama were right, it would follow that the appeal was incompetent.

We rejected the preliminary objection and proceeded to hear the appeal. For my part, I have no doubt that the decision of a court rejecting an application for an injunction is an order, and that it is an order "made under" O. 39, r. 2. The wording of O. 42, r. 1 (1) is not always consistent, but what I think emerges is that where any paragraph is limited in its application, it is clearly so expressed. It follows, in my opinion, that any paragraph which is unqualified must apply to all orders made under the relevant rule, whether allowing or refusing the particular application.

There appears to be no East African decision directly on this point, but I note that the only Indian decisions on the corresponding paragraph support the view that I have formed.

I turn now to the appeal itself. The application was brought in a passing-off action. Both parties are manufacturers of fruit drinks and the appellant company claims that the respondent company has changed the shape of the bottles it uses and the shape and design of the labels it affixes to them in such a way that they so nearly resemble those of the appellant company as to be likely to deceive.

There is, I think, no real difference of opinion as to the law regarding interlocutory injunctions, although it may be expressed in different ways. A plaintiff has to show a *prima facie* case with a probability of success, and if the court is in doubt it will decide the application on the balance of convenience. An interlocutory injunction will not normally be granted unless the applicant for it might otherwise suffer irreparable injury, which would not adequately be compensated by an award of damages.

The judge held that the appellant company was unlikely to succeed in the suit, as in his opinion no reasonable ordinary shopper would be misled by the resemblances in the get-up of the two products. That was sufficient to dispose of the application but, very properly, he went on to consider the balance of convenience. He concluded that the appellant company would not suffer irreparable harm if an injunction were refused and that if it succeeded in the suit, it could adequately be compensated by damages. On the other hand, he thought that the respondent company would suffer irreparable harm if its products were taken off the market for the time that it will take for the suit to come to judgment.

On the first issue, Mr. Deverell, for the appellant company, accepted that the judge had generally directed himself correctly as to the law, but he claimed that in applying the law, the judge had misdirected himself by concentrating his attention on the names that appear on the labels and had not paid sufficient attention to the overall impression created by the bottles and their labels. I think there is considerable substance in this criticism.

There are, I think, two other misdirections which I should briefly mention. First, the judge said that he took judicial note that in Kenya today the vast majority of customers for the fruit drinks made by the parties "would be sophisticated shoppers who can read the English language". With respect, that is not a matter for judicial note but for evidence. It will be open to the parties at the trial, if they think it would be useful, to adduce evidence as to the channels through which they sell their goods and evidence of retailers as to the character

of the customers who buy them. It would be dangerous to make assumptions which, however superficially reasonable, might be very wide of the truth.

Secondly, dealing with the affidavit of a woman who complained that she had picked up two bottles of fruit drink from a stand in a shop, believing them to be goods of the appellant company, and later realized that one was a product of the respondent company, the judge said he thought this was "due to carelessness on her part and not because she was deceived as to its brand or because of similarity of get up of the bottle she picked up". I hope I am not being unfair to the judge, but I formed the impression, from this and other passages, that he was of the opinion that carelessness on the part of the customer negatived deception. Mr. Gautama supported that proposition, relying on the authority of *Schweppes Ltd. v. Gibbens* (1905), 22 R.P.C. 601. I think, with great respect, that that decision should only be relied on with caution, because it is not wholly consistent with other decisions of equal authority. And, of course, all these cases depend very much on their own particular facts. It is largely a question of degree. One trader does not exactly copy the labels and get-up of another, but a purchaser, at least of ordinary day-to-day goods, cannot be expected to make a careful examination of labels and packing. The degree of care which he exercises will normally be related both to the cost of the article and to his own personal interest in it. I think that practically every passing-off action is based on an assumption of some degree of carelessness on the part of customers and the question in any particular case is whether that degree of carelessness is reasonable in the circumstances.

Here we have two bottles, substantially similar in size and shape, with two differences which are readily apparent to anyone who knows them or compares the bottles but which might not be noticed by someone who saw them separately. They bear labels which are substantially similar in size and shape. The design of the labels is generally similar but there are differences of detail and they bear names which in themselves are not confusing. I do not think it is desirable to go into the matter more fully, because the issue of deceptive similarity has to be decided in the suit. I do not think we should say more than is absolutely necessary, particularly because the ultimate decision may depend on evidence called at the trial. Mr. Deverell suggested that it is unlikely that any evidence will be called of any great significance and that we can fairly reach a conclusion on the evidence of our own eyes. That may well be so, but we do not know what evidence will be called and we cannot speculate.

In my opinion, the judge was clearly wrong in holding that there was no likelihood of the appellant company succeeding. I think that a *prima facie* case has been shown but I am not prepared to say that the outcome is so certain one way or the other that the application ought not to be decided on the balance of convenience.

On this second issue, Mr. Deverell submitted that the judge had misdirected himself when he spoke of the effect of an injunction being that the respondent company's products would "be taken off the market". He submitted that there would be nothing to prevent the respondent company continuing to sell its fruit juices under the name it has recently adopted, provided only that it did so under a different get-up. I think that is so.

On the whole, however, I think the harm the respondent company would suffer as the result of an injunction, if it succeeded in the suit, is likely to be greater and graver than that which the appellant company would suffer from the refusal of an injunction, should it be successful. Moreover, and I attach particular significance to this, I cannot see that the appellant company would suffer any loss that could not be sufficiently compensated by an award of damages, and it has not been suggested that the respondent company would not be able

to meet any award that might be made. For these reasons, I think the judge was right to refuse an injunction.

I find the question of costs a difficult one. The appellant company has succeeded on the preliminary objection but it has failed in its attempt to obtain an injunction, the substantial matter in issue. On the other hand, the finding of the judge on the likelihood of success in the suit was so strongly expressed that I think the appellant company had to come to this Court, and on that issue, it has had a measure of success. I think the fairest order would be that each party bear its own costs in this Court. I would leave undisturbed the order for costs in the High Court.

Sir William Duffus P: I agree, and as Mustafa, J.A. also agrees, the appeal is dismissed in accordance with the order set out by the Vice-President.

Mustafa JA: I have read and agree with the judgment by Spry, V.-P. and I concur in the order proposed by him.

Appeal dismissed.

For the appellant:
WS Deverell (instructed by *Kaplan & Stratton*, Nairobi)

For the respondent:
SC Gautama and *AB Shah* (instructed by *Shah & Parekh*, Nairobi)

Hassanali v City Motor Accessories Ltd and others
[1972] 1 EA 423 (CAN)

Division:	Court of Appeal at Nairobi
Date of judgment:	7 July 1972
Case Number:	13/1972 (105/72)
Before:	Spry V-P, Lutta and Mustafa JJA
Sourced by:	LawAfrica
Appeal from:	The High Court of Kenya – Miller, J

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[1] Civil Practice and Procedure – Judgment – Consent – Grounds for varying

[2] Civil Practice and Procedure – Judgment – Instalments – Default – Reason for non-payment irrelevant

[3] Costs – Interest on – Award of – Not normal to award interest on costs.

Editor's Summary

A consent judgment made against the respondents provided for payment by instalments and that in default of any payment the full amount would become due. A cheque which was presented for payment on the last day was dishonoured. The appellant thereupon claimed the full sum.

The respondents attempted to show that their bank had been at fault. The judge in his ruling stated that the respondents should be deemed not to have defaulted.

Held –

(i) the respondents had defaulted and any fault by anyone else was irrelevant;

(ii) the court cannot interfere with a consent judgment except in circumstances which would afford good ground for varying or rescinding a contract between the parties (*Hirani v. Kassam* (1) followed);

(iii) it is not the normal practice to award interest on costs and there was no warrant for a departure from this in the present case.

Appeal allowed.

Case referred to in judgment:

(1) *Hirani v. Kassam* (1952), 19 E.A.C.A. 131.

Judgment

The following considered judgments were read. **Spry V-P:** This is an appeal from two orders of the High Court. The facts, briefly, are that the first respondent, a limited company, bought certain stock-in-trade from the appellant, who is the liquidator of a company in voluntary liquidation. Half the purchase price was paid at the time of the sale and the balance was to be paid by five instalments, payment of which was guaranteed by the second and third respondents. Two of the instalments were duly paid but there was default in respect of the third. The appellant filed a suit against the three respondents for the amount outstanding and in due course applied, under O. 35, r. 2 of the Civil Procedure (Revised) Rules 1948, for summary judgment. The respondents then filed a chamber summons under O. 20, r. 1 asking for an order that payment be by instalments and offered monthly instalments of Shs. 4,000/- from the first respondent and Shs. 1,000/- each from the other respondents. The two applications were heard together and the following order made–

> "Order (1) By consent judgment as prayed in the plaint together with costs of the motion and this application.
>
> (2) Judgment debt to be liquidated by instalments.
>
> First of Shs. 25,000/- on or before 5 January 1972.
>
> Second of Shs. 10,000/- on or before 5 February 1972.
>
> Third of Shs. 10,000/- on or before 5 March 1972.
>
> (3) Matter to be listed in chambers on 8 March 1972 for further consideration of payment of balance then due.
>
> (4) In default of any of the above instalments the whole amount then due to become immediately payable and decree to issue."

It is clear from a subsequent ruling of the judge that the words "by consent" apply to the whole order and not merely to the first paragraph. The order was duly embodied in a decree.

The first two instalments payable under the decree were paid. The third was payable "on or before" 5 March, a Sunday. A cheque in respect of it was drawn on 3 March by a company known as Kenya Automobiles and Hardware Ltd., which is apparently associated with the first respondent. It was sent to the appellant on 4 March. It is not clear from the record when it was received by him but it was presented on 6 March, when it was dishonoured.

The matter came before the court again on 8 March, when an order was made by consent for adjournment until 16 March and it was ordered "Defendant's affidavit to be served on plaintiff on or before 14 March 1972". We were informed by Mr. Ahamed, from the Bar, that at this stage no-one was aware of the default, that the matter before the court was paragraph 3 of the order quoted above and that the affidavit referred to was to deal with the financial affairs of the respondents.

The second respondent filed an affidavit on 14 March, the greater part of which related to the third instalment although it did touch generally on the affairs of the first respondent. As regards the third instalment, the second respondent alleged that the cheque had been wrongly dishonoured, as there had been sufficient funds in the bank account on 6 March to cover it. He testified that as soon as he learned that the cheque had been dishonoured, he tendered

Shs. 10,000/- in cash to the appellant's advocates and when they refused to accept it, paid that amount into court.

The hearing was resumed on 16 March, when Mr. Khanna claimed that there had been default in paying the third instalment and that accordingly the whole amount had become due and the appellant was entitled to execute. After argument, the judge gave the following extempore ruling–

> "The bank statement shows that on the 6 March 1972 there was sufficient money to the credit of the debtor to meet the cheque. It appears that a few of the payments-in had not been swiftly posted to the account; a Sunday intervening. The debtor made reasonable attempts to rectify the situation as shown in his affidavit; and upon the refusal of the sum tendered to the creditor the debtor promptly paid the instalment into court. I do not think that in the circumstances it can be said with certainty and fairness that the debtor was at fault in meeting the instalment due. Sections 95 and 97 Civil Procedure Act. There is now the further matter to be considered in payment of the balance due."

Mr. Khanna applied for, and was granted, leave to appeal from this decision.

Mr. Gautama then asked the court to proceed to deal with "the other aspect of the pending application", that is to say, the application for payment by instalments of the remaining balance. Mr. Khanna objected that, pending the hearing of the appeal, the court had no jurisdiction to proceed. In a reserved ruling dated 20 March, the judge held that it would not be proper to proceed and gave leave to appeal from that decision.

The first ground of appeal argued by Mr. Khanna was that the judge had erred in holding that the respondents had not defaulted. He submitted that there was no evidence that the bank had been at fault and even if it had been, the fact would be irrelevant as regards the issue of default. I agree that there is no evidence that the bank was at fault. A statement of account which was exhibited in support of the second respondent's affidavit shows that the balance at the close of business on 6 March would have covered the cheque but not the balance at the opening of business. There is nothing whatever to show that there had been any delay in posting credits. I agree also that even if the bank were at fault, that might explain or excuse default on the part of the respondents, but it would not alter the fact that there had been default. The question whether or not there has been default is a simple one of fact. If the judge held that there had been no default, I think, with respect, that he was clearly wrong.

I am not sure, however, that this is what he intended to say, even though this is how the formal order was expressed. In the first place, in his second, reserved, ruling, the judge, speaking of his earlier ruling, said–

> "the court ruled that in the circumstances the judgment debtor should be deemed as not having defaulted in paying the said instalment on its due date."

This statement was criticised by Mr. Khanna, who submitted that only Parliament can deem something to be what it is not: to do so is not within the powers of a court. Again, with respect, I must agree.

Secondly, in the first ruling, after the statement that the debtor could not be said to be at fault, there appears a reference to ss. 95 and 97 of the Civil Procedure Act. These are the sections which respectively confer the general power to extend time and preserve the inherent powers of the court. If the respondents were not in default, there was no need to invoke either of these sections. It is true that the judge did not expressly say that he was relying on these sections, or either of them, but this was an extempore ruling and I think it must be inferred

Thirdly, it will be noticed that the judge remarked that it could not be fairly said that the respondents were “at fault”; he did not say “in default”.

Taking all these factors into account, I think that what the judge was really saying was, that while the respondents were in default, he thought they were not blameworthy and would use any appropriate powers to give them relief. Such an attitude would be unexceptionable and this Court would be very reluctant to interfere with a discretion so exercised. The question is, however, whether in law the judge had any power to give relief.

Mr. Khanna submitted that where a court has made an order by consent of the parties, it has no power to vary that order except by consent or for reasons which would justify interfering with a contract. He cited *Hirani v. Kassam* (1952), 19 E.A.C.A. 131, in which this Court quoted with approval the following passage from the judgment of the trial judge–

> “The mode of paying the debt, then is part of the consent-judgment. That being so, the Court cannot interfere with it except in such circumstances as would afford good ground for varying or rescinding a contract between the parties.”

It seems to me that the words I have quoted are exactly in point here.

Mr. Gautama’s argument was largely a plea ad misericordiam. He conceded that “technically” there had been default but submitted that in the interest of justice, the respondents should be regarded as having, substantially if not technically, complied with the order. He conceded, on the authority of *Hirani’s* case, that if the consent judgment had been a final one, the court would have been powerless to give relief but he argued that in the present case, the judge was dealing with an interim order and claimed that this would justify distinguishing *Hirani’s* case. With respect, I am not persuaded that this is a valid distinction. The order, so far as it went, was final. It was final so far as judgment was entered as prayed. It was final so far as the three instalments were concerned, and it expressly provided for default. It was only inconclusive in so far as it left undetermined the amounts and dates for payment of the instalments by which the balance was to be paid, a matter which only fell to be considered after the three instalments had been duly paid.

On the more general argument, it appears to me that when the default occurred, the whole amount outstanding became due and the appellant became entitled to apply for execution. Sympathy for a debtor is no reason for depriving a creditor of his rights. There is no suggestion that the appellant has been guilty of any misconduct.

In my view, the appeal must succeed and the two rulings must be set aside.

Mr. Khanna also asked for the costs of the appeal and of the High Court proceedings, with interest thereon, and in each case a certificate for two advocates. The judge reserved the question of costs in the High Court. I think the appellant must clearly be awarded his costs in the High Court and in this Court but I do not consider the matter to be one justifying a certificate for two advocates, either in the High Court or in this Court. I have no doubt that this Court has power to award interest on costs but it is not the normal practice and I do not consider that the facts of this case call for or warrant a departure from the normal practice.

As the other members of the Court agree, it is ordered that the appeal be allowed with costs, that the orders of the High Court dated 16 March 1972, and 20 March 1972, be set aside and that the appellant be awarded his costs in the High Court of the proceedings resulting in those orders. There will be no

certificate for two counsel and no order for interest on costs. The appellant is at liberty to apply for execution of the decree.

Lutta JA: I agree.

Mustafa JA: I agree with the judgment of Spry, V.-P. and concur in the order proposed by him.

Appeal allowed.

For the appellant:
DN Khanna and *S Ahamed* (instructed by *Ahamed & Ahamed*, Nairobi)

For the respondents:
SC Gautama and *GS Pall*

Ezekia v Republic
[1972] 1 EA 427 (CAD)

Division:	Court of Appeal at Dar Es Salaam
Date of judgment:	19 July 1972
Case Number:	30/1972 (122/72)
Before:	Sir William Duffus P, Spry V-P and Mustafa JA
Sourced by:	LawAfrica
Appeal from:	High Court of Tanzania – Kwikima, J

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[1] Evidence – Confession – Procedure – Where admissibility disputed.

[2] Evidence – Confession – Onus – On prosecution throughout.

[3] Evidence – Notes – Made by witness – May be used to refresh memory but are not evidence.

Editor's Summary

The first appellant alleged that he had been beaten to obtain his confession and gave evidence on oath without being able to identify his assailants. The justice of the peace did not give full evidence but produced his notes made at the time which were admitted in evidence.

On appeal:

Held –

(i) contemporaneous notes may be used to refresh the memory of a witness: they are not evidence;

(ii) the burden of proving that the statement was involuntary appears to have been placed on the accused: this was incorrect.

Observations on the correct procedure to be followed when a confession is challenged.

Appeal allowed.

No cases referred to in judgment

Judgment

The considered judgment of the court was read by **Spry V-P:** The appellant was convicted of murder and sentenced to death. He was alleged to have killed one Zachariya Simbamkali.

The case against the appellant, a brother of the deceased, depended almost entirely on a confession he is alleged to have made to a justice of the peace, Allen Mbuke. No question was raised by the advocate for the appellant, Mr.

Patel, when this witness began to testify, indeed, it would seem from the record as a whole that he cannot have received proper instructions. The witness is recorded as saying that Ezekia was taken to his office to make a statement. He went on, “I recorded the transaction as per notes I took which I produce” and these were admitted in evidence. This was gravely irregular for a start. The witness might have been permitted to use the notes to refresh his memory but they were not, in themselves, admissible in evidence.

The judge then asked Mr. Patel if he wished to object to the introduction of the statement and received a negative reply. Ezekia himself, however, said that he had made the statement because he was beaten. The judge rightly decided to hold a trial within a trial. Ezekia was called to give evidence, although Allen Mbuke had given no evidence as to the circumstances in which the statement was made, the defence had had no opportunity to cross-examine him and the interpreter who had acted in the matter had not been called.

When Ezekia had given evidence in chief, the judge gave his ruling. So far as the record goes, Ezekia had not been cross-examined and had not been asked if he wished to call any witness. The judge remarked that the justice of the peace had given evidence that he had been satisfied Ezekia was a free agent and had no recent marks of injury on his body. This, according to the record, is not true; presumably, it is a reference to the “notes”. He concluded that as Ezekia could not name or identify the people he alleged had beaten him “and in view of the unreasonableness of his story”, the confession was to be admitted.

With respect, we think these grounds are unsatisfactory. If an ordinary, humble, citizen is beaten by police or local authority askaris, it is very likely that he would not know the names of the individuals involved and although the beating of prisoners is most reprehensible, we know that it does happen and therefore that such allegations cannot lightly be dismissed.

What is, however, much more serious is, as Mr. Lakha, who appeared for the appellant, submitted, that it is impossible, from a perusal of the record, to avoid the conclusion that the judge placed the burden on Ezekia of proving that his statement was not voluntary. It is well established that where the prosecution seeks to rely on a confession, the burden is entirely on the prosecution to prove that it was voluntary. This was a most grave error.

It may be desirable to set out again the procedure to be followed at these trials within trials. Immediately it is known that the admissibility of a statement is to be challenged, the assessors should be asked to retire. This should, whenever possible, happen before any mention of a statement has been made, the usual procedure being for defence counsel to inform the court that a question of law needs to be considered. The prosecution then calls all the witnesses available to prove that the statement was made voluntarily and according to law, including the person to whom the statement was made, the interpreter, if any, and any other persons who can give relevant evidence. The defence has the right to cross-examine these witnesses in the usual way. The accused then has the right to give evidence or to make a statement from the dock, and to call witnesses, whose evidence will be limited to the issue of the admissibility of the statement. On this issue, the burden of proof is wholly on the prosecution. The judge gives his ruling in the absence of the assessors, who then return to court. If the statement has been held to be admissible, the prosecution evidence regarding it is given again and the witnesses are again cross-examined, because, although the issue of admissibility has been decided, the circumstances in which the statement was taken may affect the weight to be attached to it and for this reason the assessors are concerned with them.

If this confession is excluded, as we think it must be, very little evidence against Ezekia remains. It appears that, after the body of the deceased had

been found, some three months after the murder, Ezekia handed to the police a hammer and a rungu which were in his house and which are alleged to have been used in the killing. Even on this matter, there is some conflict of evidence between two police witnesses. Ezekia was also implicated in a confession made by his co-accused and ultimately retracted. It is well established that such a confession can only add the final assurance to an already strong case. It could not serve to establish common intent and if Ezekia's confession is excluded, there is no substantial evidence to prove any common intent and the only direct evidence is that Ezekia entered the house of the deceased after the latter had been assaulted by the second appellant and received what may well have been the fatal wound.

Ezekia elected to make an unsworn statement from the dock. In his summing-up to the assessors, the judge described this as adoption of his earlier confession. With respect, we cannot agree. We do not, of course, know the actual words he used in his own language, but as interpreted and recorded we think the substance of his statement was, that as the court had accepted the alleged confession, it was useless for him to say more.

In view of the apparent misdirection on the onus of proof in the trial within a trial, and the lack of evidence that the alleged confession was voluntary, and the paucity of other evidence against Ezekia, it would clearly not be safe to allow his conviction to stand. The case against him raises a very grave suspicion, but that is not enough. His conviction is quashed, and the sentence passed on him is set aside.

Appeal allowed

For the appellant:
MA Lakha (instructed by *SJ Jadeja & Co*, Dar es Salaam)

For the respondent:
AMA Omar (State Counsel)

Osman and another v Republic
[1972] 1 EA 429 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	28 April 1972
Case Number:	1054/1971 (127/72)
Before:	Sir James Wicks CJ and Simpson J
Sourced by:	LawAfrica

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[1] Criminal Law – Receiving stolen property – Proof that property stolen required.

[2] Criminal Law – Possession of property suspected of having been stolen – Detention by police and possession of property when detained essential ingredients – Penal Code, s. 323 (*K.*).

[3] Criminal Practice and Procedure – Sentence – Police supervision – First offender – Supervision may not be ordered – Criminal Procedure Code, s. 343 (*K.*).

Editor's Summary

The appellants sold a radio to a purchaser who became suspicious and reported to the police with the radio. As a result the appellants were arrested and charged before a second class district magistrate with handling suspected stolen property although the particulars of the offence alleged that they were found in possession of property reasonably suspected of having been stolen. On conviction the appellants who were first offenders were sentenced to imprisonment and thereafter to police supervision.

On appeal:

Held –

(i) a second class district magistrate has no jurisdiction to hear a charge of handling stolen property;

(ii) it had not been proved that the radio had been stolen;

(iii) before there can be a conviction for possession of property suspected of having been stolen:

(*a*) the accused must have been detained by a police officer in exercise of his powers under the Criminal Procedure Code, s. 26, and

(*b*) when detained, the accused must have had the property in his possession;

(iv) neither element was present and reasonable grounds for suspicion of theft had not been established;

(v) there is no power to order police supervision of a first offender.

Appeals allowed.

Case referred to in judgment:

(1) *Kiondo Hamisi v. Republic*, [1963] E.A. 209.

Judgment

The considered judgment of the court was read by **Sir James Wicks CJ:** The appellants in these two consolidated appeals were convicted of handling suspected stolen property contrary to s. 323 of the Penal Code and each was sentenced to 12 months' imprisonment to be followed by 2 years police supervision.

State Counsel informed us that he was unable to support the convictions. We agreed that the convictions could not be supported and allowed the appeals, quashing the convictions and sentences. We ordered the radio, the subject of the charge to be returned to the appellants.

We now give, briefly, our reasons.

The charge indicates some confusion between handling stolen property contrary to s. 322 and possessing or conveying suspected stolen property contrary to s. 323. It is however clear from the particulars of the offence which allege that the appellants were "jointly found in possession of a suspected stolen radio" that the intention was to charge them with an offence under s. 323.

There being no evidence that the radio had been stolen a charge could not lie under s. 322. Further, the magistrate being a district magistrate of the second class, he had no jurisdiction to hear a charge under that section.

The magistrate although he considered the facts with some care unfortunately failed to consider the elements of an offence under s. 323.

In the first place the accused must have been detained as a result of the exercise of the powers conferred by s. 26 of the Criminal Procedure Code. S. 26, so far as relevant, is as follows:

> "(1) Any police officer . . . may stop, search and detain–
>
> . . .
>
> (*c*) any person who may be reasonably suspected of having in his possession or conveying in any manner anything stolen or unlawfully obtained."

In the second place it must be proved that at the time he was detained the accused had in his possession property reasonably suspected of having been stolen or unlawfully obtained (see *Kiondo Hamisi v. Republic*, [1963] E.A. 209).

According to the evidence adduced in the present case the two appellants sold or bartered a radio for tobacco worth Shs. 350/-. The purchaser becoming

suspicious later because the receipt produced by the appellants appeared to refer to a different radio and to cover himself as he said took the radio to the police station. The senior sergeant in charge then proceeded to look for and arrest the two appellants. From this, it is clear that the appellants were neither detained in the exercise of the sergeant's powers under s. 26 of the Criminal Procedure Code nor were the appellants at the time of arrest in possession of the radio.

If the charge had been properly framed in accordance with the provisions of s. 323 and the directions given by Spry, J. (as he then was) in *Kiondo Hamisi v. Republic* the elements to be proved would have been clear.

It may be added, although this is not a ground on which we allowed the appeal, that it is to be doubted that there were grounds for reasonable suspicion that the radio had been stolen and, if there were such grounds, the appellants appear to have discharged the burden which lay upon them of satisfying the court that they came honestly by the radio (see again *Kiondo Hamisi v. Republic*).

Finally since the appellants were first offenders the magistrate had no power under s. 343 of the Criminal Procedure Code to order police supervision.

For these reasons we allowed the appeals.

Order accordingly.

The appellants appeared in person.

For the respondent:
JB Shilenje (State Counsel)

Republic v Salum
[1972] EA 431 (HCT)

Division:	High Court of Tanzania at Mwanza
Date of judgment:	10 May 1971
Case Number:	70/1970 (129/72)
Before:	Mnzavas Ag J
Sourced by:	LawAfrica

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[1] Traffic – Unlicensed public service vehicle – Second conviction – Cancellation of registration and licence of vehicle mandatory – Traffic Ordinance (*Cap*. 168) *s*. 27*A* (*T*.).

Editor's Summary

The accused was convicted of carrying passengers for hire or reward without a public carrier's licence and although he had previous convictions an order was not made cancelling the registration of his motor vehicle.

On revision:

Held – on a second conviction there is no discretion and the court must order the cancellation of the

registration and of the vehicle licence.

Order accordingly.

No cases referred to in judgment

Judgment

Mnzavas Ag J: In this case the appellant was on his own plea of guilty convicted of two traffic offences, carrying goods for hire or reward without a public carriers licence contrary to ss. 10 (11) and 26 of the Transport Licensing Ordinance (Cap. 373), and carrying passengers for hire or reward without a public carriers licence contrary to ss. 27 (5) and 70 of the Traffic Ordinance (Cap. 168).

He was sentenced to a fine of Shs. 200/- or six months imprisonment on the first count and Shs. 600/- or six months imprisonment on the second count.

On inspection of Criminal Returns from Kahama District Court this court was of the view that the case file should come up for inspection as the sentence in count two appeared excessive. The case file has since been inspected and it has been found that the accused had two previous convictions for carrying passengers for hire or reward without public carriers licence. This being the position this court found that the district magistrate should have complied with the mandatory provisions of s. 27A (2) of the Traffic Ordinance and ordered cancellation of the registration of accused's motor vehicle as well as the vehicle's licence. A notice was therefore issued to the accused to show cause why these mandatory provisions of the Ordinance should not be complied with.

Mr. Butambala for the Republic argued that the trial court should have ordered cancellation of the registration and licence of the motor vehicle because the accused admitted two previous convictions similar to the present conviction in respect of the second count.

Mr. Tukunjoba for the accused argued that the court's power to order cancellation of registration and licence under s. 27A (2) was discretionary and that this discretionary power should be judicially exercised. It was also argued that although the accused admitted two previous traffic convictions, the record did not show what type of offences they were. Because of this, it was argued that this count should not take into account the two previous convictions.

It was further argued that the accused may have, out of sympathy, given a lift to the five passengers. Defence counsel finally submitted that it would cause great hardship to the accused if the court were to cancel his licence.

With due respect to defence counsel, I find myself in disagreement with his interpretation of the provisions of s. 27A (2) when he says that under this section the court's powers to cancel registration and licence are purely discretionary.

S. 27A (2) reads:

> "Where any person is convicted of an offence under subsection (1) the court may, and where such conviction is for a second or subsequent offence the court shall, in addition to any other penalty which it may impose–
>
> (*a*) order the cancellation of–
>
> (i) the registration of the motor vehicle used for the purpose of standing or plying for hire or for the carriage of persons for hire or reward as the case may be; and (ii) order that for such period, being not less than six months and not exceeding two years, as it may direct, such vehicle may not be registered or licensed by any person."

My interpretation of the above construction is that the court's power to order the cancellation of the registration and licence of a motor vehicle used for the purpose of standing or plying for hire or for the carriage of persons for hire or reward is discretionary only when the accused is a first offender. Where an accused is not a first offender, that is, he has a previous conviction or convictions under the same section, i.e. s. 27A (1) of the Traffic Ordinance; the court's discretionary powers in so far as the cancellation of the registration and licence of the motor vehicle involved in the commission of the offence are removed.

The Legislature having said . . . "and where such conviction is for a second or subsequent offence the court shall, in addition to any other penalty which it may impose" . . . shows that an order of cancellation of the registration and licence of a motor vehicle in case of an accused who has a previous or subsequent conviction is mandatory.

Mr. Tukunjoba's argument that the record does not show whether the two previous convictions are similar to the present conviction cannot be supported.

The record clearly shows that after the accused had been convicted of the present offence the prosecution produced accused's record which was to the effect that the accused had two previous convictions under s. 27A (1), the first conviction was in Kahama Cr. Case No. 32/70 and the second conviction was in Kahama Cr. Case No. 107/70.

When these two previous convictions were put to the accused the accused is recorded to have replied – "I admit the previous convictions to be correct."

From the above there can be no doubt whatsoever that the accused, in clear language, admitted two previous convictions under s. 27A (1). This being the position the mandatory provisions of s. 27 (2) of the Traffic Ordinance, apply to the accused.

Over and above the mandatory provisions of s. 27A (2), the record shows that the accused is an incorrigible offender. Three times in 1970 he permitted his vehicle to be used for the purpose of carrying of persons for hire or reward. Twice he was convicted and twice he was fined, but this did not deter him from committing the same offence. The accused deserves no mercy.

The registration and licence of accused's motor vehicle is hereby cancelled for a period of 12 months with effect from today, 10 May 1971.

For the avoidance of any doubt this vehicle may not be registered or licensed by anyone until the expiration of 12 months from today.

Order accordingly.

For the Republic:
WK Butambala (State Attorney)

For the accused:
SBM Tukunjoba

Jairos v Republic
[1972] 1 EA 434 (HCT)

Division:	High Court of Tanzania at Dar Es Salaam
Date of judgment:	26 March 1971
Case Number:	740/1970 (134/72)
Before:	Biron J
Sourced by:	LawAfrica

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[1] Contempt of court – Sentence – Fine only in summary proceedings – Penal Code, s. 114 (*T.*).

[2] Contempt of court – Procedure – Formal charge and opportunity to reply essential – Penal Code, s. 114 (*T.*).

Editor's Summary

The appellant was convicted by the magistrate before whom he was being tried for contempt of court and sentenced to 6 months' imprisonment. The record did not show that the appellant had been formally charged, nor that he had had any opportunity to reply.

Held –

(i) a court must frame a charge of contempt and give the accused an opportunity to reply (*Joseph Odhengo Ogongo v. R.* followed);

(ii) only a fine may be imposed in such circumstances.

Appeal allowed.

Cases referred to in judgment:

(1) *Joseph Odhengo Ogongo v. R.* (1954), 21 E.A.C.A. 302.

(2) *Morris v. Crown Office*, [1970] 2 W.L.R. 792.

Judgment

Biron J: The appellant was convicted together with another man of burglary and stealing and they were each sentenced to imprisonment respectively for three years and one year, to run concurrently and to the statutory twenty-four strokes corporal punishment. The appellant was in addition convicted and sentenced to imprisonment for six months for contempt of court. The sentence to run consecutively to the other sentences of imprisonment imposed.

The appeals of the two men against the convictions for burglary and stealing have been summarily rejected, and in this case the court is concerned only with the conviction and sentence for contempt of court, against which the appellant has appealed.

The alleged contempt occurred when the appellant's brother whom he called as a witness, was giving evidence and the conduct held to constitute contempt of court as well as the conviction and sentence are described and recorded as follows:

> "*Court*:
>
> Accused does not want to get into the dock. I have warned him several times. Accused makes disturbances in court. This is contempt of court under s. 114 Penal Code and I convict him and I sentence accused to 6 months' imprisonment."

In his petition of appeal, the appellant makes the rather telling point:

> "That Paul Petro was my witness, then I would not be stupid enough to make disturbances in the court before hearing his evidence."

It does seem rather strange that the appellant who was apparently well behaved during the course of the prosecution's case when eleven witnesses were called and gave evidence and also when his co-accused and he himself made their defences, should behave so extraordinarily when his own witness was giving evidence. However, I do not think that this court would be justified in rejecting the magistrate's statement that the appellant created a disturbance in court.

Although the magistrate has not stated under what provision he purported to act in convicting and sentencing the appellant for contempt of court, he obviously could only have acted under s. 114 (2) of the Penal Code which reads:

> "When any offence against paragraphs (*a*), (*b*), (*c*), (*d*) or (*i*) of subsection (1) is committed in view of the court, the court may cause the offender to be detained in custody, and at any time before the rising of the court on the same day may take cognisance of the offence and sentence the offender to a fine of four hundred shillings or in default of payment to imprisonment for one month."

The paragraph in subsection (1) which could constitute the offence would be (*c*), which reads:

> "(1) Any person who–
>
> (*c*) causes an obstruction or disturbance in the course of a judicial proceeding;
>
> is guilty of a misdemeanour, and is liable to imprisonment for six months or to a fine not exceeding five hundred shillings."

Ex facie the wording of subs. (2) would appear to empower a court to take cognizance of a contempt committed in front of it and sentence the offender. Even so, it does not appear that a conviction will lie under that subsection, and in any event, the magistrate's sentence was ultra vires, as the maximum sentence which can be imposed under the subsection is a fine of four hundred shillings or imprisonment for one month in default.

The Court of Appeal for East Africa in *Joseph Odhengo Ogongo v. R.* (1954), 21 E.A.C.A., 302, construed the corresponding subsection of the then s. 116 of the Kenya Penal Code, now s. 122 of the revised Penal Code of 1962, which incidentally has only amended the subsection by increasing the fine to Shs. 1,400/- or imprisonment for a month in default. Subs. (2) of the then s. 116 of the Penal Code is substantially the same as our own s. 114 (2) of the Penal Code. In the case cited the court held, quoting from the headnote:

> "(1) When a Court 'takes cognizance' of an offence under the provision of s. 116 (2), Penal Code, the Court should frame and record the substance of the charge, call upon the person accused to show cause why he should not be convicted upon that charge and give him a fair opportunity to reply.
>
> (2) In every such case the record should show that this procedure has been followed and should contain an adequate note of the accused person's reply, if any, and the Court's decision."

It is also pertinent to quote the concluding paragraph of the judgment, which reads:

> "The observation which we wish to make on this is that when a Court 'takes cognizance' of an offence under the provisions of s. 116 (2) it is in effect assuming and exercising a jurisdiction to deal summarily with the offence and that in every such case, it is essential that the Court should frame and record the substance of a charge, call upon the person accused to show cause why he should not be convicted on that charge, and give him a fair

> opportunity to reply. We have no doubt that in the instant case the trial judge did in fact follow this principle of natural justice. But we think it desirable that in every such case the record should show that this procedure has in fact been followed and should contain an adequate note of the accused person's reply, if any, as well as the Court's decision. If these particulars do not appear on the record an appellate court will naturally be hampered in the event of an appeal being lodged from the summary conviction."

Although the decision of the Court was on the Kenya Penal Code, as the corresponding provision in our Code is the same, the Court's ruling is binding on our courts. Therefore, despite as remarked, the ex facie purport of the section, it is incumbent on a court, even when acting under subs. (2), to frame a charge and call upon the accused to show cause why he should not be convicted upon the charge so framed and give him a fair opportunity to reply.

Although the construction by the Court of Appeal of the subsection rather restricts the power of a court on committal for contempt, from a practical point of view, it has the salutary effect of giving magistrates who might otherwise be carried away and act hastily, cooling time, so as to avoid such embarrassing cases like committing for contempt a court clerk for failing to produce an exhibit or a file in time, or a prosecutor for appearing late in court.

In respect of the principle of empowering a court to commit for contempt, it is pertinent to quote a passage from the judgment of Salmon, L.J., in the recent Court of Appeal case of *Morris v. Crown Office*, [1970] 2 W.L.R. 792 at p. 801:

> "The archaic description of these proceedings as 'contempt of court' is in my view unfortunate and misleading. It suggests that they are designed to buttress the dignity of the judges and to protect them from insult. Nothing could be further from the truth. No such protection is needed. The sole purpose of proceedings for contempt is to give our courts the power effectively to protect the rights of the public by ensuring that the administration of justice shall not be obstructed or prevented: *Skipworth's Case*, L.R. 9 Q.B. 230 and *R. v. Davies*, [1906] 1 K.B. 32. This power to commit for what is inappropriately called 'contempt of court' is sui generis and has from time immemorial reposed in the judge for the protection of the public."

In the result, the purported conviction for contempt of court is quashed, and the sentence imposed thereon, is set aside.

Order accordingly.

The appellant was absent and unrepresented.

For the respondent:
Miss AG Madete

Julia v Republic
[1972] 1 EA 437 (HCT)

Division: High Court of Tanzania at Mwanza

Date of judgment: 23 March 1971

Case Number: 104/1971 (135/72)

Before: El-Kindy Ag J

Sourced by: LawAfrica

[1] Criminal Practice and Procedure – Sentence – Assault on co-wife – Reconciliation preferable to imprisonment.

Editor's Summary

The appellant was sentenced to 18 months' imprisonment for an assault on her co-wife.

On appeal:

Held – where two wives had to live together reconciliation was to be preferred to imprisonment which could only exacerbate the situation.

Appellant released.

No cases referred to in judgment

Judgment

El-Kindy Ag J: The appellant, Julia w/o Kasagazi, was convicted of causing grievous harm contrary to s. 225 of the Penal Code. She was sentenced to 18 months' imprisonment. She now appeals against sentence only.

There is no doubt that on 19 November 1970 the appellant attacked the complainant, with a slasher, and caused her to suffer a fracture of the arm. This was after the complainant had asked the appellant why she had cut the other banana bunch when she had already had one. This question seemed to have provoked the appellant unduly. It is not the sort of question which could inflame anybody. The appellant agreed that she did so but pleaded that she was angered by the complainant who was a co-wife. They shared one husband, and each one of them had a separate shamba for her own use.

In sentencing the appellant, the trial magistrate said that the attack was most unjustified, and that crimes of violence were on increase in his area. He considered that the question which provoked the attack was most trivial, and I agree with him. The appellant was a first offender, and she had four children to look after. The appellant said that she was entitled to leniency in view of the fact that she pleaded guilty to the charge, and that this has been denied her for insufficient ground. I agree that the attack was most unjustified in the circumstances. Unless the appellant had other motives for the attack, the question asked of her was not annoying in anyway assuming that the shamba in which the banana bunch was cut was her shamba although I do not see how this could affect her guilt.

She rightly refrained from appealing against conviction. In spite of all this, and of serious harm she caused to the complainant although there was no evidence that the injury had led to permanent deformity, the fact that the appellant was a co-wife with the complainant was something which ought to have been taken into consideration in assessing the sentence. These women are supposed to live together, and to send one of them to prison will not help to bring about an amicable settlement. This is bound to aggravate matters. I consider that this was the sort of case where reconciliation and settlement would have served

a better purpose, as this would have healed the original assault, while imprisonment is bound to further strain their relationship. A fine and or compensation would have served the purpose. In passing the sentence, the magistrate did not pay attention to the fact that the appellant was a mother of four children. It may well be that offences of violence are on increase in the area, as the trial magistrate said, but this by itself is not sufficient to blind him from seeing the other factors which ought to have been considered. In my view the sentence imposed is so excessive that this court would be doing injustice if it did not interfere with it. I, therefore, invoke my powers of revision. The appellant has been in prison since 16 January 1971, and this is more than enough for her. The sentence is reduced so that it results in the immediate release of the appellant.

Order accordingly.

The appellant appeared in person.

For the respondent:
BA Samatta (State Attorney)

Rashidi v Republic
[1972] 1 EA 438 (HCT)

Division:	High Court of Tanzania at Dar Es Salaam
Date of judgment:	14 May 1971
Case Number:	35/1971 (136/72)
Before:	Biron J
Sourced by:	LawAfrica

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[1] Criminal Law – Theft – By a public servant – Money obtained by illegal search by policeman – Obtained by virtue of employment – Penal Code, s. 270 (*T.*).

Editor's Summary

The appellant, a detective corporal of police, was convicted of theft by a public servant by stealing money which he seized from the person of a suspect whom he searched.

The warrant under which he professed to act was invalid as it was unsigned.

On appeal he argued that the money had not come into his possession by virtue of his employment as the search was illegal.

Held – The property came into the appellant's possession by virtue of his employment even though the act was outside his authority.

Appeal dismissed.

Cases referred to in judgment:

(1) *Rashid Moledina & Co. Ltd. v. Hoima Ginners Ltd.*, [1967] E.A. 645.

(2) *Yesaya Gweseko v. Republic*, Cr Apps. 682 & 824 of 1969 (unreported).

Judgment

Biron J: The appellant was convicted of stealing as a public servant Shs. 181/15, and he was sentenced to imprisonment for two years and awarded the statutory twenty-four strokes corporal punishment. He now appeals.

The undisputed facts of the case can be summarised as follows. The appellant was at the material time a detective corporal stationed at Mahenge, the officer in charge of the district at the time being Senior Inspector Katembo. On 12 September 1969 the Uma Bar, which apparently belongs to and is run by the

Ulanga District Council, was broken into and there was stolen therefrom Shs. 247/95 in cash. The appellant was detailed to investigate the breaking-in and stealing and there was at the time under suspicion one Hababi Alli. The appellant went to the house of the suspect, which he searched. He also searched Hababi Alli, on whom he found Shs. 126/25, which he seized. Present at the time was a sister of the suspect, one Rehema Seleman, and her lover. The appellant searched them both. From the former he took Shs. 35/- and from the latter Shs. 20/-, making in all a total of Shs. 181/25 seized by him. Hababi Alli was duly charged in court and after some adjournments the case against him was withdrawn by the police for lack of evidence, and he was discharged under s. 86 of the Criminal Procedure Code. He duly asked for the return of the money that had been seized, and that set in train the course of events which ended in the prosecution and conviction of the appellant.

As the case against Hababi Alli did not proceed to a hearing, the money seized was never exhibited in court, but disappeared whilst in police custody.

[The judge considered the evidence and continued.]

On my view of the evidence, the factual finding by the magistrate that the appellant himself stole the money is fully supported and justified by the evidence. In fact, on the evidence before him, I fail to see how the magistrate could have come to any other conclusion.

The case does not, however, end there. In his petition of appeal the appellant raises the rather interesting point that the offence in this case was not theft by public servant, in that the property had never become that of the Government, nor had it come into his possession by virtue of his employment, to use the wording of s. 270. The question is by no means academic, as, if it is not a case of stealing by a public servant, the offence is not a scheduled one under the Minimum Sentences Act 1963, as it was in fact treated by the convicting court, and the appellant was sentenced accordingly. The appellant's submission, to use his own words, is set out in paragraph 2 of his petition of appeal:

> "2. That the charge of stealing by a person in the public service was not proved beyond any reasonable doubt inasmuch as two elements of the offence were not fully established – i.e. whether the property stolen was that of my employer – TANZANIA POLICE – or that of Hababi Alli; and whether the same came into my possession by virtue of my employment."

Although the appellant does not set out the grounds of his submission, it is by no means without substance, the main ground being that the money was obtained as a result of an illegal search. There was produced at the trial a search warrant authorising the search of the suspect's premises. Incidentally, the officer in charge of the station, Senior Inspector Katembo, stated that whenever the case file on the bar-breaking and theft came into his hands he saw no signs of this search warrant. Be that as it may, the search was illegal in that, even assuming that the appellant had armed himself with the search warrant before he went to search the suspect's premises, the warrant is not signed by an officer above the rank of sub-inspector or by a magistrate, as it should be. In fact it bears no signature at all. The question which therefore poses itself is whether the money seized by the appellant was the property of the Republic or came into his possession by virtue of his employment within the meaning of s. 270 of the Penal Code, which reads:

> "270. If the offender is a person employed in the public service and the thing stolen is the property of the Republic, or came into the possession of the offender by virtue of his employment, he is liable to imprisonment for seven years."

I do not, however, consider it necessary to indulge in an academic exercise as to when and when not property which comes into possession of a public servant does so by virtue of his employment within the meaning of the section, as I dealt with this question at length in my judgment, *Yesaya Gweseko v. Republic*, Cr. Apps. 682 and 824 of 1969 (unreported).

There is authority to the effect that where a public servant obtains property as a result of an act done outside the scope of his authority the property cannot be said to have come into his possession by virtue of his employment. This very narrow construction is founded on an English case. However, as stated by Sir Charles Newbold, P. in *Rashid Moledina & Co. Ltd. v. Hoima Ginners Ltd*., [1967] E.A. 645 at p. 655, with the abolition of appeals to the Privy Council, this court is no longer bound by English decisions.

Admittedly the line to be drawn between property which comes into possession of a public official by virtue of his employment or outside such employment can be very fine. In this case I consider that it cannot be disputed that the money seized by the appellant from the suspect Hababi Alli and his relations came into possession of the appellant by virtue of his employment. In this connection it is extremely pertinent to quote the appellant himself verbatim from his evidence:

> "This is the search order. It is dated 13/9/69. I wrote it myself. I filled it on 13/9/69. I have searched several houses and several persons. I do not know s. 34 of Police Force Ord. (Cap. 322). It is usually signed by an officer of above rank of Sub-Inspector. I searched house of Hababi Alli. It is not signed by a sub-inspector because my bosses were not there. In C.I.D. cases I could not trace a magistrate to sign a search order because according to our investigation work when one has received information which is suspicious and if one agrees that a delay would lead to the thing disappearing, a police officer can search. This is according to police regulations. It is not my practice to enter everybody's house. I have searched several houses without a search order. I have searched money, tusks, etc. without a search order.
>
> A police officer can't go against law. Hababi Alli was mentioned as a suspect and that is why I went to search his house. I had done my work lawfully."

Although I do not agree with the appellant that the search was lawful, I agree with the purport of his evidence that the money which he obtained as a result of the search came into his possession by virtue of his employment as a police officer.

The conviction is accordingly upheld as found.

With regard to the sentence, it is the minimum prescribed by law for, as noted, the offence is a scheduled one under the Minimum Sentences Act, 1963.

The appeal is accordingly dismissed.

Order accordingly.

The appellant was absent and unrepresented

For the respondent:
H Limihagati (State Attorney)

Tumaini v Republic
[1972] 1 EA 441 (HCT)

Division: High Court of Tanzania at Dar Es Salaam

Date of judgment: 4 June 1971

Case Number: 807/1970 (137/72)

Before: Mwakasendo Ag J

Sourced by: LawAfrica

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[1] Criminal Practice and Procedure – Bias – Magistrate – Real likelihood of bias – Effect on minds of reasonable people to be considered.

Editor's Summary

The appellant was convicted of fraudulent false accounting and theft by a public officer. On appeal he alleged that he had not received a fair trial due to the friendship of the magistrate and the appellant's superior officer. The magistrate had also incorrectly transferred the case from the court originally seized of it.

Held –

(i) in considering the possibility of bias, it is not the mind of the judge which is considered but the impression given to reasonable persons (*Metropolitan Properties v. Lannon* (6) followed);

(ii) there was a real likelihood of bias in the present case.

Appeal allowed.

Cases referred to in judgment:

(1) *R. v. Huggins,* [1895] 1 Q.B. 563.

(2) *R. v. Justices of Queen's County,* [1908] 2 I.R. 285.

(3) *R. v. Sussex Justices ex p. M'Carthy,* [1924] 1 K.B. 256.

(4) *R. v. Nailsworth Licensing Justices ex p. Bird,* [1953] 2 All E.R. 652.

(5) *R. v. Camborne Justices ex p. Pearce,* [1955] 1 Q.B. 41.

(6) *Metropolitan Properties v. Lannon,* [1969] 1 Q.B. 577.

Judgment

Mwakasendo Ag J: The appellant, Tumaini Yusto Mbuji alias Abijani, was charged before the Resident Magistrate, Dodoma, with five counts of fraudulent false accounting contrary to s. 317 (*c*) and five other counts of stealing by a person employed in the public service contrary to ss. 270 and 265 of the Penal Code. He was found guilty on all ten counts and sentenced as to each fraudulent false accounting charge to twelve months' imprisonment and for each stealing charge to two years' imprisonment. The magistrate also ordered him to undergo twenty-four strokes of corporal punishment pursuant to s. 5 (1) of the Minimum Sentences Act 1963. All these sentences were to be concurrent. He has now appealed to this Court against both conviction and sentence.

The appellant has advanced eight grounds of appeal on which he seeks to impeach the trial court's finding of guilt and sentence. But for the moment I will only refer to ground No. 5 in his memorandum of appeal, a decision on which, in my view, will govern the whole course of this appeal. I will therefore set out in full the particulars of this ground of appeal:

> "5. I do feel that I have been victimised by the finding of the trial magistrate. Besides being victimised, I was not fairly tried. I say so because:

(*a*) The trial magistrate was a best friend of my superior officer, namely, the District Medical Officer, during his visits to Mpwapwa he was the

guest of honour of my boss for lodging and boarding. He belongs to the same tribe as my boss, the District Medical Officer.

(*b*) That I had raised an objection against the trial magistrate from hearing my case for the reasons above mentioned but I was over-ruled. That during his several visits to Mpwapwa he was overheard discussing the case in a public place with the District Medical Officer."

The record of proceedings discloses that the case against the appellant first came before the Mpwapwa District Magistrate, C. M. Shilogile, on 17 December 1969. This was so because all the offences charged were committed within the jurisdiction of the Mpwapwa District Court. The record further shows that the appellant, was at all times resident within the jurisdiction of the Mpwapwa District Court. The case was again mentioned on 29 December 1969 and 23 January 1970 before the same magistrate but on 5 February 1970 the case came before the Resident Magistrate of Dodoma, N. M. Mushi, who it appears had travelled to Mpwapwa for the mention of the case. The record is however completely silent as to why it was found necessary for the Resident Magistrate to travel to Mpwapwa simply to preside over this mention. In the absence of any reasons for this visit on record, I must restrain myself from conjecturing as to its purpose. However, to refer to the record again, the case was next mentioned on 20 February 1970 and 10 March 1970 before the District Magistrate, Mr. Shilogile. But we find yet again that on the following mention date, i.e. 16 March 1970, the Resident Magistrate Mr. Mushi is the presiding magistrate. On this occasion Mr. Mushi made an order that the case was to be heard in Dodoma commencing on 25 March 1970. No reasons whatsoever are given for this sudden change of venue. I will now leave this side of the matter until later and proceed to the events of 25 March 1970.

On 25 March 1970 the case against the appellant commenced at Dodoma District Court as directed by the Resident Magistrate in his order of 16 March 1970. The Resident Magistrate himself took charge of the case. At the very start of the proceedings the appellant questioned the magistrate's qualification to preside over the case. What he said can be set out thus:

"I have confidence in the court but I have no faith in the trial magistrate. Because the trial magistrate stayed with the District Medical Officer who is a Chagga and the trial magistrate is a Chagga. The trial magistrate stayed with the District Medical Officer when he was at Mpwapwa. I would request the court to look for another magistrate to try the case. I would request the court that since the other magistrates in Dodoma are under the resident magistrate, they should not hear the case. I also request the court to choose a magistrate who would try my case and I would request the magistrate from Mpwapwa Mr. Shilogile to hear my case. I know that the magistrate at Mpwapwa is under the resident magistrate but I still want him to be the trial magistrate in this case. I also request bail because my brothers are here."

The Resident Magistrate in a brief ruling dismissed the appellant's allegations against him and said *inter alia*:

"The fact that I stayed with the District Medical Officer who is a witness in this case does not mean that I have heard the evidence. The evidence will be adduced in court and will be considered together with other prosecution evidence. There is no reason of accused being prejudiced. The fact that the District Medical Officer is a Mchagga and I am a Mchagga has no relevance in this case. The accused has no right to choose a particular magistrate for his trial."

With the greatest respect to the resident magistrate, the pith and substance of the appellant's impeachment of his integrity and impartiality in the matter was not whether he had or had not heard the material part of the evidence that was about to be led by the prosecution but rather whether or not his close intimacy and association with the principal witness for the prosecution did not make him a party substantially interested in the outcome of the case, thereby disqualifying him from hearing the case. This, in my view, is the essence of the appellant's protest to the resident magistrate. The question that I have therefore to decide is whether there is evidence in this case to show that there was a real likelihood of bias on the part of the learned resident magistrate such as would have disqualified him from presiding over the case and which if he sat would be sufficient to vitiate the entire proceedings.

[The judge considered the nature of the allegations against the appellant and continued.]

In the circumstances of this case it cannot be too strongly stressed how important the District Medical Officer's evidence was likely to be for the success of the prosecution's case. What is more, in view of the apparent conflict between the D.M.O.'s and appellant's evidence the question as to who should succeed rested wholly on the credibility of these two persons. It is with this background in mind that I have to consider appellant's impeachment of the trial magistrate's good faith and impartiality.

It is of course a well settled principle of law that before an appellate court can nullify a judgment on the ground of bias there must be proved to the satisfaction of the court that there was in the case such a real likelihood of bias as would be sufficient to vitiate the proceedings or adjudication. As to what real likelihood of bias will suffice in this regard, one has to be guided by common sense and by certain legal principles which the courts have from time to time laid down as applicable in this type of case. The first case I should like to refer to is *R. v. Justices of Queen's Court*, [1908] 2 I.R. 285, 294, which has been cited in *R. v. Camborne Justices ex p. Pearce*, [1955] 1 Q.B. 41. In the *Justices of Queen's County* case, Slade, J., described 'bias' in the following terms:

> "By 'bias' I understand a real likelihood of an operative prejudice, whether conscious or unconscious. There must in my opinion be reasonable evidence to satisfy us that there was a real likelihood of bias. I do not think that the mere vague suspicions of whimsical, capricious and unreasonable people should be made a standard to regulate our action here. It might be a different matter if suspicion rested on reasonable grounds – was reasonably generated but certainly mere flimsy, elusive, morbid suspicions should not be permitted to form a ground of decision."

Dealing with the same subject of what degree of bias will vitiate a judicial proceeding, Lord Goddard, L.C.J., in *R. v. Nailsworth Licensing Justices ex p. Bird*, [1953] 2 All E.R. 652 said at p. 654:

> "I do not in the least want to depart from what my predecessors have said on the subject because it is most important that justice should be seen to be done. Objection cannot be taken to everything which might raise a suspicion in somebody's mind as Day, J. said in *R. v. Taylor etc. JJ. and Laidler ex p. Vogwill* (1895), 14 T.L.R. 185:
>
> > 'anything at any time which could make fools suspect'.
>
> It is not something that raises doubt in somebody's mind that is enough to cause an order or judgment of justices to be set aside. There must be something in the nature of real bias. The fact that a person has a proprietary or a pecuniary interest in the subject-matter before the Court

> which he does not disclose, has always been held to be enough to upset the decision of the Court, but merely that justice may be thought to have formed some opinion beforehand is not, in my opinion, enough to do so."

In the present case, however, the appellant has not asserted or adduced any reasonable evidence of any proprietary or pecuniary interest in the proceedings by the resident magistrate. But what he is saying is that in this case there was such reasonable suspicion of bias as would disqualify the magistrate from presiding over the case. It is certainly not disputed that the present case is not one in which the resident magistrate can be said to have any proprietary or pecuniary interest. The facts are clearly not consistent with this view. But could the appellant, on the same facts, be right in alleging the existence of a real and reasonable suspicion of bias? This is a matter on which it must be frankly said that the law is not altogether clear, though one may discern from the many decided cases one cardinal principle which, in the words of Lord Hewart, L.C.J, in *R. v. Sussex Justices ex p. M'Carthy*, [1924] 1 K.B. 256 at p. 259, is that:

> "It is not merely of some importance but is of fundamental importance that justice should not only be done, but should manifestly and undoubtedly be seen to be done.
>
> Nothing is to be done which creates even a suspicion that there has been an improper interference with the course of justice."

In more recent years Lord Denning, M.R., has reiterated the same principle in *Metropolitan Properties v. Lannon*, [1969] 1 Q.B. 577, where at p. 599 he paraphrases the authorities on this subject in the following words:

> "In considering whether there was a real likelihood of bias, the court does not look at the mind of the justice himself or at the mind of the chairman of the tribunal or whoever it may be, who sits in a judicial capacity. It does not look to see if there was a real likelihood that he would or did, in fact, favour one side at the expense of the other. The court looks at the impression which would be given to other people. Even if he was as impartial as could be, nevertheless if right-minded persons would think that, in the circumstances, there was a real likelihood of bias on his part, then he should not sit. And if he does sit, his decision cannot stand. Nevertheless there must appear to be a real likelihood of bias. Surmise or conjecture is not enough. There must be circumstances from which a reasonable man would think it likely or probable that the justice or chairman, as the case may be, would, or did, favour one side unfairly at the expense of the other. The court will not inquire whether he did, in fact, favour one side unfairly. Suffice it that reasonable people might think he did. The reason is plain enough. Justice must be rooted in confidence: and confidence is destroyed when right-minded people go away thinking: 'The Judge was biased'."

With profound respect, the law applicable to the issue I have to decide is as articulated by Lord Denning, M.R., in the *Metropolitan Properties* case, and the very first question one might ask with regard to the present case is: should the resident magistrate have insisted to preside over the proceedings after the reasoned objection by the appellant? My own view is that he should not have. It may be of little or no consequence that the trial magistrate belonged to the same tribe as the principal witness for the prosecution, but where, as in this case, the principal witness of the prosecution was not only the complainant on whose evidence the case for the prosecution stood or fell but was, as the magistrate himself seems to admit in his ruling, also an intimate friend of the trial magistrate, it would be lame indeed to assert that right-minded people watching these judicial proceedings would think other than that the magistrate was biased.

This in my view is the impression that people who knew the three principal actors in this case would get. It does not matter in the least, in my opinion, that they might be completely mistaken in holding this view. It matters little too that in actual fact the trial was anything but fairly and justly conducted. So long as right-minded people thought or might have thought that the trial magistrate on account of his known friendship with the District Medical Officer would be partial in the matter, the trial court's decision cannot be maintained. Suffice here to cite by way of emphasis the words of Wills, J. in *R. v. Huggins*, [1895] 1 Q.B. 563:

> "It is impossible to overrate the importance of keeping the administration of justice by magistrates clear from all suspicions of unfairness."

I am not in the least unmindful of the fact that accused persons have not too infrequently cited Lord Hewart's oft-repeated saying that it "is of fundamental importance that justice should not only be done but should manifestly and undoubtedly be seen to be done" as a warrant for quashing convictions or invalidating magistrates' orders on what in fact are unsubstantial and flimsy pretexts of bias. However, it is my considered opinion that the case under discussion is not in this category of cases. There is here, I apprehend, a substantial and well-founded allegation of real likelihood of bias on the part of the magistrate. No doubt the conduct of the magistrate in the matter was imperceptible and unconscious but in the words of Lord Hewart, L.C.J., "Nothing is to be done which creates even a suspicion that there has been an improper interference with the course of justice". As I cannot say with any degree of certainty that justice was seen to be done in the circumstances of this case, I must with the greatest reluctance quash the proceedings and direct the re-hearing of the case before a different magistrate.

But before I conclude I should like to refer to one other matter which I think enforces the appellant's allegations of bias on the part of the resident magistrate. As already stated earlier in this judgment, the resident magistrate for no reason apparent on the record transferred the hearing of the appellant's case from Mpwapwa, the court which was seized of the case, to the Dodoma District Court which was not so seized. The State Attorney has rightly pointed out that the transfer of appellant's case was done in disregard of s. 177 of the Criminal Procedure Code, governing transfers of cases between magistrates' courts. With respect, I entirely agree, and would go a little further by saying that without necessarily imputing any malice or misconduct on the magistrate's part, the transfer of the case from Mpwapwa to Dodoma can only be reasonably explained on the ground that the trial magistrate was anxious to hear the case, to the exclusion of all others. This anxiety would also, in my view, explain the terse and remarkable ruling of 25 March 1970. In this kind of atmosphere can it be honestly said that the appellant did have a fair and impartial trial? I do not think so. I would therefore on this ground too allow the appeal, quash the proceedings and direct the hearing of the case de novo before another magistrate.

Order accordingly.

The appellant was absent and unrepresented.

For the respondent:
Miss AG Madete (State Attorney)

Kampala City Council v Nakaye
[1972] 1 EA 446 (CAK)

Division: Court of Appeal at Kampala

Date of judgment:	28 August 1972
Case Number:	22/1972 (143/72)
Before:	Sir William Duffus P, Lutta and Mustafa JJA
Sourced by:	LawAfrica
Appeal from:	High Court of Uganda – Jones, J

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[1] Damages – Special damages – Proof of – No invoices – Judge can find damages proved.

[2] Damages – Exemplary – Act in pursuance of court order – Whether exemplary damages awardable.

Editor's Summary

The respondent's house was destroyed by the appellant on an order in court proceedings against another party. The respondent was awarded the cost of items for which she could not produce receipts, the value of the house and exemplary damages.

The appellant appealed, contending that the special damages had not been proved, and that exemplary damages should not have been awarded when the appellant was merely executing the order of a court.

Held –

(i) the judge had adequately dealt with the evidence on the special damages and his award would be upheld;

(ii) the appellant was not doing anything in an arbitrary oppressive or unlawful manner by carrying out a court order (*Obongo v. Municipal Council of Kisumu* (3) considered).

Appeal allowed in part.

Cases referred to in judgment:

(1) *Ratcliffe v. Evans*, [1892] 2 Q.B. 524.

(2) *Rookes v. Barnard*, [1964] A.C. 1129.

(3) *Obongo v. Municipal Council of Kisumu*, [1971] E.A. 91.

Judgment

The following considered judgments were read. **Lutta JA:** This is an appeal by the defendant against a decision of the High Court awarding the plaintiff damages for loss resulting from the destruction of her house for which the defendant was held liable. I should point out that the original first defendant – the Mengo Municipal Council – was established under s. 4 of the Urban Authorities Act in 1962 but by S.I. 14 of 1968, it ceased to exist and was replaced by or its functions were taken over by the appellant, which was established under s. 3 of the said Act. The plaintiff was at one time married to the second defendant (who has not appealed against the decision of the High Court, and who is not now involved in this appeal) and lived with him in Kibuye from 1954. They had two children. The second defendant (to whom for convenience I shall refer as "Prince Ndaula") had a Kibanja in Kibuye and gave it to his son and permitted the plaintiff to build a house for herself on it. It is convenient to set out the letter by which Prince Ndaula gave the Kibanja to his son. It reads–

> "I, Prince Abraham Lincoln Ndaula, the owner of Kibanja village, under the jurisdiction of Mukulu wa Kibuga, have given plot No. 1 to my son Prince Kalema Wampamba. It covers an area of 50 yards by 70 yards.
>
> I have authorised his mother, Beatrice Nakaye, to erect therein her house.
>
> I am,
> A. L. Ndaula."

The plaintiff erected her house on the Kibanja in 1963 and went to live in it. It is not disputed that on 17 June 1965 the Mengo Municipal Council caused the house to be demolished as a result of a court order in criminal proceedings against Prince Ndaula on a charge of having built or permitted to be built a house on the Kibanja without approved plans, contrary to s. 15 (1) of the Town Planning and Building Law 1958. The plaintiff lost a lot of her possessions as a result of the demolition. The plaintiff claimed that she built, and paid for all the materials and labour out of her own funds. Prince Ndaula alleged that he built the house for his own son, out of his own (Prince Ndaula's) money. At that stage only one issue was framed and it was this – "Who was the owner of the building in June, 1965?" The judge concluded, after seeing and observing the demeanour of the plaintiff, Prince Ndaula and the witnesses, that Prince Ndaula gave the Kibanja to his son in 1962 and that the plaintiff built the house thereon for herself. He found, on the issue framed, that the house was built by the plaintiff from her own money and was therefore hers and not Prince Ndaula's. From that judgment there is no appeal.

Subsequently the trial judge dealt with the question of damages in another trial. He awarded damages totalling Shs. 98,350/- to the plaintiff as follows–

> Shs. 52,170/- being the value of the house;
>
> Shs. 40,000/- being the value of the household property;
>
> Shs. 180/- being rent paid by the plaintiff; and
>
> Shs. 6,000/- exemplary damages.

The defendant has appealed against that decision to this Court. Mr. Hunt, who appeared for the defendant, argued, in the first place, that the plaintiff inflated her claim and that she has not shown how she arrived at the total value of her household property. He also submitted that the value of the articles claimed as lost only added up to Shs. 24,407/50 and not Shs. 43,707/50. He submitted, relying on the case of *Ratcliffe v. Evans*, [1892] 2 Q.B. 524, that as this was special damage there must be proof by the plaintiff, in detail. Secondly, Mr. Hunt argued that Shs. 180/- being the rent the plaintiff paid to her aunt, was never pleaded and as it is special damage, the judge should not have awarded it without proof. Thirdly, Mr. Hunt contended that Shs. 6,000/- should not have been awarded as exemplary damages on the facts of this case. He submitted, if I understood him correctly, that there was no evidence of a very highhanded, arbitrary and oppressive manner by the defendant in destroying a structure which was illegally erected. Relying on the case of *Obongo v. Municipal Council of Kisumu*, [1971] E.A. 91 he argued that this was not a case in which exemplary damages could be awarded because there was no personal violence against the plaintiff and the defendant's servants were acting in obedience to a court order. Fourthly, Mr. Hunt contended that the plaintiff should have mitigated the loss to her consequent upon the defendant's wrong by, for example, recovering her property from the defendant after the latter had offered to return the property which had been removed from her house. Finally, he submitted that the judge dealt with the valuation of the house incorrectly, particularly in view of contradictions in the evidence of witnesses on this matter. He argued that in the plan of the house there was no reference to "built-in cupboards" and

that it was not certain whether joinery work followed the plan at all, nor was there evidence that the plan was ever followed. Mr. Mpungu, for the defendant, conceded firstly, that there was a mathematical error in regard to the value of the plaintiff's household articles; he argued that it should be Shs. 24,407/50 and not Shs. 43,707/50 as claimed. In regard to proof of special damage, Mr. Mpungu argued that there was evidence, although the receipts were lost, of the value of the property or the amount paid in respect of the same. Secondly, he conceded that Shs. 180/-, being the amount of rent paid by the plaintiff to her aunt, was not pleaded. He submitted, however, that there was sufficient evidence to justify the award. On the question of exemplary damages he contended that the defendant must have known that the plaintiff was protesting at the order to demolish her house because she took action as soon as Prince Ndaula informed her of the court order by causing a letter to be written to the Town Engineer and by appealing, as an aggrieved person, against the court order, to the Principal Court at Mengo. He submitted that even if the house was an illegal structure, the defendant was not entitled to demolish it in these circumstances. He further submitted, relying on s. 17 of the Town Planning and Building Law, 1958 (Buganda) that conviction of an offence, contrary to s. 15 of this law does not necessarily mean that the house will be demolished by the defendant. He also argued that the plaintiff was never served with the notice of demolition and that there was no evidence that she had notice from the Prince Ndaula about demolition. Mr. Mpungu submitted that in these circumstances the judge was right in awarding exemplary damages. With regard to the value of the house Mr. Mpungu argued that Mr. Luba, who was one of the plaintiff's witnesses had personal knowledge of the house and valued it a day after the demolition and that this evidence therefore should be preferred to that of the defendant's witnesses.

The two main issues raised by the appeal are, first, whether exemplary damages should have been awarded to the plaintiff; and secondly, whether the damages are erroneous or so high that this Court should interfere. As regards, exemplary damages, these are awarded on the principle (as a result of *Rookes v. Barnard*, [1964] A.C. 1129) that there has been wanton or oppressive and high-handed conduct by the defendant in respect of which there must be a punishment as a deterrent to others who may act in a similar manner. In other words they are awarded in order to punish the defendant in an exemplary manner and not as a compensation to the plaintiff. In the present case, the judge in awarding exemplary damages said, "It is patent from the facts of this case that Mengo Municipal Council had behaved in a very high-handed, arbitrary and oppressive manner towards the plaintiff and consequently exemplary damages should be awarded. . . . The council behaved in a monstrous and unconscionable manner. I order that they pay Shs. 6,000/- in exemplary damages". It is clear that exemplary damages in the sum of Shs. 6,000/- was awarded in order to punish the defendant for its oppressive and high-handed behaviour towards the plaintiff. The judge intended them to be punitive rather than compensatory. What was the behaviour which warranted this punishment?

The trial judge did not say. However, it would appear that the trial judge must have taken into consideration the following factors. After the court order dated 9 April 1965 in criminal case 358 of 1965 in the Magistrate's Court of Kibuga ordering the demolition of the building within two months was made, the plaintiff had caused a letter to be written to the Principal Court, Mengo, with a copy to the Town Engineer, appealing against the said order. It would seem that the said order, the relevant parts of which read:

> "As accused showed much negligence we order the dismantle of the said building by the Mengo Municipal Council within 2 months' time, and the accused to meet the costs in that work"

was not in compliance with the provisions of s. 17 of the Town Planning and Building Law (1958) Buganda which provide–

> "(1) . . . in addition to any penalties imposed, order any person convicted under section 16 to carry out such work as will enable the property in respect of which he was convicted to conform to the Scheme to remove any building or any other works which fail to conform with the Scheme.
>
> (2) In the event of any person not complying with any order made under paragraph (1) of this section, the court may authorise the Board or any other person to carry out the works or to remove any building or any other works which fail to conform with the Scheme."

It was in evidence that the demolition took place after the expiry of the two-month period. For various reasons the appeal to the Principal Court, Mengo, was not heard until after the building was demolished. The order of the Principal Court, Mengo, which is undated, states in part:

> "The complainant . . . unfortunately none applied for the order (Quia timet Injunction) to stop dismantling the building until matters are settled. . . ."

and again:

> ". . . it is unfortunate that she delayed her complaint which resulted in the loss of her building (delay defeats equity). . . ."

The trial judge probably considered that the defendant, despite having had notice through the Town Engineer that the plaintiff was appealing against the demolition order, had nevertheless proceeded to execute the said court order by demolishing the building, and thus acted high-handedly and in an arbitrary manner.

However the plaintiff was merely carrying out an order of a competent court in demolishing the building. Even if the validity of the court order was subsequently found to be open to question, it was still effective until it was stayed or set aside. The defendant had not, as was said by the Principal Court, Mengo, asked for a stay of the order pending appeal. The facts in this case are very different from those in *Obongo v. Municipal Council of Kisumu*, [1971] E.A. 91. Here the defendant was merely carrying out the terms of an order made by a court of competent jurisdiction and was not itself doing anything in an arbitrary, oppressive or unlawful manner. I do not think in the circumstances this is a case for the award of exemplary damages.

Then there is the question of special and general damages. In the first place there is the figure of Shs. 180/- being the amount the plaintiff paid to her aunt as rent for the period she stayed with her after the plaintiff's house was demolished. This was not pleaded. It is settled law that special damage must not only be pleaded but also must be proved. The judge was satisfied, from the evidence, that the amount in question was incurred by reason of the defendant's wrong and that it was proved. However, in my view, it was necessary to include a claim for this amount in the pleadings, as it was special damage, and with respect I agree with Mr. Hunt that it should not have been awarded. Secondly, in regard to the question of the value of the articles, household and personal, of the plaintiff, the latter gave evidence as to what she paid for the articles in question and stated that the receipts in respect thereof had been removed or lost as a result of the demolition of the house, and the judge believed her. I am satisfied that the judge was right in accepting her evidence in this regard and I see no reason to differ, except that the value should have been Shs. 24,407/50 and not Shs. 43,707/50. Lastly, Mr. Hunt attacked the way the judge dealt with

the valuation of the house. The judge's conclusions in this regard were based on the credibility of the witnesses. He preferred Luba's evidence to that of Mwanga. The latter visited the house six months after demolition whereas the former had personal knowledge of the house and visited it immediately after its demolition. It was for the judge to decide if he thought that in the circumstances of this case the figure of Shs. 52,170/- was the right sum.

In the result I would allow the following items:

Shs. 52,170/- being the value of the building;

Shs. 20,000/- being the value of the household property after reducing it from Shs. 43,707/50 to Shs. 24,407/50 as agreed and consequential adjustment arising thereout;

and disallow the following items:

Shs. 180/- being for rent paid;

Shs. 6,000/- being awarded as exemplary damages.

The plaintiff has succeeded in reducing the claim for the value of household property from Shs. 40,000/- to Shs. 20,000/- and in having set aside the items for Shs. 180/- for rent and Shs. 6,000/- for exemplary damages. I would award the costs of the appeal to the plaintiff, but would leave undisturbed the order for costs in the High Court.

Mustafa JA: I agree.

Sir William Duffus P: I have read and agree with the judgment of Lutta, J.A. and as Mustafa, J.A. also agrees, there will be an order as set out in the judgment of Lutta, J.A.

Appeal allowed in part.

For the appellant:
RE Hunt (instructed by *Hunt & Airey*, Kampala)

For the respondent:
PK Mpungu (instructed by *Kiwanuka & Co*, Kampala)

Janmohamed Investments Ltd v African Gramophone Stores Ltd
[1972] 1 EA 451 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	23 June 1972
Case Number:	1/1972 (146/72)
Before:	Trevelyan and Muli JJ
Sourced by:	LawAfrica

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[1] Landlord and Tenant – Forfeiture – Non-payment of rent – Six weeks arrears – Whether substantial breach.

[2] Landlord and Tenant – Forfeiture – Relief against – Not affected by Landlord and Tenant (*Shops, Hotels and Catering Establishments*) *Act* (*Cap.* 301) (*K.*).

[3] Rent restriction – Possession – Application for – Non-payment of rent – Some rent must have been in arrear for two months – Landlord and Tenant (*Shops, Hotels and Catering Establishments*) *Act* (*Cap.* 301) *s.* 7 (1) (*b*) (*K.*).

[4] Rent restriction – Possession – Application for – Non-payment of rent – Tribunal has discretion not to grant possession – Landlord and Tenant (*Shops, Hotels and Catering Establishments*) *Act* (*Cap.* 301) *s.* 7 (*K.*).

[5] Rent restriction – Possession – Application for – Other substantial breaches – Can only be breaches other than non-payment of rent – Landlord and Tenant (*Shops, Hotels and Catering Establishments*) *Act* (*Cap.* 301) *s.* 7 (1) (*c*) (*K.*).

Editor's Summary

The appellant bought the premises occupied by the respondent and wrote to it asking that the rent be handed to its director when he called. No one called on the respondent, and a fortnight after the second months' rent became due the appellant served on the respondent a notice of termination of tenancy based on s. 7 (1) (*b*) of the Landlord and Tenant (Shops, Hotels and Catering Establishments) Act (Cap. 301).

On reference to the Tribunal the notice was declared to be of no effect. The appellant appealed, contending that it had an unconditional right to terminate the tenancy, that a debtor had a duty to seek out his creditor, that the breach of the lease was a substantial one, that failure to pay rent can be another substantial breach, and that there was no discretion to refuse possession.

Held –

(i) rent has to be in arrear for a period of two months after it became due, and accordingly a notice served six weeks after the first default was bad;

(ii) the question whether any breach of a lease is substantial depends on the facts of the case (*Variety Timber Ltd. v. Musa* (1) explained);

(iii) a debtor's duty to his creditor can be waived;

(iv) the Tribunal must first decide whether a notice of termination is properly grounded under s. 7; thereafter it has a discretion whether to give the notice effect;

(v) a tenant's right to relief against forfeiture has not been removed by the Act;

(vi) "other substantial breaches" in s. 7 (1) (*c*) of the Act can only refer to breaches other than non-payment of rent.

Appeal dismissed.

Case referred to in judgment:

(1) *Variety Timber Ltd. v. Musa*, [1971] E.A. 398.

[*Editorial note:* The second finding in *Variety Timber Ltd. v. Musa* (1) should have read:

(ii) any continuing breach which may result in the forfeiture of the head lease is a substantial breach;]

Judgment

The considered judgment of the court was read by **Trevelyan J:** The appellant is the owner of a shop in Nairobi of which the respondent is the tenant. Purporting to utilise the provisions of s. 4 of the Landlord and Tenant (Shops, Hotels and Catering Establishments) Act (Cap. 301) it served upon the respondent a notice dated 30 April 1971 terminating its tenancy thereof. The respondent referred the notice to the Nairobi Business Premises Tribunal which ordered that it should be given no effect, and from that order the appellant appeals to this Court. The appellant contends that it had an unconditional and irrevocable right to terminate the tenancy with which the Tribunal could not properly interfere and that, even if it did not, the Tribunal in any event came to the wrong decision on the facts before it. We are unable to agree.

The shop was leased to named lessees by a lease dated 6 April 1967 for a term of five years and ten months from 1 March 1967 at the monthly rent of Shs. 3,231/- payable "monthly in advance on or before the fifteenth day of every month". The lease contains a number of covenants, two of which are of particular concern to us. They read as follows:

> "(i) to pay the rent hereby reserved on the days and in the manner herein stated;
>
> (ii) to pay to the Lessor forthwith on demand by way of additional rent thirty-three and one-third percent of the amount by which the aggregate annual sum payable at anytime during the continuance of this Lease for rates and taxes to the City Council of Nairobi and/or any other Municipal or Governmental authority in respect of the said piece of land and/or the buildings and improvements erected thereon shall exceed the amount paid to the City Council of Nairobi for unimproved site value tax for the year One thousand nine hundred and sixty-six."

It also contains a proviso for re-entry if the rent or any other payment becoming due and payable thereunder should remain unpaid for seven days after any of the days therein reserved for the payment thereof, whether legally or formally demanded or not. There are, of course, other provisions therein as well, but they need not concern us.

In December 1968 when the lease had just four years to run, it was assigned to the respondent subject to the terms and conditions in it contained and, in January 1971, its benefit was transferred to the appellant. A few weeks after that, on 18 February, Messrs. Maini and Patel, a firm of advocates who had hitherto been collecting the rents, wrote to various tenants, including the respondent, that their premises having been sold to the appellant they had "to pay all . . . future rents as from 1 February 1971, to the said company or as directed by them". The letter went out late enough, but we are not concerned with that for it is common ground that the rent due in that month was paid. Up to this time there was not, and never had been, any suggestion that the respondent was not in all respects a satisfactory tenant. But after not too great an interval of time the appellant's advocates castigated it as careless and unmindful of its obligations. Let us, then, explore what, if anything, occurred in the space of a few short weeks justly to provoke such criticism.

On 17 March Mr. Janmohamed the appellant's managing director wrote a letter to the respondent which reads as follows:

> "Dear Sirs,
>
> Re: Plot 586, Government Road, Nairobi – Premises occupied by you and now owned by us.
>
> We shall be obliged if you will kindly favour us with your cheque to cover this amount in respect of premises rented to you in the above building.
>
> (1) Rent – Shs. 3,231/- for March 1971 payable in advance and now due.
>
> (2) One third of 1971 Site Value Tax already paid by us to the City Council of Nairobi, i.e. 1/3 of Shs. 25,987/- = Shs. 8,662/50.
>
> Please hand the total cheque for the above two items to the writer when he is in Nairobi when he calls for same and treat this matter as very urgent."

We are asked to read the two paragraphs together and to interpret them as meaning that the rent was to be paid on or before Mr. Janmohamed's visit. But that is not an interpretation which commends itself to us. The first paragraph simply indicates that a cheque for the amount mentioned was required and the second says that it would be collected. But even if this be not the correct interpretation, the respondent could understandably have read it so; as it did. What cannot be in doubt, however, is that the fact of non-payment was not criticised. At any rate, the respondent waited for Mr. Janmohamed to call but, as the Tribunal found, and was perfectly entitled to find,

> "There is a letter of 17 March 1971 where the landlord writes to the tenants to keep cheque ready for him to collect when in Nairobi. The landlords never went to collect the rent."

In the result, neither the March nor the April payment of rent was made because, as Mr. Shah the respondent's director put it "I waited for the landlord to come for the rent". We cannot see that Mr. Shah's inaction calls for criticism. It is true that the letter of 17 March only speaks of "the March rent" but the respondent cannot be blamed for thinking that as the rent due in March was to be called for, it was not expected to send on that due in April. Whether it would have remained blameless had it waited another month or two is not for us to consider. Be that as it may, having lulled the respondent into inactivity, at worst deliberately and at best inadvertently, and without giving any warning of what it proposed to do, the appellant served its notice on the respondent. The grounds on which termination was sought were stated therein to be as follows:

> "1. You have on or before the 15th of month failed to pay–
>
> | | |
> |---|---|
> | *a*. Rent for the month of March, 1971 | 3231 – 00 |
> | *b*. Rent for the month of April, 1971 | 3231 – 00 |
> | *c*. 1/3rd of the increase in 1971 Site Value Tax over the figure for 1966 forthwith or on demand | 4912 – 35 |
> | Total Shs. | 11374 – 35 |
>
> 2. You have committed substantial breaches of your obligations under the tenancy–
>
> *a*. failed to pay the rent on the days reserved or in advance;
>
> *b*. failed to observe the covenant as regards payment of site value tax;
>
> *c*. allowed your rent and Site Value Tax to remain in arrears to the extent of Shs. 11,374/35."

When the notice reached Messrs. Maini & Patel, they wrote to the appellant's advocates enclosing a cheque for the outstanding rent and site value tax differential, declared themselves to be astonished at receiving the notice, said that they were "not particularly interested in this kind of trickery" and warned that if the notice were not withdrawn, it would be referred to the Tribunal. We share their astonishment and, when one bears in mind that trickery means or involves some artifice or stratagem, their language may be thought to have been perhaps too robust and direct but not inapt or inaccurate. The reply by the appellant's advocates was much as one would, in the circumstances, have expected. It referred to the respondent already having been in default with its obligations under the lease, that payments would "if at all" have been accepted without prejudice to the right to re-enter and determine the lease and that the letter under reply constituted a wanton and grave libel on the landlord for which legal action would be taken, and then, notwithstanding that the notice had said that payments would be accepted without an intention to waive the breaches, it ended:

> "The cheques lie unaccepted, unless you agree they may be taken without prejudice to the right to determine the lease already exercised which cannot be overridden by the Tribunal or the Courts, who are there to enforce contracts."

And all cheques sent were thereafter to "lie unaccepted".

Approaching its task, the Tribunal said:

> "The points to consider in this case are whether the tenants have been irregular in payment of the rent and also whether two months' rent was in arrears at the time of the notice. On the first point, the landlords having bought the property in January, 1971 and having been paid February rent in time, tenants cannot be said to be irregular. On the second point, at the time notice was given two months' rent was due, but we must consider why this was so. . . . A letter by Maini & Patel to Messrs. Khanna & Co. explains the tenant's reaction on receipt of the notice. It is clear that the tenants were and have been willing to pay rent and share of site value tax, but landlord refused to go and collect as he had stated in his letter of 17 March 1971. It seems that no firm arrangement was made how rent was to be paid.
>
> We find therefore that the notice to terminate the tenancy shall have no effect, reference is therefore allowed with costs to be assessed."

This decision was roundly attacked by the appellant's advocate. He said that "refused to go and collect" was not a possible finding on the facts, that "no firm arrangement was made" was a misdirection because of the covenant in the lease, that by referring to the respondent not having been irregular in its payments the Tribunal disclosed that it understood neither the law nor the facts, that it wrongly failed to consider the doctrine of reasonableness as in Rent Restriction cases, that it did not bear in mind that the respondent had offered no excuses and was not contrite but arrogant and contumacious in its conduct and that, in any case, it "failed to appreciate that it had no power to take away, disregard, condone or override an established ground for termination."

We agree that the expression "refused to go and collect" is inaccurate. It should have been "did not go and collect". But no importance can possibly be attached to so minor an error. But beyond this there is no validity in any of the criticisms which were put forward. The comment about there having been no firm arrangement refers not to the lease but to Mr. Janmohamed's visit to the shop in February and the letter of 17 March, that about there having been no

previous irregularity simply introduced what the Tribunal considered to be the main issue before it relating to the rent, the doctrine of reasonableness did not fall to be transplanted from one piece of legislation to another and, as is patently obvious, the sympathies of the Tribunal lay with the respondent and not with the appellant. We shall deal with the legal issue raised in a moment.

But the Tribunal did err both in regard to the rent and to the site value tax differential. Let us first consider the matter of the rent. S. 7 (1) (*b*) of the Act reads:

> "Where under section 4 of this Act a landlord has served a notice of termination of a controlled tenancy on the tenant, the grounds on which the landlord seeks to determine such tenancy may be such of the following grounds as are stated in the aforesaid notice – (*b*) that the tenant has defaulted in paying rent for a period of two months after such rent has become due or payable or has persistently delayed in paying rent which has become due or payable;"

Accordingly, leaving aside the alternative ground of persistent delay, it is not a question as to whether "at the time notice was given two months rent was due" as the Tribunal put it, but as to whether at that time there was a default in paying rent "for a period of two months after such rent [had] become due or payable". It seems to us that it was assumed, at least by the appellant, that the provision that rent should be paid in advance on the fifteenth day of each month must mean that payment was required to be made on the fifteenth day of the month in respect of which it was due, but we do not see how this can be so. Under the lease, each monthly period begins on the first day of a month so that, as we see it, rent is due for a particular month on the fifteenth day of the month preceding it. Accordingly, as a payment of rent was made in February, no rent was owing for March though, of course at the time when the notice was given, the rent for April and May had already fallen due for payment but was not paid. Even, however, if rent were required to be paid as was assumed, it can make no difference to us for, on the facts, the only date from which a default under the section can be calculated is yet 15 March, i.e. the first date on which a payment fell due but was not made, and the notice having been given only six weeks later, was given too soon. We were invited to interpret the section by reading the words "rent for a period of two months" together, and so to hold that because no rent was paid on 15 March and 15 April, there was a default for a period of two months, but we cannot do so for this would ignore the words which follow, i.e. "after such rent has become due or payable". We think also that there is some support for our view in the fact that paragraph (*b*) has alternative grounds. In other words, it seems to us that the first of them envisages one delay of two months whilst the second deals with cases such as where a tenant has persistently paid his rent at a date later than when due even if only a few days later. But we are not to be taken as declaring the law in relation to persistent delay for it was not argued before us, the notice not having been based thereon.

In regard to the site value tax differential, this was to be paid "forthwith on demand" and the letter of 17 March asked for it to be paid when Mr. Janmohamed called for it. On the finding of the Tribunal, with which we see no reason to quarrel, Mr. Janmohamed "never went to collect". Accordingly, we do not think that there was a demand to be disregarded. Moreover, the demand should have been for the amount provided for in the lease and not for an inflated figure. It will be recalled that the letter of 17 March asked for Shs. 8,662/50 whereas the notice gives a figure of only Shs. 4,912/35. Even were the notice a valid one, therefore, the ground alleging that the respondent failed to observe the covenant in regard to the site value tax differential was not proved. But even if it could properly be said that there was a demand therefor and a breach

thereof, that breach could not on the facts, and with due regard to the English language, be described as substantial as the notice claims. We were told that such a finding is not open to us because of the decision in *Variety Timber Ltd. v. Musa*, [1971] E.A. 398 summarised in its headnote as:

> "(ii) any breach which may result in forfeiture is a substantial breach;"

but it is. With respect, it seems to us that the question as to whether or not a breach is substantial must depend on the particular facts obtaining. Indeed when we asked counsel whether it could validly be urged that because a lease contained a forfeiture clause and the rent was paid one day late, there must be said to have been a substantial breach, he said that it could not. But then we do not think that the headnote in any event accurately reflects the judges' views for on p. 400 we find:

> "A breach of the terms of a lease which, as here, may at any time immediately result in the lessor's own title being forfeited by a superior owner is, by its very nature, a substantial breach . . ."

and at p. 404 we have:

> "It is common ground, of course, that the lessee has been carrying on retail trade on this plot and that this constitutes a breach of condition 5 of the grant or head lease.
>
> This means that the plot is not being used for the purpose for which it was expressly granted. Knowing this and knowing of the existence in the lease of a clause prohibiting acts which might lead to forfeiture, no judicial tribunal properly directing itself can – or, at least, should – come to a conclusion that 'no substantial breaches' of the lease have been committed."

We accept, as we were asked to do, that at common law a debtor is under a duty to seek out his creditor in order to discharge a debt which he owes him. But this general duty can be displaced by contract or estoppel, if not by waiver or some other means. How, indeed, can a debtor whose creditor has told him to withhold payment be blamed for inaction? It is true that in this case the proviso in the lease to which we have drawn attention says that the lessor is not required to make any demands and that the respondent took its assignment of the lease subject thereto, but this does not affect the law to which we have just referred for all that the proviso does is to reproduce it. In any event, in deciding whether or not it should give effect to the notice, the Tribunal was obliged to consider why the two months' rent was not paid for it could not otherwise properly have exercised the discretion which it undoubtedly had in regard thereto. When, having done so, it indicated that Mr. Shah was right in waiting for Mr. Janmohamed to call and so could not be blamed for inactivity, it came to the only possible decision open to it on the facts.

We have drawn attention to the appellant's claim to an unconditional and irrevocable right to terminate the tenancy and we have indicated that we do not agree with it by saying that the Tribunal had a discretion as to whether or not it would give effect to the notice. We will now give our reasons. In the first place, on the facts of this case the appellant would, on the argument which it advanced, be entitled to terminate the lease simply because of a small default in the payment of rent which itself brought about, which is contrary to the whole intention of the Act as expressed therein and, in the second place, s. 9 (1) of the Act which deals with the Tribunal's powers lays down that:

> "Upon a reference a Tribunal may, after such inquiry as may be required by or under this Act, or as it deems necessary – (*a*) approve the terms of the tenancy notice concerned, either in its entirety or subject to such amendment or alteration as the Tribunal thinks just having regard to all the

> circumstances of the case; or (*b*) order that the tenancy notice shall be of no effect; and in either case (*c*) make such further or other order as it thinks appropriate."

We are asked to say that this subsection contains language that is loose and ambiguous, but this criticism possesses not even a tenuous affinity to reality. The language is simple and concise and, for all that was urged, leaves room neither for contest nor doubt. Where there is a reference under the Act the Tribunal may do one of two things, approve the notice under s. 9 (1) (*a*) or order that it shall be entirely ineffective under s. 9 (1) (*b*). Our attention was drawn to the words "all the circumstances of the case" in (*a*) as showing that a discretion is there given but none is given in (*b*). But we do not accept that, for (*a*) simply explains how the discretion to amend or alter the notice is to be exercised within the framework of the Tribunal's general discretion whilst (*b*) gives a general discretion and leaves it at that. A tribunal must, of course, first satisfy itself that a notice is properly grounded under s. 7 but thereafter it has a discretion to give effect, or not to give effect, to the notice, and as long as it acts on proper principles this court ought not, at any rate in the ordinary course of events should not, interfere with the decision at which it arrives. We think that we should also say that were we of the opinion that the language of s. 9 (1) were loose and ambiguous, we should certainly have interpreted it with the preamble to the Act in mind, i.e. that the Act was passed "for the protection of tenants . . . from eviction or from exploitation. . . ."

Much of the argument that the Tribunal possesses only very restricted powers, has no discretion and so on, stems from a misunderstanding of s. 7 (part of which we have set out) and s. 4 which reads:

> "(1) Notwithstanding the provisions of any other written law or anything contained in the terms and conditions of a controlled tenancy, no such tenancy shall terminate or be terminated, and no term or condition in, or right of service enjoyed by the tenant of any such tenancy shall be altered otherwise than in accordance with the following provisions of this Act.
>
> (2) A landlord who wishes to terminate a controlled tenancy, or to alter, to the detriment of a tenant, any term or condition in, or right or service enjoyed by the tenant under, such tenancy, shall give notice in that behalf to the tenant in the prescribed form."

The argument, as it appears from the memorandum of appeal, is that:

> "The respondent had defaulted in paying rent for a period of two months after the same became due, giving the appellant an unconditional and irrevocable ground for termination under s. 7 (1) (*b*) and (*c*) of the Landlord and Tenant (Shops, Hotels and Catering Establishments) Act (Cap. 301)."

and

> "The Tribunal . . . could not place a restriction on the rights of the appellants, beyond what is expressly and specifically stated in the Act."

We have to confess that, try as we have, we cannot understand what this last-mentioned ground means, or is meant to mean. But we have no such difficulty, nor any difficulty at all, in understanding and rejecting what is urged in the previous one. All that ss. 4 and 7 together do, so far as we are here concerned with them, is to lay down that before a landlord can hope to get a decision in his favour, there must be a notice under s. 4 which is grounded on s. 7. There has always been a provision for relief against forfeiture of a lease for non-payment of rent or for the breach of some other condition contained therein,

and we are not persuaded that such relief was intended to be, or was, swept away by an Act passed to protect tenants. The notice itself says:

> "This notice is given under the provisions of section 4 . . . and in exercise *additionally* of the right of re-entry reserved for breaches of obligations under the tenancy."

The italics are ours.

It was finally urged that there can be a breach of covenant concerning rent under both s. 7 (1) (*b*) and (*c*) but we are unable to agree. We have already set out the section in respect of (*b*) and we now reproduce paragraph (*c*) which reads:

> "that the tenant has committed other substantial breaches of his obligations under the tenancy or for any other reason connected with the tenant's use or management of the premises comprised in the tenancy;"

so that, as we think must be the case, paragraph (*b*) concerns itself only with the non-payment of rent and paragraph (*c*) with rent not at all. In other words, in relation to the present case, the issue of rent could only have fallen under paragraph (*b*) and that to do with the differential of site value tax, under paragraph (*c*); which the notice did not recognise.

We had all the grounds of appeal read to us and we have thought on all that was said about them, but we think we need say no more than we have already set out.

We are asked to allow the appeal at least ordering a retrial, but in our view the appeal has no merits whatever and should be dismissed with costs. We so order.

Appeal dismissed.

For the appellant:
DN Khanna (instructed by *Khanna & Co*, Nairobi)

For the respondent:
SC Gautama

Income Tax v R M and another
[1972] 1 EA 459 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	15 March 1972
Case Number:	31/1972 (148/72)
Before:	Chanan Singh J
Sourced by:	LawAfrica

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[1] Income Tax – Appeal – Notice of appeal – Extension of time – No extension allowed in favour of Commissioner-General – East African Income Tax Management Act (*Cap.* 24) *s.* 101 (4).

Editor's Summary

The applicant applied to extend the time for filing an appeal against the decision of a local committee.

He had not given the respondents notice of appeal in writing within 45 days.

The respondents objected that no appeal would lie, and the applicant argued that a notice had been sent, but out of time.

Held –

(i) notice of appeal means a valid notice;

(ii) no extension of time for giving notice of appeal is given to the Commissioner-General as distinct from the taxpayer, and this must be given effect to;

(iii) extending time would have no effect where no valid appeal could be filed.

Application dismissed.

Cases referred to in judgment:

(1) *Commissioner of Income Tax v. A.Q.*, 2 E.A.T.C. 192.

(2) *Re M. P. Shah's Application*, [1958] E.A. 587.

Judgment

Chanan Singh J: When the application of the Commissioner-General of Income Tax for the extension of time for filing an appeal came up for hearing on 1 March 1972, Sir William Lindsay, for the respondents, raised a preliminary point which was that I have no jurisdiction to hear the application because of the failure of the applicant to comply with a condition precedent.

He referred to s. 101 (4) of the East African Income Tax Management Act (Cap. 24) which says that if the Commissioner-General is dissatisfied with a decision given by a local committee he may appeal to a judge "upon giving notice of appeal in writing to the other party to the appeal within forty-five days after the date on which a notice of such decision has been served on him under s. 102 (*f*)". Rule 5 of the Income Tax (Appeal to the Kenya High Court) Rules requires that a memorandum of appeal "shall" be accompanied by three documents, one being "a copy of the notice of appeal".

Sir William states that no notice of appeal was given to his clients within 45 days, and this is admitted by Mr. Khaminwa who appears for the applicant, and that, therefore, a notice of appeal cannot be attached to a memorandum of appeal. Since this is, he argues, a condition precedent to a right of appeal, the applicant cannot even apply for leave to appeal out of time and this court has no jurisdiction to hear the application.

He quotes as authority *Commissioner of Income Tax v. A.Q.*, 2 E.A.T.C. 192. In that case, a notice of appeal had been given in time and the point arose only indirectly because the counsel for the appellant had argued that the appeal,

although filed out of time was properly before the Court because the right of appeal was given by the Act (not by the Rules) and the appellant had by giving a notice of appeal required by the Act taken the first step in an appeal. Mayers, J., disposed of this argument by saying, at p. 197, that the notice of appeal was a "condition precedent to an appeal" and "not a step in the appeal". He based his conclusion on "the phraseology of rule 3 (2) which stated:

> "where notice of appeal has been given under the provisions of section 78 (2) of the Act every appeal to a judge shall be preferred. . . ."

The present rule 3 omits the words "where notice of appeal has been given under the provisions of s. 104 (4)".

That case is therefore of no assistance in dealing with the matter I have in hand.

Sir William will probably reframe his argument and urge that I reject the application because the Commissioner-General will not be able to attach to his memorandum the requisite notice of appeal and will not, even if leave is given, be able to file an appeal.

Mr. Khaminwa replies to Sir William's contention as follows. He says, first, that a notice was sent to the respondents but that it was sent after the 45 days had expired. This argument is, in my opinion, of no avail to the applicant because "notice of appeal" in Rule 5 means a valid notice, i.e. a notice given in accordance with law. It is common ground that s. 101 (4) requires 45 days' notice.

Mr. Khaminwa also argues that the respondents through their agent told the applicant's representative before the period of 45 days had expired that he realised that the decision against which the applicant is now seeking leave to appeal was made without jurisdiction, that there was, therefore, no need for the applicant to appeal to a judge against it, and that the respondents would pay the original assessments.

The agent has filed an affidavit in reply saying that these allegations are not strictly correct, but I am not at this stage concerned with the relative merits of the cases of the two parties and will not decide whose version is correct. My concern at the moment is to see whether, assuming all the facts urged by the applicant to be true, I can grant the application.

I am asked by Mr. Khaminwa not to allow the respondents to rely on s. 101 (4) which says that the Commissioner General can appeal against the local committee's decision "upon giving notice of appeal . . . within 45 days". He thinks I can do this by holding either that the applicant was kept by the fraud of the respondents' agent from giving the notice of appeal within time or that the respondents are estopped from relying on s. 101 (4) by the conduct of their agent.

Assuming for the moment that fraud is sufficiently pleaded, the question is whether I can accept Mr. Khaminwa's submission. The matter has been brought before the High Court not under its ordinary civil jurisdiction but by proceedings under a special jurisdiction conferred by statute. There would have been no right of "appeal" to the High Court if it had not been given by the East African Income Tax Management Act. For that reason, the special jurisdiction given has to be exercised in strict accordance with the terms of that Act.

S. 101 gives both the Commissioner-General and the taxpayer a right to appeal to a judge against a decision of the local committee upon giving to the other side a "notice of appeal in writing . . . within 45 days after the date on which a notice of such decision has been served upon him under s. 102 (*f*)."

If the dissatisfied party wishing to appeal to a judge is the taxpayer and he has "failed to give notice of appeal within the relevant period" then sub-section (3) enables him in certain specified circumstances to apply to the judge "for an extension of the time in which to give such notice of appeal".

If, on the other hand, the dissatisfied party is the Commissioner-General and he has failed to give a notice of appeal within the requisite period, then the law makes no provision for an extension of time. The intention of the legislature is clear. The taxpayer gets a preferential treatment. Maybe, the legislature thought the Commissioner-General who employs a large specialist staff should be able always to give a written notice of appeal within the stipulated time. If he fails to do it, then there is no extension of time for him. This is not a matter of discretion for the judge but a policy clearly laid down by the legislature.

The applicant might, perhaps, have foreseen this result and given a notice ex abundante cautela.

So far as appeals to the High Court are concerned, however, the rules treat both parties alike. Appeals are required to be lodged within 75 days but there is provision for extension of this period. The legislature did not intend any differential treatment in this matter.

The intention of the legislature being so clear, I as a judge, am bound to give effect to it.

It is not necessary for me to say what the result would have been if the Commissioner-General had invoked the ordinary jurisdiction of the court not this special jurisdiction. He could probably file a civil suit for tax due or a civil suit for damages for deceit if he was convinced that a fraud had been committed. He might also have filed a suit seeking a declaration that the decision of the local committee was without jurisdiction and therefore a nullity. He could probably also consider applying for an order of certiorari as was successfully done in *Re M. P. Shah's Application,* [1958] E.A. 587 because the period during which an appeal could be filed had expired. I am not saying that any of these proceedings would necessarily have brought the result desired by the applicant. I am merely suggesting possibilities for consideration.

The question before me is whether the applicant will, even if I grant his application to file an appeal after the expiration of the period of 75 days, provided for in Rule 3 (1) of the Appeal Rules, be in a position to file a memorandum which, Rule 5 says, "shall be accompanied by . . . a copy of the notice of appeal". Any order granting leave to appeal to a judge out of time, i.e. beyond the 75 days mentioned – will be of no use unless something can be done either to enlarge the time allowed for giving the notice of appeal or to ignore that provision altogether.

The argument for ignoring the 45 days limitation or for extending it could be based only on s. 26 (fraud) and s. 39 (estoppel) of the Limitation of Actions Act (Cap. 22) but s. 42 of the same Act makes the entire Act inapplicable to proceedings by the East African Community to recover tax. The present proceedings are to all intents and purposes brought to recover tax.

The argument cannot be based on other written law of a general nature or on common law because of the specific provisions of s. 101 of the East African Income Tax Management Act.

I hold, therefore, that the granting of the application will serve no purpose and that the point raised by Sir William Lindsay is a valid one.

Application dismissed.

For the applicant:
JM Khaminwa (Deputy Counsel to the Community)

For the respondents:

Sir William Lindsay (instructed by *Hamilton Harrison & Mathews*, Nairobi)

Okwanga v Attorney-General
[1972] 1 EA 462 (HCU)

Division:	High Court of Uganda at Kampala
Date of judgment:	28 October 1972
Case Number:	751/1970 (149/72)
Before:	Phadke J
Sourced by:	LawAfrica

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[1] Limitation of Actions – Proceedings against Government – Tort – Twelve months' limitation not affected by requirement of notice – Civil Procedure and Limitation (*Miscellaneous Provisions*) *Act* 1969, *ss.* 1, 2 (*U.*).

[2] Limitation of Actions – Transitional provisions – Manner of operation – Civil Procedure and Limitation (*Miscellaneous Provisions*) *Act* 1969, *s.* 7 (*U.*).

Editor's Summary

The plaintiff sued the defendant in tort on a cause of action which arose in August 1968, and the suit was filed in December 1970. The defendant submitted that the suit was barred by effluxion of time. The defendant submitted that there was no period of limitation once notice had been given to the Government under s. 1 (1) of the Civil Procedure and Limitation (Miscellaneous Provisions) Act 1969.

Held –

(i) the provision for notice to be given to Government before a suit may be filed is in addition to and does not exclude the operation of the specific periods of limitation in the Act;

(ii) notice has to be given and suit has to be filed within the given period.

Observations on the manner of operation of the transitional provisions.

Case dismissed.

Case referred to in judgment:

(1) *Nsubuga v. Attorney-General*, H.C.C.C. 153 of 1970 (unreported).

Judgment

Phadke J: The plaintiff claims from the defendant, who is sued as the representative of the Uganda Government under s. 11 of the Government Proceedings Act (Cap. 69), general damages for personal injuries allegedly sustained by him as the result of an incident which is said to have occurred on 10 August 1968.

Although the plaint is dated 15 September 1970, the court record shows that it was filed on 30 December 1970.

It is not in dispute that the plaintiff's cause of action arose on 10 August 1968, and that his suit is on an action founded on tort. In the defence, it is pleaded that the plaintiff's suit is time-barred by the provisions of the Civil Procedure and Limitation (Miscellaneous Provisions) Act, 1969 (which is hereinafter referred to as "the Act") which commenced on 28 April 1969.

Upon the application of counsel for both parties, I heard submissions on this issue of limitation, as a preliminary issue.

Mr. Kirenga, for the defendant, referred to ss. 2 (1) and 7 (1) of the Act, which are as under:

"2 (1) No action founded on tort shall be brought against,

(*a*) the Government; or

(*b*) a local authority; or

(*c*) a scheduled corporation,

after the expiration of twelve months from the date on which the cause of action arose.

7 (1) Where, immediately before the commencement of this Act, the time for bringing any proceedings had not already expired under any law relating to the limitation of actions then in force, and the bringing of such proceedings is barred by the provisions of this Act, the proceedings may be instituted before the expiration of twelve months from the commencement of this Act:

Provided that nothing in this subsection shall enable any proceedings to be instituted where the time for bringing such proceedings would have expired apart from the provisions of this Act."

Mr. Kirenga submitted that before the commencement of the Act, the period of limitation applicable to the plaintiff's suit was three years from the date of the cause of action, as prescribed by the proviso to s. 4 (1), Limitation Act (Cap. 70), but upon the Act coming into force the period of limitation was reduced to twelve months from the date of the cause of action, subject however to the transitional provisions in s. 7 (1) of the Act. Mr. Kirenga contended that, pursuant to s. 7 (1) of the Act, the plaintiff should have filed his suit on or before 27 April 1970, and as the suit had not been filed until 30 December 1970 it was time-barred.

Mr. Binaisa, for the plaintiff, submitted that ss. 2 (1) and 7 (1) of the Act could have no application to the plaintiff's suit because of the provision in s. 1 (1) of the Act, which is as under:

"1 (1) After the coming into force of this Act, notwithstanding the provisions of any other written law, no suit shall lie or be instituted against,

(*a*) the Government; or

(*b*) a local authority; or

(*c*) a scheduled corporation,

until the expiration of sixty days after written notice has been delivered to or left at the office of the person specified in Schedule 1 to this Act, stating the name, description and place of residence of the intending plaintiff, the name of the court in which it is intended the suit be instituted, the facts constituting the cause of action and when it arose, the relief that will be claimed and (so far as the circumstances admit) the value of the subject matter of the intended suit."

Mr. Binaisa stated that on 19 December 1969 a notice was given to the defendant of the plaintiff's intention to sue, and he produced the defendant's reply, dated 7 January 1970, which was as under.

"1. I acknowledge receipt of the Notice of a civil suit intended to be filed against the Government by your client C. Okwanga.

2. I am causing investigations to be carried out on the claim of your client and will write to you further in the matter as soon as these investigations have been completed.

3. In the meantime I must deny all liability."

Mr. Binaisa argued that the provision in s. 1 (1) of the Act for the giving of notice indicated that the intention of the Act was to stop people from taking the Government by surprise and also to give time to the Government for investigating

the claim. The Act did not prescribe any period within which, from the date of the notice, the intended suit had to be instituted. After his reply dated 7 January 1970, the defendant had not written further as indicated, and had by his own conduct deprived himself of relying upon the provisions of the Act. Equity required that the plaintiff's right be protected, and he submitted that the suit was not time-barred as pleaded by the defendant.

I do not agree with Mr. Binaisa's contention that what the Act intends is merely to stop any surprise to the Government and to give time for investigation. That appears to be the intention of s. 1 (1) of the Act but not of the Act as a whole. S. 2 (1) clearly indicates the intention to curtail the former period of limitation, and s. 7 (1) equally clearly indicates the circumstances in which, and to what extent, relief would be granted from the operation of s. 2 (1). To say that when a plaintiff gives notice of suing under s. 1 (1), the provisions of ss. 2 (1) and 7 (1) would become inapplicable to the plaintiff would not only amount to including in s. 1 (1) something which is not there, but would also be tantamount to saying that these two sections were included in the Act for no purpose whatsoever. That is an untenable contention. I am of the opinion that not only s. 1 (1) but also ss. 2 (1) and 7 (1) are fully applicable to every claimant who institutes a suit against the Government. General principles of equity cannot override or detract from the express provisions of a statute. Dealing with Mr. Binaisa's contention that the defendant should not be permitted to rely upon ss. 2 (1) and 7 (1) of the Act because he had not written further to his reply, I would mention that the defendant's reply concluded with an express statement, reading – "In the meantime I must deny all liability".

The question resolves into determining whether Mr. Kirenga's interpretation of ss. 2 (1) and 7 (1) of the Act is correct. In this I have received much assistance from the views of Saldanha, J. in *Nsubuga v. Attorney-General*, H.C.C.C. 153 of 1970 (unreported).

In my opinion, a plaintiff is bound under s. 2 (1) of the Act to institute his suit within twelve months from the date of the cause of action, but if his cause of action arose before the commencement of the Act and the former period of limitation applicable to his claim has not already expired, and his claim is not barred under the Act, he is allowed a period of twelve months from the commencement of the Act under s. 7 (1) thereof. I will state under three headings the provisions of s. 7 (1) of the Act, as I understand them.

(1) A plaintiff must have at *the commencement of the Act* a claim which is not already barred by the former period of limitation applicable to his claim. This is abundantly clear from the proviso to the section.

(2) If at the commencement of the Act the plaintiff's claim is *not* barred by any provisions of the Act, the period of limitation applicable to his claim is twelve months from *the date of his cause of action*. This provides for a case where a plaintiff, although his cause of action arose before the commencement of the Act, has had time not only to give the notice required by s. 1 (1) of the Act but also to institute his suit within twelve months from the date of his cause of action.

(3) If at the commencement of the Act the plaintiff's claim is barred by any provisions of the Act, the period of limitation applicable to his claim is twelve months from *the date of the commencement of the Act*. This provides for a case where a plaintiff who has given the notice required by s. 1 (1) finds that on the date of the expiry of the notice he has run out of the period of twelve months from the date of his cause of action.

It will be seen from what I have set out above the transitional provisions in s. 7 (1) do not prescribe a simple method of determining the limitation for

causes of action which arose before the commencement of the Act but introduce a restriction by use of the words "and the bringing of such proceedings is barred by the provisions of this Act". As was observed by Saldanha, J., the introduction of these words leads to anomalies in that causes of action which arose earlier in time would have a period of limitation larger than those which arose later. But Saldanha, J. took the view that this was no reason for not giving effect to the words in question which were unambiguous, and I respectfully agree with his view.

Now, applying my interpretation to the instant case, I state the position as under:

(1) At the date of the commencement of the Act, the former period of limitation of three years from the date of his cause of action, applicable to his claim had not expired.

(2) He could, therefore, institute his suit within the period of limitation as curtailed under s. 7 (1) of the Act.

(3) S. 1 (1) of the Act does not prescribe any period within which the notice previous to suing has to be given in relation to a cause of action arising before the commencement of the Act. The plaintiff gave notice on 19 December 1969, about ten months after the commencement of the Act but he was not disentitled to do so. After the expiry of sixty days from the date of the notice, he became entitled to file his suit. He did not file the suit until after about ten months after the expiry of the notice but he was entitled to do so at any time.

(4) When the suit was eventually instituted on 30 December 1970 it offended against the provision in s. 2 (1) of the Act as not having been brought within twelve months from the date of his cause of action, and became an action barred by the provisions of the Act within the meaning of the words "barred by the provisions of this Act" appearing in s. 7 (1) of the Act. Consequently, the period of limitation applicable to his claim, as prescribed in s. 7 (1), was twelve months from the commencement of the Act.

(5) As stated earlier, the Act commenced on 28 April 1969. The plaintiff's suit was not filed until 30 December 1970 and was eight months and three days out of time after the commencement of the Act.

In the result, I uphold Mr. Kirenga's submission that the plaintiff's suit is time barred and I rule against the plaintiff on the preliminary issue.

Case dismissed.

For the plaintiff:
E Kirenga (instructed by *Kirenga & Gaffa,* Kampala)

For the defendant:
G Binaisa QC (instructed by *Binaisa & Co,* Kampala)

Uganda v Muherwa
[1972] 1 EA 466 (HCU)

Division:	High Court of Uganda at Kampala
Date of judgment:	26 June 1972
Case Number:	98/1972 (150/72)
Before:	Mukasa J
Sourced by:	LawAfrica

[1] Criminal Practice and Procedure – Arrest by a private person on suspicion of felony – Excessive force used – Manslaughter – Criminal Procedure Code, s. 28 (*U.*).

[2] Criminal Law – Manslaughter – Excessive force in arrest by private person.

Editor's Summary

The judge found that the accused had killed the deceased by cutting his leg with a panga when he was trying to escape after having been found by the accused stealing his beans. He found that there was no intention to kill.

Held – the right of arrest of a private person, if it cannot be otherwise exercised, does not justify incapacitating the thief with a weapon.

Accused convicted of manslaughter.

No cases referred to in judgment

Judgment

Mukasa J: Abdu Muherwa stands indicted for the murder of one called Karoli, who was a porter of George William Kawesa of Mwera in Ssingo County in the Mubende District, on 2 June 1971. Karoli, hereinafter referred to as the deceased, had been a porter there for about one year, but the accused had a Kibanja there upon which he was growing his food crops.

It is not in dispute that on 2 June 1971 at about 7.30 p.m. an alarm was heard at the garden of the accused apparently made by him. It is not also disputed that people answered it, among whom was Fred Kakooza. They found the deceased lying already dead with a deep cut wound on his left thigh. There was a bundle of fresh uprooted beans, and people could see from where these had been uprooted. The accused, armed with a panga which was blood stained and a stick, told the people who had come in answer to the alarm that he had cut the deceased to death. He told them that the deceased had been in the habit of stealing his beans but on that day he had waited for him in a bush, and when the deceased started uprooting the beans he approached and cut him.

The matter was reported to the village chief first by Kakooza and later on by the accused himself, who surrendered the panga he had used. He then led the chief to the scene and after the chief had seen no signs of struggle there, he escorted the accused to the Muluka Chief for further action. The Muluka Chief also went to the scene of the incident on the following morning with the accused and did not see any signs of struggle, but he saw the bundle of the uprooted beans lying there. He forwarded the accused to the Gombolola Headquarters with the panga and the stick as exhibits.

Dr. Kafeero who did an autopsy upon the deceased's body found the deceased had been aged about 35 years and he was well nourished. He found a deep cut wound on the back of the left thigh and it had severed the muscles and the main blood vessels known as the popliteal. The cause of death was due to bleeding through these blood vessels. A sharp weapon such as a panga must have been used on the deceased with some considerable force.

The accused who made an unsworn statement in his defence had no witness to call. The accused claimed that when he saw the deceased bending down in his garden busy uprooting his beans, he went near him to arrest him there. He was armed with a panga and a stick in both his hands, but the deceased held a stick under his arm pit.

When he went about four yards only from the deceased, the latter got up and saw him. He then attacked and struck the accused on the head with the stick he carried under his arm pit. The deceased also caught him and threw him down. They got up both, but the deceased threw him down again. He then realized that the deceased wanted to kill him. He however managed to get on top of the deceased while they were still on the ground, and when he caught hold of the panga which had by then dropped down during their struggle, he thought it was the stick. When the deceased raised up his leg, this panga thus cut it and the deceased sustained that wound.

The accused raised the alarm and when people came, he told them what had happened. By then the deceased was still alive, but the people who came did not help in any way; they simply went away. He then decided to go himself and report to the chiefs.

After the village chief had gathered up some people they returned to the scene and found the deceased had by then died. The chief then arrested him and forwarded him to the Muluka Chief with both his weapons. The following morning he was forwarded to the Gombolola Headquarters from where he was eventually escorted to Busunju Police Station.

Thus, according to the accused, the deceased died accidentally in the process of his being arrested or apprehended for theft of the beans in the accused's garden.

I have given a great consideration to all the accused's story, but I am unable to believe it, in view of the evidence given by the doctor who did the autopsy and his findings. According to the doctor, considerable force must have been used to inflict this injury upon the accused, and a sharp weapon such as a panga must have been used, for the blood vessels are embedded deep in the muscles which were severed. It was unfortunate that the panga was not produced before the court to enable the doctor and the court to see its size and sharpness. The doctor was also of the opinion that the injury must have been inflicted by someone from the back of the deceased, due to the position of the wound. I believe this. I do not believe the accused's story he gave to the effect that the deceased got this cut when he raised his leg when they were struggling on the ground. If this was the case, the cut would not have been so deep as the one the deceased sustained.

Moreover Kakooza, who answered the accused's alarm to find the deceased dead, told the court that there were no signs of struggle there, apart from the bundle of the beans which the deceased had uprooted. If there were marks of struggle definitely they would have been plainly visible, for if the deceased and the accused had fallen down on top of these beans which had not yet been uprooted, these would have been heavily damaged. It cannot be said that these could not be seen because it was dark; it was only starting to get dark according to Kakooza's evidence and this I accept would be the position at about 7.30 p.m. Moreover, Kakooza and his other friend were able to see the other objects without extra aid, such as the deceased's body, the bundle of the uprooted beans, and the accused's weapons, let alone the blood stains which were on the panga of the accused. The argument by Mr. Kawoya for the accused that the marks of struggle were probably destroyed at night by the rain before the Muluka chief visited the scene the next morning with the accused, does also not hold

water, since a struggle of the nature I have already described taking place in an area where plants were growing could not be destroyed by any amount of rain falling there. The Muluka Chief also testified that he saw no signs of any struggle. Above all, this accused never complained either to the people who answered the alarm, or the village chief or the Muluka Chief that the deceased had assaulted him in any way. If the deceased had had a stick, naturally it would have remained on the scene where he dropped dead. If the deceased had used this stick on this accused, one would have expected him in the normal circumstances to have pointed it out to the people who answered the alarm, let alone to show them where its blow had landed on his body, and eventually to have forwarded it to the chiefs as the other two exhibits of his were. For these reasons I do not believe that the deceased had either a stick or that he assaulted the deceased. That is why the accused had no physical injury on him on the day the doctor examined him.

On the other hand I believe Kakooza, that the accused told them when they answered his alarm:

> "I have killed the person who has been continually stealing my beans."

I also believe the village chief when he says that the accused reported to him and said:

> "I have killed Karoli because he has been stealing my beans."

I also believe the chief when he said that the accused had no injury on him and he never complained of anything at all, and that he told them then that he had lain in wait for the deceased before he killed him, since the theft of the beans had been continual. I do not accept Mrs. Engena's submission to the effect that the accused intended to kill the deceased for the accused may not have known before who exactly was this thief, and he may not then have formed a prior intent to kill that thief. This is indicative from the number of injuries he inflicted upon the deceased and their position. One would have expected the accused to cut the deceased several occasions and on vital organs or parts of the body, such as the head; if he had intended to kill him, but he did not. The cut was one and on a leg. It was just unfortunate that this wound did sever these vital blood vessels which led the deceased to bleed to his death. The accused may have cut the deceased, who then was getting away to escape the arrest, that is why the injury is on the back of the thigh.

I do not accept Mr. Kawoya's arguments to the effect that the accused was in any way acting in self defence. The case he referred me to has no application as it is on trespass to premises. The accused was merely arresting a thief of his beans.

The only question to ask is: did the accused's acts exceed his lawful limits of arrest or not? In my view they did, although it cannot be suggested that an owner of any property may not arrest anyone found stealing. One of course is entitled to do that, and that power is specifically given to everyone by the Criminal Procedure Act, s. 28.

But one exceeding this power in fact does an unlawful act. It cannot be said that, if one cannot apprehend the thief physically, one may prevent the thief's escape by incapacitating him such as cutting his legs or shooting him.

For these reasons then I am unable to share the opinion which both assessors had. They may have been swayed away from the very essence by sympathy to the accused who had suffered these petty pilferages of his crops, but that falls to be decided elsewhere.

I therefore on the evidence before me now, am satisfied beyond all doubt that

the deceased's death was caused by the accused. I also am satisfied beyond all reasonable doubt that the accused's act which caused the deceased's death was unlawful, though he did not intend to cause the deceased's death.

I accordingly acquit the accused of murdering the deceased as he was indicted, but find him guilty of manslaughter of the deceased contrary to s. 182 of the Penal Code, and I convict him.

Judgment accordingly.

For the State:
Mrs M Engena (State Attorney)

For the accused:
Mr CK Kawoya (instructed by *Kawoya & Co*, Kampala)

Aloys v Uganda
[1972] 1 EA 469 (HCU)

Division:	High Court of Uganda at Kampala
Date of judgment:	16 November 1971
Case Number:	180/1971 (151/72)
Before:	Russell Ag J
Sourced by:	LawAfrica

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[1] Criminal Practice and Procedure – Re-trial – Factors to be considered.

Editor's Summary

The appeal of the appellant against his conviction based on inadmissible evidence was allowed. On the application of the State for a retrial:

Held – In general a re-trial would be ordered only when the original trial was illegal or defective: the trial was neither illegal nor defective and an order for a re-trial would give the prosecution an opportunity of filling in gaps in its case (*Fatehali Manji v. Republic* (1) followed).

Application refused.

Case referred to in judgment:

(1) *Fatehali Manji v. Republic*, [1966] E.A. 343.

Judgment

Russell Ag J: The appellant was charged with the offence of obtaining goods by false pretences contrary to s. 289 of the Penal Code on three separate counts. The offences were alleged to have been committed between 18 and 22 January 1971 at Tororo and consisted of obtaining books from the

Uganda Bookshop in Tororo by means of cheques for various amounts which he falsely represented were valid orders on National Grindlays Bank Ltd., Kakamega.

The accused was convicted on all counts and sentenced to 2 years' imprisonment on each count, to run concurrently.

The magistrate based his judgment on the fact that the appellant knew that his account at Kakamega branch of Grindlays Bank Ltd. had been closed by the bank on 24 November 1970 and that several other cheques drawn by the accused had been returned by that bank for that reason. The only evidence that the appellant knew his account had been closed was the evidence of the third witness for the prosecution Aninia Bakabukoza who testified that he was an assistant accountant with the bank in Tororo and that he had received a telephone call from the Kakamega branch to the effect that the cheques of the appellant could

not be paid as his account had been closed. He thereupon passed on the information to the manager of the complainant company and confirmed the conversation by forwarding to the manager a letter addressed to the Tororo bank manager from the bank manager at Kakamega.

It is quite clear that the telephone message and a letter passing between the two branches of the Bank was not admissible evidence against the appellant and should have been rejected by the magistrate. As there is no other evidence on record as to the knowledge of the appellant that his account had been closed, nor were there any direct false representations by the appellant as to an existing fact, the State Attorney agrees that the conviction must be quashed and the sentence set aside.

The State Attorney has asked for an order for a retrial but I do not feel inclined to grant that application bearing in mind the decision in the judgment of the Ag. President of the Court of Appeal in *Fatehali Manji v. Republic*, [1966] E.A. 343 at p. 344:

> "The question for decision in this appeal is whether the order for retrial was justified or not. Section 319 (1) (*a*) (i) of the Criminal Procedure Code of Tanganyika, under which the order for retrial must have been made, appears to give the High Court on appeal an unlimited discretion as to ordering a retrial but, as was pointed out in *Ahmedi Ali Dharamsi Sumar v. Republic*, [1964] E.A. 481 at p. 482, quoting excerpts from the judgment in *Salim Muhsin v. Salim Bin Mohamed and Others*'. . . discretion must be exercised in a judicial manner and there is a considerable body of authority as to what is and what is not a proper judicial exercise of this discretion.' We will not quote the other passages in full but we will content ourselves with stating the principles which emerge from them. They are the following: in general a retrial will be ordered only when the original trial was illegal or defective; it will not be ordered where the conviction is set aside because of insufficiency of evidence or for the purpose of enabling the prosecution to fill up gaps in its evidence at the first trial; even where a conviction is vitiated by a mistake of the trial court for which the prosecution is not to blame, it does not necessarily follow that a retrial should be ordered; each case must depend on its particular facts and circumstances and an order for retrial should only be made where the interests of justice require it and it should not be ordered where it is likely to cause an injustice to the accused person."

The trial was neither illegal nor defective and an order for a retrial would in effect give the prosecution an opportunity of filling in gaps in the prosecution case contrary to the established principle "Nemo bis vexari debet pro eadem causa".

The accused will accordingly be released forthwith unless held on some other valid sentence or charge.

Order accordingly.

The appellant appeared in person.

For the respondent:
F Ayume (Senior State Attorney)

National Trading Corporation v Kityo
[1972] 1 EA 471 (HCU)

Division:	High Court of Uganda at Kampala
Date of judgment:	21 June 1972
Case Number:	124/1969 (152/72)
Before:	Musoke J

Sourced by: LawAfrica

[1] Master and Servant – Contract of service – Suspension – Employer has right to suspend without pay.

Editor's Summary

The respondent was employed by the appellant on a contract which permitted his suspension. He was suspended from duty, and later discharged. On his claim for salary for the period he was on suspension he was awarded half his salary during the suspension. The appellant appealed.

Held –

(i) where an employer has a right to suspend an employee, it is implied that he can suspend him with or without pay at his pleasure (*Bird v. British Celanese Ltd*. (1) and *Kizza v. Attorney-General* (2) followed);

(ii) there was no evidence that it was the practice of the Corporation to pay half salary to a suspended employee.

Appeal allowed.

Cases referred to in judgment:

(1) *Bird v. British Celanese Ltd*., [1945] 1 All E.R. 488.

(2) *Kizza v. Attorney-General*, H.C.C.C. 207 of 1967 (unreported).

Judgment

Musoke J: This appeal is against the judgment and decree of the trial magistrate, Mengo Magistrate's Court. The appellant, a statutory corporation (hereinafter referred to as the Corporation) was the defendant, and the respondent the plaintiff in the court below. The respondent was the successful party.

Briefly the facts of the case were as follows: The respondent was employed by the Corporation as a clerk-typist at a salary of £264 p.a., with effect from 1 July 1967, according to the letter of appointment from the Chairman of the Corporation. The record shows that prior to his appointment the respondent had in fact been working for the Corporation in the same capacity as a clerk-typist, and the letter appears to have been no more than a mere regularisation of what was already in existence. However, according to this letter the employment of the respondent was to be subject to the Corporation's staff regulations and conditions of service which, according to the letter, were to be made available to the respondent. On 18 December 1967 by a letter written by the Corporation's Secretary, the respondent was suspended from duty. That letter reads as follows:

> "I am writing to inform you that following your involvement in police enquiries in connection with forgeries on a cheque of this Corporation and absenting yourself from duty from 7 to 14 December 1967, without proper excuse, you are to be suspended from duty without pay with effect from 7 December 1967, until further notice."

The respondent was subsequently charged with a criminal offence and prosecuted; but he was acquitted on 1 May 1968.

On 23 April 1968 before the criminal case against the respondent was completed, the Corporation wrote to the respondent and informed him that he had been discharged from duty with effect from 7 December 1967 for gross misconduct, and offered him two weeks' salary in lieu of notice. On 29 May 1968 the respondent's advocates wrote to the Corporation, and demanded re-instatement of the respondent and payment of his salary in full up to then. In reply the Corporation, in a letter dated 31 May 1968, made it clear that the respondent's demand could not be met. On 6 July 1968, the respondent filed the suit against the Corporation and claimed Shs. 2,640/- being his salary for the 6 months of suspension, or alternatively as damages. The trial magistrate held that the respondent was entitled to half his salary during the suspension period and accordingly entered judgment for the respondent for the sum of Shs. 1,320/-.

It is not disputed that under Clause 23 of the Corporation's staff regulations and conditions of service, the respondent's suspension was justified; but the Clause is silent on the important question of whether during any such suspension an employee is entitled to get his salary or not.

Mr. Bamuturaki for the Corporation submitted that once an employer has a right under a contract of service to suspend an employee, as in the present case, it is implied that he can suspend with or without pay at his pleasure. He relied on *Bird v. British Celanese Ltd*., [1945] 1 All E.R. 488, a decision of the English Court of Appeal; and also on *Kizza v. Attorney-General*, H.C.C.C. 207 of 1967 (unreported), a decision of this Court. I agree with the above submission, and hold that once the employer has exercised his discretion one way or the other that is the end of the matter.' In the English Court of Appeal Scott, L.J., considered the clause "suspension from duty" in the *British Celanese* case at p. 491 as follows:

> "The suspense clause may act in two ways. It may be a merciful substitute for the procedure of dismissal and a possible re-engagement. Under the suspense clause the right to wages ceases and the wages are not earned . . . the whole contract is suspended; in the sense that the operation of the mutual obligations of both parties is suspended; the workman ceases to be under any present duty to work, and the employer ceases to be under any consequential duty to pay. That is the natural meaning of the word 'suspend' when applied to a contract of employment, and I think it is also its legal meaning."

That case was concerned with a contract of employment terminable on either side by one day's notice; in other words the employee was employed on a daily basis; but according to the decision of Youds, J., in *Kizza v. Attorney-General*, the suspension clause applies equally to a person employed on a monthly basis and in receipt of a monthly salary. The trial magistrate was accordingly wrong in holding that the respondent, in the case under consideration, was entitled to receive half of his salary during the period of the suspension. There was no evidence or information before the court that it was an established practice of the Corporation to pay half of a monthly salary to a suspended employee during the period of suspension. The trial magistrate's order to this effect is accordingly set aside.

As to the question of the respondent's absence from duty without leave for seven days the trial magistrate relied on Clause 9 of the Corporation's staff regulations and conditions of service in holding that the absence was justified because of a medical certificate. This clause provides as follows:

> "9. If the employee shall be absent without leave for more than 3 days and fail to produce to the Corporation a certificate signed by a Medical Officer approved by the Corporation that such absence was due to

> ill-health . . . the employee shall become liable to disciplinary action which may, in serious cases, lead to discharge."

In her judgment the trial magistrate held as follows:

> "The plaintiff I feel has complied with the clause for he has tendered a medical certificate showing that he got medical leave of 7 days' sick-leave, i.e. from 7 to 14 December 1967, therefore ought not to be penalised for his week's absence."

This was clearly a misdirection. According to Clause 9 a medical certificate must be from a medical officer approved by the Corporation; and there was no evidence or information before the court that the doctor who signed the certificate had been approved by the Corporation. On the contrary, the genuineness of the medical certificate which was tendered by the respondent was disputed, and the hearing of the case was adjourned for more than three weeks to call the doctor who signed the certificate as a witness; but when the hearing was resumed no such doctor was called and nothing further was said about the disputed certificate until reference is made to it in the judgment. Once the certificate was disputed the respondent tendering it was under legal duty to prove it before it was admitted. In this connection I find the submission of Mr. Haque, that because the respondent was not required to prove the certificate beyond a reasonable doubt by producing it, the burden shifted to the Corporation, startling.

For the reasons I have given I allow this appeal with costs here and in the court below.

Order accordingly.

For appellant:
G Bamuturaki (instructed by *Kazzora & Co*, Kampala)

For the respondent:
Haque (instructed by *Haque & Gopal*, Kampala)

E A General Insurance Co Ltd v Standard Bank of Uganda Ltd
[1972] 1 EA 473 (HCU)

Division:	High Court of Uganda at Kampala
Date of judgment:	1 July 1972
Case Number:	888/1971 (154/72)
Before:	Saldanha J
Sourced by:	LawAfrica

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[1] Civil Practice and Procedure – Plaint – Based on document – Production of – Principles – Civil Procedure Rules, O. 7, r. 14 (U.).

[2] Civil Practice and Procedure – Pleading – Particulars – Of lost documents – Fullest possible details given – Application refused.

Editor's Summary

The defendant made an application for further and better particulars from the plaintiff. The plaintiff had claimed from the defendant on the ground that the defendant had converted money to its own use, and or in the alternative as money had and received by the defendant to the plaintiff's use. The sum represented three cheques drawn by the plaintiff.

The defendant sought the production of two cheques which the plaintiff had lost.

Held –

(i) the plaintiff was not suing on the cheques;

(ii) the best possible particulars had been produced.

Application dismissed.

No cases referred to in judgment

Judgment

Saldanha J: This is an application on the part of the defendant for further and better particulars of a plaint filed against it by the plaintiff. The plaintiff claims from the defendant the sum of Shs. 24,538/05 on the ground that the defendant converted this amount to its own use, or, alternatively, on the ground that this amount is payable to the plaintiff by the defendant as moneys had and received by the defendant to the plaintiff's use.

The relevant averments are contained in paragraphs 3 to 6 of the amended plaint, and are as follows:–

"3. On or about 13 October 1970 three cheques for Shs. 24,538/05 marked 'Not Negotiable' drawn on Bank of Baroda (U) Limited made payable to three different persons were stolen by a person or persons unknown from the office of the plaintiff company before they were delivered to the payees, particulars whereof are as under:

PARTICULARS

	Cheque No.	*Payee's Name*		*Amount*	*Date*
1.	0832908	Anthony Lawrence Iguru Nganwa		Shs. 10,000/-	26.6.70
2.	043340	Manilal Samani		Shs. 10,545/-	29.9.70
3.	0844427	Augustino Kakoto		Shs. 3,993/05	13.10.70
			Total	Shs. 24,538/05	

4. That on or about 3 October 1970 one unknown person pretending to be Mr. Anthony Lawrence Iguru Nganwa and not being the payee of cheque No. 0832908 opened an account depositing Shs. 100/- cash at the Burton Street Branch of the defendant Bank and on or about 13 October 1970 handed the cheque No. 0832908 dated 22.6.70 to the defendant at their Burton Street Branch for collection and the defendant collected the proceeds of the said cheque and placed it to the credit of the said account.

5. That on or about 13 October 1970 one Mr. Magitala Lutalo Samanya opened an account by depositing cheque No. 0843340 for Shs. 10,545/- dated 29 September 1970 for collection and the defendant collected the proceeds of the said cheque and placed it to the credit of Mr. Magitala Lutalo Samanya.

6. That on or about 19 October 1970 another cheque No. 0844427 for Shs. 3,993/05 drawn in favour of Augustino Kakoto was deposited in the said account of Mr. Magitala Lutalo Samanya for collection and the defendant collected the proceeds of the said cheque and placed it to the credit of Mr. Magitala Lutalo Samanya."

Some of the particulars asked for by the defendant have been supplied. I am only concerned with the particulars not supplied and which the plaintiff says it is impossible to supply.

It is not disputed that after the defendant had collected the amounts of the three cheques from the Bank of Baroda Ltd., on whom they were drawn, the cheques were returned to the Bank of Baroda. The plaintiff says that the original of the cheque drawn in favour of Augustino Kakoto is with the police. Plaintiff's advocate said he supplied two photostat copies of this cheque to the defendant's

advocates. Defendant’s advocate said he received neither. There

is no longer any dispute about this; a photo-copy was supplied by the plaintiff's advocate to defendant's advocate in my presence. The plaintiff says that the other two cheques have been lost and cannot be found or misplaced and cannot be located.

The further and better particulars which defendant is still insisting upon are stated as follows:

"(*a*) That the plaintiff has failed to comply with the provisions of O. 7, r. 14 of the Civil Procedure Rules by not delivering copies of the three cheques referred to in paragraph 3 of the amended plaint;

(*b*) That the plaintiff has failed to give further and better particulars which are within the plaintiff's own knowledge concerning the person or persons unknown who stole three cheques as alleged in paragraph 3 of the amended plaint;

(*e*) That the plaintiff has failed to give further and better particulars of the allegation contained in paragraphs 3 and 5 of the amended plaint that a not negotiable cheque made out to Manilal Samani was deposited to the credit of the account of Magitala Lutalo Samanya which particulars are within the plaintiff's own knowledge;

(*f*) That the plaintiff has failed to give further and better particulars of the allegations contained in paragraphs 3 and 6 of the amended plaint that a not negotiable cheque made out to Augustino Kakuto was deposited to the credit of the account of Magitala Lutalo Samanya which particulars are within the plaintiff's own knowledge;"

O. 7, r. 14 reads as follows:

"14 (1) Where a plaintiff sues upon a document in his possession or power, he shall produce it in court when the plaint is presented, and shall at the same time deliver the document or a copy thereof to be filed with the plaint.

(2) Where he relies on any other documents (whether in his possession or power or not) as evidence in support of his claim, he shall enter such documents in a list to be added or annexed to the plaint."

It is doubtful whether the plaintiff is suing on the cheques. It is suing for conversion or money had and received. It has supplied a photo-copy of one cheque. I cannot see how it can supply copies of cheques which it cannot find. It has supplied the fullest possible particulars in its possession. It has mentioned the numbers, the names of the payees, the amounts and the dates. I cannot see what else it can be expected to do.

With regard to the particulars asked for in (*b*), (*e*) and (*f*) it seems clear to me that a thief or thieves stole the three cheques from plaintiff's premises before they were handed over to the payees, that the thief or thieves or some person or persons in collusion with the thief or thieves opened the two accounts mentioned in the plaint with the defendant and stole the money. The plaintiff would not know who the thief or thieves were. Apart from the theft all the other transactions would have taken place in defendant's premises. The transactions were false and fraudulent. Whether the defendant is liable to the plaintiff or not it would have acted innocently and in good faith. If anyone knew what happened in the defendant's premises it would be the defendant. It is in possession of the paying-in slips. It is doubtful whether even it knew. How much less can the plaintiff be expected to know. The plaintiff neither knew nor has any means of knowing what happened in defendant's premises. In these circumstances to ask the plaintiff to supply such particulars as the name of the

thief and the name of the person who pretended to be Nganwa and similar matters is asking for the impossible.

I consider that in the circumstances the plaintiff has given to the defendant the fullest possible particulars and that there is nothing it can usefully add. There is nothing to prevent the defendant from filing its defence. The application is dismissed. As the applicant has been partly successful I make no order as to costs.

Order accordingly.

For the applicant:
AC Patel (instructed by *Gandesha & Co*, Kampala)

For the respondent:
M Airey (instructed by *Hunt & Airey*, Kampala)

Somo v Republic
[1972] 1 EA 476 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	3 November 1972
Case Number:	105/1972 (155/72)
Before:	Trevelyan J
Sourced by:	LawAfrica

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[1] Appeal – Bail pending appeal – Exceptional or unusual circumstances necessary.

[2] Appeal – Bail pending appeal – Overwhelming probability of success of appeal – Appellant should not be detained in custody.

Editor's Summary

The applicant applied for bail pending appeal and the question of the principles to be applied were argued.

Held –

(i) the question is whether there are exceptional or unusual circumstances (*Lamba v. R.* (2) followed, *Hasham v. Republic* (4) explained);

(ii) that the appellant is of good character, that the appeal has been admitted for hearing, that the offence did not involve personal violence are not exceptional or unusual circumstances (*Chimambhai v. Republic* (No. 2) (7) not followed);

(iii) the most important ground is that the appeal has an overwhelming chance of being successful: in that case there is no justification for depriving the applicant of his freedom;

(iv) on the facts there was no overwhelming probability of success.

Application dismissed.

Cases referred to in judgment:

(1) *R. v. Kanji*, (1946) 22 K.L.R. 17.

(2) *Lamba v. R.*, [1958] E.A. 337.

(3) *Masrani v. R.*, [1960] E.A. 320.

(4) *Hasham v. Republic*, Cr. A. 582 of 1967 (unreported).

(5) *Jetha v. Republic*, Cr. A. 938 of 1968 (unreported).

(6) *Achieng v. Republic*, Cr. App. 2 of 1971 (unreported).

(7) *Chimambhai v. Republic* (No. 2), [1971] E.A. 343.

(8) *Abdullahi v. Republic*, [1971] E.A. 346.

(9) *Mohamed Sheikh Said Ahamed v. Republic*, Cr. A. 7 of 1972 (unreported).

(10) *Merali v. Republic*, [1972] E.A. 47.

(11) *Motichand v. Republic*, [1972] E.A. 399.

Judgment

Trevelyan J: The applicant was charged before the senior resident magistrate, Nairobi, with giving false information to a person employed in the public service contra s. 129 (*a*) of the Penal Code and was convicted and sentenced to eighteen months' imprisonment. He has resolved to file an appeal against such conviction and sentence and now applies, under s. 356 (1) of the Criminal Procedure Code, for bail pending the entering thereof. The reasons given for the application are these: that the appeal will probably succeed, that as the applicant was released on bail pending the hearing of the case but appeared to take his trial, he is not likely to abscond if set at liberty pending the hearing of the appeal, that he is a man of good character, that the offence with which he was charged contains no element of personal violence, and hardship.

Counsel were agreed that the proper principle to apply, when considering whether bail should be allowed pending appeal, is whether there are exceptional or unusual circumstances in the case, with which I entirely agree, and that, as that principle was accurately stated by Spry, Ag.J. (as he then was) in *Lamba v. R.*, [1958] E.A. 337, there was no need to consult earlier authorities to the same effect.

In *R. v. Kanji*, (1946) 22 K.L.R. 17, De Lestang, Ag.J. (as he then was) had before him an application by one of two men who had been convicted of assault occasioning actual bodily harm. One was sentenced to eight months, and the other to four months, imprisonment. Both had appealed against conviction and sentence. The trial magistrate had released one of them but had not released the other. In allowing the application of that other, the judge said:

> "The appellant's appeal is not likely to be heard before the end of March or beginning of April by which time I am informed he shall have served one-fourth to one-third of his sentence. The mere fact of delay in hearing an appeal is not of itself an exceptional circumstance, but it may become an exceptional circumstance when coupled with other factors. The good character of the appellant may, for example, together with the delay in hearing the appeal constitute an exceptional circumstance. The appellant in this case is a first offender and his appeal has been admitted to hearing showing thereby that it is not frivolous. In addition to that there is the fact that his co-accused, who is in no respect in a different position from him as regards bail, has been admitted to bail."

I venture to say that the single fact of there having been two identical applications with one being allowed and the other being refused was, of itself, an unusual and exceptional circumstance.

In *Lamba's* case, in which the application was refused, the matter as to whether the appeal would succeed was well to the fore in the mind of the judge. He was asked to grant bail for five reasons, one only of which closely concerns us, i.e. the applicant's good character, and this is what he said about it:

> "The previous good character of the prisoner is not disputed but after examining the English authorities and having decided that I should follow the principle embodied in them, I have come to the conclusion that this alone is not a sufficient reason for the grant of bail, although previous good character is certainly a factor to be considered in weighing the arguments for and against bail. . . If, on the examination of the record, I had thought that there was an overwhelming probability that the appeal would succeed,

> I should have granted the application. Short of that, it is not for me to assess the chances of success."

In *Masrani v. R.*, [1960] E.A. 321, an application grounded on delay was refused, Sheridan, J. saying:

> "Different principles must apply after conviction. The accused person has then become a convicted person and the sentence starts to run from the date of his conviction. Here the applicant received a substantial sentence of 18 months' imprisonment and if he were granted bail he might be sorely tempted to abscond, at any cost."

In *Hasham v. Republic*, Cr. A. 582 of 1967 (unreported) Madan, J. granted the application. The applicant had been sentenced, so far as the custodial part of it was concerned, to the maximum of three months' imprisonment. The judge accepted that the short length of a sentence is not, of itself, a special ground for the grant of such an application, but said:

> "I must I think say that notwithstanding that argument, where the short sentence is the maximum provided, it is justifiably permitted to take that fact into account especially as the possibility cannot be ruled out that the sentence might be served before the appeal could be heard or it is being served when the appeal is heard."

He then said that he was aware that it must be shown that there is an overwhelming probability of success, but concluded:

> "If I say there is an arguable appeal, it is because I must say no more at this stage. . . . But it is this very aspect of it which turns the short length of the sentence into a special reason or so I think."

It is argued, and the argument has the respectable backing of two judges, Harris, J. and Muli, J. that Madan, J. did not follow *Lamba*, but in my view, he did. If I may, with complete respect say so, the reference to the need for the showing of overwhelming success in the appeal was unnecessary to the decision on the facts before him. His reason for granting bail appears in my quotations from his judgment, i.e. that whilst a short sentence is not, of itself, enough to justify the grant of an application, it can become so if the maximum is awarded to a first offender particularly if the appeal is arguable. He was in no way denying *Lamba.*

In *Harish Jetha v. Republic*, Cr. A. 938 of 1968 (unreported) Harris, J. granted the application. In giving his reasons for doing so, the judge said that Madan, J. had not followed the *Lamba* case but, as I have said, he did not deny it. As a matter of fact he did not mention it. What he did was to state that he accepted the principle contained in it. Mr. Karugu drew attention to this part of his ruling:

> "The primary considerations by reference to which this present application should be entertained appeared to be, first, the likelihood of the appellant attending in court at the hearing of the appeal and, secondly, the danger of his committing a breach of the peace should his application succeed and he be released. Matters relevant to the first of these considerations include the gravity of the offence to which the conviction under appeal relates, the sentence imposed, the personal circumstances of the appellant, and whether the possibility of success attending the appeal is sufficiently great to justify the application for bail being treated as bona fide and not merely an attempt to postpone the commencement of the sentence. Matters relevant to the second consideration include the appellant's past record in relation to criminal matters."

The deputy public prosecutor maintained that these could not be primary considerations. He suggested that the appellant's presence was not necessary and that the matter of a breach of the peace was irrelevant. With respect, I find myself unable to accept that the criteria to be adopted in applications such as we are here considering are, simply:

> "to ensure that the appellant will be in attendance at the hearing and that he is not likely to commit a breach of the peace in the meantime. . . ."

In regard to the matter of attendance, where an appellant is represented at the appeal by an advocate he does no more than to lend his presence to the proceedings, whilst, whether he is represented or not, his absence may put his appeal in jeopardy. In regard to the other matter, why should one, without some basis for so believing, anticipate the commission of a breach of the peace by a man convicted, as Jethwa was convicted, of stealing from a locked vehicle?

In *Chimambhai v. Republic* (*No*. 2), [1971] E.A. 343 Harris, J. granted the application because, as anticipated delay in the hearing of an appeal together with other factors can constitute a good ground for the granting of the application, the facts that the applicant was a first offender, the appeal had been admitted to hearing, it might take between twelve and twenty-four weeks before the appeal was likely to be heard and the offence in respect of which the applicant was convicted was "unlike the offence in *Kanji's* case (*supra*) . . . not one involving personal violence" he ought to do so. The judge said:

> "The applicant has filed a petition of appeal against conviction and sentence raising issues of law and of fact, and without expressing an opinion as to the probable outcome of the appeal I may say that, having perused the petition and a copy of the judgment of the magistrate as required by section 352 (1) of the Criminal Procedure Code, I did not see fit to reject the appeal summarily under that subsection."

Having thus dismissed from consideration the question as to whether there was an overwhelming probability of the appeal succeeding – the judge referred to a more rigid approach to the problem in Tanzania and Uganda, an approach which I cannot detect – he went on to point to the "relevant circumstances" of the case before him; which I have set out. Referring to what he called "the principal danger against which the court must guard in the granting of bail pending appeal", i.e. that the appellant may abscond or commit further offences, he then went on to say:

> "In regard to the possibility of his absconding a material consideration is the length of the term of imprisonment against which the applicant is appealing, for clearly the longer the term the more likely is he to be tempted to abscond and possibly leave the country. In *Kanji's* case the sentence was one of only a few months whereas here it is one of seven years. Nevertheless it seems to me that this may be more a question of conditions to be imposed rather than of the granting of bail in itself, and, in the present case the applicant's passport, I understand has already been seized by the police."

Kneller, J. in *Abdullahi v. Republic*, [1971] E.A. 346 accepted the general principle and, referring to *Chimambhai's* case, drew a distinction between its facts and the facts before him insofar as they applied to the matter of absconding, and refused the application.

In *Merali v. Republic*, [1972] E.A. 47, Harris, J. was asked to grant bail to a man who had apparently pleaded guilty but claimed that his plea was not unequivocal. Again referring to Kenya's approach to the problem being less stringent than that of Tanzania and Uganda, and again going back to *Kanji's*

case, he adopted what he said in *Chimambhai.* He then went on to ponder the factors which he considered relevant to the application, and granted it. These factors were the applicant's good character, the possibility of a substantial delay in the hearing of the appeal, about a month, that no personal violence was involved, and that the appeal was not frivolous and had a reasonable possibility of success. It is clear, however, from the learned judge's subsequent remarks that he expected the appeal to succeed; as it did.

I refused the application in *Achieng v. Republic*, Cr. A. 2 of 1971 (unreported) because I could not say that the appeal would inevitably, or even probably succeed and I did not consider that the matters drawn to my attention, even in their totality, provided any unusual or exceptional circumstances.

So, too, did Harris, J. refuse the application in *Mohamed Sheikh Said Ahamed v. Republic*, Cr. A. 7 of 1972 (unreported) because he did not think it could be said that the appeal would probably succeed.

Finally in *Motichand v. Republic*, [1972] E.A. Muli, J. granted the application because he believed that the appeal had an overwhelming probability of success. Dealing with the other grounds put forward, he *inter alia*, considered that hardship was a matter to be taken into account but not, ordinarily, in isolation.

Those are the authorities to which I was referred.

There will always be cases where, irrespective of the outcome of the appeal, justice demands the immediate redress of an obvious or probable wrong; two of such cases were among those to which I was referred. But generally speaking, whatever grounds may properly be taken into account in favour of the grant of the application – I shall be dealing with a few of them in a moment – the most important of them is that the appeal will succeed. There is little, if any, point in granting the application if the appeal is not thought to have an overwhelming chance of being successful, at least to the extent that the sentence will be interfered with so that the applicant will be granted his liberty by the appeal court. I have used the word "overwhelming" deliberately and for what I believe to be good reason. It seems to me that when these applications are considered it must never be forgotten that the presumption is that when the applicant was convicted, he was properly convicted. That is why, where he is undergoing a custodial sentence, he must demonstrate, if he wishes to anticipate the result of his appeal and secure his liberty forthwith, that there are exceptional or unusual circumstances in the case. That is why, when he relies on the ground that his appeal will prove successful, he must show that there is an overwhelming probability that it will succeed. That the appeal has not summarily been rejected, taken in isolation, is of no account in view of what I have said. In any event the power summarily to reject can only be exercised within very narrow limits. Nor is the fact that the appeal is not frivolous of any consequence on its own in support of the application. The fact that it is thought to be frivolous, on the other hand, is for consideration in favour of its rejection.

What of other grounds? I do not doubt that such matters as the applicant's good character, delay in the hearing of his appeal, and hardship are for weighing in the balance in favour of the grant of the application. But they can only avail the applicant if, on the facts presented, unusual or exceptional circumstances are shown to exist. Good character, alone, can never be enough. There is nothing exceptional or unusual in having such a character. Delay in the hearing of an appeal, unaccompanied by some other ground or grounds, has never, perhaps, been held to be enough. But in most of the cases which I have read, the delay was occasioned by the intervention of the long vacation and that is an annual affair. There must be some delay between conviction and sentence and the hearing of an appeal, and that delay can only alone be an unusual or exceptional circumstance if it is unusual or exceptional itself.

That the applicant is not likely to abscond or commit offences if he is released do not seem to me to be ever possible, without support, of being enough to secure a successful outcome of an application. Neither is unusual or exceptional. What is for taking into account, but in favour of refusing the application, is that the applicant is likely to disappear or commit crimes. Even then, if the appeal is overwhelmingly probable of success, there is no justification in keeping the applicant deprived of his freedom. The distinction sought to be drawn between violent and non-violent crimes appeals to me not at all. What I have just said about the commission of offences on release, is also applicable here. But apart from that, I do not believe that a man who has been convicted of committing say, a large scale theft or a serious offence against exchange control legislation, is deserving of more favoured treatment than an ordinarily inoffensive man, who has been convicted because, having had a mite too much to drink, he knocked someone's tooth out.

Applying what I have said to the facts of the present application, it is for refusal. There is not, on what is before me, an overwhelming probability that the appeal will succeed and the grounds put forward, neither singly nor in their totality, inspire me to the belief that the case presents any exceptional or unusual features or circumstances.

The application is refused.

Order accordingly.

For the applicant:
SN Waruhiu and *G Waruhiu* (instructed by *Waruhiu & Co*, Nairobi)

For the respondent:
JB Karugu (Deputy Public Prosecutor)

Mtenga v University of Dar Es Salaam
[1972] 1 EA 481 (CAD)

Division:	Court of Appeal at Dar Es Salaam
Date of judgment:	8 February 1972
Case Number:	53/1971 (158/72)
Before:	Sir William Duffus P, Law and Mustafa JJA
Sourced by:	LawAfrica
Appeal from:	High Court of Tanzania – Biron, J

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[1] Master and Servant – Contract of service – Probation – Confirmation – Period of probation expired and increment granted – No automatic confirmation.

Editor's Summary

The appellant was employed by the respondent on probation for one year in the first instance after which he would be eligible for confirmation in his appointment. Contrary to the provisions of the contract the appellant was granted an increment before the expiry of the year and the year expired

without his having received notice of the extension of his probation. Thereafter he received a purported extension of his period of probation, but he nevertheless received a further increment. After the expiry of the extended period of probation the respondent terminated the appellant's employment summarily.

On the dismissal of the appellant's claim for a declaration that the termination be invalid, he appealed.

Held –

(i) expiry of the period of probation only rendered the employee eligible for confirmation and did not involve automatic confirmation;

(ii) that the employee is not entitled to increments does not prevent them being paid;

(iii) the appellant had not been confirmed in his employment.

Appeal dismissed.

No cases referred to in judgment

Judgment

Law JA: The appellant was employed as an administrative assistant by the respondent University, by a letter dated 4 June 1968, which stated that the appointment was probationary and subject, I quote, "to the relevant Regulations of the College Council". The principal terms and conditions were summarised on the reverse side. Paragraph (iv) is of importance in connection with this appeal–

> "(iv) You will be on probation for a period of one year in the first instance at the end of which period, subject to your work and conduct being satisfactory and to your passing any requisite examinations, you will be eligible for confirmation in your appointment."

In January 1969, the appellant was granted an increase of salary, or increment, notwithstanding the provisions of reg. 15 (*c*) (1) of the regulations, which lays down that an employee will not be entitled to an increment until the date of his confirmation. On 3 June 1969, the appellant's probationary period as defined in his letter of appointment expired without the appellant having received notice of any extension of his period of probation, as required by reg. 15 (*a*) of the regulations. On 15 August 1969, the appellant received from the Principal of the respondent University a letter expressing dissatisfaction with his work and purporting to extend his probationary period until 31 December 1969. In January 1970, the appellant received a further increment. On 2 May 1970, the Principal purported to terminate the appellant's probationary appointment summarily, with payment of one month's salary in lieu of notice, in accordance with reg. 16 (*a*) of the regulations, which empowers the Principal to terminate a probationary appointment on one month's notice.

The appellant, dissatisfied with his dismissal, complained to the Commissioner of Labour, who referred the complaint to the Permanent Labour Tribunal (hereinafter referred to as the Tribunal) as being "an apprehended Trade Dispute" within the meaning of the Permanent Labour Tribunal Act, 1967. The Tribunal investigated the matter and gave its decision in a detailed and carefully reasoned "Report" dated 13 January 1971. The Tribunal's main recommendations were that the appellant should be considered as having been confirmed in his appointment, and given three months salary in lieu of notice, as is appropriate in the case of the dismissal of a confirmed officer. The Tribunal did not recommend the appellant's re-instatement. The respondent University accepted the Tribunal's recommendations, and paid the appellant a further two months salary, which he accepted. Notwithstanding this, the appellant then sued the respondent University, claiming a declaration that the purported termination of his appointment was invalid, reinstatement into his former position, and alternatively unspecified damages for wrongful dismissal. The respondent University by its defence pleaded, firstly, that the court had no jurisdiction to entertain the suit as the matters in dispute had been lawfully disposed of by the Tribunal; secondly, it denied that the appellant had been confirmed in his appointment; and thirdly, it claimed that the appellant was lawfully dismissed as a probationary employee.

The trial judge held that his jurisdiction to entertain the suit was not excluded by the proceedings before the Tribunal, and this holding has not been challenged before us. He dismissed the suit on the ground that the appellant had failed to

discharge the onus of proving that he had ever been confirmed in his appointment.

This latter finding was strongly attacked before us by Mr. Lakha. He submitted that the evidence adduced at the trial raised a strong and unrebutted inference that the appellant had been confirmed in his appointment. In particular he relied on the fact that the appellant had received two annual increments, and that increments are only paid to confirmed officers. He also relied on the fact that the appellant was retained in his post after the expiry of his original period of probation, and after the expiry of the purported extension of that period, indicating that he became a confirmed officer.

These arguments were also presented to the trial judge, who said–

> "Reading and re-reading these Regulations, I cannot spell out from them that the fact that the plaintiff was kept on after the expiry of the probationary period as laid down, and that an increment or increments has or have been paid, ipso facto establishes that the officer, who was originally appointed on probation, has in fact been confirmed by the Principal. . . ."

After careful consideration, and without in any way wishing to condone the dilatory and unbusiness-like methods adopted by the respondent University in this case, and its disregard of its own regulations, I am of the opinion, with respect, that the judge came to a correct decision in this case, and that his judgment should be affirmed. As to the increments, the regulations merely say that an employee on probation shall not be entitled to increments. This does not prevent increments from being paid to a probationer, whether by mistake or intentionally, and such payment cannot in my view be construed as equivalent to confirmation. As to the continued employment of the appellant after the expiry of his probationary period, it is clear from paragraph (iv) of the terms and conditions endorsed on the appellant's letter of appointment, to which I have already made reference, that such expiry only renders the employee eligible for confirmation, and does not involve automatic confirmation. The appellant in this case has established that he was eligible for confirmation, but has failed to establish that he was in fact confirmed in his appointment. It follows from what I have said that in my view this appeal fails. The respondent University does not ask for costs. I would dismiss this appeal, and make no order for costs.

Sir William Duffus P: I have read and entirely agree with the judgment of Law, J.A., and as Mustafa, J.A. also agrees, the appeal is dismissed with no order as to costs.

Mustafa JA: I agree.

Appeal dismissed.

For the appellant:
MA Lakha

For the respondent:
KRK Tampi

Kimonde v Republic
[1972] 1 EA 484 (CAN)

Division:	Court of Appeal at Nairobi
Date of judgment:	6 March 1972
Case Number:	172/1971 (159/72)
Before:	Sir William Duffus P, Law and Lutta JJA

Sourced by: LawAfrica

Appeal from: High Court of Kenya – Simpson and Waiyaki, JJ)

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[1] Criminal Law – Burglary – Article made or adapted for use in theft – Screwdriver not made for use in theft – Penal Code, s. 308 (2) (*K.*).

Editor's Summary

The appellant was convicted of preparation to commit a felony. While among parked cars at night he was found with a screwdriver. The magistrate made no finding that the screwdriver was an instrument which could be used for theft.

On first appeal the court stated that a screwdriver was made or adapted for use in theft from motor vehicles.

On second appeal:

Held –

(i) a screwdriver is not necessarily made or adapted for use in theft;

(ii) nevertheless the evidence supported the finding that the appellant had the screwdriver for use in the course of theft.

Appeal dismissed.

No cases referred to in judgment

Judgment

This is a second appeal. The appellant and two others – Joseph Gichure Kamau and John Robert Mungai Kamau – were charged with and convicted in the resident magistrate's court at Nairobi on two counts of being rogues and vagabonds, contrary to s. 183 (*d*) of the Penal Code and of preparation to commit a felony, contrary to s. 308 (2) of the Penal Code. They were sentenced to 7 years' imprisonment and 3 strokes corporal punishment. On appeal to the High Court Joseph Gichure Kamau's and John Robert Mungai Kamau's appeal was allowed, their convictions quashed and sentences set aside on the ground that the trial magistrate's judgment shows a tendency to shift the burden of proof on them. The appellant's conviction on the count of being a rogue and vagabond was quashed but his appeal in relation to the count of preparation to commit a felony was dismissed and sentence of 4 years' imprisonment was substituted for that of 7 years' imprisonment and 3 strokes corporal punishment. He has now appealed to this Court.

The case for the prosecution was that the appellant, with Joseph Gichure Kamau and John Robert Mungai Kamau, was seen by two policemen behaving in a suspicious manner amongst parked cars in Milner Road at about 11 p.m. on 8 July 1971. On seeing the two policemen the appellant and Joseph Gichure Kamau and John Robert Mungai Kamau walked towards them (the policemen). The latter stopped and searched them and a screwdriver was found in the pocket of the appellant's jacket. The trial magistrate in the course of his judgment commented that the appellant was "caught holding the baby" and his explanation as to how he came to be in possession of the screwdriver was weak and unconvincing and that he was 5 miles away from his home. The trial magistrate

rejected the appellant's defence and that of Joseph Gichure Kamau and John Robert Mungai Kamau. He found all of them guilty of the offence of preparation to commit a felony, contrary to s. 308 (2) of the Penal Code but acquitted them on the count of being rogues and vagabonds, contrary to s. 183 (*d*) of the Penal Code.

Before us, the appellant argued that the screwdriver found on him was used by him for the purposes of his trade, and was not intended for use in the course of stealing from a motor vehicle. Mr. Sehmi, for the Republic, argued that suspicious behaviour by the appellant was not explained by him. He submitted that the failure by the trial magistrate to make a specific finding that the screwdriver was an instrument which could be used for the purposes specified in the charge sheet was not fatal to the appellant's conviction.

In this case the prosecution had to prove the following:

1. That the appellant was not at his home; and
2. That the appellant had in his possession an article for use in the course of theft, that is, he had with him the screwdriver.

If the article was made or adapted for use in committing the offence of theft, that would be evidence that the appellant had it with him for such use. An ordinary screwdriver cannot be said to have been made or adapted for use in committing the offence of theft, and the magistrate made no findings that the appellant had it in his possession for use in the course of theft. However, he did find that the appellant was 5 miles away from his home, at the material time, which suggests that he was satisfied that the appellant was not at his place of abode. He rejected the appellant's explanation in regard to his possession of the screwdriver and rejected his defence as a whole.

The judges on first appeal confirmed the finding that the appellant was in possession of the screwdriver. There was no evidence that the screwdriver was made or adapted for use in theft from motor vehicles. However, the judges were of the view that "this is within the bounds of judicial knowledge". With respect, we do not agree. A screwdriver is not necessarily an instrument made or adapted for use in the course of stealing from motor vehicles. However the judges were satisfied, in the circumstances of this case, that the appellant had the screwdriver in his possession for use in the course of theft from motor vehicles. We see no reason to disagree. They also held that the lack of specific findings by the trial magistrate did not occasion a failure of justice. We are satisfied that the evidence as a whole supports the trial magistrate's judgment and that the irregularities in his judgment were not fatal to the appellant's conviction.

For these reasons we dismiss the appeal.

Order accordingly.

The appellant appeared in person.

For the respondent:
RS Sehmi (Senior State Counsel)

Seuri v Republic
[1972] 1 EA 486 (CAD)

Division: Court of Appeal at Dar Es Salaam

Date of judgment: 21 July 1971

Case Number:	72/1971 (160/72)
Before:	Spry V-P, Law and Mustafa JJA
Sourced by:	LawAfrica
Appeal from:	High Court of Tanzania – Kwikima, Ag.J

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[1] Evidence – Murder – Killing by accused – No burden of proof on accused.

Editor's Summary

The appellant who was convicted of murder had withdrawn his extra-judicial confession. The trial judge had made no reference to the burden of proof other than to say that there was a presumption of murder where an accused is proved to have killed the deceased.

Held –

(i) there is no burden of proof on an accused charged with murder at any stage of the proceedings (*R. v. Ibuto Ndolo* (2) considered);

(ii) on the evidence there was corroboration of the retracted confession and the appellant must have been convicted.

Appeal dismissed.

Cases referred to in judgment:

(1) *Lalasia v. R.*, 3 E.A.L.R. 106.

(2) *R. v. Ibuto Ndolo* (1935), 11 E.A.C.A. 80.

(3) *Yohannis Udinde v. R.* (1955), 22 E.A.C.A. 514.

Judgment

The appellant, Ezekiel Seuri, was convicted of murder in the High Court of Tanzania at Moshi and was duly sentenced to death. He appeals against conviction and sentence.

Mr. Jadeja for the appellant has argued a number of grounds of appeal, on all of which he is supported by Mr. A. R. Karim who appeared for the Republic and informed us that he did not support the conviction.

There were many unfortunate errors, non-directions and mis-directions apparent in the record of this case, and the main question for the decision of this Court will be whether their cumulative effect is such as to make it unsafe, as both Mr. Jadeja and Mr. Karim have submitted, to allow the conviction to stand. Another unsatisfactory and unexplained feature of this case is that although the deceased was killed on 6 June 1969, and the appellant arrested on the following day, the trial did not open until 25 February 1971, when the appellant's plea was taken. The actual hearing did not begin until 21 April 1971. The case against the appellant was basically that on 7 June 1969, the appellant confessed to a neighbour, Joseph Mafole, that on the previous night he had killed his father with a panga. Joseph advised the appellant to report to the police station, and actually accompanied him there. This was confirmed by police constable Hussein Muna. On the previous day, the deceased's dead body had been found outside his house. A post-mortem examination revealed five cut wounds on the head and body, involving a compound fracture of the skull and lower jaw, and severance of major blood vessels

in the neck. The cause of death was shock, haemorrhage and damage to the brain. The wounds

were consistent with having been caused by a panga. The appellant's house was searched by Police Sgt. Major Ezekiel on the same day. The door was shut but not locked. In the house were found a panga, a shirt and a pair of shorts, all blood-stained. There was evidence that the blood group of both the deceased and the appellant was A Rh + and that the blood on the panga, shirt and shorts was of group "A". There was evidence that the appellant was not suffering from any injury at the time of his arrest. The appellant made a short unsworn statement in his defence, to the effect that all the witnesses had told lies.

The Acting Judge's summing up to the assessors was far from satisfactory. There is not a word in it about the burden of proof being on the prosecution to prove the guilt of an accused person beyond all reasonable doubt, nor were the assessors apparently told that no onus of any sort lay on the appellant to prove his innocence. Nor is any direction to this effect to be found in the judgment. We must also refer to the following extract from the judgment–

> "On the contrary the case of *R. v. Ibuto Ndolo* (1935) 11 E.A.C.A. 80 is so authoritative of the proposition that 'where the accused is proved to have killed the deceased the presumption of murder arising under section 190 remains unless it is rebutted by the facts of the case'. This was a Court of Appeal for Eastern Africa case originating from Uganda. It is binding authority on this Court."

S. 190 referred to above has long since been repealed. It read–

> "Any person who causes the death of another is presumed to have wilfully murdered him unless the circumstances are such as to raise a contrary presumption.
>
> The burden of proving circumstances of excuse, justification or extenuation is upon the person who is shown to have caused the death of another."

No such presumption as is referred to above now exists in the law of any of the East African States. As an authority, *Ibuto's* case is now of historical interest only and has no value as a precedent. No presumption arises today against a person who kills another; once he pleads not guilty it is for the prosecution to prove affirmatively, beyond all reasonable doubt, that the person charged has committed a criminal offence. These are very grave matters which make it necessary for this Court to scrutinise the evidence with exceptional care to ensure whether the conviction of the appellant may not represent a failure of justice. Furthermore, the State Attorney in his closing address was allowed to submit, without objection from defence counsel and without being corrected by the court, that the blood on the exhibits "must be that of the deceased". This submission was not justified on the evidence. The blood could have been that of any person whose blood group was "A", a common group. He also referred, as did the judge, to the exhibits as having been hidden, which is not supported by the evidence. Furthermore, the State Attorney was allowed to reply to defence counsel's address, although he had no such right.

Mr. Jadeja's main ground of appeal was that as the appellant had repudiated his alleged confession, he should not have been convicted in the absence of corroboration. The trial judge had found corroboration in the presence of blood-stained exhibits in the appellant's house. Mr. Jadeja submitted, and he was supported in this by Mr. Karim, that none of these exhibits had been identified as belonging to the appellant. Whilst it is true that the evidence of identification was not satisfactory, we do not consider this submission to be well founded. The witness called to identify the three articles, who was the appellant's uncle, merely said, in his evidence in chief, that he identified the panga and the shirt. He did not say that he identified them as being the property of the

appellant, or if he did, this has not been recorded. In cross-examination however he said–

> "The accused had only one panga in his house. The handle was eaten by white ants, to the left. . . . That was my special mark of identification."

The cell-leader, who accompanied the police when they searched the appellant's house, described the blood-stained panga which was found there as follows–

> "One side of the handle was eaten by white ants."

Although the evidence on this point was not as clear as it should have been, we think it indicates that the blood-stained panga was the appellant's property, and both counsel and the court appear to have understood the evidence in this way. The discovery of this panga, in the appellant's house, on the same day as his father was killed by blows from a panga, provides in our view the corroboration which is desirable before a repudiated confession made extra-judicially otherwise than to a magistrate or justice of the peace should be acted upon. (*Lalasia v. R.*, 3 E.A.L.R. 106, approved in *Yohannis Udinde v. R.* (1955), 22 E.A.C.A. 514). It is, of course, a pre-requisite to conviction on the strength of a confession that the court must be satisfied it is true, but no difficulty arises as to that in this case. The witness Joseph Mafole to whom the confession was made was a neighbour of the appellant's and it has not been suggested that he had any enmity towards the appellant. He was accepted as a truthful witness by the assessors and judge, and there is no reason to think that the confession made to him by the appellant, that he had killed his father with a panga, was not correctly reflected in Joseph's evidence. That it was true is borne out by the fact that a blood-stained panga, belonging to the appellant, was found in his house, and that the appellant was willing to surrender to the police, if Joseph would accompany him, which he did. Some weight was added to the prosecution case by evidence of repeated quarrels between the appellant and the deceased over a Kihamba.

After careful consideration of all the matters urged before us, we are convinced that had the assessors received, and the trial judge given himself, proper directions as to the burden of proof, the appellant must inevitably have been convicted, in view of the strength of the case against him; and we are satisfied that notwithstanding the non-directions, misdirections and irregularities which marred the trial of this case, no failure of justice has in fact been occasioned.

The appeal is dismissed.

Order accordingly.

For the appellant:
SJ Jadeja

For the respondent:
AR Karim (State Attorney)

Jivandas & Co Ltd v Nakadama
[1972] 1 EA 489 (CAK)

Division:	Court of Appeal at Kampala
Date of judgment:	25 April 1972
Case Number:	3/1972 (161/72)
Before:	Spry V-P, Law and Lutta JJA

Sourced by: LawAfrica

Appeal from: High Court of Uganda – Musoke, J

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[1] Negligence – Vicarious liability – Liability of principal – Vehicle driven for joint purposes of principal and another – Principal liable.

[2] Damages – Fatal accident – Loss of dependency – Multiplier applicable.

Editor's Summary

The respondent recovered damages from the appellant in respect of the death of her husband caused by the overturning of a lorry in which he was travelling.

The appellant owned the lorry but wished to sell it and had allowed a third party who was considering buying it, to drive it.

The appellant challenged the High Court's findings on negligence, damages, and responsibility for the accident.

Held –

(i) there was sufficient evidence of negligence;

(ii) the lorry was being driven for the joint benefit of the third party and the appellant who was accordingly liable (*Selle v. Associated Motor Boat Co*. (1) followed);

(iii) the damages were based on the usual multiplier of 10 to 12 years and would not be interfered with.

Appeal dismissed.

Case referred to in judgment:

(1) *Selle v. Associated Motor Boat Co*., [1968] E.A. 123.

Judgment

Law JA: This is an appeal by the appellant company in a civil suit tried in the High Court of Uganda in which judgment was given for the respondent, a widow, for £500 damages in respect of the death of her husband, who died as the result of the over-turning of a lorry belonging to the appellant company.

This is in some respects an unusual case. The respondent, on whom lay the burden of proving negligence, sought to do so by calling as a witness the driver of the lorry. Not surprisingly, he denied having been negligent. He said that the lorry ran off the road and over-turned in a ditch because two children suddenly ran across the road about ten yards ahead of him, so that he had to swerve to the left as "the children were also running to this side". He also deposed that he was employed by the appellant, and that the deceased, who was sitting on top of the sacks forming the lorry's load, was killed when the lorry overturned. The respondent deposed that her husband used to give her Shs. 80/ – a month for her maintenance. He was about 25 years old at the time of his death, and had been earning about Shs. 100/ – a month. A director of the appellant gave evidence to the effect that at the time of the accident the lorry, which was owned by the appellant, had been lent to one Amratlal for trial with

a view to purchase. He denied that the driver was employed by the appellant, but claimed that he was employed by Amratlal. Amratlal confirmed that this was so.

The trial judge found that the driver was negligent in failing to keep a proper look-out and in failing properly to control the lorry. He held that, whether or not the driver was employed by the appellant, the appellant was nevertheless liable for his negligence, as at the time of the accident the lorry was being driven with the express permission and authority of the appellant and for the joint interest of both Amratlal and the appellant. The judge gave no reasons for assessing the damages at £500, beyond saying that he thought it a reasonable sum in all the circumstances of this case.

All these findings have been challenged on this appeal. Mr. Ponda, for the appellant, submitted that there was no evidence of negligence, and that all that had been proved was inevitable accident. Although the evidence on the point is not strong, I think it is sufficient to justify the judge's finding that the driver was negligent. It was not suggested that his vision was obstructed by other traffic, yet he does not seem to have seen the children until they were actually crossing the road, 10 yards in front of him. There is in my opinion just enough evidence to support the judge's finding that the driver was not keeping a proper look-out. As regards liability for the driver's negligence, Mr. Ponda submitted that mere ownership of the lorry was not sufficient to attract liability, and that there was no evidence that at the time of the accident the driver was rendering services to the appellant in circumstances such as to involve the appellant in liability for the driver's negligence. The facts, as they seem to have been accepted by the judge, are that the appellant was anxious to sell the lorry, and that Amratlal, who was considering buying it, was lent the lorry for trial under full-load conditions. Amratlal supplied the driver, and the appellant handed over the lorry to Amratlal with knowledge that it would be driven by the driver. Whilst being so driven, the accident occurred. In these circumstances, I consider that the trial judge was right in holding that at the time of the accident the lorry was being driven in the joint interests of both Amratlal and the appellant. Where a person delegates a task or duty to another, not a servant, to do something for his benefit or for the joint benefit of himself and the other, that person will be liable for the negligence of the other in the performance of that task or duty, *see Selle v. Associated Motor Boat Co*., [1968] E.A. 123. Clearly the lorry, at the time of the accident, although being driven by Amratlal's employee, was also being driven for the appellant's purpose, and for his as well as Amratlal's benefit and interest, the appellant's benefit or interest in this case being that the lorry should prove satisfactory and thus be sold. As regards damage, the respondent proved a dependency of about £48 a year which she has lost as a result of her husband's death. Even if this figure is somewhat exaggerated, in the light of the husband's low earnings of £60 a year, the usual formula of applying a multiplier of 10 or 12 times will show that the judge's award of £500 was, in all the circumstances, a reasonable figure.

In my view, this appeal fails on all three grounds, and I would dismiss it with costs.

Spry V-P: I have read and concur in the judgment of Law, J.A., I felt at first some doubt whether the evidence was sufficient to establish negligence on the part of the driver of the lorry. It is far from satisfactory, but on consideration, I agree with Law, J.A. that it is just sufficient.

As Lutta, J.A., also agrees, the appeal is dismissed with costs.

Lutta JA: I agree.

Appeal dismissed.

For the appellant:
VN Ponda (instructed by *Parekhji & Co*, Kampala)

For the respondent:

JS Shah

Desai v Shah and others
[1972] 1 EA 491 (CAN)

Division:	Court of Appeal at Nairobi
Date of judgment:	20 September 1971
Case Number:	29/1971 (162/72)
Before:	Sir William Duffus P, Lutta and Mustafa JJA
Sourced by:	LawAfrica
Appeal from:	High Court of Kenya – Chanan Singh, J

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[1] Civil Practice and Procedure – Judgment – Firm, against – Suit against one partner – Not against firm – Civil Procedure (*Revised*) *Rules* 1948, *O.* 21, *r.* 45 (*K.*).

Editor's Summary

The appellant sued Z. D. Shah and described him as "formerly trading as Shah Cedar Mart". In fact at all times the firm of Shah Cedar Mart had had four partners.

After judgment the appellant applied to execute the decree against the respondents as partners in a firm against which judgment had been given.

On refusal of the order the appellant appealed contending that the suit had been against the firm. For the respondents it was contended that the only way to fix them with liability would have been to sue the firm simpliciter or to sue all partners. As it was the decree was only against Z. D. Shah personally.

Held –

(i) the firm had never been sued and the judgment was against Z. D. Shah personally;

(ii) the respondents could not be held liable under the judgment.

Appeal dismissed.

Case referred to in judgment:

(1) *Horra v. Horra*, [1959] E.A. 981.

Judgment

The appellant sued Zaverchand Dhanji Shah (hereafter referred to as "Shah") who was described in the plaint as "formerly trading as Shah Cedar Mart", for Shs. 106,600/ – being the balance of the principal, interest and costs due under Shah's covenant to repay contained in three charges registered at the Land Titles Registry. The appellant obtained judgment and a decree against Mr. Shah on 29 July 1966. On 28 September 1966, an application was made for instalments of Shs. 100/ – p.m. to be paid by Shah towards the liquidation of the decretal amount. The judge was informed and accepted that Shah had no means and could not pay Shs. 100/ – p.m. and made no order for instalments.

In February 1969, the appellant applied to the Court for leave to execute the decree against the three respondents – Messrs. Chandrakant Zaverchand Shah, Ramesh Zaverchand Shah and Jayantilal Zaverchand Shah, on the ground that they were partners in the firm of Shah Cedar Mart at all material times.

The application was made under O. 21, r. 45 of the Civil Procedure (Revised) Rules, 1948, the relevant portions of which read–

"45. (1) Where a decree has been passed against a firm, execution may be granted–

(*a*) against any property of the partnership;

> (*b*) against any person who has appeared in his own name under rule 5 or rule 6 of Order 29 or who has admitted on the pleadings, that he is, or who has been adjudged to be, a partner;
>
> (*c*) against any person other than an infant who has been individually served as a partner with the summons and has failed to appear:
>
> Provided that nothing in this sub-rule shall be deemed to limit or otherwise affect the provisions of section 247 of the Indian Contract Act, 1872, or any law substituted therefor.
>
> (2) Where the decree-holder claims to be entitled to cause the decree to be executed against any person other than such a person as is referred to in sub-rule (1), clauses (*b*) and (*c*), as being a partner in the firm, he may apply to the Court, which passed the decree for leave. . . ."

The appellant in this case claimed under paragraph (2) above.

The judge dismissed the application on the ground that the decree had been passed against Shah as an individual and not against the firm of Shah Cedar Mart and in doing so he held:

> "The suit as framed was against Zaverchand Dhanji Shah and it is not even alleged that the money was raised or used for the firm. I can decide matters only according to pleadings. The defence stated clearly that the defendant was not the sole proprietor of the business but was one of the partners. If the plaintiff intended the suit to be against the firm he could at this stage have amended the plaint. But he did not do this."

The appellant now appeals to this Court on the grounds, *inter alia*,

> "1. The learned judge erred in not holding that the decree passed on the 29th day of July 1966 was a decree not against the individual Zaverchand Dhanji Shah but against the firm and/or trade name or business concern or entity of 'Shah Cedar Mart'.
>
> 8. The learned judge failed to take into account that the respondents were at all material times partners in the said firm of Shah Cedar Mart and that the summons in the suit were served upon one partner namely Shah Zaverchand Dhanji, and there was no evidence to show that the said partnership had ever been dissolved or that the appellant had knowledge thereof."

Mr. Gautama submitted that Shah was carrying on a business in a name or style other than his own name and had represented himself to the appellant as the sole proprietor of the firm, Shah Cedar Mart. Mr. Gautama relied on the provisions of O. 29, r. 9 of the Civil Procedure Rules and submitted that the suit against Shah trading as Shah Cedar Mart would be against Shah himself as well as against the business entity or firm known as Shah Cedar Mart. He argued that if an individual is trading in a firm's name that is the correct way to sue him. The decree obtained against Shah trading as Shah Cedar Mart was also a decree against the firm and hence against all the partners of the said firm. However, there is uncontroverted evidence that Shah was never the sole proprietor of the firm Shah Cedar Mart and there were at all material times four partners in the firm until it ceased business and its certificate of registration was cancelled.

Mr. Gautama for the appellant, has argued that the three respondents in this appeal were at all material times partners in the firm – Shah Cedar Mart – and the suit should not only be regarded as a suit against Shah but was also a suit

against Shah Cedar Mart. The decree therefore can be executed against the other partners once judgment has been entered against the firm.

Mr. Bakrania, for the respondents, supported the finding of the judge that the decree in this case is not against the firm of Shah Cedar Mart but was against Shah personally.

He submitted that the decree is the only document which should be looked at in order to determine whether it is against the firm in question. He argued that for the appellant to succeed, he should have sued either the firm – Shah Cedar Mart – or Shah and the three respondents as "formerly trading as Shah Cedar Mart". He referred to Atkin's Court Forms and Precedents 1st Ed. Vol. 12, p. 239, and submitted that the above is the proper form if every partner is to be fixed with liability. He submitted further that the expression "formerly trading as Shah Cedar Mart" was merely descriptive and could not be taken to mean that the firm was being sued. He relied on the case of *Horra v. Horra*, [1959] E.A. 981.

The respondents were never sued as partners nor did the appellant apply under O. 1, r. 10 (2) of the Civil Procedure Rules to amend the pleadings when he discovered that Shah was not the sole proprietor of Shah Cedar Mart. The decree is against Shah as an individual and the words "formerly trading as Shah Cedar Mart" are merely descriptive of the defendant. We entirely agree with the finding of the trial judge that the appellant did not sue the firm of Shah Cedar Mart but clearly only sued the individual, Zaverchand Dhanji Shah, and accordingly the respondents cannot now be held liable under this judgment. Under O. 21, r. 45, they can only be held liable if the decree had been made against the firm. We would accordingly dismiss the appeal against the judge's decision on this issue.

Mr. Gautama further submitted that as the appellant had succeeded in his application to amend the decree before the High Court the appellant should have been awarded the costs of the application. The judge must have overlooked this matter. We see no reason why the appellant should not have been granted the costs of the application and we therefore award the appellant as against the respondents in this appeal the costs of his application to amend the decree to the High Court.

The appellant has succeeded on this issue of costs in respect of the application to amend the decree but he has failed on the major issue and we would accordingly, on the issue of costs, award the respondents the greater proportion of the costs of this appeal.

We therefore order that the appeal against the refusal of the judge to grant leave to execute the decree against the three respondents under O. 21, r. 45, be dismissed. We allow the appeal in so far as it affects the order for costs on the application to amend the decree and order that the appellant be awarded the costs of that application in the High Court, such costs to be taxed in the High Court. We allow the respondents 9/10th of the costs of this appeal.

Order accordingly.

For the appellant:
SC Gautama

For the respondents:
TG Bakrania (instructed by *Veljee Devshi & Bakrania*, Nairobi)

Njuguna v Republic
[1972] 1 EA 494 (CAN)

Division:	Court of Appeal at Nairobi
Date of judgment:	10 September 1970
Case Number:	126/1970 (163/72)
Before:	Spry Ag P, Law Ag V-P and Lutta JA
Sourced by:	LawAfrica
Appeal from:	The High Court of Kenya – Harris, J

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[1] Criminal Practice and Procedure – Sentence – Minimum sentence – Assessment – To be assessed in first instance without reference to minimum.

Editor's Summary

The appellant was convicted of robbery although there was only a threat of, and not actual violence. The magistrate treated the minimum sentence as a starting point.

On appeal

Held –

(i) it is incorrect to treat the minimum sentence as a starting point;

(ii) the appropriate sentence must be assessed in the ordinary way: if that sentence is less than the minimum, the minimum sentence must be imposed.

Sentence reduced to the minimum.

No cases referred to in judgment

Judgment

The extempore judgment of the court was read by **Spry Ag P:** We are satisfied that the appellant was properly convicted by the trial magistrate and that the appellate judge directed himself correctly in dismissing the appeal against conviction.

We are, however, not satisfied that the trial magistrate directed himself correctly when passing sentence. Although robbery is a very serious and a very prevalent offence, this was not a case with any aggravating factors. No violence whatever was used and there is only a reference in cross-examination to a threat of violence. It appears to us that the trial magistrate has treated the minimum sentence as a starting point. That is, in our view, a wrong approach and amounts to an error of law. We think the correct approach is to assess the appropriate sentence, taking into account all relevant factors, and if, in the ordinary way, that sentence would have been less than the minimum, the minimum sentence must be imposed. The existence of a minimum does not affect the sentence where it would in any event have been more than the minimum.

Here, it is true, the appellant had three previous convictions for offences of dishonesty, the first two of which were apparently trivial in the extreme, but he is a young man and, as we have said, the offence itself was not an exceptionally bad one. We can see no good reason for imposing a sentence in excess of the minimum.

Accordingly, we dismiss the appeal against conviction but reduce the sentence to one of fourteen years' imprisonment with hard labour and six strokes of corporal punishment.

Order accordingly.

The appellant appeared in person.

For the respondent:
SS Rao (Senior State Counsel)

Kimanzia v Republic
[1972] 1 EA 495 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	24 October 1972
Case Number:	647/1972 (164/72)
Before:	Trevelyan and Hancox JJ
Sourced by:	LawAfrica

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[1] Criminal Practice and Procedure – Sentence – Minimum sentence – Assessment – To be assessed in first instance without reference to minimum.

[2] Criminal Practice and Procedure – Sentence – Police supervision – Cannot be ordered on first offence or for stock theft – Penal Code, s. 278 (*K.*), *Criminal Procedure Code, s.* 343 (*K.*).

Editor's Summary

The appellant, a first offender was sentenced to eight years' imprisonment and to police supervision on release on his conviction for stock theft.

On appeal:

Held –

(i) police supervision cannot be ordered on a first offence for stock theft;

(ii) the appropriate sentence must be assessed in the ordinary way: if that sentence is less than the minimum, the minimum sentence must be imposed (*Njuguna v. Republic* (3) followed).

Sentence reduced to the minimum.

Cases referred to in judgment:

(1) *R. v. Eneriko Sempala* (1936), 3 E.A.C.A. 23.

(2) *R. v. Mohamedali Jamal* (1948), 15 E.A.C.A. 126.

(3) *Njuguna v. Republic*, [1972] E.A. 494.

Judgment

The considered judgment of the court was read by **Trevelyan J:** This is an appeal against sentence.

The appellant, a first offender, pleaded guilty to stealing five animals worth Shs. 1,190/- Following

his conviction on that plea, the prosecutor told the resident magistrate that the appellant had claimed to be looking for work and that, within a day, all the animals were recovered. He added, however, that stock theft was prevalent in the district. The appellant then said that he had never done this sort of thing before, and the magistrate ordered him to serve eight years' imprisonment with hard labour, to receive one stroke and to be subject to police supervision for three years from the date of his release from prison. The appellant asks us to reduce the award of imprisonment as he is a first offender and a young and poor man. As the magistrate did not, as is usual and advisable, make a note to enable us to see how he arrived at the awards which he made, we can do no more than consider the facts which were laid before him to see whether, in the light of the proper principles to be applied, he arrived at the correct answer: see e.g. *R. v. Mohamedali Jamal* (1948), 15 E.A.C.A. 126.

As the appellant was treated as a first offender, the reporting order was not for making. A conviction for stock theft (contra s. 278 of the Penal Code) does not carry such an order as a mandatory sanction or at all, and s. 343 of the Criminal Procedure Code does not apply to first offenders. Nor do we think that a single stroke was, on the facts, enough. But what most concerns us, however, is the sentence of imprisonment which was awarded. We can only

suppose that the statutory minimum of seven years was exceeded for two reasons, that five animals rather than one were stolen, and that stock theft needs to be contained in the district. However, the fact that there were five animals was no reason, of itself, to require the award of more than seven years, nor was the fact that the offence was said to be on the increase: see *R. v. Eneriko Sempala* (1936), 3 E.A.C.A. 23.

Where there is a statutory minimum sentence laid down, the proper approach is that the appropriate sentence must first be assessed in the ordinary way, taking all relevant factors into account, but ignoring the statutory minimum. Then, if the sentence so assessed is less than that minimum, that minimum must be imposed. If, on the other hand, the sentence so assessed is more than the minimum, the latter does not affect it at all: see *Njuguna v. Republic*, [1972] E.A. 494. It is quite wrong, and an injustice, to start off with the statutory minimum period in mind and then add to that period. Applying this to the facts of the case now before us it is, we think, abundantly clear that the assessment could not possibly have amounted to seven years, and so we must interfere with the award which was made.

In the result we allow the appeal to this extent, that we reduce the period of imprisonment ordered from eight to seven years (with the mandatory hard labour), we leave undisturbed the award of corporal punishment, and we set the reporting order aside.

Order accordingly.

The appellant was absent and unrepresented.

For the respondent:
KA Amoo-Adare (State Counsel)

Mutual Benefits Ltd v Patel and another
[1972] 1 EA 496 (CAN)

Division:	Court of Appeal at Nairobi
Date of judgment:	23 October 1972
Case Number:	7/1972 (165/72)
Before:	Spry Ag P, Law Ag V-P and Mustafa JA
Sourced by:	LawAfrica
Appeal from:	The High Court of Kenya – Harris, J

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[1] Land – Caveat – Application to extend – Made ex parte – Inherent jurisdiction to grant, but only exceptionally and for good cause – Registration of Titles Act (*Cap.* 281) *s.* 57 (*K.*).

[2] Land – Caveat – Leasehold interest – Claim to – Absolute prohibition of dealing too wide a prohibition – Registration of Titles Act (*Cap.* 281) *s.* 57 (*K.*).

[3] Land – Caveat – Extension – Caveator compensatable in damages – Caveat not for extension – Registration of Titles Act (*Cap.* 281) *s.* 57 (*K.*).

[4] Land – Tenancy in common – No power of co-owner to lease whole land.

Editor's Summary

The appellant lodged caveats claiming a lessee's interest in certain land. When served with a notice requiring their withdrawal, it applied *ex parte* under s. 57 (8) Registration of Titles Act (Cap. 281) for an extension of the caveat. Then the respondents applied for the removal of the caveat. The judge granted the application stating that the original order had probably been made without jurisdiction, that the caveat was too wide in seeking to prohibit all dealings with the land.

The offers relied upon by the appellant were signed by one of the tenants in common of the land. The appellant argued that the owners held the land as part of their partnership property, and that the signatory had actual or ostensible authority from his co-owners.

Held –

(i) the court has jurisdiction in the exercise of its inherent power to allow an *ex parte* application for the extension of a caveat but it should be done only in exceptional circumstances;

(ii) it is a question of fact whether property is partnership property, but a tenancy in common raises a presumption against the property belonging to a partnership;

(iii) there was no evidence of actual authority;

(iv) a tenant in common has no authority to bind his co-owners, the essence being that they can deal with their shares, but that possession is common to them;

(v) no reason had been shown why the appellant could not be compensated in damages;

(vi) (obiter) a caveat prohibiting all dealings with the land goes beyond what is necessary to protect a leasehold interest.

Appeal dismissed.

Case referred to in judgment:

(1) *Boyes v. Gathure*, [1969] E.A. 385.

Judgment

The following considered judgments were read. **Spry Ag P:** The appellant company lodged, under s. 57 (1) of the Registration of Titles Act (Cap. 281), a caveat claiming by virtue of two agreements an interest as lessee in certain land belonging to the respondents and prohibiting absolutely any dealing with that land. The principal registrar of titles, at the instance of the respondents, served a notice under s. 57 (6) of the Act on the appellant company, requiring that the caveat be withdrawn. The appellant company, contrary to the requirements of s. 57 (8) of the Act as to service of the summons, applied *ex parte* to the High Court for an extension of the caveat and this was granted. The respondents then applied to the High Court for an order removing the caveat from the register. This application was allowed, and it is from that decision that the present appeal is brought.

Before dealing with the substance of the appeal, I think I should comment on the first application, in view of the fact that Harris, J., in his ruling on the second application, observed that he thought the judge who granted the first application lacked jurisdiction to do so, since s. 57 (8) expressly requires service on the caveatee before such an application is entertained. I think, with respect, that it is not correct to say that the court lacked jurisdiction. I think the court has jurisdiction and can allow an *ex parte* application in the exercise of its inherent powers, but that it should do so only in exceptional circumstances and for very good reason. No reason was given why the first application was made at the last moment and *ex parte*, and in my opinion it should have been refused.

Mr. Gautama, who appeared for the appellant company, criticised a passage in the ruling on the second application, in which the judge suggested that the caveat ought never to have been registered, since it sought to prohibit all dealings with the land. This was going beyond what was necessary to protect a leasehold interest. Mr. Gautama argued that he had to prohibit all dealings, as he would

not be able to institute a suit for specific performance against any third party who might acquire the land. Here, with respect, I think the judge was right. The appellant company had possession and if it had valid agreements for leases, a caveat which gave express notice of them to a transferee would, I think, sufficiently have protected the appellant company. However, this was not the basis of the ruling and it is not strictly necessary to deal with it.

The substantial issue on the appeal is whether the documents on which the appellant company relies show a right in the appellant company to call on the respondents to grant leases to it. This involves two questions, first, whether these documents were signed by or on behalf of the respondents and, secondly, whether they amount to agreements for leases.

The documents concern two godowns. It transpired in the course of argument that there is at least one other godown on the land the title to which was affected by the caveat. This is not apparent from the record, and I think therefore that we should ignore it. If it had appeared on the record, I should, on the authority of *Boyes v. Gathure*, [1969] E.A. 385, have regarded it as a reason for treating the caveat as invalid, as a caveat which applies to part only of the land registered under any title should expressly be stated to be limited to that part.

As regards one godown, numbered 1, the appellant company relied on a letter of offer dated 13 February 1968, and an endorsement at the foot thereof. As regards the other godown, numbered 2, the appellant company relied on a letter of offer dated 9 April 1964, and an endorsement at the foot thereof. Both these letters were signed by J. C. Patel on behalf of African Highland Timber Company Ltd., the later in date being signed by him as a director.

The land with which we are concerned was originally granted to Chaturbhai Mathurbhai Patel, Manubhai Somabhai Patel, Chimanbhai Chaturbhai Patel, Somabhai Mathurbhai Patel and Ramanbhai Maganbhai Patel, trading as “The African Highland Timber Company”. Subsequently, the share of Manubhai Somabhai Patel was transferred to Chaturbhai Mathurbhai Patel, Chimanbhai Chaturbhai Patel, Somabhai Mathurbhai Patel and Ramanbhai Maganbhai Patel, as tenants in common in equal shares, and later the share of Chaturbhai Mathurbhai Patel was transferred to Jashbhai Chaturbhai Patel, the signatory of the letters.

It was the case for the appellant company that the owners of the land had held it as part of their partnership property and that J. C. Patel had actual or ostensible authority to enter into the agreements on behalf of himself and his partners. It was claimed that the reference to African Highland Timber Co. Ltd. in the letter of 13 February 1968, was a clerical error. It was, however, conceded throughout that the owners of the land held as tenants in common, and this must have been so, otherwise the transfers of shares in the land mentioned above could not have been registered. Had the original grantees held as joint tenants, the transfers would have operated to sever the tenancy.

The case for the respondents was that the words “trading as African Highland Timber Co.” in the original grant were merely descriptive, that the owners held individually as tenants in common and that J. C. Patel had no power, either as a partner in African Highland Timber Co. or as a director of African Highland Timber Co. Ltd. to bind his co-owners of the land. It is not suggested that the limited company had any interest in the land.

It is, of course, a matter of fact whether or not property is partnership property, but partnership property is normally held jointly and the fact, as is conceded, that the land in question was acquired after the partnership was formed but was held by the owners as tenants in common raises a presumption that it was not partnership property. There is no evidence whatsoever that J. C. Patel

had any actual authority to enter into agreements for leases on behalf of his co-owners and I do not see how he can be said to have had ostensible authority. There is no evidence on which this can be based and I do not think it can be inferred merely from the fact that the appellant company appears to have been allowed to remain in possession of godown No. 2 over a long period. It is, perhaps, not without significance that the appellant company was content to rely on most unsatisfactory documents without attempting to obtain formal leases and, up to 1970, without even attempting to protect by caveat the interest it claimed. It may be that if these issues are decided on evidence in a suit, authority may be established or inferred, but on the facts now before us, I cannot say that the appellant company appears to have any probability of success.

Mr. Gautama submitted that a tenant in common of land has authority to make agreements for leases binding on his co-owners. He could cite no authority for this submission and I have no hesitation in rejecting it. It is of the essence of tenancy in common that owners can deal with the title to their shares but that possession is common to them and cannot be granted by one alone.

Mr. Gautama argued that if there was any doubt, the decision should go in favour of his client, on a balance of convenience, because if the caveat is cancelled, the rights of the appellant company would disappear should the property be transferred. I am not persuaded by this argument, as no reason has been advanced why the appellant company would not be sufficiently compensated by an award of damages, particularly since one of the two agreements has not long to run.

In my opinion, therefore, the appeal must fail and I do not think it necessary to consider the meaning of the alleged agreements and I will only say of them that, even allowing for the fact that they were prepared by laymen, they are most extraordinarily phrased and most ambiguous.

I would dismiss the appeal, with costs, but I would not grant a certificate for two advocates.

As the other members of the Court agree, it is so ordered.

Law Ag V-P: I agree with the judgment prepared by the Acting President, and with the order proposed by him.

Mustafa JA: I agree that the appeal be dismissed.

The land on which the two godowns are built was held by the two respondents and two others who are dead as tenants in common in undivided equal shares. The said tenants in common were also partners in a business. Mr. Gautama for the appellant has submitted that J. C. Patel, who was a tenant in common, had express or ostensible authority to enter into agreements to lease the godowns which will be binding on the other tenants in common. No authority was cited for this proposition and in my view, it is palpably invalid.

Again the letters which the appellant claimed constituted agreements to enter into a lease emanated from the African Highland Timber Company Ltd., a limited liability company. It is common ground that no right, title or interest in the godowns and land was vested in the limited company, and it therefore could not have passed any interest in the godowns and land to the appellant.

I concur in the order of the Acting President.

Appeal dismissed.

For the appellant:
SC Gautama

For the respondents:
CW Salter, QC and *SS Mandla*

Nanyuki Esso Service v Touring & Sports Cars Ltd
[1972] 1 EA 500 (CAN)

Division:	Court of Appeal at Nairobi
Date of judgment:	13 October 1972
Case Number:	12/1972 (166/72)
Before:	Spry Ag P, Lutta Ag V-P and Mustafa JA
Sourced by:	LawAfrica
Appeal from:	The High Court of Kenya – Chanan Singh, J

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[1] Costs – Instruction fee – Claim not fully under Advocates (*Remuneration*) *Order, Schedule 6, paragraph* 1 (*a*) *– Must be taxed under paragraph* 1 (*f*).

[2] Costs – Instruction fee – Claim of different kinds all under Advocates (*Remuneration*) *Order, Schedule* 6, *paragraph* 1 (*a*) *– To be taxed under that paragraph.*

[3] Costs – Appeal – Error in principle – Only inferred from excessive award.

[4] Costs – Appeal – Express error – Normally remitted for reconsideration.

Editor's Summary

The question in dispute was the manner of assessing the instruction fee when of the total sum claimed of Shs. 12,630/-, Shs. 12,110/-fell under Schedule 6, paragraph 1 (*a*) and only Shs. 250/-fell under paragraph 1 (*f*). The taxing master assessed the whole fee under paragraph 1 (*f*) and the judge remitted it for reassessment on the basis that it fell substantially within paragraph 1 (*a*).

On appeal the appellant contended it was immaterial whether the taxing officer started from a wrong premise provided that he arrived at a reasonable result and the amount awarded was not manifestly excessive, that only a single instruction fee may be granted, that where any part of the claim falls outside paragraph 1 (*a*) the fee must be taxed under 1 (*f*), and that where there are several claims of different kinds all of which appear in paragraph 1 (*a*) that that paragraph is excluded.

Held –

(i) an error in principle is only inferred from a manifestly excessive award;

(ii) an express error in principle will normally be remitted unless the judge is satisfied that it cannot materially have affected the assessment;

(iii) (obiter) if all constituents of a claim fell within paragraph 1 (*a*) then the fee must be taxed under that paragraph.

Appeal allowed.

No cases referred to in judgment

[*Editorial note*: This decision is on the Schedule to the Advocates (Remuneration) Order as it was prior to its replacement by the Advocates (Remuneration) (Amendment) Order 1972]

Judgment

The following considered judgments were read. **Spry Ag P:** This is an appeal from the decision of a judge of the High Court on an objection brought by chamber summons under paragraph 11 (2) of the Advocates (Remuneration) Order. The appeal is by leave of the judge, given under sub-paragraph (3) of that paragraph. The objection was to two items in a bill of costs; the instruction fee, for which Shs. 4,260/-was claimed and Shs. 2,000/-

allowed, and the getting-up fee, for which Shs. 1,420/-was claimed and Shs. 720/- allowed. The appeal relates only to the instruction fee.

As regards this fee, the taxing officer commented that the plaint related to a claim, not only for goods sold and delivered or work done and materials supplied but also for moneys alleged to have been paid by the plaintiff for and on behalf of and to the use of the defendant. It had been claimed that paragraph 1 (*a*) of Schedule 6 of the Advocates (Remuneration) Order should apply to this item.

The taxing officer said–

> "I agree that strictly and if it were left to me, all the items should be treated under 6 (*a*) but here, items such as monies paid to plaintiff for and on behalf of the defendant are not strictly covered under 6 (*a*). I have no alternative but to treat it under 6 (*f*)."

He went on to remark that the basic fee was Shs. 1,000/-; that he thought the amount claimed was grossly exaggerated and that he thought a fair amount would be Shs. 2,000/-.

The judge criticised the taxing officer's statement that he had no alternative but to apply paragraph (*f*), saying that he–

> "had several alternatives, which are, in my view, all more reasonable than the course he adopted."

It appears that documents produced at the hearing show that the sum claimed as moneys paid was only Shs. 250/-, out of a total claim of Shs. 12,360/-. The other courses which the judge suggested were open to the taxing officer were–

(i) to ignore the sum of Shs. 250/- and tax the fee under paragraph (*a*) on Shs. 12,110/-;

(ii) to tax the fee under paragraph (*a*) on Shs. 12,360/-, on the basis that the claim fell substantially within that paragraph;

(iii) to base the fee on a figure somewhere between the basic fees provided by paragraphs (*a*) and (*f*); or

(iv) to split the claim into two parts and assess a fee on Shs. 12,110/-under paragraph (*a*) and a fee on Shs. 250/-under paragraph (*f*) and then aggregate them.

Of these, he thought (ii) was the correct course to adopt and he remitted the bill to the taxing officer to re-assess it on that basis.

In suggesting these alternatives, the judge remarked–

> "After all, the taxation rules are only a guide to Deputy Registrars exercising their wide discretion."

With respect, I do not think that is quite correct. The paragraph reads–

> "The fee for instructions shall be as follows unless the taxing officer in his discretion shall increase the same."

It is clear that the taxing officer has no discretion to give less than the amount shown in the Schedule. He may give more when he is satisfied, in his discretion, that there is good reason to do so, as for example when a case is of more than normal difficulty or complexity or involved exceptional responsibility.

Mr. Khanna, who appeared for the appellants, began by submitting that what the judge had to consider was whether the amount awarded was manifestly excessive. He submitted that it was immaterial whether or not the taxing officer started from a false basis or misdirected himself on the principles to be applied if, in the event, he arrived at a reasonable result.

I think, with respect, that this is going much too far. An error of principle is only inferred where an award is manifestly excessive, but where there is an express error of principle, I think a judge will normally remit the matter to the taxing officer for reconsideration, unless he is satisfied that the error cannot materially have affected the assessment.

We must therefore consider whether there was an error of principle in the taxing officer's ruling.

Mr. Khanna submitted that under the Remuneration Order, the appropriate instruction fee is to be determined on the basis of the total amount claimed in the plaint. This, he argued, automatically excluded the suggested course shown as (i) above. The legislature having prescribed two separate scales, it is not open to a taxing officer or a judge to fix an intermediate scale: that excludes course (iii). The Schedule only contemplates a single instruction fee and there is no authority for giving two instruction fees: this excludes course (iv).

Mr. Fraser, for the respondent company, did not seek to support either course (i) or course (iii), and he did not argue strongly in support of course (iv). The real issue on the appeal was therefore whether or not course (ii) was open to the taxing officer.

Mr. Khanna's argument on this was, simply, that paragraph (1) (*a*) of Schedule 6 relates to suits on certain specified causes of action, while paragraph (1) (*f*) is a general residuary provision: unless, therefore, a plaint falls within the terms of paragraph (1) (*a*) (or, of course, one of the other specific paragraphs), it must be dealt with under paragraph (1) (*f*). He submitted that it was not open to a judge to analyse and quantify the various elements in the claim and that it was immaterial that the part of the claim which fell outside paragraph (1) (*a*) might be very small.

Mr. Fraser submitted that the taxing officer, and in his turn the judge, were entitled to examine the basis of the claim, to know exactly what they were dealing with, and that in deciding whether a case fell under paragraph (1) (*a*) or (*f*), they were entitled to disregard, under the de minimis maxim, a trifling element in the claim, so as to give substantial effect to the intention behind the order, which was that simple matters of contract would be dealt with on the lower scale contained in (*a*) and other, generally more complex, matters, under (*f*).

The problem is not an easy one, but I have come to the conclusion that Mr. Khanna is right. In deciding whether a claim falls under any particular head, one must look at the substance of the claim and not to the way it is expressed, but if a claim, or any part of it, clearly does not fall under any particular head, it must be treated under one of the residuary heads. In the present case, I think the taxing officer was right when he said that he had no alternative.

I think further that if there was no express error of principle, the amount awarded by the taxing officer was not so large that any error of principle could be inferred, and therefore that the appeal must succeed.

There was one matter which was argued at some length in the High Court and also to some extent in this Court and it may be helpful if I express an opinion on it, even though it is not necessary for the decision of this appeal. It was suggested by Mr. Khanna that paragraph (1) (*a*) ought to be read disjunctively and applied only where the whole of a claim relates to one of the matters therein set out, so that if a claim includes items of different kinds all of which appear in paragraph (1) (*a*), it should be treated as falling under paragraph (1) (*f*). With respect, I cannot agree. The word "or" is normally but not invariably interpreted disjunctively. I entertain no doubt that if all the constituents of a claim fall within paragraph (1) (*a*), as for example a claim for

goods sold and delivered and for work done and materials supplied, the instruction fee should be taxed under that paragraph.

Mr. Fraser suggested that even if the appeal succeeded, the order for costs in the High Court should not be disturbed, but with respect I cannot agree. The part of the order against which there has been no appeal is substantially governed by the result of this appeal.

I would allow the appeal, set aside the order of the judge so far as it relates to item 3 of the bill of costs and restore the decision of the taxing officer in that respect. I would set aside the order for costs in the High Court and I would allow the appellants their costs in this Court and their costs to date in the High Court. As the other members of the Court agree, it is so ordered.

Lutta JA: I agree.

Mustafa JA: I agree. I only wish to re-inforce the Acting President's interpretation of paragraph (1) (*a*) of Schedule 6 of the Advocates (Remuneration) Order. I also have no doubt that if all the constituents of a claim fall within that paragraph, the instruction fee should be taxed under it.

Appeal allowed.

For the appellant:
DN Khanna (instructed by *Khanna & Co*, Nairobi)

For the respondent:
KA Fraser (instructed by *Hamilton Harrison & Mathews*, Nairobi)

KIG Bar Grocery and Restaurant Ltd v Gatabaki and another
[1972] 1 EA 503 (CAN)

Division:	Court of Appeal at Nairobi
Date of judgment:	13 October 1972
Case Number:	28/1972 (167/72)
Before:	Spry Ag P, Law Ag V-P and Mustafa JA
Sourced by:	LawAfrica

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[1] Injunction – Mandatory injunction – Should not be granted in negative terms, and conditions to be considered.

[2] Injunction – On condition – Not automatically discharged by breach of conditions – Normally discharged by court.

[3] Civil Practice and Procedure – Pleading – Amendment – Application for should be considered separately and with precise amendment required.

[4] Civil Practice and Procedure – Alteration of judgment – Does not apply to orders – Civil Procedure (*Revised*) *Rules* 1948, *O.* 20, *r.* 3 (3) (*K.*).

Editor's Summary

After the appellant had repossessed premises on the failure of the respondents to comply with their obligations under a lease, the respondents applied to the High Court for relief against forfeiture and for a temporary injunction which was granted in terms restraining interference with the respondents' possession of the premises. The order was conditional on the payment of the rent into court.

The rent was not paid timeously and the appellant applied to the court to discharge the injunction.

On the refusal of the application, the appellant appealed.

Held –

(i) mandatory injunction should not be granted in negative terms and

the normal conditions for the granting of a mandatory injunction must be considered;

(ii) an injunction granted on conditions is not automatically dissolved by breach of the conditions, but the court will normally dissolve it;

(iii) equitable relief should not be granted to a party who does not come to the court with clean hands;

(iv) applications for amendment of pleadings should be dealt with separately, and the precise amendments sought should be set out;

(v) (by Spry, Ag.P. obiter) O. 20, r. 3 (3) applies only to judgments and not to orders.

Appeal allowed.

No cases referred to in judgment

Judgment

The following considered judgments were read. **Mustafa JA:** The appellant leased business premises to the respondents with provisions for re-entry for certain breaches. In purported exercise of its right of re-entry the appellant repossessed the premises on 9 July 1971. The respondents filed an action in the High Court against the forfeiture on 13 July 1971 and contemporaneously applied for a temporary injunction which the High Court granted on 29 July 1971. The relevant parts of the order read:

> "1. That the defendant (appellant) be and is hereby restrained by its servants or agents from interfering with the quiet and peaceable enjoyment by the applicant, his servants or agents of the building on Plot L.R. 209/4882 situate on Enterprise Road, Nairobi or any part thereof and from attempting to sell, let or otherwise alienate the said premises or any part thereof pending the determination of this suit.
>
> 2. That the above order be and is conditional upon the applicant with effect from the date of his repossession of the said premises complying in every respect with the Lessee's covenants and conditions in the Lease dated 21 May 1971 and registered as No. I.R. 12534/8 on 28.5.71 at Land Titles Registry, Nairobi and paying into Court a sum of Shs. 1,000/- on the 1st day of August, 1971 together with a like sum on the 1st day of each succeeding month until further order.
>
> 3. That the cost of and in relation to this application be costs in cause and be taxed on the higher scale with no certificates for second counsel.
>
> 4. That each party be at liberty to apply generally.
>
> 5. That leave to appeal be and is hereby granted."

The order is curiously worded. Paragraph 1 of the order is couched in negative terms and appears to prevent the appellant from interfering with the respondents' possession of the premises. However, in paragraph 2 there is mention of "repossession" by the respondents. It is common ground that what the order purported, *inter alia*, to do, and what in effect was done, was to order the appellant to vacate the premises it had re-possessed and to hand back possession thereof to the respondents. The order therefore was in fact a mandatory one, and it does not seem that the normal conditions for the making of a mandatory order were considered.

As a result of the order of 29 July 1971 the respondents re-entered into possession of the premises on 31 July 1971. The respondents however failed to

comply with the conditions of the order. They delayed paying the monthly sums of Shs. 1,000/- into Court and did not pay the rent on due dates. The rent for August 1971 was 93 days late, for September 62 days late and for October 32 days late. The respondents issued cheques in purported payment of rent and they were dishonoured on presentation at the bank. Two such cheques were dishonoured more than once. These breaches of the terms of the order were also breaches of the conditions of the lease. Accordingly, the appellant applied to the Court under its inherent powers, preserved by s. 97 of the Civil Procedure Act for an order:

1. to set aside the injunction granted on 29 July 1971,
2. that possession of the premises be restored to it and consequential reliefs.

The trial judge refused the application. He said:

> "The matter is of course, one of discretion, and in the exercise of that discretion, I must refuse the defendant's motion but I do so on the following terms."

He then made an order dated 31 January 1972, the relevant parts of which read:

"1. that the defendant's application be refused but upon the following terms;

2. that the payments (including rent) directed by the order of 29 July 1971 and falling due and payable up to this date, if and so far as they or any of the sum may be now outstanding be made by the plaintiff to the defendant or into Court, as the case may be, within the next ten days;

3. that a sum of Shs. 10,500/- being the equivalent of three months' rent, shall within the like period be paid into Court by the plaintiff without prejudice to his obligation to make the payments directed by the order of 29 July 1971;

4. that the plaintiffs do pay to the defendant its costs of the motion to be taxed and certified by the taxing master of this court, certified for two counsel, such payment to be made within ten days from the date of the certificate of taxation;

5. that the defendant be at liberty to amend its statement of defence by the addition of a set off or counterclaim for loss suffered by the defendant's ouster from the premises and stoppage of business it was carrying on therein as at the date of the injunction;

6. that the said sum of Shs. 1,000/- so paid and to be together with the said sum of Shs. 10,500/- already mentioned will be held by the defendant or in court as the case may be as security to meet any such loss as may be established and subject thereto will be reserved for order of the court in the suit;

7. that each party be at liberty to apply generally."

From this order, the appellant appeals.

Mr. Khanna for the appellant appeals on two main grounds. He submitted that:

1. The trial judge had no discretion and no alternative but to set aside an injunction for breach of the conditions upon which it was granted and had no power to sit in appeal over his original order or to substitute a different order therefore;
2. that the discretion (if it existed) was wrongly exercised as it resulted in a patent miscarriage of justice.

It will be necessary to examine the order of 29 July 1971 closely. I have already referred to its relevant terms. It is not in dispute that both parties, despite its negative terminology, construed the said order to contain directions for the appellant to vacate the suit premises it had re-possessed and to hand back possession thereof to the respondents. The respondents, in pursuance of the said order, re-possessed the premises. Once that was done, the order, in so far as regards re-possession, was spent.

The order also provided that as from the date of re-possession by the respondents, the injunction restraining the appellant from interference and alienation would be conditional on the respondents complying with the covenants and conditions of the lease and the payment of a monthly sum.

Mr. Khanna submitted that the order of the trial judge made on 31 January 1972 on the appellant's application to set aside the earlier injunction was in effect a review, alteration, amendment or substitution of his earlier order of 29 July 1971. He also submitted that the trial judge in effect sat in appeal over his earlier order. He submitted that the trial judge was precluded from doing so. He submitted that once the trial judge had made an order, even an interlocutory one, the order was final, and was res judicata in so far as the judge was concerned and that the trial judge had no power to alter the order once it was made. He also contended that once the conditions on which the order was based were breached, the order automatically lapsed, and a declaration that it had lapsed and was of no effect should have automatically followed.

The basis of Mr. Khanna's submission would seem to be that the order of 29 July 1971 had lapsed by virtue of the respondents' breach of the conditions on which it was based, and that the parties should therefore have been restored to their previous positions. However, since the re-possession of the premises by the respondents, circumstances had changed. The appellant would need a court order to be put back into possession of the premises, even if the injunction order of 29 July 1971, which as Mr. Shah for the respondents has pointed out contained no express default clause in case of breach, was set aside. In fact that was what the appellant applied for, that possession of the premises be restored to it. This involved a new matter. As I said earlier, the re-possession part of the order of 29 July 1971 was spent once the respondents had entered into possession. To revert to the state of affairs as existed just prior to the order of 29 July 1971 as the appellant wanted to do, it had to apply to the court for a positive order to recover possession. In dealing with such an application for re-possession the trial judge clearly had a discretion. He made a new order, not one amending the earlier one or substituting a new one. In the circumstances, it is unnecessary for me to deal with the issues so exhaustively canvassed before the court, those relating to res judicata, the power of recall or amendment of an order once made, the similarity between an order and a judgment for certain purposes and so on. In my view, the first ground of appeal fails.

I will now deal with the second ground of appeal, namely, that the trial judge had wrongly exercised his discretion as it had resulted in a patent miscarriage of justice. The appellant had entered the premises and retook possession for alleged non-payment of rent which resulted in the suit filed by the respondents against the said forfeiture. When the injunction order of 29 July 1971 was made, it was expressly stated that the respondents were to comply with all the covenants and conditions of the lease, including the payment of rent. And yet the respondents as I have indicated earlier, defaulted in payment of rent on due dates, that for August 1971 was late by 93 days, that for September by 62 days and that for October by 32 days. Cheques paid over for rent were dishonoured on presentation at the bank. It need hardly be stressed that generally speaking a landlord for commercial premises leases premises for rent, and payment of

rent is of paramount importance. In regard to the non-payment of rent on due dates, after the injunction order of 29 July 1971, the trial judge said:

> "Whatever sympathy one might feel for a person who through a genuine misunderstanding has suffered the indignity of having a cheque dishonoured, where as here such a person has sought and obtained the indulgence of the Court in the form of an order suspending the rights of another person arising from an alleged breach of contract, and such indulgence has been granted expressly upon the condition that any such breach of contract be remedied forthwith and all future monies becoming payable under the contract during the period of suspension be paid upon due date, a failure to comply with such a condition through the careless operation of a bank account cannot but be viewed in a most serious light."

The first respondent in explanation of the dishonoured cheques stated in an affidavit:

> "That on account of a change of manager in my bank my overdraft facilities with my bank were curtailed and I was not aware that my said cheques had been dishonoured. I had no intimation that the said cheques were dishonoured."

The trial judge dealt with this allegation as follows:

> "The respondent's explanation of the dishonouring of the cheques is that, consequent upon a change of personnel in his bank, his overdraft facility had been curtailed, but although he states that he was unaware that the cheques had been dishonoured, he does not claim to have been unaware of the curtailment of his credit facility."

I only wish to say that the trial judge's comment on the dishonoured cheques was, to put it mildly, more than generous. The trial judge went on:

> "I have little sympathy for the respondent in his present predicament but nevertheless the fact remains that a re-entry by the defendant upon the premises and the ejectment of the respondent therefrom, which would almost certainly be the immediate result of a removal or discharge of the injunction, would effectively destroy or gravely prejudice his interest in the premises before the hearing of the action. . . . Having regard to the fact that his default appears not to have resulted in any specific damage to the defendant, I have reached the conclusion that an order discharging the injunction would not be wholly consistent with the importance which is attached by courts of equity to the preservation of the status quo and more particularly where it involves the ownership or possession of property. The matter is of course, one of discretion, and in the exercise of that discretion I must refuse the defendant's motion. . . ."

Since the trial judge has earlier said, "It is understood that all payments due at the time of the hearing of the motion have been brought up to date", I do not see how in such circumstances re-entry by the appellant upon the premises would be the immediate result of the discharge of the injunction.

I have set out in detail the grounds on which the trial judge relied on in exercising his discretion. It seems to me that the trial judge did not consider the position of the appellant at all. The trial judge purported to act on equitable principles in refusing the appellant's application, and yet the respondents did not come to the Court with clean hands. They committed a serious breach of the conditions of the order given in their favour by the indulgence of the Court. The first respondent's purported explanation why his cheques which he issued in payment of rent were dishonoured was on the face of it spurious. Two

cheques were dishonoured more than once. The appellant must have suffered damage by the non-payment of rent on due dates. The appellant's affidavit of 28 October 1971 contained an allegation that owing to the default of the respondents, the appellant was unable to meet its liabilities to the Industrial and Commercial Development Corporation to whom the suit premises were charged thus rendering the premises liable to be sold or attached for the repayment under the said charge. The trial judge seemed to have overlooked that allegation. The trial judge referred to the preservation of the status quo; the status quo would have resulted in the appellant being put back into possession, as it was in possession before the order of 29 July 1971. In any event, the preservation of the status quo in a situation such as this is an important factor, but not the sole or overriding factor. Each case has to be judged on its own facts. From the facts it was clear that the respondents had repeatedly defaulted in the payment of rent on due dates, and such defaults occurred after they had been granted indulgence by the Court and after they had filed a suit in Court for relief against forfeiture for alleged non-payment of rent. The respondents had persistently transgressed.

I would hesitate long before I would interfere with a trial judge in the exercise of his judicial discretion. In this case, however, I am satisfied that we ought to interfere. It seems to me that the trial judge had, as I have endeavoured to show, acted on wrong principles or omitted to take into consideration material factors, when exercising his discretion, with the result that the appellant had suffered grave injustice. I am of opinion that the trial judge ought to have allowed the application of the appellant in the circumstances and granted the reliefs prayed for.

In refusing the appellant's application the trial judge in his order of 31 January 1972 imposed certain terms on the respondents. I have already set out the said order in detail. The terms imposed include liberty to the appellant to amend the statement of defence by adding a counterclaim or set off and what would seem to be some sort of enquiry into loss or damage, if any, sustained by the appellant. Mr. Khanna submitted that these two terms should be allowed to continue if he succeeded in the appeal. I think that these terms were imposed by the trial judge as a counterbalance to the further indulgence he granted to the respondents. I am not sure if it was appropriate to deal with the issue of counterclaim or set off or an enquiry into damages on the hearing of an application to discharge a temporary injunction. Applications for amendment, for instance, can be dealt with on their own. In any event, I do not think we should retain some parts and reject some parts of the order. I would set it aside completely.

I would therefore allow the appeal, set aside the order of the High Court and substitute therefore an order granting the appellant's application to discharge and set aside the injunction granted on 29 July 1971 and order that possession of the suit premises be restored to the appellant. I would grant the appellant costs of the appeal and costs of the application in the High Court. I would not certify for two advocates.

Spry Ag.P: I have read and agree with the judgment of Mustafa, J.A., and there are only one or two points on which I wish briefly to comment.

I think that when an injunction is granted on conditions, it is not automatically dissolved by the breach of those conditions, nor is the court under any duty, on application, to dissolve it. I think, however, that a court will, in such circumstances, normally dissolve the injunction, unless the breach is of a very minor or technical nature and that the burden is on the party who obtained the injunction to satisfy the court that the breach can be excused.

There was no appeal against the granting of the injunction and we do not have before us the application on which it was founded, but I would observe that applications for orders which are substantially mandatory should not be expressed or dealt with as if they were merely of a restraining nature.

Mr. Khanna, in the course of his argument, suggested that O. 20, r. 3 (3) applies to orders. It is not necessary for the purpose of this appeal to decide the point, but I think I should remark that I have no doubt that the rule applies only to judgments which lead to decrees.

I do not think leave should have been given in general terms to amend the statement of defence. If any question of set-off or counterclaim arises, and I am by no means sure that it does, application should be made setting out the precise amendment sought.

As Lutta, J.A., also agrees, there will be an order in the terms proposed by Mustafa, J.A.

Lutta JA: I also agree.

Appeal allowed.

For the appellant:
DN Khanna and *C Muturi Kigano*

For the respondent:
AB Shah (instructed by *Shah & Parekh*, Nairobi)

Income Tax v M Ltd
[1972] 1 EA 509 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	20 September 1971
Case Number:	95/1969 (169/72)
Before:	Miller J
Sourced by:	LawAfrica

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[1] Income Tax – Deduction – Expenditure – Director's leave travel – No contract of service – Not deductible – East African Income Tax Management Act (*Cap.* 24) *s.* 13.

Editor's Summary

The respondent company paid the fares of a director and his wife to India after the director had been recommended by his doctor to take leave. He had no written contract of service with the company and the expenditure on fares was merely ratified by the directors after his return. He did no company business while away.

On the allowance of the expenditure the Commissioner-General appealed.

Held –

(i) the expenditure was not director's remuneration within the articles of association;

(ii) it had not been shown that the expenditure was wholly and exclusively for the production of the company's income.

Appeal allowed.

Case referred to in judgment:

(1) *B.H. v. Income Tax*, 3 E.A.T.C. 192.

Judgment

Miller J: In this appeal the Commissioner-General of Income Tax appeals against the decision of the Local Committee for Nairobi upholding the appeal to it by the respondent company, a mainly furniture manufacturing company, that in relation to the company's tax assessment passage monies paid by the company are to be allowed as a deduction. The ground of appeal is that the decision was erroneous in law. For the appellant the following statement of facts was filed, viz.:

> "(2) The respondent company was incorporated in Kenya on 11 June 1963 and in the relevant year the shares issued were held wholly and equally by Mr. Jit Singh s/o Rattan Singh and Mrs. Swaran Kaur Singh (husband and wife). These two together with one son of theirs, are the sole directors of the respondent company.
>
> (3) For the years prior to the year ending 31 May 1967 the company's accounts showed no expenditure on overseas travel. In the year of income 1967 there was expenditure of Shs. 6,146/- on return passages for Mr. and Mrs. Jit Singh to India.
>
> (4) In all the relevant years, including the year ended 31 May 1967, the accounts of the company show remuneration to the directors, but the remuneration has never included expenditure on overseas travel."

It is the appellant's contention in paragraph 5 of the statement of facts that the expenditure in the sum of Shs. 6,146/- is not director's remuneration and is not so described in the company's accounts (although it is so described in a Certificate under s. 68 (4) (*b*)) and therefore not an allowable deduction under s. 13 (1) of the East African Income Tax Management Act (Cap. 24). Further, that the company has never found it necessary to provide overseas passages for its directors, who are residents of Kenya, in order to produce its profits; and the decision to provide such passages was prompted by the relationship between the company directors concerned rather than by any commercial necessity. Counsel for the respondent company put the matter simply and said that the question is whether the expenses should attract tax. He submitted that it is not unusual in the "contract" for leave passage to be provided and no tax is paid either by employee or employer in respect of this, and that it has always been considered to the benefit of the company where the employer goes on leave to refresh himself, get fitter and work better. Counsel pointed out that the difference is because the persons concerned control the company but as directors they are also employees; and submitted that it makes no difference that the respondent company is a controlled company, there should be special legislature for controlled companies. In evidence Mr. Jit Singh one of the directors said that he was running the company with 80 to 90 employees. In 1965 one of his sons became a director and in 1966 he personally suffered ill health and his doctor recommended overseas leave and he went to India for two and a half months with his wife. He said further, that his health still being bad he took on another son to help him run the business and that he and his wife hold 250 shares each and the sons 100 shares each. He tendered in evidence the minutes of a directors' meeting of 2 February 1967 at which it was resolved that the company issue a surety bond in the amount of Shs. 20,000/- to enable him to obtain the necessary tax clearance to travel to India also the minutes of a later meeting of 28 June 1968 when it was resolved to approve the payment of the sum of Shs. 6,146/-in respect of the passages of himself and wife to India. Under cross-examination he said – "It is true that at the end of May 1967 one son was a director with 16% shares. My wife went to India as my help not for her health. The purpose of the trip was for my health. I did no company's business during the period." Counsel for the respondent company urged that it is usual that provision be made for leave passage in the "contract" which I understand to mean the

contract of service between employer and employee but with respect it does not appear that such is the case within the memorandum and articles of association of the respondent company. The following appears in the articles of association:

> "29. The Directors shall be paid out of the funds of the Company by way of remuneration for their services such sum as the Company in General Meeting may from time to time determine, and such remuneration shall be divided among them in such proportion and manner as the Directors may determine and in default of such determination within the year equally. The Directors shall also be paid all reasonable travelling and hotel expenses incurred by them in connection with attending and returning from Board Meetings.
>
> 30. If any Director being willing, shall be called upon to perform extra services or to make special exertions in going or residing abroad or otherwise for any of the purposes of the Company, the Company may remunerate such Director as may be determined by the Directors, and such remuneration may be either in addition to or in substitution for his share in the remuneration above provided, and may also refund to such Director all reasonable expenses incurred by him whilst on the Company's business."

I consider it appropriate to set out the provisions of s. 13 (1) of the East African Income Tax Management Act (Cap. 24) as the major part of the answer to the issue involved turns upon the interpretation of those provisions:

> "13(1) For the purpose of ascertaining the total income of any person for any year of income there shall be deducted all expenditure incurred in such year of income which is expenditure wholly or exclusively incurred by him in the production of such income and which is not expenditure in respect of which no deduction shall be allowed under section 14. . . ."

Mr. Jit Singh admitted on oath that his travel to India was for his health and that he did no company's business during the period. I am therefore led to conclude and I so conclude that his trip to India with his wife does not satisfy the requirement that the relevant expenditure was incurred "wholly or exclusively in the production of the company's income" for the year of income 1967. Clause 30 of the articles of association reproduced above also makes it clear that the basis for remuneration or reimbursement in respect of overseas travel is "on the company's business" and at the discretion of the directors. Counsel for the appellant pointed out that the appellant should have been given minutes of a meeting showing the nature of Mr. and Mrs. Singh's travel and the benefit to the company's business. It is clear from the minutes tendered that this was not done. The expenditure was merely ratified by resolution at the directors' meeting of 28 June 1968 with no reason attributed to the cause for the expenditure. This court had therefore to pay special attention to the sworn testimony of Mr. Jit Singh even although he freely admitted that the travel to India by himself and wife was not on the company's business; and for this purpose I have studied as carefully as I could *B.H. v. Income Tax*, 3 E.A.T.C. 192. As a result it appears to me that within the terms of Clause 30 of the articles of association and as a matter of evidence which might have come from Mr. Singh along the guide lines of the phrases – "being willing", "make special exertions" and "for any of the purposes of the company" the expenditure could have satisfied the test of being "on the company's business". But if I correctly understand the provisions of s. 13 (1) of the Act and the case referred to above it would still have been necessary for the respondent company to show that the relevant expenditure on that item of the "company's business" was "wholly and exclusively" for the production of income. For these reasons the court allows the appeal with costs and orders that the Commissioner's assessment made upon the respondent be restored.

Appeal allowed.

For the appellant:
RO Kwach

For the respondent:
AE Hunter (instructed by *Daly & Figgis*, Nairobi)

Lall v Jeypee Investments Ltd
[1972] 1 EA 512 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	16 March 1972
Case Number:	120/1971 (170/72)
Before:	Madan and Miller JJ
Sourced by:	LawAfrica

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[1] Rent restriction – Notice to quit – Variation between wording of Act and notice – Regulation followed – Notice ineffective – Landlord and Tenant (*Shops, Hotels and Catering Establishments*) *Act* (*Cap.* 301) *s.* 4 (*K.*).

[2] Statute – Construction – Manner of – From own context and own object.

Editor's Summary

The respondent served on the appellant a notice terminating the appellant's tenancy. The notice required the appellant within one month after the giving of the notice to notify the respondent whether it intended to comply with the notice. The Act required that the notification of compliance be called for within one month after the receipt of the notice, but the form provided under the Act had not been amended.

The appellant appealed from the order of possession made by the tribunal, contending that the notice was void. The respondent contended the provision on notice was merely directory and that he had followed the form provided.

Held –

(i) every statute must be interpreted on the basis of its own language since words derive their colour and content from the context and the object of the statute is a paramount consideration (*Attorney-General v. Prince Ernest Augustus of Hanover* (3) followed);

(ii) the Act is for the protection of tenants and the provisions for notice are mandatory and not directory (*Price v. West London Investment Building Society* (4) followed; *Abeid v. Badbes* (5) not followed);

(iii) a notice not in accordance with the Act is ineffective even if it follows a prescribed form.

Appeal allowed.

Cases referred to in judgment:

(1) *R. v. Lincolnshire Appeal Tribunal, ex p. Stubbins*, [1917] 1 K.B. 1.

(2) *Orman Brothers, Ltd. v. Greenbaum*, [1955] 1 All E.R. 610.

(3) *Attorney-General v. Prince Ernest Augustus of Hanover*, [1957] A.C. 436.

(4) *Price v. West London Investment Building Society*, [1964] 2 All E.R. 318.

(5) *Abeid v. Badbes*, [1968] E.A. 598.

(6) *R. v. Pontypool Gaming Licensing Committee, ex p. Risca Cinemas Ltd.*, [1970] 1 W.L.R. 1299; [1970] 3 All E.R. 241.

(7) *Zenith Investments* (*Torquay*) *Ltd. v. Kammins Ballrooms Co. Ltd.* (*No.* 2), [1971] 1 W.L.R. 1032; [1971] 2 All E.R. 901.

(8) *Kammins Ballrooms Co. Ltd. v. Zenith Investments* (*Torquay*) *Ltd.*, [1971] A.C. 850.

Judgment

The considered judgment of the court was read by **Madan J:** This is an appeal from a determination of the Business Premises Rent Tribunal established under the Landlord and Tenant (Shops, Hotels and Catering Establishments)

Act (Cap. 301) (hereafter respectively referred to as the tribunal and the Act).

The respondent/landlord served a notice under s. 4 of the Act, upon the appellant/tenant on 29 July 1970, terminating the tenant's tenancy with effect from 30 September 1970, on the ground that the landlord intended to demolish the existing structure and to carry out substantial work of construction thereon which the landlord could not reasonably do without obtaining possession of the premises in question.

Paragraph four of the landlord's notice read as follows:

> "4. We require you, within one month after giving of this Notice, to notify us in writing whether or not you agree to give up possession of the premises, or agree to the proposed termination of the tenancy."

On 28 August 1970 the tenant notified the landlord that he objected to the validity of the landlord's notice, and he was also not willing to comply with whatever was required of him by the notice. Thereafter the tenant referred the matter to the tribunal under s. 6 (1) of the Act on the ground that the landlord's notice was bad.

The tribunal pronounced its determination or judgment for the landlord ordering the tenant to give vacant possession of the premises on 31 August 1971, which allowed the tenant three months and a few days to vacate.

The tenant has appealed to this court on the ground that the tribunal erred in declaring the landlord's notice to be good and also in misconstruing s. 4 (3) and further in holding that the Act is not imperative and absolute in its terms.

The legislative history briefly is that the Act was enacted in 1965. The first or original s. 4 (1) provided that a landlord wishing to terminate a tenancy, or wishing to terminate or alter the terms and conditions of a tenancy or the rights or services enjoyed by a tenant under a tenancy, shall give notice thereof to the tenant in such form as the Minister may, by regulations made under the Act, prescribe.

The Minister duly promulgated regulations which were published under L.N. 19 of 1966. Regulation 4 provided that a notice under s. 4 (1) of the Act by a landlord shall be in Form A in the Schedule to the regulations. Paragraph 2 of Form A read as follows:

> "2. You are required within one month after receiving this Notice to notify me in writing whether or not you will be willing to give up possession of the premises/agree to alteration of terms/conditions of the tenancy as from that date."

Form A was amended by L.N. 31 of 1968 by renumbering paragraph 4 thereof which stated that the Notice was given under s. 4 of the Act, as paragraph 5, and by replacing paragraphs 2 and 3 thereof with three new paragraphs of which the third of the new paragraphs which was numbered paragraph 4 is relevant for the purposes of this appeal.

It read:

> "4. I require you, within one month after the giving of this notice, to notify me in writing whether or not you agree to give up possession of the premises, or agree to the proposed termination of your tenancy/alteration of the terms and conditions of the tenancy."

When the landlord gave his notice to the tenant in this case the prescribed form of notice then in force was what I would call the 1968 prescribed form.

The Act was amended extensively by Act 2 of 1970 the date of commencement

of which was 6 April 1970, i.e. before the date of the landlord's notice. The whole of the existing s. 4 was repealed, and, insofar as relevant, the following new s. 4 enacted:

> "4. (1) Notwithstanding the provisions of any other written law or anything contained in the terms and conditions of a controlled tenancy, no such tenancy shall terminate or be terminated, and no term or condition in, or right or service enjoyed by the tenant of, any such tenancy shall be altered, otherwise than in accordance with the following provisions of this Act.
>
> (2) A landlord who wishes to terminate a controlled tenancy, or to alter, to the detriment of the tenant, any term or condition in, or right or service enjoyed by the tenant under, such a tenancy, shall give notice in that behalf to the tenant in the prescribed form.
>
> (4) No tenancy notice shall take effect until such date, not being less than two months after the receipt thereof by the receiving party, as shall be specified therein:
>
> Provided that . . .
>
> (5) A tenancy notice shall not be effective for any of the purposes of this Act unless it specifies the grounds upon which the requesting party seeks the termination, alteration or reassessment concerned and requires the receiving party to notify the requesting party in writing, within one month after the date of receipt of the notice, whether or not he agrees to comply with the notice."

It is common ground that the tenancy in this case is a controlled tenancy. The 1968 prescribed form was substituted by a new notice prescribed on 16 July 1971, i.e. after the date of the landlord's notice, by L.N. 153 of 1971. Paragraph 4 of this new notice provides:

> "4. I require you, within one month after receipt of this notice, to notify me in writing whether or not you agree to comply with the notice as from that date.
>
> It will be noted that the expression 'after receipt of this notice' is used in paragraph 4 instead of the expression 'after the giving of this notice' used in the 1968 prescribed form. It will also be noted the expression used in sub-section (5) is 'after the date of receipt of the notice'."

There could be no doubt that the Act is an especially enacted piece of legislation which creates a privileged class of tenants for the purpose of affording them the protection specified by its provisions against ravages of predatory landlords. Such protection can only be fully enjoyed if the provisions of the Act are observed to the letter otherwise the clearly indicated intention of the legislature would be defeated. In order to be effective in this fashion the Act must be construed strictly no matter how harsh the result.

I am of the opinion that the provisions of s. 4 (5) are peremptory and imperative, and any notice given by a landlord pursuant thereto must comply with its requirements absolutely and without any deviation. The importance of this is obvious to my mind. A tenant who is sought to be ousted from his place of business where he has been carrying on his trade and is earning his livelihood must be informed in the clearest possible terms of his right to resist ejectment under and in accordance with the provisions of the Act.

I am also of the opinion that the notice served by the landlord was not in conformity with the mandatory provisions of s. 4 (5) inasmuch as it did not require the tenant to serve a counter notice within one month after the date of

receipt of the landlord's notice. Sub-section (5) states that a tenancy notice shall not be effective for any purposes of the Act unless. . . . In the words of Viscount Dilhorne in *Kammins Ballrooms Co. Ltd. v. Zenith Investments* (*Torquay*) *Ltd.*, [1971] A.C. 850 at p. 869, it is language which is "emphatic and which is clear and explicit has been used, and language which can leave no doubt in the mind of anyone who reads it that an application to be effective must comply with the time limits imposed. . . . The Landlord and Tenant Act 1954 laid down a code which Parliament intended to be followed. If a landlord does not give notice of termination as prescribed, the notice will be ineffectual". I would also respectfully adopt the following words of Lord Reid, at p. 859:

> "This may seem a technical and unmeritorious defence, but there is no doubt that the Court has no power to dispense with these time limits if the defendant chooses to object at the proper time. . . .
>
> If the words of an Act are so inflexible that they are incapable in any context of having any but one meaning, then the court must apply that meaning, no matter how unreasonable the result – it cannot insert other words."

I think Parliament deliberately altered the expression "after the giving of this notice" to "after receipt of this notice", in an attempt to bring the new prescribed form in conformity with sub-section (5). It was not a meaningless or accidental alteration. In my opinion "giving" is not synonymous with receiving or "receipt"; the "giving" is not the same as the "receipt" of a notice. The difference between the two could lead to annihilation of the rights of a tenant. I therefore think the tribunal erred in holding that because the notice was served on the same day as it was written the use of the word "receipt" or "giving" made no difference.

I do not accept the argument that the landlord should be exonerated because he used the form that was available to him at the time he gave his notice. In my opinion it matters not that at the time of giving of notice by a landlord no service has been prescribed or there is in existence a prescribed form which is not in conformity with the provisions of the Act. It is quite useless to serve a notice which is not in conformity with the provisions of the Act. A landlord giving notice must strictly comply with subsection (5). If I may use a word from the judgment of Plowman, J., in *Zenith Investments* (*Torquay*) *Ltd. v. Kammins Ballrooms Co. Ltd.* (*No.* 2), [1971] 1 W.L.R. 1032 at p. 1036 the court is *forbidden* by sub-section (5) to enforce any notice which is not given in strict conformity with the provisions of the Act.

In *Kammins* the tenants' application was made less than two months after the request for a new tenancy, contrary to s. 29 (3) of the Landlord and Tenant Act, 1954; it was contended that the application could not be entertained by the court. The House of Lords upheld the objection and dismissed the appeal.

As is well known many of the provisions of our Act are modelled on the Landlord and Tenant Act 1954.

My attention has been drawn to the reported case of *Abeid v. Badbes*, [1968] E.A. 598 which was decided by Mosdell, J. In that case the landlord's notice was given when the original form A prescribed by L.N. 19 of 1966 was in force. Instead of requiring the tenant to serve his counter-notice within one month after the giving of the landlord's notice as laid down in s. 4 (3), the landlord called upon the tenant to notify him within one month of the date of the receipt of the landlord's letter whether or not the tenant agreed to the termination of his tenancy. Mosdell, J. held that the notice was valid because it contained all that was required under the Act and the Regulations, which were directory; that although there was a variation between the wording in the

Form "A" in the Regulations and the Act itself, the form was not ultra vires the Act.

During the course of his judgment the judge said, at p. 603:

> "The real question here, as submitted by Mr. Pandya, is – Is regulation 4 of the Regulations imperative or directory ? If the former, then Mr. Pandya's submission must carry the day. If on the other hand regulation 4 is directory only, then Mr. Inamdar's submissions must succeed.
>
> For some reason or other authority on this point is extraordinarily sparse. Neither Mr. Pandya nor Mr. Inamdar could cite me an authority directly in point."

Mosdell, J. went on to refer to and he relied heavily on the English case of *The King v. Lincolnshire Appeal Tribunal, ex p. Stubbins*, [1917] 1 K.B. 1. In that case the Court of Appeal held that while the statute gave an absolute right of appeal, the provisions as to procedure (relating to the filing of an appeal) were directory only and not imperative, and that non-compliance with them had not deprived the military representative of his right of appeal.

Mosdell, J.'s ratio decidendi is to be found in the following passage in his judgment at p. 605, or so I think:

> "In the instant case the notice given by the plaintiff contained all that was required substantively both by the Act and the Regulations and the contentions of the defendant here appear to me as devoid of merit as were those of Mr. Stubbins in *R. v. Lincolnshire Appeal Tribunal*. In my view the plaintiff by using the expression 'within one month of the date of the receipt of this letter' conveyed the same meaning as would have been conveyed had he used the words 'within one month of the date of the giving of this letter' or 'within one month of the giving of this letter'."

I think it is recognised that each statute has to be interpreted on the basis of its own language for, as Viscount Simmonds said in *Attorney-General v. Prince Ernest Augustus of Hanover*, [1957] A.C. 436 at p. 461 words derive their colour and content from their context; secondly, the object of the legislation is a paramount consideration. If the Court of Appeal in *ex p. Stubbins* regarded the provisions as to procedure referred to by them as directory, I have no quarrel. In any event I have no quarrel with the English Court of Appeal. No doubt those provisions permitted of such an interpretation. The object must have been to ensure that the absolute right of appeal given by the statute was neither impaired nor whittled down and also the object of the legislation was not submerged or destroyed; or, stated simply, the ends of justice were not defeated.

I think the correct manner of interpreting s. 4 (5) in its context is to see whether the notice is in conformity with the express mandatory provisions of the Act. If it is not so in conformity then it is a bad notice. With respect, it is not enough that it contains, as Mosdell, J. held, all that is required substantively by the Act and the Regulations. This is an Act which requires, insofar as the giving of the notice is concerned, absolute and complete not merely substantive compliance with its peremptory provisions.

I also think that Mosdell, J. was not well served. He said authority on the point was sparse. His attention might for example have been drawn to *Orman Brothers Ltd. v. Greenbaum*, [1955] 1 All E.R. 610 in which case the Court of Appeal held that a notice to quit which was not in the prescribed form was ineffective; or to the decision, again the Court of Appeal, in *Price v. West London Investment Building Society*, [1964] 2 All E.R. 318, which held that in so far as the form of notice by a landlord to a tenant terminating his tenancy of business premises under s. 25 (1) of the Landlord and Tenant Act 1954, as

prescribed under s. 66 of the Act, purported to alter the effect of s. 20 (3) by stating that a counter-notice might be given within two months of the tenant's receiving the landlord's notice instead of within two months of the landlord's giving it, it is ultra vires.

Danckwerts, L.J. said at p. 322:

> "The word 'received' is used. A reference is plainly intended to section 29 of the Landlord and Tenant Act 1954, in which the word is not 'received', but 'giving'. It seems to me to be quite plain that neither the form nor the notes can alter the provisions of the Act. In so far as there is an attempt to provide for a different situation from that contained in the sections of the Act to which I have referred, which use the word 'give', 'giving' or 'given', the form and these notes are ultra vires, because the regulations cannot enlarge the jurisdiction of the Court as conferred by the Landlord and Tenant Act 1954."

The courts have not been inactive in England since *Abeid v. Badbas* was decided. In *R. v. Pontypool Gaming Licensing Committee, ex p. Risca Cinemas Ltd.*, [1970] 1 W.L.R. 1299 which is yet one more illustration of interpretation of a statute in its own context which is in direct contrast with *R. v. Lincolnshire Appeal Tribunal ex p. Stubbins*, it was held that the Code in paragraphs 8 to 11 of Schedule 2 to the Gaming Act 1968 must be treated as a whole, and in it Parliament has laid down the entire procedure, with specific limits of time prescribed in respect of each of the steps in that process and these time limits are mandatory.

Risca Cinemas Ltd. was referred to with approval by Widgery, L.C.J. and Ashworth and Swanwick, JJ. in *R. v. Leicester Gaming Licensing Committee, Ex p. Shine* (*Times*, 27 May 1971). The Lord Chief Justice said that the view underlying the decision in *Risca Cinemas Ltd.* was that paragraphs 8 to 11 of Schedule 2 contained a code in relation to time which was intended to be strictly enforced. His Lordship thought that the same view should be taken of the Code relating to general provisions for "application for grant of licence" contained in paragraphs 5 to 7. Any departure from the code *prima facie* rendered ineffective a step in the procedure in which an error was made. Parliament intended the Code to be strictly enforced.

In *ex p. Shine* a notice published in accordance with paragraph 6 (2) of Schedule 2 to the Gaming Act 1968 by mistake contained some additional matter contrary to paragraph 6 (4) which required that "a notice published . . . under this paragraph shall not include any matter which is not required by the preceding provisions of this paragraph to be included in it." The court held that the Committee's decision that therefore they had no jurisdiction to hear the application was correct in law.

For these reasons this appeal is allowed. The determination and judgment of the tribunal is set aside with costs. The respondent must also pay the costs of the appeal.

As Miller, J., is also of the same opinion it is ordered accordingly.

Appeal allowed.

For the appellant:
DN Khanna (instructed by *Khanna & Co*, Nairobi)

For the respondent:
M da Gama Rose (instructed by *Shapley Barret Ennion Marsh & Co*, Nairobi)

Matalinga and others v Attorney-General
[1972] 1 EA 518 (HCK)

Division: High Court of Kenya at Nairobi

Date of judgment:	19 October 1972
Case Number:	913/1972 (171/72)
Before:	Simpson J
Sourced by:	LawAfrica

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[1] Civil Practice and Procedure – Declaratory judgment – Principles for granting – Real question, legal interest, proper persons to raise and oppose it.

[2] Civil Practice and Procedure – Declaratory judgment – Unconstitutional discrimination – Declaration can be granted – Constitution, s. 82 (*K.*).

[3] Constitutional Law – Government – Proceedings against – Mandatory injunction against – Whether grantable.

Editor's Summary

The plaintiffs as representatives of an unincorporated association sued the defendant for a declaration that certain government employees must be treated equally on the grounds that they were being discriminated against, and for an order that the director of personnel review and rectify salary structures.

The defendant applied to strike out the plaint on the grounds the claim for a declaration was not justifiable and that the order applied for was in effect a mandatory injunction which could not be granted.

Held –

(i) before a declaration can be granted there must be a real and not a theoretical question in which the person raising it must have a real interest and there must be someone with a present interest in opposing it (*Russian Commercial and Industrial Bank v. British Bank for Foreign Trade* (1) followed);

(ii) the request must be for the court to pronounce on a legal right (*Cox v. Green* (2) followed);

(iii) a declaration in respect of unconstitutional discriminatory treatment could be granted;

(iv) no such discrimination was alleged;

(v) a declaration regarding qualifications of government officers was not in respect of legal rights;

(vi) a mandatory injunction cannot issue to a government official and therefore cannot be made against the defendant.

Plaint struck out.

Cases referred to in judgment:

(1) *Russian Commercial and Industrial Bank v. British Bank for Foreign Trade*, [1921] 2 A.C. 438.

(2) *Cox v. Green*, [1966] 1 Ch. 216.

Judgment

Simpson J: The applicant in this motion is the Attorney-General who is the defendant in an action brought by the chairman, secretary and treasurer of the Kenya Clinical and Medical Assistants

Association as plaintiffs seeking a declaration that certified medical assistants and registered medical assistants be treated equally with respect to salary and other privileges and an order directing the director of personnel to review the salary structures and rectify them accordingly.

The Attorney-General is applying for orders striking out the names of the plaintiffs and the defendant, striking out the plaint and dismissing the action.

The applicant contends that the claim for a declaration is not justiciable and is inappropriate on a proper construction of O. 2, r. 7 and that by virtue of s. 16 of the Government Proceedings Act the claim for an order giving directions to the director of personnel is not maintainable.

O. 2, r. 7 provides:

> "No suit shall be open to objection on the ground that a merely declaratory judgment or order is sought thereby and the Court may make binding declarations of right whether any consequential relief is or could be claimed or not."

No East African case in which the jurisdiction to give a declaratory judgment has been fully considered was brought to my attention. In the absence of any such decision the English cases based upon a rule in almost identical terms provide a valuable guide.

In *Russian Commercial and Industrial Bank v. British Bank for Foreign Trade*, [1921] 2 A.C. 438 at p. 445 Viscount Finlay said–

> "This is a very wide power and it is obvious that it is one that should be exercised with the utmost caution. It should be exercised (and he quoted expressions used in earlier decisions) 'sparingly', 'with great care and jealousy', 'with extreme caution'."

Lord Dunedin remarked that such expressions gave little guidance and continued, at p. 448:

> "It may be that I am swayed by my experience of another system of law, but a rule which can be expressed in the form of a principle may well be proper to any legal system. Your Lordships are aware that the action of declarator has existed for hundreds of years in Scotland. It was praised, with envy, by Lord Brougham, in your Lordships' House, in the case of *Earl of Mansfield v. Stewart* long before the genesis of Order XXV, r. 5. The rules that have been elucidated by a long course of decisions in the Scottish Courts may be summarized thus: The question must be a real and not a theoretical question; the person raising it must have a real interest to raise it; he must be able to secure a proper contradictor, that is to say, some one presently existing who has a true interest to oppose the declaration sought."

It is by no means clear from the plaint that the plaintiffs have a real interest and it is to be doubted that the Attorney-General, whether or not he is being sued as representative of the Government, has a true interest to oppose.

Be that as it may the jurisdiction of the court was further considered by Plowman, J. in *Cox v. Green*, [1966] 1 Ch. 216, at p. 220:

> "It is said that that rule gives the court a very wide discretion, and once the conclusion is reached that the court has a discretion in the matter, then the action should not be struck out, as the defendant seeks to strike it out by this summons, but should go for trial, the exercise of the discretion being a matter for the trial judge.
>
> But however wide O. 15, r. 17, may be, it does not seem to me that it is so wide as to make justiciable disputes which are not justiciable. For example, what is commonly called a gentleman's agreement cannot be sued upon as a contract, and it does not seem to me to be open to a party to a gentlemen's agreement who cannot sue in law for damages for breach of contract to

> circumvent this rule by claiming some appropriate declaration. R.S.C., O. 15, r. 17, is undoubtedly very wide, but there must at least be a justiciable dispute between the parties to bring it into operation. In my judgment, the issues between the plaintiff and the defendant here are not justiciable disputes at all. The issue between them does not concern any right of property; it does not concern any right of contract; it does not concern any legal right. The question is purely whether the plaintiff, as the defendant alleges, has been guilty of unethical conduct in a professional way, and that is a matter, in my judgment, for the appropriate medical tribunal, which is the Central Ethical Committee constituted under the Rules of the British Medical Association."

The following passage at p. 222 is also of considerable assistance–

> "The other case which I should mention is *Guaranty Trust Co. of New York v. Hannay & Co.* where Bankes, L.J., said:
>
> > 'It is the person, therefore, who is seeking relief, or in whom a right to relief is alleged to exist, whose application to the court is not to be defeated because he applied merely for a declaratory judgment or order, and whose application for a declaration of his rights is not to be refused merely because he cannot establish a legal cause of action. It is essential, however, that a person who seeks to take advantage of the rule must be claiming relief. What is meant by this word relief? When once it is established, as I think it is established, that relief is not confined to relief in respect of a cause of action, it seems to follow that the word 'itself must be given its fullest meaning. There is, however, one limitation which must always be attached to it, that is to say, the relief claimed must be something which it would not be unlawful or unconstitutional or inequitable for the court to grant or contrary to the accepted principles upon which the court exercises its jurisdiction.'
>
> That shows that the wide language of R.S.C., O. 15, r. 17, is not free of all limitations. It is subject to this, that the declaration claimed must not be contrary to the accepted principles on which the court exercises the jurisdiction, and one of those principles is that the court will not make declarations in a dispute which is not a justiciable dispute. For that reason I propose to order that the endorsement of the writ of summons and the statement of claim be struck out."

Having regard to the persuasive authority of that judgment I think the questions for consideration are these–

Is this a justiciable dispute? Is the Court being asked to pronounce on a legal right? Would it be unconstitutional to grant the relief sought?

In paragraph 13 of the plaint it is claimed that the distinction between the two salary scales is contrary to the provisions of s. 82 of the Kenya Constitution and the claim before being amended sought a declaration that this distinction was ultra vires the constitution.

I entertain no doubt that the court would have been entitled to make a declaration to that effect had the distinction been shown to be in contravention of the provisions of s. 82 of the Constitution.

This section however deals with protection from discrimination and subs. (3) reads as follows–

> "In this section, the expression 'discriminatory' means affording different treatment to different persons attributable wholly or mainly to their respective descriptions by race, tribe, place of origin or residence or other

> local connexion, political opinions, colour or creed whereby persons of one such description are subjected to disabilities or restrictions to which persons of another such description are not made subject or are accorded privileges or advantages which are not accorded to persons of another such description."

Nowhere is it suggested in the plaint that any category of medical assistant or clerical officer (the plaintiffs seem uncertain as to the correct designation) was being treated in a discriminatory manner within the meaning of that subsection.

What the plaintiffs are seeking is a declaration that the qualifications of one category of government officer are as good as the qualifications of another category of government officer and therefore the two categories are entitled to the same salary. They are not seeking a declaration with respect to any legal right.

To adjudicate on the qualifications and comparative salaries of categories of Government officers would be to interfere with the executive authority of the government vested in the President and exercised by him either directly or through officers subordinate to him (s. 23 of the Constitution of Kenya) in this case the Public Service Commission appointed by him.

If the government or any officer on its behalf had entered into a contract with one of these categories agreeing to give it the same salary and privileges as the other and was in breach of that contract or if the government contravened legislation to the like effect the court would no doubt be prepared to grant an appropriate declaration.

In the present suit however the declaration claimed is in my opinion one which it would be contrary to the accepted principles on which the court exercises its jurisdiction to make a declaration of right.

The plaintiffs seek in addition an order directing the director of personnel to review the salary structures and rectify them. They are in effect seeking a mandatory injunction.

S. 16 of the Government Proceedings Act (Cap. 40) restricts the court to making declarations only in proceedings against the Government where it might otherwise grant injunctions and prohibits the court from granting any injunction or making any order against any officer of the government the effect of which would be to give any relief against the government which could not have been obtained in proceedings against the government.

The Attorney-General is not sued specifically as the representative of the government although that may no doubt be the plaintiffs' intention. Whether or not he is so sued a mandatory injunction cannot be granted requiring the director of personnel to take the action required by the plaintiffs.

For the foregoing reasons this application is granted.

The plaint is struck out and the action is dismissed with costs to the defendant including the costs of this action.

Order accordingly.

For the plaintiffs:
PMK Kamau

For the defendant:
JF Shields (Senior State Counsel)

Re Raphael Public Trustee v Raphael

[1972] 1 EA 522 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	27 April 1972
Case Number:	32/1972 (172/72)
Before:	Simpson J
Sourced by:	LawAfrica

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[1] Probate and Administration – Will – Construction of – "Dying together" – Not necessarily at precisely same instant of time.

Editor's Summary

The two wills which the court was asked to construe contained the phrase "or of us dying together".

Both testators were found together in a locked room and had died from bullet wounds, the pathologist being unable to say who died first.

Held –

(i) the testators did not mean dying at precisely the same instant;

(ii) the testators died together within the meaning of that phrase in their wills (*In re Rowland decd.* (2) considered).

Order accordingly.

Cases referred to in judgment:

(1) *Perrin v. Morgan*, [1943] A.C. 399; [1943] 1 All E.R. 187.

(2) *In re Rowland decd.*, [1963] 1 Ch. 1; [1962] 2 All E.R. 831.

Judgment

Simpson J: This is an application by way of petition by the Public Trustee under the provisions of s. 9 of the Public Trustee Act for the decision of the court on certain matters arising in the administration of the estates of a husband, Eric Fritz Raphael, and his wife, Edith Christine Raphael, who died on 14 June 1968.

The petitioner is the administrator with the will annexed of both estates.

The will of the husband gave and bequeathed–

> "Unto my wife Edith Christine Raphael of P.O. Box 2385 Nairobi, everything I possess at the time of my death. In the event of her predeceasing me or us dying together the provisions of her will shall prevail."

The will of the wife bequeathed everything she possessed to her husband and continued–

> "In the event of his predeceasing me or of us dying together I bequeath everything I possess at the time of my death to my brother Thomas Green of 66 Homefel Road, Seaford, Sussex, England with the instructions that he divide the moneys equally between himself and his twin brother Charles Green. . . ."

These two beneficiaries were represented by Mr. Hime.

The facts with respect to the deaths of Mr. and Mrs. Raphael were not in dispute and the record of the proceedings at an inquest held on 16 and 17 September 1968 were tendered in evidence.

At about 6.30 a.m. on 14 June Mr. and Mrs. Raphael were seen alive in the bedroom of their house at Karen by a servant who brought in tea. Mrs. Raphael was still asleep.

At about 8 a.m. the servant heard a noise "as if something had dropped down". About three minutes later he heard a similar noise.

By 9 a.m. Mr. Raphael had not appeared. Mrs. Raphael's brother instructed the servant to call him. He tried the door and found it locked. Eventually he looked in the window and as a result of what he saw he telephoned the police.

When the police entered they found that both were dead. Mrs. Raphael was lying on a bed with a bullet wound entry and exit on both temples. Mr. Raphael lay on the floor nearby with a bullet wound (entry) in the palate and an exit wound at the top of the skull.

He had a Colt automatic .32 pistol clutched in his right hand.

There were three cartridge cases near the bodies. The wound in Mrs. Raphael's head could have been caused by two bullets fired immediately after each other in which case the shots could not have been fired by her. There was no trace of the third bullet having taken any other course.

Mr. Raphael left a farewell note in which he indicated where the wills would be found.

Death in each case was found to be due to the bullet wounds but the pathologist was unable to say who died first, nor could he say how long either lived after receiving the injuries.

The first question I am asked to answer is – Did the husband and wife die together within the meaning of that phrase in their wills?

Mr. Le Pelley who appeared for the Public Trustee invited my attention to the manner of approach to the interpretation of wills indicated in the well-known English case of *Perrin v. Morgan*, [1943] A.C. 399.

As Lord Atkin said "the sole object is, of course, to ascertain from the will the testator's intentions" and he remarked that the result of their Lordship's decision in that case would be

> "to relieve judges in the future from the thraldom often . . . self-imposed, of judgments in other cases believed to constrain them to give a meaning to wills which they know to be contrary to the testator's intention."

Only one case on the construction of an expression similar to that used in the wills at present under consideration was brought to my notice. This was *In re Rowland decd.*, [1963] 1 Ch. 1 in which the Court of Appeal in England considered the meaning of the expression "preceding or coinciding with my own decease" appearing in a husband's will with reference to the death of his wife.

Both husband and wife were passengers aboard a small ship which disappeared without survivors on an unknown date among the Solomon Islands. The court held by a majority that "coincide" bore its natural and ordinary meaning of "simultaneous" because it was used in juxtaposition with "preceding".

Having regard to the views of the House of Lords expressed in *Perrin v. Morgan* the decision is with respect a surprising one and I find myself more in sympathy with the minority view expressed by Lord Denning, M.R. who declined to ask himself what the words meant to a grammarian but what the testator meant. He decided that the testator would use the words "coinciding with" not in the narrow meaning of "simultaneous" but "in the wider meaning of which they are equally capable, especially in this context, as denoting death on the same occasion by the same cause".

Russell, L.J., one of the two majority judges said in the course of his judgment–

> "As I have indicated, the key to his expressed intention is the context

> of the words ‘preceding or’ which demonstrate that ‘coinciding with’ means ‘coinciding in point of time with’. This cannot be equated with ‘if we shall die together’ in the sense in which people are referred to as commorientes.”

It seems not unlikely therefore that the judge would have come to a different decision had the words used been those used in the instant case namely “in the event of her predeceasing me or us dying together”.

Mr. and Mrs. Raphael died by bullet wounds from the same automatic pistol in the same room at approximately the same time. I cannot believe that in using the words “dying together” they meant dying at precisely the same instant of time.

They obviously had in mind death in the same air crash, road accident, ship collision or similar calamity and the words are in my opinion clearly capable of including death in the circumstance which occurred.

The answer to the first question is accordingly in the affirmative, the husband and wife died together within the meaning of that phrase in their wills.

Order accordingly.

For the applicant:
P Le Pelley (instructed by *Hamilton Harrison and Mathews*, Nairobi)

For the respondents:
P Hime (instructed by *Kaplan & Stratton*, Nairobi)

Atlas Trading Co Ltd v Kassamali and others
[1972] 1 EA 524 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	15 July 1971
Case Number:	5/1971 (62/72)
Before:	Chanan Singh J
Sourced by:	LawAfrica

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[1] Rent restriction – Possession – Order for included costs to be paid by landlord for removal and inconvenience – Order intra vires – Landlord and Tenant (*Shops, Hotels and Catering Establishments*) *Act* (*Cap*. 301) *s*. 12 (*K*.).

Editor’s Summary

The respondents were given possession of their premises but were ordered to pay the appellant Shs. 3,000/- for the cost of removal and inconvenience.

They challenged the power of the tribunal to make such an award.

Held –

(i) the tribunal has power to make orders for recovery of possession on such terms and conditions as it thinks fit and this includes the power to award the costs of removal and inconvenience;

(ii) the tribunal's assessment of the figure would not be interfered with.

Order accordingly.

No cases referred to in judgment

Judgment

Chanan Singh J: This is an appeal against an order of possession made by the Business Premises Rent Tribunal under the provisions of the Landlord and Tenant (Shops, Hotels and Catering Establishments) Act (Cap. 301). There is no law involved and it is only in exceptional circumstances that a court of appeal would interfere with the decision of a tribunal of the first instance.

[The judge considered the appeal, dismissed it and continued.]

The respondents' cross-appeal challenges that part of the decision which awards Shs. 3,000/- to the appellant as the "cost of removal and inconvenience". Mr. Khanna says that there is no support for this award in the provisions of the Act governing the tribunal.

I am unable to accept this argument because I think the award is covered by s. 12 (1) (*e*) which gives the tribunal power "to do all things which it is required or empowered to do . . . and in addition to and without prejudice to the generality of the foregoing" the power "to make orders upon such terms and conditions as it thinks fit, for the recovery of possession". The expression "terms and conditions" in this section can, in my opinion, reasonably include "cost of removal and inconvenience". I agree with Mr. Khanna that Shs. 3,000/- is an arbitrary figure in the sense that it is not mathematically related to any of the other figures in this case. It is the tribunal's own estimate of cost of removal and inconvenience. I cannot justify it mathematically. Nor can I say that it is wrong. The law empowers the tribunal to make orders for the recovery of possession on terms "as it thinks fit". This confers a wide discretion on the tribunal. I cannot say it has exercised the discretion wrongly.

In the result, I dismiss the appeal and the cross-appeal in each case with costs.

Order accordingly.

For the appellants:
YP Vohra and *CS Joshi*

For the respondent:
DN Khanna (instructed by *Khanna & Co*, Nairobi)

Choitram and others v Mystery Model Hair Saloon
[1972] 1 EA 525 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	15 February 1972
Case Number:	1546/1971 (173/72)
Before:	Madan J
Sourced by:	LawAfrica

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[1] Civil Practice and Procedure – Declaratory judgment – Inferior tribunal – Business premises tribunal – Declaration that determination a nullity a proper remedy.

[2] Jurisdiction – Tribunal – Lack of – Ways in which lack of jurisdiction may arise.

[3] Rent Restriction – Complaint against landlord – Can only be of minor nature and hearing not necessarily implied – Landlord and Tenant (*Shops, Hotels and Catering Establishments*) *Act* (*Cap.* 301) *s.* 12 (4) (*K.*).

[4] Rent Restriction – Business Premises Tribunal – Powers of – On complaint – No power to award compensation on complaint.

[5] Rent restriction – Repairs – Power to order – Only repair by tribunal or by tenant on order of tribunal – Landlord and Tenant (*Shops, Hotels and Catering Establishments*) *Act* (*Cap.* 301) *s.* 12 (1) (9) (*K.*).

[6] Costs – Business Premises Tribunal – Power to award costs only on a reference – Landlord and Tenant (*Shops, Hotels and Catering Establishments*) *Act* (*Cap.* 301) *s.* 12 (*h*) (*K.*).

[7] Costs – Business Premises Tribunal – Complaint – Fee means only fee of an advocate – Advocates (*Remuneration*) *Order, Schedule* 8 (3) (*K.*).

[8] Jurisdiction – Tribunal – Powers of – Must be express and cannot be implied.

Editor's Summary

The defendant firm made a complaint against the second plaintiff as its landlord under s. 12 (4) of the Landlord and Tenant (Shops, Hotels and Catering

Establishments) Act and after an adjournment had been refused the tribunal ordered the second plaintiff to pay the defendant damages in respect of fixtures allegedly damaged, electrical wiring repaired by the defendant and costs.

The plaintiffs being all the owners of the building occupied by the defendant firm sued for an injunction restraining the defendant from enforcing the orders on the ground that they were made in excess of jurisdiction.

The defendant firm contended that the plaintiff could only succeed where there was a total lack of jurisdiction.

Held –

(i) declaration and injunction is a proper remedy against a tribunal (*Barnard v. National Dock Labour Board* (2) followed);

(ii) lack of jurisdiction may arise in several ways and may always be challenged (*Anisminic v. Foreign Compensation Commission* (3) followed);

(iii) complaints which a tribunal may investigate can only be of a minor nature and a hearing is not necessarily implied;

(iv) power to award compensation must be express and cannot be implied (*Chogley v. E.A. Bakery* (1) followed);

(v) no power to award compensation on a complaint is given (*Atlas Trading Co. v. Kassamali* (4) distinguished);

(vi) there was no evidence that the landlord was responsible for repair of wiring;

(vii) even if the landlord were responsible, the only courses open to the tribunal were either to undertake the repair itself at the landlord's cost, or to authorise the tenant to do so and deduct the cost from the rent; neither course had been carried out;

(viii) the tribunal has power to award costs only of a reference to it;

(ix) "fee" under the Advocates (Remuneration) Order, Schedule 8 (3) can only be the fee of an advocate who is employed.

Judgment for the plaintiffs.

Cases referred to in judgment:

(1) *Chogley v. E. A. Bakery* (1953), 26 K.L.R. 31.

(2) *Barnard v. National Dock Labour Board*, [1953] 1 All E.R. 1113.

(3) *Anisminic v. Foreign Compensation Commission*, [1969] 1 All E.R. 208.

(4) *Atlas Trading Co. v. Kassamali*, [1972] E.A. 524.

Judgment

Madan J: The plaintiffs who are owners and landlords of premises known as Choitram's Buildings are suing the defendants, their tenants who are ladies' hairdressers for a declaration that certain orders made by the Business Premises Rent Tribunal in favour of the defendants are unenforceable and a nullity as being in excess of the jurisdiction of that tribunal. They also seek an injunction restraining the defendants from taking any steps to enforce these orders. A temporary injunction has already been

granted.

The proceedings before the tribunal were initiated by the defendants by way of a complaint under s. 12 (4) of the Landlord and Tenant (Shops, Hotels and Catering Establishments) Act (Cap. 301). The landlord throughout the proceedings is named as B. Choitram and the point is taken on behalf of the defendants that the present plaintiffs are not B. Choitram and are therefore not entitled to maintain the action.

B. Choitram is a firm with two partners – Doulatram Bheroomal and Ramchand Bheroomal. They are the second and first plaintiffs respectively. The registered owners of the premises are these two persons and the four sons of Doulatram Bheroomal. These six persons are the plaintiffs.

Doulatram Bheroomal is the person with whom the tenant dealt and against whom the complaint was made.

The rent book shows the landlords as Messrs. B. Choitram but the tenant giving evidence before the tribunal clearly was under the impression that Doulatram Bheroomal was Mr. B. Choitram. A clerical officer of the tribunal appears to have been of the same impression. In a report he refers to the landlord as Mr. B. Choitram and is apparently referring to the second plaintiff, Doulatram Bheroomal. In an affidavit filed in proceedings before the tribunal Doulatram Bheroomal added "Choitram" to his name and called himself the landlord.

Having regard to the informality of proceedings before the tribunal I have no doubt that despite this confusion the orders it made (assuming they were validly made) can be enforced against the landlords of the premises despite the fact that the person whom the tribunal took to be the landlord was only one of the landlords.

The plaintiffs are the owners and landlords. They are in my opinion entitled to sue to have these orders declared unenforceable. The firm of B. Choitram acts as agents on their behalf. Although this is not borne out by the rent book there is affidavit evidence to that effect. The first and second plaintiffs are the partners of B. Choitram. They are clearly entitled to sue whether as landlords or as agents.

If the other plaintiffs are not entitled to sue the fact that they have been added unnecessarily in no way vitiates the proceedings. In the circumstances costs are not affected.

The proceedings before the tribunal were initiated by way of complaint under s. 12 (4) of the Act. The form used which is Form C prescribed in the Landlord and Tenant (Shops, Hotels and Catering Establishments) (Tribunal) (Forms and Procedure) Regulations is headed "Reference by Landlord or Tenant to Tribunal".

"Reference" is defined in s. 2 as a reference to the tribunal under s. 6 of the Act. This section enables a landlord or tenant who receives and wishes to oppose a tenancy notice given under s. 4 of the Act to refer the matter to the tribunal. The complaint in the present proceedings was unconnected with any tenancy notice and notwithstanding the heading on the prescribed form is clearly not a reference within the meaning of s. 2.

Prior to the amendments made by the amending Act of 1970 any party aggrieved by a determination or order of the tribunal could appeal to a resident or senior resident magistrate.

S. 15 (1) as amended by that Act now empowers only a party to a reference to appeal to the High Court.

The plaintiffs in the present action therefore had no right of appeal from the decision of the tribunal.

On behalf of the defendants it was urged that the remedy sought by the plaintiffs is available only where there is total lack of jurisdiction, not in a case where orders have erroneously been made in excess of jurisdiction.

In *Barnard v. National Dock Labour Board*, [1953] 1 All E.R. 1113 at p. 1119 Denning, L.J. (as he then was) had this to say about declarations and injunctions:

> "Finally, counsel for the defendants said that these courts have no right to interfere with the decision of statutory tribunals except by the historical method of certiorari. He drew an alarming picture of what might happen if once the court intervened by way of declaration and injunction. It meant, he said, that anyone who was dissatisfied with the decision of a tribunal could start an action in the courts for a declaration that it was bad, and thus, by a side-wind, you could get an appeal to the courts in cases where Parliament intended there should be none. I think there is much force in that contention – so much so that I am sure in the vast majority of cases the courts will not seek to interfere with the decisions of statutory tribunals – but I do not doubt that there is power to do so, not only by certiorari, but also by way of declaration. I know of no limit to the power of the court to grant a declaration except such limit as it may in its discretion impose on itself, and the court should not, I think, tie its hands in this matter of statutory tribunals. It is axiomatic that when a statutory tribunal sits to administer justice, it must act in accordance with the law. Parliament clearly so intended. If the tribunal does not observe the law, what is to be done? The remedy by certiorari is hedged round by limitations and may not be available. Why, then, should not the court intervene by declaration and injunction? If it cannot so intervene, it would mean that the tribunal could disregard the law."

In *Anisminic v. Foreign Compensation Commission*, [1969] 1 All E.R. 208 at p. 233 Lord Pearce said–

> "Lack of jurisdiction may arise in various ways. There may be an absence of these formalities or things which are conditions precedent to the tribunal having any jurisdiction to embark on any inquiry. Or the tribunal may at the end make an order that it has no jurisdiction to make. Or in the intervening stage while engaged on a proper inquiry the tribunal may depart from the rules of natural justice . . . thereby it would step outside its jurisdiction."

In the same case at p. 222 Lord Morris said–

> "What is forbidden is to question the correctness of a decision or determination which it was within the area of their jurisdiction to make."

The plaintiffs in the instant case seek a declaration that certain of the orders made by the tribunal were orders which it had no jurisdiction to make. They do not seek to question the correctness of any decision which was within the jurisdiction of the tribunal.

I have no doubt that the present action for a declaration and an injunction is the appropriate remedy.

The tenants' complaint alleged *inter alia* malicious damage to property belonging to the tenants' business and refusal to pay Shs. 850/- "expended by the tenants in putting right defective wiring as required by East African Power & Lighting Co. which the landlord agreed to pay to the tenants". As I have already indicated the landlord referred to is the second plaintiff.

The landlord neither appeared nor was he represented before the tribunal. After a short delay a medical certificate was delivered to the registry on behalf of the landlord. This referred to Mr. Doulat Ram and the tribunal reasonably in the circumstances took this to be Mr. B. Choitram. They refused to accept it and proceeded to hear the complaint *ex parte*.

Mr. De Silva who called himself the tenant giving evidence before the tribunal among other allegations stated–

> "He has also damaged our board costing Shs. 225/- which I have now paid. He has spoilt our carpet costing Shs. 75/-. Wiring was not in order and I had to get it done.
>
> The premises were not in good condition and I spent Shs. 850/- and the connection was ready on 27th December, 1969."

He produced an invoice which reads–

> "To rewire up the lights and plugs and fuse board etc. as agreed Shs. 850/-."

The tribunal accepted this somewhat scanty evidence and made the following orders:

"(*a*) The landlord is to pay Shs. 1,150/- to the tenant, made up as follows:

(i)	Carpet	Shs. 75/-
(ii)	Signboard	Shs. 225/-
(iii)	Electrical wiring	Shs. 850/-
		Shs. 1,150/-

(*b*) Rent book to be properly entered.

(*c*) Water to toilets to be supplied.

(*d*) The landlord to cease harassing the tenants.

(*e*) Costs of Shs. 150/- to be paid to the tenants for these proceedings."

An application to set aside this *ex parte* judgment was refused by the tribunal, no reasons being given.

The plaintiffs seek a declaration only in respect of orders (*a*) and (*e*).

With regard to (*a*) (i) and (ii) it was submitted that since these claims were not particularised in the complaint the orders represented a denial of natural justice. The complaint however includes "malicious damage to property belonging to the tenants' business" which I think is adequate notice to the landlord without further details.

S. 12 (4) of the Landlord and Tenant (Shops, Hotels, and Catering Establishments) Act reads as follows:

> "(4) In addition to any other powers specifically conferred on it by or under this Act, a tribunal may investigate any complaint relating to a controlled tenancy made to it by the landlord or the tenant, and make such order thereon as it deems fit."

The tenant's complaint alleges malicious damage by the landlord to articles belonging to the tenant in or attached to the premises comprised in the tenancy. The allegation I think can be properly regarded as one against B. Choitram in his capacity as landlord and therefore as a complaint relating to a controlled tenancy which the tribunal has power to investigate. The question is what is the extent of this power "to make such order thereon as it deems fit"?

As was pointed out in *Chogley v. E.A. Bakery* (1953), 26 K.L.R. 31 such a provision giving powers to a statutory tribunal must be strictly construed. Powers must be expressly conferred; they cannot be a matter of implication.

A number of specific powers are listed in s. 12 (1) and Mr. D. N. Khanna for the plaintiffs submitted that the general words in s. 12 (4) refer back to these listed powers. I do not think this is so. The only powers applicable to complaints are to be found in paragraph (9) to which I shall have occasion to refer later and paragraph (*a*) which enables the tribunal to require a landlord or

tenant to attend before it. The powers given in s. 12 (4) are expressly “in addition to any other powers specifically conferred”.

I am of the opinion however that the term “complaints” is intended to cover only complaints of a minor character.

The term “investigate” does not necessarily imply a hearing. Such complaints would include complaints by the tenant of the turning off of water, obstruction of access, and other acts of harassment by the landlord calling for appropriate orders for their rectification or cessation but not including payment of compensation for any injury suffered. If the legislature had intended that the tribunal should have power to award compensation in respect of such complaints it would I think have made specific provision as was done in s. 12 (1) and s. 13. In my opinion power to award compensation must be express and cannot be implied.

Compensation for damage is a matter for the ordinary court on whose jurisdiction pecuniary limits have been placed. If this provision were to be interpreted as giving jurisdiction to the tribunal to award compensation it is unlimited. Indeed it exceeds the jurisdiction of the High Court since no right of appeal is given.

Prior to 6 April 1970 s. 15 of the Act permitted an appeal to a senior resident magistrate or a resident magistrate and from thence to the High Court on a question of law or mixed fact and law in terms which included appeals from decisions on complaints under s. 12 (4).

As amended appeals were restricted to determinations or orders made on a reference. This strengthens my view that proceedings under s. 12 (4) are intended for complaints of a minor nature only. If the legislature had considered that the tribunal had power under that provision to award large sums by way of compensation to a landlord for example, whose antiques had been damaged by the negligence of a tenant leaving a tap running in the flat above it would surely have continued the right of appeal.

My attention was invited to a decision of Chanan Singh, J. in *Atlas Trading Co. v. Kassamali*, [1972] E.A. 524. In that case the judge refused to set aside an award of Shs. 3,000/- to the tenant being the cost of removal and inconvenience.

He was however considering the provisions of s. 12 (1) (*e*) in which the expression used is “terms and conditions as it thinks fit for the recovery of possession” and the order was made on a reference not on a complaint.

In my opinion the orders made by the tribunal for payment of compensation for the carpet and the signboard were ultra vires.

In addition the tribunal ordered the landlord to pay to the tenant Shs. 850/-for electrical wiring. There was no evidence that this wiring was the landlord’s responsibility.

Assuming however that it was, s. 12 (1) (*g*) deals specifically with failure to carry out repairs and provides:

> “where the landlord fails to carry out any repairs for which he is liable a tribunal shall have power–
>
> (i) to have the required repairs carried out at the cost of the landlord and, if the landlord fails to pay the cost of such repairs, to recover the cost thereof by requiring the tenant to pay rent to the tribunal for such period as may be required to defray the cost of such repairs and so that the receipt of the tribunal shall be a good discharge for any rent so paid;

(ii) to authorise the tenant to carry out the required repairs, and to deduct the cost of such repairs from the rent payable to the landlord."

As this part of the complaint is specifically covered by that paragraph the tribunal's powers are limited to those given therein.

It is the tribunal which undertakes repairs at the cost of the landlord. This clearly implies a prior reference or complaint to the tribunal. In the event of the landlord failing to pay the cost the tribunal can recover the cost by requiring the tenant to pay rent to the tribunal. Alternatively it may authorise the tenant to carry out repairs and deduct the cost from the rent.

If the tenant pays the cost of repairs himself without prior reference or complaint to the tribunal there is no power to order payment by the landlord to the tenant.

This order also was ultra vires.

There remains the order for payment of Shs. 150/- costs by the landlords to the tenants. The tribunal has power under s. 12 (1) (*h*) to award costs in respect only of references made to it.

Under s. 16 (1) (*e*) the Minister is empowered to make regulations prescribing "the scale and taxation of costs and expenses of witnesses in proceedings before a Tribunal".

Regulation 18 of the Landlord and Tenant (Shops, Hotels and Catering Establishments) (Tribunal) (Forms and Procedure) Regulations provides–

"In awarding costs and assessing expenses of witnesses, the Chairman shall have regard to the appropriate scale prescribed under the Advocates Remuneration Order."

Under the Advocates (Remuneration) (Amendment) Order 1969 a scale of costs applicable to proceedings before the tribunal is set out in Schedule 8 which includes the following paragraph–

"(3) The fee for an application or complaint not otherwise provided for shall be Shs. 63/- provided that the Chairman may increase this for good reason in exceptional cases."

In its context this fee must mean the fee payable to an advocate who is employed and incidentally the amount affords additional indication that such complaints are intended to relate to minor matters only.

Apart from this provision I have been shown no express power to award costs on a complaint and power to award costs (other than out of pocket expenses on which I express no opinion) cannot be implied.

The order for payment of Shs. 150/- costs (which makes no reference to such expenses) also was ultra vires.

As Lord Denning said in *Barnard v. National Dock Labour Board*, "in the vast majority of cases the court will not seek to interfere with the decisions of statutory tribunals" but such a tribunal must act in accordance with the law, where it fails to do so the Court should not hesitate to intervene.

This is a case in which in my opinion it is right and proper in the exercise of the Court's discretion to intervene.

There will be judgment for the plaintiffs for a declaration that the orders (*a*) and (*e*) made by the tribunal on 15 January 1971 were made without jurisdiction and are accordingly a nullity and an injunction restraining the defendants from enforcing them.

Order accordingly.

For the plaintiffs:
DN Khanna (instructed by *Khanna & Co*, Nairobi)

For the defendant:
SC Gautama

Keteta v Republic
[1972] 1 EA 532 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	29 October 1972
Case Number:	820/1972 (174/72)
Before:	Madan Ag CJ and Hancox J
Sourced by:	LawAfrica

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[1] Evidence – No case – Attempt – Accused may be convicted of attempt without recharge when no case on substantive charge – Criminal Procedure Code, ss. 180, 210 (*K.*).

[2] Criminal Law – Attempt – Stock theft – Entry on land with intent to steal cattle – Overt act proximate to the offence – Penal Code, s. 388 (*K.*).

[3] Criminal Practice and Procedure – Sentence – Young person – Attempted stock theft – Conditional discharge substituted for imprisonment – Children and Young Persons Act (*Cap*. 141), *s.* 16 (*K.*).

Editor's Summary

After dark the appellant and two others entered upon a farm. They disturbed the cattle on the farm guarded by two nightwatchmen, one of whom after shooting him, arrested the appellant.

The appellant confessed that he and the others were armed and entered the farm with intent to steal. They met a vehicle. A cattle guard fired and hit him in the back. The appellant repeated that he entered the farm to steal but was arrested before he stole anything.

On these facts the magistrate held that there was no case to answer on a charge of stealing but convicted the appellant of attempted stock theft although not charged with attempted stock theft, and sentenced him to imprisonment.

On appeal it was contended that where there is no case to answer the court is bound to acquit and may not convict on another charge, that the appellant should have been charged with the attempt, that the attempt had not been proved, and that the appellant was a young person.

Held –

(i) where a case has been made out of an attempt to commit an offence, the accused may be convicted of it without being recharged, even though there is no case to answer on the complete offence;

(ii) entry on a farm with intent to steal cattle is an overt act sufficiently proximate to the intended offence to constitute an attempt.

(iii) the appellant was a young person, and a proper sentence was a conditional discharge (*Maina v. Republic* (3) followed).

Sentence reduced.

Cases referred to in judgment:

(1) *Mutisya v. R.*, [1959] E.A. 18.

(2) *Saidi v. R.*, [1962] E.A. 545.

(3) *Maina v. Republic*, [1970] E.A. 370.

Judgment

The considered judgment of the court was read by **Madan Ag CJ:** At the end of the prosecution case the magistrate upheld a submission made on behalf of the appellant who was charged with stealing

stock contrary to s. 278 of the Penal Code, that there was no case for him to answer. The magistrate however convicted the appellant of the offence of attempted stock theft contrary to s. 389.

It has been argued before us that, the magistrate having found the prosecution had failed to make out a case on the substantive charge, was bound to acquit the appellant because of the mandatory provisions of s. 210 of the Criminal Procedure Code which provides:

> "If at the close of the evidence in support of the charge, and after hearing such summing up, submission or argument as the prosecutor, the accused person or his advocate may wish to put forward, it appears to the court that a case is not made out against the accused person sufficiently to require him to make a defence, the court shall dismiss the case and shall forthwith acquit him."

It has also been urged upon us that in any event the magistrate was bound to recharge the appellant before convicting him of the attempt.

We are of the opinion that if at the close of the evidence in support of the charge, it appears to the court that a case is not made out against the accused person sufficiently to require him to make a defence, notwithstanding the provisions of s. 210, and also without charging the accused person with the attempt, the court may proceed to convict him of having attempted to commit that offence although he was not charged with it. The provisions of s. 180 of the Criminal Procedure Code clearly enable this to be done. It provides:

> "When a person is charged with an offence, he may be convicted of having attempted to commit that offence although he was not charged with the attempt."

In our opinion it is neither necessary nor obligatory to charge an accused person before convicting him of the attempt of an offence with which he is originally charged and which is not proven against him.

The next question that we have to decide is whether the attempt was legally proved against the appellant. The relevant section is 388 (1) and (2) of the Penal Code. It reads:

> "(1) When a person, intending to commit an offence, begins to put his intention into execution by means adapted to its fulfilment, and manifests his intention by some overt act, but does not fulfil his intention to such an extent as to commit the offence, he is deemed to attempt to commit the offence.
>
> (2) It is immaterial, except so far as regards punishment, whether the offender does all that is necessary on his part for completing the commission of the offence, or whether the complete fulfilment of his intention is prevented by circumstances independent of his will, or whether he desists of his own motion from the further prosecution of his intention."

The appellant was found on a farm with two companions during the hours of darkness. All three were carrying spears and rungus.

There were cattle on the farm and paths crossed it. Ole Kutul and Lukoni, two night watchmen, were in the vicinity. The cattle were disturbed and running. Lukoni ran towards the cattle. Ole Kutul said he saw three persons chasing Lukoni and throwing sticks at him. Ole Kutul was carrying a shot-gun. After firing a shot in the air he followed the three persons. He fired again twice. The appellant was hit and he fell down. He was handed over to the police to whom he made a voluntary statement in which he said he was accompanied by

two other Masai morans, that they were all armed with spears, simis, and rungus; that they crossed the railway line which lies on one side of the farm and followed a path within the farm. The statement continued:

> "We were going to steal cattle from this farm when we met with a vehicle all of a sudden. When we saw the vehicle all of us ran into the bush. One of the cattle guard fired at me and I was shot on the back. . . . I was going to the farm with intent to steal but I was arrested before I stole anything."

A mere intention to commit an offence which is in fact not committed cannot constitute an attempt to commit it. There must also be an overt act which is immediately and not remotely connected with the offence intended to be committed and which manifests the intention to commit the offence. A remotely connected act will not do.

In the instant case the appellant's intention to commit the offence was proved by his admission that he went to the farm to steal cattle. The question is whether he did any act immediately connected therewith which manifested his intention to steal. We think he did. We think he began to put his intention into execution by entering upon the farm with his two companions during the hours of darkness. His entry upon the farm was an overt act which manifested his intention to steal. The fact that he and his companions were interrupted by Ole Kutul affords no defence by virtue of the provisions of sub-section (2). His entry upon the farm coupled with his intention to steal went beyond mere preparation. He entered upon the farm after he had completed his preparations to steal.

In *Mutisya v. R.*, [1959] E.A. 18, the appellant was convicted in the lower court of attempted theft of articles which were in a locked car. The appellant was interrupted before he could force upon the door of the car. The substantial point taken on appeal was whether the attempt to open the car was, in the circumstances, immediately connected with his attempt to steal, since, as the offence occurred at night, the appellant might not have known exactly what was in the car, or if he did, he might not have intended to steal all the articles in the car. It was held that it was an act which was immediately and not remotely connected with the intended theft and it was an act which went far beyond mere preparation.

Mutisya was followed by Spry, J. (as he then was) in *Saidi v. R.*, [1962] E.A. 454, where he held that in opening the door of a car which was not his, without authority, and entering it, the appellant's conduct amounted to an overt act sufficiently proximate to the intended offence to constitute an attempt to steal.

We consider the appellant was correctly convicted of attempting to steal cattle.

We would refer to the following passage in the magistrate's judgment which, in our opinion, constitutes a serious misdirection, i.e.–

> "If I had come to the conclusion that the accused cautioned statement was inadmissible, either because it was not consciously made or because it provided extrinsic evidence of intention, I should have held that the remaining evidence raised a presumption against the accused and no explanation had been given. The accused may have been on safari on a path through the farm but he has not said so. I think there is a burden on him to say but not to prove so."

The last sentence is not comprehensible to us. Be that as it may there was no such burden upon the appellant.

The magistrate concluded his judgment by saying:

> "The urban equivalent to the presence of armed Masai tribesmen at night in a field full of cattle outside Masai land is like the presence of armed and masked men in a bank strongroom."

We suspect this particular magistrate is new to the country. The Masai, in particular Masai morans, swing their tall, supple, lithe figures the whole day clad only in a shuka fully armed with spears and rungus. To them the carrying of spears and rungus is like the normal wearing of a neck-tie by a sophisticated urban dweller.

The appellant was sentenced to imprisonment for six months. We would draw the magistrate's attention to the mandatory provisions of s. 278 and the punishment to be imposed for attempt as laid down by s. 389.

The appellant claimed he was 15 years of age. We have obtained a medical report which gives his age as 18 years. It may well be more or less. In *Maina v. Republic*, [1970] E.A. 370, the appellant whose age was estimated at 18 years was convicted of rape and of robbery with violence and on the latter conviction sentenced to fourteen years' imprisonment. It was held that as the medical report was consistent with the appellant being under 18, he was a young person for the purposes of the Children and Young Persons Act (Cap. 141).

As this Court said in *Maina* (*supra*) the appellant should not be ordered to undergo imprisonment unless we are of the opinion that he cannot be suitably dealt with in any other way permitted by law. We are not of that opinion. We think he can be suitably dealt with in another way permitted by law. We substitute for the conviction a finding of guilty, and under s. 17 (*a*) of the Children and Young Persons Act we make an order discharging the appellant subject to the condition that he commits no offence within twelve months.

Order accordingly.

For the appellant:
SM Otieno

For the respondent:
KA Amoo-Adare (State Counsel)

Riachand Khimji & Co v Attorney-General
[1972] 1 EA 536 (CAN)

Division:	Court of Appeal at Nairobi
Date of judgment:	7 November 1972
Case Number:	49/1972 (176/72)
Before:	Spry Ag P, Law Ag V-P and Lutta JA
Sourced by:	LawAfrica
Appeal from:	The High Court of Kenya – Madan, J

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[1] Civil Practice and Procedure – Judgment – Summary dismissal with reasons later – Irregular –

Civil Procedure (*Revised*) *Rules* 1948, *O.* 20 (*K.*).

[2] Explosives – Authorised explosives – Whether they can be dangerous fireworks – Explosives (*Fireworks*) *Rules, r.* 15 (*K.*).

[3] Explosives – Dangerous explosives – Can be properly stored – Not then subject to confiscation – Explosives Act (*Cap.* 115), *s.* 26 (*K.*).

[4] Customs and Excise – Forfeitable goods – Only customs or police officers can confiscate – East African Customs and Excise Management Act (*Cap.* 27), *s.* 158.

[5] Civil Practice and Procedure – Declaratory judgment – Interfering with Minister's decision – Only grantable when no valid reason shown at any time for decision.

Editor's Summary

The appellants had been convicted on a charge of selling explosives other than under a licence contrary to s. 8 of the Explosives Act (Cap. 115) after a charge of storage of explosives in unauthorised premises had been withdrawn. S. 8 contains no provision for forfeiture of the explosives.

Thereafter the inspector of explosives purported to confiscate the explosives under s. 26 (1) (*a*) of the Act. The appellants' appeal to the chief inspector of explosives was rejected on the ground that the appellants had not held a valid licence to store the explosives. The further appeal to the Minister was rejected on the ground that the importation of the explosives was illegal.

The appellants then sued the Attorney-General for a declaration that the confiscation was unlawful, and appealed from the dismissal of the suit, in which the judge purported to dismiss the suit summarily and gave his reasons later.

For the appellant it was argued that as the explosives were authorised explosives and lawfully imported, they could not be dangerous fireworks: that s. 26 relates only to the method of storage and there was no statement by the inspector that he found the method of storage dangerous. The finding of the judge that there was a duty to confiscate forfeitable goods under the East African Customs and Management Act (Cap. 27) was attacked on the ground that the inspector was neither a customs nor a police officer.

Held –

(i) it is irregular to dismiss a suit and give reasons later;

(ii) as the storage charge under s. 7 had been withdrawn, it could not be relied on for forfeiture;

(iii) authorised explosives can also be dangerous fireworks;

(iv) confiscation under s. 26 can only be ordered where the methods of storage are dangerous;

(v) dangerous explosives can be stored in a proper way and cannot then be confiscated;

(vi) only customs or police officers can confiscate forfeitable goods under the Management Act;

(vii) if valid grounds for confiscation had been shown at any time, even though not relied on originally, the declaration would have been refused;

(viii) (Law, Ag. V.-P., dissenting) as no grounds for confiscation had been shown, the declaration would be granted;

(by Law, Ag. V.-P.) the reasons relied on by the Minister were not necessarily the only reasons, and did not deprive him of jurisdiction.

Appeal allowed.

Case referred to in judgment:

(1) *Pyx Granite Co. v. Ministry of Housing*, [1960] A.C. 260.

Judgment

The following considered judgments were read. **Spry Ag P:** In or about December 1964, the appellants, who are dealers in fireworks, imported toy pistols for sale and percussion caps for use with them. It appears that these were kept in a store in Grogan Road, Nairobi, except for a comparatively small quantity which they were allowed to keep for sale in their shop in Bazaar Street. They had the appropriate storage licence.

Later, they built a store in Dudley Road, adapted to comply with the requirements of the Mines and Geological Department, and this was licensed for the storage of explosives. It appears that the appellants removed all their fireworks to the new store, but left the percussion caps in the old store, in the mistaken belief that these, with the toy pistols for which they were intended, ranked as toys. For this reason, they did not seek to renew the licence for the Grogan Road store.

On 8 October 1968, a complaint was filed against the appellants alleging an offence against s. 7 of the Explosives Act (Cap. 115). The appellants pleaded not guilty. The case came up for hearing on 27 February 1969, when, after some argument, the charge was withdrawn and a new charge under s. 8 substituted, the prosecutor saying that he thought it “more appropriate”. The magistrate did not say under what provision he was acting, but s. 214 of the Criminal Procedure Code is clearly not appropriate and I think it must be assumed that he was permitting the complainant to withdraw the original charge, under s. 204, rather than permitting the prosecutor to withdraw from the prosecution, under s. 87, in which case the appellants were entitled to acquittal on it. The appellants pleaded guilty to the new charge and were convicted and fined Shs. 600/-. It may be noted that s. 7 relates to the storage of explosives in unauthorised premises and s. 8 to the sale of explosives other than under a licence for that purpose. The two sections carry similar penalties, but s. 7 provides for automatic confiscation, whereas there is no provision for confiscation under s. 8. At the close of the proceedings, the advocate for the appellants asked for an order for the return of the caps to his clients, but the magistrate held that he had no jurisdiction to make such an order, as they had not been exhibited.

On 4 March 1969, the inspector of explosives wrote to the appellants informing them that 48 cases of caps, which had been removed from the Grogan Road store on 4 October 1968, had been confiscated “in accordance with s. 26 (1) (*a*) of the Explosives Act”. No reason was given for the confiscation.

The appellants appealed to the chief inspector of explosives under s. 26 (2). He rejected the appeal, giving reasons. He began by saying–

> "At the time the offence was committed, the appellants were not in possession of a valid licence to store in that particular place."

That would have been a perfectly valid reason for confiscation, but only on a conviction under s. 7, and the prosecution had chosen to withdraw the charge filed under that section. It was not a valid reason for confiscation under s. 26, which relates exclusively to methods of work, storage, packing or use.

The appellants, in their grounds of appeal, had referred to the fact that they had imported the caps under the Firearms Act (Cap. 114) and had not been in breach of that Act. The chief inspector appears to have assumed, wrongly, that as the caps had been imported under the Firearms Act, they had not been imported under the Explosives Act and he went on to say that as an analysis showed that they were "dangerous fireworks" within the meaning of the Third Schedule to the Explosives (Fireworks) Rules, their importation was further controlled by rules 7 (5) and 8 (4) of those rules, and that in view of their chemical content, their importation would not have been allowed. He was not correct in assuming that no licence had been obtained under the Explosives Act, but the licence that had been obtained did not cover the caps because at that stage, no-one had realised that they constituted "dangerous fireworks" for which a special authorisation is required under the hand of the chief inspector.

The appellants then appealed to the Minister, under s. 26 (3). This appeal also was rejected. The reason given by the 'Minister was that the importation was illegal in view of the chemical composition of the caps. He described the constituents of the caps as "forbidden materials" which is not correct, as they are only restricted materials. He concluded by saying that, in view of this "confiscation of the goods is obligatory". I find this difficult to understand. If the appellants had been convicted under s. 7, confiscation would have been obligatory but that charge was withdrawn. The confiscation was made in purported exercise of the powers conferred by s. 26, but that section gives a discretion to confiscate goods and in any case does not relate to illegal importation. This would seem to amount to a misdirection in law. Although the outcome might have been the same, it is impossible to exclude the possibility that if the Minister had realised that the caps were restricted goods and that confiscation under s. 26 was discretionary, his decision might have been different.

The appellants then brought a suit against the Attorney-General seeking a declaration that the confiscation of the caps was unlawful and for consequential relief. An objection going to jurisdiction was made, on the ground that the Minister's decision is said, in s. 26 (3), to be final, but the judge held that the court had supervisory jurisdiction and there has been no cross-appeal against that decision.

The judge dismissed the suit. It had been argued that the caps were "authorised explosives" and lawfully imported into the country, and that if they were authorised explosives, they could not be dangerous fireworks. The judge rejected that submission and I have no doubt that he was correct. I can see no reason why the caps should not be both "authorised explosives" and "dangerous fireworks". I think it might have been arguable that the caps could not be dangerous fireworks because they were not fireworks within the meaning of the Explosives (Fireworks) Rules, but I prefer to express no opinion on this, as it was never part of the appellants' case and was never seriously argued.

The judge went on to say–

> "It has also been argued on behalf of the plaintiff that s. 26 limits the power

> of confiscation only to when the methods of work, storage, packing or use in connection with explosives are in conflict with the Act or the Rules. Assuming without deciding that that is so, the method of use of the percussion caps was in direct conflict with the Third Schedule which rendered them liable to confiscation.
>
> "In my opinion s. 26 has to be read together with r. 15 (1) of the Explosives (Fireworks) Rules which provides that when an inspector finds any fireworks which he has reason to believe may be dangerous to the public security or to the safety of any person, he may take such number and quantity of them as he considers necessary for the purposes of test and analysis; thereafter acting under s. 26 (1), the Inspector may confiscate and remove the explosives under paragraph (*a*) thereof. That is exactly what happened in this case."

I do not, with respect, understand what the judge meant when he said that "the method of use of the percussion caps was in direct conflict with the Third Schedule". The schedule merely defines two classes of fireworks the importation of which is subject to special control.

S. 26 begins as follows–

> "26 (1) If an inspector finds any method of work, storage, packing or use in connexion with explosives to be in conflict with this Act or the rules, or to be in his opinion dangerous to the public security or to the safety of any person, he may in his discretion . . ."

and then there follow the various courses he may adopt. I have no doubt that the section relates exclusively to methods.

I respectfully agree with the judge that it must be assumed that the inspector acted under r. 15, although that is nowhere stated on the record, and that if he found the method of storing the caps to be dangerous, he had the power to confiscate them. The difficulty is that the inspector did not say that he considered the method of storing to be dangerous, nor was that given at any stage as a reason justifying the confiscation. It is also significant that it was stated from the Bar in answer to a question put by the judge that only the caps in the store were confiscated and not those in the appellants' shop, and this was not challenged. The fact that the caps, by virtue of their chemical composition, come within the definition of "dangerous fireworks" for the purpose of rr. 7 and 8 does not necessarily mean that they are in fact dangerous and even if it did, that would not by itself be enough to justify confiscation. Explosives may be dangerous in themselves but if they are stored and used in a proper way, they cannot be confiscated under s. 26.

Finally, the judge went on to say that the caps constituted prohibited goods and that there was a duty to confiscate them under the E.A. Customs and Transfer Tax Management Act (Cap. 27). With respect, the only persons who could have seized the caps, under s. 158 of that Act, are officers of the Customs and police officers. Assuming that the caps were liable to forfeiture under s. 155 (*b*), I do not think that fact can be invoked to justify confiscation by an inspector of explosives in purported exercise of the powers conferred by s. 26 of the Explosives Act, if the act of confiscation was unlawful.

The position is, then, that the inspector of explosives gave no reason for his confiscation of the caps, and the reasons given by the chief inspector and the Minister for rejecting the appeals and the reasons given by the judge for dismissing the suit all appear to be invalid. Are we entitled in these circumstances to interfere with the inspector's decision ? I have not found this an easy question. I think that a suit for a declaration allows a little more latitude than an application

for an order of certiorari. The inspector, as I have said, seized the caps on 4 October 1968. He did not at once proceed to confiscate them. He instituted proceedings which might have led to confiscation and then voluntarily withdrew them, substituting a charge of a purely technical nature relating to licensing. It is, I think, inconceivable that he can have been concerned at that stage with any question of the manner of storage being dangerous, or he would at once have confiscated the caps in the shop and in the store and instituted proceedings of a different nature. After the criminal proceedings were completed, he issued his notice of confiscation. When the appellants appealed, it was one of their grounds that the storage of the caps was not dangerous and when he dealt with this, the chief inspector did not contradict it but said, in effect, that the power to confiscate was not limited to cases of danger and the basis of his decision seems to have been the lack of a licence. Again, the Minister, in his decision, although he referred to the caps as dangerous, never said or implied that the method of storing them was dangerous. I think all these factors point irresistibly to the conclusion that the inspector confiscated the caps, not because their storage was dangerous, but because the licence to store them had lapsed.

If in any of the subsequent proceedings it had been shown that there were valid grounds for confiscating the caps under s. 26, I would not think it right to interfere, even though those were not the grounds relied on by the inspector. In fact, however, I do not think that any grounds for confiscation under the Explosives Act have been shown and I regard any power of forfeiture under the Customs and Transfer Tax Management Act as irrelevant.

I think, therefore, that the appeal must succeed. I would allow the appeal and set aside the judgment and decree, and substitute an order for the declaration sought and remit the proceedings to the High Court to hear and determine the outstanding issues. I would award the appellants their costs of the appeal, with a certificate for two advocates, and their costs to date in the High Court. As Lutta, J.A., agrees, it is so ordered.

There is one comment that I would add. The judge dismissed the suit summarily without reasons and gave his reasons at a later date. This is contrary to the provisions of O. 20. No ground of appeal was based on this and it was, I think, a curable irregularity.

Law Ag V-P: The facts leading up to this appeal are fully set out in the judgment prepared by the Acting President and need not be re-stated. This appeal raises many points of interest and difficulty. When an inspector of mines confiscates explosives, under the powers conferred by s. 26 (1) (*a*) of the Explosives Act (Cap. 115) he does not, as I understand it, have to give reasons for his action. Any person dissatisfied with the confiscation may within 30 days appeal to the chief inspector, as was done in this case, and the chief inspector must give his decision on the appeal with the least possible delay, under s. 26 (2) of the Act. Whether or not he must give reasons for his decision is not clear, but I have no doubt that if reasons are given and they disclose an error of law, this might justify the High Court quashing the decision. If the appellant is dissatisfied with the decision of the chief inspector he may, under s. 26 (3) of the Act, appeal to the Minister whose decision “shall be final”. Again, the statute is silent as to whether the Minister must give reasons for his decision, but again I think that if he does, and the reasons disclose an error of law, the High Court could in a proper case quash the decision. I agree with the judge below that the fact that the Minister’s decision is stated to be final does not preclude the High Court from exercising its supervisory jurisdiction in relation to that decision. The High Court has power to quash a decision of a statutory tribunal for want or excess of jurisdiction, breach of the rules of natural justice, error of law on the

face of the record, fraud or collusion. In the case of a decision by a statutory tribunal or person exercising judicial or quasi-judicial powers, as was the case here, the High Court is usually moved on an application for an order of mandamus, prohibition or certiorari, as the case may be. In this case however the Minister's "final" decision was challenged in a suit claiming, *inter alia*, a declaration that the confiscation of the "pop caps", the subject of this appeal, was wrongful, unlawful and done without powers. I can see no objection to a suit for a declaration being instituted in preference to an application for the issue of an order in the nature of a prerogative writ, especially when (as in this case) the plaintiff is seeking additional relief by way of a claim for the return of the confiscated goods or, alternatively, damages. This appears to be the position in England (*Pyx Granite Co. v. Ministry of Housing*, [1960] A.C. 260), and in my view is also the position in Kenya. The remedies by way of certiorari or declaration, as Lord Goddard said in the *Pyx Granite* case, are not mutually exclusive. That this is so is not disputed by counsel for the respondent Attorney-General.

The judge, having rightly in my respectful view decided that he had jurisdiction to entertain the suit for a declaration, declined to interfere with the Minister's decision, the subject of the suit. He was satisfied, on the material before him, that the "pop-caps" contained an admixture of sulphur with chlorate of potassium or other chlorate, and were accordingly "dangerous fireworks" within the meaning of the Third Schedule of the Explosives (Fireworks) Rules made under the Act. This being so, the "pop caps" could not be imported except with the specific authority of the chief inspector, which was not obtained in this case. The judge held that the seizure of the "pop caps" by the inspector, under s. 26 of the Act, was justified as the method of use of the caps was "in direct conflict with the Third Schedule which rendered them liable to confiscation". I have a little difficulty in understanding these last words as they stand. Nothing in the Explosives (Fireworks) Rules makes dangerous fireworks directly liable to confiscation. Rules 7 (5) and 8 (4) prohibit the import of dangerous fireworks without the authorisation of the chief inspector, and as the judge pointed out at the end of his judgment, under the East African Customs and Transfer Tax Management Act, prohibited imports are liable to forfeiture. Mr. Clive Salter for the appellant submitted that this was an irrelevant consideration. The "pop caps" were not seized and confiscated under Customs legislation, but under s. 26 of the Act. S. 26 does not authorise the seizure of explosives merely because they are prohibited imports, but only if any method of work, storage, packing or use in connection with those explosives is in conflict with the Act or Rules or dangerous to public security or to the safety of any persons. The inspector gave no reason for confiscating the "pop-caps", beyond saying he did so under s. 26. In dismissing appeals against the confiscation, the chief inspector and the Minister both relied on the dangerous nature of the "pop caps" and the fact that they were imported without the requisite authority of the chief inspector. Neither of these matters in itself justifies confiscation under s. 26, and Mr. Salter accordingly submitted that the Minister's decision, dismissing the appeal, was erroneous on the face of it, the confiscation of the "pop caps" was wrongful; and he asked that the appeal be allowed, the Minister's decision quashed, and the "pop caps" returned or damages awarded in lieu.

I agree with Mr. Salter that the reasons given by the Minister for supporting the inspector's confiscation of the "pop caps" are invalid reasons, and amount to an error on the face of the record. Does it follow from this that the appeal must necessarily succeed? I do not think so. The inspector, in confiscating the "pop caps", purported to act under s. 26 of the Act. Had the chief inspector and Minister dismissed the appeals merely on the ground that they were satisfied that the method of storing or use of these "pop caps" was in their opinion dangerous to public security or to the safety of persons, that would have been

the end of the matter. Unfortunately they did not do so, but based their decisions on considerations extraneous to s. 26. In so doing, they fell into error. However, they acted in good faith, and no breach of any principle of natural justice has occurred. The error did not, in my view, operate to deprive the Minister of jurisdiction. The question is – was it such an error as to necessitate the Minister's order being quashed? The giving of reasons that are bad in law may amount to error. But the fact that the reasons given may be insufficient to support the decision does not necessarily mean that they are the sole reasons on which the decision is based. The extraneous reasons relied on by the chief inspector and Minister were to a certain extent in answer to points raised by the appellants in their appeals. Basically the Minister dismissed the appeal to him because he could find no justification for over-ruling the decision to confiscate the "pop caps". It seems to me that, even if there has been shown to exist such error on the record as to justify quashing the Minister's dismissal of the appeal, it would be nugatory to do so. The "pop caps" were dangerous fireworks. They were stored in an unlicensed place. Although imported under a valid import permit, the requisite authority of the chief inspector was not sought or obtained. The "pop caps", as the judge has found, were subject to forfeiture under Customs legislation. They would have been mandatorily forfeited had the appellant been prosecuted to conviction under s. 7 of the Explosives Act for storing explosives in unlicensed premises, a charge to which the appellant had no apparent defence, it being admitted that the licence for the store in which the "pop caps" were stored had expired. To quash the Minister's decision and order the return of dangerous fireworks, shown to have been unlawfully imported, would in my opinion be not only nugatory but contrary to public policy. The High Court's supervisory powers over administrative and quasi-judicial tribunals are discretionary and should in my view only be used in exceptional cases, for instance if there has been a failure of justice or a want of good faith, considerations which do not apply here. In all the circumstances, I think the judge came to the right decision when he refused to make the declaration prayed for by the appellant.

I would dismiss this appeal.

Lutta JA: I agree with my Lord the Acting President that this appeal should be allowed. In addition to any other circumstances provided for in the East African Customs and Transfer Tax Management Act (Cap. 27) certain categories of goods which are liable to forfeiture are specified in s. 155. They include prohibited goods, restricted goods and five other categories of goods. Persons who are conferred with the power to seize goods liable for forfeiture are those in the service of the Customs (other than a labourer), or a police officer as provided for in s. 158 of the Management Act. S. 7 (1) (*e*) of the Explosives Act provides *inter alia*, that no person shall keep, store or be in possession of any authorised explosive in or on any premises "unless the explosive is kept by a person in possession of a licence . . . to deal in explosives and in accordance with any conditions attached to that licence or prescribed by the rules". One of the punishments for the contravention of this section is the forfeiture of the explosives. However, under s. 8 it is provided that a person who sells, deals in or disposes of any explosive without a licence is liable, on being found guilty, to a fine not exceeding Shs. 3,000/- or imprisonment for a period not exceeding one year. It is to be noted that forfeiture of the explosives is not included in this section but, under s. 26 of the same Act an inspector has power to confiscate and remove the explosives if he finds them in certain circumstances, for example, if he finds that any method of work, storage, packing or use in connexion with the explosives is contrary to the Act or rules made thereunder. Under this section the inspector clearly has a discretion, which he must exercise whereas under s. 7 the same officer does not have such a discretion, and if he finds any person contravening the provisions of that section, the explosives must be

forfeited. In my view if the licence is necessary for dealing in explosives under the Explosives Act then s. 7 of the latter is just as mandatory as s. 155 of the Management Act. It seems to me also that under s. 155 (*b*) any goods which are dealt with contrary to any condition regulating their importation, exportation or carriage coastwise must be forfeited (here the important words are "any condition regulating"). S. 26 of the Explosives Act refers to the method of storage, packing or use in connexion with explosives whereas s. 7 deals not only with the keeping but also with the necessity of possession of a licence before dealing in explosives, which could be "any condition regulating" the importation, exportation or carriage coastwise. In my opinion if the importation of the caps in question was illegal then s. 7 applied in this case, whether or not the reasons given for confiscation were within the meaning of s. 26. However, that would be only in a case where any officer or police officer is acting by virtue of the powers conferred on him under s. 158 of the Management Act. In my view the position is different where an inspector is acting in pursuance of the powers conferred on him under the Explosives Act. He cannot confiscate the goods in pursuance of s. 26 because their importation has contravened s. 155 (*b*) of the Management Act. He ought to give valid reasons for his confiscation of the goods under s. 26 and failure to do so entitled the Court to interfere with his decision. The chief inspector to whom an appeal lies and the Minister, to whom an appeal lies from the latter did not give valid reasons for the confiscation of the goods. In these circumstances, we are entitled to interfere with the inspector's decision. I would therefore allow the appeal. I concur with the order proposed by the Acting President.

Appeal allowed.

For the appellants:
CW Salter, QC and *HM Parekh* (instructed by *Shah & Parekh*, Nairobi)

For the respondent:
R Sharma and *PK Mureithi*

Mugao and another v Republic
[1972] 1 EA 543 (CAN)

Division:	Court of Appeal at Nairobi
Date of judgment:	17 November 1972
Case Number:	52/1972 (177/72)
Before:	Spry Ag P, Law Ag V-P and Lutta JA
Sourced by:	LawAfrica
Appeal from:	The High Court of Kenya – Waiyaki, J

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[1] Criminal Law – Murder – Malice aforethought – Intention to cause grievous harm – Beating with thin sticks – Intention not proved.

[2] Criminal Law – Murder – Common intention – Deceased left in charge of others – No responsibility for further violence.

Editor's Summary

Seven men including the two appellants were informed by the owner of a goat that two persons named Muruki and M'Ngirani were suspected of stealing and receiving respectively his goat and of having eaten it.

The two suspects were beaten with long, thin, green branches to obtain information as to the whereabouts of the remains of the goat. No confession was made by either although according to M'Ngirani they were beaten for two hours.

Muruki was then placed in a hut for the night guarded by Kirahura and an

old man. M'Ngirani was released and his injuries were not such as required detention in hospital.

By the next day Muruki had died.

Three days later a post-mortem failed to reveal any external injuries due to advanced decomposition of the body. The doctor conducting the post-mortem expressed his opinion that Muriki's death was due to cerebral concussion following a head injury caused by a blunt weapon such as a stick or by a heavy fall. The skull was not fractured, but the doctor reported internal haemorrhage at the rear of the brain consequent upon a blow to the front of the head – a rare form of injury which the doctor had never seen before.

In the High Court all seven men including the two appellants were tried for murder. All accused were acquitted save the two appellants who had confessed that they had beaten the deceased. They were convicted of murder.

On appeal it was argued for the respondent that even if the fatal blow had been struck during the night and after the departure of the appellants, they were responsible.

Held –

(i) in view of the weapon chosen, no intention to cause death or do grievous harm had been proved;

(ii) there was no common intention that there should be further violence to the deceased nor could it have been reasonably anticipated.

Appeal allowed.

Case referred to in judgment:

(1) *D.P.P. v. Smith*, [1960] 3 All E.R. 161.

Judgment

The considered judgment of the court was read by **Law Ag V-P:** The appellants were convicted of murder by the High Court of Kenya sitting at Meru. They have appealed against that conviction.

The facts of the case are that on or about 1 May 1971, a goat belonging to Kirahura was stolen. Kirahura suspected that Muruki had stolen it, and went to look for him. He found Muruki in M'Ngirani's house, where he had gone to sleep because he was sick. According to Kirahura, Muruki admitted having stolen and eaten the goat. Kirahura thereupon raised an alarm which was answered by seven young men, including the two appellants. Muruki and M'Ngirani were tied up. All seven men equipped themselves with long, thin, green branches, and proceeded to beat the two suspects, apparently to obtain from them information as to the whereabouts of the goat's remains. According to M'Ngirani, he and Muruki were being taken to the Chief's camp, and were beaten on the way for a considerable period of time which he put at about two hours. Muruki, having failed to lead the party to the goat's remains, said he was sick and wanted to rest. He was placed in a hut for the night, and guarded by Kirahura and an old man called Mbogori. M'Ngirani was released and the seven young men returned to their homes. Next morning Muruki was found to be dead, having, according to Kirahura, died "due to sickness". A post-mortem examination of the body was performed three days later by Dr. Ramesh Patel. External injuries could not be seen owing to advanced decomposition, and in the doctor's opinion death was due to cerebral concussion following a head injury caused by a blunt weapon such as a stick, or by a heavy fall. The doctor would not have expected the sticks produced in court to have caused such an injury. There was no fracture of the skull, but internal

haemorrhage

at the rear of the brain consequent upon a blow to the front of the head, an injury described by the doctor as a "contre coup brain injury", the first such case in his experience.

All the seven young men who answered the alarm and joined in beating Muruki with light sticks were charged and jointly tried with his murder. The trial judge was satisfied that all were present at the material time, but acquitted five of them because he was "not satisfied about the part played by them in the commission of the offence or whether there was common intention amongst them to beat deceased. . . ." He convicted the two appellants, who had made extrajudicial statements in which they admitted beating the deceased. He found that the appellants "shared a common purpose of attacking both the deceased and M'Ngirani with sticks as a result of which the deceased died". He found that malice aforethought had been established in respect of the two appellants.

This finding of malice aforethought forms the main ground of appeal argued by Mr. Nagpal on behalf of the appellants. By s. 206 of the Penal Code malice aforethought shall be deemed to be established by evidence proving one or more of four sets of circumstances, of which the two following may be relevant in this case–

(*a*) an intention to cause the death of or to do grievous harm to any person, or

(*b*) knowledge that the act or omission causing death will probably cause the death of or grievous harm to some person, although such knowledge is accompanied by indifference whether death or grievous harm is caused or not.

The trial judge unfortunately did not specify what evidence he relied on as establishing malice aforethought. Clearly it was not evidence establishing an intention within paragraph (*a*) of s. 206. Had the appellants intended to kill or do grievous harm they would not have selected light sticks with which to beat the deceased. We have no doubt on the evidence that the intention of the appellants and their co-accused was, by inflicting pain, to obtain information from two suspects as to the whereabouts of a stolen goat. Mr. Rebelo for the Republic, submitted that the evidence established malice aforethought within paragraph (*b*) of s. 206. He submitted that, as reasonable men, the appellants must have anticipated that their prolonged assault on the two suspects, although it was not intended to cause death or grievous bodily harm at the time, was likely eventually to cause grievous bodily harm and death; and he relied on *D.P.P. v. Smith*, [1960] 3 All E.R. 161. He also submitted that if the fatal blow was struck by one of the two persons guarding the deceased, after the departure of the appellants, the appellants were nevertheless responsible in law, as the leaving of the deceased with the guards was done with their knowledge and approval, and that it was a foreseeable consequence that the deceased might be further assaulted by his guards and sustain grievous bodily harm or die. With respect, we think this is extending criminal responsibility beyond the limits recognised by law. The position, as we see it, is that the appellants and others joined together in beating two suspects with light sticks with the intention of forcing them to reveal information. They had no intention to kill or do grievous bodily harm. They desisted from the beating, after it had lasted a long time, and released one suspect. The fact that this man was not detained in hospital is some indication of the nature of the beating administered by the appellants and their co-accused. The deceased was placed in a hut under the guard of two other persons. There is no evidence that the deceased received the blow which caused his death, for which a heavy blunt instrument must have been used, whilst being beaten by the appellants. The possibility cannot be excluded that the blow was struck when the deceased was in the custody of the guards. This

is not unlikely, as one of the guards was the owner of the missing goat. The appellants could not in our view have reasonably anticipated any such thing happening in their absence, nor is there any evidence that they had a common intention with the guards that further violence should be done to the deceased after their departure from the scene. We do not think that the death of Muruki was, on the evidence, a probable consequence of the prosecution of the common unlawful purpose of beating Muruki with light sticks, so as to involve the appellants in criminal responsibility for his subsequent death. The reasonable possibility of death having been caused by the independent, unforeseen and not reasonably anticipated act of a third party cannot be excluded.

For these reasons we are of opinion that the convictions of the two appellants cannot be supported. We allow the appeal in the case of both appellants, quash their convictions and set aside the sentences of death passed on them. Unless otherwise lawfully detained, they are to be set at liberty forthwith.

Order accordingly

For the appellants:
OP Nagpal and *DN Nene*

For the respondent:
AR Rebelo (State Counsel)

Gichunge v Republic
[1972] 1 EA 546 (CAN)

Division:	Court of Appeal at Nairobi
Date of judgment:	23 October 1972
Case Number:	53/1972 (178/72)
Before:	Spry Ag P, Law Ag V-P and Lutta JA
Sourced by:	LawAfrica
Appeal from:	The High Court of Kenya – Waiyaki, J

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[1] Criminal Practice and Procedure – Minor offence – Grievous harm – A complete minor offence in relation to murder – Criminal Procedure Code, s. 179 (*K.*).

[2] Evidence – Murder – Cause of death – Possibility of death caused by intervening circumstance – Murder not proved.

[3] Evidence – Statement – By person not present – Evidence of facts only and not opinions – Evidence Act (*Cap.* 80), *s.* 33 (*K.*).

[4] Evidence – Statement – Inadmissible – May not be looked at for any purpose.

Editor's Summary

In January 1971, the appellant stabbed the deceased in the chest causing a collapse of the left lung. The deceased was on 22 January discharged from hospital, but was readmitted a week later and on 7

February he died of pneumonia and tetanus.

The doctor's report as to cause of death was admitted under s. 33 of the Evidence Act (K.) without the doctor being called as he had left the country and the statement had been made in the discharge of professional duty. It read "death was due to pneumonia and tetanus following a stabbing injury to the chest". The doctor was not called to give evidence.

On this evidence it was found that the appellant caused the deceased man's death and he was convicted of murder.

On appeal:

Held –

(i) a statement by a person who cannot be called as a witness is only admissible in so far as it relates to facts;

(ii) the opinions of the doctor were inadmissible and could not be looked at for any purpose;

(iii) in view of the possibility that death had been caused by an intervening circumstance, it had not been proved that death was caused by the appellant;

(iv) unlawfully causing grievous harm is a complete minor offence in relation to murder.

Conviction of unlawfully doing grievous harm substituted.

No cases referred to in judgment

Judgment

The considered judgment of the court was read by **Law Ag V-P:** The appellant Gichunge M'mbwiria was convicted of murder and sentenced to death by the High Court sitting at Meru on 11 May 1972. He appealed to this Court which, on 12 October 1972, allowed his appeal to the extent of setting aside the conviction for murder and the sentence of death, and substituting a conviction for unlawfully doing grievous harm, contrary to s. 234 of the Penal Code, and a sentence of 5 years' imprisonment. We reserved our reasons, which we now give.

The case for the prosecution was that the appellant stabbed a man called M'ngai in the chest with a knife on 1 January 1971. The wound entered, and caused a collapse of, the left lung. M'ngai was admitted to Maua Methodist Hospital, where he was treated by Dr. Knights. He gradually improved and was discharged on 22 January. A week later he was readmitted, and on 7 February he died of pneumonia and tetanus. These facts appear in the post-mortem report drawn up and signed by Dr. Knights, which was admitted in evidence at the trial under s. 33 of the Evidence Act, the judge being satisfied that Dr. Knights had left Kenya and that his attendance could not be procured without an unreasonable amount of delay and expense. No inquiry seems to have been made as to whether Dr. Knights was returning to Kenya, and if so when. No other medical evidence whatsoever was called. As M'ngai died 36 days after being wounded, and 15 days after being discharged from hospital, it was of the greatest importance that there should be evidence linking the cause of death (that is to say tetanus and pneumonia) with the stab wound, if the appellant was to be held responsible for the death. As to this, there is the statement in Dr. Knights' report that–

> "death was due to pneumonia and tetanus following a stabbing injury to the chest."

So far as this statement is considered as an expression of fact, it is correct. The pneumonia and tetanus followed, in point of time, the stabbing. But there is absolutely no evidence, anywhere in the record, that the pneumonia and tetanus were a direct result and consequence of the stabbing. It is most likely that they were, but we cannot exclude the possibility that, had he been cross-examined, Dr. Knights might have conceded the possibility that the pneumonia and tetanus supervened independently of the stabbing, in which case the appellant would not be responsible for the death.

It will be noted that a statement admitted in evidence under s. 33 of the Evidence Act is admissible only as to the facts therein stated. Consideration should always be given to the weight to be attached to such a statement, bearing in mind the absence of cross-examination. Opinions are only admissible to the extent provided for in paragraph (*d*) of s. 33. The judge appreciated this, and admitted Dr. Knights' statement "in so far as it relates to facts". He went on

to say, "I cannot rely on it in so far as the doctor's opinion as to the cause of death is concerned, this not being an admissible fact, but an opinion". We agree. It is strange, therefore, to find the judge making the following observation in the course of his judgment–

> ". . . I have disregarded that part of the post-mortem report which deals with the doctor's opinion as to the cause of death but have had the advantage of looking at it."

It is, with respect, impossible to "look at" a potential piece of evidence which has been excluded from evidence. It is clear that the judge was fully aware of the lacuna in the prosecution case, that is to say, the link between the cause of death and the injury inflicted by the appellant. This lacuna could only have been filled, in the absence of Dr. Knights, by calling as a witness another medical expert, preferably one having some personal knowledge of the case.

We therefore agreed with Mr. Nagpal for the appellant that the possibility of death having been caused by some intervening circumstance, unconnected with the stabbing, had not been excluded in this case. We accordingly set aside the conviction for murder.

We were satisfied beyond reasonable doubt that it was the appellant who stabbed the deceased, and we accordingly convicted him of unlawfully doing grievous harm, contrary to s. 234 of the Penal Code. We are satisfied that an offence contrary to that section is a minor offence in relation to murder within the meaning of s. 179 of the Criminal Procedure Code. As regards the sentence of 5 years' imprisonment which we imposed, we bore in mind that the appellant, a man of 25 years of age, was of previous good character, and that the stabbing took place in the course of a sudden quarrel and was unpremeditated. Furthermore, the appellant had been in custody for over a year before his trial.

Order accordingly.

For the appellant:
OP Nagpal and *DN Nene*

For the respondent:
AR Rebelo (State Counsel)

Bukenya and others v Uganda
[1972] 1 EA 549 (CAK)

Division:	Court of Appeal at Kampala
Date of judgment:	18 October 1972
Case Number:	68/1972 (179/72)
Before:	Spry Ag P, Lutta Ag V-P and Mustafa JA
Sourced by:	LawAfrica
Appeal from:	The High Court of Uganda – Kiwanuka, C.J

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[1] Criminal Law – Murder – Malice aforethought – Intention to commit grievous harm – Not murder – Penal Code, s. 186 (*U.*).

[2] Evidence – Witness – Criminal charge – Prosecution must make available all witnesses to

establish truth.

[3] Evidence – Witness – Power of Court to call – Essential witnesses may be called.

[4] Evidence – Witness – Failure to call – When adverse inference may be drawn.

Editor's Summary

The appellants were convicted of murder after having beaten the deceased with sticks and a stone. The trial judge found that their intention was to cause death or grievous bodily harm. He also stated that the court could not enquire into the failure of the prosecution to call witnesses.

On appeal

Held –

(i) malice aforethought is not constituted by an intention to cause grievous bodily harm;

(ii) the prosecution must make available all witnesses necessary to establish the truth, even if their evidence may be inconsistent;

(iii) the court has the right, and the duty, to call witnesses whose evidence appears essential to the just decision of the case;

(iv) where the evidence called is barely adequate, the court may infer that the evidence of uncalled witnesses would have tended to be adverse to the prosecution.

Appeal allowed. Conviction of manslaughter substituted.

Case referred to in judgment:

(1) *Roria v. Republic*, [1967] E.A. 583.

Judgment

The considered judgment of the court was read by **Lutta Ag V-P:** The appellants, Erisa Bukenya, Joseph Kayemba and Edward Senyonga, were convicted of the murder of Sulaimani Yinusu. At about 8.30 p.m. on 4 May 1971, the deceased went to Cissy Nampima's house in Bukoloto to drink. He found the appellants there. The appellants asked him whether he was spying on them. The deceased is alleged to have said, "You Baganda are very stupid. That is why when you were told that your Kabaka was dead you continued to say that he was still alive". The appellants got annoyed by these remarks and took the deceased outside into the "courtyard" where they beat him with sticks and a stone until he died. The appellants denied the offence

both in their caution statements and in their evidence on oath. The Chief Justice said that Cissy Nampima told the truth; he accepted her evidence and convicted the appellants. They have now appealed against conviction and sentence. One of the main grounds of appeal was that the Chief Justice ought not to have convicted the appellants on the uncorroborated evidence of Cissy Nampima, the sole eyewitness, on the basis that her evidence was inconsistent and implausible.

[The judge considered the evidence and continued.]

Mr. Mayanja-Nkangi and Mr. Bamuturaki, have strongly attacked the Chief Justice's finding with regard to Cissy Nampima's credibility and have said all that could be said in support of this ground of appeal, but in our opinion this ground must fail. We think that having held that Nampima was a witness of truth, the Chief Justice was entitled to convict the appellants. Cissy Nampima knew the appellants and had been with them for a good part of the evening and there is therefore no question of mistake in the identification of the appellants. In the circumstances the case of *Roria v. Republic*, [1967] E.A. 583 is not relevant to this case. There was the question of the alleged inconsistencies between Nampima's evidence and her statement to the police. As the statement was not admitted in evidence we do not consider it necessary to deal with the alleged inconsistencies.

The Chief Justice dealt with the issue of common intention and malice aforethought as follows:

> "As for common intention, there is no doubt that the three accused had the same intention throughout, namely to kill him, or at least to cause him grievous bodily harm. . . ."

We are satisfied that there was sufficient evidence to support the finding that the three appellants acted in concert in beating the deceased to death. However malice aforethought is defined in s. 186 of the Penal Code (as amended) as follows:

> "Malice aforethought shall be deemed to be established by evidence providing either of the following circumstances:
>
> (*a*) an intention to cause the death of any person whether such person is the actual person killed or not; or
>
> (*b*) knowledge that the act or omission causing death will probably cause the death of some person. . . ."

It is clear that an intent to cause grievous bodily harm no longer constitutes an element in establishing malice aforethought. The Chief Justice has found that the intention of the appellants was to cause death or grievous bodily harm. In view of this finding, the offence committed could either be murder or manslaughter. Since there is a doubt as to which offence was committed, the doubt must be resolved in favour of the appellants. We accordingly set aside the conviction for murder.

The Chief Justice, commenting on the fact that two persons who were known to Cissy Nampima and who, according to her, had been present at the time of the incident, had not been called as witnesses, said–

> "The Court cannot enquire into such things. It acts only on the evidence put before it by the Director of Public Prosecution."

With respect, that is not quite correct. It is well established that the Director has a discretion to decide who are the material witnesses and whom to call, but this needs to be qualified in three ways. First, there is a duty on the Director to call or make available all witnesses necessary to establish the truth, even though

their evidence may be inconsistent. Secondly, the Court itself has not merely the right, but the duty to call any person whose evidence appears essential to the just decision of the case (Trial on Indictments Decree, s. 37). Thirdly, while the Director is not required to call a superfluity of witnesses, if he calls evidence which is barely adequate and it appears that there were other witnesses available who were not called, the Court is entitled, under the general law of evidence, to draw an inference that the evidence of those witnesses, if called, would have been or would have tended to be adverse to the prosecution case. If they had disappeared, the prosecution could easily have called evidence to show that reasonably exhaustive enquiries had been made to trace them, but without success. In the present case, we think the Chief Justice should have considered calling the two persons. We are, however, not prepared to say that his failure to do so was necessarily fatal to the convictions. He warned himself of the danger of relying on the evidence of a single witness and, after doing so, was fully satisfied that the evidence was sufficient.

For these reasons we allow the appeal against conviction for murder and sentence of death and substitute therefore conviction for manslaughter and sentence of 5 years' imprisonment in respect of each appellant.

Order accordingly.

For the first and third appellants:
JS Mayanja-Nkangi (instructed by *Mayanja-Nkangi & Shah*, Kampala)

For the second appellant:
JM Bamuturaki (instructed by *Kirenga and Gaffa*, Kampala)

For the respondent:
CCK Ndozireho (State Attorney)

Kassam v Republic
[1972] 1 EA 551 (CAD)

Division:	Court of Appeal at Dar Es Salaam
Date of judgment:	24 October 1972
Case Number:	92/1972 (180/72)
Before:	Spry Ag P, Law Ag V-P and Lutta JA
Sourced by:	LawAfrica
Appeal from:	The High Court of Tanzania – Onyiuke, J

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[1] Criminal Law – Corruption – Intention – Inducement to act as officer should have acted – Payment corrupt – Prevention of Corruption Act 1971, *s.* 3 (*T.*).

Editor's Summary

The appellant pleaded guilty to a charge of corruption in that he gave money to a police officer to

obtain for him a certificate of good character which is issued by the police.

On appeal it was argued for the appellant that no offence was shown since in offering money to a police officer to do what he was bound to do the appellant was not actuated by any improper motive, or evil or dishonest intention, and that a payment to an agent to do what he is bound to do in relation to the principal's affairs is not corruption.

Held –

(i) payment to an officer to do what he should have done tends to corrupt the officer;

(ii) a payment in such circumstances is accordingly made corruptly;

(iii) a payment to an agent to do what he is bound to do in relation to the principal's affairs is made corruptly (*Makubi v. Republic* (2) overruled).

Appeal dismissed.

Cases referred to in judgment:

(1) *Mandla v. Republic*, [1966] E.A. 315.

(2) *Makubi v. Republic*, [1968] E.A. 667.

Judgment

The considered judgment of the court was ready by **Law Ag V-P:** The appellant was charged in the court of the resident magistrate at Mtwara with an offence contrary to s. 3 (2) of the Prevention of Corruption Act 1971, the particulars whereof read as follows:

> "That A. M. P. Kassam is charged on 16 December 1971, at about 09.40 hours at Government Quarters House at Ligula Area within the Township and District of Mtwara, Mtwara Region, did corruptly give Shs. 200/- . . . to Mr. G. L. Mbawala a person employed in the public service as a Regional C.I.D. Officer Mtwara, to do something in relation to his principal's affairs, namely to get him a letter certifying to officer-in-charge Identification Bureau Dar es Salaam that he has no bad record so that he could get a clearance pass to go to America."

On the charge being read over to him, the appellant pleaded thereto in the following words – "It is true." The prosecutor then stated the facts at length, after which the appellant said – "What has been stated by the prosecution is correct." These facts included the following – the appellant asked assistant superintendent of police Mbawala to do him a favour by obtaining for him a certificate of good character from the Identification Bureau in Dar es Salaam in order to enable the appellant to get a clearance pass to travel to America. He produced a list of eleven other persons who wanted similar certificates, and offered to pay Shs. 100/- in respect of each certificate. Mr. Mbawala said he would consider the matter, and told the appellant to come later. Mr. Mbawala then enlisted the help of other police officers, and concealed them in his house next morning. The appellant arrived at about 9.40 a.m. and repeated his request, adding that he had brought Shs. 200/- which he offered to Mr. Mbawala, who took the money and gave a pre-arranged signal, whereupon the hidden police officers emerged from their hiding places and arrested the appellant. At the request of Mr. Lilani, advocate for the appellant, the magistrate adjourned consideration of the sentence until the following day, when Mr. Lilani addressed him in mitigation. Mr. Lilani pointed out that the appellant could have obtained the certificates of good character without payment, that he was not trying to obtain benefit or favour illegally, and that he had acted through ignorance and fear of the police. The magistrate sentenced the appellant to the minimum sentence prescribed by the Minimum Sentences Act 1963, which was then in force. The appellant appealed to the High Court claiming that he should not have been convicted as the facts did not disclose that the act complained of was done corruptly. Mr. Lakha submitted in the High Court, as he did before us, that the appellant's plea and acknowledgment of the truth of the facts should not be construed as an admission that the money was paid corruptly. The appellant was unrepresented at that stage of the proceedings, and this ingredient of the offence was not specifically put to him. An unrepresented accused should have all the ingredients of a charge put to him. In particular he should not be convicted on his own plea on a charge of corruption unless he clearly admits that he acted with a corrupt intention. However, the appellant is not illiterate, and Mr. Lakha does not suggest that the manner in which his plea was taken has resulted in the proceedings being a nullity. He preferred to rely on a submission that the conviction should be set aside as the facts did not constitute an offence in law. Mr. Lakha in the court below, and before us, relied on

Mandla v. Republic, [1966] E.A. 315 and *Makubi v. Republic*, [1968] E.A. 667. He stated (and this was accepted by Mr. King for the Republic) that certificates of good character are issued by the police on request, after reference to the Dar es Salaam Identification Bureau, without charge. He submitted that in offering a police officer money to do what he was in duty bound to do, the appellant was not actuated by any improper motive, or evil or dishonest intention. The judge, after directing himself most carefully and correctly on the law, came to the conclusion that on the facts the appellant "intended to buy the officer's loyalty and get him to act in the way he wanted him to act irrespective of whatever might have been the officer's obligations to his employer. The money was not meant to be a fee. It was the price he was prepared to pay to get the officer to do his bidding . . ." and he concluded that, in these circumstances, the appellant's motive was "anything but honest" and his intention corrupt. After anxious consideration of the arguments raised before us, we have come to the conclusion that Onyiuke, J. was right. What possible motive could the appellant have had for offering money to the police officer in this case, other than an improper one? Even if it was only to ensure preferential or expeditious processing of the certificates, this was a payment designed to induce the officer to do something in relation to his principal's affairs. Relying on *Makubi's* case Mr. Lakha submitted that to make a payment to an agent to do something in relation to his principal's affairs which the agent is bound in any event to do, does not constitute corruption. We do not agree. In so far as *Makubi's* case supports Mr. Lakha's submission, we think it was wrongly decided. *Mandla's* case was very different from the one now under consideration. In that case the payment was proved to have been made for a motive which was not evil or dishonest; in this case no proper motive has been suggested at all. We cannot accept the proposition that the offering of money to a public officer, to do what in any event he would have done, is lawful or proper. For one thing such a practice tends to corrupt, and to lead such officers to expect extra payment for doing their duty, or to refuse or delay the doing of their duty unless extra payment is forthcoming. It follows that in our judgment a payment in the nature of that made by the appellant is made corruptly, within the meaning of s. 3 (2) of the Prevention of Corruption Act 1971, and we accordingly find that the appellant was properly convicted and we dismiss the appeal.

The sentence imposed was the minimum prescribed by law. Had it not been so, we might have found that there were mitigating circumstances and reduced it, but this can only be considered in another place. The sentence of corporal punishment will of course not be carried out, in consequence of the enactment of the Minimum Sentences Act 1972.

Order accordingly.

For the appellant:
MA Lakha (instructed by *Lakha and Co*, Dar es Salaam)

For the respondent:
N King (Senior State Counsel)

K (Otherwise B) v K
[1972] 1 EA 554 (HCK)

Division: High Court of Kenya at Nairobi

Date of judgment: 18 July 1972

Case Number: 23/1972 (181/72)

Before: Waiyaki J

Sourced by: LawAfrica

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[1] Marriage – Validity – Ceremony under Marriage Act (*Cap.* 150) (*K.*) *– Husband already married by Kikuyu customary law – subsequent ceremony invalid.*

Editor's Summary

The respondent was married to another woman by Kikuyu customary law at the time when he purported to marry the petitioner in the registrar's office, Nairobi under the provisions of the Marriage Act (Cap. 150).

The petitioner prayed for a decree of nullity, contending that the respondent was incapable of contracting a valid monogamous marriage.

Held –

(i) only a monogamous marriage can be created by a ceremony under the Marriage Act;

(ii) as the respondent was already married by Kikuyu customary law, the ceremony was invalid (*R.S. v. S.S.* (1) followed).

Decree of nullity granted.

Case referred to in judgment:

(1) *R.S. v. S.S.*, [1969] E.A. 229.

Judgment

Waiyaki J: On 22 August 1970, the petitioner went through a form or ceremony of marriage with the respondent, at the District Commissioner's Office, Nairobi.

At the time, the respondent was married to one Grace Waiyaki Kang'ara in accordance with Kikuyu customary law. That marriage has never been dissolved or annulled but is still subsisting.

Counsel for the petitioner argues that under the Matrimonial Causes Act, under which the petition has been brought, a monogamous marriage, being the union of one man and one woman to the exclusion of all others, is null and void if there exists a previous marriage contracted under customary law.

In the present case, the respondent had contracted a marriage under Kikuyu customary law, which was potentially polygamous, and the respondent could have married a second wife under that custom.

Counsel cited *R.S. v. S.S.*, [1969] E.A. 229 in support of his contention. The facts were briefly as follows: the petitioner and the respondent who were both Sikhs, married by Sikh ceremony in December 1957, and this was a valid marriage under the Hindu Marriage, Divorce and Succession Ordinance (Cap. 149). It was also at that time a potentially polygamous union since the respondent husband could have married a second wife by a Sikh ceremony. In November 1958 the respondent went through a civil ceremony of marriage with the co-respondent in purported pursuance of the Marriage Ordinance (Cap. 144) (now the Marriage Act (Cap. 150)). The wife petitioned for divorce on the ground of the husband's adultery with the second "wife".

Held: (i) only a monogamous marriage can be created by a ceremony under the Marriage Act.

(ii) as the husband was already married, the ceremony was valid and created no marriage status.

(iii) therefore the respondent had committed adultery with the co-respondent.

Decree nisi granted.

This case is analogous to the present one. I agree with the counsel for the petitioner that the subsequent monogamous marriage is null and void, and I so find.

I also made a finding that there has been no condonation, collusion or connivance, and I grant the petitioner a decree nisi to become absolute on the expiry of the usual statutory period. Costs of the petition to be borne by the respondent.

Order accordingly.

For the petitioner:
P Le Pelley (instructed by *Hamilton Harrison and Mathews*, Nairobi)

The respondent did not appear.

Mponezya v Republic
[1972] 1 EA 555 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	9 June 1972
Case Number:	227/1972 (183/72)
Before:	Sir James Wicks CJ and Waiyaki J
Sourced by:	LawAfrica

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[1] Criminal Law – Theft – Cash – Currency notes – Not confined to Kenya currency.

[2] Criminal Practice and Procedure – Charge – Theft – Name of owner – Not necessary where property otherwise described.

Editor's Summary

The appellant had been convicted of theft of cash, and contended that Tanzania currency notes were not cash, and that they had not been handed to him by the person named as the complainant.

Held –

(i) banknotes and currency notes are not restricted to Kenya currency;

(ii) it is only necessary to indicate the property referred to and where this is done the name of the owner is unnecessary, and it is immaterial whether the special or general owner is the complainant.

Appeal dismissed.

No cases referred to in judgment

Judgment

The considered judgment of the court was read by **Sir James Wicks CJ:** The appellant was convicted by the resident magistrate on one charge of stealing contrary to s. 275 of the Penal Code and sentenced to serve a term of imprisonment of six months. He appeals against his conviction.

The appeal is on law but we must refer briefly to the facts.

Mr. Silas Kaberia had four Shs. 100/ – Tanzania bank notes which he wished

to change into Kenya currency. After a discussion he gave the money to Mr. Jackson Kaumbuthu. The appellant was at the door of Mr. Kaumbuthu's house and, agreeing to change the money, Mr. Kaumbuthu gave it to him. The appellant said that he had not sufficient Kenya money with him and they should all go to his house so that he could get it. Arriving at his house, the appellant left and did not return. He was arrested ten days later. The defence was a denial and an alibi. The magistrate accepted the evidence of the prosecution witness and rejected that of the appellant and his alibi. There were ample grounds supporting the magistrate's findings on the facts and no complaint is made of them.

The first ground of appeal is that the particulars of the offence charged alleges that the appellant stole "cash"; Tanzania bank notes are not "cash" in Kenya. We see in Websters Dictionary of Synonyms (1st Edition) at p. 554, the word – "cash" includes *inter alia* "money". In s. 4 of the Penal Code "money" includes *inter alia* "bank notes" and "currency notes". The section, s. 137 of the Criminal Procedure Code, which is concerned with rules for the framing of charges and information, sub-section (*b*) (iv) provides:

> "coin, bank notes and currency notes may be described as money; and any allegation as to money, so far as regards the description of the property, shall be sustained by proof of any amount of coin or of any bank currency note (although the particular species of coin of which such amount was composed or the particular nature of the bank or currency note is not proved); and, in cases of stealing and defrauding by false pretences, by proof that the accused person dishonestly appropriated or obtained any coin or any bank currency note, or any portion of the value thereof, although such coin or bank or currency note may have been delivered to him in order that some part of the value thereof should be returned to the party delivering the same or to any other person and such part has been returned accordingly."

The term bank or currency note is not restricted to Kenya currency and we find that Tanzanian currency notes come within the term "cash" and the appellant was properly charged.

The second ground of appeal is that since the notes were in the possession of Mr. Kaumbuthu it was wrong for Mr. Kaberia to be the complainant. That is the person alleged to have given the notes to the appellant should have been named as the complainant, and not, as in the particulars, the owner. We can find nothing in this ground of appeal. S. 268 of the Penal Code, which contains the definition of stealing, provides that the taking of "anything capable of being stolen" is the relevant element, and s. 137 (*c*) (i) of the Criminal Procedure Code provides that it is necessary in ordinary language "to indicate with reasonable clearness the property referred to" and it is not necessary to name the person to whom the property belongs, except where it is necessary for the purpose of describing the offences. It is immaterial whether the special or actual owner is named as complainant The exception does not apply in this case.

There being no merit in the appeal it must be dismissed.

Order accordingly.

For the appellant:
M Owuor

For the respondent:
Miss P Rattansi (State Counsel)

Shiani v Republic
[1972] 1 EA 557 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	28 August 1972
Case Number:	606/1972 (184/72)
Before:	Sir James Wicks CJ and Trevelyan J
Sourced by:	LawAfrica

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[1] Criminal Law – Fraudulent use of weights and measures – Fraud must be alleged and proved – Weights and Measures Act (*Cap.* 513), *s.* 17 (*K.*).

[2] Criminal Practice and Procedure – Sentence – Prosecutor – Statement that offence serious – Improper to make statement.

Editor's Summary

The appellant was convicted of fraud by the use of a weight, the particulars stating that he used a false weight. The prosecutor stated that the offence was serious and the magistrate imposed a prison sentence.

Held –

(i) the charge did not show any wilful fraud;

(ii) it is not for a prosecutor to tell the court that an offence is serious as this is for the court to decide;

(iii) no more than a fine could have been imposed had the conviction been proper.

Appeal allowed.

No cases referred to in judgment

Judgment

The considered judgment of the court was read by **Sir James Wicks CJ:** S. 17 of the Weights and Measures Act (Cap. 513) provides that "Where any fraud is wilfully committed in the use of any weight, measure or weighing or measuring instrument, the person committing such fraud and every person party to the fraud, shall be guilty of an offence. . . ."

The appellant was charged with "unlawfully using a false weighing and measuring instruments" (sic) contrary to the section, the particulars being that he "unlawfully issued a false weighing and measuring instrument namely two stones being written two kilos, one kilo and half kilo". "Two" must mean "three".

"Measuring instrument" and "weighing instrument" are individually defined in s. 2 of the Act, the former including "every instrument for the measurement of number, length, capacity, volume, area or quantity" and the latter to include scales, balances and other instruments and apparatus for weighing with all weights and counterpoises belonging thereto.

Having regard to the use of the word "namely" in the particulars, it is to be assumed that the word "instruments" in the statement of offence should be "instrument" and the word "issued" in the particulars must surely be read as "used". But, in any event, the charge was defective, for the particulars bear no relation to the offence which the section charges. The whole basis of s. 17 is

“wilful fraud” but this was never suggested. It is possible for the most innocent of persons to use a false weight without knowing that he is doing so.

The appellant cannot have understood what was charged against him. It is recorded that he pleaded, using the swahili tongue, “It is true. I plead guilty

to the charge" but, as we understand it, there is no word for guilty in that language so that the plea of the appellant in its English translation cannot have been recorded as should have been done.

The conviction cannot be sustained. But we will yet say something about the matter of sentence. The prosecutor told the magistrate that the offence was serious though whether he was referring to it generally or to the facts of the case, he did not make clear. Either way, the comment should not have been made. It is not the function of a prosecutor, as this court has more than once said, to tell the court his views. He is required simply to put the facts before the court. The court must decide how it views the case. In this case, perhaps taking his lead from the prosecutor, the magistrate said not only that he took a very serious view of the case but that it "by all means calls for a deterrent sentence". We are quite unable to subscribe to that; the public at large was not likely to start making its own weighing and measuring machines. But beyond that, there was a most serious misdirection on the part of the magistrate for he said that the appellant "has been no doubt exploiting the innocent and poor people of that area for a considerable period", when no-one, not even the prosecutor, suggested that this was so. As a matter of fact as no-one said what the stones weighed, the appellant may have been "exploiting" himself.

Nothing that the magistrate was told could have called for a custodial sentence. The appellant was a first offender so far as the magistrate was concerned and, assuming the facts as outlined to have amounted to an offence, no more than a fine could have been called for. The sentence could not have been sustained.

We allow the appeal. The conviction is quashed and the sentence is set aside. The appellant is acquitted. State Counsel rightly did not support the conviction.

Order accordingly.

For the appellant:
Swaraj Singh

For the respondent:
Miss P Rattansi (State Counsel)

Ngavana v Republic
[1972] 1 EA 559 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	7 July 1972
Case Number:	277/1972 (185/72)
Before:	Sir James Wicks CJ and Nyarangi J
Sourced by:	LawAfrica

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[1] Criminal Law – Theft – Claim of right – Can be established even when claim mistaken.

Editor's Summary

The appellant was charged with the theft of a heifer and claimed that it belonged to him. He called evidence in support of his claim.

The magistrate held that the animal was the complainant's property and that therefore the appellant could not have a claim of right to it.

Held –

(i) the prosecution must prove both ownership of the animal and the theft;

(ii) where the accused reasonably claims property as his, even if he is mistaken, he must be acquitted.

Appeal allowed.

No cases referred to in judgment

Judgment

The considered judgment of the court was read by **Sir James Wicks CJ:** The appellant was convicted by the resident magistrate, Kitui, on a charge of stock theft contrary to s. 278 of the Penal Code and sentenced to serve a term of imprisonment of 7 years with hard labour and to receive 12 strokes of the cane. He appeals against his conviction and the sentence. State Counsel did not support the conviction. We agreed that the conviction could not be supported. We quashed it and set aside the sentence. We reserved our reasons for so doing which we now give.

The stock was one heifer valued at Shs. 135/ – and throughout the appellant claimed it was his property. The complainant gave evidence and five witnesses supported his claim to ownership of the animal. The appellant made an unsworn statement and four witnesses supported his claim to ownership. Looking at the evidence as a whole we consider that there were grounds on which the magistrate could find that the animal belonged to the complainant.

Having found that the animal was the property of the complainant the magistrate found that "the accused could not therefore have taken the cow on a claim of right". This proposition was a misdirection. Ownership is only one element of the offence and it was necessary to prove this. Another element was the theft. The defence being claim of right, in considering this, if the court was satisfied that there was a possibility (a reasonable and not a fanciful possibility) that there were grounds on which the appellant could claim that the animal was his, even though he was mistaken, he is entitled to be acquitted. The magistrate failed to state or direct his mind to this issue and as a result there was no finding supporting the conviction.

It was not disputed that the complainant had been in possession of the animal. It was also not disputed that the appellant's animal had been missing

for some six months. The appellant quite openly took an animal from the complainant's land claiming it was his missing animal. From the number of witnesses on each side heard by the magistrate it is clear that the contest for ownership was a keen one. The evidence was that a meeting of three sub-chiefs could not resolve the matter and it was reported to the police. It appears to us that the dispute was one for a civil court.

For these reasons we allowed the appeal.

Order accordingly.

The appellant appeared in person.

For the respondent:
MA Simwa (State Counsel)

Pritam v Ratilal and another
[1972] 1 EA 560 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	4 March 1971
Case Number:	1499/1970 (186/72)
Before:	Madan J
Sourced by:	LawAfrica

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[1] Rent Restriction – Business premises – Tribunal – Powers of – High Court can interfere where tribunal acts without jurisdiction.

[2] Rent Restriction – Business premises – Order for possession – Can only be made on a reference – Landlord and Tenant (*Shops, Hotels and Catering Establishments*) *Act,* (*Cap.* 301), *s.* 6 (*K.*).

[3] Rent Restriction – Business premises – Reference – Only possible by tenant on whom notice served – Landlord and Tenant (*Shops, Hotels and Catering Establishments*) *Act,* (*Cap.* 301), *s.* 6 (*K.*).

[4] Rent restriction – Business premises – Complaint – Can only be made when parties landlord and tenant – Landlord and Tenant (*Shops, Hotels and Catering Establishments*) *Act,* (*Cap.* 301), *s.* 6 (*K.*).

[5] Rent restriction – Business premises – Complaint – No jurisdiction to order possession on complaint.

Editor's Summary

The defendants served their tenant the plaintiff with a notice terminating his tenancy under s. 4 of the Landlord and Tenant (Shops, Hotels and Catering Establishments) Act (Cap. 301). The plaintiff did not refer the notice to the tribunal with the result that his tenancy came to an end.

Thereafter when he did not quit the defendants filed a complaint in the tribunal asking for an order for possession of the premises. The tribunal made the order asked for.

The plaintiff filed action in the High Court for a declaration that the tribunal had no jurisdiction on the grounds that the tribunal only had jurisdiction to make an order for possession on a reference to it, not on a complaint.

For the defendants it was contended that the court could not grant the relief asked for.

Held –

(i) the High Court may investigate whether a statutory tribunal acted without jurisdiction;

(ii) there must be a controlled tenancy before the provisions of the Act can apply;

(iii) the plaintiff's tenancy had been properly terminated;

(iv) the landlord cannot make a reference to the tribunal: this can only be made by the tenant on whom a notice is served;

(v) there was therefore no reference upon which the tribunal could make an order for possession;

(vi) a complaint may only be made when the parties are landlord and tenant;

(vii) as the plaintiff had ceased to be the defendants' tenant, no complaint could be made;

(viii) a power to order possession specifically given under the Act must be exercised under that provision;

(ix) an order for possession cannot be made on a complaint (dictum of Spry, V.-P. in *Harnam Singh v. Mistri* (1) followed).

Declaration granted.

Case referred to in judgment:

(1) *Harnam Singh v. Mistri*, [1971] E.A. 122.

Judgment

Madan J: The defendants as the plaintiff's landlords of business premises which he occupied of them as a monthly tenant, served the plaintiff with a notice under s. 4 of the Landlord and Tenant (Shops, Hotels and Catering Establishments) Act, (Cap. 301) terminating with effect from 1 March 1970, the plaintiff's tenancy and requiring him to vacate the premises. The plaintiff, under s. 4 (5) of the Act, notified the defendants that he did not agree to comply with the notice but he did not thereafter, under s. 6, refer the matter to the Business Premises Rent Tribunal established under the Act.

The defendants on 7 May 1970, lodged a complaint against the plaintiff with the tribunal under s. 12 (1) (*e*) (*f*) and (4) seeking an order *inter alia* for recovery of possession of the premises.

The tribunal made an order giving the defendants vacant possession of the premises on or before 31 December 1970.

The plaintiff did not appeal against the decision of the tribunal. He instituted these proceedings for the following reliefs:

(*a*) A declaration that the plaintiff having failed to file a reference under s 6, the tribunal had no jurisdiction to entertain the proceedings instituted under s. 12 (4) by the defendants who by instituting the proceedings must be deemed to have waived their notice of termination of the tenancy upon which their complaint was wholly or substantially based, and also, they were estopped from denying that the tenancy was subsisting at the date of the institution and hearing of the proceedings; further that the tribunal's decision was in excess of its jurisdiction;

(*b*) A declaration that the decision of the tribunal was arbitrary, wrong and unjust and it ought not to be enforced;

(*c*) A declaration that the plaintiff remains a monthly tenant of the defendants;

(*d*) An injunction permanently restraining the defendants from enforcing the decision of the tribunal or otherwise evicting the plaintiff from the premises.

The plaint filed by the plaintiff also contains an averment that no right of appeal to a higher tribunal or court or at all against the decision of the tribunal in the said proceedings exists under or is conferred by the Act or any other statute.

The hearing before me began with an application for a temporary injunction to restrain the defendants, until the disposal of the suit, from enforcing the decision of the tribunal. Since then, and by consent of the parties who have both addressed their arguments to the court, and neither side wishing to call evidence or to be heard further, it is agreed that the court's judgment shall finally dispose of the suit.

I entertain no doubt that the decisions of statutory tribunals are subject to review by this court and also that this court has jurisdiction to review a decision of the Business Premises Rent Tribunal which is a statutory tribunal. This court may investigate whether the tribunal acted in excess of its jurisdiction. I do not find it necessary to decide the argument made on behalf of the defendants that this court would be usurping the exclusive original jurisdiction of the tribunal to grant substantive reliefs as there is no concurrent jurisdiction to award reliefs. My belief is that it must be a rare case when the court will substitute itself to exercise the powers conferred upon a statutory tribunal but in a proper case the court will not hesitate to inquire whether the tribunal acted properly and within the framework of its statutory powers, and set right that which ought to be set right.

As stated in the Act itself, it is for an Act of Parliament to make provision with respect to certain premises for the protection of tenants of such premises from eviction or from exploitation and for matters connected therewith and incidental thereto. The scheme of this special legislation is to provide extra and special protection for tenants. A special class of tenants is created. Therefore the existence of the relationship of landlord and tenant is a prerequisite to the application of the provisions of the Act. Where such a relationship does not exist or it has come to or been brought to an end, the provisions of the Act will not apply. The applicability of the Act is a condition precedent to the exercise of jurisdiction by the tribunal; otherwise the tribunal will have no jurisdiction. There must be a controlled tenancy as defined in s. 2 to which the provisions of the Act can be made to apply. Outside it the tribunal has no jurisdiction.

Under s. 4 (2) a landlord who wishes to terminate a controlled tenancy shall give notice in that behalf to the tenant in the prescribed form. Similarly, under s. 4 (3), a tenant who wishes to obtain a reassessment of the rent of a controlled tenancy, etc., shall give notice in that behalf to the landlord in the prescribed form. Under subsection (5) a tenancy notice shall not be effective for any of the purposes of the Act unless it specifies the grounds upon which the requesting party seeks the termination, or reassessment etc., and requires the receiving party to notify the requesting party (defined as a landlord or tenant of controlled tenancy to and by whom respectively a tenancy notice is received or given), in writing, within one month after the date of receipt of the notice, whether or not he agrees to comply with the notice.

A receiving party to whom a tenancy notice is given, and tenancy notice means a notice given under s. 4 (2) or (3) of the Act, who wishes to oppose a tenancy notice and who has notified the requesting party under subsection (5) that he does not agree to comply with the tenancy notice, may, before the date upon which such notice is to take effect, refer the matter to the tribunal under s. 6 (1), whereupon such notice shall be of no effect until, and subject to, the determination of the reference by the tribunal.

The plaintiff as the receiving party, having failed to refer the matter to the

tribunal, the notice had effect under s. 10 from the date therein specified to terminate the tenancy. Did the tribunal then have jurisdiction to hear and determine the defendants' complaint filed under s. 12 (1) (*e*) (*f*) and (4)?

The first question to be decided is whether the defendants were entitled to make a reference to the tribunal, for it could only make an order for eviction on a reference being made to it. The right of making a reference is given under s. 6 only to a receiving party who has notified the requesting party under s. 4 (5) that he does not agree to comply with the tenancy notice. In my opinion the defendants not being the receiving party they had no right to refer the matter to the tribunal, neither did the tribunal have any jurisdiction to hear their reference. The order of the tribunal being made without jurisdiction, it was a nullity. There could be no appeal against it. Therefore, these present proceedings were one of the alternatives for relief available to the plaintiff, and this suit is properly filed.

The next question is whether the tribunal could make the order it did under s. 12 (1) (*e*) by virtue of a complaint being made to it under s. 12 (4). That subparagraph and the subsection read as follows:

> (*e*) to make orders, upon such terms and conditions as it thinks fit, for the recovery of possession and for the payment of arrears and mesne profits, which orders may be applicable to any person, whether or not he is a tenant, being at any material time in occupation of the premises comprised in a controlled tenancy.
>
> (4) In addition to any other powers specifically conferred on it by or over this Act, a Tribunal may investigate any complaint relating to a controlled tenancy made to it by the landlord or tenant, and may make such order thereon as it deems fit.

In both cases the premises must be comprised in a controlled tenancy.

The defendants not having any right to refer the matter to the tribunal, they could only make a complaint under subsection (4) provided they still held the legal status of landlords at the time of the making of it, for clearly under this subsection a complaint may only be made by a landlord or tenant. They did not enjoy that status when they lodged their complaint having divested themselves of it by serving their notice and bringing the plaintiff's tenancy to an end.

I am also of the opinion that subsection (4) does not entitle the tribunal to make an order for eviction for it is to be used in addition to any other powers specifically conferred on the tribunal. Sub-paragraph (*e*) specifically gives the tribunal power to make an order for the recovery of possession. A power specifically conferred has to be dealt with under the section conferring it. In my view subsection (4) envisages complaints other than eviction such as a landlord turning off the water tap.

Also in my opinion in the circumstances of this case the tribunal could not properly make an order for the recovery of possession under sub-paragraph (*e*), first, because there was no permissible reference made to it, and, secondly, because there was no longer in existence a controlled tenancy to give it jurisdiction. There is no escape from these two pre-requisites. The words "whether or not he is a tenant" appearing in this sub-paragraph do not I think refer to an ex-tenant whose tenancy has been brought to an end. His case is dealt with and protected by ss. 4 and 6. These words refer I think to a licensee of a tenant whose case they are intended to include.

It has been submitted that if such a narrow view is taken of s. 12, it would nullify some of its provisions and also s. 13. I think not. Those provisions could always be invoked in a proper case in which a reference is made to the tribunal.

I do not think this judgment of mine in any way nullifies any of the provisions of the Act, or it in anyway whittles down the powers of the tribunal. No court may curtail the powers conferred upon a tribunal by a statute. Their interpretation is another matter. A receiving party who fails to refer the matter to the tribunal, in addition to losing the protection conferred upon him as tenant by the Act, also exposes himself to the risk of being sued in court, and paying far more by way of costs than the tribunal might possibly award.

I drew counsel's attention to the following words in a recent judgment of Spry, V.-P. in *Harnam Singh v. Mistri*, [1971] E.A. 122.

> "As a general rule, where a tenant gives notice of his intention to oppose a notice under the Act but does not proceed to refer the matter to a tribunal and the landlord files a suit for possession . . . because the landlord has no alternative to filing a suit."

Counsel for the plaintiff commented that these words reflect the correct position in law. Counsel for the respondent said they were spoken in passing without a full consideration of the matter.

I would not treat any words spoken by the Vice-President lightly; more so, when they are in complete accord with my own view of the matter.

I would grant only the declaration that the tribunal's determination was without jurisdiction, and therefore a nullity. I would also grant the injunction asked for and costs of the suit to plaintiff.

Order accordingly.

For the plaintiff:
RK Shah

For the defendants:
DN Khanna and *JM Patel* (instructed by *Khanna and Co*, Nairobi